KENTUCKY

CRIMINAL LAW MANUAL

11th Edition

2025

DEPARTMENT OF CRIMINAL JUSTICE TRAINING

ANDY BESHEAR
Governor

Keith Jackson
Secretary
Kentucky Justice and Public Safety Cabinet

Mike Bosse
Commissioner
Department of Criminal Justice Training

FOREWORD

TO THE LAW ENFORCEMENT OFFICERS OF KENTUCKY:

I am pleased to present to the law enforcement community in the Commonwealth of Kentucky the Tenth Edition of the “Kentucky Criminal Law Manual”. The Manual is prepared by attorneys from the Department of Criminal Justice Training of the Kentucky Justice and Public Safety Cabinet. For decades, this book has been a valuable resource for Law Enforcement Officers in Kentucky, being continually updated as the law has changed.

On behalf of the citizens of the Commonwealth of Kentucky, I extend theirs, and my appreciation and gratitude to all peace officers of Kentucky for their continued excellence in law enforcement and the courage shown on a daily basis.

Andy Beshear
Governor
Commonwealth of Kentucky

FOREWORD

The Department of Criminal Justice Training of the Kentucky Justice and Public Safety Cabinet has a long history of providing the highest quality training to law enforcement officers of the Commonwealth. On a daily basis, the Department of Criminal Justice Training strives to support the law enforcement community. The Tenth Edition of the “Kentucky Criminal Law Manual” is illustrative of the Department’s continued commitment to service.

The Manual is in an online format, which enables the Legal Training Section of the Department of Criminal Justice Training to provide timely updates as the law changes. The Department will continue to be responsive to the demands and needs of law enforcement in the Commonwealth of Kentucky as it strives to provide quality protection to its citizens.

Keith Jackson
Secretary,
Kentucky Justice and Public Safety Cabinet
Commonwealth of Kentucky

PREFACE

The Eleventh Edition of the "Kentucky Criminal Law Manual" is designed to provide resources on the KRS for officers in training at DOCJT, and for officers doing their jobs protecting the citizens of the Commonwealth.

We continue to provide copies to Basic Trainees and officers attending Legal Update courses. The Manual is available on our web site in .pdf format in standard notebook binder format (8.5 by 11). Agencies can download the Manual for local printing. The 5.5 by 8.5 format is no longer supported.

The Manual was written and edited by the staff of the Legal Training Section: Michael Schwendeman (Editor), David Smith, Graham Trimble, Ingrid Geiser, Christina Retallick, and Bobby Ricks under the supervision of Kelley Calk. The Manual was put in final print form by Molly Pingleton and Brittany Roberts; and web-site form by Kris Bowerman and Kevin Brumfield.

If you have any suggestions for improving the form or substance of the Manual, please let us know.

Mike Bosse
Commissioner
Department of Criminal Justice Training

ADVISORY WARNING:

The Kentucky Criminal Law Manual is designed to be a handy reference tool for officers who may not have ready access to the Kentucky Revised Statutes. It is not a “certified” official version of the Kentucky Revised Statutes. To save space the editors have omitted some sections of the Kentucky Revised Statutes that have limited applicability for law enforcement officers, identifying those KRS Chapters with the annotation “selected sections”. Where portions of sections or sentences have been omitted, those areas are identified by “* * * * *” for entire subsections or “. . . . .” where only portions of sentences are omitted. The editors have proof-read and reviewed the contents for accuracy, but officers should consult an official version of the before taking any actions which may have legal consequences.

Non-statutory materials and editor’s notes that appear in the Manual represent the opinions of the editors, are offered as guidance in statutory and case law interpretation, are not “legal opinions”, and should not be relied upon or cited as legal authority for any actions. Consult legal counsel when in doubt about the meaning of a statute or court decision.

EDITOR'S EXPLANATION OF STYLE AND FORMAT

Type Style

Boldface type. Throughout the Manual, **bold-face type** has been used by the editors to draw attention to particular language within a statute (for example to call attention to definitions contained in a statute), but such stress is not used in official versions of the Kentucky Revised Statutes. **Boldface type** is also used for **KRS section titles and headings** and **do** appear as such in official versions.

Boldface italicized type. Since many readers find footnotes to be distracting and are often overlooked, the editors have chosen to use ***boldface italicized type*** to either imbed explanatory material at the end of a KRS subsection or at the end of the KRS section and have eliminated footnotes completely.

[Bracketed boldface italicized type]. The editors have used ***[bracketed bold-face italicized type]*** to imbed within a statute KRS section titles where the section cites other statutes by number only, or to insert brief, non-statutory definitions within the statute.

Page Numbering

To avoid the problems of strictly numerical sequencing, page numbers in this edition follow the style of the 2004 edition – consisting of two or three numerals separated by a dot, instead of a combination of numerals and letters as in editions prior to 2004:

- The **first** numeral is the Section Number.
- Where the page number has only two numerals (the Table of Contents and Sections 3 and 4), the second numeral is the page number within the section.
- For the rest of the sections (divided into subsections to allow for easier supplementation), the **second** numeral is a subsection number. The **third** numeral is the page number within the subsection.
- The page number in either of the above is **bold faced and slightly larger**.

Format

Standard Notebook Binder Format. This larger format (designed to be printed on standard sized 8 ½" by 11" paper and using a larger 10-point Arial font) is available on-line and on CD in .pdf format for those who find it difficult to find or afford a local printer and who do not have the capabilities themselves to print the smaller format or who simply find the larger format easier to read and use.

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THE CONSTITUTION OF THE UNITED STATES
"BILL OF RIGHTS"
(Selected Sections)

FIRST AMENDMENT

Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press; or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances.

SECOND AMENDMENT

A well regulated militia, being necessary to the security of a free State, the right of the people to keep and bear arms, shall not be infringed.

FOURTH AMENDMENT

The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probable cause, supported by oath or affirmation, and particularly describing the place to be searched, and the persons or things to be seized.

FIFTH AMENDMENT

No person shall be held to answer for a capital, or otherwise infamous crime, unless on a presentment or indictment of a Grand Jury, except in cases arising in the land or naval forces, or in the militia, when in actual service in time of war or public danger; nor shall any person be subject for the same offence to be twice put in jeopardy of life or limb; nor shall be compelled in any criminal case to be a witness against himself, nor be deprived of life, liberty, or property, without due process of law; nor shall private property be taken for public use, without just compensation.

SIXTH AMENDMENT

In all criminal prosecutions, the accused shall enjoy the right to a speedy and public trial, by an impartial jury of the State and district wherein the crime shall have been committed, which district shall have been previously ascertained by law, and to be informed of the nature and cause of the accusation; to be confronted with the witnesses against him; to have compulsory process for obtaining witnesses in his favor, and to have the Assistance of Counsel for his defence.

EIGHTH AMENDMENT

Excessive bail shall not be required, nor excessive fines imposed, nor cruel and unusual punishments inflicted.

FOURTEENTH AMENDMENT

Section. 1.

All persons born or naturalized in the United States, and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws.

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CONSTITUTION OF KENTUCKY
"BILL OF RIGHTS"
(Selected Sections)

Section 1 Rights of life, liberty, worship, pursuit of safety and happiness, free speech, acquiring and protecting property, peaceable assembly, redress of grievances, bearing arms

All men are, by nature, free and equal, and have certain inherent and inalienable rights, among which may be reckoned:

First: The right of enjoying and defending their lives and liberties.
Second: The right of worshipping Almighty God according to the dictates of their consciences.
Third: The right of seeking and pursuing their safety and happiness.
Fourth: The right of freely communicating their thoughts and opinions.
Fifth: The right of acquiring and protecting property.
Sixth: The right of assembling together in a peaceable manner for their common good, and of applying to those invested with the power of government for redress of grievances or other proper purposes, by petition, address or remonstrance.
Seventh: The right to bear arms in defense of themselves and of the State, subject to the power of the General Assembly to enact laws to prevent persons from carrying concealed weapons.

Section 5 Right of religious freedom

No preference shall ever be given by law to any religious sect, society or denomination; nor to any particular creed, mode of worship or system of ecclesiastical polity; nor shall any person be compelled to attend any place of worship, to contribute to the erection or maintenance of any such place, or to the salary or support of any minister of religion; nor shall any man be compelled to send his child to any school to which he may be conscientiously opposed; and the civil rights, privileges or capacities of no person shall be taken away, or in anywise diminished or enlarged, on account of his belief or disbelief of any religious tenet, dogma or teaching. No human authority shall, in any case whatever, control or interfere with the rights of conscience.

Section 7 Right of trial by jury

The ancient mode of trial by jury shall be held sacred, and the right thereof remain inviolate, subject to such modifications as may be authorized by this Constitution.

Section 8 Freedom of speech and of the press

Printing presses shall be free to every person who undertakes to examine the proceedings of the General Assembly or any branch of government, and no law shall ever be made to restrain the right thereof. Every person may freely and fully speak, write and print on any subject, being responsible for the abuse of that liberty.

Section 10 Security from search and seizure – Conditions of issuance of warrant

The people shall be secure in their persons, houses, papers and possessions, from unreasonable search and seizure; and no warrant shall issue to search any place, or seize any person or thing, without describing them as nearly as may be, nor without probable cause supported by oath or affirmation.

Section 11 Rights of accused in criminal prosecution – Change of venue

In all criminal prosecutions the accused has the right to be heard by himself and counsel; to demand the nature and cause of the accusation against him; to meet the witnesses face to face, and to have compulsory process for obtaining witnesses in his favor. He cannot be compelled to give evidence against himself, nor can he be deprived of his life, liberty or property, unless by the judgment of his peers or the law of the land; and in prosecutions by indictment or information, he shall have a speedy public trial by an impartial jury of the vicinage; but the General Assembly may provide by a general law for a change of venue in such prosecutions for both the defendant and the Commonwealth, the change to be made to the most convenient county in which a fair trial can be obtained.

Section 12 Indictable offense not to be prosecuted by information – Exceptions

No person, for an indictable offense, shall be proceeded against criminally by information, except in cases arising in the land or naval forces, or in the militia, when in actual service in time of war or public danger, or by leave of court for oppression or misdemeanor in office.

Section 13 Double jeopardy – Property not to be taken for public use without compensation

No person shall, for the same offense, be twice put in jeopardy of his life or limb, nor shall any man's property be taken or applied to public use without the consent of his representatives, and without just compensation being previously made to him.

Section 16 Right to bail – Habeas corpus

All prisoners shall be bailable by sufficient securities, unless for capital offenses when the proof is evident or the presumption great; and the privilege of the writ of habeas corpus shall not be suspended unless when, in case of rebellion or invasion, the public safety may require it.

Section 17 Excessive bail or fine, or cruel punishment, prohibited

Excessive bail shall not be required, nor excessive fines imposed, nor cruel punishment inflicted.

KRS CHAPTER 446
CONSTRUCTION OF STATUTES
(Selected Sections)

KRS 446.010 Definitions for statutes generally

As used in the statute laws of this state, unless the context requires otherwise:
* * * * *
(2) "**Animal**" includes every warm-blooded living creature except a human being;
* * * * *
(9) "**Company**" may extend and be applied to any corporation, company, person, partnership, joint stock company, or association;
(10)"**Corporation**" may extend and be applied to any corporation, company, partnership, joint stock company, or association;
(12)"**Cruelty**" as applied to animals includes every act or omission whereby unjustifiable physical pain, suffering, or death is caused or permitted;
* * * * *
(14)"**Domestic**," when applied to corporations, means all those incorporated or formed by authority of this state;
(15)"**Domestic animal**" means any animal converted to domestic habitat;
* * * * *
(17)"**Federal**" refers to the United States;
(18)"**Foreign**," when applied to corporations, includes all those incorporated or formed by authority of any other state;
* * * * *
(21)"**Humane society**," "**society**," or "**Society for the Prevention of Cruelty to Animals**," means any nonprofit corporation, organized under the laws of this state and having as its primary purpose the prevention of cruelty to animals;
* * * * *
(23)"**Land**" or "**real estate**" includes lands, tenements, and hereditaments and all rights thereto and interest therein, other than a chattel interest;
* * * * *
(26)"**May**" is permissive;
(27)"**Month**" means calendar month;
(28)"**Oath**" includes "**affirmation**" in all cases in which an affirmation may be substituted for an oath;
(29)"**Owner**" when applied to any animal, means any person having a property interest in such animal;
(30)"**Partnership"** includes both general and limited partnerships;
(31)"**Peace officer**" includes sheriffs, constables, coroners, jailers, metropolitan and urban-county government correctional officers, marshals, policemen, and other persons with similar authority to make arrests;
(32)"**Penitentiary**" includes all of the state penal institutions except the houses of reform;
(33)"**Person**" may extend and be applied to bodies-politic and corporate, societies, communities, the public generally, individuals, partnerships, registered limited liability partnerships, joint stock companies, and limited liability companies;
* * * * *
(39)"**Shall**" is mandatory;
(40)"**State**" when applied to a part of the United States, includes territories, outlying possessions, and the District of Columbia; "any other state" includes any state, territory, outlying possession, the District of Columbia, and any foreign government or country;
* * * * *
(43)"**Sworn**" includes "**affirmed**" in all cases in which an affirmation may be substituted for an oath;
(45)"**United States**" includes territories, outlying possessions, and the District of Columbia;
* * * * *
(47)"**Violate**" includes failure to comply with;

* * * * *

(49)"**Year**" means calendar year;
(50)"**City**" includes town;
* * * * *

(55)**"AVIS"** means the automated vehicle information system established and maintained by the Transportation Cabinet to collect titling and registration information on vehicles and boats and information on holders of motor vehicle operator's licenses and personal identification cards;
* * * * *

(57)**"Unmanned aircraft system"** means an aircraft that is operated without the possibility of direct human interaction from within or on the aircraft and includes everything that is on board or otherwise attached to the aircraft and all associated elements, including communications links and the components that control the small unmanned aircraft, that are required for the safe and efficient operation of the unmanned aircraft in the national airspace system.

KRS 446.020 Singular includes plural – Masculine includes feminine

(1) A word importing the singular number only may extend and be applied to several persons or things, as well as to one (1) person or thing, and a word importing the plural number only may extend and be applied to one (1) person or thing as well as to several persons or things.
(2) A word importing the masculine gender only may extend and be applied to females as well as males.

KRS 446.080 Liberal construction – Statutes not retroactive – Common usage – Technical terms

(1) All statutes of this state shall be liberally construed with a view to promote their objects and carry out the intent of the legislature, and the rule that statutes in derogation of the common law are to be strictly construed shall not apply to the statutes of this state.
(2) There shall be no difference in the construction of civil, penal and criminal statutes.
(3) No statute shall be construed to be retroactive, unless expressly so declared.
(4) All words and phrases shall be construed according to the common and approved usage of language, but technical words and phrases, and such others as may have acquired a peculiar and appropriate meaning in the law, shall be construed according to such meaning.

KRS 446.140 Titles, headings and notes

Title heads, chapter heads, section and subsection heads or titles, and explanatory notes and cross references, in the Kentucky Revised Statutes, do not constitute any part of the law, except as provided in KRS 355.1-109 ***[Uniform Commercial Code]***.

KRS CHAPTER 431
GENERAL PROVISIONS CONCERNING
CRIMES AND PUNISHMENTS
(Selected Sections)

KRS 431.005 Arrest by peace officers – By private persons

(1) A peace officer may make an arrest:
   (a) In obedience to a warrant; or
   (b) Without a warrant when a felony is committed in his or her presence; or
   (c) Without a warrant when he or she has probable cause to believe that the person being arrested has committed a felony; or
   (d) Without a warrant when a misdemeanor, as defined in KRS 431.060, has been committed in his or her presence; or
   (e) Without a warrant when a violation of KRS 189.290, 189.393, 189.520, 189.580, 511.080, or 525.070 has been committed in his or her presence, except that a violation of KRS 189A.010 or KRS 281A.210 need not be committed in his or her presence in order to make an arrest without a warrant if the officer has probable cause to believe that the person being arrested has violated KRS 189A.010 or KRS 281A.210; or
   (f) Without a warrant when a violation of KRS 508.030 has occurred in a hospital without the officer's presence if the officer has probable cause to believe that the person being arrested has violated KRS 508.030. As used in this paragraph, "hospital" includes any property owned or used by a hospital as a parking lot or parking garage; or
   (g) Without a warrant when a violation of subsection (2) of KRS 235.240 has occurred causing an accident, occurring outside of the peace officer's presence, involving a motorboat or vessel on the waters of the Commonwealth, and resulting in a physical injury or property damage, and a commissioned peace officer has probable cause to determine who the operator of the motorboat or vessel was and that operator was intoxicated or under the influence of any substance that impairs one's ability to operate the motorboat or vessel at the time of the accident.

(2) (a) Any peace officer may arrest a person without warrant when the peace officer has probable cause to believe that the person has intentionally or wantonly caused physical injury to a family member, member of an unmarried couple, or another person with whom the person was or is in a dating relationship.
   (b) As used in this subsection, "dating relationship," "family member," and "member of an unmarried couple" have the same meanings as defined in KRS 403.720 and 456.010.
   (c) For the purpose of this subsection, the term "member of an unmarried couple" has the same meaning as set out in KRS 403.720(4).

EDITOR'S NOTE: The Kentucky Court of Appeals ruled that "member of an unmarried couple" includes same sex couples, but not roommates unless engaged in an intimate (i.e., sexual) relationship. Ireland v. Davis, 957 S.W.2d 310 (Ky Ct. App. 1997).

(3) A peace officer may arrest a person without warrant when the peace officer has probable cause to believe that the person is a sexual offender who has failed to comply with the Kentucky Sex Offender Registry requirements based upon information received from the Law Information Network of Kentucky.
(4) For purposes of subsections (2) and (3) of this section, a "peace officer" is an officer certified pursuant to KRS 15.380.
(5) If a law enforcement officer has probable cause to believe that a person has violated a condition of release imposed in accordance with KRS 431.064 and verifies that the alleged violator has notice of the conditions, the officer shall, without a warrant, arrest the alleged violator whether the violation was committed in or outside the presence of the officer.
(6) A private person may make an arrest when a felony has been committed in fact and he has probable cause to believe that the person being arrested has committed it.
(7) If a law enforcement officer has probable cause to believe that a person has violated a restraining order issued under KRS 508.155, then the officer shall, without a warrant, arrest the alleged

violator whether the violation was committed in or outside the presence of the officer.

KRS 431.007 Arrest powers of peace officers assisting in another county – Exception

(1) A peace officer, certified pursuant to KRS 15.380 to 15.404, who is directly employed as a police officer by a Kentucky city, county, or urban-county government and whose department meets the requirements of KRS 15.440 and a sheriff or deputy sheriff who has been certified pursuant to KRS 15.380 to 15.404, who is officially requested by a law enforcement agency in another county in Kentucky to assist in any matter within the jurisdiction of the requesting agency shall possess, while responding to and for the duration of the matter for which the request was made, the same powers of arrest in the requesting county as he possesses in the county in which he is a police officer.
(2) The provisions of this section shall not:
  (a) Authorize assistance in any labor dispute or strike;
  (b) Authorize assistance by a constable or deputy constable;
  (c) Authorize assistance by a special local peace officer; or
  (d) Authorize assistance by a special deputy sheriff.

KRS 431.015 Citation for misdemeanor – Arrest for certain misdemeanors - Failure to appear

(1) (a) KRS 431.005 to the contrary notwithstanding, and except as provided in paragraphs (b), (c), (d), and (e) of this subsection, a peace officer shall issue a citation instead of making an arrest for a misdemeanor committed in his or her presence, if there are reasonable grounds to believe that the person being cited will appear to answer the charge. The citation shall provide that the defendant shall appear within a designated time.
  (b) A peace officer may make an arrest instead of issuing a citation for a misdemeanor committed in his or her presence if the misdemeanor is:
  1. A violation of KRS Chapter 508, 510, or 527, or KRS 189A.010, 511.050, 511.085, 514.110 or 523.110;
  2. An offense in which the defendant poses a risk of danger to himself, herself, or another person; or
  3. An offense in which the defendant refuses to follow the peace officer's reasonable instructions.
  (c) A peace officer shall make an arrest for violations of protective orders issued pursuant to KRS 403.715 to 403.785, or an order of protection as defined in KRS 456.010.
  (d) A peace officer may make an arrest or may issue a citation for a violation of KRS 508.030 which occurs in a hospital pursuant to KRS 431.005(1)(f).
  (e) A peace officer:
    1. May make an arrest for a violation of KRS 519.082 or KRS 519.084; and
    2. Shall remove a person who violates KRS 519.082 or KRS 519.084 from a legislative building as defined in KRS 519.080 when the removal is requested by the:
      a. Speaker of the House of Representatives;
      b. Sergeant-at-Arms of the House or Representatives;
      c. President of the Senate;
      d. Sergeant-at-Arms of the Senate; or
      e. Chair of a committee of the General Assembly.
(2) A peace officer may issue a citation instead of making an arrest for a violation committed in his or her presence but may not make a physical arrest unless there are reasonable grounds to believe that the defendant, if a citation is issued, will not appear at the designated time or unless the offense charged is a violation of KRS 189.223, 189.290, 189.393, 189.520, 189.580, 235.240, 281.600, 511.080, or 525.070 committed in his or her presence or a violation of KRS 189A.010, not committed in his or her presence, for which an arrest without a warrant is permitted under KRS 431.005(1)(e).
(3) A peace officer may issue a citation when he or she has probable cause to believe that the person being issued the citation has committed a misdemeanor outside his or her presence, if there are reasonable grounds to believe that the person being cited will appear to answer the charge. The citation shall provide that the defendant shall appear within the designated time.

(4) If the defendant fails to appear in response to the citation, or if there are reasonable grounds to believe that he or she will not appear, a complaint may be made before a judge and a warrant shall issue.
(5) When a physical arrest is made and a citation is issued in relation to the same offense the officer shall mark on the citation, in the place specified for court appearance date, the word "ARRESTED" in lieu of the date of court appearance.

KRS 431.025 Notice of intention to arrest – Act of arrest – Force

(1) The person making an arrest shall inform the person about to be arrested of the intention to arrest him, and of the offense for which he is being arrested.
(2) An arrest is made by placing the person being arrested in restraint, or by his submission to the custody of the person making the arrest. The submission shall be in the actual presence of the arrester.
(3) No unnecessary force or violence shall be used in making an arrest.

KRS 431.045 Pursuit in effecting arrest

A peace officer in actual pursuit may continue such pursuit across corporate or county lines for the purpose of making an arrest.

KRS 431.055 Pursuit to recapture escapee

If a person lawfully arrested escapes or is rescued, the person from whose custody he escaped or was rescued may immediately pursue and retake him in any part of the Commonwealth and may be joined in the pursuit and recapture by peace officers in the immediate area or vicinity.

KRS 431.060 Felonies, misdemeanors and violations defined

Offenses are either felonies, misdemeanors, or violations:
(1) Offenses punishable by death or confinement in the penitentiary, whether or not a fine or other penalty may also be assessed, are felonies.
(2) Offenses punishable by confinement other than in the penitentiary, whether or not a fine or other penalty may also be assessed, are misdemeanors.
(3) Offenses punishable by a fine only or by any other penalty not cited herein, whether in combination with a fine or not, are violations.

KRS 431.063 Victim of human trafficking not to be held in a detention center

A victim of human trafficking shall not be held in a detention center, jail, or other secure facility pending trial for an offense arising from the human trafficking situation except where the incarceration is found to be the least restrictive alternative to securing the appearance of that person before the court or the release of the person under any other reasonable condition would be a clear threat to public safety.

KRS 431.064 Pretrial release of person arrested for assault, sexual offense, or violation of protective order – Conditions – Hearing – Victim entitled to copy of conditions of release – Entry of conditions into Law Information Network – Penalty

(1) In making a decision concerning pretrial release of a person who is arrested for a violation of KRS Chapter 508 or 510, or charged with a crime involving a violation of an order of protection as defined in KRS 403.720 and 456.010, the court or agency having authority to make a decision concerning pretrial release shall review the facts of the arrest and detention of the person and determine whether the person:
    (a) Is a threat to the alleged victim or other family or household member; and
    (b) Is reasonably likely to appear in court.
(2) Before releasing a person arrested for or charged with a crime specified in subsection (1) of this section, the court shall make findings, on the record if possible, concerning the determination made in accordance with subsection (1), and may impose conditions of release or bail on the

person to protect the alleged victim of domestic violence or abuse and to ensure the appearance of the person at a subsequent court proceeding. The conditions may include:
(a) An order enjoining the person from threatening to commit or committing acts of domestic violence or abuse against the alleged victim or other family or household member;
(b) An order prohibiting the person from harassing, annoying, telephoning, contacting, or otherwise communicating with the alleged victim, either directly or indirectly;
(c) An order directing the person to vacate or stay away from the home of the alleged victim and to stay away from any other location where the victim is likely to be;
(d) An order prohibiting the person from using or possessing a firearm or other weapon specified by the court;
(e) An order prohibiting the person from possession or consumption of alcohol or controlled substances;
(f) Any other order required to protect the safety of the alleged victim and to ensure the appearance of the person in court; or
(g) Any combination of the orders set out in paragraphs (a) to (f).

(3) If conditions of release are imposed, the court imposing the conditions on the arrested or charged person shall:
(a) Issue a written order for conditional release; and
(b) Immediately distribute a copy of the order to pretrial services.

(4) The court shall provide a copy of the conditions to the arrested or charged person upon release. Failure to provide the person with a copy of the conditions of release does not invalidate the conditions if the arrested or charged person has notice of the conditions.

(5) If conditions of release are imposed without a hearing, the arrested or charged person may request a prompt hearing before the court to review the conditions. Upon request, the court shall hold a prompt hearing to review the conditions.

* * * * * * *

(7) The circuit clerk, or the circuit clerk's designee, in cooperation with the court that issued the order releasing the defendant, shall cause the conditions of release to be entered into the computer system maintained by the clerk and the Administrative Office of the Courts within twenty-four (24) hours following its filing, excluding weekends and holidays. Any modification of the release conditions shall likewise be entered by the circuit clerk, or the circuit clerk's designee.

(8) The information entered under this section shall be accessible to any agency designated by the Kentucky State Police as a terminal agency for the Law Information Network of Kentucky.

(9) All orders issued under this section which require entry into the Law Information Network of Kentucky shall be entered on forms prescribed by the Administrative Office of the Courts. If the conditions of pretrial release are contained in an order which is narrative in nature, the prescribed form shall be used in addition to the narrative order.

(10) Any person who violates any condition of an order issued pursuant to this section is guilty of a Class A misdemeanor.

KRS 431.420 City police to serve warrant, when

Any warrant issued by District Court for an offense committed within a city shall be served by the police department of that city if the warrant is to be served within the city limits.

UNIFORM TRAFFIC CITATION

KRS 431.450 Uniform citation

(1) The Department of State Police in consultation with the Transportation Cabinet shall design, print, and distribute to all law enforcement agencies in the Commonwealth a uniform citation.

(2) The citation shall:
(a) Be approved by the Supreme Court;
(b) Consist of an original document and five (5) copies;
(c) Be serially numbered in such a manner that the year of issue and the individual citation number may be readily ascertained; and
(d) Contain such other information as may be required by the Supreme Court.

(3) The Circuit Court clerk shall maintain a system of accountability for all citations issued in accordance with rules and regulations issued by the Supreme Court to assure that citations are not wrongfully destroyed, tampered with, or otherwise compromised in any manner.
(4) All peace officers in the Commonwealth shall use the uniform citation for all violations of the traffic laws and for all felonies, misdemeanors and violations.

KRS 431.452 Prepayment of fines subject to certain conditions

(1) An offense which is designated as subject to prepayment by specific statutory designation may be prepaid by the violator subject to the terms and conditions of the statute involved.
(2) When an offense that is not designated as subject to prepayment by specific statutory designation is cited on the same citation with another offense that is subject to prepayment, the officer shall cite the violator to court for all cited offenses. However, if the offense for which prepayment is not allowed is dismissed by the judge prior to the court date listed on the citation, the offense subject to prepayment by specific statutory designation may be prepaid by the violator, and the violator shall not be required to appear in court.
(3) An offense which is designated as subject to prepayment is subject to the following conditions:
    (a) Designation as subject to prepayment does not preclude a physical arrest by a peace officer for that offense;
    (b) Designation as subject to prepayment shall preclude a requirement that the defendant make a court appearance on a uniform citation;
    (c) Except as provided for in KRS 189.990(25), for any offense designated as subject to prepayment the defendant may elect to pay the minimum fine for the offense plus court costs to the circuit clerk before the date of his trial or be tried in the normal manner, unless the citation is marked for mandatory court appearance pursuant to KRS 431.015 or subsection (2) of this section, except that the fine for violations of KRS 189.221, 189.222, 189.226, 189.270, or 189.271 ***[all dealing with weights and measures]*** shall be in accordance with KRS 189.990(2)(a) and the defendant shall not be allowed to pay the minimum fine as otherwise allowed by this paragraph;
    (d) Prepayment of the fine and costs shown on the citation or accompanying schedule shall be considered as a plea of guilty for all purposes.
(4) When a peace officer issues a uniform citation and no physical arrest is made he shall, where the citation is designated as subject to prepayment, mark the citation as "PAYABLE", except as provided in KRS 431.015 or subsection (2) of this section.

* * * * *

KRS 431.455 Prohibitions – Penalty

(1) No peace officer or other person shall invalidate, or attempt to invalidate, destroy or attempt to destroy a record copy of a uniform citation which has been lawfully issued.
(2) No peace officer or other person to whom uniform citations are distributed, prior to issuance to a violator, shall fail to properly account for uniform citations issued to him or to his agency as required by KRS 431.450 and the regulations issued thereunder.
(3) No person required to file reports pursuant to KRS 431.450 and the regulations issued thereunder shall fail to file the reports within the time limits specified.
(4) Any peace officer or other person who violates the provisions of this section shall be guilty of a Class B misdemeanor.

LIMITATIONS ON WHEN ARREST TO BE MADE

Normally, officers are not restricted by time or location in making arrests and may make an arrest at any time, day or night. Exceptions to this rule include:

LIMITATION IN ARREST WARRANT. The arrest warrant could limit the time for arrest (quite rare).

STATUTE OF LIMITATIONS. The government must start prosecution for misdemeanors or violations within one year. (See KRS 500.050) Arrests (1) without a warrant for misdemeanors or violations occurring more than a year before the arrest, or (2) with a warrant for misdemeanors or violations occurring more than a year before the warrant was issued are improper and illegal.

U.S. SENATORS AND REPRESENTATIVES:

U. S. Constitution Article I, Section 6:

The Senators and Representatives . . . in all Cases, except Treason, Felony and **Breach of the Peace**, be privileged from Arrest during their Attendance at the Session of their respective Houses, and in going to and returning from the same; and for any Speech or Debate in either House, they shall not be questioned in any other Place. . . .

EDITOR'S NOTE: "Breach of the Peace" is "a violation or disturbance of the public tranquility and order. The offense of breaking or disturbing the public peace by any riotous, forcible, or unlawful proceeding. 'Breach of the Peace' is a generic term and includes all violations of public peace or order and acts tending to a disturbance thereof. One who commits a breach of the peace is guilty of disorderly conduct, but not all disorderly conduct is necessarily a breach of the peace." **Black's Law Dictionary *(West Publishing Co)***

MEMBERS OF THE GENERAL ASSEMBLY:

Kentucky Constitution Section 43:

The members of the General Assembly shall, in all cases except treason, felony, breach or surety of the peace, be privileged from arrest during their attendance on the sessions of their respective Houses, and in going to and returning from the same; and for any speech or debate in either House they shall not be questioned in any other place.

VOTERS:

Kentucky Constitution Section 149:

Voters, in all cases except treason, felony, breach of surety of the peace, or violation of the election laws, shall be privileged from arrest during their attendance at elections, and while they are going to and returning therefrom.

KENTUCKY NATIONAL GUARDSMEN:

KRS 38.480(2) Immunity for acts done in pursuance of duty – Immunity from arrest on civil process

* * * * * *

(2) No officer, warrant officer, or enlisted man of the Kentucky National Guard or Kentucky active militia shall be arrested, except in case of a felony, while going to, remaining at, or returning from a place where he is ordered to attend for state active duty.

DIPLOMATS; ALIENS

(This material is adapted from materials published by the Federal Law Enforcement Training Center, Brunswick, GA.)

Diplomatic Immunity

Diplomats are representatives of a recognized foreign government who are accredited by that government and are accepted by our government. There are many different types or levels of diplomats including ambassadors, consuls, charge d'affaires, and ministers. Each level of diplomat has its own degree of immunity from civil and/or criminal action. In addition, this immunity may extend beyond that of diplomats themselves and may include the entire family.

Those diplomats who have immunity may not be arrested or prosecuted. If an offense has been committed by a person who claims to have diplomatic immunity, you may detain the person long enough to confirm whether they are in fact protected by diplomatic immunity.

The possession of a diplomatic passport by an individual does not in and of itself indicate that the holder has diplomatic immunity. Verification of diplomatic immunity may be obtained through the United States Department of State's Office of Protocol in Washington, D.C. During normal working hours the State Department may be reached at (202) 647-1664 or (202) 647-1405. After working hours and on weekends, calls should be made to the Diplomatic Security Watch Officer at (202) 647-7277. Send copies of incident reports and citations to (Fax) (202) 895-3613.

Should you find that you have detained diplomats who do have full immunity, you MUST release them.

Any writ or process issued against a person holding or possessing diplomatic immunity is null and void, without regard to whether or not the writ or process is civil or criminal in nature. In fact, any person who knowingly obtains or executes such a writ or process may be liable for a fine and/or imprisonment. The one exception to this rule is the issuance of parking citations and similar traffic related offenses.

The right to operate a motor vehicle, obtain state department diplomatic tags, and utilize a driver’s permit in the host nation is not an issue of diplomatic immunity. Officers may issue citations to diplomats but not arrest the operator if the diplomat has immunity. It is also recognized that officers may forbid the further operation of a vehicle by an intoxicated driver, regardless of the immunity involved. While the operator, if immune, cannot be arrested, the public safety issue may restrict the movement of the vehicle until a sober and licensed driver can operate the vehicle.

Persons having diplomatic immunity cannot be required to appear in court as a defendant or as a witness for any reason. In order to have them testify, it is necessary for them to volunteer or to get their government to waive their immunity for that purpose.

It is a Federal crime for any person to strike, wound, imprison or offer violence to the person of a diplomatic officer and an offender is subject to fine and/or imprisonment under Federal law as well as being subject to possible prosecution under applicable state statutes which apply to such criminal conduct.

Any and all illegal or criminal acts perpetrated by diplomats should be reported to the Department of State to take whatever action they deem to be appropriate. They may declare a diplomat to be persona non grata and have that diplomat leave the country.

A foreign embassy or other diplomatic mission is considered to be foreign soil. Therefore we have no right to enter onto that property without the permission of an official at that mission. This holds true even in circumstances where a fire has broken out in the mission itself or where people are shooting from the mission, as occurred in London several years ago.

Notification of Embassy Upon Arrest of Aliens.

Aliens are all persons in the United States who are not citizens. Aliens may be here on a temporary basis, such as those with student visas; others may have permanent status, while others are here illegally. While in this country, aliens are subject to all of our criminal laws.

If you arrest an alien, you should ask if the alien wishes you to notify the appropriate consular or diplomatic officers of the appropriate country. If requested, you should notify them as a matter of courtesy. Note however, that some of our treaty obligations with foreign countries require that their diplomatic officials be notified whenever one of their nationals is arrested in our country. To determine such status, call the Department of State at the telephone numbers given above; and remember to fax them a copy of your report.

KRS CHAPTER 17
PUBLIC SAFETY
(Selected Sections)

SEX OFFENDER REGISTRATION

KRS 17.500 Definitions for KRS 17.500 to 17.580

As used in KRS 17.500 to 17.580:

* * * * * * * *

(2) "**Cabinet**" means the Justice and Public Safety Cabinet;

(3) (a) Except as provided in paragraph (b) of this subsection, "**criminal offense against a victim who is a minor**" means any of the following offenses if the victim is under the age of eighteen (18) at the time of the commission of the offense:
1. Kidnapping, as set forth in KRS 509.040, except by a parent;
2. Unlawful imprisonment, as set forth in KRS 509.020, except by a parent;
3. Sex crime;
4. Promoting a sexual performance of a minor, as set forth in KRS 531.320;
5. Human trafficking involving commercial sexual activity as set forth in KRS 529.100;
6. Promoting human trafficking involving commercial sexual activity, as set forth in KRS 529.110;
7. Promoting prostitution, as set forth in KRS 529.040, when the defendant advances or profits from the prostitution of a person under the age of eighteen (18);
8. Use of a minor in a sexual performance, as set forth in KRS 531.310;
9. Sexual abuse, as set forth in KRS 510.120 and 510.130;
10. Unlawful transaction with a minor in the first degree as set forth in of KRS 530.064(1)(a);
11. Any offense involving a minor or depictions of a minor as set forth in KRS Chapter 531;
12. Any attempt to commit any of the offenses described in subparagraphs 1. to 10. of this paragraph; and
13. Solicitation to commit any of the offenses described in subparagraphs 1. to 10. of this paragraph.

(b) Conduct which is criminal only because of the age of the victim shall not be considered a criminal offense against a victim who is a minor if the perpetrator was under the age of eighteen (18) at the time of the commission of the offense;

(4) "**Law enforcement agency**" means any lawfully organized investigative agency, sheriff's office, police unit, or police force of federal, state, county, urban county government, charter county, city, consolidated local government, or a combination of these, responsible for the detection of crime and the enforcement of the general criminal federal or state laws;

(5) **"Registrant"** means:
(a) Any person eighteen (18) years of age or older at the time of the offense or any youthful offender, as defined in KRS 600.020, who has committed:
1. A sex crime; or
2. A criminal offense against a victim who is a minor; or

(b) Any person required to register under KRS 17.510; or
(c) Any sexually violent predator; or
(d) Any person whose sexual offense has been diverted pursuant to KRS 533.250, until the diversionary period is successfully completed.

(6) **"Registrant information"** means the name, including any lawful name change together with the previous name, Social Security number, age, race, sex, date of birth, height, weight, hair and eye color, fingerprints, palm prints, DNA sample, a photograph, aliases used, residence, electronic mail address and any instant messaging, chat, or other Internet communication name identities, a brief description of the crime or crimes committed, and other information the cabinet determines, by administrative regulation, may be useful in the identification of registrants;

(7) "**Residence**" means any place where a person sleeps. For the purposes of this statute, a registrant may have more than one (1) residence. A registrant is required to register each residence address;
(8) "**Sex crime**" means:
  (a) A felony offense defined in KRS Chapter 510, KRS 529.100 or 529.110 involving commercial sexual activity, KRS 530.020, 530.064(1)(a), 531.310, 531.320, 531.335, 531.340, KRS 531.365, KRS 531.366, KRS 531.367, KRS 531.368, or KRS 531.125**;**
  (b) A felony attempt to commit a felony offense specified in paragraph (a) of this subsection; or
  (c) A federal felony offense, a felony offense subject to a court-martial of the United States Armed Forces, or a felony offense from another state or a territory where the felony offense is similar to a felony offense specified in paragraph (a) of this subsection;
(9) "**Sexual offender**" means any person convicted of, pleading guilty to, or entering an Alford plea to a sex crime as defined in this section, as of the date the verdict is entered by the court;
(10)"**Sexually violent predator**" means any person who has been subjected to involuntary civil commitment as a sexually violent predator, or a similar designation, under a state, territory, or federal statutory scheme;
* * * * * * * *
(12)"**Victim**" has the same meaning as in KRS 421.500.
(13) **"DNA sample"** or **"deoxyribonucleic acid sample"** means a blood or swab specimen from a person, as prescribed by administrative regulation, that is required to provide a DNA sample pursuant to KRS 17.170 or 17.510, that shall be submitted to the Department of Kentucky State Police forensic laboratory for law enforcement identification purposes and inclusion in law enforcement identification databases; and
(14) **"Authorized personnel"** means an agent of state government who is properly trained in DNA sample collection pursuant to administrative regulation.

KRS 17.510 Registration system for adults who have committed sex crimes or crimes against minors -- Persons required to register -- Manner of registration – Penalties – Notifications of violations required

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(2) A registrant shall, on or before the date of his or her release by the court, the parole board, the cabinet, or any detention facility, register with the appropriate local probation and parole office in the county in which he or she intends to reside. The person in charge of the release shall facilitate the registration process.

*** * * * * * * ***
(6) (a) Except as provided in paragraph (b) of this subsection, any person who has been convicted in a court of any state or territory, a court of the United States, or a similar conviction from a court of competent jurisdiction in any other country, or a court martial of the United States Armed Forces of a sex crime or criminal offense against a victim who is a minor and who has been notified of the duty to register by that state, territory, or court, or who has been committed as a sexually violent predator under the laws of another state, laws of a territory, or federal laws, or has a similar conviction from a court of competent jurisdiction in any other country, shall comply with the registration requirement of this section, including the requirements of subsection (4) of this section, and shall register with the appropriate local probation and parole office in the county of residence within five (5) working days of relocation. No additional notice of the duty to register shall be required of any official charged with a duty of enforcing the laws of this Commonwealth.
(b) No person shall be required to register under this subsection for a juvenile adjudication if such an adjudication in this Commonwealth would not create a duty to register. This paragraph shall be retroactive.
(7) (a) Except as provided in paragraph (b) of this subsection, if a person is required to register under federal law or the laws of another state or territory, or if the person has been convicted

of an offense under the laws of another state or territory that would require registration if committed in this Commonwealth, that person upon changing residence from the other state or territory of the United States to the Commonwealth or upon entering the Commonwealth for employment, to carry on a vocation, or as a student shall comply with the registration requirement of this section, including the requirements of subsection (4) of this section, and shall register within five (5) working days with the appropriate local probation and parole office in the county of residence, employment, vocation, or schooling. A person required to register under federal law or the laws of another state or territory shall be presumed to know of the duty to register in the Commonwealth. As used in this subsection, "employment" or "carry on a vocation" includes employment that is full-time or part-time for a period exceeding fourteen (14) days or for an aggregate period of time exceeding thirty (30) days during any calendar year, whether financially compensated, volunteered, or for the purpose of government or educational benefit. As used in this subsection, "student" means a person who is enrolled on a full-time or part-time basis, in any public or private educational institution, including any secondary school, trade or professional institution, or institution of higher education.

(b) No person shall be required to register under this subsection for a juvenile adjudication if such an adjudication in this Commonwealth would not create a duty to register. This paragraph shall be retroactive.

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(9) For purposes of KRS 17.500 to 17.580 and 17.991, a post office box number shall not be considered an address.

(10) (a) If a registrant does not have an established and fixed residence of regular return, he or she shall report in person no less than every thirty (30) days to the local probation and parole office in the county in which he or she is present and register the approximate area where he or she can be located.

(b) If the registrant changes his or her location to a new county, the person shall notify his or her current local probation and parole office of the new location on or before the date of the change of location.

(c) The registrant shall also report in person to the appropriate local probation and parole office in the county of his or her new location no later than five (5) working days after the date of the change of location.

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(12) Any person required to register under this section who knowingly violates any of the provisions of this section or prior law is guilty of a Class D felony for the first offense and a Class C felony for each subsequent offense.

(13) Any person required to register under this section or prior law who knowingly provides false, misleading, or incomplete information is guilty of a Class D felony for the first offense and a Class C felony for each subsequent offense.

(14)(a) The cabinet shall verify the addresses, names, motor vehicle operator's license numbers, and government-issued identification card numbers of individuals required to register under this section. Verification shall occur at least once every ninety (90) days for a person required to register under KRS 17.520(2), at least once every calendar year for a person required to register under KRS 17.520(3), and at least once every thirty (30) days for a person who does not have an established and fixed residence of regular return;

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KRS 17.544 Restrictions on use of social media platform by registrants -- Retroactivity -- Penalty

(1) As used in this section, "social media platform":

(a) Means a website or application that is open to the public, allows a user to create an account, and enables users to do all of the following:

1. Interact socially with other users within the confines of the website or application;

2. Construct a public or semipublic profile for the purpose of signing into and using the website or application;
3. Populate a list of other users with whom an individual shares or has the ability to share a social connection within the website or application; and
4. Create or post content viewable by others, including on message boards, chat rooms, video channels, direct or private messages, or chats, or on a landing page or main feed that presents the user with content generated by other users; and

(b) Does not include:
1. A broadband internet access service as defined by the Federal Communications Commission;
2. An electronic mail service;
3. A search engine service;
4. A cloud storage or cloud computing service;
5. An online service, application, or website in which interaction between users is limited to reviewing products offered for sale by electronic commerce or commenting on reviews posted by other users; or
6. An online service, application, or website:
a. That consists primarily of information or content that is not user-generated but is preselected by the provider; and
b. For which any chat, comments, or interactive functionality is incidental to, directly related to, or dependent upon the provision of the content described by subdivision a. of this subparagraph.

(2) A registrant who has committed a criminal offense against a victim who is a minor shall not create or have control of an account on a social media platform unless the account displays his or her full legal name.
(3) This section shall apply retroactively.
(4) Any person who violates subsection (2) of this section shall be guilty of a Class A misdemeanor for the first offense, and a Class D felony for a second or subsequent offense.

KRS 17.545 Registrant prohibited from residing near school or day care facility – Penalties – Exception

(1) No registrant, as defined in KRS 17.500, shall reside within one thousand (1,000) feet of a high school, middle school, elementary school, preschool, publicly owned or leased playground, or licensed day care facility. The measurement shall be taken in a straight line from the nearest property line of the school to the nearest property line of the registrant's place of residence.
(2) (a) No registrant, as defined in KRS 17.500, nor any person residing outside of Kentucky who would be required to register under KRS 17.510 if the person resided in Kentucky, shall be on, loiter within one thousand (1,000) feet of, or work in or operate any mobile business within one thousand (1,000) feet or the clearly defined grounds of a high school, middle school, elementary school, preschool, publicly owned or leased playground, licensed day care facility, publicly owned or leased swimming pool, or splash pad as defined in KRS 211.205, except with the advance written permission of the school principal, the school board, the local legislative body with jurisdiction over the publicly owned or leased playground, publicly owned or leased swimming pool, or splash pad, or the day care director that has been given after full disclosure of the person's status as a registrant or sex offender from another state and all registrant information as required in KRS 17.500.

(b) As used in this subsection:
1.“Local legislative body” means the chief governing body of a city, county, urban-county government, consolidated local government, charter county government, or unified local government that has legislative powers;
2. "Loiter" includes remaining in or about the clearly defined grounds of a location described in paragraph (a) of this subsection, while not having any reason or relationship involving custody of or responsibility for a minor or any other specific legitimate reason for being there; and

3. "Mobile business" means any business that operates from a motor vehicle or wheeled cart that can be operated, pushed, or pulled on a sidewalk, street, or highway where food, goods, or services are prepared, processed, or sold or dispensed to the public.

(c) The measurement in paragraph (a) of this subsection shall be taken in a straight line from the nearest property line.

(3) For purposes of this section:
(a) The registrant shall have the duty to ascertain whether any property listed in subsection (1) of this section is within one thousand (1,000) feet of the registrant's residence; and
(b) If a new facility opens, the registrant shall be presumed to know and, within ninety (90) days, shall comply with this section.

(4) (a) Except as provided in paragraph (b) of this subsection, no registrant who is eighteen (18) years of age or older and has committed a criminal offense against a victim who is a minor shall have the same residence as a minor.
(b) A registrant who is eighteen (18) years of age or older and has committed a criminal offense against a victim who is a minor may have the same residence as a minor if the registrant is the spouse, parent, grandparent, stepparent, sibling, stepsibling, or court-appointed guardian of the minor, unless the spouse, child, grandchild, sibling, stepsibling, or ward was a victim of the registrant.
(c) This subsection shall not operate retroactively and shall apply only to a registrant that committed a criminal offense against the victim who is a minor after July 14, 2018.

(5) Any person who violates subsection (1) of this section shall be guilty of:
(a) A Class A misdemeanor for a first offense; and
(b) A Class D felony for the second and each subsequent offense.

(6) Any registrant residing within one thousand (1,000) feet of a high school, middle school, elementary school, preschool, publicly owned playground, or licensed day care facility on the effective date of this Act shall move and comply with this section within ninety (90) days of the effective date of this Act, and thereafter, shall be subject to the penalties set forth under subsection (3) of this section.

(7) The prohibition against a registrant:
(a) Residing within one thousand (1,000) feet of a publicly leased playground as outlined in subsection (1) of this section; or
(b) Being on the grounds of a publicly leased playground as outlined in subsection (2) of this section:
Shall not operate retroactively.

(8) The prohibition against a registrant loitering or working in or operating any mobile business within one thousand (1,000) feet of a high school, middle school, elementary school, preschool, publicly owned or leased playground, licensed day care facility, publicly owned or leased swimming pool, or splash pad as defined in KRS 211.205 shall not operate retroactively.

(9) This section shall not apply to a youthful offender probated or paroled during his or her minority or while enrolled in an elementary or secondary education program.

KRS 17.547 Persons immune from suit for good faith conduct under KRS 17.500 to 17.580 and 17.991

The following shall be immune from suit for good faith conduct under KRS 17.500 to 17.580 and 17.991:

(1) Law enforcement agencies including the Justice Cabinet;

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(5) Employees of any of the agencies, entities, and persons identified in subsections (1), (2), (3), and (4) of this section.

KRS 17.549 Making a false statement to a law enforcement officer – Harboring a registrant

(1) A person shall be guilty of making a false statement to a law enforcement official when he or she intentionally misleads any law enforcement official regarding a noncompliant registrant.
(2) A person shall be guilty of harboring when he or she intentionally allows a registrant to reside at his or her residence to avoid registration if the address is not the address the registrant listed as his or her residence address.
(3) For the purposes of this section, law enforcement officials include the Attorney General, elected sheriffs, deputy sheriffs, city police officers, county police officers, state police officers, probation and parole officers, state and federal prosecutors, and investigators employed by any of these officers.
(4) A person who violates this section shall be guilty of a Class A misdemeanor for a first offense and a Class D felony for each subsequent offense.

KRS CHAPTER 202A
HOSPITALIZATION OF THE MENTALLY ILL
(Selected Sections)

KRS 202A.011 Definitions for chapter

As used in this chapter, unless the context otherwise requires:
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(2)"**Cabinet**" means the Kentucky Cabinet for Health and Family Services;
* * * * *
(4)"**Danger**" or "**threat of danger to self, family, or others**" means substantial physical harm or threat of substantial physical harm upon self, family, or others, including actions which deprive self, family, or others of the basic means of survival including provision for reasonable shelter, food, or clothing;
* * * * *
(6) "**Hospital**" means:
i. A state mental hospital or institution or other licensed public or private hospital, institution, health-care facility, or part thereof, approved by the Kentucky Cabinet for Health Services as equipped to provide full-time residential care and treatment for mentally ill or individuals with an intellectual disability;
ii. A hospital, institution, or health-care facility of the government of the United States equipped to provide residential care and treatment for mentally ill or individuals with an intellectual disability;
* * * * *
(8) "**Least restrictive alternative mode of treatment**" means that treatment which will give a mentally ill individual a realistic opportunity to improve the individual's level of functioning, consistent with accepted professional practice in the least confining setting available;
(9) "**Mentally ill person**" means a person with substantially impaired capacity to use self-control, judgment, or discretion in the conduct of the person's affairs and social relations, associated with maladaptive behavior or recognized emotional symptoms where impaired capacity, maladaptive behavior, or emotional symptoms can be related to physiological, psychological, or social factors;
* * * * *
(12)"**Psychiatric facility**" means a crisis stabilization unit or any facility licensed by the cabinet and which provides inpatient, outpatient, psychosocial rehabilitation, emergency, and consultation and education services for the diagnosis and treatment of persons who have a mental illness;
(13)"**Qualified mental health professional**" means:
(a) A physician licensed under the laws of Kentucky to practice medicine or osteopathy, or a medical officer of the government of the United States while engaged in the performance of official duties;

(b) A psychiatrist licensed under the laws of Kentucky to practice medicine or osteopathy, or a medical officer of the government of the United States while engaged in the practice of official duties, who is certified or eligible to apply for certification by the American Board of Psychiatry and Neurology, Inc.;
(c) A psychologist licensed at the doctoral level or a psychologist or psychological associate certified at the master's level under the provisions of KRS Chapter 319 who has been designated by the Kentucky Board of Examiners of Psychology as competent to make examinations under this chapter;
(d) A licensed registered nurse with a master's degree in psychiatric nursing from an accredited institution and two (2) years of clinical experience with mentally ill persons, or a licensed registered nurse, with a bachelor's degree in nursing from an accredited institution, who is certified as a psychiatric and mental health nurse by the American Nurses Association and who has three (3) years of inpatient or outpatient clinical experience in psychiatric nursing and is currently employed by a hospital or forensic psychiatric facility licensed by the Commonwealth or a psychiatric unit of a general hospital or a private agency or company engaged in the provision of mental health services or a regional community mental health and mental retardation program; or
(e) A licensed clinical social worker licensed under the provisions of KRS 335.100, or a certified social worker licensed under the provisions of KRS 335.080 with three (3) years of inpatient or outpatient clinical experience in psychiatric social work and currently employed by a hospital or forensic psychiatric facility licensed by the Commonwealth or a psychiatric unit of a general hospital or a private agency or company engaged in the provision of mental health services or a regional community mental health and mental retardation program;

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KRS 202A.021 Hospitalization of minors – Admission or discharge of voluntary patients – Transport of voluntary patients to receiving hospital or psychiatric facility

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(2) An authorized staff physician of a hospital may admit for observation, diagnosis, care and treatment any person who is mentally ill or who has symptoms of mental illness and who applies voluntarily therefor.
(3) An authorized staff physician of a hospital shall discharge any voluntary patient who has recovered or whose hospitalization the staff physician determines to be no longer necessary or advisable.
(4) A voluntary patient shall be released upon the patient's written request unless further detained under the applicable provisions of this chapter, including subsection (5) of this section.

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KRS 202A.026 Criteria for involuntary hospitalization

No person shall be involuntarily hospitalized unless such person is a mentally ill person:
(1) Who presents a danger or threat of danger to self, family or others as a result of the mental illness;
(2) Who can reasonably benefit from treatment; and
(3) For whom hospitalization is the least restrictive alternative mode of treatment presently available.

KRS 202A.028 Hospitalization by court order – Transportation – Release

(1) Following an examination by a qualified mental health professional and a certification by that professional that the person meets the criteria for involuntary hospitalization, a judge may order the person hospitalized for a period not to exceed seventy-two (72) hours, excluding weekends and holidays. For the purposes of this section, the qualified mental health professional shall be:

(a) A staff member of a regional community program for mental health or individuals with an intellectual disability;
(b) An individual qualified and licensed to perform the examination through the use of telehealth services; or
(c) The psychiatrist ordered, subject to the court's discretion, to perform the required examination.

(2) Any person who has been admitted to a hospital under subsection (1) of this section shall be released from the hospital within seventy-two (72) hours, excluding weekends and holidays, unless further held under the applicable provisions of this chapter.

(3) Any person admitted to a hospital under subsection (1) of this section or transferred to a hospital while ordered hospitalized under subsection (1) of this section shall be transported from the person's home county by the sheriff of that county or other peace officer as ordered by the court. The sheriff or other peace officer may, upon agreement of a person authorized by the peace officer, authorize the cabinet, a private agency on contract with the cabinet, or an ambulance service designated by the cabinet to transport the person to the hospital. The transportation costs of the sheriff, other peace officer, ambulance service, or other private agency on contract with the cabinet shall be paid by the cabinet in accordance with an administrative regulation promulgated by the cabinet, pursuant to KRS Chapter 13A.

(4) Any person released from the hospital under subsection (2) of this section shall be transported to the person's county of discharge by a sheriff or other peace officer, by an ambulance service designated by the cabinet, or by other appropriate means of transportation which is consistent with the treatment plan of that person. The transportation cost of transporting the patient to the patient's county of discharge when performed by a peace officer, ambulance service, or other private agency on contract with the cabinet shall be paid by the cabinet in accordance with an administrative regulation issued by the cabinet pursuant to KRS Chapter 13A.

(5) No person who has been held under subsection (1) of this section shall be held in jail pending evaluation and transportation to the hospital.

KRS 202A.031 Seventy-two-hour emergency admission

(1) An authorized staff physician may order the admission of any person who is present at, or is presented at, a hospital. For the purposes of this subsection only, a hospital may include any acute care hospital that is licensed by the Commonwealth. Within twenty-four (24) hours (excluding weekends and holidays) of the admission under this section, the authorized staff physician ordering the admission of the individual shall certify in the record of the individual that in his opinion the individual should be involuntarily hospitalized.

(2) Any individual who has been admitted to a hospital under subsection (1) of this section shall be released from the hospital within seventy-two (72) hours (excluding weekends and holidays) unless further detained under the applicable provisions of this chapter.

KRS 202A.041 Warrantless arrest and subsequent proceedings

(1) Any peace officer who has reasonable grounds to believe that an individual is mentally ill and presents a danger or threat of danger to self, family, or others if not restrained may take the individual into custody and transport the individual without unnecessary delay to a hospital or psychiatric facility designated by the cabinet for the purpose of an evaluation to be conducted by a qualified mental health professional. Upon transport of the person to the hospital or psychiatric facility, the peace officer shall provide written documentation which describes the behavior of the person which caused the peace officer to take the person into custody. If, after evaluation, the qualified mental health professional finds that the person does not meet the criteria for involuntary hospitalization, the person shall be released immediately and transported back to the person's home county by an appropriate means of transportation as provided in KRS 202A.101. If, after evaluation, the qualified mental health professional finds that the person meets the criteria for involuntary hospitalization, appropriate proceedings under this chapter shall be initiated. The person may be held pending certification by a

qualified mental health professional and implementation of procedures as provided in KRS 202A.028, 202A.031, or 202A.051 for a period not to exceed eighteen (18) hours.

(2) If, after the evaluation, the qualified mental health professional finds that the person does not meet the criteria for involuntary hospitalization and the peace officer has probable cause to believe that the person has committed a criminal offense, the peace officer may swear out a warrant and take the arrested person without unnecessary delay before a judge.

KRS 202A.185 Peace officer authorized to arrest and return patient to hospital

If a patient undergoing involuntary treatment on an inpatient basis is absent from the hospital without, or in excess of authorization from the hospital staff, the person in charge or that person's designee may contact the appropriate sheriff or other peace officers who shall take the patient into custody and return the patient to the hospital.

KRS 202A.241 Use of least restrictive level of restraint – Guidelines for restrained person's need for privacy and ability to use telephone

All individuals transporting or holding persons under KRS Chapter 202A, 202B, or 645, shall use the least restrictive level of restraint consistent with the person's needs. The Cabinet for Health Services shall promulgate administrative regulations subject to the provisions of KRS Chapter 13A which shall include guidelines addressing the person's need for privacy, particularly when being restrained, and the person's ability to communicate by phone at the earliest opportunity available.

KRS 202A.251 Prohibition against detention in jail without criminal charges pending - Criminal charges not to be placed to avoid transportation

No person held under the provisions of this chapter shall be detained in jail unless criminal charges are also pending. No peace officer or any other person shall place criminal charges against a person who is mentally ill and in need of hospitalization pursuant to this chapter solely or primarily for the purpose of avoiding transporting the person to a hospital or psychiatric facility.

KRS 202A.400 Duty of mental health professional to warn intended victim of patient's threat of violence

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(2) The duty to warn of or to take reasonable precautions to provide protection from violent behavior arises only under the limited circumstances specified in subsection (1) of this section. The duty to warn a clearly or reasonably identifiable victim shall be discharged by the mental health professional if reasonable efforts are made to communicate the threat to the victim, and to notify the police department closest to the patient's and the victim's residence of the threat of violence. When the patient has communicated to the mental health professional an actual threat of some specific violent act and no particular victim is identifiable, the duty to warn has been discharged if reasonable efforts are made to communicate the threat to law enforcement authorities. The duty to take reasonable precaution to provide protection from violent behavior shall be satisfied if reasonable efforts are made to seek civil commitment of the patient under this chapter.

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KRS 202A.410 Duty of administrator to warn law enforcement agency, prosecutor, and Department of Corrections upon discharge, transfer, or escape of involuntarily committed patient charged or convicted of violent crime – Immunity for acting in good faith – Notification of victim – Administrative regulations

(1) When a patient who has been involuntarily committed to a psychiatric facility or forensic psychiatric facility and who has been charged with or convicted of a violent crime as defined in KRS 439.3401 is discharged or transferred from the facility, the administrator shall notify

the law enforcement agency in the county to which the person is to be released, the prosecutor in the county where the violent crime was committed, and the Department of Corrections.

(2) If a patient who has been involuntarily committed to a psychiatric facility or forensic psychiatric facility and who has been charged with or convicted of a violent crime as defined in KRS 439.3401 escapes from the facility, the administrator shall notify the law enforcement agency in the county in which the facility is located, the prosecutor in the county where the violent crime was committed, and the Department of Corrections.

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(4) The Department of Corrections shall notify, or contract with a private entity to notify, victims of crime, judges, and witnesses involved in the hearing that resulted in the involuntary commitment who have made a notification request of the discharge or escape of a patient from a psychiatric facility or forensic psychiatric facility.

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KRS 202A.991 Penalties

(1) Any person who willfully causes or conspires with or assists another in causing:
   (a) The unwarranted hospitalization of any individual under the provisions of this chapter; or
   (b) The denial of any individual of any of the rights accorded to him under the provisions of this chapter;

   shall be guilty of a Class A misdemeanor.
(2) Any person who violates the confidentiality of any mental health record under the provisions of this chapter shall be guilty of a Class B misdemeanor.

KRS CHAPTER 209
PROTECTION OF ADULTS
(Selected sections)

KRS 209.020 Definitions for chapter

As used in this chapter, unless the context otherwise requires:
(1) "**Secretary**" means the secretary of the Cabinet for Families and Children;
(2) "**Cabinet**" means the Cabinet for Families and Children;
(3) "**Department**" means the Department for Community Based Services of the Cabinet for Families and Children;
(4) "**Adult**" means:
   (a) A person eighteen (18) years of age or older, who because of mental or physical dysfunctioning, is unable to manage his own resources or carry out the activity of daily living or protect himself from neglect, or a hazardous or abusive situation without assistance from others, and who may be in need of protective services; or
   (b) A person without regard to age who is the victim of abuse and neglect inflicted by a spouse;
(5) "**Protective services**" means agency services undertaken with or on behalf of an adult in need of protective services who is being abused, neglected, or exploited. These services may include, but are not limited to conducting investigations of complaints of possible abuse, neglect, or exploitation to ascertain whether or not the situation and condition of the adult in need of protective services warrants further action; social services aimed at preventing and remedying abuse, neglect, and exploitation; and services directed toward seeking legal determination of whether or not the adult in need of protective services has been abused, neglected, or exploited and to ensure that he obtains suitable care in or out of his home;
(6) "**Caretaker**" means an individual or institution who has the responsibility for the care of the adult as a result of family relationship, or who has assumed the responsibility for the care of the adult person voluntarily, or by contract, or agreement;
(7) "**Abuse**" means the infliction of physical pain, mental injury, or injury of an adult;
(8) "**Exploitation**" means the improper use of an adult or an adult's resources by a caretaker or other person for the profit or advantage of the caretaker or other person;

(9) "**Investigation**" shall include, but is not limited to, a personal interview with the individual reported to be abused, neglected, or exploited. When abuse, or neglect is allegedly the cause of death, a coroner's or doctor's report shall be examined as part of the investigation;
(10)"**Emergency**" means that an adult is living in conditions which present a substantial risk of death or immediate and serious physical harm to himself or others;
(11)"**Emergency protective services**" are protective services furnished an adult in an emergency;
(12)"**Protective placement**" means the transfer of an adult from his present living arrangement to another;
(13)"**Court**" means the Circuit Court or the District Court if no judge of that Circuit Court is present in the county;
(14)"**Access to records**" means that any representative of the Cabinet for Families and Children actively involved in the conduct of an abuse, neglect, or exploitation investigation under this chapter shall be allowed access to the medical, mental, health, and financial records of the adult that are in the possession of any individual, hospital, firm, corporation or other facility, if necessary to complete the investigation mandated in this chapter; and
(15)"**Neglect**" means a situation in which an adult is unable to perform or obtain for himself the services which are necessary to maintain his health or welfare, or the deprivation of services by a caretaker which are necessary to maintain the health and welfare of an adult, or a situation in which a person deprives his spouse of reasonable services to maintain health and welfare.

KRS 209.030 Administrative regulations – Reports of adult abuse, neglect, or exploitation – Cabinet actions – Status and disposition

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(2) Any person, including, but not limited to, physician, law enforcement officer, nurse, social worker, cabinet personnel, coroner, medical examiner, alternate care facility employee, or caretaker, having reasonable cause to suspect that an adult has suffered abuse, neglect, or exploitation, shall report or cause reports to be made in accordance with the provisions of this chapter. Death of the adult does not relieve one of the responsibility for reporting the circumstances surrounding the death.
(3) An oral or written report shall be made immediately to the cabinet upon knowledge of the occurrence of suspected abuse, neglect, or exploitation of an adult.
(4) Any person making such a report shall provide the following information, if known:
    (a) The name and address of the adult, or of any other person responsible for his care;
    (b) The age of the adult;
    (c) The nature and extent of the abuse, neglect, or exploitation, including any evidence of previous abuse, neglect, or exploitation;
    (d) The identity of the perpetrator, if known;
    (e) The identity of the complainant, if possible; and
    (f) Any other information that the person believes might be helpful in establishing the cause of abuse, neglect, or exploitation.

* * * * *

KRS 209.990 Penalties

(1) Anyone knowingly or wantonly violating the provisions of KRS 209.030(2) shall be guilty of a Class B misdemeanor as designated in KRS 532.090. Each violation shall constitute a separate offense.
(2) Any person who knowingly abuses or neglects an adult is guilty of a Class C felony.
(3) Any person who wantonly abuses or neglects an adult is guilty of a Class D felony.
(4) Any person who recklessly abuses or neglects an adult is guilty of a Class A misdemeanor.
(5) Any person who knowingly exploits an adult, resulting in a total loss to the adult of more than three hundred dollars ($300) in financial or other resources, or both, is guilty of a Class C felony.

(6) Any person who wantonly or recklessly exploits an adult, resulting in a total loss to the adult of more than three hundred dollars ($300) in financial or other resources, or both, is guilty of a Class D felony.
(7) Any person who knowingly, wantonly, or recklessly exploits an adult, resulting in a total loss to the adult of three hundred dollars ($300) or less in financial or other resources, or both, is guilty of a Class A misdemeanor.
(8) If a defendant is sentenced under subsection (5), (6), or (7) of this section and fails to return the victim's property as defined in KRS 218A.405 within thirty (30) days of an order by the sentencing court to do so, or is thirty (30) days or more delinquent in a court ordered payment schedule, then the defendant shall be civilly liable to the victim of the offense or the victim's estate for treble damages, plus reasonable attorney's fees and court costs. Any interested person or entity, as defined in KRS 387.510, shall have standing to bring a civil action on the victim's behalf to enforce this section. The sentencing judge shall inform the defendant of the provisions of this subsection at sentencing.

KRS Chapter 403
DISSOLUTION OF MARRIAGE; CHILD CUSTODY
(Selected Sections)

DOMESTIC VIOLENCE AND ABUSE

KRS 403.715 Interpretation of KRS 403.715 to 403.785 by court

KRS 403.715 to 403.785 shall be interpreted to:
(1) Allow victims to obtain effective, short-term protection against further wrongful conduct in order that their lives may be as secure and as uninterrupted as possible;
(2) Expand the ability of law enforcement officers to effectively respond to further wrongful conduct so as to prevent future incidents and to provide assistance to the victims;
(3) Provide peace officers with the authority to immediately apprehend and charge for violation of an order of protection any person whom the officer has probable cause to believe has violated an order of protection and to provide courts with the authority to conduct contempt of court proceedings for these violations;
(4) Provide for the collection of data concerning incidents of domestic violence and abuse in order to develop a comprehensive analysis of the numbers and causes of such incidents; and
(5) Supplement and not repeal or supplant any duties, responsibilities, services, or penalties under KRS Chapters 209, 209A, and 620.

KRS 403.720 Definitions for KRS 403.715 to 403.785

As used in KRS 403.715 to 403.785:
(1) **"Domestic animal"** means a dog, cat, or other animal that is domesticated and kept as a household pet, but does not include animals normally raised for agricultural or commercial purposes;
(2) "**Domestic violence and abuse**" means
  (a) Physical injury, serious physical injury, stalking, sexual assault, strangulation, assault, or the infliction of fear of imminent physical injury, serious physical injury, sexual assault, strangulation, or assault between family members or members of an unmarried couple; or
  (b) Any conduct prohibited by KRS 525.125, 525.130, 525.135, or 525.137, or the infliction of fear of such imminent conduct, taken against a domestic animal when used as a method of coercion, control, punishment, intimidation, or revenge directed against a family member or member of an unmarried couple who has a close bond of affection to the domestic animal;
(3) "**Family member**" means a spouse, including a former spouse, a grandparent, a grandchild, a parent, an adult sibling, a child, a stepchild, or any other person living in the same household as a child if the child is the alleged victim;

EDITOR'S NOTE: In Obergefell v. Hodges, handed down in 2015, the Supreme Court of the United States held that same sex couples had a right to marry.

Presumably, the definition of family member will now also apply to current and former spouses of same sex marriages.

(4) **"Foreign protective order"** means any judgment, decree, or order of protection which is entitled to full faith and credit pursuant to 18 U.S.C. sec. 2265 that was issued on the basis of domestic violence and abuse;

(5) **"Global positioning monitoring system"** means a system that electronically determines a person's location through a device worn by the person which does not invade his or her bodily integrity and which transmits the person's latitude and longitude data to a monitoring entity;

(6) "**Member of an unmarried couple**" means each member of an unmarried couple which allegedly has a child in common, any children of that couple, or a member of an unmarried couple who are living together or have formerly lived together.

EDITOR'S NOTE: In Ireland v. Davis, 957 S.W.2d 310 (Ky App 1997), the Kentucky Court of Appeals ruled that "KRS 403.715 - .785 affords protection to same-sex couples just as they do to the others enumerated therein." The court also stated that "'couples' . . . refers to two people engaged in an intimate relationship and would not include roommates." Although this latter statement is "mere dicta", the court thus gave indication as to how it might rule in a case involving roommates not in an intimate (i.e., sexual) relationship. The court would probably rule the same way in a case involving KRS 431.005.

(7) **"Order of protection"** means an emergency protective order or a domestic violence order and includes a foreign protective order;

(8) **"Sexual Assault"** refers to conduct prohibited as any degree of rape, sodomy, or sexual abuse under KRS Chapter 510 or incest under KRS 530.020, or a criminal attempt, conspiracy, facilitation, or solicitation to commit rape, sodomy, sexual abuse, or incest:

(9) **"Strangulation"** refers to conduct prohibited by KRS 508.170 and 508.175, or a criminal attempt, conspiracy, facilitation, or solicitation to commit the crime of strangulation; and

(10) **"Substantial violation"** means criminal conduct which involves actual or threatened harm to the person, family, or property, including a domestic animal, of an individual protected by an order of protection.

KRS 403.725 Petition for order of protection -- Venue -- Verified contents -- Concurrent jurisdiction -- Protocols for access and supplemental jurisdiction -- Referral

(1) A petition for an order of protection may be filed by:
  (a) A victim of domestic violence and abuse; or
  (b) An adult on behalf of a victim who is a minor otherwise qualifying for relief under this subsection.

(2) The petition may be filed in the victim's county of residence or a county where the victim has fled to escape domestic violence and abuse.

(3) The petition shall be verified and contain:
  (a) The name, age, address, occupation, residence, and school or postsecondary institution of the petitioner;
  (b) The name, age, address, occupation, residence, and school or postsecondary institution of the person or persons who have engaged in the alleged act or acts complained of in the petition;
  (c) The facts and circumstances which constitute the basis for the petition;
  (d) The date and place of the marriage of the parties, if applicable; and
  (e) The names, ages, and addresses of the petitioner's minor children, if applicable.

(4) The petition shall be filed on forms prescribed by the Administrative Office of the Courts and provided to the person seeking relief by the circuit clerk or by another individual authorized by the court to provide and verify petitions in emergency situations, such as law enforcement officers and Commonwealth's or county attorneys.

(5) All petitions requested, completed, and signed by persons seeking protection under this chapter shall be accepted and filed with the court.

(6) (a) Jurisdiction over petitions filed under this chapter shall be concurrent between the District Court and Circuit Court and a petition may be filed by a petitioner in either court, except that a petition shall be filed in a family court if one has been established in the county where the petition is filed.

(b) The Court of Justice shall provide a protocol for twenty-four (24) hour access to orders of protection in each county with any protocol, whether statewide or local, being subject to Supreme Court review and approval of the initial protocol and any subsequent amendments. This protocol may allow for petitions to be filed in or transferred to a court other than those specified in paragraph (a) of this subsection.

(c) The Court of Justice may authorize by rule that petitions in a specific county be filed in accordance with a supplemental jurisdictional protocol adopted for that county. This protocol may provide for petitions to be filed in or transferred to a court other than those specified in paragraph (a) of this subsection.

(7) Any judge to whom a petition is referred under subsection (6) of this section shall have full authority to review and hear a petition and subsequently grant and enforce an order of protection.

(8) If the judge of a court in which there is a pending request for modification or enforcement of an existing order of protection is unavailable or unable to act within a reasonable time, the proceedings may be conducted by any judge of the county in accordance with court rules.

KRS 403.730 Immediate review of petition -- Summons to evidentiary hearing -- Ex parte emergency protective order

(1) (a) The court shall review a petition for an order of protection immediately upon its filing. If the review indicates that domestic violence and abuse exists, the court shall summons the parties to an evidentiary hearing not more than fourteen (14) days in the future. If the review indicates that such a basis does not exist, the court may consider an amended petition or dismiss the petition without prejudice.

(b) Service of the summons and hearing order under this subsection shall be made upon the adverse party personally and may be made in the manner and by the persons authorized to serve subpoenas under Rule 45.03 of the Rules of Civil Procedure. A summons may be reissued if service has not been made on the adverse party by the fixed court date and time.

(2) (a) If the review under this section also indicates the presence of an immediate and present danger of domestic violence and abuse, the court shall, upon the filing of the petition, issue ex parte an emergency protective order that:

1. Authorizes relief appropriate to the situation utilizing the alternatives set out in KRS 403.740, other than awarding temporary support or counseling;
2. Sets forth which communications, if any, as requested by the petitioner, are authorized and which communications are unauthorized;
3. Allows either party to retrieve his or her personal belongings from the parties' shared residence and directs law enforcement to assist, if requested;
4. Expires upon the conclusion of the evidentiary hearing required by this section unless extended or withdrawn by subsequent order of the court; and
5. Does not order or refer the parties to mediation unless requested by the petitioner, and the court finds that:
   a. The petitioner's request is voluntary and not the result of coercion; and
   b. Mediation is a realistic and viable alternative to or adjunct to the issuance of an order sought by the petitioner.

   Nothing in this paragraph shall be interpreted to place any restriction or restraint on the petitioner.

(b) If an order is not issued under this subsection, the court shall note on the petition, for the record, any action taken or denied and the reason for it.

KRS 403.735 Hearing on petition for order of protection -- Criteria to assess appropriate relief and sanctions -- Continuance of hearing and emergency protective order

(1) Prior to or at a hearing on a petition for an order of protection:

(a) The court may obtain the respondent's Kentucky criminal and protective order history and utilize that information to assess what relief and which sanctions may protect against danger to the petitioner or other person for whom protection is being sought, with the information so obtained being provided to the parties in accordance with the Kentucky Rules of Civil Procedure; and

(b) If the petitioner or respondent is a minor, the court shall inquire whether the parties attend school in the same school system to assist the court in imposing conditions in the order that have the least disruption in the administration of education to the parties while providing appropriate protection to the petitioner.

(2) (a) If the adverse party is not present at the hearing ordered pursuant to KRS 403.730 and has not been served, a previously issued emergency protective order shall remain in place, and the court shall direct the issuance of a new summons for a hearing set not more than fourteen (14) days in the future. If service has not been made on the adverse party before that hearing or a subsequent hearing, the emergency protective order shall remain in place, and the court shall continue the hearing and issue a new summons with a new date and time for the hearing to occur, which shall be within fourteen (14) days of the originally scheduled date for the continued hearing. The court shall repeat the process of continuing the hearing and reissuing a new summons until the adverse party is served in advance of the scheduled hearing. If service has not been made on the respondent at least seventy-two (72) hours prior to the scheduled hearing, the court may continue the hearing no more than fourteen (14) days in the future. In issuing the summons, the court shall simultaneously transmit a copy of the summons or notice of its issuance and provisions to the petitioner. Upon the request of the petitioner, the court may excuse the petitioner from future court appearances until the respondent has been served.

(b) The provisions of this section permitting the continuance of an emergency protective order shall be limited to six (6) months from the issuance of the emergency protective order. If the respondent has not been served within that period, the order shall be rescinded without prejudice. Prior to the expiration of the emergency protective order, the court shall provide notice to the petitioner stating that, if the petitioner does not file a new petition, the order shall be rescinded without prejudice.

KRS 403.740 Domestic violence order -- Restrictions -- Temporary child support -- Expiration and reissuance.

(1) Following a hearing ordered under KRS 403.730, if a court finds by a preponderance of the evidence that domestic violence and abuse has occurred and may again occur, the court may issue a domestic violence order:

(a) Restraining the adverse party from:

1. Committing further acts of domestic violence and abuse;
2. Any unauthorized contact or communication with the petitioner or other person specified by the court;
3. Approaching the petitioner or other person specified by the court within a distance specified in the order, not to exceed five hundred (500) feet;
4. Going to or within a specified distance of a specifically described residence, school, or place of employment or area where such a place is located; and
5. Disposing of or damaging any of the property of the parties;

(b) Authorizing, at the request of the petitioner:

1. Limited contact or communication between the parties that the court finds necessary; or
2. The parties to remain in a common area, which may necessitate them being closer than five hundred (500) feet under limited circumstances with specific parameters set forth by the court.

Nothing in this paragraph shall be interpreted to place any restriction or restraint on the petitioner;

(c) Directing or prohibiting any other actions that the court believes will be of assistance in eliminating future acts of domestic violence and abuse, except that the court shall not order the petitioner to take any affirmative action;

(d) Directing that either or both of the parties receive counseling services available in the community in domestic violence and abuse cases; and

(e) Additionally, if applicable:

1. Directing the adverse party to vacate a residence shared by the parties to the action;
2. Utilizing the criteria set forth in KRS 403.270, 403.320, and 403.822, grant temporary custody;
3. Utilizing the criteria set forth in KRS 403.211, 403.212, and 403.213, award temporary child support; and
4. Awarding possession of any shared domestic animal to the petitioner.

(2) In imposing a location restriction described in subsection (1)(a)4. of this section, the court shall:

(a) Afford the petitioner and respondent, if present, an opportunity to testify on the issue of the locations and areas from which the respondent should or should not be excluded;

(b) Only impose a location restriction where there is a specific, demonstrable danger to the petitioner or other person protected by the order;

(c) Specifically describe in the order the locations or areas prohibited to the respondent; and

(d) Consider structuring a restriction so as to allow the respondent transit through an area if the respondent does not interrupt his or her travel to harass, harm, or attempt to harass or harm the petitioner.

(3) When temporary child support is granted under this section, the court shall enter an order detailing how the child support is to be paid and collected. Child support ordered under this section may be enforced utilizing the same procedures as any other child support order.

(4) A domestic violence order shall be effective for a period of time fixed by the court, not to exceed three (3) years, and may be reissued upon expiration for subsequent periods of up to three (3) years each. The fact that an order has not been violated since its issuance may be considered by a court in hearing a request for a reissuance of the order.

KRS 403.745 Duration of emergency protective order and domestic violence order -- Prohibited costs and conditions -- Mutual orders of protection -- Amendment -- Expungement.

(1) An emergency protective order and a domestic violence order shall become effective and binding on the respondent when the respondent is given notice of the existence and terms of the order by a peace officer or the court or upon personal service of the order, whichever is earlier. A peace officer or court giving notice of an unserved order shall make all reasonable efforts to arrange for the order's personal service upon the respondent. Once effective, a peace officer or the court may enforce the order's terms and act immediately upon their violation.

(2) Costs, fees, or bond shall not be assessed against or required of a petitioner for any filing, hearing, service, or order authorized by or required to implement KRS 403.715 to 403.785.

(3) A court shall not require mediation, conciliation, or counseling prior to or as a condition of issuing an order of protection.

(4) Mutual orders of protection may be issued only if:

(a) Separate petitions have been filed by both parties; and

(b) The orders are written with sufficient specificity to allow any peace officer to identify which party has violated the order.

(5) Upon proper filing of a motion, either party may seek to amend an order of protection.

* * * * *

KRS 403.750 Order of protection for family member or member of unmarried couple upon filing of petition or action under KRS Chapter 403

(1) Any family member or any member of an unmarried couple may file for and receive protection under this chapter from domestic violence and abuse, notwithstanding the existence of or intent to file an action under this chapter by either party.

(2) (a) Any family member or member of an unmarried couple who files a petition for an order of protection based upon domestic violence or abuse shall make known to the court any custody or divorce actions involving both the petitioner and the respondent that are pending in any court.

(b) If the petitioner or respondent to an order of protection initiates an action under this chapter, the party initiating the action shall make known to the court the existence and status of any orders of protection, which shall remain effective and enforceable until superseded by order of the court in which the case is filed.

(3) If a family member or member of an unmarried couple files an action for dissolution of marriage, child custody, or visitation, the court hearing the case shall have jurisdiction to issue an order of protection upon the filing of a verified motion either at the commencement or during the pendency of the action.

KRS 403.7521 Foreign protective orders -- Rebuttable presumption of validity -- Enforcement -- Civil and criminal proceedings mutually exclusive.

(1) All foreign protective orders shall have the rebuttable presumption of validity. The validity of a foreign protective order shall only be determined by a court of competent jurisdiction. Until a foreign protective order is declared to be invalid by a court of competent jurisdiction, it shall be given full faith and credit by all peace officers and courts in the Commonwealth.

(2) All peace officers shall treat a foreign protective order as a legal document valid in Kentucky, and shall make arrests for a violation thereof in the same manner as for a violation of an order of protection issued in Kentucky.

(3) The fact that a foreign protective order has not been entered into the Law Information Network of Kentucky shall not be grounds for a peace officer not to enforce the provisions of the order unless it is readily apparent to the peace officer to whom the order is presented that the order has either expired according to a date shown on the order, or that the order's provisions clearly do not prohibit the conduct being complained of. Officers acting in good faith shall be immune from criminal and civil liability.

(4) If the order has expired or its provisions do not prohibit the conduct being complained of, the officer shall not make an arrest unless the provisions of a Kentucky statute have been violated, in which case the peace officer shall take the action required by Kentucky law.

* * * * * * *

KRS 403.7527 Filing of foreign protective order and affidavit -- Certification by issuing court official -- Entry into Law Information Network of Kentucky

(1) A copy of a foreign protective order may be filed in the office of the clerk of any court of competent jurisdiction of this state. A foreign protective order so filed shall have the same effect and shall be enforced in the same manner as an order of protection issued by a court of this state.

(2) (a) At the time of the filing of the foreign protective order, the person filing the order shall file with the clerk of the court an affidavit on a form prescribed and provided by the Administrative Office of the Courts. The affidavit shall set forth the name, city, county, and state or other jurisdiction of the issuing court. The person shall certify in the affidavit the validity and status of the foreign protective order, and attest to the person's belief that the order has not been amended, rescinded, or superseded by any orders from a court of competent jurisdiction. All foreign protective orders presented with a completed and signed affidavit shall be accepted and filed.

(b)The affidavit signed by the applicant shall have space where the reviewing judge shall place information necessary to allow the order's entry into the Law Information Network of Kentucky in the same manner as a Kentucky order.

(3) (a) If the person seeking to file the order presents a copy of the foreign order which is current by the terms of the order and has been certified by the clerk or other authorized officer of the court which issued it, the circuit clerk shall present it to the District Judge or Circuit Judge, who shall read the order and enter on the affidavit the information necessary to allow the order's entry into the Law Information Network of Kentucky. The order shall not be subject to further verification and shall be accepted as authentic, current, and subject to full faith and credit.

(b) If the order presented is current by the terms of the order but is not certified in the manner specified in paragraph (a) of this subsection, the circuit clerk shall present the order and the affidavit to the District Judge or Circuit Judge, who shall read the order and enter on the affidavit the information necessary to allow the order's entry into the Law Information Network of Kentucky. The order shall be subject to full faith and credit in the same manner as a Kentucky order of protection, but shall be subject to verification by the circuit clerk. The order shall be valid for a period of fourteen (14) days and may be renewed once for a period of fourteen (14) days if the circuit clerk has not received a certified copy of the order from the issuing jurisdiction. The clerk shall treat the foreign protective order in the same manner as an order of protection issued pursuant to KRS 403.740, except that no service on the adverse party shall be required pursuant to 18 U.S.C. sec. 2265.

(c) Upon the filing of an uncertified foreign protective order, the circuit clerk shall, within two (2) business days, contact the issuing court to request a certified copy of the order. If the certified copy of the order is received by the circuit clerk within the initial fourteen (14) day period, the clerk shall cause the information that certification has been received to be entered into the Law Information Network of Kentucky and shall notify the applicant for the order of the fact of its certification. A facsimile copy of a certified foreign protective order shall be grounds for the issuance of an order of protection.

(d) If the clerk has not received a certified copy of the foreign protective order within ten (10) days, the clerk shall notify the court and the applicant that the order has not been received. The notice to the applicant, on a form prepared by the Administrative Office of the Courts, shall state that the foreign protective order will be extended for another fourteen (14) days, but will be dismissed at the expiration of that time. If the clerk informs the judge in writing that the certified foreign protective order has been requested but has not yet been received, the judge shall extend the foreign protective order for a period of fourteen (14) days. If certification of the foreign protective order is not received within twenty-eight (28) days, the foreign protective order shall expire and shall not be reissued. If the applicant meets the qualifications for the issuance of a Kentucky domestic violence order, the court may, upon proper application and showing of evidence, issue a Kentucky order in accordance with this chapter.

(4) The right of a person filing a foreign protective order to bring an action to enforce the order instead of proceeding under this chapter remains unimpaired.

KRS 403.7529 Authentication of foreign protective order

(1) Upon ex parte review of the foreign protective order and the affidavit filed pursuant to KRS 403.7527, and after determining the order is entitled to full faith and credit in this Commonwealth pursuant to 18 U.S.C. sec. 2265, the court shall declare the order to be authenticated and record the finding on the affidavit.

(2) If the court declares the order to be authenticated, the court shall:

(a) Direct the appropriate law enforcement agency to assist the petitioner in having the provisions of the order complied with, if applicable; and

(b) Order its enforcement in any county of the Commonwealth in the same manner as an domestic violence order of this state issued pursuant to KRS 403.740.

(3) The clerk shall notify the person who filed the foreign protective order of the decision of the court and provide the person a certified copy of the affidavit declaring the authentication of the order.

KRS 403.7535 Duty to notify court of change in foreign protective order

(1) A person who has filed a foreign protective order in a court in Kentucky is under a continuing obligation to inform the court of any expiration, vacation, modification, or other change in the order which the person filing the order has received from the issuing foreign court.

* * * * * * *

(3) No court in Kentucky and no peace officer in Kentucky shall be expected to enforce a provision of a foreign protective order which has been the subject of any action specified in subsection (1) of this section unless proper notice has been given in accordance with the provisions of this section.

* * * * * * *

KRS 403.754 Petitioner for protective order may apply for temporary permit to carry concealed deadly weapon – Criteria – Denial of application final – Conversion to concealed carry license – Automated listing of temporary permit holders

(1) A petitioner for an order of protection granted under KRS 403.715 to 403.785 may apply for a temporary permit to carry a concealed deadly weapon on or about his or her person into those places and under the same conditions as a person holding a carry concealed deadly weapon license issued under KRS 237.110.

(2) To request a temporary permit authorized by this section, the petitioner shall apply electronically for a license to carry a concealed deadly weapon in the manner set forth in KRS 237.110 and administrative regulation promulgated by the Department of Kentucky State Police, unless the electronic application is unavailable. If the electronic application is unavailable, applications for temporary permits under this section shall not be accepted.

(3) Prior to the issuance of a temporary permit authorized by this section, the Department of Kentucky State Police, upon receipt of a completed application, application fee, and any documentation required by KRS 237.110 or administrative regulation promulgated by the Department of Kentucky State Police, shall conduct the background check as set forth in KRS 237.110.

(4) The Department of Kentucky State Police shall issue a temporary permit authorized by this section if the applicant is not disqualified under the standards set forth in KRS 237.110(4)(a) to (h).

(5) A temporary permit issued under this section shall be valid for forty-five (45) days from the date of issuance and not be subsequently extended or reissued. A temporary permit which has expired shall be void and shall not be valid for any purpose.

* * * * * * *

(7) In order to convert the temporary permit issued under this section into a license to carry a concealed deadly weapon issued under KRS 237.110, the applicant shall meet the firearms safety training requirement under KRS 237.110(4) within the forty-five (45) day period the temporary permit is valid. If firearms safety training is not completed within the forty-five (45) day temporary permit period, a new application for a license to carry a concealed deadly weapon shall be required.

(8) If the Department of Kentucky State Police denies the application for a temporary permit, that decision shall be final but the applicant's application for a license to carry a concealed deadly license shall continue to be processed and either issued or denied in accordance with KRS 237.110.

(9) The holder of a permit issued under this section shall carry the permit at all times the permit holder is carrying a concealed firearm or other deadly weapon and shall display the permit upon request of a law enforcement officer. Violation of the provisions of this subsection shall constitute a noncriminal violation with a penalty of twenty-five dollars ($25), payable to the clerk of the District Court, but no court costs shall be assessed.

* * * * *

(11) Nothing in this section shall authorize the carrying of a concealed deadly weapon by a person prohibited from possessing such a weapon by state or federal law.

KRS 403.761 Amendment of domestic violence order to require participation in global positioning monitoring system -- Cost to be paid by respondent and system operator -- Shortening or vacating of order -- Penalty for violation

* * * * *

(6) A respondent who fails to wear, removes, tampers with, or destroys a global positioning monitoring system device in contravention of an order entered under this section shall be guilty of a Class D felony.

KRS 403.763 Violation of order of protection constitutes contempt of court and criminal offense

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(4) (a) A person is guilty of a violation of an order of protection when he or she intentionally violates the provisions of an order of protection after the person has been served or given notice of the order.

(b) Violation of an order of protection is a Class A misdemeanor, unless the person who stands convicted of a violation under this subsection has been convicted of two (2) or more previous violations of orders of protection under this subsection, subsection (4)(a) of Section 4 of this Act, or KRS 508.155 or 510.037 within the last five (5) years, in which case it is a Class D felony if the third or subsequent violation involves the:

1. Use or attempted use of physical force; or
2. Threat of physical harm.

The protected person in the third or subsequent violation is not required to be the same protected person in the previous violations. The five (5) year period shall be measured from the dates on which the offenses occurred for which the judgments of conviction were entered.

KRS 403.785 Duties of law enforcement agencies

(1) A court issuing an order of protection shall direct the appropriate law enforcement agency to assist the petitioner in having the provisions of the order complied with.

(2) When a law enforcement officer has reason to suspect that a person has been the victim of domestic violence and abuse, the officer shall use all reasonable means to provide assistance to the victim, including but not limited to:

(a) Remaining at the location of the call for assistance so long as the officer reasonably suspects there is danger to the physical safety of individuals there without the presence of a law enforcement officer;

(b) Assisting the victim in obtaining medical treatment, including transporting the victim to the nearest medical facility capable of providing the necessary treatment; and

(c) Advising the victim immediately of the rights available to them, including the provisions of this chapter.

(d) Completing a JC-3 form, or its equivalent replacement, and providing the information to the Criminal Justice Statistical Analysis Center pursuant to KRS 209A.110.

(3) Orders of protection shall be enforced in any county of the Commonwealth.

(4) Officers acting in good faith under this section shall be immune from criminal and civil liability.

KRS Chapter 456
CIVIL ORDERS OF PROTECTION
(Selected Sections)

KRS 456.010 Definitions for chapter

As used in this chapter:

(1) **"Dating relationship"** means a relationship between individuals who have or have had a relationship of a romantic or intimate nature. It does not include a casual acquaintanceship or

ordinary fraternization in a business or social context. The following factors may be considered in addition to any other relevant factors in determining whether the relationship is or was of a romantic or intimate nature:
(a) Declarations of romantic interest;
(b) The relationship was characterized by the expectation of affection;
(c) Attendance at social outings together as a couple;
(d) The frequency and type of interaction between the persons, including whether the persons have been involved together over time and on a continuous basis during the course of the relationship;
(e) The length and recency of the relationship; and
(f) Other indications of a substantial connection that would lead a reasonable person to understand that a dating relationship existed;

(2) **"Dating violence and abuse"** means:
(a) Physical injury, serious physical injury, stalking, sexual assault, strangulation, or the infliction of fear of imminent physical injury, serious physical injury, sexual abuse, strangulation, or assault occurring between persons who are or have been in a dating relationship; or
(b) Any conduct prohibited by KRS 525.125, 525.130, 525.135, or 525.137, or the infliction of fear of such imminent conduct, taken against a domestic animal when used as a method of coercion, control, punishment, intimidation, or revenge directed against a person with whom the perpetrator is or has been in a dating relationship, when that person has a close bond of affection to the domestic animal;

(3) **"Domestic animal"** means a dog, cat, or other animal that is domesticated and kept as a household pet, but does not include animals normally raised for agricultural or commercial purposes;

(4) **"Foreign protective order"** means any judgment, decree, or order of protection which is entitled to full faith and credit pursuant to 18 U.S.C. sec. 2265 which was not issued on the basis of domestic violence and abuse;

(5) **"Global positioning monitoring system"** means a system that electronically determines a person's location through a device worn by the person which does not invade his or her bodily integrity and which transmits the person's latitude and longitude data to a monitoring entity;

(6) **"Order of protection"** means any interpersonal protective order, including those issued on a temporary basis, and includes a foreign protective order;

(7) **"Sexual assault"** refers to conduct prohibited as any degree of rape, sodomy, or sexual abuse under KRS Chapter 510 or a criminal attempt, conspiracy, facilitation, or solicitation to commit any degree of rape, sodomy, or sexual abuse, or incest under KRS 530.020;

(8) **"Stalking"** refers to conduct prohibited as stalking under KRS 508.140 or 508.150, or a criminal attempt, conspiracy, facilitation, or solicitation to commit the crime of stalking; and

(9) **"Strangulation"** refers to conduct prohibited by KRS 508.170 and 508.175, or a criminal attempt, conspiracy, facilitation, or solicitation to commit the crime of strangulation; and

(10) **"Substantial violation"** means criminal conduct which involves actual or threatened harm to the person, family, or property, including a domestic animal of an individual protected by an order of protection.

KRS 456.030 Petition for interpersonal protective order

(1) A petition for an interpersonal protective order may be filed by:
(a) A victim of dating violence and abuse;
(b) A victim of stalking;
(c) A victim of sexual assault; or
(d) An adult on behalf of a victim who is a minor otherwise qualifying for relief under this subsection.

(2) The petition may be filed in the victim's county of residence or a county where the victim has fled to escape dating violence and abuse, stalking, or sexual assault.

(3) The petition shall be verified and contain:

(a) The name, age, address, occupation, residence, and school or postsecondary institution of the petitioner;
(b) The name, age, address, occupation, residence, and school or postsecondary institution of the person or persons who have engaged in the alleged act or acts complained of in the petition;
(c) The facts and circumstances which constitute the basis for the petition; and
(d) The names, ages, and addresses of the petitioner's minor children, if applicable.

(4) The petition shall be filed on forms prescribed by the Administrative Office of the Courts and provided to the person seeking relief by the circuit clerk or by another individual authorized by the court to provide and verify petitions in emergency situations, such as law enforcement officers and Commonwealth's or county attorneys.

(5) All petitions requested, completed, and signed by persons seeking protection under this chapter shall be accepted and filed with the court.

(6) (a) Jurisdiction over petitions filed under this chapter shall be concurrent between the District Court and Circuit Court.

(b) The Court of Justice shall provide a protocol for twenty-four (24) hour access to interpersonal protective orders in each county with any protocol, whether statewide or local, being subject to Supreme Court review and approval of the initial protocol and any subsequent amendments. This protocol may allow for petitions to be filed in or transferred to a court other than those specified in paragraph (a) of this subsection.

(c) The Court of Justice may authorize by rule that petitions in a specific county be filed in accordance with a supplemental jurisdictional protocol adopted for that county. This protocol may provide for petitions to be filed in or transferred to a court other than those specified in paragraph (a) of this subsection.

(7) Any judge to whom a petition is referred under subsection (6) of this section shall have full authority to review and hear a petition and subsequently grant and enforce an interpersonal protective order.

(8) If the judge of a court in which there is a pending request for modification or enforcement of an existing order of protection is unavailable or unable to act within a reasonable time, the proceedings may be conducted by any judge of the county in accordance with court rules.

KRS 456.040 Review of petition for interpersonal protective order – Temporary interpersonal protective order

(1) (a) The court shall review a petition for an interpersonal protective order immediately upon its filing. If the review indicates that dating violence and abuse, stalking, or sexual assault exists, the court shall summons the parties to an evidentiary hearing not more than fourteen (14) days in the future. If the review indicates that such a basis does not exist, the court may consider an amended petition or dismiss the petition without prejudice.

(b) Service of the summons and hearing order under this subsection shall be made upon the adverse party personally and may be made in the manner and by the persons authorized to serve subpoenas under Rule 45.03 of the Rules of Civil Procedure. A summons may be reissued if service has not been made on the adverse party by the fixed court date and time.

(2) (a) If the review under this section also indicates the presence of an immediate and present danger of dating violence and abuse, sexual assault, or stalking, the court shall, upon the filing of the petition, issue ex parte a temporary interpersonal protective order that:

1. Authorizes relief appropriate to the situation utilizing the alternatives set out in KRS 456.060;
2. Sets forth which communications, if any, as requested by the petitioner, are authorized and which communications are unauthorized;
3. Expires upon the conclusion of the evidentiary hearing required by this section unless extended or withdrawn by subsequent order of the court; and
4. Does not order or refer the parties to mediation unless requested by the petitioner, and the court finds that:
   a. The petitioner's request is voluntary and not the result of coercion; and

b. Mediation is a realistic and viable alternative to or adjunct to the issuance of an order sought by the petitioner.

Nothing in this paragraph shall be interpreted to place any restriction or restraint on the petitioner.

(b) If an order is not issued under this subsection, the court shall note on the petition, for the record, any action taken or denied and the reason for it.

KRS 456.050 Hearing on petition for interpersonal protective order

(1) Prior to or at a hearing on a petition for an interpersonal protective order:

(a) The court may obtain the respondent's Kentucky criminal and protective order history and utilize that information to assess what relief and which sanctions may protect against danger to the petitioner or other person for whom protection is being sought, with the information so obtained being provided to the parties in accordance with the Kentucky Rules of Civil Procedure; and

(b) If the petitioner or respondent is a minor, the court shall inquire whether the parties attend school in the same school system to assist the court in imposing conditions in the order that have the least disruption in the administration of education to the parties while providing appropriate protection to the petitioner.

(2) (a) If the adverse party is not present at the hearing ordered pursuant to KRS 456.040 and has not been served, a previously issued temporary interpersonal protective order shall remain in place, and the court shall direct the issuance of a new summons for a hearing set not more than fourteen (14) days in the future. If service has not been made on the adverse party before that hearing or a subsequent hearing, the temporary interpersonal protective order shall remain in place, and the court shall continue the hearing and issue a new summons with a new date and time for the hearing to occur, which shall be within fourteen (14) days of the originally scheduled date for the continued hearing. The court shall repeat the process of continuing the hearing and reissuing a new summons until the adverse party is served in advance of the scheduled hearing. If service has not been made on the respondent at least seventy-two (72) hours prior to the scheduled hearing, the court may continue the hearing no more than fourteen (14) days in the future. In issuing the summons, the court shall simultaneously transmit a copy of the summons or notice of its issuance and provisions to the petitioner. Upon the request of the petitioner, the court may excuse the petitioner from future court appearances until the respondent has been served.

(b)The provisions of this section permitting the continuance of an interpersonal protective order shall be limited to six (6) months from the issuance of the temporary interpersonal protective order. If the respondent has not been served within that period, the order shall be rescinded without prejudice. Prior to the expiration of the temporary interpersonal protective order, the court shall provide notice to the petitioner stating that, if the petitioner does not file a new petition, the order shall be rescinded without prejudice.

KRS 456.060 Ruling on petition for interpersonal protective order – Duration of order

(1) Following a hearing ordered under KRS 456.040, if a court finds by a preponderance of the evidence that dating violence and abuse, sexual assault, or stalking has occurred and may again occur, the court may issue an interpersonal protective order:

(a) Restraining the adverse party from:

1. Committing further acts of dating violence and abuse, stalking, or sexual assault;
2. Any unauthorized contact or communication with the petitioner or other person specified by the court;
3. Approaching the petitioner or other person specified by the court within a distance specified in the order, not to exceed five hundred (500) feet;
4. Going to or within a specified distance of a specifically described residence, school, or place of employment or area where such a place is located; and
5. Disposing of or damaging any of the property of the parties;

(b) Authorizing, at the request of the petitioner:

1. Limited contact or communication between the parties that the court finds necessary; or
2. The parties to remain in a common area, which may necessitate them being closer than five hundred (500) feet under limited circumstances with specific parameters set forth by the court.

Nothing in this paragraph shall be interpreted to place any restriction or restraint on the petitioner;

(c) Directing or prohibiting any other actions that the court believes will be of assistance in eliminating future acts of dating violence and abuse, stalking, or sexual assault, except that the court shall not order the petitioner to take any affirmative action; and

(d) Directing that either or both of the parties receive counseling services available in the community in dating violence and abuse cases; and

(e) Awarding possession of any shared domestic animal to the petitioner.

(2) In imposing a location restriction described in subsection (1)(a)4. of this section, the court shall:

(a) Afford the petitioner and respondent, if present, an opportunity to testify on the issue of the locations and areas from which the respondent should or should not be excluded;

(b) Only impose a location restriction where there is a specific, demonstrable danger to the petitioner or other person protected by the order;

(c) Specifically describe in the order the locations or areas prohibited to the respondent; and

(d) Consider structuring a restriction so as to allow the respondent transit through an area if the respondent does not interrupt his or her travel to harass, harm, or attempt to harass or harm the petitioner.

(3) An interpersonal protective order shall be effective for a period of time fixed by the court, not to exceed three (3) years, and may be reissued upon expiration for subsequent periods of up to three (3) years each. The fact that an order has not been violated since its issuance may be considered by a court in hearing a request for a reissuance of the order.

KRS 456.070 When protective order becomes effective and binding on respondent --- Mutual protective orders --- Petition hearing testimony later admissible only for impeachment purposes – Interpersonal protective order intake center

(1) A temporary or ordinary interpersonal protective order shall become effective and binding on the respondent when the respondent is given notice of the existence and terms of the order by a peace officer or the court or upon personal service of the order, whichever is earlier. A peace officer or court giving notice of an unserved order shall make all reasonable efforts to arrange for the order's personal service upon the respondent. Once effective, a peace officer or the court may enforce the order's terms and act immediately upon their violation.

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(4) Mutual protective orders may be issued only if:

(a) Separate petitions have been filed by both parties; and

(b) The orders are written with sufficient specificity to allow any peace officer to identify which party has violated the order.

(5) Upon proper filing of a motion, either party may seek to amend an interpersonal protective order.

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KRS 456.090 Law enforcement to assist protective order petitioner and victim of dating violence and abuse, sexual assault, or stalking – Statewide enforcement – Civil and criminal immunity

(1) A court issuing an interpersonal protective order shall direct the appropriate law enforcement agency to assist the petitioner in having the provisions of the order complied with.

(2) When a law enforcement officer has reason to suspect that a person has been the victim of dating violence and abuse, sexual assault, or stalking, the officer shall use all reasonable means to provide assistance to the victim, including but not limited to:

(a) Remaining at the location of the call for assistance so long as the officer reasonably suspects there is danger to the physical safety of individuals there without the presence of a law enforcement officer;
(b) Assisting the victim in obtaining medical treatment, including transporting the victim to the nearest medical facility capable of providing the necessary treatment; and
(c) Advising the victim immediately of the rights available to them, including the provisions of this chapter.
(d) Completing a JC-3 form, or its equivalent replacement, and providing the information to the Criminal Justice Statistical Analysis Center pursuant to KRS 209A.110.

(3) Orders of protection shall be enforced in any county of the Commonwealth.
(4) Officers acting in good faith under this chapter shall be immune from criminal and civil liability.

KRS 456.100 Amendment of interpersonal protective order to require participation in global positioning monitoring system

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(6) A respondent who fails to wear, removes, tampers with, or destroys a global positioning monitoring system device in contravention of an order entered under this section shall be guilty of a Class D felony.

KRS 456.120 Foreign protective orders

(1) All foreign protective orders shall have the rebuttable presumption of validity. The validity of a foreign protective order shall only be determined by a court of competent jurisdiction. Until a foreign protective order is declared to be invalid by a court of competent jurisdiction, it shall be given full faith and credit by all peace officers and courts in the Commonwealth.
(2) All peace officers shall treat a foreign protective order as a legal document valid in Kentucky, and shall make arrests for a violation thereof in the same manner as for a violation of an order of protection issued in Kentucky.
(3) The fact that a foreign protective order has not been entered into the Law Information Network of Kentucky shall not be grounds for a peace officer not to enforce the provisions of the order unless it is readily apparent to the peace officer to whom the order is presented that the order has either expired according to a date shown on the order, or that the order's provisions clearly do not prohibit the conduct being complained of. Officers acting in good faith shall be immune from criminal and civil liability.
(4) If the order has expired or its provisions do not prohibit the conduct being complained of, the officer shall not make an arrest unless the provisions of a Kentucky statute have been violated, in which case the peace officer shall take the action required by Kentucky law.
(5) Civil proceedings and criminal proceedings for violation of a foreign protective order for the same violation of the protective order shall be mutually exclusive. Once either proceeding has been initiated, the other shall not be undertaken, regardless of the outcome of the original proceeding.

KRS 456.180 Violation of order of protection

(1) Violation of the terms or conditions of an order of protection after the person has been served or given notice of the order shall constitute contempt of court and a criminal offense under this section. Once a criminal or contempt proceeding has been initiated, the other shall not be undertaken regardless of the outcome of the original proceeding.
(2) (a) Court proceedings for contempt of court for violation of an order of protection shall be held in the county where the order was issued or filed.
(b) Court proceedings for a criminal violation of an order of protection shall follow the rules of venue applicable to criminal cases generally.
(3) Nothing in this section shall preclude the Commonwealth from prosecuting and convicting the respondent of criminal offenses other than violation of an order of protection.

(4) (a) A person is guilty of a violation of an order of protection when he or she intentionally violates the provisions of an interpersonal protective order after the person has been served or given notice of the order.

(b) Violation of an order of protection is a Class A misdemeanor, unless the person who stands convicted of a violation under this subsection has been convicted of two (2) or more previous violations of orders of protection under this subsection, subsection (4)(a) of KRS 403.763, or KRS 508.155 or 510.037 within the last five (5) years, in which case it is a Class D felony if the third or subsequent violation involves the:

1. Use or attempted use of physical force; or
2. Threat of physical harm. The protected person in the third or subsequent violation is not required to be the same protected person in the previous violations. The five (5) year period shall be measured from the dates on which the offenses occurred for which the judgments of conviction were entered.

KRS CHAPTER 600
INTRODUCTORY MATTERS
(Selected Sections)

KRS 600.010 Title and intent of KRS Chapters 600 to 645

(1) KRS Chapters 600 to 645 shall be known as the Kentucky Unified Juvenile Code.
* * * * *

KRS 600.020 Definitions for KRS Chapters 600 to 645

As used in KRS Chapters 600 to 645, unless the context otherwise requires:

(1) "**Abused or neglected child**" means a child whose health or welfare is harmed or threatened with harm when:
   (a) His or her parent, guardian, person in a position of authority or special trust, as defined in KRS 532.045, or other person exercising custodial control or supervision of the child:
   1. Inflicts or allows to be inflicted upon the child physical or emotional injury as defined in this section by other than accidental means;
   2. Creates or allows to be created a risk of physical or emotional injury as defined in this section to the child by other than accidental means;
   3. Engages in a pattern of conduct that renders the parent incapable of caring for the immediate and ongoing needs of the child including, but not limited to, parental incapacity due to alcohol and other drug abuse as defined in KRS 222.005;
   4. Continuously or repeatedly fails or refuses to provide essential parental care and protection for the child, considering the age of the child;
   5. Commits or allows to be committed an act of sexual abuse, sexual exploitation, or prostitution upon the child;
   6. Creates or allows to be created a risk that an act of sexual abuse, sexual exploitation, or prostitution will be committed upon the child;
   7. Abandons or exploits the child;
   8. Does not provide the child with adequate care, supervision, food, clothing, shelter, and education or medical care necessary for the child's well-being when financially able to do so or offered financial or other means to do so. A parent or other person exercising custodial control or supervision of the child legitimately practicing the person's religious beliefs shall not be considered a negligent parent solely because of failure to provide specified medical treatment for a child for that reason alone. This exception shall not preclude a court from ordering necessary medical services for a child;
   9. Fails to make sufficient progress toward identified goals as set forth in the court-approved case plan to allow for the safe return of the child to the parent that results in the child remaining committed to the cabinet and remaining in foster care for fifteen (15) of the most recent twenty-two (22) months;
   10. Commits or allows female genital mutilation as defined in KRS 508.125 to be committed; or
   (b) A person twenty-one (21) years of age or older commits or allows to be committed an act of sexual abuse, sexual exploitation, or prostitution upon a child less than sixteen (16) years of age.

(2) **"Age or developmentally appropriate"** has the same meaning as in 42 U.S.C. sec. 675(11);

(3) "**Aggravated circumstances**" means the existence of one (1) or more of the following conditions:
   (a) The parent has not attempted or has not had contact with the child for a period of not less than ninety (90) days;
   (b) The parent is incarcerated and will be unavailable to care for the child for a period of at least one (1) year from the date of the child's entry into foster care and there is no appropriate relative placement available during this period of time;
   (c) The parent has sexually abused the child and has refused available treatment;

(d) The parent has been found by the cabinet to have engaged in abuse of the child that required removal from the parent's home two (2) or more times in the past two (2) years; or

(e) The parent has caused the child serious physical injury;

(4) "**Beyond the control of parents**" means a child who has repeatedly failed to follow the reasonable directives of his or her parents, legal guardian, or person exercising custodial control or supervision other than a state agency, which behavior results in danger to the child or others, and which behavior does not constitute behavior that would warrant the filing of a petition under KRS Chapter 645;

(5) "**Beyond the control of school**" means any child who has been found by the court to have repeatedly violated the lawful regulations for the government of the school as provided in KRS 158.150, and as documented in writing by the school as a part of the school's petition or as an attachment to the school's petition. The petition or attachment shall describe the student's behavior and all intervention strategies attempted by the school;

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(8) "**Certified juvenile facility staff**" means individuals who meet the qualifications of, and who have completed a course of education and training in juvenile detention developed and approved by, the Department of Juvenile Justice after consultation with other appropriate state agencies;

(9) "**Child**" means any person who has not reached his or her eighteenth birthday, unless otherwise provided;

* * * * *

(15)"**Complaint**" means a verified statement setting forth allegations in regard to the child which contain sufficient facts for the formulation of a subsequent petition;

(16)"**Court**" means the juvenile session of District Court unless a statute specifies the adult session of District Court or the Circuit Court;

(17)"**Court-designated worker**" means that organization or individual delegated by the Administrative Office of the Courts for the purposes of placing children in alternative placements prior to arraignment, conducting preliminary investigations, and formulating, entering into, and supervising diversion agreements and performing such other functions as authorized by law or court order;

(18)"**Deadly weapon**" has the same meaning as it does in KRS 500.080;

* * * * *

(20)"**Dependent child**" means any child, other than an abused or neglected child, who is under improper care, custody, control, or guardianship that is not due to an intentional act of the parent, guardian, or person exercising custodial control or supervision of the child;

(21)"**Detention**" means the safe and temporary custody of a juvenile who is accused of conduct subject to the jurisdiction of the court who requires a restricted or closely supervised environment for his or her own or the community's protection;

(22)"**Detention hearing**" means a hearing held by a judge or trial commissioner within twenty-four (24) hours, exclusive of weekends and holidays, of the start of any period of detention prior to adjudication;

* * * * *

(25)"**Emergency shelter**" is a group home, private residence, foster home, or similar homelike facility which provides temporary or emergency care of children and adequate staff and services consistent with the needs of each child;

(26)"**Emotional injury**" means an injury to the mental or psychological capacity or emotional stability of a child as evidenced by a substantial and observable impairment in the child's ability to function within a normal range of performance and behavior with due regard to his or her age, development, culture, and environment as testified to by a qualified mental health professional;

* * * * *

(28)**"Fictive kin"** means an individual who is not related by birth, adoption, or marriage to a child, but who has an emotionally significant relationship with the child, or an emotionally significant relationship with a biological parent, siblings, or half siblings of the child in the case of a child from birth to twelve (12) months of age, prior to placement;

(29)"**Firearm**" shall have the same meaning as in KRS 237.060 and 527.010;
(30)"**Foster family home**" means a private home in which children are placed for foster family care under supervision of the cabinet or a licensed child-placing agency;
* * * * *
(32)"**Habitual runaway**" means any child who has been found by the court to have been absent from his or her place of lawful residence without the permission of his or her custodian for at least three (3) days during a one (1) year period;
(33)"**Habitual truant**" means any child who has been found by the court to have been reported as a truant as defined in KRS 159.150(1) two (2) or more times during a one (1) year period;
(34)"**Hospital**" means, except for purposes of KRS Chapter 645, a licensed private or public facility, health care facility, or part thereof, which is approved by the cabinet to treat children;
* * * * *
(37)"**Intentionally**" means, with respect to a result or to conduct described by a statute which defines an offense, that the actor's conscious objective is to cause that result or to engage in that conduct;
(38)"**Least restrictive alternative**" means, except for purposes of KRS Chapter 645, that the program developed on the child's behalf is no more harsh, hazardous, or intrusive than necessary; or involves no restrictions on physical movements nor requirements for residential care except as reasonably necessary for the protection of the child from physical injury; or protection of the community, and is conducted at the suitable available facility closest to the child's place of residence to allow for appropriate family engagement;
(39)"**Motor vehicle offense**" means any violation of the nonfelony provisions of KRS Chapters 186, 189, or 189A, KRS 177.300, 304.39-110, or 304.39-117;
* * * * *
(41)"**Needs of the child**" means necessary food, clothing, health, shelter, and education;
(42)**"Nonoffender"** means a child alleged to be dependent, neglected, or abused and who has not been otherwise charged with a status or public offense;
(43)"**Nonsecure facility**" means a facility which provides its residents access to the surrounding community and which does not rely primarily on the use of physically restricting construction and hardware to restrict freedom;
* * * * *
(46)"**Parent**" means the biological or adoptive mother or father of a child;
(47)"**Person exercising custodial control or supervision**" means a person or agency that has assumed the role and responsibility of a parent or guardian for the child, but that does not necessarily have legal custody of the child;
(48)"**Petition**" means a verified statement, setting forth allegations in regard to the child, which initiates formal court involvement in the child's case;
(49)"**Physical injury**" means substantial physical pain or any impairment of physical condition;
(50)"**Physically secure facility**" means a facility that relies primarily on the use of construction and hardware such as locks, bars, and fences to restrict freedom;
(51)"**Public offense action**" means an action, excluding contempt, brought in the interest of a child who is accused of committing an offense under KRS Chapter 527 or a public offense which, if committed by an adult, would be a crime, whether the same is a felony, misdemeanor, or violation, other than an action alleging that a child sixteen (16) years of age or older has committed a motor vehicle offense;
* * * * *
(55)"**Retain in custody**" means, after a child has been taken into custody, the continued holding of the child by a peace officer for a period of time not to exceed twelve (12) hours when authorized by the court or the court-designated worker for the purpose of making preliminary inquiries;
* * * * *
(57)"**School personnel**" means those certified persons under the supervision of the local public or private education agency;
* * * * *
(59)"**Secure juvenile detention facility**" means any physically secure facility used for the secure detention of children other than any facility in which adult prisoners are confined;

NOTE: ***Bold italic*** terms are defined in KRS 600.020

(60)"**Serious physical injury**" means physical injury which creates a substantial risk of death or which causes serious and prolonged disfigurement, prolonged impairment of health, or prolonged loss or impairment of the function of any bodily member or organ;

(61)"**Sexual abuse**" includes, but is not necessarily limited to, any contacts or interactions in which the parent, guardian, person in a position of authority or special trust, as defined in KRS 532.045, or other person having custodial control or supervision of the child or responsibility for his or her welfare, uses or allows, permits, or encourages the use of the child for the purposes of the sexual stimulation of the perpetrator or another person;

(62)"**Sexual exploitation**" includes but is not limited to a situation in which a parent, guardian, person in a position of authority or special trust, as defined in KRS 532.045, or other person having custodial control or supervision of a child or responsible for his or her welfare, allows, permits, or encourages the child to engage in an act which constitutes prostitution under Kentucky law; or a parent, guardian, person in a position of authority or special trust as defined in KRS 532.045, or other person having custodial control or supervision of a child or responsible for his or her welfare, allows, permits, or encourages the child to engage in an act of obscene or pornographic photographing, filming, or depicting of a child as provided for under Kentucky law;

(63)"**Social service worker**" means any employee of the cabinet or any private agency designated as such by the secretary of the cabinet or a social worker employed by a county or city who has been approved by the cabinet to provide, under its supervision, services to families and children;

(64)"**Staff secure facility for residential treatment**" means any setting which assures that all entrances and exits are under the exclusive control of the facility staff, and in which a child may reside for the purpose of receiving treatment;

(65)(a)**"Status offense action"** is any action brought in the interest of a child who is accused of committing acts, which if committed by an adult, would not be a crime. Such behavior shall not be considered criminal or delinquent and such children shall be termed status offenders. Status offenses shall include:

1. Beyond the control of school or beyond the control of parents;
2. Habitual runaway;
3. Habitual truant; and
4. Alcohol offenses as provided in KRS 244.085.

(b) Status offenses shall not include violations of state or local ordinances which may apply to children such as a violation of curfew;

(66)"**Take into custody**" means the procedure by which a peace officer or other authorized person initially assumes custody of a child. A child may be taken into custody for a period of time not to exceed two (2) hours;

* * * * *

(69)"**Valid court order**" means a court order issued by a judge to a child alleged or found to be a status offender:

(a) Who was brought before the court and made subject to the order;
(b) Whose future conduct was regulated by the order;
(c) Who was given written and verbal warning of the consequences of the violation of the order at the time the order was issued and whose attorney or parent or legal guardian was also provided with a written notice of the consequences of violation of the order, which notification is reflected in the record of the court proceedings; and
(d) Who received, before the issuance of the order, the full due process rights guaranteed by the Constitution of the United States.

(70)"**Violation**" means any offense, other than a traffic infraction, for which a sentence of a fine only can be imposed;

(71)"**Youth alternative center**" means a nonsecure facility, approved by the Department of Juvenile Justice, for the detention of juveniles, both prior to adjudication and after adjudication, which meets the criteria specified in KRS 15A.320; and

(72)"**Youthful offender**" means any person regardless of age, transferred to Circuit Court under the provisions of KRS Chapter 635 or 640 and who is subsequently convicted in Circuit Court.

KRS CHAPTER 605
ADMINISTRATIVE MATTERS
(Selected Sections)

KRS 605.080 Transportation of children

(1) Any ***child*** ordered to be transported, by a committing or sentencing court, shall be transported by the sheriff or the jailer of that county. Any other law enforcement agency may enter into agreements with the court, sheriff, or jailer to transport juveniles.

* * * * *

(3) No child shall be transported to any residential treatment facility or other facility, pursuant to order of any court, unless accompanied by an attendant of the same gender, unless that child, when authorized in writing by the court, the Department of Juvenile Justice, or the cabinet, is transported by a parent, grandparent, or adult brother or sister.

* * * * *

KRS CHAPTER 610
PROCEDURAL MATTERS
(Selected Sections)

KRS 610.010 District Court jurisdiction of juvenile matters

(1) Unless otherwise exempted by KRS Chapters 600 to 645, the juvenile session of the District Court of each county shall have exclusive jurisdiction in proceedings concerning any ***child*** living or found within the county who has not reached his or her eighteenth birthday or of any person who at the time of committing a public offense was under the age of eighteen (18) years, who allegedly has committed a public offense prior to his or her eighteenth birthday, except a motor vehicle offense involving a child fifteen (15) years of age or older. A child fifteen (15) years of age or older taken into custody upon the allegation that the child has committed a ***motor vehicle offense*** shall be treated as an adult and shall have the same conditions of release applied to him or her as an adult. A child taken into custody upon the allegation that he or she has committed a motor vehicle offense who is not released under conditions of release applicable to adults shall be held, pending his or her appearance before the District Court, in a facility as defined in KRS 15A.067. Children fifteen (15) years of age or older who are convicted of, or plead guilty to, a motor vehicle offense shall, if sentenced to a term of confinement, be placed in a facility for that period of confinement preceding their eighteenth birthday and an adult detention facility for that period of confinement subsequent to their eighteenth birthday. The term "motor vehicle offense" shall not be deemed to include the offense of stealing or converting a motor vehicle nor operating the same without the owner's consent nor any offense which constitutes a felony;

(2) Unless otherwise exempted by KRS Chapters 600 to 645, the juvenile session of the District Court of each county or the family division of the Circuit Court shall have exclusive jurisdiction in proceedings concerning any child living or found within the county who has not reached his or her eighteenth birthday and who allegedly:
   (a) Is ***beyond the control of the school*** or ***beyond the control of parents*** as defined in KRS 600.020;
   (b) Is an ***habitual truant*** from school;
   (c) Is an ***habitual runaway*** from his or her ***parent*** or other ***person exercising custodial control or supervision*** of the child;
   (d) Is ***dependent***, ***neglected***, or ***abused***; or
   (e) Has committed an alcohol offense in violation of KRS 244.085;
   (f) **Is mentally ill.**

(3) Actions brought under subsection (1) of this section shall be considered to be public offense actions.

(4) Actions brought under subsection (2)(a), (b), (c), and (e) of this section shall be considered to be status offense actions.

NOTE: ***Bold italic*** terms are defined in KRS 600.020

(5) Actions brought under subsection (2)(d) of this section shall be considered to be nonoffender actions.
(6) Actions brought under subsection (2)(f) of this section shall be considered to be mental health actions.
* * * * *
(10) The court of each county wherein a public offense, as defined in subsection (1) of this section, is committed by a child who is a resident of another county of this state shall have concurrent jurisdiction over such child with the court of the county wherein the child resides or the court of the county where the child is found. Whichever court first acquires jurisdiction of such child may proceed to final disposition of the case, or in its discretion may make an order transferring the case to the court of the county of the child's residence or the county wherein the offense was committed, as the case may be.
(11) Nothing in this chapter shall prevent the Court from holding a child in contempt of court to enforce valid court orders previously issued by the court, subject to the requirements contained in Sections 5 and 10 of this Act.
* * * * *
(14) The court shall have continuing jurisdiction over a child pursuant to subsection (1) of this section, to review dispositional orders, and to conduct permanency hearings under 42 U.S.C. sec. 675(5)(c) until the child is placed for adoption, returned home to his or her parents with all the court imposed conditions terminated, completes a disposition pursuant to KRS 635.060, or reaches the age of eighteen (18) years.

KRS 610.190 Arrest laws applicable to child taken into custody – Applicability of bail laws – Custody by person other than peace officer

(1) The law relating to the persons by whom and the circumstances under which a person may be arrested for a public offense shall be applicable to children, but the taking of a child into custody under such law shall not be termed an arrest until the court has made the decision to try the child in Circuit or District Court as an adult. The law relating to bail shall not be applicable to children detained in accordance with this chapter unless the child is subject to being tried in Circuit or District Court as an adult.
(2) A peace officer may take a child into protective custody if the officer suspects the child to be a runaway. A child taken into protective custody under this subsection shall not be considered to have been arrested and may be held at the locations specified in KRS 610.220(1), after which the officer shall proceed with an initial investigation as provided for in KRS 610.200.
(3) When a child is taken into custody by a person other than a peace officer, such person shall as soon as possible place the child in the custody of a peace officer.

KRS 610.200 Duties of peace officer

(1) When a peace officer has ***taken*** or received a child ***into custody*** on a charge of committing an offense, the officer shall immediately inform the child of his constitutional rights and afford him the protections required thereunder, notify the parent, or if the child is committed the Department of Juvenile Justice or the cabinet, as appropriate, and if the parent is not available, then a relative, guardian, ***person exercising custodial control or supervision*** of the child, that the child has been taken into custody, give an account of specific charges against the child, including the specific statute alleged to have been violated, and the reasons for taking the child into custody.
(2) (a) When a peace officer has taken or received a child into protective custody on suspicion of being a runaway, the officer shall immediately notify:
    1. The child's parent, guardian, or person exercising custodial control or supervision of the child, if determined;
    2. The cabinet or Department of Juvenile Justice, if appropriate; and
    3. The court-designated worker.
    (b) If the parent, guardian, or other person exercising custodial control or supervision is identified and notified, the peace officer may retain custody of the child for a reasonable

period to allow the person notified the opportunity to arrive at the officer's location and collect the child.

(c) If the parent, guardian, or other person exercising custodial control or supervision cannot be identified or located, the peace officer may retain custody of the child for a period of time not to exceed two (2) hours to continue his or her investigation.

(d) If, at the conclusion of the peace officer's investigation, the parent, guardian, or person exercising custodial control or supervision of the child is identified and notified, the peace officer shall return the child to the custody of that person and shall file a status offense case with the court-designated worker.

(e) If, at the conclusion of the peace officer's investigation, the parent, guardian, or person exercising custodial control or supervision of the child cannot be identified or located, or that person refuses to collect the child, the peace officer shall file a complaint pursuant to KRS 610.012.

(3) Unless the child is subject to trial as an adult or unless the nature of the offense or other circumstances are such as to indicate the necessity of retaining the child in custody, the officer shall release the child to the custody of his parent or if the child is committed, the Department of Juvenile Justice or the cabinet, as appropriate; or if the parent is not available, then a relative, guardian, person exercising custodial control or supervision or other responsible person or agency approved by the court upon the written promise, signed by such person or agency, to bring the child to the court at a stated time or at such time as the court may order. The written promise, accompanied by a written report by the officer, shall be submitted forthwith to the court or ***court-designated worker*** and shall detail the reasons for having taken custody of the child, the release of the child, the person to whom the child was released, and the reasons for the release.

(4) (a) If the person fails to produce the child as agreed or upon notice from the court as provided in subsection (3) of this section, a summons, warrant, or custody order may be issued for the apprehension of the person or of the child, or both.

(b) If the person notified to collect a suspected runaway pursuant to subsection (2)(a) of this section fails or refuses to collect the child, the peace officer shall notify the county attorney, who may file a charge of endangering the welfare of a minor, and the cabinet.

(5) The release of a child pursuant to this section shall not preclude a peace officer from proceeding with a complaint against a child or any other person.

(6) Unless the child is subject to trial as an adult, if the child is not released, the peace officer shall contact the court-designated worker who may:

(a) Release the child to his parents;

(b) Release the child to such other persons or organizations as are authorized by law;

(c) Release the child to either of the above subject to stated conditions; or

(d) Except as provided in subsection (7) of this section, authorize the peace officer to retain custody of the child for an additional period not to exceed twelve (12) hours during which the peace officer may transport the child to a ***secure juvenile detention facility***, or a ***nonsecure facility***. If the child is retained in custody, the court-designated worker shall give notice to the child's parents or person exercising custodial control or supervision of the fact that the child is being retained in custody.

(7) (a) Except as provided in paragraph (b) of this subsection, no child ten (10) years of age or under shall be taken to or placed in a juvenile detention facility.

(b) Any child ten (10) years of age or under who has been charged with the commission of a capital offense or with an offense designated as a Class A or Class B felony may be taken to or placed in a secure juvenile detention facility or youth alternative center when there is no available less restrictive alternative.

KRS 610.220 Permitted purposes for holding child in custody – Time limitation – Extension - Separation from adult prisoners – Prohibition against attaching child to stationary object

(1) Except as otherwise provided by statute, if an officer takes or receives a child into custody on an allegation of committing a public offense or into protective custody on being a suspected runaway, the child may be held at a police station, ***secure juvenile detention facility***, ***youth***

alternative center, a ***nonsecure facility***, or, as necessary, in a ***hospital*** or clinic for the following purposes:
(a) Identification and booking;
(b) Attempting to notify the parents or person exercising custodial control or supervision of the child, a relative, guardian, other responsible person, or the cabinet;
(c) Photographing;
(d) Fingerprinting;
(e) Physical examinations, including examinations for evidence;
(f) Evidence collection, including scientific tests;
(g) Records checks;
(h) Determining whether the child is subject to trial as an adult; and
(i) Other inquiries of a preliminary nature.

(2) A child may be held in custody pursuant to this section for a period of time not to exceed two (2) hours, unless an extension of time is granted. Permission for an extension of time may be granted by the court, trial commissioner, or ***court-designated worker*** pursuant to KRS 610.200(6)(d) and the child may be retained in custody for up to an additional ten (10) hours at a facility of the type listed in subsection (1) of this section except for an intermittent holding facility for the period of retention.

(3) Any child held in custody pursuant to this section shall be sight and sound separated from any adult prisoners held in secure custody at the same location, and shall not be handcuffed to or otherwise securely attached to any stationary object.

KRS 610.255 Peace officer may take child to court approved center – Release of child without formal charges filed

The peace officer may divert the child from the formal court process and take the child to a court-approved center offering voluntary services to children and release the child without formal charges being filed, if:

(1) The offense the child has allegedly committed under the provisions of KRS 610.010(1) is not a felony offense;
(2) The peace officer has received the permission of the parent or other responsible adult; and
(3) The peace officer has followed guidelines which the court has established for such release.

KRS 610.265 Detention of children in specified facilities – Time frame for holding detention hearing – Release of child required if hearing not held as specified

(1) Any child who is alleged to be a status offender or who is accused of being in contempt of court on an underlying finding that the child is a status offender may be detained in a nonsecure facility or a secure juvenile detention facility for a period of time not to exceed twenty-four (24) hours, exclusive of weekends and holidays, pending a detention hearing. Any child who is accused of committing a public offense or of being in contempt of court on an underlying public offense may be detained in a secure juvenile detention facility or a nonsecure setting approved by the Department of Juvenile Justice for a period of time not to exceed forty-eight (48) hours, exclusive of weekends and holidays pending a detention hearing.

* * * * *

KRS 610.266 Restriction on placement of nonoffender and curfew violator

The following persons shall not be detained in a secure juvenile detention facility:

(1) A nonoffender; or
(2) Any child charged with a violation of a statute or local ordinance pertaining to curfew.

KRS 610.300 Evidence in public offense investigations

(1) Physical evidence shall be obtained and utilized in the investigation of public offenses involving children in the same manner as it is obtained and utilized in the investigation of public offenses involving adults.

(2) Except for fingerprint records, all records and physical evidence so obtained shall be surrendered to the court upon motion for good cause shown. All records, including fingerprint records, shall be subject to expungement in the manner provided in KRS 431.076 for circumstances specified therein.
(3) The court shall, upon receipt of physical evidence return any evidence which is not contraband and is not needed for further prosecution, to its lawful owner. The fingerprint cards created pursuant to KRS Chapters 600 to 645 shall be transferred pursuant to KRS 17.110.

KRS 610.320 Juvenile record and juvenile docket – Disclosure of information in court and police records concerning juvenile prohibited – Exceptions – Use of juvenile records in court

* * * * *

(3) All law enforcement and court records regarding children who have not reached their eighteenth birthday shall not be opened to scrutiny by the public, except that a separate public record shall be kept by the clerk of the court which shall be accessible to the public for court records, limited to the petition, order of the adjudication, and disposition in juvenile delinquency proceedings concerning a child who is fourteen (14) years of age or older at the time of the commission of the offense, and who is adjudicated a juvenile delinquent for the commission of an offense that would constitute a capital offense or a Class A, B, or C felony if the juvenile were an adult, or any offense involving a deadly weapon, or an offense wherein a deadly weapon is used or displayed.

* * * * *

(6) This section shall not relieve the probation officer or peace officer from divulging such facts as a witness in a trial or hearing involving any cases falling under KRS Chapters 600 to 645 or the production of juvenile records for use in the trial or proceedings.

* * * * *

KRS 610.340 Confidentiality of juvenile court records

(1) (a) Unless a specific provision of KRS Chapters 600 to 645 specifies otherwise, all juvenile court records of any nature generated pursuant to KRS Chapters 600 to 645 by any agency or instrumentality, public or private, shall be deemed to be confidential and shall not be disclosed except to the child, parent, victims, or other persons authorized to attend a juvenile court hearing pursuant to KRS 610.070 unless ordered by the court for good cause.

* * * * *

(2) The provisions of this section shall not apply to public officers or employees engaged in the investigation of and in the prosecution of cases under KRS Chapters 600 to 645 or other portions of the Kentucky Revised Statutes. Any record obtained pursuant to this subsection shall be used for official use only, shall not be disclosed publicly, and shall be exempt from disclosure under the Open Records Act, KRS 61.870 to 61.884.
(3) The provisions of this section shall not apply to any peace officer, as defined in KRS 446.010, who is engaged in the investigation or prosecution of cases under KRS Chapters 600 to 645 or other portions of the Kentucky Revised Statutes. Any record obtained pursuant to this subsection shall be used for official use only, shall not be disclosed publicly, and shall be exempt from disclosure under the Open Records Act, KRS 61.870 to 61.884.

* * * * *

(5) The provisions of this section shall not apply to records disclosed pursuant to KRS 610.320 or to public or private elementary and secondary school administrative, transportation, and counseling personnel, to any teacher or school employee with whom the student may come in contact, or to persons entitled to have juvenile records under KRS 610.345, if the possession and use of the records is in compliance with the provisions of KRS 610.345 and this section.
(6) (a) The provisions of this section shall not apply to records or proceedings in any case in which a child has made an admission to or been adjudicated for a violent felony offense

as defined in KRS 532.200 until the expiration of a three (3) year period from the date of admission or adjudication.

(b) If the child has not received any additional public offense convictions during the three (3) year period from the date of admission or adjudication, all records in the case shall be automatically sealed and shall not be disclosed consistent with the provisions of this section.

(c) As used in this subsection, "admission" means a formal admission in a case, on the record, upon the waiving of an adjudication hearing.

(7) No person, including school personnel, shall disclose any confidential record or any information contained therein except as permitted by this section or other specific section of KRS Chapters 600 to 645, or except as permitted by specific order of the court.

(8) No person, including school personnel, authorized to obtain records pursuant to KRS Chapters 600 to 645 shall obtain or attempt to obtain confidential records to which he is not entitled or for purposes for which he is not permitted to obtain them pursuant to KRS Chapters 600 to 645.

(9) No person, including school personnel, not authorized to obtain records pursuant to KRS Chapters 600 to 645 shall obtain or attempt to obtain records which are made confidential pursuant to KRS Chapters 600 to 645 except upon proper motion to a court of competent jurisdiction.

(10) No person shall destroy or attempt to destroy any record required to be kept pursuant to KRS Chapters 600 to 645 unless the destruction is permitted pursuant to KRS Chapters 600 to 645 and is authorized by the court upon proper motion and good cause for the destruction being shown.

(11) As used in this section the term "KRS Chapters 600 to 645" includes any administrative regulations which are lawfully promulgated pursuant to KRS Chapters 600 to 645.

(12) Nothing in this section shall be construed to prohibit a crime victim from speaking publicly after the adjudication about his or her case on matters within his or her knowledge or on matters disclosed to the victim during any aspect of a juvenile court proceeding.

KRS 610.342 Full access to all records relating to a child for that child's attorney – Enforcement by court order

(1) Any statute to the contrary notwithstanding, an attorney representing a child in any proceeding under KRS Chapters 600 to 645 or in any adult criminal proceeding shall have full access to all records, including juvenile records, held by law enforcement, courts, social work agencies, or any other record, public or private, relating to that child which the attorney believes is necessary to the representation of that child.

(2) All courts shall enforce the provisions of subsection (1) of this section through appropriate orders, upon request of an attorney representing a child in any proceeding specified in subsection (1) of this section.

KRS 610.990 Penalty

Any person who intentionally violates any of the provisions of this chapter shall be guilty of a Class B misdemeanor except that an intentional violation of an order issued under subsection (11) of KRS 610.030 shall be referred to the county attorney for prosecution under KRS 530.070(1)(c) if the case relates to truancy.

KRS CHAPTER 620
DEPENDENCY, NEGLECT, AND ABUSE
(Selected Sections)

KRS 620.020 Definitions for chapter

The definitions in KRS Chapter 600 shall apply to this chapter. In addition, as used in this chapter, unless the context requires otherwise:

* * * * *

NOTE: ***Bold italic*** terms are defined in KRS 600.020

(4) "**Children's advocacy center**" means an agency that advocates on behalf of children alleged to have been abused; that assists in the coordination of the investigation of child abuse by providing a location for forensic interviews and medical examinations, and by promoting the coordination of services for children alleged to have been abused; and that provides, directly or by formalized agreements, services that include, but are not limited to, forensic interviews, medical examinations, mental health and related support services, court advocacy, consultation, training, and staffing of multidisciplinary teams;

(5) "**Foster care**" means the provision of temporary twenty-four (24) hour care for a child for a planned period of time when the child is:
   (a) Removed from his parents or person exercising custodial control or supervision and subsequently placed in the custody of the cabinet; and
   (b) Placed in a foster home or private child-caring facility or child-placing agency but remains under the supervision of the cabinet;

* * * * *

(7) "**Multidisciplinary teams**" means local teams operating under protocols governing roles, responsibilities, and procedures developed by the Kentucky Multidisciplinary Commission on Child Sexual Abuse pursuant to KRS 431.600;

* * * * * * *

(10)"**Position of Authority"** has the same meaning as in KRS 532.045;

(11)**"Position of special trust"** has the same meaning as in KRS 532.045;

* * * * *

(13)"**Reasonable efforts**" means the exercise of ordinary diligence and care by the department to utilize all preventive and reunification services available to the community in accordance with the state plan for Public Law 96-272 which are necessary to enable the child to safely live at home;

* * * * *

KRS 620.030 Duty to report dependency, neglect, abuse, human trafficking, or female genital mutilation – Husband-wife and professional-client/patient privileges not grounds for refusal to report – Exceptions - Penalties

(1) Any person who knows or has reasonable cause to believe that a child is ***dependent, neglected or abused*** shall immediately cause an oral or written report, including but not limited to electronic submissions, to be made to a local law enforcement agency or the Kentucky State Police, the cabinet or its designated representative, the Commonwealth's attorney or the county attorney, by telephone or otherwise. If the cabinet receives a report of abuse or neglect allegedly committed by a person other than a parent, guardian, fictive kin, person in position of authority, person in position of special trust, or person exercising custodial control or supervision, the cabinet shall refer the matter to the Commonwealth's attorney or the county attorney and the local law enforcement agency or the Kentucky State Police. Nothing in this section shall relieve individuals of their obligations to report.

(2) (a) Any person, including but not limited to a physician, osteopathic physician, nurse, teacher, school personnel, social worker, coroner, medical examiner, child-caring personnel, resident, intern, chiropractor, dentist, optometrist, emergency medical technician, paramedic, health professional, mental health professional, peace officer or any organization or agency for any of the above, who knows or has reasonable cause to believe that a child is dependent, neglected or abused, regardless of whether the person believed to have caused the dependency, neglect or abuse is a parent, guardian, fictive kin, person in a position of authority, person in a position of special trust, person exercising custodial control or supervision or another person, or who has attended such child as a part of his professional duties, shall:
      1. Immediately make an oral or written report, including but not limited to electronic submissions, in accordance with subsection (1) this section;
      2. Immediately notify the supervisor of the institution, school, facility, agency, or designated agent of the person in charge; and

3. If requested, in addition to the report required in subsection (1) or (3) of this section, file with the local law enforcement agency or the Kentucky State Police, the cabinet or its designated representative, or the Commonwealth's attorney or county attorney within forty-eight (48) hours of the original report a written report, including but not limited to electronic submissions, containing:

a. The names and addresses of the child and his parents or other persons exercising custodial control or supervision;
b. The child's age;
c. The nature and extent of the child's alleged dependency, neglect or abuse (including any previous charges of dependency, neglect or abuse) to this child or his siblings;
d. The name and address of the person allegedly responsible for the abuse or neglect; and
e. Any other information that the person making the report believes may be helpful in the furtherance of the purpose of this section.

(b) Upon notification, the supervisor or the designated agent, if any, shall facilitate the cooperation of the institution, school, facility, or agency with the investigation of the report.

(c) Any person who knowingly causes intimidation, retaliation, or obstruction in the investigation of the report shall be guilty of a Class A misdemeanor.

(d) This section shall not require more than one (1) report from any institution, school, facility, or agency.

(3) Any person who knows or has reasonable cause to believe that a child is a victim of human trafficking as defined in KRS 529.010 shall immediately cause an oral or written report, including but not limited to electronic submissions, to be made to a local law enforcement agency or the Department of Kentucky State Police; or the cabinet or its designated representative; or the Commonwealth's attorney or the county attorney; by telephone or otherwise. This subsection shall apply regardless of whether the person believed to have caused the human trafficking of the child is a parent, guardian, fictive kin, person in a position of authority, person in a position of special trust, or person exercising custodial control or supervision.

(4) Any person who knows or has reasonable cause to believe that a child is a victim of female genital mutilation as defined in KRS 508.125 shall immediately cause an oral or written report, including but not limited to electronic submissions, to be made by telephone or otherwise to:

(a) A local law enforcement agency or the Department of Kentucky State Police;
(b) The cabinet or its designated representative; or
(c) The Commonwealth’s Attorney or the county attorney.

This subsection shall apply regardless of whether the person believed to have caused the female genital mutilation of the child is a parent, guardian, or person exercising custodial control or supervision.

(5) Neither the husband-wife nor any professional-client/patient privilege, except the attorney-client and clergy-penitent privilege, shall be a ground for refusing to report under this section or for excluding evidence regarding a dependent, neglected, or abused child or the cause thereof, in any judicial proceedings resulting from a report pursuant to this section. This subsection shall also apply in any criminal proceeding in District or Circuit Court regarding a dependent, neglected, or abused child.

(6) The cabinet shall establish and operate a statewide reporting system for the public to make reports of child dependency, neglect, and abuse via telephone call or written report, including but not limited to electronic submissions. The statewide reporting system shall operate a twenty-four (24) hour on-call response system that includes but is not limited to a child abuse hotline for the receipt of emergency and nonemergency reports of child dependency, neglect, and abuse during and after normal office hours. The cabinet may use contract employees to operate the system.

(7) The cabinet upon request shall receive from any agency of the state or any other agency, institution or facility providing services to the child or his family, such cooperation, assistance

and information as will enable the cabinet to fulfill its responsibilities under KRS 620.030, 620.040, and 620.050.

(8) Nothing in this section shall limit the cabinet's investigatory authority under KRS 620.050 or any other obligation imposed by law.

(9) Any person who intentionally violates the provisions of this section shall be guilty of a:
   (a) Class B misdemeanor for the first offense;
   (b) Class A misdemeanor for the second offense; and
   (c) Class D felony for each subsequent offense.

KRS 620.040 Duties of prosecutor, police, and cabinet – Prohibition as to school personnel – Multidisciplinary teams

(1) (a) Upon receipt of a report alleging abuse or neglect of a child as defined in KRS 600.020 by a parent, guardian, fictive kin, person in a position of authority, person in a position of special trust, or person exercising custodial control or supervision, pursuant to KRS 620.030(1) or (2), or a report alleging a child is a victim of human trafficking pursuant to subsection (3) of KRS 620.030, the recipient of the report shall immediately notify the cabinet or its designated representative, the local law enforcement agency or Kentucky State Police, and the Commonwealth's or county attorney of the receipt of the report. If any agency listed above is the reporting source, the recipient shall immediately notify the cabinet or its designated representative, the local law enforcement agency, the Department of Kentucky State Police, and the Commonwealth's or county attorney of the receipt of the report.

   (b) Based upon the allegation in the report, the cabinet shall immediately make an initial determination as to the risk of harm and immediate safety of the child. Based upon the level of risk determined, the cabinet shall investigate the allegation or accept the report for an assessment of family needs and, if appropriate, may provide or make referral to any community-based services necessary to reduce risk to the child and to provide family support. A report of sexual abuse or human trafficking of a child shall be considered high risk and shall not be referred to any other community agency.

   (c) In making the initial determination as to the risk of harm and immediate safety of the child pursuant to paragraph (b) of this subsection, the cabinet shall at a minimum:
      1. Consider the age and vulnerability of a child, particularly for ages five (5) years of age and under, when assessing allegations of abuse and neglect;
      2. Automatically accept for investigation a subsequent report from a professional reporting source, who makes a report pursuant to the requirements in KRS Chapter 620 that a child is abused or neglected and identifies himself or herself by name, title, and employer, when the same or similar allegation has been reported by one (1) or more unique professional reporting sources within the past thirty (30) days. For the purposes of this subparagraph "professional reporting source" means an individual who is a social worker, therapist, medical professional, educator, judge, attorney, law enforcement officer, or any other individual holding a degree or position in a field related to the safety and care of children; and
      3. Automatically accept for investigation a report from a court of appropriate jurisdiction that makes a report pursuant to the requirements in KRS Chapter 620 that a child is abused or neglected or identifies that the child is a plaintiff in an active emergency protective order or interpersonal protection order case.

   (d) The cabinet shall, within seventy-two (72) hours, exclusive of weekends and holidays, make a written report, including but not limited to electronic submissions, to the Commonwealth's or county attorney and the local law enforcement agency or Kentucky State Police concerning the action that has been taken on the investigation.

   (e) If the report alleges abuse or neglect by someone other than a parent, guardian, fictive kin, person in a position of authority, person in a position of special trust, or person exercising custodial control or supervision, or the human trafficking of a child, the cabinet shall immediately notify the Commonwealth's or county attorney and the local law enforcement agency or Kentucky State Police.

(2) (a) Upon receipt of a report alleging dependency pursuant to KRS 620.030(1) and (2), the recipient shall immediately notify the cabinet or its designated representative.

(b) Based upon the allegation in the report, the cabinet shall immediately make an initial determination as to the risk of harm and immediate safety of the child. Based upon the level of risk, the cabinet shall investigate the allegation or accept the report for an assessment of family needs and, if appropriate, may provide or make referral to any community-based services necessary to reduce risk to the child and to provide family support. A report of sexual abuse or human trafficking of a child shall be considered high risk and shall not be referred to any other community agency.

(c) In making the initial determination as to the risk of harm and immediate safety of the child pursuant to paragraph (b) of this subsection, the cabinet shall at a minimum:

1. Consider the age and vulnerability of a child, particularly for ages five (5) years of age and under, when assessing allegations of dependency;
2. Automatically accept for investigation a subsequent report from a professional reporting source, who makes a report pursuant to the requirements in KRS Chapter 620 that a child is dependent and identifies himself or herself by name, title, and employer, when the same or similar allegation has been reported by one (1) or more unique professional reporting sources within the past thirty (30) days. For the purposes of this subparagraph "professional reporting source" means an individual who is a social worker, therapist, medical professional, educator, judge, attorney, law enforcement officer, or any other individual holding a degree or position in a field related to the safety and care of children; and
3. Automatically accept for investigation a report from a court of appropriate jurisdiction that makes a report pursuant to the requirements in KRS Chapter 620 that a child is dependent or identifies that the child is a plaintiff in an active emergency protective order or interpersonal protection order case.

(d) The cabinet need not notify the local law enforcement agency or Kentucky State Police or Commonwealth's or county attorney of reports made under this subsection unless the report involves the human trafficking of a child, in which case the notification shall be required.

(3) If the cabinet or its designated representative receives a report of abuse by a person other than a parent, guardian, fictive kin, person in a position of authority, person in a position of special trust, or other person exercising custodial control or supervision of a child, it shall immediately notify the local law enforcement agency or Kentucky State Police and the Commonwealth's or county attorney of the receipt of the report and its contents and they shall investigate the matter. The cabinet or its designated representative shall participate in an investigation of noncustodial physical abuse or neglect at the request of the local law enforcement agency or the Kentucky State Police. The cabinet shall participate in all investigations of reported or suspected sexual abuse or human trafficking of a child.

(4) School personnel or other persons listed in KRS 620.030(2) do not have the authority to conduct internal investigations in lieu of the official investigations outlined in this section.

(5) (a) If, after receiving the report, the law enforcement officer, the cabinet, or its designated representative cannot gain admission to the location of the child, a search warrant shall be requested from, and may be issued by, the judge to the appropriate law enforcement official upon probable cause that the child is dependent, neglected, or abused. If, pursuant to a search under a warrant a child is discovered and appears to be in imminent danger, the child may be removed by the law enforcement officer.

(b) If a child who is in a hospital or under the immediate care of a physician appears to be in imminent danger if he is returned to the persons having custody of him, the physician or hospital administrator may hold the child without court order, provided that a request is made to the court for an emergency custody order at the earliest practicable time, not to exceed seventy-two (72) hours.

(c) Any appropriate law enforcement officer may take a child into protective custody and may hold that child in protective custody without the consent of the parent or other person exercising custodial control or supervision if there exist reasonable grounds for the officer to believe that the child is in danger of imminent death or serious physical injury, is being

sexually abused, or is a victim of human trafficking and that the parents or other person exercising custodial control or supervision are unable or unwilling to protect the child. The officer or the person to whom the officer entrusts the child shall, within twelve (12) hours of taking the child into protective custody, request the court to issue an emergency custody order.

(d) When a law enforcement officer, hospital administrator, or physician takes a child into custody without the consent of the parent or other person exercising custodial control or supervision, he or she shall provide written notice to the parent or other person stating the reasons for removal of the child. Failure of the parent or other person to receive notice shall not, by itself, be cause for civil or criminal liability.

(e) 1. If a report includes a child fatality or near fatality, and the law enforcement officer has reasonable grounds to believe any parent or person exercising custodial control or supervision of the child was under the influence of alcohol or drugs at the time of the fatality or near fatality occurred, the law enforcement officer shall request a test of blood, breath, or urine from that person.

2. If, after making the request, consent is not given for the test of blood, breath, or urine, a search warrant shall be requested from and may be issued by the judge to the appropriate law enforcement official upon probable cause that a child fatality or near fatality has occurred and that the person exercising custodial control or supervision of the child at the time of the fatality or near fatality was under the influence.

3. Any test requested under this section shall be conducted pursuant to the testing procedures and requirements in KRS 189A.103.

(6) The cabinet shall make efforts as soon as practicable to determine any military status of a parent or legal guardian of a child who is the subject of an investigation or assessment pursuant to this section. If the cabinet determines that the parent or legal guardian is a member of the United States Armed Forces, the cabinet shall notify the Department of Defense family advocacy program operating within the service member's assigned installation of the investigation or assessment and provide case information.

(7) To the extent practicable and when in the best interest of a child alleged to have been abused, interviews with the child shall be conducted at a children's advocacy center.

(8) (a) One (1) or more multidisciplinary teams may be established in every county or group of contiguous counties.

(b) Membership of the multidisciplinary team shall include, but shall not be limited to, social service workers employed by the Cabinet for Families and Children and law enforcement officers. Additional team members may include Commonwealth's and county attorneys, children's advocacy center staff, mental health professionals, medical professionals, victim advocates including advocates for victims of human trafficking, educators, and other related professionals, as deemed appropriate.

(c) The multidisciplinary team shall review child sexual abuse cases and child human trafficking cases involving commercial sexual activity referred by participating professionals, including those in which the alleged perpetrator does not have custodial control or supervision of the child, or is not responsible for the child's welfare. The purpose of the multidisciplinary team shall be to review investigations, assess service delivery, and to facilitate efficient and appropriate disposition of cases through the criminal justice system.

* * * * *

(f) Multidisciplinary team members and anyone invited by the multidisciplinary team to participate in a meeting shall not divulge case information, including information regarding the identity of the victim or source of the report. Team members and others attending meetings shall sign a confidentiality statement that is consistent with statutory prohibitions on disclosure of this information.

(g) The multidisciplinary team shall, pursuant to KRS 431.600 and 431.660, develop a local protocol consistent with the model protocol issued by the Kentucky Multidisciplinary Commission on Child Sexual Abuse. The local team shall submit the protocol to the commission for review and approval.

(h) The multidisciplinary team review of a case may include information from reports generated by agencies, organizations, or individuals that are responsible for investigation, prosecution, or treatment in the case, KRS 610.320 to KRS 610.340 notwithstanding.
(i) To the extent practicable, multidisciplinary teams shall be staffed by the local children's advocacy center.

(9) Nothing in this section shall limit the cabinet's investigatory authority under KRS 620.050 or any other obligation imposed by law.

KRS 620.048 Cabinet to file petition within 72 hours if child remains placed outside of home during investigation – Cabinet to report on safety plans

(1) During a child protective services investigation conducted pursuant to the authority in this chapter where a child is placed outside of his or her home on a safety plan, the cabinet shall file a petition in court within seventy-two (72) hours if the child remains placed outside of his or her home for more than fourteen (14) consecutive days.
(2) All safety plans implemented pursuant to this section shall be compiled by the cabinet on a quarterly basis into a report containing at a minimum the total number of safety plans, the outcome of the safety plans, and the number of court petitions filed.
(3) By December 1, 2024, and quarterly thereafter, the cabinet shall make available, on its website and to the Legislative Research Commission for referral to the Interim Joint Committee, Senate Standing Committee, and House Standing Committee on Families and Children, the report on safety plans established in subsection (2) of this section.

KRS 620.050 Immunity for good faith actions or reports – Investigations – Confidentiality of reports – Exceptions – Parent's access to records – Sharing of information by children's advocacy centers – Confidentiality of interview with child – Exceptions – Confidentiality of identifying information regarding reporting individual – Internal review and report

Penalty: KRS 620.990(1)

(1) Anyone acting upon reasonable cause in the making of a report or acting under KRS 620.030 to 620.050 in good faith shall have immunity from any liability, civil or criminal, that might otherwise be incurred or imposed. Any such participant shall have the same immunity with respect to participation in any judicial proceeding resulting from such report or action. However, any person who knowingly makes a false report and does so with malice shall be guilty of a Class A misdemeanor.
(2) Any employee or designated agent of a children's advocacy center shall be immune from any civil liability arising from performance within the scope of the person's duties as provided in KRS 620.030 to 620.050. Any such person shall have the same immunity with respect to participation in any judicial proceeding. Nothing in this subsection shall limit liability for negligence. Upon the request of an employee or designated agent of a children's advocacy center, the Attorney General shall provide for the defense of any civil action brought against the employee or designated agent as provided under KRS 12.211 to 12.215.
(3) Neither the husband-wife nor any professional-client/patient privilege, except the attorney-client and clergy-penitent privilege, shall be a ground for refusing to report under this section or for excluding evidence regarding a dependent, neglected, or abused child or the cause thereof, in any judicial proceedings resulting from a report pursuant to this section. This subsection shall also apply in any criminal proceeding in District or Circuit Court regarding a dependent, neglected, or abused child.
(4) Upon receipt of a report of an abused, neglected, or dependent child pursuant to this chapter, the cabinet as the designated agency or its delegated representative shall initiate a prompt investigation or assessment of family needs, take necessary action, and shall offer protective services toward safeguarding the welfare of the child. The cabinet shall work toward

preventing further dependency, neglect, or abuse of the child or any other child under the same care, and preserve and strengthen family life, where possible, by enhancing parental capacity for adequate child care. If an oral or written report, including but not limited to electronic submissions, alleging that a child is dependent, neglected, or abused is made pursuant to this section, and the cabinet determines that the report does not meet criteria for an investigation, the cabinet shall refer the family to appropriate community-based child and family service agencies for services to preserve and strengthen family life in accordance with the requirements in 42 U.S.C. sec. 5106a.

(5) The report of suspected child abuse, neglect, or dependency and all information obtained by the cabinet or its delegated representative, as a result of an investigation or assessment made pursuant to this chapter, except for those records provided for in subsection (6) of this section, shall not be divulged to anyone except:
   (a) Persons suspected of causing dependency, neglect, or abuse;
   (b) The custodial parent or legal guardian of the child alleged to be dependent, neglected, or abused;
   (c) Persons within the cabinet with a legitimate interest or responsibility related to the case;
   (d) Other medical, psychological, educational, or social service agencies, child care administrators, corrections personnel, or law enforcement agencies, including the county attorney's office, the coroner, and the local child fatality response team, that have a legitimate interest in the case;
   (e) A noncustodial parent when the dependency, neglect, or abuse is substantiated;
   (f) Members of multidisciplinary teams as defined by KRS 620.020 and which operate pursuant to KRS 431.600;
   (g) Employees or designated agents of a children's advocacy center; or
   (h) Those persons so authorized by court order; or
   (g) The external child fatality and near fatality review panel established by KRS 620.055.

(6) (a) Files, reports, notes, photographs, records, electronic and other communications, and working papers used or developed by a children's advocacy center in providing services under this chapter are confidential and shall not be disclosed except to the following persons:
      1. Staff employed by the cabinet, law enforcement officers, and Commonwealth's and county attorneys who are directly involved in the investigation or prosecution of the case;
      2. Medical and mental health professionals listed by name in a release of information signed by the guardian of the child, provided that the information shared is limited to that necessary to promote the physical or psychological health of the child or to treat the child for abuse-related symptoms; and
      3. The court and those persons so authorized by a court order.

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(7) Nothing in this section shall prohibit a parent or guardian from accessing records for his or her child providing that the parent or guardian is not currently under investigation by a law enforcement agency or the cabinet relating to the abuse of a child.

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(11) Identifying information concerning the individual initiating the report under KRS 620.030 shall not be disclosed except:
   (a) To law enforcement officials that have a legitimate interest in the case;
   (b) To the agency designated by the cabinet to investigate or assess the report;
   (c) To members of multidisciplinary teams as defined by KRS 620.020 that operated under KRS 431.600; or
   (d) Under a court order, after the court has conducted an in camera review of the record of the state related to the report and has found reasonable cause to believe that the reporter knowingly made a false report.

(12)(a) Information may be publicly disclosed by the cabinet in a case where child abuse or neglect has resulted in a child fatality or near fatality.

(b) The cabinet shall conduct an internal review of any case where child abuse or neglect has resulted in a child fatality or near fatality and the cabinet had prior involvement with the child or family. The cabinet shall prepare a summary that includes an account of:
   1. The cabinet's actions and any policy or personnel changes taken or to be taken, including the results of appeals, as a result of the findings from the internal review; and
   2. Any cooperation, assistance, or information from any agency of the state or any other agency, institution, or facility providing services to the child or family that were requested and received by the cabinet during the investigation of a child fatality or near fatality.

(c) The cabinet shall submit a report by September 1 of each year concerning an analysis of all summaries of internal reviews occurring during the previous year and an analysis of historical trends to the Governor, the General Assembly, and the state child fatality review team created under KRS 211.684.

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KRS 620.095 Restriction on placement of nonoffender

A nonoffender, as defined in KRS 600.020, shall not be place in secure or nonsecure detention.

KRS 620.990 Penalty

(1) Except as otherwise provided in this chapter, any person intentionally violating the provisions of this chapter shall be guilty of a Class B misdemeanor.
(2) The use of information by public officers and by defense counsel for purposes of investigation and trial of cases or other proceedings under the provisions of KRS Chapters 600 to 645 or in any criminal prosecution or appeal shall not constitute a violation of this chapter.

KRS CHAPTER 630
STATUS OFFENDERS
(Selected Sections)

KRS 630.020 Jurisdiction of court

The court shall have exclusive jurisdiction in proceedings concerning any child living, or found within the district, who allegedly:
(1) Has been an habitual runaway from his parent or person exercising custodial control or supervision of the child;
(2) Is beyond the control of the school or beyond the control of parents as defined in KRS 600.020;
(3) Has been an habitual truant from school; or
(4) Has committed an alcohol offense under KRS 244.085.

KRS 630.030 Circumstances under which child may be taken into custody by peace officer

Under the provisions of this chapter a child may be taken into custody by any peace officer:
(1) Pursuant to an order of the court for failure to appear before the court for a previous status offense; or
(2) If there are reasonable grounds to believe that the child has been an habitual runaway from his parent or person exercising custodial control or supervision of the child.

KRS 630.040 Duties of person taking child into custody

Any person taking a child into custody, with all reasonable speed, shall in this sequence:
(1) Deliver the child suffering from a physical condition or illness which requires prompt medical treatment to a medical facility or physician. Children suspected of having a mental or emotional illness shall be evaluated in accordance with the provisions of KRS Chapter 645;

(2) Contact a court designated worker who shall have the responsibility for determining appropriate placement pursuant to KRS 610.200(5);
(3) If the court designated worker determines that the placements designated in KRS 610.200(5) and subsection (1) of this section have been exhausted or are not appropriate, a child may be delivered to a secure juvenile detention facility, a juvenile holding facility, or a nonsecure setting approved by the Department of Juvenile Justice pending the detention hearing;
(4) When the child has not been released to his parents or person exercising custodial control or supervision, the person taking the child into custody shall make a reasonable effort promptly to give oral notice to the parent or person exercising custodial control or supervision of the child;
(5) In all instances the peace officer taking a child into custody shall provide a written statement to the court designated worker of the reasons for taking the child into custody;
(6) If the child is placed in an emergency shelter or medical facility, during the adjudication and disposition of his case, the court may order his parents to be responsible for the expense of his care; and
(7) The peace officer taking the child into custody shall within three (3) hours of taking a child into custody file a complaint with the court, stating the basis for taking the child into custody and the reason why the child was not released to the parent or other adult exercising custodial control or supervision of the child, relative or other responsible adult, a court designated agency, an emergency shelter or medical facility. Pending further disposition of the case, the court or the court designated worker may release the child to the custody of any responsible adult who can provide adequate care and supervision.

KRS 630.990 Penalty

Any person who intentionally violates any provision of this chapter shall be guilty of a Class B misdemeanor.

EDITOR'S NOTE: *KRS Chapters 635 (Public Offenders) and 640 (Youthful Offenders) relate primarily to court matters generally outside the control or influence of the ordinary law enforcement officer and have been omitted to conserve space.*

KRS CHAPTER 645
MENTAL HEALTH ACT
(Selected Sections)

KRS 645.020 Definitions for chapter

The definitions in KRS Chapter 600 shall apply to this chapter. In addition, unless the context requires otherwise:
(1) "**Convalescent leave**" means an authorized release not to exceed ninety (90) days of a child admitted to a hospital under this chapter;
(2) "**Danger to self or others**" means that it is shown by substantial proof that in the near future the child may attempt suicide or may cause substantial physical harm or threat of substantial physical harm to self or others, as evidenced by recent threats or overt acts, including acts by which the child deprives self or others of the basic means of survival, including reasonable shelter, food or clothing. In determining whether a child presents a danger to self, factors to be considered shall include, but shall not be limited to, an established pattern of past dangerous behavior;
(3) "**Hospital**" means a licensed private or public institution, health care facility, or part thereof, approved by the cabinet to treat children who are mentally ill;
(4) "**Least restrictive alternative**" means the treatment and conditions of treatment for a child which, separately and in combination:
    (a) Are no more harsh, hazardous or intrusive than necessary to achieve acceptable treatment objectives for the child; and

(b) Involve no inpatient care restrictions on physical movement except as reasonably necessary for the administration of treatment or for the protection of the child or others from physical injury.

In determining the least restrictive alternative, factors to be considered shall include, but not be limited to, the likelihood, based on the child's prior outpatient treatment, that the child will benefit from outpatient treatment;

(5) "**Mental health facility**" means a residential or nonresidential service providing children psychological or psychiatric treatment for emotional, mental, or behavioral problems;

(6) "**Mental health group home**" means a community-based facility established to serve not less than four (4) nor more than eight (8) mentally ill children with a treatment program developed and supervised by a qualified mental health professional. Mental health group homes shall not be adjacent to or part of a residential treatment facility or a hospital;

(7) "**Mental health professional**" means:
(a) A physician licensed under the laws of Kentucky to practice medicine or osteopathy, or a medical officer of the government of the United States while engaged in conducting mental health services;
(b) A psychiatrist licensed under the laws of Kentucky to practice medicine or osteopathy, or a medical officer of the government of the United States engaged in conducting mental health services;
(c) A psychologist, a psychological practitioner, a certified psychologist, or a psychological associate, licensed under the provisions of KRS Chapter 319;
(d) A registered nurse licensed under the provisions of KRS Chapter 314 engaged in providing mental health services;
(e) A licensed clinical social worker licensed under the provisions of KRS 335.100, or a certified social worker licensed under the provisions of KRS 335.080 engaged in providing mental health services;
(f) A marriage and family therapist licensed under the provisions of KRS 335.300 to 335.399 engaged in providing mental health services;
(g) A professional counselor credentialed under the provisions of KRS Chapter 335.500 to 335.599 engaged in providing mental health services;
(h) An art therapist certified under KRS 309.130 engaged in providing mental health services; or
(i) A fee-based pastoral counselor certified under the provisions of KRS 335.600 to 335.699 engaged in providing mental health services; and

(8) "**Mentally ill child**" means that considering the child's age and development, the child has a substantially impaired capacity to use self-control, judgment or discretion in the conduct of the child's affairs and social relations, the child's behavior is maladaptive or the child exhibits recognized emotional symptoms which can be related to physiological, psychological or social factors.

645.090 Criteria for hospitalization.

The burden of proof at the certification and recertification hearings under this chapter shall be on the petitioner to show, by clear and convincing evidence, that:
(1) The child is mentally ill or has symptoms of mental illness;
(2) The child is dangerous to himself or others;
(3) The child can benefit from treatment available only at a hospital; and
(4) No less restrictive alternative is available which will be effective in treating the child.

KRS 645.120 Emergency hospitalization

(1) If, as a result of mental illness, a child appears in need of immediate hospitalization for observation, diagnosis, or treatment, a peace officer or any interested person may either take the child to a hospital, mental health facility, or another less restrictive alternative or file a petition for emergency hospitalization. Upon filing a petition, a peace officer may place a child up to twenty-four (24) hours, excluding weekends and holidays, in a hospital or mental health facility or another less restrictive alternative. The peace officer shall notify the court

designated worker of the child's placement. Within twelve (12) hours, the peace officer shall, if no other party can be found, file a petition, unless the child has been taken to a hospital. No child held under this section shall be held in a secure juvenile detention facility unless a status offense action or public offense action is also pending.

(2) On the basis of a prompt examination and any other available information concerning a child who is present at or presented at a hospital, an authorized staff physician shall determine within twenty-four (24) hours if the child needs immediate hospitalization after which the child shall be released within seventy-two (72) hours unless the child is held pursuant to other provisions of this chapter.
   (a) The hospital may accept physical custody of the child and may request the person who brought the child to remain on the premises until the authorized staff physician makes a determination;
   (b) If the authorized staff physician determines that the child, as a result of mental illness, appears to need immediate hospitalization, the physician shall admit the child for observation, diagnosis, and treatment, and shall, if he deems it appropriate, file a certification petition. If the proponent of emergency hospitalization is not the child's legal custodian, the hospital shall immediately notify the child's parent or other person exercising custodial control or supervision including, if applicable, the state; and
   (c) If the authorized staff physician determines the child does not need immediate hospitalization, the physician shall release the child to a parent, person exercising custodial control or supervision, or an agency having custody of the child and make whatever recommendations or referrals the physician deems appropriate.

(3) The petition for emergency hospitalization shall state the petitioner's belief, including its factual basis, that the child, as a result of mental illness, needs immediate hospitalization for observation, diagnosis, and treatment. Within twenty-four (24) hours of the filing, exclusive of weekends and holidays, the court shall on an ex parte basis, which may be by telephone:
   (a) Deny the petition; or
   (b) Issue an order authorizing a peace officer to transport the child to a designated hospital or mental health facility for evaluation for emergency hospitalization, at which time two (2) qualified mental health professionals, at least one (1) of whom is an authorized staff physician, shall follow the procedures specified in subsection (2) of this section. If the child is committed to the cabinet or will be treated by the cabinet, the court shall notify the cabinet of its order at once and shall also advise the cabinet of the sex and condition of the child who is to be transported. The peace officer may, upon agreement of a person authorized by the peace officer, authorize the cabinet, a private agency on contract with the cabinet, or an ambulance service designated by the cabinet to transport the child to a hospital or mental health facility. The cabinet shall pay the transportation costs of the child and the official transporting the child, both to and from the designated hospital or mental health facility, in accordance with an administrative regulation promulgated under KRS Chapter 13A. If, after evaluation, the qualified mental health professional finds that the child does not meet the criteria for involuntary hospitalization, the child shall be released immediately and transported back to the child's home county by an appropriate means of transportation.

(4) An emergency hospitalization of a child may not exceed seven (7) days, exclusive of weekends and holidays, unless a certification petition is filed before the seven (7) days expire.

KRS 645.280 Place where child to be held

(1) No child held under the provisions of this chapter shall be held in a secure juvenile detention facility unless a status offense action or public offense action is also pending. No peace officer or any other person shall bring a status offense action or a public offense action against a child who is mentally ill and in need of hospitalization pursuant to this chapter solely or primarily for the purpose of avoiding transporting the child to a hospital, mental health facility, or other less restrictive alternative.

(2) If, after evaluation, the qualified mental health professional finds that the child does not meet the criteria for involuntary hospitalization and the peace officer has reason to believe that the child has committed a status offense or public offense, the peace officer may proceed in accordance with KRS 610.190 to 610.290.

KRS 645.990 Penalty

Any person who intentionally causes the unwarranted hospitalization of any individual under this chapter or the denial to any individual of any of the rights accorded to him under this chapter or the administrative regulations issued thereunder shall be guilty of a Class A misdemeanor.

KRS CHAPTER 186
LICENSING OF MOTOR VEHICLES, OPERATORS, AND TRAILERS
(Selected Sections)

GENERAL PROVISIONS

KRS 186.010 Definitions

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(2) **"Highway"** means every way or place of whatever nature when any part of it is open to the use of the public, as a matter of right, license, or privilege, for the purpose of vehicular traffic.

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(4) **"Motor vehicle"** means in KRS 186.020 to 186.260, all vehicles, as defined in paragraph (a) of subsection (8) of this section, which are propelled otherwise than by muscular power. As used in KRS 186.400 to 186.640, it means all vehicles, as defined in paragraph (b) of subsection (8) of this section, which are self-propelled. "Motor vehicle" shall not include a moped as defined in this section, but for registration purposes shall include low-speed vehicles and military surplus vehicles as defined in this section and vehicles operating under KRS 189.283;

(5) **"Moped"** means either a motorized bicycle whose frame design may include one (1) or more horizontal crossbars supporting a fuel tank so long as it also has pedals, or a motorized bicycle with a step-through type frame which may or may not have pedals rated no more than two (2) brake horsepower, a cylinder capacity not exceeding fifty (50) cubic centimeters, an automatic transmission not requiring clutching or shifting by the operator after the drive system is engaged, and capable of a maximum speed of not more than thirty (30) miles per hour.

(6) **"Operator"** means any person in actual control of a motor vehicle upon a highway.

(7) (a) **"Owner"** means a person who holds the legal title of a vehicle or a person who pursuant to a bona fide sale has received physical possession of the vehicle subject to any applicable security interest.

* * * * *

(8) (a) **"Vehicle,"** as used in KRS 186.020 to 186.260, includes all agencies for the transportation of persons or property over or upon the public highways of this Commonwealth and all vehicles passing over or upon said highways, except electric low-speed scooters, road rollers, road graders, farm tractors, vehicles on which power shovels are mounted, such other construction equipment customarily used only on the site of construction and which is not practical for the transportation of persons or property upon the highways, such vehicles as travel exclusively upon rails, and such vehicles as are propelled by electric power obtained from overhead wires while being operated within any municipality or where said vehicles do not travel more than five (5) miles beyond the city limit of any municipality.

(b) As used in KRS 186.400 to 186.640, "vehicle" means every device in, upon or by which any person or property is or may be transported or drawn upon a public highway, except electric low-speed scooters, devices moved by human and animal power or used exclusively upon stationary rails or tracks, or which derives its power from overhead wires.

(9) KRS 186.020 to 186.270 apply to motor vehicle licenses. KRS 186.400 to 186.640 apply to operator's licenses.

(10) **"Dealer"** means any person engaging in the business of buying or selling motor vehicles.

(11) **"Commercial vehicles"** means all motor vehicles that are required to be registered under the terms of KRS 186.050, but not including vehicles primarily designed for carrying passengers and having provisions for not more than nine (9) passengers (including driver), motorcycles, sidecar attachments, pickup trucks and passenger vans which are not being used for commercial or business purposes, and motor vehicles registered under KRS 186.060.

(12) "**Resident**" means any person who has established Kentucky as his or her state of domicile. Proof of residency shall include, but not be limited to, a deed or property tax bill, utility

agreement or utility bill, or rental housing agreement. The possession by an operator of a vehicle of a valid Kentucky operator's license shall be prima-facie evidence that the operator is a resident of Kentucky.

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(14)**"Instruction permit"** includes both motor vehicle instruction permits and motorcycle instruction permits.

(15)**"Motorcycle"** means any motor driven vehicle that has a maximum speed that exceeds fifty (50) miles per hour, has a seat or saddle for the use of the operator and designed to travel on not more that three (3) wheels in contact with the ground, including vehicles on which the operator and passengers ride in an enclosed cab. Only for purposes of registration "motorcycle" shall include a motor scooter, an alternative-speed motorcycle and an autocycle as defined in this section, but shall not include a tractor, or a moped as defined in this section.

(16)**"Low-speed vehicle"** means a motor vehicle that

(a) Is self-propelled using an electric motor, combination driven motor, or a combination thereof;

(b) Is four (4) wheeled; and

(c) Is designed to operate at a speed not to exceed twenty-five (25) miles per hour as certified by the manufacturer.

(17)**"Alternative-speed motorcycle"** means a motorcycle that:

(a) Is self-propelled using an electric motor;

(b) Is three (3) wheeled;

(c) Has a fully enclosed cab and includes at least one door for entry; and

(d) Is designed to operate at a speed not to exceed forty (40) miles per hour as certified by the manufacturer; and

(e) Is not an autocycle as defined in this section.

(18)**"Multiple-vehicle driving range"** means an enclosed area that is not part of a highway or otherwise open to the public on which a number of motor vehicles may be used simultaneously to provide driver training under the supervision of one (1) or more driver training instructors.

(19) **"Autocycle"** means any motor vehicle that:

(a) Is equipped with a seat that does not require the operator to straddle or sit astride it;

(b) Is designed to travel on three (3) wheels in contact with the ground;

(c) Is designed to operate at a speed that exceeds forty (40) miles per hour as certified by the manufacturer;

(d) Allows the operator and passenger to ride either side-by-side or in tandem in a seating area that may be enclosed with a removable or fixed top;

(e) Is equipped with a three (3) point safety belt system;

(f) May be equipped with manufacturer-installed air bags or a roll cage;

(g) Is designed to be controlled with a steering wheel and pedals; and

(h) Is not an alternative-speed motorcycle as defined in this section.

(20) **"Military surplus vehicle"** means a multipurpose wheeled surplus military vehicle that:

(a) Is not operated using continuous tracks;

(b) Was originally manufactured for and sold directly to the Armed Forces of the United States; and

(c) Was originally manufactured under the federally mandated requirements set forth in 49 C.F.R. sec. 571.7;

* * * * *

(24)**"Motor scooter"** means a low-speed motorcycle that is:

(a) Equipped with wheels greater than sixteen (16) inches in diameter;

(b) Equipped with an engine greater than fifty (50) cubic centimeters;

(c) Designed to operate at a speed not to exceed fifty (50) miles per hour;

(d) Equipped with brake horsepower of two (2) or greater; and

(e) Equipped with a step-through frame or a platform for the operator's feet.

MOTOR VEHICLE LICENSES

KRS 186.020 Registration requirement – Application for registration – Application and other documents to be sent to Transportation Cabinet – Renewal by mail – Extension of renewal period for military personnel stationed outside the United States

Penalty: KRS 186.990(1)

(1) Before the owner of a motor vehicle, or street-legal special purpose vehicle as defined in KRS 186.077, may operate it or permit its operation upon a highway, the owner shall apply for registration . . . , except that a person who purchases a motor vehicle, or brings a motor vehicle into the Commonwealth from another state shall make application for registration within fifteen (15) days. The bill of sale or assigned title must be in the motor vehicle during this fifteen (15) day period. . . .

(2) After that, the owner of any motor vehicle registered under KRS 186.050(1) or (2) shall register his motor vehicle on or before the date on which his certificate of registration expires. If, before operating the motor vehicle in this state, the owner registers it at some later date and pays the fee for the full year, he will be deemed to have complied with the law. Insofar as the owner is concerned, registration with the clerk shall be deemed to be registration with the cabinet.

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KRS 186.070 Registration of manufacturers and dealers – Dealer's plates and stickers – Names of drivers authorized to use dealer's plates to be available to law enforcement agencies – Revocation of licenses – Appeal

Penalty: KRS 186.990(9)

(1) (a) Every . . . dealer in . . . motor vehicles in this state shall register with each county clerk in which his principal office or place of business and branch office, sub-agent, or agency is located . . . .

* * * * *

(c) A motor vehicle bearing dealer's plates may be used on the highways only by the following people:

1. A licensed dealer, bona fide salesman, or employee of the dealer;
2. A . . . dealer licensed pursuant to the laws of this state transporting a motor vehicle to his place of retail business from a manufacturer or wholesale dealer in motor vehicles; and
3. A bona fide customer of a licensed dealer, or the customer's employees when a motor vehicle is being demonstrated. This provision shall be limited to one (1) trip or demonstration to the same prospective customer.

* * * * *

(e) As used in this section, "**bona fide salesman or employee**" means a licensed salesman, or an employee, who is actively engaged in and devotes a substantial part of his time to the conduct of the dealer business.

(f) A vehicle bearing a dealer plate, except when the vehicle is being transported to a dealer's place of business from a manufacturer, shall have, in the case of a new motor vehicle, a "monroney" sticker attached to the vehicle, or, in the case of a used motor vehicle, a Federal Trade Commission buyer's guide sticker attached to the vehicle.

(2) (a) * * * * *

(b) The names of each dealer and each bona fide salesman and employee shall be entered by the clerk into the AVIS where it will be readily available to law enforcement agencies. . . . .

* * * * *

KRS 186.072 Commercial motor vehicle temporary registration placard – Application process – Uses – Record of use – Activation

Penalty: KRS 186.990(2)

(1) For the purposes of this section, "motor truck" and "truck tractor" shall have the same meaning as established in KRS 189.010.

(2) Any manufacturer, dealer, or distributor engaged in the business of manufacturing, selling, or customizing truck tractors or motor trucks may obtain a commercial motor vehicle temporary registration placard from the Department of Vehicle Regulation. The fee for each placard shall be one hundred dollars ($100) per placard and each applicant shall specify the number of placards to be issued. A company may make additional requests for temporary placards at any time it exhausts the placards supplied by the department.

(3) The commissioner shall prescribe the application form for the commercial vehicle temporary registration placard, require each applicant to submit proof of eligibility to receive the placard, and certify that the applicant has need of the placard in the ordinary course of business, and may request other information as part of the application process.

(4) The commercial vehicle temporary registration placard shall be placed on a truck tractor or motor truck in the same manner as a regular license plate. The temporary placard shall be issued if a permanent registration issued pursuant to KRS 186.050 or temporary registration issued pursuant to KRS 186A.100 cannot be obtained.

(5) The use of a commercial vehicle temporary placard shall be limited to the following activities:
   (a) A demonstration of the truck tractor or motor truck to a prospective purchaser;
   (b) The transportation of the truck tractor or motor truck to a facility engaged in the customizing of a motor vehicle for eventual use on the highway;
   (c) The transportation of the truck tractor or motor truck to a trade show or other activity designed to promote the selling of the product; or
   (d) The transportation of the truck tractor or motor truck by a purchaser to a location outside Kentucky, provided that the truck tractor or motor truck is not eligible to be registered in Kentucky.

(6) Each manufacturer, dealer, or distributor receiving the temporary placards shall maintain a record of use for each temporary placard to include the following:
   (a) The make and model of each motor vehicle and the vehicle identification number or other identification number of each vehicle on which a placard is used;
   (b) The date the placard was issued and the registration number of the placard;
   (c) The address of the final destination and reason for movement of the truck tractor or motor truck receiving the temporary placard; and
   (d) A record of insurance coverage or a binder for insurance coverage issued to the recipient of the temporary placard.

(7) A commercial vehicle temporary placard shall not be activated until it is placed upon the truck tractor or motor truck and used in a manner as authorized by subsection (5) of this section. The commercial vehicle temporary placard shall expire thirty (30) days after it is activated and placed in use on a truck tractor or motor truck and shall be designed in a manner that an expiration date shall be noted clearly on the face of the placard.

KRS 186.073 Commercial trailer temporary registration placard – Application process – Uses – Record of use – Activation

Penalty: KRS 186.990(1)

(1) For the purposes of this section, "semitrailer" and "trailer" shall have the same meaning as established in KRS 186.650.

(2) Any manufacturer, dealer, or distributor engaged in the business of manufacturing, selling, or customizing commercial semitrailers or commercial trailers may obtain a commercial trailer temporary registration placard from the Department of Vehicle Regulation. The fee for each placard shall be five dollars ($5) per placard and each applicant shall specify the number of placards to be issued. A company may make additional requests for temporary placards at any time it exhausts the placards supplied by the department.

(3) The commissioner shall prescribe the application form for the commercial trailer temporary registration placard, require each applicant to submit proof of eligibility to receive the placard, and certify that the applicant has need of the placard in the ordinary course of business, and may request other information as part of the application process.
(4) The commercial trailer temporary registration placard shall be placed on a semitrailer or trailer in the same manner as a regular trailer license plate. The temporary placard shall be issued if a permanent registration issued pursuant to KRS 186.655 cannot be obtained.
(5) The use of a commercial trailer temporary registration placard shall be limited to the following activities:
  (a) A demonstration of the semitrailer or trailer to a prospective purchaser;
  (b) The transportation of the semitrailer or trailer to a trade show or other activity designed to promote the selling of the product;
  (c) The transportation of the semitrailer or trailer to a trade show or other activity designed to promote the selling of the product;
  (d) The transportation of the semitrailer or trailer by a purchaser to a location outside Kentucky, provided that the semitrailer or trailer is not eligible to be registered in Kentucky; or
  (e) Transportation of a trailer or semitrailer from the manufacturer to a place of business in Kentucky in order to obtain a permanent registration issued pursuant to KRS 186.655.
(6) Each manufacturer, dealer, or distributor receiving the temporary placards shall maintain a record of use for each temporary placard to include the following:
  (a) The make and model of each semitrailer or trailer and the vehicle identification number or other identification number of each vehicle on which a placard is used;
  (b) The date the placard was issued and the registration number of the placard; and
  (c) The address of the final destination and reason for movement of the semitrailer or trailer receiving the temporary placard.
(7) A commercial trailer temporary registration placard shall not be activated until it is placed upon the semitrailer or trailer and used in a manner as authorized by subsection (5) of this section. The commercial trailer temporary registration placard shall expire thirty (30) days after it is activated and placed in use on a semitrailer or trailer and shall be designed in a manner that an expiration date shall be noted clearly on the face of the placard.

KRS 186.077 Street-legal special purpose vehicles -- Requirements -- Prohibitions -- Registration, inspection, and renewal -- Administrative regulations.

(1) As used in this section:
  (a) "Local government" means a city, county, charter county government, urban-county government, consolidated local government, or unified local government;
  (b) 1. "Special purpose vehicle" means an all-terrain vehicle, utility terrain vehicle, minitruck, pneumatic-tired military vehicle, or full-size special purpose-built vehicle, including a vehicle that is self-constructed or built by the original equipment manufacturer and a vehicle that has been modified.
    2. "Special purpose vehicle" does not include a low-speed vehicle as defined in KRS 186.010; and
  (c) 1. "Street-legal special purpose vehicle" means a special purpose vehicle that meets the requirements of this section and is equipped with all of the following:
    a. One (1) or more headlamps;
    b. One (1) or more tail lamps;
    c. One (1) or more brake lamps;
    d. A trail lamp or other lamp constructed and placed to illuminate the registration plate with a white light;
    e. One (1) or more red reflectors on the rear of the vehicle;
    f. An amber electric turn system, one (1) on each side of the front of the vehicle;
    g. Amber or red electric turn signals on the rear of the vehicle;
    h. A braking system, other than a parking brake;
    i. A horn or other warning device;

j. A working muffler;
k.Rearview mirrors on the right and left side of the driver;
l. A windshield, unless the operator of the vehicle wears eye protection while operating the vehicle;
m. A speedometer, illuminated for nighttime operation;
n. A roll bar or roll cage;
o. For multi-passenger vehicles, a seatbelt assembly that conforms to the federal motor vehicle safety standard provided in 49 C.F.R. sec. 571.209 for each designated seating position; and
p. Tires that have at least two thirty-seconds (2/32) of an inch or greater tire tread.

2. "Street-legal special purpose vehicle" does not include a low-speed vehicle as defined in KRS 186.010 or a vehicle primarily used for farm or agricultural activities.

(2) A person shall not operate a street-legal special purpose vehicle on a highway if:
(a) The highway is located within the jurisdictional boundaries of a local government where the operation of special purpose vehicles has not been allowed by local ordinance;
(b) The highway is a controlled-access system, including but not limited to an interstate or parkway; or
(c) The United States Department of Agriculture prohibits special purpose vehicles where the highway is located.

(3) Nothing in this section authorizes the operation of a street-legal special purpose vehicle in an area that is not open to motor vehicle use.

(4) Street-legal special purpose vehicles are prohibited from traveling a distance greater than twenty (20) miles on a highway displaying centerline pavement markings.

(5) Minitrucks shall not be operated as street-legal special purpose vehicles on a highway that has been constructed pursuant to a federal highway program.

(6) Except as otherwise provided in this section, a street-legal special purpose vehicle shall:
(a) Be registered in accordance with KRS 186.020;
(b) Be insured by the owner or operator for the payment of tort liabilities in the same form and amounts as set forth in KRS 304.39-110 for motorcycles; and
(c) Comply with all other requirements in this chapter.

(7) Upon registration of any street-legal special purpose vehicle under KRS 186.020, the county clerk shall issue the owner a motorcycle registration plate for the vehicle.

(8) Street-legal special purpose vehicles shall have an inspection completed by a certified inspector as required by KRS 186A.115.

(9) An applicant renewing his or her registration for a street-legal special purpose vehicle pursuant to KRS 186.020 shall certify that the street-legal special purpose vehicle still meets all of the equipment requirements in subsection (1)(c)1. of this section.

(10)The Transportation Cabinet shall promulgate administrative regulations in accordance with KRS Chapter 13A to implement this section.

KRS 186.140 Reciprocity for nonresidents
Penalty: KRS 186.990(1)

Except as provided in KRS 281.835 and 281.836, a nonresident owner, from a state not requiring registration of nonresidents temporarily in it, who has complied with the laws of the state of his residence relating to registration of motor vehicles, and who displays the requisite plates and holds the requisite receipt or certificate of registration as required by his resident state, shall be exempt from registration in this state for the same period of time as is granted to nonresident owners by the laws and regulations of his state. Registration in any other state shall not relieve any owner resident in this state from the penalties provided in KRS 186.990.

KRS 186.150 Residents not to use license of other states
Penalty: KRS 186.990(9)

(1) No resident operating a motor vehicle on the highways, shall secure or license the motor vehicle in any state other than Kentucky unless so licensed in conformity with a motor vehicle reciprocal arrangement or under the international registration plan.

G6(2) The use of a license of any state other than Kentucky by a resident of this state on his car driven over Kentucky highways shall be prima facie evidence of guilt.

KRS 186.170 Display of registration plates, insignia – Decals to cover corporation trademark – Registration years

Penalty: KRS 186.990(1)

(1) Except as provided in this subsection and in KRS 186.045, the owner shall have the receipt issued by the cabinet through the county clerk constantly in his possession, and shall display the registration plate conspicuously upon the rear of the motor vehicle, except that the registration plate upon a semitrailer-tractor shall be displayed upon the front of the tractor. The owner's copy, or a reproduced copy thereof, of the registration receipt of every motor vehicle, except motorcycles, licensed under KRS 186.050 shall be kept in the vehicle at all times and shall be available for inspection. Plates shall be kept legible at all times and the rear plate shall be illuminated when being operated during the hours designated in KRS 189.030. No rim, frame, or other covering around the plate shall in any way obscure or cover any lettering or decal on the plate . . ..

* * * * *

KRS 186.181 Seizure of cancelled plates by Department of Kentucky State Police

. . . . . It shall be the duty of all members of the State Police and of all peace officers to seize any registration plate bearing a canceled number and to report such seizure to the appropriate department.

OPERATOR'S LICENSE

KRS 186.401 Definitions of "operator's license" and "commercial driver's license"

As used in KRS 186.400 to 186.640, a **driver's license** shall mean an operator's license issued pursuant to KRS 186.412 and a **commercial driver's license** shall mean a license issued pursuant to KRS Chapter 281A.

KRS 186.410 Operator's licenses – Requirements and issuance – Nondriver identification cards – Validity – Driver training programs

Penalty: KRS 186.990(3)

(1) Except as provided in subsection (6) of this section, every person except those exempted by KRS 186.420 and 186.430 shall before operating a motor vehicle, motorcycle, or moped upon a highway secure an operator's license as provided in this chapter.

* * * * *

(6) When an automated driving system as defined in KRS 186.760 is installed on a motor vehicle and is engaged, and the motor vehicle is operating as a fully autonomous vehicle as defined in KRS 186.760, the:

(a) Owner of the motor vehicle is considered the operator of the fully autonomous vehicle and shall comply with applicable traffic or motor vehicle laws, regardless of whether the owner is physically present in the vehicle while the vehicle is operating; and

(b) Automated driving system is considered to be licensed to operate the vehicle and a licensed human operator is not required to operate the motor vehicle.

KRS 186.412 License application – * * * * * - Limitation on number of licenses * * * * *

Penalty: KRS 186.990(3)

(1) (a) A person who was under the age of eighteen (18) years at the time of application for an instruction permit and is eighteen (18) years of age or older may apply for an operator's license to operate a motor vehicle, motorcycle, or moped if the person has possessed the valid instruction permit for at least one hundred eighty (180) days and has completed a driver training program under KRS 186.410(4).

(b) A person who has attained the age of eighteen (18) years and is under the age of twenty-

one (21) at the time of application for an instruction permit may apply for an operator's license to operate a motor vehicle, motorcycle, or moped if the person has possessed the valid instruction permit for at least one hundred eighty (180) days.

(c) A person who is at least twenty-one (21) years of age at the time of application for an instruction permit may apply for an operator's license to operate a motor vehicle, motorcycle, or moped if the person has possessed the valid instruction permit for at least thirty (30) days. * * * * *

(16)A person shall not have more than one (1) license.

* * * * *

KRS 186.415 Application of operator's license by military enlistee—Conditions

(1) Notwithstanding KRS 186.450, 186.452, and 186.454, a person who is under eighteen (18) years of age may apply for an operator's license if the person has:
   (a) Held an instruction permit for a minimum of one hundred eighty (180) days; and
   (b) Enlisted in the United States Armed Forces for a state National Guard.

(2) An individual eligible to apply for an operator's license under this section shall present proof of enlistment at the time of application.

KRS 186.420 Exemptions of operators of road or farm machinery and persons in armed forces

(1) No person need obtain an operator's license to operate a road roller, road machinery or any tractor or implement of husbandry temporarily drawn or propelled on the highways.

(2) Every person in the service of the Army, Navy or Marine Corps of the United States, when furnished with an operator's permit from the United States, shall be exempt from an operator's license when operating an official vehicle in the course of his service.

KRS 186.430 Exemption of nonresidents

(1) Except as provided in subsection (2) or (6) of this section, a person over the age of sixteen (16) who is a United States citizen and who is not a resident of Kentucky may drive in Kentucky for a period of time not to exceed one (1) year from the date the person enters Kentucky if:
   (a) The person possesses a valid license issued by the person's home state;
   (b) The person has the license in his or her immediate possession at all times when operating a vehicle on the highways; and
   (c) The person's home state accords similar privileges to licensed residents of Kentucky.

(2) A person who is a United States citizen but who is not a resident of Kentucky who is enrolled as a full-time or part-time student at a university, college, or technical college located in Kentucky may drive in Kentucky on a valid license issued by the person's state of domicile, and shall not be required to obtain a Kentucky operator's license under this chapter if the person has a student identification card from a university, college, or technical college located in Kentucky in his or her immediate possession at all times when driving in Kentucky.

(3) A person over the age of sixteen (16) who is not a United States citizen and who is legally visiting this country for less than one (1) year may drive in Kentucky on a valid domestic license issued by the person's country of domicile and shall not be required to obtain a Kentucky driver's license.

(4) A person over the age of sixteen (16) who is not a United States citizen, who has not been granted status as a permanent resident of the United States, but is a resident of Kentucky, shall be issued a Kentucky operator's license if the person complies with the requirements of KRS 186.412. . ..

(5) A person whose operator's license or privilege to operate a motor vehicle, motorcycle, or moped in this state has been denied, withdrawn, canceled, suspended, or revoked as provided in KRS 186.400 to 186.640 shall not operate a motor vehicle, motorcycle, or moped in this state under a license, permit, or registration certificate issued by any other jurisdiction during the period of denial, withdrawal, cancellation, suspension, or revocation.

(6) The following persons may drive in Kentucky on a valid operator's license issued by the person's state or U.S. Territory of domicile and shall not be required to obtain a Kentucky operator's license under this chapter if the person is:
   (a) A member of the Armed Forces of the United States stationed in Kentucky who maintains a home of record for military purposes outside of Kentucky;
   (b) The member's spouse; or
   (c) The member's child or stepchild who is sixteen (16) years of age or older and a dependent or under guardianship of the member.

KRS 186.435 Application for operator's license by driver who becomes Kentucky resident – Verification of status in other jurisdiction – procedure for permanent residents

(1) A licensed driver who becomes a Kentucky resident shall, within thirty (30) days of establishing residency, apply for a Kentucky operator's license in the office of the circuit clerk in the county where the person has established his or her domicile.

* * * * *

(3) A person who is not a United States citizen but who has been granted permanent resident status by the United States Department of Justice, Immigration and Naturalization Service, and who is a Kentucky resident, shall follow the same procedures for applying for an original, renewal, transfer, or duplicate operator's license as persons who are United States citizens.

KRS 186.440 Persons ineligible for operator's license – Reinstatement fee and exemption

An operator's license shall not be granted to:
(1) Any person who is not a resident of Kentucky;
(2) Any person under the age of sixteen (16);
(3) Any person under the age of eighteen (18) who holds a valid Kentucky instruction permit issued pursuant to KRS 186.450, but who has not graduated from high school or who is not enrolled and successfully participating in school or who is not being schooled at home, except those persons who satisfy the District Court of appropriate venue pursuant to KRS 159.051(3) that revocation of their license would create an undue hardship. Persons under the age of eighteen (18) shall present proof of complying with the requirements of KRS 159.051;
(4) Any person whose operator's license has been suspended, during the period of suspension;
(5) Any person whose operator's license has been revoked, nor to any nonresident whose privilege of exemption under KRS 186.430 has been refused or discontinued, until the expiration of the period for which the license was revoked, or for which the privilege was refused or discontinued;
(6) Any applicant adjudged incompetent by judicial decree;
(7) Any person who in the opinion of the State Police, after examination, is unable to exercise reasonable and ordinary control over a motor vehicle upon the highways;
(8) Any person who is unable to understand highway warnings or direction signs in the English language;
(9) Any person required by KRS 186.480 to take an examination who has not successfully passed the examination;
(10) Any person required by KRS Chapter 187 to deposit proof of financial responsibility, who has not deposited that proof;
(11) Any person who has not filed a correct and complete application attested to in the presence of a person authorized to administer oaths;
(12) Any person who cannot meet the requirements set forth in KRS 186.411(1) or (3); or
(13) Any person whose operator's license has been suspended or revoked under the provisions of KRS Chapter 186, 187, or 189A until the person has forwarded to the cabinet a reinstatement fee . . .. The provisions of this subsection shall not apply to any person whose license was suspended for failure to meet the conditions set out in KRS 186.411 when, within one (1) year of suspension, the driving privileges of the individuals are reinstated or to any student

who has had his license revoked pursuant to KRS 159.051.

KRS 186.447 Motorcycle operator's license restriction – Three-wheeled motorcycles

The Transportation Cabinet shall establish a restriction on motorcycle operator's licenses which limits the operator to the operation of a three (3) wheeled motorcycle.

KRS 186.450 Instruction permits for motor vehicle and motorcycle – Age requirements – Restrictions on driving with permit

Penalty: KRS 186.990(3)

(1) A person who is at least fifteen (15) years of age may apply for an instruction permit to operate a motor vehicle. A person who possesses a valid intermediate motor vehicle operators' license issued under KRS 186.452 or a person who is at least eighteen (18) years of age may apply for an instruction permit to operate a motorcycle. A holder of either a motor vehicle or motorcycle instruction permit may also operate a moped under that permit...

* * * * *

(3) (a) An instruction permit to operate a motor vehicle shall be valid for four (4) years and may be renewed. An instruction permit to operate a motorcycle shall be valid for one (1) year and may be renewed one (1) time.

(b) Except as provided in KRS 186.415, a person who has attained the age of sixteen (16) years and is under the age of eighteen (18) years shall have held an instruction permit a minimum of one hundred eighty (180) days before applying for an intermediate license and shall have held an intermediate license for a minimum of one hundred eighty (180) days before applying for an operator's license.

(c) A person who was under eighteen (18) years of age at the time of application for an instruction permit and is eighteen (18) years of age or older shall have the instruction permit a minimum of one hundred eighty (180) days and complete a driver training program under KRS 186.410(4) before applying for an operator's license.

(d) A person who is at least eighteen (18) years of age and is under the age of twenty-one (21) years at the time of application for an instruction permit shall have the instruction permit a minimum of one hundred eighty (180) days before applying for an operator's license.

(e) A person who is at least twenty-one (21) years of age at the time of application for an instruction permit shall have the instruction permit a minimum of thirty (30) days before applying for an operator's license.

(f) In accordance with KRS 15A.352(5), a person whose motorcycle instruction permit has expired may apply to the circuit clerk to receive a motorcycle operator's license or endorsement if the person presents proof of successful completion of a motorcycle safety education course approved by the Justice and Public Safety Cabinet under KRS 15A.350 to 15A.366.

(4) (a) A person shall have the instruction permit in his possession at all times when operating a motor vehicle, motorcycle, or moped upon the highway.

(b) When operating a motor vehicle, a motor vehicle instruction permit holder shall be accompanied by a person with a valid operator's license who is at least twenty-one (21) years of age occupying the seat beside the operator at all times.

(c) The requirements of paragraph (b) of this subsection shall not apply to a motor vehicle instruction permit holder being supervised on a multiple-vehicle driving range by a driver training instructor affiliated with a driver training school licensed under KRS Chapter 332 or a public or nonpublic secondary school.

(5) A person with an instruction permit who is under the age of eighteen (18) shall not operate a motor vehicle, motorcycle, or moped between the hours of 12 midnight and 6 a.m. unless the person can demonstrate good cause for driving including, but not limited to, emergencies, involvement in school related activities, or involvement in work related activities.

(6) Except when accompanied by a driver training instructor affiliated with a driver training school licensed under KRS Chapter 332 or a public or non-public secondary school, a person with an instruction permit who is under the age of eighteen (18) years shall not operate a motor

vehicle at any time when accompanied by more than one (1) unrelated person who is under the age of twenty (20) years. A peace officer shall not stop or seize a person nor issue a uniform citation for a violation of this subsection if the officer has no other cause to stop or seize the person other than a violation of this subsection. This subsection shall not apply to any operator of a vehicle registered under the provisions of KRS 186.050(4) who is engaged in agricultural activities.

(7) A violation under subsection (4), (5), or (6) of this section, a conviction for a moving violation under KRS Chapter 189 for which points are assessed by the cabinet, or a conviction for a violation of KRS 189A.010(1) shall add an additional minimum of one hundred eighty (180) days from the date of the violation before a person who is under the age of eighteen (18) years may apply for an intermediate license to operate a motor vehicle, motorcycle, or moped.

(8) A person under the age of eighteen (18) who accumulates more than six (6) points against his driving privilege may have the driving privilege suspended pursuant to KRS Chapter 186 or probated by the court.

* * * * *

KRS 186.452 Intermediate License

(1) Except as provided in KRS 186.415, a person who is under eighteen (18) years of age may apply for an intermediate license to operate a motor vehicle if the person has:
   (a) Attained the age of sixteen (16) years;
   (b) Held an instruction permit a minimum of one hundred eighty (180) days without a violation under KRS 186.450(4), (5), or (6), a conviction for a violation under KRS 189.292 or KRS 189.294, a conviction for a moving violation under KRS Chapter 189 for which points are assessed by the cabinet, or a conviction for a violation of KRS 189A.010(1); and
   (c) Presented a statement to the state police signed by a parent or guardian of the applicant attesting that the applicant has completed at least sixty (60) hours of supervised driving experience, including at least ten (10) hours at night, while accompanied by a person who has attained the age of twenty-one (21) years and holds a valid operator's license occupying the seat beside the applicant.

(2) If an applicant for an intermediate license successfully completes the examinations required under KRS 186.480, the state police shall affix an intermediate license sticker to the instruction permit and report the applicant's new status to the Transportation Cabinet. The Transportation Cabinet shall update the information in its computer system to reflect that the applicant has been granted an intermediate license. An intermediate license shall be valid for two (2) years and may be renewed.

(3) A person shall have the intermediate license in his or her possession at all times when operating a motor vehicle.

(4) A person with an intermediate license who is under the age of eighteen (18) years shall not operate a motor vehicle, motorcycle, or moped between the hours of 12 midnight and 6 a.m. unless the person can demonstrate good cause for driving, including emergencies, involvement in school-related activities, or involvement in work-related activities.

(5) Except when accompanied by a driver training instructor affiliated with a driver training school licensed under KRS Chapter 332 or a public or non-public secondary school, a person with an intermediate license who is under the age of eighteen (18) years shall not operate motor vehicle at any time when accompanied by more than one (1) unrelated person who is under the age of twenty (20) years. A peace officer shall not stop or seize a person nor issue a uniform citation for a violation of this subsection if the officer has no other cause to stop or seize the person other than a violation of this subsection. This subsection shall not apply to any operator of a vehicle registered under the provisions of KRS 186.050(4) who is engaged in agricultural activities.

* * * * *

KRS 186.454 Intermediate license holder application process

(1) Except as provided in KRS 186.415, a person with an intermediate license who is under the age of eighteen (18) years may apply for an operator's license to operate a motor vehicle if the person has:
   (a) Attained the age of seventeen (17) years;
   (b) Held an intermediate license for a minimum of one hundred eighty (180) days without a conviction for a moving violation under KRS Chapter 189 for which points are assessed by the cabinet, a conviction for a violation of KRS 189.292 or 189.294, a conviction for a violation of KRS 189A.010(1), or a conviction under KRS 186.452(3), (4), or (5); and
   (c) Completed a driver training program under KRS 186.410(4).

(2) A person with an intermediate license who is eighteen (18) years of age or older may apply for an operator's license to operate a motor vehicle if the person has completed a driver training program under KRS 186.410(4).

KRS 186.510 License to be in possession and to be shown on demand

Penalty: KRS 186.990(3)

The licensee shall have his license in his immediate possession at all times when driving a motor vehicle and shall display it upon demand to the circuit clerk or examiner, a peace officer, a member of the Kentucky State Police, or a field deputy or inspector of the Department of Vehicle Regulation or Transportation Cabinet or, pursuant to KRS 67A.075 or 83A.088, a safety officer who is in the process of securing information to complete an accident report. It shall be a defense to any charge under this section if the person so charged produces in court an operator's license, issued to him before his arrest and valid at the time of his arrest.

KRS 186.560 Mandatory revocation or denial of license – Causes – Period of revocation or denial – Prohibition against reductions of certain revocations or denials – Limited exception relating to enrollment in alcohol or substance abuse education or treatment programs

(1) The cabinet shall forthwith revoke the license of any operator of a motor vehicle upon receiving record of his or her:
   (a) conviction of any of the following offenses:
   1. Murder or manslaughter resulting from the operation of a motor vehicle;
   2. Driving a vehicle which is not a motor vehicle while under the influence of alcohol or any other substance which may impair one's driving ability;
   3. Perjury or the making of a false affidavit under KRS 186.400 to 186.640 or any law requiring the registration of motor vehicles or regulating their operation on highways;
   4. Any felony in the commission of which a motor vehicle is used;
   5. Conviction or forfeiture of bail upon three (3) charges of reckless driving within the preceding twelve (12) months;
   6. Conviction of driving a motor vehicle involved in an accident and failing to stop and disclose his identity at the scene of the accident;
   7. Conviction of theft of a motor vehicle or any of its parts, including the conviction of any person under the age of eighteen (18) years;
   8. Failure to have in full force and effect the security required by Subtitle 39 of KRS Chapter 304 upon conviction of a second and each subsequent offense within any five (5) year period;
   9. Conviction for fraudulent use of a driver's license or use of a fraudulent driver's license to purchase or attempt to purchase alcoholic beverages, as defined in KRS 241.010, in violation of KRS 244.085; and
   10. Conviction of operating a motor vehicle, motorcycle, or moped without an operator's license as required by KRS 186.410;
   11. Conviction of fleeing or evading police in the second degree when the offense involved the operation of a motor vehicle; or
   (b) Being found incompetent to stand trial under KRS Chapter 504.

(2) If the person convicted of any offense named in subsection (1) of this section or who is found incompetent to stand trial is not the holder of a license, the cabinet shall deny the person so convicted a license for the same period of time as though he had possessed a license which had been revoked. If through an inadvertence the defendant should be issued a license, the cabinet shall forthwith cancel it.
(3) The cabinet upon receiving a record of the conviction of any person upon a charge of operating a motor vehicle while the license of that person is denied or suspended, or revoked, or while his privilege to operate a motor vehicle is withdrawn, shall immediately extend the period of the first denial, suspension, revocation, or withdrawal for an additional like period.
(4) The revocation or denial of a license or the withdrawal of the privilege of operating a motor vehicle for a violation of subsection (1) (a)1. of this section shall be for a period of not less than five (5) years. Revocations or denials under this section shall not be subject to any lessening of penalties authorized under any other provision of this section or any other statute.
(5) Except as provided in subsections (3), (4), (8), and (9) of this section, in all other cases, the revocation or denial of a license or the withdrawal of the privilege of operating a motor vehicle under this section shall be for a period of six (6) months, except that, if the same person has had one (1) previous conviction of any offense enumerated in subsection (1) of this section, regardless of whether the person's license was revoked because of the previous conviction, the period of the revocation, denial, or withdrawal shall be one (1) year; if the person has had more than one (1) previous conviction of the offenses considered collectively as enumerated in subsection (1) of this section, regardless of whether the person's license was revoked for any previous conviction, the period of revocation, denial, or withdrawal shall be for not less than two (2) years. If the cabinet, upon receipt of the written recommendation of the court in which any person has been convicted of violating KRS 189.520(1) or 244.085(5) as relates to instances in which a driver's license or fraudulent driver's license was the identification used or attempted to be used in the commission of the offense, who has had no previous conviction of said offense, the person's operator's license shall not be revoked, but the person's operator's license shall be restricted to any terms and conditions the secretary in his discretion may require, provided the person has enrolled in an alcohol or substance abuse education or treatment program as the cabinet shall require. If the person fails to satisfactorily complete the education or treatment program or violates the restrictions on his operator's license, the cabinet shall immediately revoke his operator's license for a period of six (6) months.
(6) In order to secure the reinstatement of a license to operate a motor vehicle or motorcycle restored following a period of suspension pursuant to KRS Chapter 189A, the person whose license is suspended shall comply with the fees and other procedures of the Transportation Cabinet with regard to the reinstatement of suspended licenses.
(7) The cabinet shall revoke the license of any operator of a motor vehicle upon receiving notification that the person is under age eighteen (18) and has dropped out of school or is academically deficient, as defined in KRS 159.051(1).
(8) A person under the age of eighteen (18) who is convicted of the offenses of subsections (1) or (3) of this section, except for subsection (1) (a)8. of this section, shall have his license revoked until he reaches the age of eighteen (18) or shall have his license revoked as provided in this section, whichever penalty will result in the longer period of revocation.

(9) A revocation or denial of a license or the withdrawal of the privilege of operating a motor vehicle under this section due to a person being found incompetent to stand trial shall extend until the person is found competent to stand trial or the criminal case is dismissed.

MISCELLANEOUS OPERATOR'S LICENSE OFFENSES

KRS 186.610 Prohibited uses of licenses – Fraud in application
Penalty: KRS 186.990(3)

No person shall:
(1) Display or cause or permit to be displayed or have in his possession any operator's license knowing it to be fictitious or to have been canceled, revoked, suspended or altered;
(2) Lend to, or knowingly permit the use of by, one not entitled to, any operator's license issued to the person so lending or permitting the use of the license;
(3) Represent as one's own any operator's license not issued to the person displaying the license;
(4) Fail to surrender to the cabinet upon demand, any operator's license which has been suspended, canceled or revoked;
(5) Use a false name or give a false address in any application for an operator's license or any renewal or duplicate, or knowingly make a false statement or knowingly conceal a material fact or otherwise commit a fraud in any application.

KRS 186.620 Unlawful to drive or permit another to drive without license – Display of license on request of peace officer -- Defense
Penalty: KRS 186.990(3)

(1) No person shall authorize or knowingly permit a motor vehicle owned or controlled by him to be driven by any person who has no legal right to drive it or in violation of any of the provisions of KRS 186.400 to 186.640.
(2) No person who has not applied for an operator's license or whose operator's license has been denied, canceled, suspended or revoked, or whose privilege to operate a motor vehicle has been withdrawn, shall operate any motor vehicle upon the highways while the license is denied, canceled, suspended, or revoked or his privilege to operate a motor vehicle is withdrawn, or the license has not been applied for.
(3) If the operator of a motor vehicle on a public highway is requested by a peace officer, authorized to arrest a person for a violation of subsection (2) of this section or KRS 189A.090, to display his operator's license and fails to display his operator's license, that fact shall be admissible in court and shall be prima facie proof of violation of subsection (2) of this section or KRS 189A.090.
(4) It shall be a defense to a charge under this section and KRS 189A.090 if the person charged presents to the court an operator's license issued to him before the date of the charge and which was valid on the date of the charge.

PENALTIES

KRS 186.990 Penalties

(1) Any person who violates any of the provisions of KRS 186.020, . . . 186.045(2), . . . 186.140, . . . 186.170, . . . 186.073, . . . shall be guilty of a violation.
(2) Any person who violates any of the provisions of KRS . . . 186.190, 186.072, . . . shall be guilty of a Class A misdemeanor.
(3) A person who violates the provisions of KRS 186.450 (4), (5), or (6) or KRS 186.452 (3), (4) or (5) shall be guilty of a violation. A person who violates any of the other provisions of KRS 186.400 to 186.640 shall be guilty of a Class B misdemeanor.
* * * * *
(5) If it appears to the satisfaction of the trial court that any offender under KRS 186.400 to 186.640 has a driver's license but in good faith failed to have it on his or her person or misplaced or lost it, the court may, in its discretion, dismiss the charges against the defendant without fine, imprisonment, or cost.

(6) Any person who steals a motor vehicle registration plate, temporary tag, or renewal decal shall be guilty of a Class D felony. Displaying a canceled registration plate or temporary tag on a motor vehicle shall be prima facie evidence of guilt under this section.

* * * * *

(9) Any person who violates any provision of KRS 186.070 or 186.150 shall be guilty of a Class A misdemeanor.

(10) Any person who operates a vehicle bearing a dealer's plate upon the highways of this Commonwealth with intent to evade the motor vehicle usage tax or registration fee shall be guilty of a Class A misdemeanor for the first offense and a Class D felony for each subsequent offense.

(11) Any person, other than a licensed dealer or manufacturer, who procures a dealer's plate with intent to evade the motor vehicle usage tax or registration fee shall be guilty of a Class D felony.

(12) Any resident who unlawfully registers, titles, or licenses a motor vehicle in any state other than Kentucky with intent to evade the motor vehicle usage tax or the registration fee shall be guilty of a Class A misdemeanor if the amount of tax due is less than one hundred dollars ($100), or of a Class D felony if the amount of tax due is more than one hundred dollars ($100), and in addition shall be liable for all taxes so evaded with applicable interest and penalties.

KRS CHAPTER 186A
AUTOMATED MOTOR VEHICLE REGISTRATION SYSTEM
(Selected Sections)

KRS 186A.065 Prerequisites for operation of motor vehicles or trailers

Penalty: KRS 186A.990(6)

Except as otherwise provided, before the owner of a motor vehicle or trailer may operate it or permit its operation upon the highways of this state, he shall obtain motor vehicle insurance as required by KRS 304.39-080, a certificate of registration, and a license plate and apply for a certificate of title in his name.

KRS 186A.080 Motor vehicles exempt from title and registration requirements

No Kentucky certificate of registration, license plate, or certificate of title need be applied for or obtained for:

(1) A vehicle owned by the United States unless it is registered in this state;
(2) A vehicle owned by a nonresident of this state, principally operated in another state, properly and currently registered and titled in another state;
(3) A vehicle regularly engaged in the interstate transportation of persons or property for which a currently effective lawful certificate of title has been issued in another state;
(4) A vehicle moved solely by animal power;
(5) An implement of husbandry;
(6) Special mobile equipment;
(7) A self-propelled wheelchair or invalid tricycle;
(8) A pole trailer;
(9) A motor vehicle engaged in the transportation of passengers for hire operating under a currently valid certificate of convenience and necessity; and
(10) A moped; and
(11) An electric low-speed scooter as defined in KRS 189.010.

KRS 186A.095 Time for application for registration and title on vehicle imported into Commonwealth

An owner of a vehicle for which a certificate of registration or title, and license plate must be obtained shall be allowed a fifteen (15) day grace period from the date on which he purchased a vehicle or brings a vehicle into the Commonwealth from another state, during which time the

owner shall apply for and obtain motor vehicle insurance pursuant to KRS 304.39-080, a certificate of registration or title, and a license plate in his name.

KRS 186A.100 Application, procedure and use for temporary motor vehicle registration
Penalty: KRS 186A.990(4)

(1) A motor vehicle dealer issued a dealer plate under KRS 186.070 who sells a vehicle to a person who will title and register the vehicle for use upon the highways of this state or another state shall equip the vehicle with:
  (a) The buyer's existing Kentucky license plate, if the customer traded in a vehicle bearing that plate and the vehicle will be titled and registered in Kentucky. The cost of this temporary use of the existing plate shall be three dollars ($3), of which the clerk shall retain two dollars ($2). This cost shall not replace any other fees for reissuance of the existing plate at registration of the purchased vehicle; or
  (b) A temporary tag executed in the manner prescribed in this section and in KRS 186A.105 and KRS 186A.110, which shall be valid for sixty (60) days from the date the vehicle is delivered to the purchaser. . ..

* * * * *

(5) If the owner of a motor vehicle submits to the county clerk a properly completed application for Kentucky certificate of title and registration pursuant to KRS 186A.120, any motor vehicle required to be registered and titled in Kentucky, that is not currently registered and titled in Kentucky, may be equipped with a temporary tag, which shall be valid for sixty (60) days from the date of issuance, issued by the county clerk for the purpose of operating the vehicle in Kentucky while assembling the necessary documents in order to title and register the vehicle in Kentucky. . . .

(6) The county clerk may issue a temporary tag to the owner of a motor vehicle that is currently registered and titled in Kentucky. . . . . A temporary tag authorized by this subsection may only be issued by the county clerk and shall be valid for a period of between twenty-four (24) hours and seven (7) days, as determined is necessary by the clerk. . . . .

KRS 186A.250 Suspension or revocation of title – Conditions and methods for action

(1) The Department of Vehicle Regulation shall suspend or revoke a certificate of title, after giving notice and providing a reasonable opportunity for the holder to be heard, when authorized by any other provision of law, or, if it finds:
  (a) The certificate of title was fraudulently procured or erroneously issued; or
  (b) The vehicle has been scrapped, dismantled or destroyed. Suspension or revocation of a certificate of title does not, in itself, affect the validity of a security interest noted on it.

* * * * *

(4) Any peace officer shall seize and impound any certificate of title which has been suspended or revoked except when such document is in the custody of the Department of Vehicle Regulation or the Department of State Police.

KRS 186A.305 Alteration or removal of motor vehicle identification number prohibited
Penalty: KRS 186A.990(3)

(1) No person shall intentionally remove, deface, cover, destroy, alter, or obscure any vehicle identification number, or other distinguishing number, of a motor vehicle or trailer or any part thereof in this state, without written authorization from the Department of State Police, nor shall any person place or stamp, in place of the original manufacturer's serial, motor, or other number or mark upon a vehicle, any number except one assigned thereto by the Department of Vehicle Regulation under the provisions of KRS 186.1911 or authorized agency of another state.

* * * * *

KRS 186A.310 Selling or receiving of vehicle with identification number removed or altered prohibited

Penalty: KRS 186A.990(3)

(1) No person shall knowingly buy, sell, offer for sale, receive, or have in his possession, any titled motor vehicle or trailer or component part thereof, from which the original manufacturer's vehicle identification number, or serial number, has been removed, defaced, altered, obscured or destroyed, unless such vehicle or component part has attached thereto an identification number assigned or approved by the Department of Vehicle Regulation under the provisions of KRS 186.1911 or authorized agency of another state in lieu of the manufacturer's number.

(2) Whenever such vehicle or component part comes into the custody of a peace officer it shall be forfeited under the procedure established in KRS 500.090. Nothing in this section shall, however, preclude the return of such vehicle or parts to the lawful owner thereof following presentation of satisfactory evidence of ownership and assignment of an identification number by the Department of Vehicle Regulation.

KRS 186A.315 Possession of manufacturer's identification number plates prohibited – Exceptions

Penalty: KRS 186A.990(3)

(1) No person shall have in his possession a manufacturer's vehicle identification number plate unless it is attached to the vehicle, or vehicle part, to which it was originally affixed by the manufacturer, nor shall any person have any facsimile of such a plate.

* * * * *

KRS 186A.320 Duties of peace officer in the event a stolen vehicle is located

(1) When any peace officer has probable cause to believe that a motor vehicle or trailer, or any component part of such vehicle is stolen, he shall impound such vehicle or part and notify its lawful owner, and when applicable, the agency to which the theft was reported, of the recovery of such vehicle or part and where it may be claimed.

(2) A vehicle or component part thereof which has been impounded pursuant to this section shall be released to its lawful owner when such owner presents satisfactory evidence of his ownership.

(3) A vehicle or component part thereof that has been impounded under this section, and which has not been claimed within ninety (90) days following notice of recovery to the owner, or if the owner cannot be located after a reasonable effort, within ninety (90) days following impoundment, is forfeited and shall be disposed of in accordance with procedures set forth in KRS 500.090.

KRS 186A.325 Trafficking in stolen vehicles or stolen vehicle parts

(1) Any person or entity knowingly in possession or control of two (2) or more motor vehicles or trailers or their major component parts or assemblies such as, but not limited to, an engine, transmission, chassis, frame, front clip, rear clip:
   (a) That are stolen; or
   (b) Have had their identity obscured, removed or altered, except as an immediate result of the final destruction by crushing, flattening, grinding up, or shredding of a vehicle or vehicle part for purpose of recycling its metallic content; or
   (c) Have stolen parts on them; or
   (d) Are comprised of any combination of the above;
   shall be deemed to be trafficking in stolen vehicles or stolen vehicle parts.

(2) Trafficking in stolen vehicles or stolen vehicle parts is a Class D felony.

KRS 186A.330 Duties of law enforcement officer in the event of arrest for violation of trafficking in stolen vehicles or stolen parts

(1) Upon the arrest of any person or entity for violation of KRS 186A.325, the law enforcement officer may cause the seizure, pending disposition by the court as provided by subsection (2) of this section, of:
   (a) All vehicles or vehicle parts, held in violation of KRS 186A.310(1) or 186A.325;
   (b) All vehicles and other equipment used to transport property in violation of KRS 186A.325;
   (c) All tools, equipment, and other materials, and all real and personal property used in furtherance of a violation of KRS 186A.325; and
   (d) All money or other proceeds gained from the violation of KRS 186A.325.

(2) Upon the conviction of any person or entity for violation of KRS 186A.325, all items seized in accordance with subsection (1) of this section may be forfeited to the state in a manner consistent with procedures for forfeiture set forth in KRS 500.090.

KRS 186A.345 Definitions to be consistent with KRS 186.010

Unless the context requires otherwise, terms used in this chapter shall be defined, where applicable, as provided by KRS 186.010.

PENALTIES

KRS 186A.990 Penalties

(1) Any person who knowingly gives false, fraudulent, or erroneous information in connection with an application for the registration, and when required, titling of a vehicle, or any application for assignment of a vehicle identification number, or replacement documents, or gives information in connection with his review of applications, or falsely certifies the truthfulness and accuracy of information supplied in connection with the registration and when required, titling of a vehicle, shall be guilty of forgery in the second degree.

* * * * *

(3) Any person who violates KRS 186A.300 to 186A.315 shall be guilty of a Class D felony.

(4) (a) Any person who operates a motor vehicle or trailer upon the highways of this state without a temporary tag when one is required, or with one that is expired, improperly executed, or displayed on a vehicle other than the one (1) to which it was legitimately and lawfully issued, shall be guilty of a Class B misdemeanor.
   (b) Any person who steals, fraudulently produces, copies, or acquires a temporary tag in a manner not authorized under this chapter shall be guilty of a Class D felony.

* * * * *

(6) Any person who violates any provisions of this chapter, or regulations promulgated pursuant thereto, and for which a specific penalty is not prescribed by statute, shall be guilty of a Class A misdemeanor.

(7) Criminal remedies or sanctions provided in this chapter are in addition to, and not exclusive of, any other criminal remedies or sanctions provided elsewhere in the statutes.

KRS CHAPTER 189
TRAFFIC REGULATIONS; VEHICLE EQUIPMENT AND STORAGE
(Selected Sections)

KRS 189.010 Definitions for chapter

As used in this chapter:

(1) "**Department**" means the Department of Highways.

(2) "**Crosswalk**" means:

(a) That part of a roadway at an intersection within the connections of the lateral lines of the sidewalks on opposite sides of the highway measured from the curbs or in the absence of curbs, from the edges of the traversable roadway; or

(b) Any portion of a roadway at an intersection or elsewhere distinctly indicated for pedestrian crossing by lines or other markings on the surface.

(3) "**Highway**" means any public road, street, avenue, alley or boulevard, bridge, viaduct, or trestle and the approaches to them and includes private residential roads and parking lots covered by an agreement under KRS 61.362, off-street parking facilities offered for public use, whether publicly or privately owned, except for-hire parking facilities listed in KRS 189.700.

(4) "**Intersection**" means:

(a) The area embraced within the prolongation or connection of the lateral curb lines, or, if none, then the lateral boundary lines of the roadways of two (2) highways which join one another, but do not necessarily continue, at approximately right angles, or the area within which vehicles traveling upon different highways joining at any other angle may come into conflict; or

(b) Where a highway includes two (2) roadways thirty (30) feet or more apart, then every crossing of each roadway of such divided highway by an intersecting highway shall be regarded as a separate intersection. If the intersecting highway also includes two (2) roadways thirty (30) feet or more apart, every crossing of two (2) roadways of the highways shall be regarded as a separate intersection. The junction of a private alley with a public street or highway shall not constitute an intersection.

(5) "**Manufactured home**" has the same meaning as defined in KRS 186.650.

(6) "**Motor truck**" means any motor-propelled vehicle designed for carrying freight or merchandise. It shall not include self-propelled vehicles designed primarily for passenger transportation but equipped with frames, racks, or bodies having a load capacity of not exceeding one thousand (1,000) pounds.

(7) "**Operator**" means the person in actual physical control of a vehicle.

(8) "**Pedestrian**" means any person afoot or in a wheelchair.

(9) "**Right-of-way**" means the right of one (1) vehicle or pedestrian to proceed in a lawful manner in preference to another vehicle or pedestrian approaching under such circumstances of direction, speed, and proximity as to give rise to danger of collision unless one grants precedence to the other.

(10) "**Roadway**" means that portion of a highway improved, designed, or ordinarily used for vehicular travel, exclusive of the berm or shoulder. If a highway includes two (2) or more separate roadways, the term "roadway" as used herein shall refer to any roadway separately but not to all such roadways collectively.

(11) "**Safety zone**" means the area or space officially set apart within a roadway for the exclusive use of pedestrians and which is protected or is so marked or indicated by adequate signs as to be plainly visible at all times while set apart as a safety zone.

(12) "**Semitrailer**" means a vehicle designed to be attached to, and having its front end supported by, a motor truck or truck tractor, intended for the carrying of freight or merchandise and having a load capacity of over one thousand (1,000) pounds.

(13) "**Truck tractor**" means any motor-propelled vehicle designed to draw and to support the front end of a semitrailer. The semitrailer and the truck tractor shall be considered to be one (1) unit.

(14) "**Sharp curve**" means a curve of not less than thirty (30) degrees.

(15) "**State Police**" includes any agency for the enforcement of the highway laws established pursuant to law.

(16) "**Steep grade**" means a grade exceeding seven percent (7%).

(17)"**Trailer**" means any vehicle designed to be drawn by a motor truck or truck-tractor, but supported wholly upon its own wheels, intended for the carriage of freight or merchandise and having a load capacity of over one thousand (1,000) pounds.

(18)"**Unobstructed highway**" means a straight, level, first-class road upon which no other vehicle is passing or attempting to pass and upon which no other vehicle or pedestrian is approaching in the opposite direction, closer than three hundred (300) yards.

(19)(a)"**Vehicle**" includes:

1. All agencies for the transportation of persons or property over or upon the public highways of the Commonwealth; and
2. All vehicles passing over or upon the highways.

(b) "**Motor vehicle**" includes all vehicles, as defined in paragraph (a) of this subsection except:

1. Road rollers;
2. Road graders;
3. Farm tractors;
4. Vehicles on which power shovels are mounted;
5. Construction equipment customarily used only on the site of construction and which is not practical for the transportation of persons or property upon the highways;
6. Vehicles that travel exclusively upon rails;
7. Vehicles propelled by electric power obtained from overhead wires while being operated within any municipality or where the vehicles do not travel more than five (5) miles beyond the city limits of any municipality; and
8. Vehicles propelled by muscular power; and
9. Electric low-speed scooters.

(20)"**Reflectance**" means the ratio of the amount of total light, expressed in a percentage, which is reflected outward by the product or material to the amount of total light falling on the product or material.

(21)"**Sunscreening material**" means a product or material, including film, glazing, and perforated sunscreening, which, when applied to the windshield or windows of a motor vehicle, reduces the effects of the sun with respect to light reflectance or transmittance.

(22)"**Transmittance**" means the ratio of the amount of total light, expressed in a percentage, which is allowed to pass through the product or material, including glazing, to the amount of total light falling on the product or material and the glazing.

(23)"**Window**" means any device designed for exterior viewing from a motor vehicle, except the windshield, any roof-mounted viewing device, and any viewing device having less than one hundred fifty (150) square inches in area.

(24)"**All-terrain vehicle**" means any motor vehicle used for recreational off-road use;

(25)**"Nondivisible load"**, as pertains to state highways that are not part of the national truck network established pursuant to 23 C.F.R. pt. 658, means a load or vehicle, that if separated into smaller loads or vehicles:

(a) Compromises the intended use of the vehicle, making it unable to perform the function for which it was intended;
(b) Destroys the value of the load or vehicle, making it unusable for its intended purpose; or
(c) Requires more than four (4) work hours to dismantle and reassemble using appropriate equipment, and

(26) **"Electric low-speed scooter"** means a device that:

(a) Weighs less than one hundred (100) pounds;
(b) Is equipped with two (2) or three (3) wheels;
(c) Is equipped with handlebars;
(d) Is equipped with a brake adequate enough to stop and park the device;
(e) Is equipped with a floorboard designed for the operator to stand upon while operating the scooter;
(f) Is propelled by an electric motor, human power, or both; and
(g) Is designed to operate at a maximum speed of twenty (20) miles per hour, on a paved level surface, with or without human propulsion.

(27) **"Highway work zone"** means that lane or portion of a state-maintained highway open to vehicular traffic and the affected area adjacent to a lane, berm, or shoulder of a state-maintained highway upon which construction, reconstruction, resurfacing, maintenance, inspection, or other work of that nature is being conducted.

EQUIPMENT OFFENSES

KRS 189.020 Equipment of vehicle not to be nuisance or menace

Penalty: KRS 189.990(1)

Every vehicle when on a highway shall be so equipped as to make a minimum of noise, smoke or other nuisance, to protect the rights of other traffic, and to promote the public safety.

KRS 189.030 Time when lights must be on

Penalty: KRS 189.990(1)

(1) Headlamps, when required on a vehicle shall be illuminated:
   (a) During the period from one-half (1/2) hour after sunset to one-half (1/2) hour before sunrise; and
   (b) At such other times as atmospheric conditions render visibility as low as or lower than is ordinarily the case during that period.
(2) Provisions as to distances that lights must be visible refer to visibility under ordinary atmospheric conditions.

KRS 189.040 Front lights – Flashing lights

(1) Every motor vehicle other than a motorcycle or moped shall be equipped with at least two (2) headlamps with at least one (1) on each side of the front of the motor vehicle, which headlamps shall comply with the requirements and limitations set forth in this section.
(2) Every motorcycle and moped shall be equipped with at least one (1) and not more than two (2) headlamps which shall comply with the requirements and limitations of this section.
(3) Except as hereinafter provided, the headlamps or the auxiliary driving lamps or the auxiliary passing lamp or combinations thereof on motor vehicles other than a motorcycle or moped shall be so arranged that the driver may control the selection between distribution of light projected to different elevations. . . . .:

* * * * *

(4) Whenever a motor vehicle is being operated on a roadway or shoulder adjacent thereto during the times specified in KRS 189.030, the driver shall use a distribution of light, or composite beam, directed high enough and of sufficient intensity to reveal persons and vehicles at a safe distance in advance of the vehicle, subject to the requirements and limitations hereinafter set forth.
(5) Whenever a driver of a vehicle approaches an oncoming vehicle within five hundred (500) feet, the driver shall use a distribution of light, or composite beam, so aimed that the glaring rays are not projected into the eyes of the oncoming driver. The lowermost distribution of light, or composite beam, specified in paragraph (b) of subsection (3) of this section shall be deemed to avoid glare at all times, regardless of road contour and loading.
(6) Whenever the driver of a vehicle follows another vehicle within three hundred (300) feet to the rear, except when engaged in the act of overtaking and passing, the driver shall use a distribution of light other than the uppermost distribution of light specified in paragraph (a) of subsection (3) of this section.

* * * * *

(8) Flashing lights are prohibited on all motor vehicles except as a means for indicating a right or left turn or for the purpose of warning the operators of other vehicles of the presence of a vehicular traffic hazard requiring the exercise of unusual care in approaching, overtaking or passing.
(9) The height of the headlamps, from the center of the lamp to level ground when the vehicle is unloaded, shall be between twenty-four (24) and fifty-four (54) inches.
(10) Headlamps required under this section shall only emit white light. Halogen headlamps may have a slight yellow or amber tint. Nonhalogen headlamps may emit a slight blue tint, if the headlamps

were installed by the manufacturer as original equipment in the motor vehicle, motorcycle, or moped or the headlamps meet the requirements of subsection (11) of this section.

(11) A motor vehicle, motorcycle, or moped shall only be equipped with headlamps that meet United States Department of Transportation regulations.

(12) A motor vehicle, motorcycle or moped shall not be retrofitted with a headlamp that appears to emit a solid color of light other than white.

(13) A motor vehicle, motorcycle, or moped shall not be retrofitted with a headlamp cover or film that changes the light emitted from the headlamp to a color other than white.

(14) Except as provided in subsection (10) of this section, except as provided in KRS 189.950(3)(b), and except for vehicles exempted under the provisions of KRS 189.910 to 189.950, when operating on a highway or upon the right-of-way of a highway, and:
   (a) Visible front lights on a motor vehicle or any light that is affixed to the front of a motorcycle or moped, shall only be white or amber, unless installed as original equipment by the manufacturer; and
   (b) Visible rear lights on a motor vehicle shall only be white, amber, or red, unless installed as original equipment by the manufacturer.

(15) Any violation of this section for the illumination of a solid blue light or solid blue lights shall be deemed to be a violation of KRS 189.950(3).

KRS 189.043 Flashing white or amber lights to warn of traffic hazard permitted
Penalty: KRS 189.993(12)

Notwithstanding any other provisions against the use of flashing lights, any vehicle may be equipped with lamps which may be used for the purpose of warning the operators of other vehicles of the presence of a vehicular traffic hazard requiring the exercise of unusual care in approaching, overtaking or passing and when so equipped may display such warning in addition to any other warning signals required by law. The lamps used to display such warning to the front shall be mounted at the same level and as widely spaced laterally as practicable, and shall display simultaneously flashing white or amber lights, or any shade of color between white and amber. The lamps used to display such warning to the rear shall be mounted at the same level and as widely spaced laterally as practicable, and shall show simultaneously flashing amber or red lights, or any shade of color between amber and red. These warning lights shall be visible from a distance of not less than fifteen hundred (1,500) feet under normal atmospheric conditions at night.

KRS 189.045 Flashing lights prohibited near highway
Penalty: KRS 189.993(1)

No person shall install or maintain a red, yellow, green or similarly colored flashing light within one hundred (100) feet of the right of way of a state maintained highway for any purposes other than safety, highway construction, or emergency purposes.

KRS 189.050 Rear, side, and clearance lights and lanterns
1, 2, 5 Penalty**:** KRS 189.990(1) 3, 4 **Penalty:** KRS 189.990(2) (c)

(1) All motor vehicles shall display at the rear two (2) red lights visible when lighted for at least five hundred (500) feet, unless the motor vehicle was originally equipped with one (1) such light.

(2) A person shall not operate any motor truck or semitrailer truck on any highway unless it is equipped with a red light that automatically indicates the application of brakes and is visible from the rear a distance of not less than five hundred (500) feet.

(3) No person shall operate on any highway a motor truck or semitrailer truck having a width of any part in excess of eighty-four (84) inches, unless it carries at least two (2) clearance lights to indicate the outside left limit of the motor truck or semitrailer truck, one (1) light colored white, to be attached to and be visible from the front of the motor truck or semitrailer truck, and two (2) lights colored red, to be attached to and be visible from the rear, in each case a distance of not less than five hundred (500) feet.

(4) When in operation on any highway slow-moving or motorless vehicles, except bicycles and electric low-speed scooters, shall have at least one (1) light on the left side of the vehicle whether from the front or rear, showing white and of sufficient power to reveal clearly the outline of the left

side of the vehicle and in such a manner that the outline may be observed clearly by approaching vehicles from a distance of at least five hundred (500) feet.

(5) When in operation between sunset and sunrise on any highway, motorless vehicles, except bicycles and electric low-speed scooters, shall have in operation:
   (a) A four (4) way flasher system, with two (2) flashing yellow or amber lights visible from the front of the vehicle for a distance of at least five hundred (500) feet and two (2) flashing red lights visible from the rear of the vehicle for a distance of at least five hundred (500) feet; or
   (b) Two (2) reflective lanterns, one (1) on either side of the rear of the vehicle, showing white to the front of the vehicle and red to the rear of the vehicle, with the lantern on the left side of the vehicle situated at least twelve (12) inches higher than the lantern on the right.

KRS 189.055 Brake lights
Penalty: KRS 189.993(12)

A person shall not operate any vehicle required by law to be licensed upon a highway unless it is equipped with a mechanical signal device which would indicate an intention to stop or suddenly decrease speed by illuminating at least two (2) red lights, on the rear of the vehicle, which are visible from the rear a distance of not less than five hundred (500) feet, unless the vehicle was originally manufactured with only one (1) such red light on the rear of the vehicle.

KRS 189.060 Lights on vehicles in tow and projections – Motor vehicle used as towing unit
Penalty: KRS 189.990(1)

(1) Each vehicle towed by a towline shall display the lights required on vehicles of the class to which it belongs.
(2) Each vehicle being hauled by another and connected to it in a manner that will keep them uniformly spaced shall carry at least one (1) light on the left side in such a manner as to show an amber light to the front and a red light to the rear visible at least one thousand (1,000) feet away.
(3) When any part of a load projects more than four(4) feet beyond a vehicle two (2) red flags by day and two (2) red lights during the period provided in KRS 189.030 must be placed upon the extremity of the projection marking the width of the overhang.

KRS 189.070 Motor vehicles to carry and use required flares or similar signals
Penalty: KRS 189.990(1)

(1) A person shall not operate any commercial motor vehicle upon a highway outside of a business or residence district at any time from a half (1/2)-hour before sunset to a half (1/2)-hour before sunrise unless that vehicle carries the number and type of flares, electric lanterns or other signals which the Department of Vehicle Regulation shall by regulation require.
(2) Whenever any commercial motor vehicle truck and its lighting equipment are disabled during a period when lighted lamps must be illuminated on vehicles and the vehicle cannot immediately be removed from the main traveled portion of a highway outside of a business or residence district, the person in charge of the vehicle shall cause to be placed upon the highway such flares, lanterns and other signals as the Department of Vehicle Regulation shall by regulation require, and such flares, lanterns or other signals shall be utilized as required by regulations.

KRS 189.080 Horns and other sound devices
Penalty: KRS 189.990(1)

Every motor vehicle, when in use on a highway shall be equipped with a horn or other device capable of making an abrupt sound sufficiently loud to be heard from a distance of at least two hundred (200) feet under all ordinary traffic conditions. Every person operating an automobile or bicycle shall sound the horn or sound device whenever necessary as a warning of the approach of such vehicle to pedestrians, or other vehicles, but shall not sound the horn or sound device unnecessarily. A bell may be used on a bicycle.

KRS 189.090 Brakes

1-3 **Penalty:** KRS 189.990(1) 4 **Penalty:** KRS 189.990(2)(c)

(1) No owner shall knowingly operate or permit to be operated on a highway a motor vehicle upon which the brakes are defective.

(2) Every motor vehicle, other than a motorcycle, when operated upon a highway shall be equipped with brakes adequate to control the movement of and to stop and hold the vehicle. There shall be two (2) separate means of applying the brakes, each of which means shall be effective to apply the brakes to at least two (2) wheels. If the two (2) separate means are connected in any way, they shall be so constructed that failure of any one (1) part of the operating mechanism shall not leave the motor vehicle without brakes on at least two (2) wheels.

(3) (a) Except for commercial motor vehicles with a declared gross vehicle weight of more than ten thousand (10,000) pounds, the service brakes upon any motor vehicle or combination of vehicles shall be adequate to stop the vehicle when traveling twenty (20) miles per hour within a distance of forty (40) feet when upon dry asphalt or concrete pavement surface free from loose material where the grade does not exceed one percent (1%).

(b) Under the conditions described in subsection (3)(a) the hand brake shall be adequate to stop the vehicle within a distance of fifty-five (55) feet and the hand brake shall be adequate to hold the vehicle stationary on any grade upon which it is operated.

(c) Under the conditions described in subsection (3)(a) the service brakes upon a motor vehicle equipped with two-wheel brakes only shall be adequate to stop the vehicle within a distance of forty (40) feet and the hand brake adequate to stop the vehicle within a distance of fifty-five (55) feet.

(d) All braking distances specified in this section shall apply whether or not the vehicles are loaded to the maximum capacity permitted by law.

(e) All brakes shall be maintained in good working order and shall be so adjusted as to operate with equal effect with respect to the wheels on opposite sides of the vehicle.

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KRS 189.100 Steering device not to be defective

Penalty: KRS 189.990(1)

No owner shall knowingly operate or permit to be operated on a highway a motor vehicle upon which the steering device is defective.

KRS 189.110 Unobstructed windshields – Display of American flag – Windshield wipers

Penalty: KRS 189.990(1)

(1) A windshield in a fixed and upright position, that is equipped with safety glazing as required by federal safety-glazing material standards, is required on every motor vehicle which is operated on the public highways, roads, and streets, except on a motorcycle or implement of husbandry.

(2) A person shall not operate a motor vehicle on a public highway, road, or street with any sign, sunscreening material, product, or covering attached to, or located in or upon the windshield, except the following:

(a) A certificate or other paper required to be displayed by law;

(b) Sunscreening material along a strip at the top of the windshield, if the material is transparent and does not encroach upon the driver's direct forward viewing area as defined in Federal Motor Vehicle Safety Standards No. 205 as the AS/1 portion of the windshield; or

(c) Sunscreening material or other product or material applied to the windshield, when used in conjunction with the safety glazing materials of the windshield, if it has a light transmittance of not less than seventy percent (70%) and is not red or yellow in color.

(3) A person shall not operate a motor vehicle required to be registered in the Commonwealth, on a public highway, road, or street on which vehicle the side wings and side windows on either side forward of or adjacent to the operator's seat are composed of, covered by, or treated with any sunscreening material or other product or covering which has the effect of making the window nontransparent or which would alter the window's color, increase its reflectivity, or reduce its light transmittance, except as expressly permitted by this section. A sunscreening material may be applied to the windows if, when tested on one-eighth (1/8) inch clear glass, the material has a

total solar reflectance of visible light of not more than twenty-five percent (25%) as measured on the nonfilm side and a light transmittance of at least thirty-five percent (35%) in the visible light range.

(4) A person shall not operate a motor vehicle required to be registered in the Commonwealth, on a public highway, road, or street on which vehicle any windows behind the driver are composed of, covered by, or treated with any sunscreening material, or other product or material which has the effect of making the window nontransparent or which would alter the window's color, increase its reflectivity, or reduce its light transmittance, except as specified below:
   (a) Sunscreen material consisting of film which, when tested on one-eighth (1/8) inch clear glass, has a total solar reflectance of visible light of not more than thirty-five percent (35%) as measured on the nonfilm side and a light transmittance of at least eighteen percent (18%) in the visible light range; however, sunscreen material which, when tested on one-eighth (1/8) inch clear glass, has a total solar reflectance of visible light of not more than thirty-five percent (35%) as measured on the nonfilm side and a light transmittance of at least eight percent (8%) in the visible light range may be used on multipurpose passenger vehicles; or
   (b) Perforated sunscreening material which, when tested in conjunction with existing glazing or film material, has a total reflectance of visible light of not more than thirty-five percent (35%) and a light transmittance of no less than thirty percent (30%). For those products or materials having different levels of reflectance, the highest reflectance from the product or material will be measured by dividing the area into sixteen (16) equal sections and averaging the overall reflectance. The measured reflectance of any of those sections may not exceed fifty percent (50%).

(5) A person shall not operate a motor vehicle required to be registered in the Commonwealth, upon a public highway, road, or street, on which vehicle the rear window is composed of, covered by, or treated with any material which has the effect of making the window nontransparent, unless the vehicle is equipped with side mirrors on both sides.

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(7) Every percentage measurement required by subsections (2) to (4) of this section is subject to a tolerance of plus or minus three percent (3%).

(8) A person shall not install window tinting materials on a vehicle that fails to meet the minimum standards for light transmission pursuant to subsections (2) to (4) of this section. Tinted material that fails to meet the minimum standards for light transmission pursuant to subsections (2) to (4) of this section shall be removed immediately.

(9) A person who applies sunscreening materials in violation of this section shall be guilty upon conviction of a Class B misdemeanor.

(10) Nothing in this section shall prevent the display of a representation of the American flag on the rear window of any motor vehicle, including any vehicle owned by a local or state government, provided that the representation does not exceed a size of five (5) inches by eight (8) inches and is placed in a lower corner of the rear window.

(11) The windshield on every motor vehicle shall be equipped with a device for cleaning rain, snow or other moisture from the windshield. The device shall be so constructed as to be controlled by the operator of the vehicle.

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KRS 189.125 Requirements of use of seat belts, child restraint systems, and child booster seats – Exceptions

3 Penalty: KRS 189.990(24)&(25) **6 Penalty:** KRS 189.990(25)&(26)

(1) Except as otherwise provided in this section, "**motor vehicle**" as used in this section means every vehicle designed to carry fifteen (15) or fewer passengers and used for the transportation of persons, but the term does not include:
   (a) Motorcycles;
   (b) Motor driven cycles; or
   (c) Farm trucks registered for agricultural use only and having a gross weight of one (1) ton or more.

* * * * *

(3) (a) Any driver of a motor vehicle, when transporting a child of forty (40) inches in

height or less in a motor vehicle operated on the roadways, streets, and highways of this state, shall have the child properly secured in a child restraint system of a type meeting federal motor vehicle safety standards.

(b) Any driver of a motor vehicle, when transporting a child under the age of eight (8) years who is between forty (40) inches and fifty-seven (57) inches in height in a motor vehicle operated on the roadways, streets, and highways of this state, shall have the child properly secured in a child booster seat. A child of any age who is greater than fifty-seven (57) inches in height shall not be required to be secured in a child booster seat under this section.

(4) As used in this section:

(a) "**Child restraint system**" means any device manufactured to transport children in a motor vehicle which conforms to all applicable federal motor vehicle safety standards.

(b) "**Child booster seat"** means a child passenger restraint system that meets the standards set forth in 49 C.F.R. Part 571 that is designed to elevate a child to properly sit in a federally approved lap and shoulder belt system.

(5) Failure to use a child passenger restraint system or a child booster seat shall not be considered as contributory negligence, nor shall such failure to use a passenger restraint system or booster seat be admissible as evidence in the trial of any civil action. Failure of any person to wear a seat belt shall not constitute negligence per se.

(6) A person shall not operate a motor vehicle manufactured after 1981 on the public roadways of this state unless the driver and all passengers are wearing a properly adjusted and fastened seat belt, unless the passenger is a child who is secured as required in subsection (3) of this section. The provisions of this subsection shall not apply to:

(a) A person who has in his possession at the time of the conduct in question a written statement from a physician or licensed chiropractor that he is unable, for medical or physical reasons, to wear a seat belt; or

(b) A letter carrier of the United States postal service while engaged in the performance of his duties.

(7) A conviction for a violation of subsection (6) of this section shall not be transmitted by the court to the Transportation Cabinet. The Transportation Cabinet shall not include a conviction for a violation of subsection (6) of this section as part of any person's driving history record.

(8) The provisions of subsection (6) of this section shall supersede any existing local ordinance involving the use of seat belts. No ordinance contrary to subsection (6) of this section may be enacted by any unit of local government.

KRS 189.126 Roadblocks for sole purpose of checking seat belt violations prohibited

All law enforcement agencies in this state shall be prohibited from erecting roadblocks for the sole purpose of checking for violations of KRS 189.125.

KRS 189.130 Mirrors

Penalty: KRS 189.990(1)

(1) Except as provided in subsection (4) of this section, every motor vehicle shall be equipped with the following mirrors so located and adjusted as to reflect to the driver a view of the highway to the rear of the vehicle:

(a) One (1) mirror mounted on the left side of the vehicle; and

(b) One (1) mirror, mounted either inside the vehicle approximately in the center or on the right side of the vehicle.

(2) No person shall, by himself or through his agent or servant, operate a motor vehicle upon the highways without the equipment required by subsection (1). Each day of operation without the equipment shall constitute a separate offense.

(3) No person shall sell, barter or otherwise dispose of any motor vehicle described in subsection (1) unless it is equipped with a mirror as provided in that subsection.

(4) A motorcycle shall be required only to have the mirror identified [in] paragraph (a) of subsection (1) of this section.

KRS 189.140 Mufflers – Noise regulation
Penalty: KRS 189.990(1)

(1) Every motor vehicle with an internal-combustion, steam or air motor shall be equipped with a suitable and efficient muffler. No person while on a highway shall operate a motor vehicle with the muffler cut out or removed. No cutout shall be so arranged or connected as to permit its operation or control by the driver of any motor vehicle while in position for driving.
(2) No person shall modify the exhaust system of a motor vehicle or an off highway vehicle in a manner which will amplify or increase the noise emitted by the motor of such vehicle above that emitted by the muffler originally installed on the vehicle. The original muffler shall comply with all of the noise requirements of KRS Chapter 224 and regulations promulgated pursuant thereto. No person shall operate a motor vehicle with an exhaust system so modified.

KRS 189.150 Escaping contents – Shifting or spilling loads
Penalty: KRS 189.990(1)

(1) No vehicle shall be operated upon any highway unless it is so constructed as to prevent its contents from escaping.
(2) No vehicle shall be operated upon any public highway for a distance of over one (1) mile whose load is susceptible to shifting or spillage unless said load is covered with a device suitable for prevention of spillage.

KRS 189.160 Vehicles transporting explosives to be marked – Fire extinguishers
Penalty: KRS 189.990(1)

Whenever a vehicle is used to transport an explosive, it shall be marked on each side and the rear with the word "Explosives" in letters no less than eight (8) inches high, or there shall be displayed on the rear of the vehicle a red flag not less than twenty-four (24) inches square marked with the word "Danger" in white letters six (6) inches high. The vehicle shall be equipped with not less than two (2) fire extinguishers, filled and ready for immediate use, and placed at a convenient point on the vehicle.

KRS 189.190 Chains and lugs on wheels – Thickness of solid rubber tires
Penalty: KRS 189.990(3)(a)
2-4 **Penalty:** KRS 189.990(1)

(1) No person shall use on a highway not covered with ice, a vehicle with a chained wheel, unless the wheel rests upon an ice shoe at least six (6) inches wide.
(2) Where chains are used on rubber-tired vehicles, the cross chains shall be not more than three-fourths (3/4) of an inch in thickness or diameter, and shall be spaced not more than ten (10) inches apart, around the circumference of the tires.
(3) Any machinery, utensils or implements used solely for agricultural, farming or manufacturing purposes may be operated on the highways under present equipment except as is provided in subsection (4).
(4) No tractor, traction engine, hauling engine or other similar power vehicle having any projections on the face of the tires or rims of the wheels in contact with the pavement shall be operated on any highway, the top surface of which is either composed of or treated with bituminous materials or concrete except that the driving wheels may be fitted with flat lugs extending diagonally across the entire width of the tire or rim. Those lugs shall be not less than one (1) inch in width at the bearing surface in contact with the pavement, but those lugs shall be so spaced that not less than two (2) lugs on each driving wheel shall be in contact with the highway surface at all times. The front or nondriving wheels may be fitted with flat steering rings, if those rings are at least two (2) inches in width and not more than one and one-half (1-1/2) inches in height, but there shall be no bolt head, rivet heads or other projections beyond the face of the tire or rim. The narrow angle iron lugs used for plowing or on soft ground shall not be permitted, nor shall any tractor or other vehicles of the caterpillar or track laying type having such projections on the faces of the shoes or treads of the track in contact with the roadway be permitted unless fitted with the flat lugs, in a way that will prevent any injury to the highway by either the narrow angle lugs or the projections on any tractor or other vehicle named in this section.

(5) No solid rubber or rubber compounded tire on any vehicle, other than a vehicle being actually used in the construction or maintenance of a highway, shall be less than one (1) inch thick, measured from the steel flange of the rim. Any person violating this subsection shall be civilly liable for any damage done to any state or county highway. The county attorney of the county in which the damage is done shall institute actions necessary to reimburse the state or county for the damage suffered.

5 **Penalty:** KRS 189.990(3)(b)

KRS 189.207 Inapplicability of KRS 189.020 to 189.205 to fully autonomous vehicles operated exclusively by automated driving system

(1) As used in this section, "fully autonomous vehicle" and "automated driving system" shall have the same meaning as in KRS 186.760.
(2) A fully autonomous vehicle that is designed to be operated exclusively by the automated driving system for all trips shall not be subject to any of the provisions of KRS 189.020 to 189.205 that:
(a) Relate to or support motor vehicle operation by a human driver seated in the vehicle; and
(b) Are not relevant to an automated driving system.

Moving Violations

KRS 189.224 Permitting unlawful operation of a motor vehicle prohibited
Penalty: KRS 189.990(2) (c)

It is unlawful for the owner, or any other person, employing or otherwise directing the operator of any vehicle, to require or knowingly to permit the operation of such vehicle upon a highway in any manner contrary to law.

KRS 189.231 State maintained highways –Restriction and regulation of traffic
Penalty: KRS 189.990(15) 3 **Penalty:** KRS 189.990(16)

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(2) The driver of any vehicle shall obey the instructions of any official traffic control device applicable thereto unless otherwise directed by a traffic or police officer, subject to the exceptions granted the driver of an authorized emergency vehicle.

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KRS 189.2327 Doubling of fines in highway work zone – Highway work zone safety fund

(1) Subject to the requirements of subsection (2) of this section, if a violation of KRS 189.290 to 189.580 or KRS 189.910 to 189.960 occurred in a highway work zone, the fine established under Section 3 of this Act, KRS 189.990, or KRS 189.993 shall be doubled.
(2) In order for a fine to be doubled under this section, the highway work zone must have:
   (a) Signs displayed informing drivers of the existence of a highway work zone and that fines are doubled in it; and
   (b) At least one (1) bona fide worker present.
(3) All fines collected for violations in a highway work zone under subsection (1) of this section shall be deposited into a separate trust and agency account within the Transportation Cabinet known as the "Highway Work Zone Safety Fund." The highway work zone safety fund shall be used exclusively by the Transportation Cabinet to hire or pay for enhanced law enforcement of traffic laws within highway work zones.

KRS 189.282 Operation of low speed vehicle on highway
Penalty: KRS 189.993(12)

(1) As used in this section, “low-speed vehicle” shall have the same meaning as in KRS 186.010(16).
(2) A person may operate a low-speed vehicle on a highway if:
   (a) The vehicle meets the federal motor vehicle safety standards for low-speed vehicles set forth in 49 CFR sec. 571.500;
   (b) The vehicle displays a seventeen (17) character vehicle identification number that meets the requirements set forth in 49 CFR 565;
   (c) The posted speed limit of the highway is thirty-five (35) miles per hour or less;
   (d) The operator the low-speed vehicle does not cross a roadway at an at-grade intersection where the roadway being crossed has a posted speed limit of more than thirty-five (35) miles per hour unless the intersection is equipped with an electronic traffic signal;
   (e) The operator has a valid operator’s license in his or her possession; and
   (f) The low-speed vehicle has not been modified to increase its speed above its original manufactured limit.
(3) A low-speed vehicle operating on a highway shall be insured in compliance with KRS 304.39-080 by the owner or operator, and the proof of insurance shall be inside the vehicle at all times of operation on a highway.
(4) A low-speed vehicle operating on a highway is considered to be a motor vehicle as defined in KRS 186.010(4) and shall be titled in accordance with KRS Chapter 186A and registered as a motor vehicle in accordance with KRS 186.050(3)(a)
(5) An operator of a low-speed vehicle operating on a highway shall comply with the traffic regulations of KRS Chapter 189 and shall be subject to the provisions of KRS Chapter 189A.

KRS 189.283 Regulation of commercial parcel delivery made by means of low-speed vehicle, golf cart, or utility vehicle – Administrative regulations.
Penalty: KRS 189.993(12)

(1) As used in this section:
(a) "Commercial delivery personnel" means employees of a licensed commercial delivery service;
(b) "Golf cart" has the same meaning as in KRS 189.286;
(c) "Local government" has the same meaning as in KRS 189.286;
(d) "Low-speed vehicle" has the same meaning as in KRS 186.010;
(e) "Residential area" means areas zoned primarily or exclusively for single-family or multifamily residential use; and
(f) "Utility vehicle" means a vehicle designed and manufactured for general maintenance, security, and landscaping purposes, but does not include any vehicle designed or used primarily for the transportation of persons or property on a street or highway, a golf cart, or an all-terrain vehicle as defined in KRS 189.010.
(2) Commercial delivery personnel may operate low-speed vehicles, golf carts, or utility vehicles solely for the purpose of delivering express envelopes and packages if:
(a) The operator has a valid operator's license in his or her possession;
(b) The vehicles are solely operated in residential areas and on public roadways with a posted speed limit of thirty-five (35) miles per hour or less;
(c) At any point after a required notice of intent to operate is provided to the local government pursuant to subsection (8) of this section, the local government having jurisdiction over the public roadways described in paragraph (b) of this subsection has not enacted an ordinance prohibiting commercial delivery personnel from operating on those roadways;
(d) The size of the combined length and girth packages does not exceed one hundred thirty (130) inches and the weight of the packages does not exceed one hundred fifty (150) pounds; and
(e) The vehicles are being operated between:
1. Sunrise and sunset; or
2. A time period specified by local ordinance under the provisions of subsection (6) of this section.
(3) Vehicles operating under subsection (2) of this section shall:
(a) Be titled in accordance with KRS Chapter 186A;
(b) Be registered as a motor vehicle in accordance with KRS 186.050(3)(a);
(c) Be insured in compliance with KRS 281.655;
(d) Meet the federal motor vehicle safety standards for low-speed vehicles set forth in 49 C.F.R. sec. 571.500;
(e) Be marked in a conspicuous manner with the name of the delivery service;
(f) Bear an identifying sticker or tag issued by the cabinet. The sticker or tag shall carry a unique ID; and
(g)Comply with vehicle standards established by administrative regulations promulgated under subsection (9) of this section.
(4) Commercial delivery personnel may pull a trailer from vehicles operated under this section if the trailer is registered in accordance with KRS 186.675(4).
(5) Commercial delivery personnel operating a vehicle on a public roadway under this section shall be subject to the traffic regulations in this chapter.
(6) The governing body of a local government may, by local ordinance, regulate a vehicle operating under this section on any public roadway under its jurisdiction by specifying:
(a) Each roadway that is prohibited for use by vehicles operating under this section; and
(b) The time period during which vehicles under this section may operate.
* * * * *
(8) At least sixty (60) days prior to commencing the operation of low-speed vehicles, golf carts, or utility vehicles under this section, a commercial delivery service shall provide notice to a local government of its intent to operate on roadways under the local government's jurisdiction. Notification under this subsection shall not be required for local governments that have adopted an ordinance under KRS 189.286.

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KRS 189.284 Operation of alternative-speed motorcycle on highway
Penalty: KRS 189.993(12)

(1) As used in this section, "alternative-speed motorcycle" shall have the same meaning as in KRS 186.010(17).
(2) A person may operate an alternative-speed motorcycle on a highway if:
  (a) The motorcycle bears a sticker, affixed by the manufacturer or dealer, on the left side of the rear window that indicates the vehicle's maximum speed rating;
  (b) The motorcycle is equipped with:
    1. Headlights, front and rear turn signal lights, taillights, and brake lights;
    2. Three (3) red reflectors, two (2) of which must be placed on each side as far to the rear of the vehicle as practicable, and one (1) of which must be placed on the rear of the vehicle;
    3. An exterior mirror mounted on the driver's side of the vehicle and either an exterior mirror mounted on the passenger's side of the vehicle or an interior mirror;
    4. A parking brake;
    5. A windshield that conforms to the federal motor vehicle safety standard provided in 49 CFR 571.205;
    6. A seatbelt assembly that conforms to the federal motor vehicle safety standard provided in 49 CFR 571.209; and
    7. A roll bar, roll cage, or crush-proof body design;
  (c) The posted speed limit of the highway is thirty-five (35) miles per hour or less;
  (d) The operator of the alternative-speed vehicle does not cross a roadway at an at-grade intersection where the roadway being crossed has a posted speed limit of more than thirty-five (35) miles per hour unless the intersection is equipped with an electronic signal;
  (e) The operator has a valid motorcycle operator's license in his or her possession; and
  (f) The alternative-speed motorcycle has not been modified to increase its speed above its original standard manufactured limit.
(3) An alternative-speed motorcycle operating on a highway shall be insured in compliance with KRS 304.39-080 by the owner or operator, and the proof of insurance shall be inside the vehicle at all times of operation on a highway.
(4) An alternative-speed motorcycle operating on a highway is considered to be a motorcycle as defined in Section I of this Act and shall be titled in accordance with KRS Chapter 186A and registered as a motorcycle in accordance with KRS 186.050(2).
(5) An operator of an alternative-speed motorcycle shall be exempt from the protective headgear requirements of KRS 189.285.
(6) Except as provided in this section, an operator of an alternative-speed motorcycle operating on a highway shall comply with the traffic regulations of KRS Chapter 189 and shall be subject to the provisions of KRS Chapter 189A.

KRS 189.285 Regulations for operating and riding on motorcycles – Headgear requirements – Definitions of motorcycle and moped
Penalty: KRS 189.990(1)

(1) A person shall not operate a motorcycle on a highway:
  (a) Except when that person is in possession of a valid motorcycle operator's license; and
  (b) Unless that person uses an approved eye-protective device, in the manner prescribed by the secretary of the Transportation Cabinet, at all times such vehicle is in motion; and
  (c) Unless the motorcycle is equipped with a rear-view mirror as required under KRS 189.130.
(2) A person shall not operate or ride as a passenger on a motorcycle:
  (a) Except on a seat permanently attached to that vehicle and specifically designed to carry the operator or passenger in a safe manner; and
  (b) Except when using a footrest permanently attached to that vehicle and specifically designed to carry that person in a safe manner.
(3) The following persons shall be required to wear protective headgear, in the manner prescribed by the secretary of the Transportation Cabinet, at all times the motorcycles they are riding are in

motion on a public highway:
(a) A person under the age of twenty-one (21) years who is operating a motorcycle or who is a passenger on a motorcycle or in a sidecar attachment;
(b) A person who possesses a motorcycle instruction permit and who is operating a motorcycle; and
(c) A person who has held a valid motorcycle operator's license, or combination motor vehicle-motorcycle operator's license, for less than one (1) year and who is operating a motorcycle.

(4) A motorcycle operator authorized to drive a motorcycle on an instruction permit shall not be authorized to carry passengers.

* * * * *

(6) As used in this chapter:
(a) "**Motorcycle**" means any motor driven vehicle having a seat or saddle for the use of the operator and designed to travel on not more than three (3) wheels in contact with the ground, but excluding tractors and vehicles on which the operator and passengers ride in an enclosed cab and excluding a moped as defined in this subsection; and
(b) "**Moped**" means either a motorized bicycle whose frame design may include one (1) or more horizontal crossbars supporting a fuel tank so long as it also has pedals, or a motorized bicycle with a step-through type frame which may or may not have pedals rated no more than two (2) brake horsepower, a cylinder capacity not exceeding fifty (50) cubic centimeters, an automatic transmission not requiring clutching or shifting by the operator after the drive system is engaged, and capable of a maximum speed of not more than thirty (30) miles per hour.

KRS 189.2851 Operation, titling, registration, and insuring of motor scooters – Headgear requirements

(1) As used in this section, "motor scooter" has the same meaning as in KRS 186.010.
(2) A person may operate a motor scooter on a highway if the operator has a valid motorcycle operator's license or motorcycle instructional permit in his or her possession.
(3) A motor scooter operating on a highway is considered to be a motorcycle as defined in KRS 186.010 and shall be titled in accordance with KRS Chapter 186A and registered as a motorcycle in accordance with KRS 186.050(2).
(4) A motor scooter operating on a highway shall be insured in compliance with KRS 304.39-110 by the owner or operator, and the proof of insurance shall be in possession of the operator at all times of operation on a highway.
(5) A person operating a motor scooter on a highway shall comply with the traffic regulations of this chapter, meet the same equipment standards as those for motorcycles in this chapter, and shall be subject to the provisions of KRS Chapter 189A.
(6) A person operating a motor scooter shall be subject to the protective headgear requirements of KRS 189.285.

KRS 189.286 Local government may permit operation of golf cart on public roadway -- Ordinance – Qualifications for operation – Exemption from title, registration, and emissions compliance requirements – Preemption by Transportation Cabinet

(1) As used in this section:
(a) “Golf cart” means any self-propelled vehicle that:
1. Is designed for the transportation of players or maintaining equipment on a golf course, while engaged in the playing of golf, supervising the play of golf, or maintaining the condition of the grounds on a golf course;
2. Has a minimum of four (4) wheels;
3. Is designed to operate at a speed of not more than thirty-five (35) miles per hour;
4. Is designed to carry not more than six (6) persons including the driver;
5. Has a maximum gross vehicle weight of two thousand five hundred (2,500) pounds;
6. Has a maximum rated payload capacity of one thousand two hundred (1,200) pounds; and
7. Is equipped with the following:

a. Headlamps;
b. Tail lamps;
c. Stop lamps;
d. Front and rear turn signals;
e. One (1) red reflex reflector on each side as far to the rear as practicable, and one (1) red reflex reflector on the rear;
f. An exterior mirror mounted on the driver's side of the vehicle and either an exterior mirror mounted on the passenger's side of the vehicle or an interior mirror;
g. A parking brake;
h. For each designated seating position, a seatbelt assembly that conforms to the federal motor vehicle safety standard provided in 49 C.F.R. sec. 571.209; and
i. A horn that meets the requirements of KRS 189.080; and

(b) "Local government" means a city, county, charter county government, urban- county government, consolidated local government, unified local government, or a special district.

(2) The governing body of a local government may authorize and regulate the operation of a golf cart on any public roadway under its jurisdiction if the local government adopts an ordinance specifying each roadway that is open for golf cart use.

(3) An ordinance created under subsection (2) of this section shall require that a golf cart operated on a designated public roadway;
(a) Be issued a permit for the golf cart by the local government;
(b) Display a sticker or permit that identifies that the golf cart is allowed to be operated on specific roadways within the local government; and
(c) Be inspected by a certified inspector designated by the county sheriff and certified through the Department of Vehicle Regulation to ensure that the golf cart complies with the requirements of this section. The inspection fee under this paragraph shall not exceed five dollars ($5) with an additional fee not to exceed ten dollars ($10) per trip charged if it becomes necessary for the certified inspector to travel to the site of the golf cart rather than having the golf cart brought to the sheriff's inspection area.

(4) A person may operate a golf cart on a public roadway pursuant to subsection (2) of this section if:
(a) The posted speed limit of the designated public roadway is thirty-five miles per hour or less;
(b) The operator of the golf cart does not cross a roadway at an intersection where the roadway being crossed has a posted speed limit of more than thirty-five (35) miles per hour;
(c) The operator has a valid operator's license in his or her possession; and
(d) The golf cart displays a slow-moving vehicle emblem in compliance with KRS 189.820.

(5) A golf cart operating on a public roadway under subsection (2) of this section shall be insured in compliance with KRS 304.39-080 by the owner or operator, and the proof of insurance shall be inside the golf cart at all times of operation on a public roadway.

(6) Any person operating a golf cart on a public roadway under the provisions of this section shall be subject to the traffic regulation of KRS Chapter 189.

(7) A golf cart operating on a public roadway designated by a local government under subsection (2) of this section is not considered to be a motor vehicle and is exempt from:
(a) Title requirements of KRS 186.020;
(b) Vehicle registration requirements of KRS 186.050; and
(c) Emissions compliance certificates pursuant to KRS 224-20.720.

(8) A local government may adopt more stringent local ordinances governing golf cart safety equipment and operation than specified in this section.

(9) The Transportation Cabinet may prohibit the operation of a golf cart on a public roadway designated under subsection (2) of this section that crosses a state-maintained highway under its jurisdiction if it determines that such prohibition is necessary in the interest of public safety.

(10) The provisions of this section shall not apply to a golf cart that is not used on a public roadway except to cross a roadway while following a golf cart path on a golf course.

KRS 189.288 Operation, insuring, titling, and registration of autocycles – Exemption from headgear requirements

(1) As used in this section, "autocycle" has the same meaning as in Section 1 of this Act.

(2) (a) A person may operate an autocycle on a highway if the operator has a valid operator's license in his or her possession.
(b) An operator of an autocycle shall not be required to obtain a motorcycle license or endorsement.
(3) An autocycle operating on a highway shall be insured in compliance with KRS 304.39-110 by the owner or operator, and the proof of insurance shall be inside the vehicle at all times of operation on a highway.
(4) An autocycle operating on a highway is considered to be a motorcycle as defined in Section 1 of this Act and shall be titled in accordance with KRS Chapter 186A and registered as a motorcycle in accordance with KRS 186.050(2).
(5) A person operating an autocycle on a highway shall comply with the traffic regulations of KRS Chapter 189 and shall be subject to the provisions of KRS Chapter 189A.
(6) An operator of an autocycle shall be exempt from the protective headgear requirements of KRS 189.285.

KRS 189.289 Operation of electric low-speed scooter on highway, bicycle lane, or bicycle path

(1) A person sixteen (16) years of age or older, may operate an electric low-speed scooter on a highway, bicycle lane, or bicycle path.
(2) A person operating an electric low-speed scooter under this section shall be subject to traffic regulations outlined in this chapter, and the provisions of KRS 189.520.
(3) An electric low-speed scooter shall be equipped with and shall have illuminated, at least one (1) headlamp and at least one (1) rear red light when:
(a) Operated during the period from one-half (1/2) hour after sunset to one half (1/2) hour before sunrise; or
(b) At such other times as atmospheric conditions render visibility as low as or lower than is ordinarily the case during that period.
(4) An electric low-speed scooter may be parked on a sidewalk in a manner that does not impede the reasonable movement of pedestrian or any other traffic.
(5) An operator of an electric low-speed scooter and any company or entity that provides electric low-speed scooters for rental, shall comply with all local government ordinances.
(6) The Transportation Cabinet shall promulgate administrative regulations pursuant to KRS Chapter 13A to establish safe operating standards for electric low-speed scooters. Administrative regulations established under this section shall not include any equipment or helmet use requirements.

KRS 189.290 Operator of vehicle to drive carefully
Penalty: KRS 189.990(1)

(1) The operator of any vehicle upon a highway shall operate the vehicle in a careful manner, with regard for the safety and convenience of pedestrians and other vehicles upon the highway.
(2) A person shall not willfully operate any vehicle on any highway in such a manner as to injure the highway.
(3) A person shall not willfully operate any vehicle on any highway in such a manner as to injure vehicles or equipment located in or near a highway work zone.
(4) A person shall not operate any vehicle in a reckless or negligent manner as to endanger persons or property in or near a highway, or in or near a highway work zone.
(5) In addition to any other penalty, an operator who violates subsection (3) or (4) of this section shall be subject to revocation of his or her operator's license under KRS 186.560.

KRS 189.292 Use of personal communication device prohibited while operating motor vehicle in motion on traveled portion of roadway – Exclusions – Administrative regulations
Penalty: KRS 189.990(30)

(1) As used in this section, “personal communication device” means a device capable of two (2) way audio or text communication that emits an audible signal, vibrates, displays a message, or

otherwise summons or delivers communication to the possessor, including but not limited to a paging device and a cellular telephone.

(2) Except as provided in subsection (3) of this section, no person shall, while operating a motor vehicle that is in motion on the traveled portion of the roadway, write, send, or read text-based communication using a personal communication device to manually communicate with any person using text-based communication, including but not limited to communications referred to as a text message, instant message, or electronic mail.

(3) Subsection (2) of this section shall not apply to:
   (a) The use of a global positioning system feature of a personal communication device;
   (b) The use of a global positioning or navigation system that is physically or electronically integrated into the motor vehicle;
   (c) The reading, selecting, or entering of a telephone number or name in a personal communication device for the purpose of making a phone call;
   (d) An operator of an emergency or public safety vehicle, when the use of a personal communication device is an essential function of the operator's official duties; or
   (e) The operator of a motor vehicle who writes a text message on a personal communication device to:
      1. Report illegal activity;
      2. Summon medical help;
      3. Summon a law enforcement or public safety agency; or
      4. Prevent injury to a person or property.

(4) The secretary of the Transportation Cabinet may promulgate administrative regulations pursuant to KRS Chapter 13A to implement the provisions of this section, including by not limited to updates or advances in the automotive and information technology industries.

KRS 189.294 Use of personal communication device by a minor prohibited while operating motor vehicle, motorcycle, or moped in motion on traveled portion of roadway – Exclusions – Administrative regulations

Penalty: KRS 189.990(30)

(1) As used in this section, "personal communication device" shall have the same meaning as defined in KRS 189.292.

(2) Any person under the age of eighteen (18) who has been issued an instruction permit, intermediate license, or operator's license shall not operate a motor vehicle, motorcycle, or moped that is in motion on the traveled portion of a roadway while using a personal communication device, except to summon medical help or a law enforcement or public safety agency in an emergency situation.

(3) Use of a personal communication device does not include a stand-alone global positioning system, a global positioning or navigation system that is physically or electronically integrated into the motor vehicle, or in-vehicle security, diagnostics, and communications system, but does include manually entering information into the global positioning system feature of a personal communication device.

(4) This section shall not apply to the use of a citizens band radio or an amateur radio by a motor vehicle operator.

(5) The secretary of the Transportation Cabinet may promulgate administrative regulations pursuant to KRS Chapter 13A to implement the provisions of this section, including but not limited to updates or advances in the automotive and information technology industries.

KRS 189.300 Vehicles to keep to right

Penalty: KRS 189.990(1)

(1) The operator of any vehicle when upon a highway shall travel upon the right side of the highway whenever possible, and unless the left side of the highway is clear of all other traffic or obstructions for a sufficient distance ahead to permit the overtaking and passing of another vehicle to be completed without interfering with the operation of any vehicle approaching from the opposite direction or any vehicle being overtaken. The overtaking vehicle shall return to the proper traffic lane as soon as practicable and, if the passing vehicle enters the oncoming traffic

lane, before coming within two hundred (200) feet of any approaching vehicle.

(2) The operator of any vehicle moving slowly upon a highway shall keep his vehicle as closely as practicable to the right-hand boundary of the highway, allowing more swiftly moving vehicles reasonably free passage to the left, unless signage or markings indicate otherwise.

KRS 189.310 Vehicles meeting other vehicles and animals

Penalty: KRS 189.990(1)

(1) Two (2) vehicles passing or about to pass each other in opposite directions shall have the right of way, and no other vehicle to the rear of those two (2) vehicles shall pass or attempt to pass either of those vehicles.

(2) Vehicles proceeding from opposite directions shall pass each other from the right, each giving to the other one-half (1/2) of the highway as nearly as possible.

(3) Every person operating a vehicle on a highway and approaching any animal being ridden or driven, shall exercise every reasonable precaution to prevent frightening the animal and to insure the safety of the person riding or driving it.

KRS 189.330 Turning and right-of-way at intersections

Penalty: KRS 189.990(1)

(1) When two (2) vehicles approach or enter an intersection from different roadways at approximately the same time, the operator of the vehicle on the left shall yield the right-of-way to the vehicle on the right.

(2) The right-of-way rule declared in subsection (1) is modified at highways and through intersections and as otherwise stated in this chapter.

(3) Preferential right-of-way may be indicated by stop signs or yield signs. The state highway commissioner with reference to state highways and local authorities with reference to other highways under their jurisdiction may designate any intersection as a stop intersection or as a yield intersection and erect stop signs or yield signs at one (1) or more entrances to such intersections.

(4) Except when directed to proceed by a police officer, every operator of a vehicle approaching a stop sign shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or, if none, then at the point nearest the intersecting roadway where the operator has view of approaching traffic on the intersecting roadway before entering it. After having stopped the operator shall yield the right-of-way to any vehicle in the intersection or approaching on another roadway so closely as to constitute an immediate hazard during the time when such operator is moving across or within the intersection or junction of roadways.

(5) The operator of a vehicle approaching a yield sign shall in obedience to such sign slow down to a speed reasonable for the existing conditions and, if required for safety to stop, shall stop at a clearly marked stop line, but if none, before entering the crosswalk on the near side of the intersection, or, if none, then at the point nearest the intersecting roadway where the operator has a view of approaching traffic on the intersecting roadway before entering it. After slowing and stopping, the operator shall yield the right-of-way to any vehicle in the intersection or approaching on another roadway so closely as to constitute an immediate hazard during the time such operator is moving across or within the intersection or junction of roadways. Provided, however, that if such an operator is involved in a collision with a vehicle in the intersection or junction of roadways after driving past a yield sign without stopping, such collision shall be deemed prima facie evidence of his failure to yield right-of-way.

(6) The operator of a vehicle intending to turn shall do so as follows:

(a) Right turns - both the approach for a right turn and a right turn shall be made as close as practicable to the right-hand curb or edge of the roadway;

(b) Left turns - the operator of a vehicle intending to turn left shall approach the turn in the extreme left-hand lane lawfully available to traffic moving in the direction of travel of such vehicle. Whenever practicable the left turn shall be made to the left of the center of the intersection and so as to leave the intersection or other location in the extreme right-hand

lane lawfully available to traffic moving in the same direction as such vehicle on the roadway being entered.

(7) The Transportation Cabinet and local authorities in their respective jurisdictions may cause official traffic control devices to be placed and thereby require and direct that a different course from that specified in this section be traveled by turning vehicles and when such devices are so placed no operator shall turn a vehicle other than as directed and required by such devices.

(8) The operator of any vehicle shall not turn such vehicle so as to proceed in the opposite direction unless such movement can be made in safety without interfering with other traffic.

(9) The operator of a vehicle intending to turn to the left within an intersection or into an alley, private road or driveway shall yield the right-of-way to any vehicle approaching from the opposite direction which is within the intersection or so close thereto as to constitute an immediate hazard.

(10) The operator of a vehicle about to enter or cross a roadway from any place other than another roadway shall yield the right-of-way to all vehicles approaching on the roadway to be entered or crossed.

(11) On highways with a center lane restricted for left turns off the highway by vehicles proceeding in both directions:

(a) A left turn shall not be made from any other lane; and

(b) A vehicle shall not be driven in a center lane as described in this subsection except when preparing for or making a left turn off the highway or merging onto the highway after making a left turn from a side road or other entrance.

KRS 189.340 Overtaking vehicles – Traffic lanes – Following vehicles

Penalty: KRS 189.990(1)

(1) The driver of a vehicle overtaking other vehicles proceeding in the same direction shall pass to the left of them and shall not again drive to the right until reasonably clear of those vehicles. The driver of a vehicle overtaking streetcars may pass either to the right or left when so directed by a police officer, when on a one (1) way street or where the location of the tracks prevents compliance with this section, with regard for other traffic.

(2) (a) The driver of a vehicle overtaking a bicycle or electric low-speed scooter proceeding in the same direction shall:

1. If there is more than one (1) lane for traffic proceeding in the same direction, move the vehicle to the immediate left, if the lane is available and moving in the lane is reasonably safe; or

2. If there is only one (1) lane for traffic proceeding in the same direction, pass to the left of the bicycle or an electric low-speed scooter at a distance of not less than three (3) feet between any portion of the vehicle and the bicycle or an electric low-speed scooter and maintain that distance until safely past the overtaken bicycle or electric low-speed scooter. If space on the roadway is not available to have a minimum distance of three (3) feet between the vehicle and the bicycle or electric low-speed scooter, then the driver of the passing vehicle shall use reasonable caution in passing the bicyclist or electric low-speed scooter operator.

(b) The driver of a motor vehicle may drive to the left of the center of a roadway, including when a no-passing zone is marked in accordance with subsection (6) of this section, to pass a person operating a bicycle or electric low-speed scooter only if the roadway to the left of the center is unobstructed for a sufficient distance to permit the driver to pass the person operating the bicycle or electric low-speed scooter safely and avoid interference with oncoming traffic. This paragraph does not authorize driving on the left side of the center of the roadway when otherwise prohibited under state law.

(c) The operator of a bicycle or electric low-speed scooter shall not ride more than two (2) abreast on a single highway lane unless operating on any part of the roadway marked exclusively for bicycle use. Persons riding two (2) abreast shall not impede the normal and reasonable movement of traffic.

(3) The operator of a vehicle may overtake and pass upon the right of another vehicle only under the following conditions:

(a) When the vehicle overtaken is making or about to make a left turn;

(b) Upon a roadway with unobstructed pavement of sufficient width for two (2) or more lines of vehicles moving lawfully in the direction being traveled by the overtaking vehicle.

(4) The operator of a vehicle may overtake and pass another vehicle upon the right only under conditions permitting the passing in safety, and not by driving off the roadway unless the vehicle being passed is at a complete stop and the passing may be made safely.

(5) A person shall not drive a vehicle to the left side of the center of the roadway in overtaking and passing another vehicle proceeding in the same direction unless the left side is clearly visible and free of oncoming traffic for a sufficient distance ahead to permit overtaking and passing to be completely made without interfering with the safe operation of any vehicle approaching from the opposite direction or any vehicle overtaken. In every event the overtaking vehicle must return to the right-hand side of the roadway before coming within two hundred (200) feet of any vehicle approaching from the opposite direction.

* * * * *

(7) Whenever any roadway has been divided into three (3) or more clearly marked lanes for travel in one (1) direction, the following additional rules shall apply:
   (a) A person shall drive a vehicle as nearly as may be practical entirely within a single lane and shall not move from that lane until the driver ascertains that the movement can be made with safety;
   (b) A person shall not drive a vehicle[shall not be driven] in the center lane except when overtaking and passing another vehicle where the roadway is clearly visible and the center lane is clear of traffic within a safe distance, or in preparation for a left turn or where a center lane is at the time allocated exclusively to traffic moving in the direction in which the vehicle is proceeding and is signposted to give notice of the allocation;
   (c) A person shall not operate a truck tractor, trailer, or semitrailer in the leftmost lane except when entering or leaving a highway, yielding to traffic coming onto the highway, or when traffic conditions exist which would prohibit safe use of the right or center lanes; and
   (d) Official signs may be erected directing slow-moving traffic to use a designated lane or allocating specified lanes to traffic moving in the same direction and operators of vehicles shall obey the directions of these signs.

(8) On any limited access highway of four (4) lanes or more with a posted speed limit of at least sixty-five (65) miles per hour, a person shall not operate a motor vehicle in the leftmost lane, except when:
   (a) Overtaking a slower vehicle;
   (b) Yielding to traffic coming onto the highway; or
   (c) Traffic or road conditions exist which would prohibit safe use of the right or center lanes.

(9) (a) Except as provided in paragraph (c) of this subsection, the operator of a motor vehicle shall not follow another vehicle more closely than is reasonable and prudent, having regard for the speed of the vehicle and the traffic upon and condition of the highway.
   (b) Except as provided in paragraph (c) of this subsection, the operator of any motor truck, semitrailer truck, bus, or heavy construction equipment unit, when traveling upon a highway outside of a business or residential district, shall not follow within two hundred fifty (250) feet of another[such] vehicle or equipment unit. This subsection shall not prevent overtaking and passing, nor shall it apply to any lane specially designated for use of motor trucks or semitrailer trucks, buses or heavy construction equipment units.
   (c) Paragraphs (a) and (b) of this subsection shall not apply to a trailing commercial motor vehicle involved in a platoon.

KRS 189.345 Prohibitions against driving on left side of roadway

Penalty: KRS 189.393(12)

(1) No vehicle shall be driven on the left side of the roadway under the following conditions:
   (a) When approaching or upon the crest of a grade or a curve in the highway where the operator's view is obstructed within such distance as to create a hazard in the event another vehicle might approach from the opposite direction;
   (b) When approaching within one hundred (100) feet of or traversing any intersection or railroad grade crossing;

(c) When the view is obstructed upon approaching within one hundred (100) feet of any bridge, viaduct or tunnel.

(2) The foregoing limitations shall not apply upon a one (1) way roadway, nor when an obstruction exists making it necessary to drive to the left of the center of the highway; provided, any person so doing shall yield the right of way to all vehicles traveling in the proper direction upon the unobstructed portion of the highway within such distance as to constitute an immediate hazard, nor to the operator of a vehicle turning left into or from an alley, private road or driveway.

KRS 189.350 Assistance in passing or overtaking

Penalty: KRS 189.990(1)

(1) The operator of a vehicle about to be overtaken and passed shall give way to the right in favor of the overtaking vehicle if the overtaking vehicle is a motor vehicle.

(2) In all cases of meeting, passing, or overtaking of vehicles such assistance shall be given by the operator and occupants of each vehicle, respectively, to the other as the circumstances reasonably demand, in order to obtain clearance and avoid accidents.

KRS 189.370 Passing stopped school or church bus prohibited – Application to properly marked vehicles – Rebuttable presumption as to identity of violator

Penalty: KRS 189.990(5)

(1) If any school or church bus used in the transportation of children is stopped upon a highway for the purpose of receiving or discharging passengers, with the stop arm and signal lights activated, the operator of a vehicle approaching from any direction shall bring his vehicle to a stop and shall not proceed until the bus has completed receiving or discharging passengers and has been put into motion. The stop requirement provided for in this section shall not apply to vehicles approaching a stopped bus from the opposite direction upon a highway of four (4) or more lanes.

(2) Subsection (1) of this section shall be applicable only when the bus displays the markings and equipment required by Kentucky minimum specifications for school buses.

(3) If any vehicle is witnessed to be in violation of subsection (1) of this section and the identity of the operator is not otherwise apparent, it shall be a rebuttable presumption that the person in whose name the vehicle is registered or leased was the operator of the vehicle at the time of the alleged violation and is subject to the penalties as provided for in KRS 189.990(5).

KRS 189.375 School or church bus signaling device – Use – Stopping regulated

Penalty: KRS 189.993(4)

No school or church bus shall be licensed or operated for the transportation of school children unless it is equipped with bus alternating flashing signal lamps and a stop arm folding sign. The bus body shall be equipped with a system of four (4) red signal lamps, two (2) on the front and two (2) on the rear of the bus, and four (4) amber signal lamps. Each amber signal lamp shall be located near each red signal lamp, at the same level, but closer to the vertical centerline of the bus. The bus body shall be equipped with a stop arm folding sign on the driver's side with letters at least six (6) inches in height displaying the word "stop" on both sides. Prior to stopping the school bus for the purpose of receiving or discharging school children, the driver shall activate the amber flashing signal lamps. Once the bus comes to a complete stop, the driver shall extend the stop arm and activate the red flashing signal lights prior to opening the door so it shall be plainly visible to traffic approaching from both directions that the bus is in the process of receiving or discharging passengers. No driver shall stop a school or church bus for receiving or discharging passengers in a no passing zone which does not afford reasonable visibility to approaching motor vehicles from both directions unless a "School Bus Stop Ahead" sign has been installed a reasonable distance before that spot in the roadway. No driver shall stop a school or church bus for the purpose of receiving passengers from or discharging passengers to the opposite side of the road on a highway of four (4) or more lanes; provided, that this provision does not prohibit the discharging of passengers at a marked pedestrian crossing.

KRS 189.377 Yielding right-of-way to solid waste collection service vehicles

Penalty: KRS 189.993(12)

(1) As used in this section, "solid waste collection service vehicle" means a vehicle used by a solid waste collection service provider registered with a county pursuant to KRS 224.43-315(2).
(2) Upon approaching and passing a stationary solid waste collection service vehicle that is giving a visual signal by alternately displaying flashing yellow, red, white, or amber lights, the operator of the approaching motor vehicle shall yield the right-of-way to the solid waste collection service vehicle or any collection service employees by:
(a) Reducing to, and maintaining, a safe speed for weather, road conditions, and vehicular or pedestrian traffic; and
(b) Proceeding with due care and caution.
(3) This section may be cited as the Slow Down to Get Around Law.

KRS 189.378 Funeral processions
Penalty: KRS 189.993(12)

(1) "**Funeral procession**," as used in this section, means two (2) or more vehicles accompanying the body of a deceased person when each vehicle has its headlights on or is displaying a pennant attached in such a manner as to be clearly visible to approaching traffic.
(2) A vehicle in a funeral procession has the right-of-way at an intersection and may proceed through the intersection if the procession is led by an escort vehicle displaying flashing yellow, red, or blue lights, except:
(a) When the right-of-way is required by an emergency vehicle as defined by KRS 189.910;
(b) When vehicles in the procession are directed otherwise by a police or safety officer; or
(c) When the vehicle is a train or locomotive.
(3) Before assuming the right-of-way, a person who drives a vehicle in a funeral procession shall exercise due caution with regard to crossing traffic.
(4) A person who drives a vehicle that is not part of a funeral procession shall not drive the vehicle between the vehicles of the funeral procession or otherwise interfere with the progress of the procession, except when:
(a) The person is authorized to do so by a police or safety officer; or
(b) The vehicle is an emergency vehicle as defined by KRS 189.910.
(5) A person who drives a vehicle that is not a part of a funeral procession shall not illuminate the vehicle headlights or engage in any other act for the purpose of securing the right-of-way granted to funeral processions.
(6) The escort vehicle, hearse, or other vehicles in a procession may be equipped with flashing amber lights for the purpose of notifying the general public of the procession and gaining the right-of-way at intersections, or signaling the end of a procession.
(7) Persons authorized to use flashing lights as defined in KRS 189.920 may use them while accompanying a funeral procession to warn traffic that a procession is approaching or that it is in progress.
(8) When a funeral procession is in progress, a person driving a vehicle not in the procession shall not pass or overtake any vehicle in the procession unless:
(a) The person is directed to do so by a police or safety officer;
(b) The procession is on a street, road, or highway outside the corporate limits of a city, town, or urban-county; or
(c) The procession is on an interstate highway or a state parkway.
(9) Any person who violates this section shall be guilty of a Class B misdemeanor.

KRS 189.380 Signals
Penalty: KRS 189.990(1)

(1) A person shall not turn a vehicle or move right or left upon a roadway until the movement can be made with reasonable safety nor without giving an appropriate signal in the manner hereinafter provided.
(2) A signal indicating the intention to turn right or left shall be given continuously for not less than the last one hundred (100) feet traveled by the motor vehicle before the turn.
(3) A bus driver shall not stop or suddenly decrease the speed of a vehicle without first giving an appropriate signal to traffic following the bus.

(4) All signals required for a motor vehicle shall be given by signal lamps or mechanical signal devices.
(5) A signal required for a vehicle that is not a motor vehicle may be given by either hand signals, signal lamps, or mechanical signal devices. The signal shall be given intermittently for the last fifty (50) feet traveled by the vehicle before the turn.
(6) Hand signals shall be executed in the following manner when operating a vehicle that is not a motor vehicle:
   (a) The hand and arm shall be extended horizontally from the left side of the vehicle to indicate a left turn;
   (b) The left arm shall be extended horizontally with the hand and arm extended upward from the elbow or the right arm and hand shall be extended horizontally to indicate a right turn;
   (c) Either arm shall be extended horizontally with the hand and arm extended downward from the elbow to indicate a stop or decrease in speed.

KRS 189.390 Speed – Secretary authorized to increase speed limit in certain areas by official order - Parking

Penalty: KRS 189.990(1)

(1) As used in this section, unless the context requires otherwise:
   (a) "**Business district**" means the territory contiguous to and including a highway if, within six hundred (600) feet along the highway, there are buildings in use for business or industrial purposes that occupy three hundred (300) feet of frontage on one (1) side or three hundred (300) feet collectively on both sides of the highway;
   (b) "**Residential district**" means the territory contiguous to and including a highway not comprising a business district if the property on the highway for a distance of three hundred (300) feet or more is improved with residences or residences and buildings in use for business; and
   (c) "**State highway**" means a highway or street maintained by the Kentucky Department of Highways.
(2) An operator of a vehicle upon a highway shall not drive at a greater speed than is reasonable and prudent, having regard for the traffic and for the condition and use of the highway.
(3) The speed limit for motor vehicles on state highways shall be as follows, unless conditions exist that require lower speed for compliance with subsection (2) of this section, or the secretary of the Transportation Cabinet establishes a different speed limit in accordance with subsection (4) of this section:
   (a) Sixty-five (65) miles per hour on interstate highways, and parkways;
   (b) Fifty-five (55) miles per hour on all other state highways; and
   (c) Thirty-five (35) miles per hour in a business or residential district.
(4) (a) If the secretary of transportation determines, upon the basis of an engineering and traffic investigation, that any speed limit is greater or less than is reasonable or safe under the conditions found to exist at any intersection, or upon any part of a state highway, the secretary of transportation may establish by official order a reasonable and safe speed limit at the location. The secretary shall not increase any speed limit established by subsection (3) of this section in excess of sixty-five (65) miles per hour, except that, notwithstanding the provisions of subsection (3)(a) of this section, the secretary may increase the speed limit on any of the following segments of highway to seventy (70) miles per hour:
      1. Interstate 24 (entire length);
      2. Interstate 64 from Interstate 264 to the West Virginia state line;
      3. Interstate 65 from Interstate 264 to the Tennessee state line;
      4. Interstate 69 (entire length);
      5. Interstate 71 from Interstate 264 to Interstate 275;
      6. Interstate 75 from the Tennessee state line to Interstate 275;
      7. Interstate 165 (entire length);
      8. The Audubon Parkway (entire length);
      9. The Julian M. Carroll Purchase Parkway (entire length);
      10. The Bert T. Combs Mountain Parkway (entire length);
      11. The Bert T. Combs Mountain Parkway Extension (entire length);

12. The Edward T. Breathitt Pennyrile Parkway (entire length);
13. The Wendell H. Ford Western Kentucky Parkway (entire length);
14. The Louie B. Nunn Cumberland Parkway (entire length);
15. The Martha Layne Collins Bluegrass Parkway (entire length); and
16. The William H. Natcher Parkway (entire length).

(b) In a highway work zone, the Transportation Cabinet may temporarily reduce established speed limits without an engineering or traffic investigation. A speed limit established under this paragraph shall become effective when and where posted. The Transportation Cabinet shall post signs notifying the traveling public of the temporary highway work zone maximum speed limit. Nothing in this paragraph shall be construed to prevent the Transportation Cabinet from using moveable or portable speed limit signs in highway work zones.

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(6) The speed limit for motor vehicles in an off-street parking facility offered for public use, whether publicly or privately owned, shall be fifteen (15) miles per hour.

(7) Except as outlined in KRS 189.940, a person shall not drive a motor vehicle at a speed that will impede or block the normal and reasonable movement of traffic, except when reduced speed is necessary for safe operation or in compliance with law.

(8) In every charge for a violation of any speed limit specified in this section, the warrant or citation shall specify the speed at which the defendant is alleged to have driven, and the lawful speed limit applicable at the location where the violation is charged to have occurred.

KRS 189.393 Complying with traffic officer's signal

Penalty: KRS 189.990(19)
Not prepayable KRS 189.999(1)(b)

No operator of a vehicle, after having received a visual or audible signal from an officer directing traffic shall knowingly or wantonly disregard the signal so as to interfere with or endanger the operation of the traffic officer or other vehicles or pedestrians.

KRS 189.450 Stopping, standing, parking, or repairing vehicle on roadway or shoulders of highway

Penalty: KRS 189.990(1)

(1) No person shall stop a vehicle, leave it standing or cause it to stop or to be left standing upon any portion of the roadway; provided, however, that this section shall not be construed to prevent parking in front of a private residence off the roadway or street in a city or suburban area where such parking is otherwise permitted, as long as the vehicle so parked does not impede the flow of traffic. This subsection shall not apply to:
   (a) A vehicle that has been disabled on the right-of-way of such a highway in such a manner and to such extent that it is impossible to avoid the occupation of the shoulder of a state-maintained highway or impracticable to remove it from the shoulder of the highway until repairs have been made or sufficient help obtained for its removal. In no event shall a disabled vehicle remain on the shoulder of a state-maintained highway for twenty-four (24) hours or more;
   (b) Motor vehicles when required to stop in obedience to the provisions of any section of the Kentucky Revised Statutes or any traffic ordinance, regulation or sign or the command of any peace officer;
   (c) Vehicles operating as common carriers of passengers for hire and school buses taking passengers on such vehicle or discharging passengers therefrom, provided that no such vehicle shall stop for such purposes at a place on the highway which does not afford reasonable visibility to approaching motor vehicles from both directions;
   (d) Vehicles which are stopped for a period of not more than fifteen (15) minutes at a time for the purpose of collecting and transporting solid waste as defined in KRS 224.1-010(31)(a), and which are operated by a:
      1. Collection service registered in accordance with KRS 224.43-315; or
      2. Person or organization actively participating in the Adopt-a-Highway Program; or
   (e) Any vehicle required to stop by reason of an obstruction to its progress.

(2) When any police officer finds a vehicle standing upon such a highway in violation of this section, he may move or cause to be moved the vehicle, or require the operator or other person in charge of the vehicle to move it. The police officer may cause the vehicle to be removed by ordering any person engaged in the business of storing or towing motor vehicles to remove the vehicle to a site chosen by such person. Ownership of the vehicle shall be determined by the police officer's enforcement agency through the vehicle's license plates, serial number or other means of determining ownership. As soon as practicable, the police officer's enforcement agency shall notify the owner by mail that the vehicle was illegally upon public property; the name and address of the storage facility where the vehicle is located; that removal of the vehicle from the storage facility will involve payment of towing and storage charges; and that the vehicle may be sold pursuant to the provisions of KRS 376.275 if not claimed within sixty (60) days. No notification shall be required if ownership cannot be determined. In the event of a sale pursuant to KRS 376.275, the state shall receive any proceeds after the satisfaction of all liens placed on the vehicle.

(3) No vehicle shall be parked, stopped, or allowed to stand on the shoulders of any toll road, interstate highway, or other fully controlled access highway, including ramps thereto, nor shall any vehicle registered at a gross weight of over forty-four thousand (44,000) pounds be parked, stopped or allowed to stand on the shoulders of any state-maintained highway except that in the case of emergency, or in response to a peace officer's signal, vehicles shall be permitted to stop on the shoulders to the right of the traveled way with all wheels and projecting parts of the vehicles, including the load, completely clear of the traveled way. Parking of any vehicle which is disabled on the shoulders of a toll road, interstate highway, other fully controlled access highway, including ramps thereto, or any state-maintained highway not mentioned in this section for twenty-four (24) hours continuously is prohibited and vehicles violating this provision may be towed away at the cost of the owner.

(4) When any police officer finds a vehicle unattended upon any bridge or causeway or in a tunnel where the vehicle constitutes an obstruction to traffic, the officer may provide for the removal of the vehicle to the nearest garage or other place of safety as provided in subsection (2) of this section.

(5) No person shall stop or park a vehicle except when necessary to avoid conflict with other traffic or in compliance with the directions of a police officer or traffic control device, in the following places:
   (a) On a sidewalk;
   (b) In front of sidewalk ramps provided for persons with disabilities;
   (c) In front of a public or private driveway;
   (d) Within an intersection or on a crosswalk;
   (e) At any place where official signs prohibit stopping or parking; or
   (f) Within thirty (30) feet upon the approach to any flashing beacon, stop sign or traffic control signal located at the side of a roadway;
   (g) On any controlled access highway;
   (h) Within a highway tunnel;
   (i) Within fifteen (15) feet of a fire hydrant; or
   (j) In an area between the roadways of a divided highway.

(6) No person shall move a vehicle not lawfully under his control into any such prohibited area.

(7) The restrictions in subsection (5) (e) of this section shall not apply to sheriffs and their deputies or police officers when operating properly identified vehicles during performance of their official duties.

KRS 189.459 Parking limits for vehicles with plates or placards for persons with a disability – Prohibitions

Penalty: KRS 189.990(1)

(1) When a motor vehicle which is being operated by or for the benefit of the person with a disability who is in the motor vehicle at the time it is being operated is displaying an auto registration plate as provided in KRS 186.041 or 186.042 or 186.0425, an out-of-state or out-of-country registration plate for a person with a disability bearing the international symbol of access, a parking placard issued by any Veterans Administration hospital, or an accessible parking placard issued to a person with a disability as prescribed in KRS 189.456 or 189.458 or by another state or foreign

country when the accessible parking placard meets the basic requirements of KRS 189.456 or 189.458, the vehicle may be parked in a parking place designated as accessible to and for the use of a person with a disability.

(2) When parked where a parking limit is imposed, the vehicle may be parked for a period of two (2) hours in excess of the legal parking period permitted by local authorities, except where local ordinances or police regulations prohibit parking on a highway for the purpose of creating a fire lane or where the ordinances or police regulations provide for the accommodation of heavy traffic during morning, afternoon, or evening hours or where the motor vehicle is parked in such a manner as to clearly be a traffic hazard. No person shall park in a parking area designated as accessible to and for the use of a person with a disability in a motor vehicle not displaying either an auto registration plate as provided in KRS 186.041, 186.042, 186.0425, or an out-of-state registration plate designated for the use of a person with a disability on the rear of the vehicle unless he displays on the dashboard of his motor vehicle an accessible parking placard issued to a person with a disability. No person shall park a vehicle displaying an accessible parking placard in a parking area designated as accessible to and for the use of a person with a disability when the person with a disability is not in the motor vehicle.

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KRS 189.505 Motor vehicle races on highways prohibited

Penalty: KRS 189.993(5)

No person shall engage upon any street or highway in motor vehicle racing, drag racing, or any other form of competition involving motor vehicles.

KRS 189.515 Restrictions on operation of all-terrain vehicles

Penalty: KRS 189.990(7)

(1) As used in this section, "federal all-terrain vehicle standards" means the all-terrain vehicle standards set forth by the American National Standards Institute/Specialty Vehicle Institute of America and incorporated by reference in 16 C.F.R. sec 1420.3, to the extent those standards are applicable.

(2) Except for vehicles authorized to operate on a public highway as of July 15, 1998, and except as provided in subsection (7) of this section, a person shall not operate an all-terrain vehicle upon any public highway or roadway or upon the right-of-way of any public highway or roadway.

(3) A person shall not operate an all-terrain vehicle on private property without the consent of the landowner, tenant, or individual responsible for the property.

(4) A person shall not operate an all-terrain vehicle on public property unless the governmental agency responsible for the property has approved the use of all-terrain vehicles.

(5) Except for vehicles authorized to operate on a public highway, a person operating an all-terrain vehicle on public property shall wear approved protective headgear, in the manner prescribed by the secretary of the Transportation Cabinet, at all times that the vehicle is in motion. The approved headgear requirement shall not apply when the operator of any all-terrain vehicle is engaged in:
   (a) Farm or agriculture related activities;
   (b) Mining or mining exploration activities;
   (c) Logging activities;
   (d) Any other business, commercial, or industrial activity;
   (e) Use of that vehicle on private property; or
   (f) The crossing of a public roadway with a posted speed limit of fifty-five (55) miles per hour or less. The crossing of a public roadway outlined in this paragraph shall be in compliance with subsection (6)(a) of this section.

(6) (a) A parent or legal guardian of a minor who is under the age of six (6) shall not knowingly allow that person to operate an all-terrain vehicle.
   (b) A person under the age of sixteen (16) years shall not operate an all-terrain vehicle except under direct parental supervision.
   (c) A person under the age of sixteen (16) years, when operating or riding as a passenger on an all-terrain vehicle, shall wear approved protective headgear, in the manner prescribed by the secretary of the Transportation Cabinet, at all times that the vehicle is in motion.
   (d) A parent or guardian of a minor who is under the age of sixteen (16), or who does not possess an instruction permit, an intermediate license, or an operator's license, shall not knowingly allow that person to carry a passenger while operating an all-terrain vehicle.
   (e) A parent or guardian of a minor under the age of sixteen (16) shall not knowingly allow that person to operate an all-terrain vehicle in violation of the age restriction warning label affixed by the manufacturer as required by the federal all-terrain vehicle standards.

(7) (a) A person may operate an all-terrain vehicle on any two (2) lane public highway in order to cross the highway. In crossing the highway under this paragraph, the operator shall cross the highway at as close to a ninety (90) degree angle as is practical and safe, and shall not travel on the highway for more than two-tenths (2/10) of a mile.
   (b) A person may operate an all-terrain vehicle on any two (2) lane public highway, if the operator is engaged in farm or agricultural related activities, construction, road maintenance, or snow removal.
   (c) The Transportation Cabinet may designate, and a city or county government may designate, those public highways, segments of public highways, and adjoining rights-of-way of public highways under its jurisdiction where all-terrain vehicles that are prohibited may be operated.
   (d) A person operating an all-terrain vehicle on a public highway under this subsection shall possess a valid operator's license.
   (e) A person operating an all-terrain vehicle on a public highway under this subsection shall comply with all applicable traffic regulations.
   (f) A person shall not operate an all-terrain vehicle under this subsection unless the all-terrain vehicle has at least one (1) headlight and two (2) taillights, which shall be illuminated at all times the vehicle is in operation.

(g) A person operating an all-terrain vehicle under this subsection shall restrict the operation to daylight hours, except when engaged in snow removal or emergency road maintenance.
(h) It shall be unlawful for a person to remove from an all-terrain vehicle the manufacturer age restriction warning label required by the federal all-terrain vehicle standards.

KRS 189.517 Mini-truck—Definition—Criteria for operation—Permitted and prohibited uses

(1) As used in this section, "mini-truck" means a lightweight Japanese kei class utility vehicle.
(2) Except as provided in subsection (5) of this section, a person shall not operate a mini-truck upon any public highway or roadway or upon the right-of-way of any public highway or roadway.
(3) A person shall not operate a mini-truck on private property without the consent of the landowner, tenant, or individual responsible for the property.
(4) A person shall not operate a mini-truck on public property unless the governmental agency responsible for the property has approved the use of mini-trucks.
(5) (a) A person may operate a mini-truck on any two (2) lane public highway in order to cross the highway. In crossing the highway under this paragraph, the operator shall cross the highway at as close to a ninety (90) degree angle as is practical and safe, and shall not travel on the highway for more than two-tenths (2/10) of a mile.
(b) A person may operate a mini-truck on any two (2) lane public highway if the operator is engaged in farm or agricultural-related activities, construction, road maintenance, or snow removal.
(c) The Transportation Cabinet may designate, and a city or county government may designate, those public highways, segments of public highways, and adjoining rights-of-way of public highways under its jurisdiction where mini-trucks that are prohibited may be operated.
(d) A person operating a mini-truck on a public highway under this subsection shall possess a valid operator's license.
(e) A person operating a mini-truck on a public highway under this subsection shall comply with all applicable traffic regulations.
(f) A person shall not operate a mini-truck under this subsection unless the mini-truck has at least two (2) headlights and two (2) taillights, which shall be illuminated at all times the mini-truck is in operation.
(g) A person operating a mini-truck under this subsection shall restrict the operation to daylight hours, except when engaged in snow removal or emergency road maintenance.

KRS 189.520 Operating vehicle not a motor vehicle while under influence of intoxicants or substance which may impair driving ability prohibited – Presumptions concerning intoxication

Penalty: KRS 189.990(1) **Not prepayable** KRS 189.999(1)(b)
2**Penalty:** KRS 189.990(8)

(1) No person under the influence of intoxicating beverages or any substance which may impair one's driving ability shall operate a vehicle that is not a motor vehicle anywhere in this state.
(2) No peace officer or State Police officer shall fail to enforce rigidly this section.
(3) In any criminal prosecution for a violation of subsection (1) of this section, wherein the defendant is charged with having operated a vehicle which is not a motor vehicle while under the influence of intoxicating beverages, the alcohol concentration, as defined in KRS 189A.005, in the defendant's blood as determined at the time of making an analysis of his blood, urine, or breath, shall give rise to the following presumptions:
(a) If there was an alcohol concentration of less than 0.05, it shall be presumed that the defendant was not under the influence of alcohol;
(b) If there was an alcohol concentration of 0.05 or greater but less than 0.08, such fact shall not constitute a presumption that the defendant either was or was not under the influence of alcohol, but such fact may be considered, together with other competent evidence, in determining the guilt or innocence of the defendant; and
(c) If there was an alcohol concentration of 0.08 or more, it shall be presumed that the defendant was under the influence of alcohol.

(4) The provisions of subsection (3) of this section shall not be construed as limiting the introduction of any other competent evidence bearing upon the question of whether the defendant was under the influence of intoxicating beverages.

KRS 189.530 Providing motor vehicle to person intoxicated or under influence of substance which may impair driving ability – Possession of open alcoholic beverage container in motor vehicle prohibited – Exceptions – Definitions – Election of offenses to prosecute

1 Penalty: KRS 189.990(9)(a) 2 Penalty: KRS 189.990(9)(b)

(1) No person shall provide a motor vehicle to another to operate upon a highway, knowing that the other person is in an intoxicated condition, or under the influence of any substance which may impair one's driving ability.

(2) A person is guilty of possession of an open alcoholic beverage container in a motor vehicle, when he or she has in his or her possession an open alcoholic beverage container in the passenger area of a motor vehicle located on a public highway or on the right-of-way of a public highway. However, nothing in this section shall prohibit the possession of an open alcoholic beverage container by an individual who is strictly a passenger and not the driver, in the passenger area of a motor vehicle maintained or used primarily for the transportation of persons for compensation, such as buses, taxis, and limousines, or in a recreational vehicle, motor home, or motor coach.

(3) For purposes of this section, "**alcoholic beverage**" means:
   (a) Beer, ale, porter, stout, and other similar fermented beverages including sake or similar products of any name or description containing one-half of one percent (0.5%) or more of alcohol by volume, brewed or produced from malt, wholly or in part, or from any substitute therefor;
   (b) Wine of not less than one-half of one percent (0.5%) of alcohol by volume; or
   (c) Distilled spirits which is that substance known as ethyl alcohol, ethanol, or spirits of wine in any form including all dilutions and mixtures thereof from whatever source or by whatever process produced.

(4) For the purposes of this section, "**open alcoholic beverage container**" means any bottle, can, or other receptacle that contains any amount of alcoholic beverage, and:
   (a) Is open or has a broken seal; or
   (b) The contents of which are partially removed.

(5) For the purposes of this section, "**passenger area**" means the area designed to seat the driver and the passengers while the motor vehicle is in operation and any area that is readily accessible to the driver or a passenger while in their seating positions, including the glove compartment. Passenger area does not include possession of an open alcoholic beverage container in a locked glove compartment, or behind the last upright seat or in an area not normally occupied by the driver or a passenger in a motor vehicle that is not equipped with a trunk.

(6) For the purpose of this section, "**public highway**" or "**right-of-way of a public highway**" means the entire width between and immediately adjacent to the boundary lines of every way publicly maintained when any part thereof is open to the use of the public for purposes of vehicular travel.

(7) No person shall, as a result of a single course of conduct, be tried for or convicted of a violation of this section and a violation of KRS 222.202 or 525.100. The attorney for the Commonwealth shall elect under which statute to proceed. A conviction, decision not to prosecute, or dismissal of charges under any of these statutes shall operate as a bar to prosecution under any other of these statutes for offenses arising out of the same course of conduct.

KRS 189.580 Duty in case of accident – Movement of vehicle from roadway after accident – Removal of vehicles obstructing roadway – Exemptions – Costs of removal recoverable

Penalty: KRS 189.990(1)
Not prepayable (KRS 189.999(1)(b))

(1) (a) The operator of any vehicle, whose vehicle, vehicle load, or vehicle equipment which is involved in an accident resulting in injury to or death of any person or resulting only in damage to a vehicle or other property which is driven or attended by any person shall

immediately stop and ascertain the extent of the injury or damage and render reasonable assistance, including the carrying, or making of arrangements for the carrying, of such person to a physician, surgeon, or hospital for medical or surgical treatment if it is apparent that such treatment is necessary, or if such carrying is requested by the injured person. The operator or person having or assuming authority of the operator, or ownership of the vehicle, shall give the occupant of the vehicle, or person struck, if requested, the registration number of the vehicle, if any, and also the names and addresses of the owner, the occupants and operator. The total names need not exceed five (5) in number.

(b) If an accident that occurs on an interstate highway or parkway or any on-ramp or off-ramp thereto does not involve death, known or visible injury, or the transportation of hazardous material, the operator shall move the vehicle off the roadway to a place as close to the accident scene as practicable without obstructing traffic as soon as the vehicle can be moved without the risk of further injury or damage. The operator or person having or assuming authority of the operator, or ownership of the vehicle, shall give any other person involved in the accident, if requested, the registration number of the vehicle, if any, and also the names and addresses of the owner, the occupants, and the operator of his or her vehicle, and insurance information for the vehicle.

(2) The operator of any vehicle which collides with or is involved in an accident with any vehicle or other property which is unattended resulting in any damage to such other vehicle or property shall immediately stop as close to the accident scene as possible without obstructing traffic and shall then and there either locate and notify the operator or owner of such vehicle or other property of his name, address, and the registration number of the vehicle he is driving or shall attach securely in a conspicuous place in or on such vehicle or other property a written notice giving his name, address, and the registration number of the vehicle he is driving, or shall file a report with the local police department.

(3) If the operator of a vehicle is unable to move a vehicle off the roadway under the provisions of subsections (1) and (2) of this section, the operator or owner may permit any person who possesses a valid operator's license or proper class of commercial driver's license to move the vehicle as provided in this section.

(4) Except as provided for in subsection (5) of this section, a peace officer or safety officer may remove or cause to be removed from the roadway of an interstate highway or parkway or any on-ramp or off-ramp thereto, without consent of the owner or operator, any vehicle, cargo, or other property which is obstructing the roadway, creating or aggravating an emergency situation, or otherwise endangering public safety. Any vehicle, cargo, or other property obstructing the roadway of an interstate highway or parkway shall be removed by the most expeditious means available to clear the obstruction, giving due regard to the protection of the property removed.

(5) (a) In accidents that involve fatalities or known or visible injuries, the removal provisions of subsection (4) of this section shall apply only after all medical assistance, fire supervision, and site investigation have been completed.

(b) The removal provisions of subsection (4) of this section shall not apply if an accident involves, or is believed to involve, a release of hazardous materials.

(6) (a) The operator of a vehicle involved in an accident on a highway in this state which results in a fatality or a known or visible injury to a person or damage to a vehicle which renders the vehicle inoperable shall immediately notify a public safety answering point, law enforcement agency, or law enforcement officer having jurisdiction if the operator is physically capable of doing so and has in his or her possession a functioning communications device with which to do so.

(b) In the event an operator fails to notify or is incapable of notifying a public safety answering point, law enforcement agency, or law enforcement officer having jurisdiction, the responsibility for reporting the accident within a reasonable amount of time shall rest with the owner of the vehicle or any occupant of the vehicle at the time of the accident if the owner or occupant is physically capable of doing so, has in his or her possession a functioning communications device with which to do so, and, in the case of the owner, knows of the motor vehicle accident. A law enforcement officer having jurisdiction shall investigate the accident and file a written report of the accident with the officer's agency.

(7) The operator of a vehicle involved in an accident on a highway in this state resulting in injury to or

death of any person or in which total property damage of five hundred dollars ($500) or more is sustained, and in which an investigation is not conducted by a law enforcement officer, shall file a written report of the accident with the Department of State Police within ten (10) days of the occurrence of the accident upon forms provided by the department.

(8) Any agency, including the Commonwealth, that removes property from the roadway may intervene in any civil action arising from the accident to recover any costs expended. An owner of real property shall not be liable for the costs of removal under this section of trees, fences, structures, or other debris which fall into the roadway as a result of fire, severe weather, or other casualty.

KRS 189.635 Vehicle accident reports by operators, law enforcement officers, and agencies – Availability to parties to accident and news-gathering organizations – Contracts with outside entities to provide vehicle's accident history and electronic access to reports – Administrative Regulations

Penalty: KRS 189.993(12)

(1) The Justice and Public Safety Cabinet, Department of Kentucky State Police, shall be responsible for maintaining a reporting system for all vehicle accidents which occur within the Commonwealth. These accident reports shall be utilized for purposes as will improve the traffic safety program in the Commonwealth involving the collection, processing, storing, and dissemination of data and the establishment of procedures by administrative regulations to ensure that uniform definitions, classifications, and other federal requirements are in compliance.

(2) (a) Any person operating a vehicle on the highways of this state who is involved in an accident resulting in fatal or nonfatal personal injury to any person or damage to the vehicle rendering the vehicle inoperable shall be required to immediately notify a law enforcement officer having jurisdiction.

(b) In the event the operator fails to notify or is incapable of notifying a law enforcement officer having jurisdiction, the responsibility to make the notification under this subsection shall rest with the owner of the vehicle or any occupant of the vehicle at the time of the accident.

(c) If the accident involves a fully autonomous vehicle, as defined in KRS 186.760, the responsibility to make the notification under this subsection shall rest with the owner of the fully autonomous vehicle or a person on behalf of the vehicle owner.

(d) A law enforcement officer having jurisdiction shall investigate the accident and file a written report of the accident with his or her law enforcement agency.

(3) Every law enforcement agency whose officers investigate a vehicle accident of which a report must be made as required in this chapter shall file a report of the accident with the Department of Kentucky State Police within ten (10) days after investigation of the accident upon forms supplied by the department.

(4) (a) Any person operating a vehicle on the highways of this state who is involved in an accident resulting in any property damage exceeding five hundred dollars ($500) in which an investigation is not conducted by a law enforcement officer shall file a written report of the accident with the Department of Kentucky State Police within ten (10) days of occurrence of the accident upon forms provided by the department.

(b) If the accident involves a fully autonomous vehicle, as defined in KRS 186.760, the responsibility to file the report under this subsection shall rest with the owner of the fully autonomous vehicle or a person on behalf of the vehicle owner.

(5) (a) All accident reports filed with the Department of Kentucky State Police in compliance with subsection (4) of this section shall not be considered open records under KRS 61.870 to 61.884 and shall remain confidential, except that the department may:

1. Disclose the identity of a person involved in an accident when his or her identity is not otherwise known or when he or she denies his or her presence at an accident; and
2. Make the reports available:
   a. To the persons named in paragraph (c) of this subsection; and
   b. In accordance with subsection (8) of this section.

(b) All other accident reports required by this section, and the information contained in the reports, shall be confidential and exempt from public disclosure under KRS 61.870 to 61.884, except when:
1. Produced pursuant to a properly executed subpoena or court order; or
2. Disclosed as provided in this section.

(c) Accident reports shall be made available to:
1. The parties to the accident;
2. The parents or guardians of a minor who is party to the accident;
3. Insurers or their written designee for insurance business purposes of any party who is the subject of the report;
4. The attorneys of the parties to the accident;
5. Any party to litigation who files with the department a request for the report and includes a copy of the first page of a District or Circuit Court clerk-stamped complaint naming all parties; and
6. The Department of Workplace Standards in the Education and Labor Cabinet if the accident report is pertinent to an occupational safety and health investigation.

(6) (a) Except as provided for in paragraph (b) of this subsection, the department shall not release accident reports for a commercial purpose.

(b) Notwithstanding any other provision of this section, the department may, as a matter of public safety, contract with an outside entity and release unredacted vehicle damage data extracted from accident reports to the entity if the data is used solely for the purpose of providing the public a means of determining a vehicle's accident history. The department may further contract with a third party to provide electronic access to reports for persons and entities who are entitled to the reports under subsection (5) of this section.

(7) The department shall promulgate administrative regulations in accordance with KRS Chapter 13A to set out a fee schedule for accident reports made available pursuant to subsections (5) and (8) of this section. These fees shall be in addition to 14 those charged to the public for records produced under KRS Chapter 61.

(8) (a) The report shall be made available to a news-gathering organization, solely for the purpose of publishing or broadcasting the news. The news-gathering organization shall not use or distribute the report, or knowingly allow its use or distribution, for a commercial purpose other than the news-gathering organization's publication or broadcasting of the information in the report.

(b) For the purposes of this subsection:
1. "News-gathering organization" includes:
a. A newspaper or periodical if it:
i. Is published at least fifty (50) of fifty-two (52) weeks during a calendar year;
ii. Contains at least twenty-five percent (25%) news content in each issue or no more than seventy-five percent (75%) advertising content in any issue in the calendar year; and
iii. Contains news of general interest to its readers that can include news stories, editorials, sports, weddings, births, and death notices;
b. A television or radio station with a valid broadcast license issued by the Federal Communications Commission;
c. A news organization that broadcasts over a multichannel video programming service as defined in KRS 136.602;
d. A website published by or affiliated with any entity described in subdivision a., b., or c. of this subparagraph;
e. An online-only newspaper or magazine that publishes news or opinion of interest to a general audience and is not affiliated with any entity described in subparagraph 2. of this paragraph; and
f. Any other entity that publishes news content by any means to the general public or to members of a particular profession or occupational group; and
2. "News-gathering organization" does not include any product or publication with the primary purpose of distributing advertising or of publishing names and other personal identifying information concerning parties to motor vehicle accidents which may be used to solicit for services covered under Subtitle 39 of KRS Chapter 304.

(c) A news-gathering organization shall not be held to have used or knowingly allowed the use of the report for a commercial purpose merely because of its publication or broadcast.

(d) A request under this subsection shall be completed using a form promulgated by the department through administrative regulations in accordance with KRS Chapter 13A. The form under this paragraph shall include:

1. The name and address of the requestor and the news-gathering organization the requestor represents;
2. A statement that the requestor is a news-gathering organization under this subsection and identifying the specific subdivision of paragraph (b)1. of this subsection under which the requester qualifies;
3. A statement that the request is in compliance with the criteria contained in this section; and
4. A declaration of the requestor as to the accuracy and truthfulness of the information provided in the request.

(e) 1. The department shall redact all personal information from a report prior to making it available to a news-gathering organization as defined under paragraph (b)1.f. of this subsection.

2. Reports may be provided to news-gathering organizations as defined under paragraph (b)1.a. to e. of this subsection without redaction.

3. For the purposes of this paragraph, "personal information" means:

a. The address, driver's license number, phone number, date of birth, and any other contact information contained in the report for each person listed on the report; and

b. The vehicle identification numbers (VINs) for each vehicle listed on the report.

* * * * *

KRS 189.751 Abandonment of vehicle on county road or city street – Penalty – Removal - Disposition

(1) Any person who leaves a vehicle upon a country road or city street under circumstances indicating an abandonment, shall be fined not less than twenty-five dollars ($25) nor more than one hundred dollars ($100), or imprisoned for not less than ten (10) days nor more than thirty (30) days. A vehicle left upon a county road or city street for three (3) consecutive days shall be presumed to be abandoned.

* * * * *

SLOW-MOVING VEHICLE EMBLEM

KRS 189.810 Definitions

(1) "**Slow-moving vehicle**" includes farm machinery, including animal-drawn vehicles, highway construction and maintenance vehicles, and any other type of vehicle except bicycles and electric low-speed scooters, capable of a rate of speed no greater than twenty-five (25) miles per hour.

(2) "**Slow-moving vehicle emblem**" consists of a fluorescent yellow-orange triangle with a dark red reflective border, as specified in American Society of Agricultural Engineers R276 or Society of Automotive Engineers J943 standards, or consisting of reasonably similar reflective qualities as specified in said standards.

KRS 189.820 Slow-moving vehicle emblem or reflective tape required – Display – Regulations for mounting emblem or reflective tape

Penalty: KRS 189.993(6)

(1) Except as provided in subsection (4) of this section, all slow-moving vehicles sold, leased, or rented in, or for use within, the Commonwealth of Kentucky shall have affixed to them as standard equipment a slow-moving vehicle emblem.

(2) Except as provided in subsection (4) of this section, the slow-moving vehicle emblem shall be displayed as herein provided on all slow-moving vehicles operated day or night upon the public roads within the Commonwealth of Kentucky.

(3) The slow-moving vehicle emblem shall be mounted as near the center of the rear of the slow-moving vehicle as is practicable, and the lower edge of the emblem shall be mounted at least

three feet (3') or more above the road surface, and shall be maintained in a clean, reflective condition.

(4) As an alternative to the slow-moving vehicle emblem, one (1)-inch-wide white or silver reflective tape may be used on motorless slow-moving vehicles as follows:
   (a) The rear of the vehicle shall be covered with a minimum of one hundred (100) square inches of the reflective tape;
   (b) The reflective tape on the rear of the vehicle shall, at a minimum, outline the entire rear of the vehicle;
   (c) Each side of the vehicle shall be covered with a minimum of thirty-six (36) square inches of reflective tape; and
   (d) The highest point of the left front of the vehicle shall be covered with a minimum of twenty-four (24) square inches of reflective tape.

KRS 189.830 Use of emblem or reflective tape restricted – Exemption from requirement
Penalty: KRS 189.993(6)

(1) The slow-moving vehicle emblem shall be restricted to the uses specified herein and the use on any other type of vehicle or on other objects is prohibited.
(2) The slow-moving vehicle emblem shall not be required on trailers or other drawn vehicles which do not obstruct the slow-moving vehicle emblem required on the towing vehicle.
(3) Highway construction or maintenance vehicles and public utility vehicles shall not require slow-moving vehicle emblems when being guarded by flagmen or flares.
(4) The use of slow-moving vehicle emblems or alternate reflective tape as required under KRS 189.820 shall be in addition to any other reflective or lighting devices required by law.
(5) The slow-moving vehicle emblem shall not be used on a bicycle.

OFF-ROAD VEHICLES

KRS 189.860 Off-road vehicles
Penalty: KRS 189.990(22)

(1) "**Off-road vehicle**" means a motor vehicle capable of cross-country travel, without the benefit of a road or trail. It does not include a farm vehicle, a vehicle used for military or law enforcement purposes, a vehicle used in construction, mining, or other industrial-related purposes, aircraft, or any other vehicle registered under state law.
(2) No person shall operate an off-road vehicle on any private or public property without the consent of the landowner, tenant, or governmental agency responsible for the property.

EMERGENCY VEHICLES

KRS 189.910 Definitions for KRS 189.920 to 189.950

(1) As used in KRS 189.920 to 189.950, "**emergency vehicle**" means any vehicle used for emergency purposes by:
   (a) The Department of Kentucky State Police;
   (b) A public police department;
   (c) The Department of Corrections;
   (d) A sheriff's office;
   (e) A rescue squad;
   (f) An emergency management agency if it is a publicly owned vehicle;
   (g) A licensed ambulance service or medical first-response provider licensed by the Kentucky Board of Emergency Medical Services, for any vehicle used to respond to emergencies or to transport a patient with a critical medical condition;
   (h) Any vehicle commandeered by a police officer;

(i) Any vehicle with the emergency lights required under KRS 189.920 used by a paid or volunteer fireman or paid or volunteer ambulance personnel, or a paid or local emergency management director while responding to an emergency or to a location where an emergency vehicle is on emergency call;
(j) An elected coroner granted permission to equip a publicly or privately owned motor vehicle with lights and siren pursuant to KRS 189.920; or
(k) A deputy coroner granted permission to equip a publicly or privately owned motor vehicle with lights and siren pursuant to KRS 189.920.
(l) Any vehicle used by an organ procurement organization while transporting a human organ or tissue for the purpose of organ recovery or transplantation in an emergency situation involving an imminent health risk; or
(m) A conservation officer of the Kentucky Department of Fish and Wildlife Resources.

(2) As used in KRS 189.920 to 189.950, "**public safety vehicle**" means public utility repair vehicle; wreckers; state, county, or municipal service vehicles and equipment; highway equipment which performs work that requires stopping and standing or moving at slow speeds within the traveled portions of highways; and vehicles which are escorting wide-load or slow-moving trailers or trucks.

KRS 189.920 Flashing lights and sirens
Penalty: KRS 189.993(7)

(1) All fire department, rescue squad, or publicly owned emergency management agency emergency vehicles and all ambulances shall be equipped with one (1) or more flashing, rotating, or oscillating red lights, visible under normal atmospheric conditions from a distance of five hundred (500) feet to the front of the vehicle, and a siren, whistle, or bell, capable of emitting a sound audible under normal conditions from a distance of not less than five hundred (500) feet. This equipment shall be in addition to any other equipment required by the motor vehicle laws.
(2) All state, county, or municipal police vehicles and all sheriffs' vehicles used as emergency vehicles shall be equipped with one (1) or more flashing, rotating, or oscillating blue lights, visible under normal atmospheric conditions from a distance of five hundred (500) feet to the front of the vehicle, and a siren, whistle, or bell, capable of emitting a sound audible under normal conditions from a distance of not less than five hundred (500) feet. This equipment shall be in addition to any other equipment required by the motor vehicle laws.
(3) By ordinance, the governing body of any city or county may direct that the police or sheriffs' vehicles in that jurisdiction be equipped with a combination of red and blue flashing, rotating, or oscillating lights.
(4) All public safety vehicles shall be equipped with one (1) or more flashing, rotating, or oscillating yellow lights, visible under normal atmospheric conditions from a distance of five hundred (500) feet to the front of the vehicle. Yellow flashing, rotating, or oscillating lights may also be used by vehicles operated by mail carriers while on duty, funeral escort vehicles, and church buses.
(5) All Department of Corrections vehicles used as emergency vehicles shall be equipped with one (1) or more flashing, rotating, or oscillating blue lights, visible under normal atmospheric conditions from a distance of five hundred (500) feet to the front of the vehicle. The Department of Corrections vehicles shall not be equipped with or use a siren, whistle, or bell. The equipment prescribed by this subsection shall be in addition to any other equipment required by motor vehicle laws.
(6)(a) If authorized by the legislative body of a county, urban-county, charter county, consolidated local government, or unified local government;

1. All publicly owned county jail and regional jail vehicles used as emergency vehicles may be equipped with one (1) or more flashing, rotating, or oscillating blue lights, visible under normal atmospheric conditions from a distance of five hundred (500) feet to the front of the vehicle; and

2. An elected jailer or the chief administrator of a county or regional jail not managed by an elected jailer may equip one (1) personally owned vehicle with one (1) or more flashing, rotating, or oscillating blue lights, visible under normal atmospheric conditions from a distance of five hundred (500) feet to the front of the vehicle.

(b) Publicly owned county jail or regional jail vehicles shall not be equipped with or use a siren, whistle, or bell.
(c) The equipment prescribed by this subsection shall be in addition to any other equipment required by the motor vehicle laws.

(7) Red flashing lights may be used by school buses.
(8) No emergency vehicle, public safety vehicle, or any other vehicle covered by KRS 189.910 to 189.950 shall use any light of any other color than those specified by KRS 189.910 to 189.950. Sirens, whistles, and bells may not be used by vehicles other than those specified by KRS 189.910 to 189.950, except that any vehicle may be equipped with a theft alarm signal device which is so arranged that it cannot be used by the driver as an ordinary warning signal.
(9) Vehicles used as command posts at incidents may be equipped with and use when on scene, a green rotating, oscillating, or flashing light. This light shall be in addition to the lights and sirens required in this section.
(10) A personal vehicle used by a paid or volunteer firefighter, ambulance personnel or emergency services director who is responding to an emergency shall display the lights required in subsection (1) of this section.
(11) An elected coroner may equip a publicly or privately owned motor vehicle, or both with flashing, rotating, or oscillating red and blue lights and a siren meeting the requirements of this section solely for the purpose of responding to a report of a the death of a human being subject to the following terms and conditions:
(a) The coroner makes a written request to the legislative body of the county, urban-county, charter county, consolidated local government, or unified local government in which the corner was elected to equip a publicly or privately owned motor vehicle, or both, with flashing, rotating, or oscillating red and blue lights and a siren meeting the requirements of this section, and that request is approved by the legislative body by ordinance or by court order.
(b) The coroner may use the lights and siren only while responding to the scene of the report of a death of a human being and shall not, KRS 189.940 to the contrary notwithstanding, exceed the posted speed limit; and
(c) The permission granted pursuant to this section shall expire upon the coroner leaving office or the legislative body revoking the authorization.

(12) A deputy coroner certified pursuant to KRS Chapter 72 may equip a publicly owned or privately owned motor vehicle, or both, with flashing, rotating, or oscillating red and blue lights and a siren meeting the requirements of this section solely for the purpose of responding to a report of the death of a human being, subject to the following terms and conditions:
(a) The deputy coroner has made a written request to the coroner to equip a publicly owned or privately owned vehicle with flashing, rotating, or oscillating, red and blue lights meeting the requirements of this section and the coroner has approved the request in writing;
(b) The coroner makes a written request to the legislative body of the county, urban-county, charter county, consolidated local government, or unified local government in which the coroner is elected to permit the deputy coroner to equip a publicly owned motor vehicle or privately owned motor vehicle, or both, and that request has been approved by the legislative body by ordinance or by court order;
(c) The deputy coroner may use the lights and siren only while responding to the scene of the report of the death of a human being and shall not, KRS 189.940 to the contrary notwithstanding, exceed the posted speed limit; and
(d) The permission granted pursuant to this section shall expire upon the coroner leaving office or the legislative body revoking the authorization.

KRS 189.930 Right-of-way to emergency vehicles – Blocking or following emergency vehicles – Driving over unprotected hoses of fire department

Penalty: KRS 189.993(8)

(1) Upon the approach of an emergency vehicle equipped with, and operating, one (1) or more flashing, rotating, or oscillating red or blue lights, visible under normal conditions from a distance of five hundred (500) feet to the front of such vehicle; or the driver is given audible signal by siren, exhaust whistle, or bell, the driver of every other vehicle shall yield the right-of-way, immediately drive to a position parallel to, and as close as possible to, the edge or curb of the highway clear of

any intersection, and stop and remain in such position until the emergency vehicle has passed, except when otherwise directed by a police officer or firefighter.

(2) Upon the approach of any emergency vehicle, operated in conformity with the provisions of subsection (1) of this section, the operator of every vehicle shall immediately stop clear of any intersection and shall keep such position until the emergency vehicle has passed, unless directed otherwise by a police officer or firefighter.

(3) No operator of any vehicle, unless he is on official business, shall follow any emergency vehicle being operated in conformity with the provisions of subsection (1) of this section closer than five hundred (500) feet, nor shall he drive into, or park the vehicle into, or park the vehicle within, the block where the vehicle has stopped in answer to an emergency call or alarm unless he is directed otherwise by a police officer or firefighter.

(4) No vehicle, train, or other equipment shall be driven over any unprotected hose of a fire department when the hose is laid down on any street, private driveway, or track for use at any fire or fire alarm unless the fire department official in command consents that the hose be driven over.

(5) Upon approaching a stationary emergency vehicle or public safety vehicle, when the emergency vehicle is giving a signal by displaying alternately flashing red, red and white, red and blue, or blue lights, a person who drives an approaching vehicle shall, while proceeding with due caution:
   (a) Yield the right-of-way by moving to a lane not adjacent to that of the authorized emergency vehicle, if:
      1. The person is driving on a highway having at least four (4) lanes with not fewer than two (2) lanes proceeding in the same direction as the approaching vehicle; and
      2. If it is possible to make the lane change with due regard to safety and traffic conditions; or
   (b) Reduce the speed of the vehicle, maintaining a safe speed to road conditions, if changing lanes would be impossible or unsafe.

(6) This section does not operate to relieve the person who drives an emergency vehicle from the duty to operate the vehicle with due regard for the safety of all persons using the highway.

KRS 189.940 Exemptions from traffic regulations

Penalty: KRS 189.993(9)

(1) Except as provided in KRS 189.920, the speed limitations set forth in the Kentucky Revised Statutes do not apply to:
   (a) 1. Emergency vehicles when responding to emergency calls;
      2. To police vehicles when in pursuit of an actual or suspected violator of the law;
      3. Ambulances when transporting a patient to medical care facilities; or
      4. Any vehicle used by an organ procurement organization while transporting a human organ or tissue for the purpose of organ recovery or transplantation in an emergency situation involving an imminent health risk; and
   (b) Emergency vehicles when the driver thereof is giving the warning required by subsection (5)(a) and (b) of this section.

   No portion of this subsection shall be construed to relieve the driver of the duty to operate the vehicle with due regard for the safety of all persons using the street or highway.

(2) The driver of an emergency vehicle, when responding to an emergency call, or of a police vehicle in pursuit of an actual or suspected violator of the law, or of an ambulance transporting a patient to a medical care facility and giving the warning required by subsection (5) of this section, upon approaching any red light or stop signal or any stop sign shall slow down as necessary for safety to traffic, but may proceed past such red or stop light or stop sign with due regard for the safety of persons using the street or highway.

(3) The driver of an emergency vehicle, when responding to an emergency call, or of a police vehicle in pursuit of an actual or suspected violator of the law, or of an ambulance transporting a patient to a medical care facility, or a vehicle used by an organ procurement transporting a human organ or tissue and giving warning required by subsection (5) of this section, may drive on the left side of any highway or in the opposite direction of a one-way street provided the normal lanes of traffic are blocked and he or she does so with due regard for the safety of all persons using the street or highway.

(4) The driver of an emergency or public safety vehicle may stop or park his vehicle upon any street or highway without regard to the provisions of KRS 189.390 and 189.450, provided that, during the time the vehicle is parked at the scene of an emergency, at least one (1) warning light is in operation at all times.
(5) The driver of an emergency vehicle desiring the use of any option granted by subsections (1) through (3) of this section shall give warning in the following manner:
  (a) By illuminating the vehicle's warning lights continuously during the period of the emergency; and
  (b) By continuous sounding of the vehicle's siren, bell, or exhaust whistle; unless
  (c) The vehicle is an ambulance and the driver is of the opinion that sounding of the siren, bell, or exhaust whistle would be detrimental to the victim's health. In the event the driver of an ambulance elects not to use the siren, bell, or exhaust whistle he or she shall not proceed past red lights or drive in the opposite direction on a one-way street or in oncoming lanes of traffic unless no other vehicles are within five hundred (500) feet of the front of the ambulance. The driver shall not extinguish the warning lights during the period of the emergency.
(6) No driver or operator of any emergency or public safety or other vehicle shall use the warning lights or siren, bell, or exhaust whistle of his or her vehicle for any purposes or under any circumstances other than those permitted by KRS 189.910 to 189.950.
(7) KRS 189.910 to 189.950 does not relieve the driver of any emergency or public safety vehicle from the duty to drive with due regard for the safety of all persons and property upon the highway.
(8) The driver of a public safety vehicle which also meets the definition of a slow-moving vehicle under KRS 189.810 and any vehicle acting as an escort for the slow-moving vehicle, may travel at a speed that may impede or block the normal and reasonable movement of traffic, if:
  (a) The vehicle is being operated in an official capacity;
  (b) Operation of the vehicle is in compliance with all state and local government policies; and
  (c) It is necessary for the safe operation of the vehicle.

KRS 189.950 Prohibitions – Exceptions
Penalty: KRS 189.993(11)

(1) No motor vehicle, except those designated under KRS 189.910 to 189.950 as emergency vehicles, shall be equipped with, nor shall any person use upon a vehicle, any siren, whistle, or bell. Any vehicle may be equipped with a theft alarm signal device which shall be so arranged that it cannot be used as an ordinary warning signal.
(2) No motor vehicle, except those designated under KRS 189.910 to 189.950 as emergency vehicles, shall be equipped with, nor shall any person use upon a vehicle any red or blue flashing, revolving, or oscillating light or place a red light on the front thereof. This subsection shall not apply to the use of red flashing lights on school buses or to stop lights or turn signals at the rear of any motor vehicle.
(3) Except as otherwise provided for in this section, a person shall not illuminate a blue light that is affixed to a motor vehicle while operating the motor vehicle on a highway. This subsection shall not apply to:
  (a) Any light on a motorcycle that is not affixed to the front of the motorcycle; or
  (b) Nonhalogen headlamps that have a slight blue tint and meet United States Department of Transportation regulations.
(4) No motor vehicle, except those designated under KRS 189.910 to 189.950 as public safety vehicles, shall be equipped with, nor shall any person use upon any vehicle any yellow flashing, revolving, or oscillating light. This subsection shall not apply to the use of yellow lights for turn signals; or to emergency flasher lights for use when warning the operators of other vehicles of the presence of a vehicular traffic requiring the exercise of unusual care in approaching, overtaking, or passing; or to vehicles operated by mail carriers while on duty; funeral escort vehicles and church buses.
(5) Any person who is a regular or voluntary member of any fire department furnishing fire protection for a political subdivision of the state or any person who is a regular or voluntary member of a rescue squad may equip his vehicle with red flashing, rotating, or oscillating lights and a siren, bell, or exhaust whistle if he has first been given permission, in writing, to do so by the chief of the

fire department or rescue squad. He may use such lights and equipment only while proceeding to the scene of a fire or other emergency or to a location where another emergency vehicle is on emergency call in the performance of his official duties as a member of a fire department or rescue squad.

(6) Any constable may, upon approval of the fiscal court in the county of jurisdiction, equip vehicles used by said officer as emergency vehicles with one (1) or more flashing, rotating or oscillating blue lights, visible under normal atmospheric condition from a distance of five hundred (500) feet to the front of such vehicle, and a siren, whistle or bell, capable of emitting a sound audible under normal conditions from a distance of not less than five hundred (500) feet. This equipment shall be in addition to any other equipment required by the motor vehicle laws. Any constable authorized by the fiscal court to utilize blue lights and a siren pursuant to this section shall maintain at least the insurance described by KRS 304.39-110.

(7) Any person who is a paid or voluntary member of any ambulance service furnishing emergency medical services for a political subdivision of the state may equip his vehicle with red flashing, rotating, or oscillating lights and a siren, bell, or exhaust whistle if he has first been given permission, in writing, to do so by the chief or director of the ambulance service. He may use such lights and equipment only while proceeding to the scene of an emergency, a medical facility, or to a location where another emergency vehicle is on emergency call in the performance of his official duties as a member of the ambulance service.

PENALTIES

KRS 189.990 Penalties

(1) Any person who violates any of the provisions of KRS 189.020 to 189.040, subsection (1) or (4) of KRS 189.050, KRS 189.060 to 189.080, subsections (1) to (3) of KRS 189.090, KRS 189.100, 189.110, 189.130 to 189.160, subsections (2) to (4) of KRS 189.190, KRS 189.200, 189.285, 189.290, 189.300 to 189.360, KRS 189.380, KRS 189.400 to 189.430, KRS 189.450 to 189.458, KRS 189.4595 to 189.480, subsection (1) of KRS 189.520, KRS 189.540, KRS 189.570 to 189.590, except subsection (1)(b) or (6)(b) of KRS 189.580, KRS 189.345, subsection (4) of KRS 189.456, and 189.960 shall be fined not less than twenty dollars ($20) nor more than one hundred dollars ($100) for each offense. Any person who violates subsection (1)(a) of KRS 189.580 shall be fined not less than twenty dollars ($20) nor more than two thousand dollars ($2,000) or imprisoned in the county jail for not more than one (1) year, or both, unless the accident involved death or serious physical injury and the person knew or should have known of the death or serious physical injury, in which case the person shall be guilty of a Class D felony. Any person who violates paragraph (c) of subsection (5) of KRS 189.390 shall be fined not less than eleven dollars ($11) nor more than thirty dollars ($30). Neither court costs nor fees shall be taxed against any person violating paragraph (c) of subsection (5) of KRS 189.390. (c) Any person who violates paragraph (c) of subsection (5) of KRS 189.390 shall be fined not less than eleven dollars ($11) nor more than thirty dollars ($30). Neither court costs nor fees shall be taxed against any person violating paragraph (c) of subsection (5) of KRS 189.390.

(2) * * * * * * *

(c) Any person who violates any provision of subsections (2) or (3) of KRS 189.050, subsection (4) of KRS 189.090, KRS 189.221 to 189.230, . . . for which another penalty is not specifically provided, shall be fined not less than ten dollars ($10) nor more than five hundred dollars ($500).

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(3) (a) Any person who violates subsection (1) of KRS 189.190 shall be fined not more than fifteen dollars ($15).

(b) Any person who violates subsection (5) of KRS 189.190 shall be fined not less than thirty-five dollars ($35) nor more than two hundred dollars ($200).

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(6) Any person who violates KRS 189.500 shall be fined not more than fifteen dollars ($15) in excess of the cost of the repair of the road.

(7) Any person who violates KRS 189.510 or KRS 189.515 shall be fined not less than twenty dollars ($20) nor more than fifty dollars ($50).
(8) Any peace officer who violates subsection (2) of KRS 189.520 shall be fined not less than thirty-five dollars ($35) nor more than one hundred dollars ($100).
(9) (a) Any person who violates KRS 189.530(1) shall be fined not less than thirty-five dollars ($35) nor more than one hundred dollars ($100), or imprisoned not less than thirty (30) days nor more than twelve (12) months, or both.
(b) Any person who violates KRS 189.530(2) shall be fined not less than thirty-five dollars ($35) nor more than one hundred dollars ($100).
(10) Any person who violates any of the provisions of KRS 189.550 shall be guilty of a Class B misdemeanor.
(11) Any person who violates subsection (3) of KRS 189.560 shall be fined not less than thirty dollars ($30) nor more than one hundred dollars ($100) for each offense.
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(14) Any person who violates any provision of KRS 189.575 shall be fined not less than twenty dollars ($20) nor more than twenty-five dollars ($25).
(15) Any person who violates subsection (2) of KRS 189.231 shall be fined not less than twenty dollars ($20) nor more than one hundred dollars ($100) for each offense.
(16) Any person who violates restrictions or regulations established by the secretary of transportation pursuant to subsection (3) of KRS 189.231 shall, upon first offense, be fined one hundred dollars ($100) and, upon subsequent convictions, be fined not less than one hundred dollars ($100) nor more than five hundred dollars ($500) or imprisoned for thirty (30) days, or both.
(17) (a) Any person who violates any of the provisions of KRS 189.565 shall be guilty of a Class B misdemeanor.
(b) In addition to the penalties prescribed in paragraph (a) of this subsection, in case of violation by any person in whose name the vehicle used in the transportation of inflammable liquids or explosives is licensed, the person shall be fined not less than one hundred dollars ($100) nor more than five hundred dollars ($500). Each violation shall constitute a separate offense.
(18) Any person who abandons a vehicle upon the right-of-way of a state highway for three (3) consecutive days shall be fined not less than thirty-five dollars ($35) nor more than one hundred dollars ($100), or imprisoned for not less than ten (10) days nor more than thirty (30) days.
(19) Every person violating KRS 189.393 shall be guilty of a Class B misdemeanor, unless the offense is being committed by a defendant fleeing the commission of a felony offense which the defendant was also charged with violating and was subsequently convicted of that felony, in which case it is a Class A misdemeanor.
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(21) A person who operates a bicycle in violation of the administrative regulations promulgated pursuant to KRS 189.287 shall be fined not less than ten dollars ($10) nor more than one hundred dollars ($100).
(22) Any person who violates KRS 189.860 shall be fined not more than five hundred dollars ($500) or imprisoned for not more than six (6) months, or both.
(23) Any person who violates KRS 189.754 shall be fined not less than twenty-five dollars ($25) nor more than three hundred dollars ($300).
(24) Any person who violates the provisions of KRS 189.125(3)(a) shall be fined fifty dollars ($50). This fine shall be subject to prepayment. A fine imposed under this subsection shall not be subject to court costs pursuant to KRS 42A.175, additional court costs pursuant to KRS 24A.176, the fee imposed pursuant to KRS 24A.1765, or any other additional fees or costs.
(25) Any person who violates the provisions of subsection (3)(b) of Section 1 of this Act shall not be issued a uniform citation, but shall instead receive a courtesy warning up until July 1, 2009. For a violation on or after July 1, 2009, the person shall be fined thirty dollars ($30). This fine shall be subject to prepayment. A fine imposed under this subsection shall not be subject to court costs pursuant to KRS 24.175, additional court costs pursuant to KRS 24A.176, a fee imposed pursuant to KRS 24A.1765, or any other additional fees or costs. A person who [had] not been previously charged with a violation of subsection (3)(b) of Section 1 of [this Act] may elect to acquire a booster seat meeting the requirements of Section 1 of [this Act]. Upon presentation of

sufficient proof of acquisition, the charge shall be dismissed and no fees or costs shall be imposed.

(26) Any person who violates the provisions of KRS 189.125(6) shall be fined an amount not to exceed twenty-five dollars ($25). This fine shall be subject to prepayment. A fine imposed under this subsection shall not be subject to court costs pursuant to KRS 24A.175, additional court costs pursuant to KRS 24A.176, the fee imposed pursuant to KRS 24A.1765, or any other additional fees or costs.

(27) Fines levied pursuant to this chapter shall be assessed in the manner required by KRS 534.020, in amounts consistent with this chapter. Nonpayment of fines shall be governed by KRS 534.060.

(28) A licensed driver under the age of eighteen (18) charged with a moving violation pursuant to this chapter as the driver of a motor vehicle may be referred, prior to trial, by the court to a diversionary program. The diversionary program under this subsection shall consist of one (1) or both of the following:
   (a) Execution of a diversion agreement which prohibits the driver from operating a vehicle for a period not to exceed forty-five (45) days and which allows the court to retain the driver's operator's license during this period; and
   (b) Attendance at a driver improvement clinic established pursuant to KRS 186.574. If the person completes the terms of this diversionary program satisfactorily the violation shall be dismissed.

(29) A person who violates the provisions of subsection (2) or (3) or KRS 189.459 shall be fined two hundred fifty dollars ($250). The fines and costs for a violation of subsection (2) or (3) of KRS 189.459 shall be collected and disposed of in accordance with KRS 24A.180. Once deposited into the State Treasury, ninety percent (90%) of the fine collected under this subsection shall immediately be forwarded to the personal care assistance program under KRS 205.900 to 205.920. Ten percent (10%) of the fine collected under this subsection shall annually be returned to the county where the violation occurred and distributed equally to all law enforcement agencies within the county.

(30) On or after January 1, 2011, any person who violates KRS 189.292 or KRS 189.294 shall be fined twenty-five dollars ($25) for the first offense and fifty dollars ($50) for each subsequent offense.

KRS 189.993 Penalties

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(5) Any person who violates KRS 189.505 shall be fined not less than sixty dollars ($60) nor more than two hundred dollars ($200) or be imprisoned for not more than thirty (30) days, or both.

* * * * *

(7) Any person who violates KRS 189.920 shall be fined not less than one hundred dollars ($100) nor more than one thousand dollars ($1,000), or imprisoned in the county jail for not more than thirty (30) days, or both. In the case of a private vehicle not authorized to use emergency lights under KRS 189.920, all lighting and other equipment used in violation of KRS 189.910 to 189.950 shall be confiscated and forfeited to the county in which the offense occurred.

(8) Any person who violates KRS 189.930 shall be fined not less than sixty dollars ($60) nor more than five hundred dollars ($500), or be imprisoned in the county jail for not more than thirty (30) days, or both.

(9) Any person who violates KRS 189.940 shall be fined not less than sixty dollars ($60) nor more than one thousand dollars ($1,000) or be imprisoned in the county jail for not more than six (6) months, or both. In the case of a private vehicle, except as outlined in subsection (11) of this section, all lighting and other equipment used in violation of KRS 189.910 to 189.950 shall be confiscated and forfeited to the county in which the offense occurred.

(10) If a member of a regular or volunteer fire department, ambulance service, or rescue squad violates any provisions of subsection (6) of KRS 189.940, he shall, in addition to any other penalty provided under KRS 189.990 or this section, be immediately dismissed from his membership or employment with the fire department, ambulance service, or rescue squad and shall be disqualified from being employed by or being a member of any fire department, ambulance service, or rescue squad in the Commonwealth for a period of three (3) years. Upon conviction of a second offense he shall be permanently barred from employment or membership

in any fire department, ambulance service, rescue squad, police department, or sheriff's office in the Commonwealth, nor shall he be permitted to operate any public safety vehicle as defined in KRS 189.910.

(11)(a) Any person who violates KRS 189.950(3) shall be fined one hundred dollars ($100) for the first offense, two hundred dollars ($200) for the second offense, and one thousand dollars ($1,000) for each subsequent offense.

(b) Except as provided in paragraph (a) of this subsection, any person who violates KRS 189.950 shall be fined not less than one hundred dollars ($100) nor more than one thousand dollars ($1,000) or be imprisoned in the county jail for not more than thirty (30) days, or both. In the case of a privately owned vehicle, all lighting and other equipment used or installed in violation of KRS 189.910 to 189.950 shall be confiscated and forfeited to the county in which the offense occurred.

(12)Any person who violates any provision of this chapter for which no penalty is otherwise provided shall, upon conviction, be fined not less than twenty dollars ($20) nor more than one hundred dollars ($100) for each offense, except that no penalty shall be assessed f or a violation of KRS 189.580(1)(b)or (6)(b).

(13)No producer or processor of natural resources shall allow the transporting of natural resources over the highways of the Commonwealth in excess of the weight limits without possessing a resource recovery road hauling permit. Violation for hauling in excess of prescribed limits without possession of a permit or transporting natural resources over prescribed limits of the resource recovery road hauling permit shall be not less than five hundred dollars ($500) nor more than one thousand dollars ($1,000) for each violation and shall be deposited in the resource recovery road fund.

KRS 189.999 Prepayment of fines subject to certain conditions

(1) All offenses under this chapter classified as violations shall be prepayable except for:

(a) Any offense that could result in license suspension or revocation by the court or the Transportation Cabinet;

(b) Any offense relating to KRS 189.393, 189.520, or 189.580;

(c) When the defendant is speeding more than twenty-five (25) miles per hour over the posted speed limit under KRS 189.394;

(d) An offense where evidence of the offense or of commission of another offense is seized by the officer and the citation is so marked and a court date set;

(e) The offense is cited with another offense that is not prepayable;

(f) When the defendant is under the age of eighteen (18); or

(g) An arrest is made under KRS 431.015.

(2) In the event that a prepayable offense is cited with another offense that is not prepayable, a court appearance shall be required on all of the offenses as required by KRS 431.452.

KRS CHAPTER 189A
DRIVING UNDER THE INFLUENCE
(Selected Sections)

KRS 189A.005 Definitions for chapter – License suspensions

As used in this chapter, unless the context requires otherwise:

(1) "**Alcohol concentration**" means either grams of alcohol per 100 milliliters of blood or grams of alcohol per 210 liters of breath;

(2) "**Cabinet"** means the Transportation Cabinet;

(3) "**Ignition interlock device**" or "device" means a device, certified by the Transportation Cabinet for use in this Commonwealth under KRS 189A.350, that;

(a) Connects a motor vehicle ignition system or motorcycle ignition system to a breath alcohol analyzer and prevents a motor vehicle ignition or motorcycle ignition from starting, and from continuing to operate, if a driver's breath alcohol concentration exceeds 0.02, as measured by the device; and

(b) Has a fully functional camera that is equipped to record the date, time, and photo of all persons providing breath samples to the device;

(4) **"Ignition Interlock Certificate of Installation"** means a certificate providing that the installed ignition interlock device has been installed and is certified for use in the Commonwealth under KRS 189A.350;

(5) **"Ignition Interlock Device Provider"** or "provider" means any person or company certified by the Transportation Cabinet to engage in the business of manufacturing, selling, leasing, servicing, or monitoring ignition interlock devices within the Commonwealth;

(6) **"Ignition interlock license"** means a motor vehicle or motorcycle operator's license issued or granted by the laws of the Commonwealth of Kentucky that, except for those with an employer exemption under KRS 189A.340, permits a person to drive only motor vehicles or motorcycles equipped with a functioning ignition interlock device;

(7) "**License**" means any driver's or operator's license or any other license or permit to operate a motor vehicle issued under or granted by the laws of this state including:

(a) Any temporary license or instruction permit;

(b) The privilege of any person to obtain a valid license or instruction permit, or to drive a motor vehicle whether or not the person holds a valid license; and

(c) Any nonresident's operating privilege as defined in KRS Chapter 186 or 189;

(8) "**Limited access highway**" has the same meaning as "limited access facility" does in KRS 177.220;

(9) "**Refusal**" means declining to submit to any test or tests pursuant to KRS 189A.103. Declining may be either by word or by the act of refusal. If the breath testing instrument for any reason shows an insufficient breath sample and the alcohol concentration cannot be measured by the breath testing instrument, the law enforcement officer shall then request the defendant to take a blood or urine test in lieu of the breath test. If the defendant then declines either by word or by the act of refusal, he shall then be deemed to have refused if the refusal occurs at the site at which any alcohol concentration or substance test is to be administered; and

(10) When age is a factor, it shall mean age at the time of the commission of the offense.

KRS 189A.010 Operating motor vehicle with alcohol concentration of or above 0.08, or of or above 0.02 for persons under age twenty-one, or while under the influence of alcohol, a controlled substance, or other substance which impairs driving ability prohibited – Admissibility of alcohol concentration test results – Presumptions – Penalties – Aggravating circumstances

(1) A person shall not operate or be in physical control of a **motor vehicle** anywhere in this state:

EDITOR'S NOTE: See 189.520 for DUI of a vehicle that is not a motor vehicle and KRS 281A.210 for DUI of a Commercial Motor Vehicle.

(a) Having an alcohol concentration of 0.08 or more as measured by a scientifically reliable test

or tests of a sample of the person's breath or blood taken within two (2) hours of cessation of operation or physical control of a motor vehicle;

(b) While under the influence of alcohol;

(c) While under the influence of any other substance or combination of substances which impairs one's driving ability;

(d) While the presence of a controlled substance listed in subsection (12) of this section is detected in the blood, as measured by a scientifically reliable test, or tests, taken within two (2) hours of cessation of operation or physical control of a motor vehicle;

(e) While under the combined influence of alcohol and any other substance which impairs one's driving ability; or

(f) Having an alcohol concentration of 0.02 or more as measured by a scientifically reliable test or tests of a sample of the person's breath or blood taken within two (2) hours of cessation of operation or physical control of a motor vehicle, if the person is under the age of twenty-one (21).

(2) With the exception of the results of the tests administered pursuant to KRS 189A.103 (7);

(a) If the sample of the person's blood or breath that is used to determine the alcohol concentration thereof was obtained more than two (2) hours after cessation of operation or physical control of a motor vehicle, the results of the test or tests shall be inadmissible as evidence in a prosecution under subsections (1) (a) and (1) (f) of this section. The results of the test or tests, however, may be admissible in a prosecution under subsections (1) (b) and (1) (e) of this section; or

(b) If the sample of the person's blood that is used to determine the presence of a controlled substance was obtained more than two (2) hours after cessation of operation or physical control of a motor vehicle, the results of the test or tests shall be inadmissible as evidence in a prosecution under subsection (1)(d) of this section. The results of the test or tests, however, may be admissible in a prosecution under subsection (1)(c) or (e) of this section.

(3) In any prosecution for a violation of subsection (1) (b) or (e) of this section in which the defendant is charged with having operated or been in physical control of a motor vehicle while under the influence of alcohol, the alcohol concentration in the defendant's blood as determined at the time of making analysis of his blood or breath shall give rise to the following presumptions:

(a) If there was an alcohol concentration of less than 0.04 based upon the definition of alcohol concentration in KRS 189A.005, it shall be presumed that the defendant was not under the influence of alcohol; and

(b) If there was an alcohol concentration of 0.04 or greater but less than 0.08 based upon the definition of alcohol concentration in KRS 189A.005, that fact shall not constitute a presumption that the defendant either was or was not under the influence of alcohol, but that fact may be considered, together with other competent evidence, in determining the guilt or innocence of the defendant.

The provisions of this subsection shall not be construed as limiting the introduction of any other competent evidence bearing upon the questions of whether the defendant was under the influence of alcohol or other substances, in any prosecution for a violation of subsection (1)(b) or (e) of this section.

(4) (a) Except as provided in paragraph (b) of this subsection, the fact that any person charged with violation of subsection (1) of this section is legally entitled to use any substance, including alcohol, shall not constitute a defense against any charge of violation of subsection (1) of this section.

(b) A laboratory test or tests for a controlled substance shall be inadmissible as evidence in a prosecution under subsection (1)(d) of this section upon a finding by the court that the defendant consumed the substance under a valid prescription from a practitioner, as defined in KRS 218A.010, acting in the course of his or her professional practice. However, a laboratory test for a controlled substance may be admissible as evidence in a prosecution under subsection (1)(c) or (e) of this section.

(5) Any person who violates the provisions of paragraphs (a), (b), (c), (d) or (e) of subsection (1) of this section shall:

(a) For the first offense within a ten (10) year period, be fined not less than two hundred dollars ($200) nor more than five hundred dollars ($500) or be imprisoned in the county jail for not

less than forty-eight (48) hours nor more than thirty (30) days or both. Following sentencing, the defendant may apply to the judge for permission to enter a community labor program for not less than forty-eight (48) hours nor more than thirty (30) days in lieu of fine or imprisonment, or both. If any of the aggravating circumstances listed in subsection (11) of this section are present while the person was operating or in physical control of a motor vehicle, the mandatory minimum term of imprisonment shall be four (4) days, which term shall not be suspended, probated, conditionally discharged, or subject to any other form of early release.

(b) For the second offense within a ten (10) year period, be fined not less than three hundred fifty dollars ($350) nor more than five hundred dollars ($500) and shall be imprisoned in the county jail for not less than seven (7) days nor more than six (6) months and, in addition to fine and imprisonment, may be sentenced to community labor for not less than ten (10) days nor more than six (6) months. If any of the aggravating circumstances listed in subsection (11) of this section are present, the mandatory minimum term of imprisonment shall be fourteen (14) days, which term shall not be suspended, probated, conditionally discharged, or subject to any other form of early release.

(c) For a third offense within a ten (10) year period, be fined not less than five hundred dollars ($500) nor more than one thousand ($1,000) and shall be imprisoned in the county jail for not less than thirty (30) days nor more than twelve (12) months and may, in addition to fine and imprisonment, be sentenced to community labor for not less than thirty (30) days nor more than twelve (12) months. If any of the aggravating circumstances listed in subsection (11) of this section are present, the mandatory minimum term of imprisonment shall be sixty (60) days, which term shall not be suspended, probated, conditionally discharged, or subject to any other form of early release

(d) For a fourth or subsequent offense within a ten (10) year period, be guilty of a Class D felony. If any of the aggravating circumstances listed in subsection (11) of this section are present, the mandatory minimum term of imprisonment shall be two hundred forty (240) days, which term shall not be suspended, probated, conditionally discharged, or subject to any other form of release.

(e) For purposes of this subsection, prior offenses shall include all convictions in this state, and any other state, or jurisdiction for operating or being in control of a motor vehicle while under the influence of alcohol or other substances that impair one's driving ability, or any combination of alcohol and such substances, or while having an unlawful alcohol concentration, or driving while intoxicated, but shall not include convictions for violating subsection (1) (f) of this section. A court shall receive as proof of a prior conviction a copy of that conviction, certified by the court ordering the conviction

(6) Any person who violates the provisions of subsection (1)(f) of this section shall be fined no less than one hundred dollars ($100) and no more than five hundred dollars ($500), or sentenced to twenty (20) hours of community service in lieu of a fine. A person subject to the penalties of this paragraph shall not be subject to the penalties established in subsection (5) of this section or any other penalty established pursuant to KRS Chapter 189A, except those established in KRS 189A.040(1) and KRS 189A.070.

(7) If the person is under the age of twenty-one (21) and there was an alcohol concentration of 0.08 or greater based on the definition of alcohol concentration in KRS 189A.005, the person shall be subject to the penalties established pursuant to subsection (5) of this section.

(8) For a second or third offense within a ten (10) year period, the minimum sentence of imprisonment or community labor shall not be suspended, probated, or subject to conditional discharge or other form of early release. For a fourth or subsequent offense under this section, the minimum term of imprisonment shall be one hundred twenty (120) days, and this term shall not be suspended, probated, or subject to conditional discharge or other form of early release. For a second or subsequent offense, at least forty-eight (48) hours of the mandatory sentence shall be served consecutively.

(9) When sentencing persons under subsection (5) (a) of this section at least one (1) of the penalties shall be assessed and that penalty shall not be suspended, probated, or subject to conditional discharge or other form of early release.

(10) In determining the ten (10) year period under this section, the period shall be measured from the dates on which the offenses occurred for which the judgments of conviction were entered.

(11)For purposes of this section, aggravating circumstances are any one (1) or more of the following:
(a) Operating a motor vehicle in excess of thirty (30) miles per hour above the speed limit;
(b) Operating a motor vehicle in the wrong direction on a limited access highway;
(c) Operating a motor vehicle that causes an accident resulting in death or serious physical injury as defined in KRS 500.080;
(d) Operating a motor vehicle while the alcohol concentration in the operator's blood or breath is 0.15 or more as measured by a test or tests of a sample of the operator's blood or breath taken within two (2) hours of cessation of operation of the motor vehicle;
(e) Refusing to submit to any test or tests of one's blood, breath, or urine requested by an officer having reasonable grounds to believe the person was operating or in physical control of a motor vehicle in violation of subsection (1) of this section, except it shall not be considered an aggravating circumstance for a first offense under subsection (5)(a) of this section; and
(f) Operating a motor vehicle that is transporting a passenger under the age of twelve (12) years old.

(12) The substances applicable to a prosecution under subsection (1)(d) of this section are:
(a) Any Schedule I controlled substance except marijuana;
(b) Alprazolam;
(c) Amphetamine;
(d) Buprenorphine;
(e) Butalbital;
(f) Carisoprodol;
(g) Cocaine;
(h) Diazepam;
(i) Hydrocodone;
(j) Meprobamate;
(k) Methadone;
(l) Methamphetamine;
(m)Oxycodone;
(n) Promethazine;
(o) Propoxyphene; and
(p) Zolpidem.

189A.070 License suspensions -- Time periods -- Completion of alcohol or substance abuse treatment or education program required before reinstatement.

(1) (a) 1. Unless the person is under eighteen (18) years of age, in addition to the penalties specified in KRS 189A.010, the Transportation Cabinet shall suspend a person's license to operate a motor vehicle or motorcycle upon conviction of KRS 189A.010(1).

2. Upon conviction of KRS 189A.010(1)(a), (b), (c), (d), or (e), the Transportation Cabinet shall suspend a person's license to operate a motor vehicle or motorcycle as follows:

a. For the first offense within a ten (10) year period:

i. For a person who is issued an ignition interlock license under KRS 189A.340 and who meets the ninety (90) consecutive day requirement within the first four (4) months of the issuance of the ignition interlock license, four (4) months;

ii. For a person who is issued an ignition interlock license under KRS 189A.340 but does not meet the ninety (90) consecutive day requirement within the first four (4) months of the issuance of the ignition interlock license, until the person meets the ninety (90) consecutive day requirement or six (6) months, whichever is shorter; or

iii. For all others, six (6) months;

b. For the second offense within a ten (10) year period:

i. For a person who is issued an ignition interlock license under KRS 189A.340 and who meets the one hundred twenty (120) consecutive day requirement within the first twelve (12) months of the issuance of the ignition interlock license, twelve (12) months;

ii. For a person who is issued an ignition interlock license under KRS 189A.340 but does not meet the one hundred twenty (120) consecutive day requirement within the first twelve (12) months of the issuance of the ignition interlock license, until the person meets the one hundred twenty (120) consecutive day requirement or eighteen (18) months, whichever is shorter; or

iii. For all others, eighteen (18) months;

c. For a third offense within a ten (10) year period:

i. For a person who is issued an ignition interlock license under KRS 189A.340 and who meets the one hundred twenty (120) consecutive day requirement within the first eighteen (18) months of the issuance of the ignition interlock license, eighteen (18) months;

ii. For a person who is issued an ignition interlock license under KRS 189A.340 but does not meet the one hundred twenty (120) consecutive day requirement within the first eighteen (18) months of the issuance of the ignition interlock license, until the person meets the one hundred twenty (120) consecutive day requirement or thirty-six (36) months, whichever is shorter; or

iii. For all others, thirty-six (36) months;

d. For a fourth or subsequent offense within a ten (10) year period:

i. For a person who is issued an ignition interlock license under KRS 189A.340 and who meets the one hundred twenty (120) consecutive day requirement within the first thirty (30) months of the issuance of the ignition interlock license, thirty (30) months;

ii. For a person who is issued an ignition interlock license under KRS 189A.340 but does not meet the one hundred twenty (120) consecutive day requirement within the first thirty (30) months of the issuance of the ignition interlock license, until the person meets the one hundred twenty (120) consecutive day requirement or sixty (60) months, whichever is shorter; or

iii. For all others, sixty (60) months;

e. If the conviction records transmitted to the Transportation Cabinet pursuant to subsection (3) of this section show that a person was convicted of a:

i. First offense of KRS 189A.010, the person's license shall be suspended as provided in subdivision a. of this subparagraph;

ii. Second offense of KRS 189A.010, the person's license shall be suspended as provided in subdivision b. of this subparagraph;

iii. Third offense of KRS 189A.010, the person's license shall be suspended as provided in subdivision c. of this subparagraph; and

iv. Fourth or subsequent offense of KRS 189A.010, the person's license shall be suspended as provided in subdivision d. of this subparagraph; and

f. The license suspension shall be deemed effective on the date of entry of the court's order or judgement for a conviction of KRS 189A.010.

3. Upon conviction of KRS 189A.010(1)(f), the Transportation Cabinet shall suspend a person's license to operate a motor vehicle or motorcycle as follows:

a. For a person who is issued an ignition interlock license under KRS 189A.340 and who meets the ninety (90) consecutive day requirement within the first four (4) months of the issuance of the ignition interlock license, four (4) months;

b. For a person who is issued an ignition interlock license under KRS 189A.340 but does not meet the ninety (90) consecutive day requirement within the first four (4) months of the issuance of the ignition interlock license, until the person meets the ninety (90) consecutive day requirement or six (6) months, whichever is shorter; or

c. For all others, six (6) months.

4. For purposes of this paragraph, "ninety (90) consecutive day requirement" and "one hundred twenty (120) consecutive day requirement" mean the requirements established in KRS 189A.340(4)(b)2.

(b) For a person under the age of eighteen (18), in addition to the penalties specified in KRS 189A.010, the Transportation Cabinet shall suspend the person's license to operate a motor vehicle or motorcycle upon conviction of KRS 189A.010(1). The person shall have his or her license suspended until he or she reaches the age of eighteen (18) or as provided in paragraph (a) of this subsection, whichever penalty will result in the longer period of suspension.

(2) In addition to the period of license suspension set forth in subsection (1) of this section, no person shall be eligible for reinstatement of his or her full privilege to operate a motor vehicle or motorcycle until he or she has completed the alcohol or substance abuse education or treatment program ordered pursuant to KRS 189A.040.

(3) Upon conviction of KRS 189A.010(1):

(a) A person shall surrender his or her license to operate a motor vehicle or motorcycle to the court. Should the person fail to surrender his or her license to the court, the court shall issue an order directing the sheriff or any other peace officer to seize the license forthwith and deliver it to the court. The court shall then forward the license to the Transportation Cabinet. This paragraph shall not apply to a person who has previously surrendered his or her license pursuant to KRS 189A.200; and

(b) The court shall immediately transmit the conviction records and other appropriate information to the Transportation Cabinet. A court shall not waive or stay this procedure.

(4) In determining the ten (10) year period under this section, the period shall be measured from the dates on which the offenses occurred for which the judgments of conviction were entered.

KRS 189A.090 Operating motor vehicle while license is revoked or suspended for driving under the influence prohibited – Operating motor vehicle without required ignition interlock device prohibited – Penalties

(1) No person shall operate or be in physical control of a motor vehicle or motorcycle while his or her license is suspended under this chapter, unless the person has a valid;

(a) Ignition interlock license in the person's possession and;

1. The motor vehicle or motorcycle is equipped with a functioning ignition interlock device; or
2. The person is operating or in physical control of an employer’s motor vehicle or motorcycle in accordance with KRS 189A.340(6); or

(b) Hardship license in the person’s possession.

(2) In addition to the period of license suspension imposed by KRS 189A.070, any person who violates subsection (1) of this section shall:

(a) For a first offense within a ten (10) year period, be guilty of a Class B misdemeanor and have his or her license suspended by the Transportation Cabinet for six (6) months, unless at the time of the offense the person was also operating or in physical control of a motor vehicle in violation of KRS 189A.010(1)(a), (b), (c), (d) or (e), in which event the person shall be guilty of a Class A misdemeanor and have his or her license suspended by the Transportation Cabinet for a period of one (1) year;

(b) For a second offense within a ten (10) year period, be guilty of a Class A misdemeanor and have his or her license suspended by the Transportation Cabinet for one (1) year, unless at the time of the offense the person was also operating or in physical control of a motor vehicle in violation of KRS 189A.010(1)(a), (b), (c), (d) or (e), in which event the person shall be guilty of a Class D felony and have his or her license suspended by the Transportation Cabinet for a period of two (2) years; and

(c) For a third or subsequent offense within a ten (10) year period, be guilty of a Class D felony and have his or her license suspended by the Transportation Cabinet for two (2) years, unless at the time of the offense the person was also operating or in physical control of a motor vehicle in violation of KRS 189A.010(1)(a), (b), (c), (d) or (e), in which event the person shall be guilty of a Class D felony and have his or her license suspended by the Transportation Cabinet for a period of five (5) years.

(3) Any person who violates subsection (1) of this section may apply for an ignition interlock license for the remainder of the original period of suspension under KRS 189A.070 and for the entire

period of the new suspension if the person is and remains otherwise eligible for such license pursuant to KRS 189A.340.

(4) The ten (10) year period under this section shall be measured in the same manner as in KRS 189A.070.

KRS 189A.100 Administration of preliminary breath tests -- Visual recording of vehicle pursuits, traffic stops, and field sobriety tests – Conditions of recording – Use and destruction of recordings

(1) Law enforcement agencies may administer preliminary breath tests using devices or equipment which will ensure an accurate determination of blood alcohol content. Such tests may be administered in the field to a person suspected of violation of KRS 189A.010 before the person is arrested. This test may be administered in addition to any other blood alcohol level test authorized by law. A person's refusal to take a preliminary breath test shall not be used against him in a court of law or in any administrative proceeding.

(2) (a) Law enforcement agencies may record on film or videotape or by other visual and audible means:

1. The pursuit of a violator or suspected violator;
2. The traffic stop; or
3. a. Field sobriety tests administered at the scene or such tests at a police station, jail, or other suitable facility; or
   b. The refusal of a violator or suspected violator to submit to tests under KRS 189A.103; for a suspected violation of KRS 189A.010.

(b) Recordings made under paragraph (a) of this subsection shall be subject to the following conditions:

1. The testing is recorded in its entirety (except for blood alcohol analysis testing);
2. The entire recording of the field sobriety tests or refusal and the entire recording of the pursuit and traffic stop is shown in court unless the defendant waives the showing of any portions not offered by the prosecution;
3. The entire recording is available to be shown by the defense at trial if the defendant so desires regardless of whether it was introduced by the Commonwealth;
4. The defendant or his counsel is afforded an opportunity to view the entire recording a reasonable time before the trial in order to prepare an adequate defense;
5. Recordings shall be used for official purposes only, which shall include:
   a. Viewing in court;
   b. Viewing by the prosecution and defense in preparation for a trial; and
   c. Viewing for purposes of administrative reviews and official administrative proceedings. Recordings shall otherwise be considered as confidential records;
6. The videotape or film taken in accordance with this section shall, upon order of the sentencing court, be destroyed after the later of the following:
   a. Fourteen (14) months, if there is no appeal of any criminal or traffic case filed as a result of the videotape or film, or if the videotape or film does not record the actual happening of an accident involving a motor vehicle;
   b. Fourteen (14) months after a decision has been made not to prosecute any case upon which an arrest has been made or a citation issued as a result of the videotape or film, if the videotape does not record the actual happening of an accident involving a motor vehicle;
   c. Twenty-six (26) months, if there is no appeal of any criminal or traffic case filed as a result of the videotape or film, if the videotape or film records the actual happening of an accident involving a motor vehicle;
   d. After all appeals have been exhausted arising from any criminal or traffic case filed as a result of the videotape;
   e. At the conclusion of any civil case arising from events depicted on the videotape or film; or

f. At the conclusion of the exhaustion of all appeals arising from any law enforcement agency administrative proceedings arising from events depicted on the videotape or film; and

7. Public officials or employees utilizing or showing recordings other than as permitted in this chapter or permitting others to do so shall be guilty of official misconduct in the first degree.

(3) When a peace officer makes a videotape or film recording of any transaction covered by subsection (2) of this section and a citation is issued or an arrest is made, the peace officer shall note on the uniform citation that a videotape has been made of the transaction.

KRS 189A.103 Consent to tests for alcohol concentration or substance which may impair driving ability – Test procedures – Who may administer – Personal testing

The following provisions shall apply to any person who operates or is in physical control of a motor vehicle or a vehicle that is not a motor vehicle in this Commonwealth:

(1) He has given his consent to one (1) or more tests of his blood, breath, and urine, or combination thereof, for the purpose of determining alcohol concentration or presence of a substance which may impair one's driving ability, if an officer has reasonable grounds to believe that a violation of KRS 189A.010(1) or 189.520(1) has occurred.

(2) Any person who is dead, unconscious, or otherwise in a condition rendering him incapable of refusal is deemed not to have withdrawn the consent provided in subsection (1) of this section, and the test may be given.

(3) The breath, blood, and urine tests administered pursuant to this section shall be administered at the direction of a peace officer having reasonable grounds to believe the person has committed a violation of KRS 189A.010(1) or 189.520(1).

(a) Tests of the person's breath, blood, or urine, to be valid pursuant to this section, shall have been performed according to the administrative regulations promulgated by the secretary of the Justice Cabinet, and shall have been performed, as to breath tests, only after a peace officer has had the person under personal observation at the location of the test for a minimum of twenty (20) minutes.

(b) All breath tests shall be administered by a peace officer holding a certificate, as an operator of a breath analysis instrument, issued by the secretary of the Justice Cabinet or his designee.

(4) A breath test shall consist of a test which is performed in accordance with the standard operating procedures adopted by the Department of Criminal Justice Training and approved by the manufacturer for the use of the instrument. The secretary of the Justice Cabinet shall keep available for public inspection and provide, upon request and without charge, copies of the standard operating procedures adopted by the Department of Criminal Justice Training and approved by the manufacturer for all models of breath testing devices in use by the Commonwealth of Kentucky.

(5) When the preliminary breath test, breath test, or other evidence gives the peace officer reasonable grounds to believe there is impairment by a substance which is not subject to testing by a breath test, then blood or urine tests, or both, may be required in addition to a breath test, or in lieu of a breath test.

(6) Only a physician, registered nurse, phlebotomist, medical technician, or medical technologist not otherwise prohibited by law can withdraw any blood of any person submitting to a test under this section.

(7) After the person has submitted to all alcohol concentration tests and substance tests requested by the officer the person tested shall be permitted to have a person listed in subsection (6) of this section of his own choosing administer a test or tests in addition to any tests administered at the direction of the peace officer. Tests conducted under this section shall be conducted within a reasonable length of time. Provided, however, the nonavailability of the person chosen to administer a test or tests in addition to those administered at the direction of the peace officer within a reasonable time shall not be grounds for rendering inadmissible as evidence the results of the test or tests administered at the direction of the peace officer.

KRS 189A.104 Alcohol or substance testing subject to refusal or enhancement of penalties under KRS Chapter 189A

(1) The only alcohol or substance testing that is subject to refusal or enhancement of penalties provided for in this chapter is:
   (a) Breath analysis testing by an instrument installed, tested, and maintained by the Commonwealth for that specific purpose at a police station or detention facility;
   (b) Blood or urine testing at the request of the officer at a police station, detention facility, or medical facility; or
   (c) Combination of tests required in paragraphs (a) or (b) of this subsection.
(2) The results of any breath analysis by an instrument other than one specified in subsection (1) of this section shall be inadmissible in court.

KRS 189A.105 Effect of refusal to submit to tests – Information required to be provided when tests requested – Ignition interlock device - Court-ordered testing – Right to consult attorney before submitting to tests – Personal testing option

(1) A person's refusal to submit to tests under KRS 189A.103 shall result in suspension of his or her driving privilege as provided in this chapter.
(2) (a) At the time a breath, blood, or urine test is requested, the person shall be informed:
   1. That, if the person refuses to submit to such tests:
      a. The fact of this refusal may be used against him or her in court as evidence of violating KRS 189A.010 and will result in suspension of his or her driver's license by the court at the time of arraignment; and
      b. Is subsequently convicted of violating KRS 189A.010(1):
         i. For a second or third time within a ten (10) year period, he or she will be subject to a mandatory minimum jail sentence which is twice as long as the mandatory minimum jail sentence imposed if he or she submits to the tests; and
         ii. His or her license will be suspended by the Transportation Cabinet; and
   2. That, if a test is taken:
      a. The results of the test may be used against the person in court as evidence of violating KRS 189A.010 (1); and
      b. The person has the right to have a test or tests of his or her blood performed by a person of his or her choosing described in KRS 189A.103 within a reasonable time of his or her arrest at the expense of the person arrested; and
   3. That although his or her license will be suspended, he or she may be eligible immediately for an ignition interlock license allowing him or her to drive during the period of suspension and, if he or she is convicted, he or she will receive a credit toward any other ignition interlock requirement arising from this arrest.

   (b) Nothing in this subsection shall be construed to prohibit a judge of a court of competent jurisdiction from issuing a search warrant or other court order requiring a blood or urine test, or a combination thereof, of a defendant charged with a violation of KRS 189A.010, or other statutory violation arising from the incident. However, if the incident involves a motor vehicle accident in which there was a fatality, the investigating officer shall seek such a search warrant for blood testing unless the testing has already been done by consent. If testing done pursuant to a warrant reveals the presence of alcohol or any other substance that impaired the driving ability of a person who is charged and convicted of a violation of KRS 189A.010(1), the sentencing court shall require, in addition to any other sentencing provision, that the defendant make restitution to the state for the cost of the testing.

   (c) 1. When directed by a peace officer pursuant to a search warrant or other court order issued under this subsection, a qualified medical professional shall withdraw the sample of blood as soon as practicable and shall deliver the sample to the requesting peace officer, or other peace officer as directed by the requesting peace officer, provided that the collection of the sample does not jeopardize the person's life, cause serious injury to the person, or seriously impede the person's medical assessment, care, or treatment.

   2. The qualified medical professional authorized to withdraw the blood sample and the medical

care facility where the blood sample is drawn shall be considered as acting in good faith once presented with a search warrant or other court order issued under this subsection. The qualified medical professional shall not require the person that is the subject of the test or tests to provide any additional consent.

3. A qualified medical professional who administers any test under this paragraph upon the request of a peace officer, and a medical care facility where any test under this paragraph may be performed, shall not be criminally liable solely for administering the requested test or civilly liable for damages to the person tested solely for administering the requested test except in cases of gross negligence or willful or wanton misconduct.

(3) During the period immediately preceding the administration of any test, the person shall be afforded an opportunity of at least ten (10) minutes but not more than fifteen (15) minutes to attempt to contact and communicate with an attorney, and shall be informed of this right. Inability to communicate with an attorney during this period shall not be deemed to relieve the person of his or her obligation to submit to the tests and the penalties specified by KRS 189A.010 and 189A.107 shall remain applicable to the person upon refusal. Nothing in this section shall be deemed to create a right to have an attorney present during the administration of the tests, but the person's attorney may be present if the attorney can physically appear at the location where the test is to be administered within the time period established in this section.

(4) Immediately following the administration of the final test requested by the officer, the person shall again be informed of his or her right to have a test or tests of his or her blood performed by a person of his or her choosing described in KRS 189A.103 within a reasonable time of his or her arrest at the expense of the person arrested. He or she shall then be asked "Do you want such a test?" The officer shall make reasonable efforts to provide transportation to the tests.

KRS 189A.107 License suspension for refusal to take alcohol or substance tests – Ignition interlock device - Hearing on alleged refusal - Time period for suspension

(1) A person who refuses to submit to an alcohol concentration or substance test requested by an officer having reasonable grounds to believe that the person violated KRS 189A.010(1) shall have his or her driver's license suspended for the pendency of the action as provided in KRS 189A.200.

(2) a. In the event a defendant is not convicted of a violation of KRS 189A.010(1) in a case in which it is alleged that he or she refused to take an alcohol concentration or substance test, upon motion of the attorney for the Commonwealth, the court shall conduct a hearing, without a jury, to determine by clear and convincing evidence if the person actually refused the testing. However, the hearing shall not be required if the court has made a previous determination of the issue at a hearing held under KRS 189A.200 and 189A.220.

b. If the court finds that the person did refuse to submit to a breath, blood, or urine test, the court shall suspend the person's driver's license for the period of time the license would have been suspended upon conviction as set forth in KRS 189A.070(1), except that the court, may authorize the person to apply to the Transportation Cabinet for issuance of an ignition interlock license under KRS 189A.340 for the period of the suspension.

KRS 189A.110 Minimum detention in custody when blood alcohol reading exceeds .15 percent

Any person who is arrested for a violation of KRS 189A.010 shall be detained in custody at least six (6) hours following his or her arrest.

KRS 189A.340 Ignition interlock devices

* * * * *

(2) (a) A person may apply for an ignition interlock license anytime, including after receiving the notices under KRS 189A.105 or after his or her license has been suspended pursuant to this chapter.

(b) If at the time the person applies for an ignition interlock license, the person's license has been suspended pursuant to this chapter, the person shall be authorized to:

1. An ignition interlock device provider to have a functioning ignition interlock device installed in his or her motor vehicle or motorcycle; and
2. The circuit clerk's office in the person's county or residence to obtain an ignition interlock device;

This paragraph shall only apply within fourteen (14) days of the date printed on the ignition interlock approval letter issued by the Transportation Cabinet and if the person has the ignition interlock approval letter in the motor vehicle or motorcycle.

* * * * *

(4) An ignition interlock license shall restrict the person to operating only a motor vehicle or motorcycle equipped with a functioning ignition interlock device unless the person qualifies for an employer exemption under subsection (6) of this section. This restriction shall remain in place for:
   (a) If a person's license was suspended pretrial pursuant to KRS 189A.200, the required suspension period under KRS 189A.200(6);
   (b) If a person's license was suspended pursuant to KRS 189A.070 or KRS 189A.107:
      1. The required suspension period under KRS189A.070(1); and
      2 a. If the maximum suspension period under KRS189A.070(1)(a) has not yet been met, until the Transportation Cabinet has received a declaration from the person's ignition interlock device provider, in a form provided or approved by the cabinet, certifying that none of the violations outlined in subdivision b. of this subparagraph have occurred:
         i. For a first offense within a ten (10) year period of KRS 189A.010(1)(a), (b), (c), (d), or (e) or for any offense of KRS 189A.010(f), in the ninety consecutive days; and
         ii. For all subsequent offenses within a ten (10) year period of KRS 189A.010(1)(a), (b), (c), (d), or (e), one hundred twenty consecutive days;
         prior to the date of releasing the ignition interlock device restriction.

   * * * * *

(6) (a) A person with an ignition interlock license may operate a motor vehicle or motorcycle not equipped with a functioning ignition interlock device if:
      1. The person is required to operate an employer's motor vehicle or motorcycle in the course and scope of employment; and
      2. The business entity that owns the motor vehicle or motorcycle is not owned or controlled by the person.
   (b) To qualify for the employer exemption, the person shall provide the Transportation Cabinet with a sworn statement from his or her employer stating that the person and a business entity meet the requirements of paragraph (a) of this subsection.

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KRS 189A.345 Penalties for violation of KRS 189A.410 and 189A.340 governing ignition interlock devices

(1) (a) No person who is issued an ignition interlock license under KRS 189A.340 shall operate a motor vehicle or motorcycle without a functioning ignition interlock device or at any time, place, or for any purpose other than authorized under KRS 189A.340.
   (b) Any person who violates the provisions of paragraph (a) of this subsection shall be guilty of a Class A misdemeanor, and shall have his or her license suspended by the Transportation Cabinet for the initial period of suspension under KRS 189A.070 for an additional six (6) months.

(2) (a) No person who is issued an ignition interlock license under KRS 189A.340 shall request, permit, or allow another person to:
      1. Start a motor vehicle or motorcycle equipped with an ignition interlock device; or
      2. Take a subsequent breath alcohol concentration test;

      For the purpose of providing an operable motor vehicle or motorcycle for that person subject to the ignition interlock license to drive in violation of KRS 189A.340.
   (b) Any person who violates paragraph (a) of this subsection shall:
      1. For a first offense, be guilty of a Class B misdemeanor; and

2. For a second or subsequent offense, be guilty of a Class A misdemeanor.

(3) (a) No person shall start a motor vehicle or motorcycle equipped with an ignition interlock device for the purpose of providing an operable motor vehicle or motorcycle to a person subject to the prohibition established in KRS 189A.340.

(b) Any person who violates paragraph (a) of this subsection shall:
1. For a first offense, be guilty of a Class B misdemeanor; and
2. For a second or subsequent offense, be guilty of a Class A misdemeanor.

(4) (a) No person shall:
1. Knowingly install a defective ignition interlock device on a motor vehicle or motorcycle;
2. Tamper with an installed ignition interlock device with the intent of rendering it defective; or
3. Alter, conceal, hide, or attempt to alter, conceal, or hide, the person's identity from the ignition interlock device's camera while providing a breath sample.

(b) Any person who violates paragraph (a) of this subsection shall:
1. For a first offense, be guilty of a Class B misdemeanor; and
2. For a second or subsequent offense, be guilty of a Class A misdemeanor and be prohibited from installing ignition interlock devices or directing others in the installation of ignition interlock devices.

(5) (a) No person shall: direct another person to install a defective ignition interlock device on a motor vehicle or motorcycle when the person giving the direction knows that the ignition interlock device is defective.

(b) Any person who violates paragraph (a) of this subsection shall:
1. For a first offense, be guilty of a Class B misdemeanor; and
2. For a second or subsequent offense, be guilty of a Class A misdemeanor and be prohibited from directing others in the installation of ignition interlock devices or installing ignition interlock devices.

(6) (a) No person shall knowingly assist a person who is issued an ignition interlock license in making a false statement in order to qualify for the employer exemption under KRS189A.340(6).

(b) Any person who violates paragraph (a) of this subsection is guilty of a Class A misdemeanor and shall have his or her motor vehicle or motorcycle operator's license suspended by the Transportation Cabinet for six (6) months.

KRS 189A.440 Prohibition against use of vehicle other than for purpose authorized by hardship license – Penalty - Penalty for false application statement

(1) No person who is issued a hardship license shall operate a motor vehicle at any time, place, or for any purpose other than those authorized upon the face of the hardship license issued under KRS 189A.410.

(2) Any defendant who violates the provisions of subsection (1) of this section is guilty of a Class A misdemeanor, and shall have his or her license suspended by the Transportation Cabinet for the initial period of suspension under KRS 189A.070 an additional six (6) months.

(3) Any defendant or any other person who knowingly assists the defendant in making a false application statement is guilty of a Class A misdemeanor and shall have his or her motor vehicle or motorcycle operator's license suspended by the Transportation Cabinet for six (6) months.

KRS Chapter 281A
COMMERCIAL DRIVER'S LICENSES
(Selected Sections)

KRS 281A.010 Definitions

(1) "**Alcohol**" means:
   (a) Beer, ale, port, or stout and other similar fermented beverages, including sake or similar products, of any name or description containing one-half of one percent (0.5%) or more of alcohol by volume, brewed or produced from malt, wholly or in part, or from any substitute therefor;
   (b) Wine of not less than one-half of one percent (0.5%) of alcohol by volume; or
   (c) Distilled spirits, which means that substance known as ethyl alcohol, ethanol, or spirits of wine in any form, including all dilutions and mixtures thereof from whatever source or by whatever process produced; or
   (d) Any substance containing ethyl alcohol, hydrated oxide of ethyl, spirit of wine, or any distilled spirits including, but not limited to, ethanol, methanol, propanol, and isopropanol;

(2) "**Alcohol concentration**" means:
   (a) The number of grams of alcohol per one hundred (100) milliliters of blood;
   (b) The number of grams of alcohol per two hundred ten (210) liters of breath; or
   (c) The number of grams of alcohol per sixty-seven (67) milliliters of urine.

* * * * *

(5) "**Commercial driver's license**" or "**CDL"** means a license issued to an individual in accordance with the requirements of this chapter or, if the license is issued by another state in accordance with the Federal Commercial Motor Vehicle Safety Act, to an individual that authorizes the individual to drive any class of commercial motor vehicle;

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(7) "**Commercial learner's permit**" or **"CLP"** means a permit issued pursuant to KRS 281A.120;

(8) **"Commercial motor vehicle"** or **"CMV "** means a motor vehicle or combination motor vehicle used in commerce that is:
   (a) Designed to carry property and has a gross vehicle weight rating as determined by federal regulation which has been adopted into cabinet administrative regulations pursuant to KRS Chapter 13A;
   (b) Designed to transport sixteen (16) or more passengers, including the driver;
   (c) Transporting hazardous materials and is required to be placarded in accordance with 49 C.F.R. pt.172; or
   (d) Any other vehicle that is required by cabinet administrative regulation, pursuant to KRS Chapter 13A, to be operated by a licensed commercial driver;

(9) "**Controlled substance**" means any substance so classified under 21 U.S.C. sec. 802(6), and includes all substances listed on Schedules I through V of 21 C.F.R. pt. 1308, as adopted by the Transportation Cabinet by administrative regulation pursuant to KRS Chapter 13A. It shall also include those substances defined or listed in KRS Chapter 218A;

(10)"**Conviction**" means an unvacated adjudication of guilt, or a determination that a person has violated or failed to comply with the law in a court of original jurisdiction or an authorized administrative tribunal, an unvacated forfeiture of bail or collateral deposited to secure the person's appearance in court, a plea of guilty, a plea of nolo contendere, or Alford plea entered and accepted by the court, the payment of a fine or court cost, or violation of a condition of release without bail, regardless of whether or not the penalty is rebated, suspended, or probated;

(11)"**Disqualification**" means any of the following actions:
   (a) The suspension, revocation, or cancellation of a CDL by the Commonwealth or the jurisdiction of issuance;
   (b) Any withdrawal of a person's privilege to drive a commercial motor vehicle by the Commonwealth or another jurisdiction as a result of a violation of state or local law relating to motor vehicle traffic control, other than parking, vehicle weight, or vehicle defect violations; or
   (c) A determination by the Federal Motor Carrier Safety Administration that a person is not qualified to operate a commercial motor vehicle under 49 C.F.R. pt. 391;

(12)"**Drive**" means to drive, operate, or be in physical control of a motor vehicle;

(13)"**Driver**" means any person who drives, operates, or is in physical control of a commercial motor vehicle, or who is required to hold a commercial driver's license;
(14)**"Driver's license"** or **"operator's license"** means a license issued by a state to an individual that authorizes the individual to drive a motor vehicle;
* * * * *
(17)"**Felony**" means any offense under state or federal law that is punishable by death or imprisonment for a term exceeding one (1) year;
(18)**"Gross combination weight rating"** or **"GCWR"** is the gross vehicle weight rating of power unit plus the gross vehicle weight rating of any towed unit. In the absence of a value specified by the manufacturer, GCWR shall be determined by the combined actual physical weight of the vehicle, including passengers, cargo, fuel, all other items, and, if towing, the tongue weight;
(19)"**Gross vehicle weight rating**" or **"GVWR"** means the value specified by the manufacturer as the maximum loaded weight of a single, a combination or an articulated vehicle;
(20)"**Hazardous materials**" has the same meaning as in 49 C.F.R. sec. 383.5;
(21)"**Highway**" shall include any way or place of any nature when any part of it is open to the use of the public as a matter of right, license, or privilege for the use of vehicular traffic;
(22)"**Imminent hazard**" means a condition that presents a substantial likelihood that death, serious illness, severe personal injury, or a danger to health, property, or the environment exists;
(23)"**Moped**" shall have the same meaning as in KRS 186.010(5);
(24)"**Motor vehicle**" means a vehicle, machine, tractor, trailer, or semitrailer propelled or drawn by mechanical power used on highways, or any other vehicle required to be registered under the laws of this state, but shall not include any vehicle, machine, tractor, trailer, or semitrailers operated exclusively on a rail;
* * * * *
(26)"**Out-of-service order**" means a declaration by an authorized enforcement officer of a federal, state, Canadian, Mexican, or local jurisdiction that a driver, commercial motor vehicle, or a motor carrier operation is out of service pursuant to 49 C.F.R. secs. 386.72, 392.5, 395.13, or 396.9; comparable laws or regulations; or the North American Uniform Out-of-Service Criteria;
(27)"**Resident**" means a person who has established Kentucky as his or her state of domicile. Proof of residency shall include but not be limited to a deed or property tax bill, utility agreement or utility bill, or rental housing agreement;
(28)"**School bus**" means a vehicle that meets the specification of KRS 156.153 used to transport preprimary, primary, or secondary school students between school and home, or to and from school-sponsored events. A school bus shall not include a bus used as a common carrier;
(29)"**Serious traffic violation**" means a conviction when operating a commercial motor vehicle of:
(a) Excessive speeding, involving a single charge of any speed fifteen (15) miles per hour or more, above the specified speed limit;
(b) Reckless driving, as defined under state or local law, including conviction of driving a commercial motor vehicle in willful or wanton disregard for the safety of persons or property;
(c) Improper or erratic traffic lane changes;
(d) Following the vehicle ahead too closely;
(e) A violation of any state or local law related to motor vehicle traffic control, other than a parking violation, arising in connection with a fatal accident; or
(f) Driving a commercial motor vehicle without a CDL;
(g) Driving a commercial motor vehicle without a CDL in one's possession or refusing to display a CDL upon request;
(h) Driving a commercial motor vehicle without the proper class of CDL or endorsements, or both, for the specific vehicle type or types being operated or for the passengers or type or types of cargo being transported; or
(i) Any conviction of an offense that requires mandatory suspension under KRS 186.560 or a serious violation as defined by 49 C.F.R. pt. 383;
* * * * *
(33)"**Vehicle**" means every device in, upon, or by which any person or property is or may be transported or drawn along a public highway, except devices moved by human or animal power, used exclusively upon stationary rails or tracks, or which derives its power from overhead wires.

KRS 281A.050 Drivers excluded from operation of chapter

The provisions of this chapter shall not apply to:
(1) Drivers of firefighting and other emergency equipment;
(2) Drivers of commercial motor vehicles if those persons are:
  (a) Military personnel; and
  (b) Operating the vehicles in pursuit of a military purpose;
(3) Drivers of farm vehicles that are:
  (a) Used to transport agricultural products, farm machinery, or farm supplies to or from a farm;
  (b) Not used in the operations of a common or contract motor carrier;
  (c) Used within one hundred fifty (150) highway miles of the farmer's farm; and
  (d) Controlled and operated by a farmer, including operation by employees or family members; and
(4) Drivers of vehicles that:
  (a) Are designed as temporary living quarters for recreational, camping, or travel use; and
  (b) Operate on their own motor power or are mounted on or drawn by another vehicle.

KRS 281A.060 License limitation

No person who drives a commercial motor vehicle may have more than one (1) driver's license.

KRS 281A.090 Restrictions on driving

(1) Except when driving under a commercial learner's permit and accompanied by the holder of commercial driver's license valid for the vehicle being driven, no person shall drive a commercial motor vehicle on the highways of this state unless the person holds a valid commercial driver's license with applicable endorsements valid for the vehicle he is driving.
(2) No person shall drive a commercial motor vehicle on the highways of this state while his driving privilege for a commercial or noncommercial motor vehicle is suspended, revoked, or canceled, or while he is subject to a disqualification, or in violation of an out-of-service order.
(3) The licensee shall have in his immediate possession at all times when operating a motor vehicle his commercial driver's license, and shall display the license upon demand to a circuit clerk, a license examiner, a peace officer, a State Police officer, or an inspector or officer of the Department of Vehicle Regulation. It shall be a defense to a violator of this subsection if the person so charged produces in court a commercial driver's license, issued to him before his arrest or violation and which was valid at that time.

KRS 281A.170 Form of licenses – Limitations on licenses – Expiration

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(3) A commercial driver's license shall be issued with classifications, endorsements, and restrictions. Vehicles that require an endorsement shall not be driven unless the proper endorsement appears on the license and the applicant has passed the knowledge and skills test required by the State Police.
  (a) Classifications:
    1. Class A - Any combination of vehicles with a gross vehicle weight rating of twenty-six thousand and one (26,001) pounds or more, if the gross vehicle weight rating of the vehicle being towed is in excess of ten thousand (10,000) pounds. Licensees with an "A" classification may with the proper endorsement drive Class B and C vehicles;
    2. Class B - Any single vehicle with a gross vehicle weight rating of twenty-six thousand and one (26,001) pounds or more, and any vehicle towing a vehicle not in excess of ten thousand (10,000) pounds gross vehicle weight rating. Licensees with a "B" classification may with the proper endorsements drive Class C vehicles;
    3. Class C - Any single vehicle with a gross vehicle weight rating of less than twenty-six thousand and one (26,001) pounds or any vehicle towing a vehicle with a gross vehicle weight rating not in excess of ten thousand (10,000) pounds which includes:
      a. Vehicles designed to transport sixteen (16) or more passengers, including the driver; or

b. Vehicles used in the transportation of hazardous materials which requires the vehicle to be placarded under 49 C.F.R. secs. 172.500 to 172.560, as adopted by administrative regulations of the cabinet, pursuant to KRS Chapter 13A;

4. Class D - All other vehicles not listed in any other class, including mopeds; and

5. Class M - Motorcycles. Licensees with a "M" classification may also drive mopeds.

(b) Endorsements:

1. "H" - Authorizes the driver to operate a vehicle transporting hazardous materials;

2. "T" - Authorizes operation of double trailers and triple trailers in those jurisdictions allowing the operation of triple trailers;

3. "P" - Authorizes operation of vehicles carrying passengers;

4. "N" - Authorizes operation of tank vehicles;

5."X" - Authorizes operation of combination of hazardous materials and tank vehicle endorsements;

6. "R" - Authorizes operation of all other endorsements not otherwise specified; and

7. "S" - Authorizes operation of school buses.

(c) The Transportation Cabinet shall promulgate administrative regulations in accordance with KRS Chapter 13A to outline restrictions on the operation of commercial vehicles and the associated codes to identify such restrictions, which shall appear on the face of the commercial driver's license.

(4) Within ten (10) days after issuing a commercial driver's license, the cabinet shall notify the commercial driver's license information system of that fact, providing all information required to ensure identification of the person.

(5) A commercial driver's license issued to a resident pursuant to this chapter shall expire in eight (8) years unless the license was issued to a resident under the age of twenty-one (21).

(6) A person under the age of twenty-one (21) shall not be licensed to operate a Class A, B, or C vehicle unless he or she has a "K" restriction. A commercial driver with a "K" restriction shall not drive a commercial motor vehicle in interstate commerce, unless he or she is exempt pursuant to 49 C.F.R. sec. 391.2. A commercial driver under the age of twenty-one (21) shall not be allowed to operate a school bus or a vehicle transporting hazardous material in intrastate commerce.

(7) The holder of a commercial driver's license shall be considered to hold a valid Kentucky driver's license issued under the provisions of KRS 186.4102 and 186.412.

KRS 281A.190 Disqualification – Suspension, revocation, or cancellation – Right to appeal

(1) A person who holds or is required to hold a CDL shall be disqualified from driving a commercial motor vehicle for a period of one (1) year if convicted of:

(a) Driving or being in physical control of a motor vehicle under the influence of alcohol or a controlled substance;

(b) Driving or being in physical control of a motor vehicle while the alcohol concentration of the person's blood or breath or urine is four hundredths (0.04) or more;

(c) Leaving the scene of an accident involving a motor vehicle driven by a person who holds or is required to hold a CDL;

(d) Using a motor vehicle in the commission of any felony listed in KRS 186.560;

(e) Refusing to submit to testing as required by KRS 281A.220 when driving a motor vehicle;

(f) Committing a first violation of driving a commercial motor vehicle while the person's commercial driver's license is revoked, suspended, or canceled, or when the person is disqualified from operating a commercial motor vehicle; or

(g) Causing a fatality through negligent or criminal operation of a commercial motor vehicle.

(2) A person who holds or is required to hold a CDL shall be disqualified for life if convicted of two (2) or more violations of any of the offenses specified in subsection (1) of this section or any combination of those offenses arising from two (2) or more separate incidents. The provisions of this subsection shall only apply to convictions that occurred after the disqualification dates established by the Federal Motor Carrier Safety Administration. The Transportation Cabinet shall set forth those dates in an administrative regulation promulgated in accordance with KRS Chapter 13A.

(3) If any violation specified in subsection (1) of this section occurred while transporting a hazardous material required to be placarded, the person who holds or is required to hold a CDL shall be

disqualified for a period of three (3) years.

* * * * *

(5) A person who holds or is required to hold a CDL shall be disqualified from driving a commercial motor vehicle for life if the person is convicted of any felony in which a commercial motor vehicle was used and that involved:
   (a) The manufacture, distribution, or dispensing of a controlled substance, or possession with intent to manufacture, distribute, or dispense a controlled substance; or
   (b) An act or practice of severe forms of trafficking in persons.

(6) A person who holds or is required to hold a CDL shall be disqualified from driving a commercial motor vehicle for a period of sixty (60) days if convicted of two (2) serious traffic violations, or one hundred twenty (120) days consecutively if convicted of three (3) serious traffic violations, committed in a commercial motor vehicle arising from separate incidents occurring within a three (3) year period.

(7) A person who holds or is required to hold a CDL shall be disqualified for the first offense from driving a commercial motor vehicle for six (6) months if the person has been convicted of committing any of those offenses enumerated in KRS 186.610 involving a commercial motor vehicle, commercial driver's license, or application for that license. For the second and each subsequent offense, the person shall be disqualified from operating a commercial motor vehicle for a period of one (1) year.

(8) The cabinet shall deny a person a commercial driver's license or shall suspend, revoke, or cancel his or her commercial driving privilege, subject to a hearing conducted in accordance with KRS 189A.107, when the cabinet has reason to believe that the person refused to submit to a test to determine his or her alcohol concentration while driving a commercial motor vehicle.

(9) If a person who holds or is required to hold a CDL is convicted of any of the railroad crossing offenses or conduct enumerated in KRS 189.500, 189.560, and 189.565, then the person shall be disqualified from operating a commercial motor vehicle for a period of:
   (a) Sixty (60) days for the first offense;
   (b) One hundred twenty (120) days for the second offense within a three (3) year period; and
   (c) One (1) year for the third or subsequent offense within a three (3) year period.

(10) If a person who holds or is required to hold a CDL violates an out-of-service order while transporting nonhazardous materials, then the person shall be disqualified from operating a commercial motor vehicle for a period of:
   (a) One hundred eighty (180) days for the first offense;
   (b) Two (2) years for the second offense in a separate incident within a ten (10) year period; and
   (c) Three (3) years for the third or subsequent offense in a separate incident within a ten (10) year period.

(11) If a person who holds or is required to hold a CDL violates an out-of-service order while transporting hazardous materials required to be placarded under the 49 U.S.C. sec. 5101 et seq., or operating a commercial motor vehicle designed to transport sixteen (16) or more passengers, including the driver, then the person shall be disqualified from operating a commercial motor vehicle for a period of:
   (a) One hundred eighty (180) days for the first offense; and
   (b) Three (3) years for the second or subsequent offense in a separate incident within a ten (10) year period.

* * * * *

KRS 281A.210 Operating commercial vehicle while under the influence of alcohol or other controlled substance

(1) Notwithstanding any other provision of this chapter, a person shall not drive a **commercial motor vehicle** within this state while having any measurable or detectable amount of alcohol or other controlled substances in his system.

(2) A person who drives a commercial motor vehicle within this state while having any detectable amount of alcohol or controlled substance in his system or who refuses to submit to the test required in KRS 281A.220, shall be placed out of service for twenty-four (24) hours.

(3) A person who drives a commercial motor vehicle within this state with an alcohol concentration of four hundredths (0.04) or more shall be deemed to be operating a vehicle under the influence.

(4) A person who drives a commercial motor vehicle within this state with an alcohol concentration of four hundredths (0.04) or more, or who refused to submit to the test required in KRS 281A.220, in addition to any other sanctions that may be imposed under this chapter shall be disqualified from driving a commercial motor vehicle under KRS 281A.190.

KRS 281A.2102 Additional penalties for driving commercial motor vehicle under the influence of alcohol

In addition to the penalties established by this chapter for driving a commercial motor vehicle under the influence of alcohol:

(1) Any person convicted of driving a commercial motor vehicle while the alcohol concentration of the person's blood or breath is four hundredths (0.04) to eight hundredths (0.08) shall be fined not less than twenty dollars ($20) and not more than fifty dollars ($50).

(2) Any person convicted of driving a commercial motor vehicle while the alcohol concentration of the person's blood or breath is greater than eight hundredths (0.08) shall be fined under the provisions of KRS 189A.010(5)(a) to (d).

KRS 281A.220 Testing to determine alcohol concentration or presence of other controlled substances

(1) A person who drives a commercial motor vehicle within this state shall be deemed to have given his consent to take a test or tests of his blood, breath, or urine for the purpose of determining alcohol concentration, or the presence of other drugs.

(2) A test or tests may be administered in accordance with the provisions of KRS 189A.103 at the direction of a law enforcement officer, who after stopping or detaining the commercial motor vehicle driver has reasonable cause to believe that driver was driving a commercial motor vehicle while having alcohol or drugs in his system. A urine test shall be a test of last resort under the provisions of this section. The pretrial suspension provisions and implied consent provisions of KRS Chapter 189A shall be applicable to this section.

KRS 281A.240 Recognition of commercial driver's license or permit of foreign jurisdiction – Effect of foreign convictions

(1) Notwithstanding any law to the contrary, a person may drive a commercial motor vehicle in this state if the person has a valid commercial driver's license or commercial learner's permit issued by any state, Canada, or Mexico in accordance with the minimum federal standards for the issuance of commercial motor vehicle driver's licenses, if:
   (a) The person's driving privilege is not suspended, revoked, or canceled; and
   (b) The person is not disqualified from driving a commercial motor vehicle or subject to an out-of-service order.

(2) The Commonwealth of Kentucky shall give all out-of-state convictions full faith and credit and treat them for sanctioning purposes under this chapter as if they occurred in this state. Except as otherwise provided, when in this chapter reference is made to an offense which is a violation of a provision of this chapter or other Kentucky state law, the reference shall be deemed to include offenses under any local ordinance, any federal law, any law or local ordinance of another state substantially similar to any provision of the Kentucky Revised Statutes.

KRS CHAPTER 304
INSURANCE CODE
(Selected Sections)

Subtitle 39
MOTOR VEHICLE REPARATIONS ACT

KRS 304.39-080 Security covering motor vehicle

Penalty: KRS 304.99-060

(1) "**Security covering the vehicle**" is the insurance or other security so provided. The vehicle for which the security is so provided is the "secured vehicle."

(2) "**Basic reparation insurance**" includes a contract, self-insurance, or other legal means under which the obligation to pay basic reparation benefits arises.

(3) This Commonwealth, its political subdivisions, municipal corporations, and public agencies may continuously provide, pursuant to subsection (6), security for the payment of basic reparation benefits in accordance with this subtitle for injury arising from maintenance or use of motor vehicles owned by those entities and operated with their permission.

(4) The United States and its public agencies and any other state, its political subdivisions, municipal corporation, and public agencies may provide, pursuant to subsection (6), security for the payment of basic reparation benefits in accordance with this subtitle for injury arising from maintenance or use of motor vehicles owned by those entities and operated with their permission.

(5) Except for entities described in subsections (3) and (4), every owner or operator of a motor vehicle registered in this Commonwealth or operated in this Commonwealth with an owner's permission shall continuously provide with respect to the motor vehicle while it is either present or registered in this Commonwealth, and any other person may provide with respect to any motor vehicle, by a contract of insurance or by qualifying as a self-insurer, security for the payment of basic reparation benefits in accordance with this subtitle and security for payment of tort liabilities, arising from maintenance or use of the motor vehicle. The owner of a motor vehicle who fails to maintain security on a motor vehicle in accordance with this subsection shall have his or her motor vehicle registration revoked in accordance with KRS 186A.040.

(6) Security may be provided by a contract of insurance or by qualifying as a self-insurer or obligated government in compliance with this subtitle.

* * * * *

KRS 304.39-090 Required security

Penalty: KRS 304.99-060

An owner of a motor vehicle registered in this Commonwealth who ceases to maintain security as required by the provisions on security may not operate or permit operation of the vehicle in this Commonwealth until security has again been provided as required by this subtitle. An owner who fails to maintain security as required by this subtitle shall have his or her motor vehicle registration revoked in accordance with KRS 186A.040. All other owners shall provide such security while operating a motor vehicle in this Commonwealth.

KRS 304.39-110 Required minimum tort liability insurance

(1) The requirement of security for payment of tort liabilities is fulfilled by providing:
   (a) Either:
      1. Split limits liability coverage of not less than twenty-five thousand dollars ($25,000) for all damages arising out of bodily injury sustained by any one (1) person, and not less than fifty thousand dollars ($50,000) for all damages arising out of bodily injury sustained by all persons injured as a result of any one (1) accident, plus liability coverage of not less than ten thousand dollars ($10,000) for all damages arising out of damage to or destruction of property, including the loss of use thereof, as a result of any one (1) accident arising out of ownership, maintenance, use, loading, or unloading, of the secured vehicle; or
      2. Single limits liability coverage of not less than sixty thousand dollars ($60,000) for all damages whether arising out of bodily injury or damage to property as a result of any one

(1) accident arising out of ownership, maintenance, use, loading, or unloading, of the secured vehicle;

(b) That the liability coverages apply to accidents during the contract period in a territorial area not less than the United States of America, its territories and possessions, and Canada; and

(c) Basic reparation benefits as defined in KRS 304.39-020(2).

(2) Subject to the provisions on approval of terms and forms, the requirement of security for payment of tort liabilities may be met by a contract the coverage of which is secondary or excess to other applicable valid and collectible liability insurance. To the extent the secondary or excess coverage applies to liability within the minimum security required by this subtitle it must be subject to conditions consistent with the system of required liability insurance established by this subtitle.

(3) Security for a motorcycle is fulfilled by providing only the coverages set forth in subsections (1)(a) and (b) of this section.

KRS 304.39-117 Motor vehicle insurance card

Penalty: KRS 304.99-010

(1) Each insurer issuing an insurance contract which provides security covering a motor vehicle shall provide to the insured, in compliance with administrative regulations promulgated by the department, written proof in the form of an insurance card that the insured has in effect an insurance contract providing security in conformity with this subtitle. An insurer may provide an insurance card in either a paper or an electronic format.

(2) If an owner enters into an insurance contract on a newly acquired motor vehicle, or changes insurance carriers on an existing motor vehicle, the owner shall keep the paper insurance card or a portable electronic device to download the insurance card in his or her motor vehicle for forty-five (45) days from the date the coverage took effect as prima facie evidence that the required security is currently in full force and effect, and shall show the card to a peace officer upon request.

(3) As to personal motor vehicles as defined in KRS 304.39-087, the paper or electronic insurance card or the database created by KRS 304.39-087 shall be evidence to a peace officer who requests the card if the peace officer has access to the database through AVIS. If AVIS does not list the vehicle identification number of the personal motor vehicle as an insured vehicle, the peace officer may accept a paper or electronic insurance card as evidence that the required security is currently in full force and effect on the personal motor vehicle if the card was effective no more than forty-five (45) days before the date on which the peace officer requests the card.

(4) For purposes of this section:

(a) An insurance card in an electronic format means the display of an image on any portable electronic device, including a cellular phone or any other type of portable electronic device, depicting a current valid representation of the card;

(b) Whenever a person presents a mobile electronic device pursuant to this section, that person assumes all liability for any damage to the mobile electronic device; and

(c) When a person provides evidence of financial responsibility using a mobile electronic device to a peace officer, the peace officer shall only view the electronic image of the insurance card and is prohibited from viewing any other content on the mobile electronic device.

Subtitle 99

PENALTIES

KRS 304.99-010 General Penalties

In addition to or in lieu of the specific penalties provided for by this code, any person who violates any provision of this code or who knowingly violates any proper order of the commissioner shall, upon conviction by a court of competent jurisdiction, be fined not less than one hundred dollars ($100) or twice the amount of the gain from the commission of the violation, whichever is greater, be subject to revocation of certificate of authority or license, or both.

KRS 304.99-060 Penalties for violation of Subtitle 39 -- Reduction of penalty

(1) The owner or operator of any vehicle who fails to have in full force and effect the security required by Subtitle 39 of this chapter shall:
   (a) Be fined not less than five hundred dollars ($500) nor more than one thousand dollars ($1,000), or sentenced to not more than ninety (90) days in jail, or both;
   (b) Have the registration of the motor vehicle revoked and the license plates of the vehicle suspended for a period of one (1) year or until such time as proof, in a form satisfactory to the commissioner, is furnished that the security is then and will remain in effect; and
   (c) For the second and each subsequent offense within any five (5) year period, have his operator's license revoked in accordance with KRS 186.560, and may be sentenced to one hundred and eighty (180) days in jail, or fined not less than one thousand dollars ($1,000) nor more than two thousand five hundred dollars ($2,500), or both.

(2) Penalties under subsection (1) of this section for the first offense are subject to conditional discharge, suspension, or other forms of reduction of penalty by judicial discretion upon production of proof of security.

(3) For the second and each subsequent offense, minimum fines, suspensions, and penalties under subsection (1) of this section are subject to conditional discharge, suspension, or other forms of reduction of penalty, by judicial discretion only upon production of proof of security and a receipt showing that a premium for a minimum policy period of six (6) months has been paid.

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(6) Unless uninterrupted coverage is maintained, cancellation or expiration of the procured security before the end of the minimum six (6) month policy period shall be a Class B misdemeanor.

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KRS CHAPTER 217
FOODS, DRUGS, AND POISONS
(Selected Sections)

FOOD, DRUG AND COSMETIC ACT

KRS 217.005 Citation of KRS 217.005 to 217.215

KRS 217.005 to 217.215 may be cited as the Kentucky Food, Drug and Cosmetic Act.

KRS 217.006 Applicability of definitions in KRS 516.010 to KRS 217.207, 217.208, and 217.209

For purposes of KRS 217.207, 217.208, and 217.209, the definitions found in KRS 516.010 apply.

KRS 217.007 Applicability of penalties in KRS Chapter 506 to KRS 217.005 to 217.215

Unless this chapter provides a specific penalty for the same act, the provisions of KRS Chapter 506 shall apply to offenses under KRS 217.005 to 217.215.

KRS 217.015 Definitions for KRS 217.005 to 217.215

For the purposes of KRS 217.005 to 217.215:
* * * * *
(9) "**Dispense**" means to deliver a drug or device to an ultimate user or research subject by or pursuant to the lawful order of a practitioner, including the packaging, labeling, or compounding necessary to prepare the substance for that delivery;
* * * * *
(28)"**Legend drug**" means a drug defined by the Federal Food, Drug and Cosmetic Act, as amended, and under which definition its label is required to bear the statement "Caution: Federal law prohibits dispensing without prescription.";
* * * * *
(35)"**Practitioner**" means medical or osteopathic physicians, dentists, chiropodists, and veterinarians who are licensed under the professional licensing laws of Kentucky to prescribe and administer drugs and devices. "Practitioner" includes optometrists when administering or prescribing pharmaceutical agents authorized in KRS 320.240(12) to (14), advanced practice registered nurses as authorized in KRS 314.011 and 314.042, physician assistants when administering or prescribing pharmaceutical agents as authorized in KRS 311.858, and health care professionals who are residents of and actively practicing in a state other than Kentucky and who are licensed and have prescriptive authority under the professional licensing laws of another state, unless the person's Kentucky license has been revoked, suspended, restricted, or probated, in which case the terms of the Kentucky license shall prevail;
(36)"**Prescription**" means a written or oral order for a drug or medicine, or combination or mixture of drugs or medicines, or proprietary preparation, that is signed, given, or authorized by a medical, advanced practice registered nurse, dental, chiropody, veterinarian, or optometric practitioner, and intended for use in the diagnosis, cure, mitigation, treatment, or prevention of disease in man or other animals;
(37)"**Prescription blank**" means a document that conforms with KRS 217.216 and is intended for prescribing a drug to an ultimate user;
* * * * *
(43)"**Second or subsequent offense**" has the same meaning as it does in KRS 218A.010;
* * * * *
(46)"**Traffic**" has the same meaning as it does in KRS 218A.010;
* * * * *

KRS 217.177 Sale and disposal of hypodermic syringes or needles

Penalty: KRS 217.990(11)

(1) No person engaged in sales at retail shall display hypodermic syringes or needles in any portion of the place of business which is open or accessible to the public.

(2) Pharmacies offering retail sale of hypodermic syringes or needles shall make available:
   (a) Written or electronic educational materials on safe and proper disposal of hypodermic needles and syringes;
   (b) Written or electronic educational or referral information for syringe exchange service programs and substance use disorder treatment; and
   (c) A verbal, physical, or electronic offer to provide a prescription for an opioid antagonist as defined in KRS 217.186.

(3) Nothing in this section shall apply to the sale of hypodermic syringes or needles dispensed as a prescription or in conjunction with a prescription medication that requires reconstitution or administration with a syringe.

(4) Any physician, other licensed medical person, hospital, or clinic disposing of hypodermic syringes or needles shall render the instrument incapable of further use.

KRS 217.181 Theft of a legend drug

(1) A person is guilty of theft of a legend drug when he unlawfully takes or exercises control over a legend drug that is not a controlled substance, belonging to another person, with the intent to deprive him thereof.

(2) Theft of a legend drug is:
   (a) For a first offense a Class D felony, if the legend drug has a value of three hundred dollars ($300) or less; or
   (b) For a second or subsequent offense, or a value of greater than three hundred dollars ($300), a Class C felony.

KRS 217.182 Sale, distribution, administration, prescription, or possession of legend drugs – Penalty

(1) A duly licensed manufacturer, distributor, or wholesaler may sell or distribute a legend drug to any of the following:
   (a) A manufacturer, wholesaler, or distributor;
   (b) A pharmacy;
   (c) A practitioner;
   (d) The administrator in charge of a hospital, but only for use by or in that hospital; and
   (e) A person in charge of a laboratory, but only for use in that laboratory for scientific and medical research purposes.

(2) A pharmacist may sell or distribute a legend drug:
   (a) Pursuant to a prescription that conforms to the requirements of this chapter; or
   (b) To a person licensed to administer, dispense, distribute, or possess a legend drug.

(3) A practitioner may:
   (a) Administer, dispense, or prescribe a legend drug for a legitimate medical purpose and in the course of professional practice; or
   (b) Distribute a legend drug to a person licensed to administer, dispense, distribute, or possess a legend drug.

(4) Possession or control of legend drugs obtained as authorized by this section shall be lawful if it occurred in the regular course of business, occupation, profession, employment, or duty of the possessor.

(5) No person shall traffic in any legend drug except as authorized by this section.

(6) No person shall dispense, prescribe, distribute, or administer any legend drug except as authorized by this section.

(7) No person shall possess any legend drug except as authorized by this section.

(8) Unless another specific penalty is provided in KRS 217.005 to 217.215, any person who violates any provision of subsections (1) to (6) of this section shall be guilty of a Class A misdemeanor for the first offense and a Class D felony for subsequent offenses.
(9) Unless another specific penalty is provided in KRS 217.005 to 217.215, any person who violates the provision of subsection (7) of this section shall be guilty of a Class B misdemeanor.
(10) A person to whom or for whose use a legend drug has been prescribed or dispensed may lawfully possess it.

KRS 217.184 Enforcement of sections governing legend drugs

(1) All police officers and deputy sheriffs, directly employed full-time by state, county, city, or urban-county governments, the State Police, ... within their respective jurisdictions, **shall enforce** KRS 217.207, 217.208, 217.209, 217.181, and 217.182 relating to legend drugs and cooperate with all agencies charged with the enforcement of the laws of the United States, of this state, and of all other states relating to legend drugs.

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KRS 217.186 Provider prescribing or dispensing naloxone – Administration by third party – Use of naloxone by person or agency authorized to administer medication – Immunity from liability – Administrative regulations – Use of naloxone by schools

* * * * *

(3) A person or agency, including a peace officer, jailer, firefighter, paramedic, or emergency medical technician or a school employee authorized to administer medication under KRS 156.502, may:
(a) Receive a prescription for the drug naloxone;
(b) Possess naloxone pursuant to this subsection and any equipment needed for its administration; and
(c) Administer naloxone to an individual suffering from an apparent opiate-related overdose.

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KRS 217.207 Theft, criminal possession, trafficking, or unlawful possession of a prescription blank

(1) A person is guilty of theft of a prescription blank when he unlawfully takes or exercises control over a prescription blank belonging to another.
(2) A person is guilty of criminal possession of a prescription blank when, with knowledge that he has no lawful authority to possess a prescription blank, he possesses a prescription blank with the intent to make or utter a forged prescription or sell or transfer the prescription blank to another person for that purpose.
(3) A person is guilty of trafficking in prescription blanks when he knowingly and unlawfully traffics in a prescription blank or a forged prescription for a legend drug.
(4) The knowing, with intent to violate this chapter, possession of a prescription blank by a person other than a pharmacist, practitioner, or other person authorized by law to prescribe or dispense a legend drug, a manufacturer, wholesaler, or distributor, or by a person lawfully printing or reproducing prescription blanks, shall be prima facie evidence that the prescription blank was possessed for the purpose of making or uttering a forged prescription or for sale or transfer to another person for that purpose.
(5) Any person who violates any subsection of this section shall be guilty of a Class A misdemeanor for the first offense and a Class D felony for a second or subsequent offense.

KRS 217.208 Forgery of a prescription

(1) A person is guilty of forgery of a prescription when, with intent to defraud, deceive, or injure another, he falsely makes, completes, or alters a written instrument which is or purports to be or which is calculated to become or to represent a prescription for a legend drug when completed.
(2) Forgery of a prescription is:
(a) For a first offense, a Class D felony.
(b) For a second or subsequent offense, a Class C felony.

KRS 217.209 Criminal possession of a forged prescription

(1) A person is guilty of criminal possession of a forged prescription when, with knowledge that it is forged and with intent to defraud, deceive, or injure another, he possesses a forged prescription.
(2) Criminal possession of a forged prescription is:
  (a) For a first offense, a Class A misdemeanor.
  (b) For second or subsequent offense, a Class D felony.

KRS 217.214 Seizure of unlawful prescription

(1) A pharmacist, practitioner, or other person authorized by law to dispense legend drugs, or an employee of that person, may seize and retain any prescription which he has reasonable suspicion for believing is forged, altered, or possessed in violation of KRS 217.207, 217.208, or 217.209.
(2) Seizure and retention shall be for a reasonable period of time to make reasonable inquiry as to whether the prescription is forged, altered, or illegally possessed.
(3) If after reasonable inquiry the pharmacist, practitioner, or other person determines that the prescription is forged, altered, or stolen, he shall report the seizure to a law enforcement officer and shall surrender the prescription to the officer upon the request of the officer.

KRS 217.216 Prescription blanks to include prescribing practitioner's name, telephone number, and business address

Every prescription order written by a practitioner authorized by statute to prescribe under this chapter and KRS Chapter 218A shall bear upon the prescription blank the name, telephone number, and business address of the prescribing practitioner.

VOLATILE SUBSTANCES

KRS 217.900 Volatile substance defined – Inhalation unlawful

Penalty: KRS 217.993(2),(3) **Penalty:** KRS 217.993(8)

(1) As used in this section, "**volatile substance**" means any glue, cement, or paint or other substance containing a solvent or chemical having the property of releasing toxic vapors or fumes which when inhaled may cause a condition of intoxication, inebriation, stupefaction, dulling of the brain or nervous system, or distortion or disturbance of the auditory, visual, or mental processes.
(2) It shall be unlawful for any person to intentionally smell or inhale the fumes of any volatile substance, or to induce any other person to do so for the purpose of inducing a condition described in subsection (1) of this section.
(3) No person shall intentionally sell or offer for sale, deliver or give any volatile substance to any person for purposes of inhalation in violation of subsection (2) of this section.

KRS 217.902 Repackaging volatile substances

When any person removes any volatile substance from the container in which it is delivered to him and repackages it into containers not used in the ordinary course of business for the purpose of packaging such volatile substances and for the purpose of sale, a rebuttable presumption will be created that he intends to sell such substances for purposes prohibited by KRS 217.900.

PENALTIES

KRS 217.990 Penalties

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(11)Any person who violates any of the provisions of KRS 217.177 shall be fined not less than twenty-five dollars ($25) nor more than five hundred dollars ($500) or be imprisoned in the county jail for not less than five (5) nor more than thirty (30) days, or both.

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KRS 217.993 Penalties

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(2) Any person violating any provisions of KRS 217.900(2) shall upon conviction be guilty of a Class B misdemeanor.

(3) Any person found guilty of inhaling a volatile substance in violation of KRS 217.900(2) may be ordered to a facility designated by the secretary of the Cabinet for Health Services, where a program of education, treatment, and rehabilitation not to exceed ninety (90) days in duration shall be prescribed. The person ordered to the facility shall present himself for registration and initiation of a treatment program within five (5) days of the date of sentencing. If, without good cause, the person fails to appear at the designated facility within the specified time, or if, any time during the program of treatment prescribed, the authorized clinical director of the facility finds that the person is unwilling to participate in his treatment and rehabilitation, the director shall notify the sentencing court. Upon receipt of notification, the court shall cause the person to be brought before it and may continue the order of treatment or may order the person subject to the fine or imprisonment, or both, for a Class B misdemeanor. Upon discharge of the person from the facility by the clinical director or his designee prior to the expiration of the ninety (90) day period or upon satisfactory completion of ninety (90) days of treatment, the person shall be deemed finally discharged from sentence. The clinical director or his designee shall notify the sentencing court of the date of such discharge from the facility.

(4) The secretary of the Cabinet for Health Services or his designee shall inform each court of the identity and location of the facility to which a person may be ordered under this section.

(5) The sentencing court shall immediately notify the designated facility of the sentence and its effective date.

(6) Responsibility for payment for treatment services rendered to persons pursuant to this section shall be as under the statutes pertaining to payment by patients and others for services rendered by the Cabinet for Health Services unless the facility shall arrange otherwise.

(7) None of the provisions of this section shall be deemed to preclude the court from exercising its usual discretion with regard to ordering probation or conditional discharge.

(8) Any person violating any provision of KRS 217.900(3) shall upon conviction be guilty of a Class D felony.

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KRS CHAPTER 218A
CONTROLLED SUBSTANCES
(Selected Sections)

KRS 218A.010 Definitions for chapter

As used in this chapter, unless the context otherwise requires:

(1) **"Administer"** means the direct application of a controlled substance, whether by injection, inhalation, ingestion, or any other means, to the body of a patient or research subject by:
   (a) A practitioner or by his or her authorized agent under his or her immediate supervision and pursuant to his or her order; or
   (b) The patient or research subject at the direction and in the presence of the practitioner.

(2) **"Anabolic steroid"** means any drug or hormonal substance chemically and pharmacologically related to testosterone that promotes muscle growth and includes those substances classified as Schedule III controlled substances pursuant to KRS 218A.020 but does not include estrogens, progestins, and anticosteroids**.**

(3) **"Cabinet"** means the Cabinet for Health Services.

(4) **"Carfentanil"** means any substance containing any quantity of carfentanil, or any of its salts, isomers, or salts of isomers.

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(6) **"Child"** means any person under the age of majority as specified in KRS 2.015.

(7) **"Cocaine"** means a substance containing any quantity of cocaine, its salts, optical and geometric isomers, and salts of isomers;

(8) **"Controlled substance"** means methamphetamine, or a drug, substance, or immediate precursor in Schedules I through V and includes a controlled substance analogue.

(9) (a) **"Controlled substance analogue",** except as provided in paragraph (b), means a substance:
   1. The chemical structure of which is substantially similar to the structure of a controlled substance in Schedule I or II; and
   2. Which has a stimulant, depressant, or hallucinogenic effect on the central nervous system that is substantially similar to or greater than the stimulant, depressant, or hallucinogenic effect on the central nervous system of a controlled substance in Schedule I or II; or
   3. With respect to a particular person, which such person represents or intends to have a stimulant, depressant, or hallucinogenic effect on the central nervous system that is substantially similar to or greater than the stimulant, depressant, or hallucinogenic effect on the central nervous system of a controlled substance in Schedule I or II.

   (b) Such term does not include:
   1. Any substance for which there is an approved new drug application;
   2. With respect to a particular person, any substance if an exemption is in effect for investigational use for that person pursuant to federal law to the extent conduct with respect to such substance is pursuant to such exemption; or
   3. Any substance to the extent not intended for human consumption before the exemption described in subparagraph 2. of this paragraph takes effect with respect to that substance;

(10) **"Counterfeit substance"** means a controlled substance which, or the container or labeling of which, without authorization, bears the trademark, trade name, or other identifying mark, imprint, number, or device, or any likeness thereof, of a manufacturer, distributor, or dispenser other than the person who in fact manufactured, distributed, or dispensed the substance.

(11) **"Dispense"** means to deliver a controlled substance to an ultimate user or research subject by or pursuant to the lawful order of a practitioner, including the packaging, labeling, or compounding necessary to prepare the substance for that delivery.

(12) **"Dispenser"** means a person who lawfully dispenses a Schedule II, III, IV, or V controlled substance to or for the use of an ultimate user.

(13) **"Distribute"** means to deliver other than by administering or dispensing a controlled substance.

(14)**"Dosage unit"** means a single pill, capsule, ampule, liquid, or other form of administration available as a single unit;

(15)**"Drug"** means:

(a) Substances recognized as drugs in the official United States Pharmacopoeia, official Homeopathic Pharmacopoeia of the United States, or official National Formulary, or any supplement to any of them;

(b) Substances intended for use in the diagnosis, care, mitigation, treatment, or prevention of disease in man or animals;

(c) Substances (other than food) intended to affect the structure or any function of the body of man or animals; and

(d) Substances intended for use as a component of any article specified in this subsection. It does not include devices or their components, parts, or accessories.

(16) **"Fentanyl"** means a substance containing any quantity of fentanyl, or any of its salts, isomers, or salts of isomers;

(17) **"Fentanyl derivative"** means a substance containing any quantity of any chemical compound, except compounds specifically scheduled as controlled substances by statute or by administrative regulation pursuant to this chapter, which is structurally derived from 1-ethyl-4-(N-phenylamido) piperidine:

(a) By substitution:

1. At the 2-position of the 1-ethyl group with a phenyl, furan, thiophene, or ethyloxotetrazole ring system; and

2. Of the terminal amido hydrogen atom with an alkyl, alkoxy, cycloalkyl, or furanyl group; and

(b) Which may be further modified in one (1) or more of the following ways:

1. By substitution on the N-phenyl ring to any extent with alkyl, alkoxy, haloalkyl, hydroxyl, or halide substituents;

2. By substitution on the piperadine ring to any extent with alkyl, allyl, alkoxy, hydroxy, or halide substituents at the 2-, 3-, 5-, and/or 6- positions;

3. By substitution on the piperadine ring to any extent with a phenyl, alkoxy, or carboxylate ester substituent at the 4- position; or

4. By substitution on the 1-ethyl group to any extent with alkyl, alkoxy, or hydroxy substituents;

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(19)**"Hazardous chemical substance"** includes any chemical substance used or intended for use in the illegal manufacture of a controlled substance as defined in this section or the illegal manufacture of methamphetamine as defined in KRS 218A.1431, which:

(a) Poses an explosion hazard;

(b) Poses a fire hazard; or

(c) Is poisonous or injurious, if handled, swallowed, or inhaled;

(20)**"Heroin"** means a substance containing any quantity of heroin, or any of its salts, isomers, or salts of isomers;

(21)**"Hydrocodone combination product"** means a drug with:

(a) Not more than three hundred (300) milligrams of dihydrocodeinone, or any of its salts, per one hundred (100) milliliters or not more than fifteen (15) milligrams per dosage unit, with a fourfold or greater quantity of an isoquinoline alkaloid of opium; or

(b) Not more than three hundred (300) milligrams of dihydrocodeinone, or any of its salts, per one hundred (100) milliliters or not more than fifteen (15) milligrams per dosage unit, with one (1) or more active, nonnarcotic ingredients in recognized therapeutic amounts;

(22)**"Immediate precursor"** means a substance which is the principal compound commonly used or produced primarily for use, and which is an immediate chemical intermediary used or likely to be used in the manufacture of a controlled substance or methamphetamine, the control of which is necessary to prevent, curtail, or limit manufacture.

(23)**"Industrial hemp"** has the same meaning as in KRS 260.850;

(24)**"Industrial hemp products"** has the same meaning as in KRS 260.850;

(25)**"Intent to manufacture"** means any evidence which demonstrates a person's conscious objective to manufacture a controlled substance or methamphetamine. Such evidence includes,

but is not limited to statements, a chemical substance's usage, quantity, manner of storage, or proximity to other chemical substances or equipment used to manufacture a controlled substance or methamphetamine.

(26)**"Isomer"** means the optical isomer, except the Cabinet for Health and Family Services may include the optical, positional, or geometric isomer to classify any substance pursuant to KRS 218A.020.

(27)**"Manufacture",** except as provided in KRS 218A.1431, means the production, preparation, propagation, compounding, conversion, or processing of a controlled substance, either directly or indirectly by extraction from substances of natural origin or independently by means of chemical synthesis, or by a combination of extraction and chemical synthesis, and includes any packaging or repackaging of the substance or labeling or relabeling of its container except that this term does not include activities:

(a) By a practitioner as an incident to his or her administering or dispensing of a controlled substance in the course of his or her professional practice; or

(b) Industrial hemp products that do not include any living plants, viable seeds, leaf materials, or floral materials;

(c) By a practitioner, or by his or her authorized agent under his supervision, for the purpose of, or as an incident to, research, teaching, or chemical analysis and not for sale;

(d) By a pharmacist as an incident to his or her dispensing of a controlled substance in the course of his or her professional practice;

(e) A cannabidiol product derived from industrial hemp, as defined in KRS 260.850; or

(f) A cannabidiol product approved as a prescription medication by the United States Food and Drug Administration;

(28)**"Marijuana"** means all parts of the plant Cannabis sp., whether growing or not; the seeds thereof; the resin extracted from any part of the plant; and every compound, manufacture, salt, derivative, mixture, or preparation of the plant, its seeds or resin or any compound, mixture, or preparation which contains any quantity of these substances. The term “marijuana” does not include;

(a) Industrial hemp that is in the possession, custody, or control of a person who holds a license issued by the Department of Agriculture permitting that person to cultivate, handle, or process industrial hemp;

(b) The substance cannabidiol, when transferred, dispensed, or administered pursuant to the written order of a physician practicing at a hospital or associated clinic affiliated with a Kentucky public university having a college or school of medicine; or

(c) For persons participating in a clinical trial or in an expanded access program, a drug or substance approved for the use of those participants by the United States Food and Drug Administration;

(d) For persons participating in a clinical trial or in an expanded access program, a drug or substance approved for the use of those participants by the United States Food and Drug Administration;

(e) A cannabidiol product derived from industrial hemp, as defined in KRS 260.850;

(f) For the purpose of conducting scientific research, a cannabinoid product derived from industrial hemp, as defined in KRS 260.850; or

(g) A cannabinoid product approved as a prescription medication by the United States Food and Drug Administration; or

(h) Medical cannabis as defined in KRS 218B.010;

* * * * *

(32)**"Methamphetamine"** means any substance that contains any quantity of methamphetamine, or any of its salts, isomers, or salts of isomers.

(33)**"Narcotic drug"** means any of the following, whether produced directly or indirectly by extraction from substances of vegetable origin, or independently by means of chemical synthesis, or by a combination of extraction and chemical synthesis:

(a) Opium and opiate, and any salt, compound, derivative, or preparation of opium or opiate;

(b) Any salt, compound, isomer, derivative, or preparation thereof which is chemically equivalent or identical with any of the substances referred to in paragraph (a) of this subsection, but not including the isoquinoline alkaloids of opium;

(c) Opium poppy and poppy straw;
(d) Coca leaves, except coca leaves and extracts of coca leaves from which cocaine, ecgonine, and derivatives of ecgonine or their salts have been removed;
(e) Cocaine, its salts, optical and geometric isomers, and salts of isomers;
(f) Ecgonine, its derivatives, their salts, isomers, and salts of isomers; and
(g) Any compound, mixture, or preparation which contains any quantity of any of the substances referred to in paragraphs (a) to (f) of this subsection.

(34)**"Opiate"** means any substance having an addiction-forming or addiction-sustaining liability similar to morphine or being capable of conversion into a drug having addiction-forming or addiction-sustaining liability. It does not include, unless specifically designated as controlled under KRS 218A.020, the dextrorotatory isomer of 3-methoxy-n-methylmorphinan and its salts (dextromethorphan). It does include its racemic and levorotatory forms.

(35)**"Opium poppy"** means the plant of the species papaver somniferum L., except its seeds.

(36)**"Person"** means individual, corporation, government or governmental subdivision or agency, business trust, estate, trust, partnership or association, or any other legal entity.

(37)**"Physical injury"** has the same meaning it has in KRS 500.080.

(37)**"Poppy straw"** means all parts, except the seeds, of the opium poppy, after mowing.

(39)**"Pharmacist"** means a natural person licensed by this state to engage in the practice of the profession of pharmacy.

(40)**"Practitioner"** means a physician, dentist, podiatrist, veterinarian, scientific investigator, optometrist as authorized in KRS 320.240, advanced practice registered nurse as authorized under KRS 314.011, or other person licensed, registered, or otherwise permitted by state or federal law to acquire, distribute, dispense, conduct research with respect to, or to administer a controlled substance in the course of professional practice or research in this state. "Practitioner" also includes a physician, dentist, podiatrist, or veterinarian who is a resident of and actively practicing in a state other than Kentucky and who is licensed and has prescriptive authority for controlled substances under the professional licensing laws of another state, unless the person's Kentucky license has been revoked, suspended, restricted, or probated, in which case the terms of the Kentucky license shall prevail;

* * * * *

(42)**"Prescription"** means a written, electronic, or oral order for a drug or medicine, or combination or mixture of drugs or medicines, or proprietary preparation, signed or given or authorized by a medical, dental, chiropody, veterinarian, or optometric practitioner, and intended for use in the diagnosis, cure, mitigation, treatment, or prevention of disease in man or other animals.

(43)**"Prescription blank,"** with reference to a controlled substance, means a document that meets the requirements of KRS 218A.204 and 217.216.

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(45)**"Production"** includes the manufacture, planting, cultivation, growing, or harvesting of a controlled substance.

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(47)**"Salvia"** means Salvia divinorum or Salvinorin A and includes all parts of the plant presently classified botanically as Salvia divinorum, whether growing or not, the seeds thereof, any extract from any part of that plant, and every compound, manufacture, derivative, mixture, or preparation of that plant, its seeds, or its extracts, including salts, isomers, and salts of isomers whenever the existence of such salts, isomers, and salts of isomers is possible within the specific chemical designation of that plant, its seeds, or extracts. The term shall not include any other species in the genus salvia;

(48)**"Second or subsequent offense"** means that for the purposes of this chapter an offense is considered as a second or subsequent offense, if, prior to his conviction of the offense, the offender has at any time been convicted under this chapter, or under any statute of the United States, or of any state relating to substances classified as controlled substances or counterfeit substances, except that a prior conviction for a nontrafficking offense shall be treated as a prior offense only when the subsequent offense is a nontrafficking offense. For the purposes of this section, a conviction voided under KRS 218A.275 or 218A.276 shall not constitute a conviction under this chapter.

(49)**"Sell"** means to dispose of a controlled substance to another person for consideration or in

furtherance of commercial distribution.

(50)**"Serious physical injury"** has the same meaning it has in KRS 500.080.

(51)**"Synthetic cannabinoids or piperazines"** means any chemical compound which is not approved by the United States Food and Drug Administration or, if approved, which is not dispensed or possessed in accordance with state and federal law, that contains Benzylpiperazine (BZP); Trifluoromethylphenylpiperazine (TFMPP*)*; 1,1-Dimethylheptyl-11-hydroxytetrahydrocannabinol (HU-210); 1-Butyl-3-(1-naphthoyl)indole; 1-Pentyl-3-(1-naphthoyl)indole; dexanabinol (HU-211); or any compound in the following structural classes:

(a) Naphthoylindoles: Any compound containing a 3-(1-naphthoyl)indole structure with substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, 1-(N-methyl-2-piperidinyl)methyl, or 2-(4-morpholinyl)ethyl group, whether or not further substituted in the indole ring to any extent and whether or not substituted in the naphthyl ring to any extent. Examples of this structural class include but are not limited to JWH-015, JWH-018, JWH-019, JWH-073, JWH-081, JWH-122, JWH-200, and AM-2201;

(b) Phenylacetylindoles: Any compound containing a 3-phenylacetylindole structure with substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, 1-(N-methyl-2-piperidinyl)methyl, or 2-(4-morpholinyl)ethyl group whether or not further substituted in the indole ring to any extent and whether or not substituted in the phenyl ring to any extent. Examples of this structural class include but are not limited to JWH-167, JWH-250, JWH-251, and RCS-8;

(c) Benzoylindoles: Any compound containing a 3-(benzoyl)indole structure with substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, 1-(N-methyl-2- piperidinyl)methyl, or 2-(4-morpholinyl)ethyl group whether or not further substituted in the indole ring to any extent and whether or not substituted in the phenyl ring to any extent. Examples of this structural class include but are not limited to AM630, AM-2233, AM-694, Pravadoline (WIN 48,098), and RCS-4;

(d) Cyclohexylphenols: Any compound containing a 2-(3-hydroxycyclohexyl)phenol structure with substitution at the 5-position of the phenolic ring by an alkyl, haloalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, 1-(N-methyl-2-piperidinyl)methyl, or 2-(4-morpholinyl)ethyl group whether or not substituted in the cyclohexyl ring to any extent. Examples of this structural class include but are not limited to CP 47,497 and its C8 homologue (cannabicyclohexanol);

(e) Naphthylmethylindoles: Any compound containing a 1H-indol-3-yl-(1-naphthyl)methane structure with substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, 1-(N-methyl-2-piperidinyl)methyl, or 2-(4-morpholinyl)ethyl group whether or not further substituted in the indole ring to any extent and whether or not substituted in the naphthyl ring to any extent. Examples of this structural class include but are not limited to JWH-175, JWH-184, and JWH-185;

(f) Naphthoylpyrroles: Any compound containing a 3-(1-naphthoyl)pyrrole structure with substitution at the nitrogen atom of the pyrrole ring by an alkyl, haloalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, 1-(N-methyl-2-piperidinyl)methyl, or 2-(4-morpholinyl)ethyl group whether or not further substituted in the pyrrole ring to any extent and whether or not substituted in the naphthyl ring to any extent. Examples of this structural class include but are not limited to JWH-030, JWH-145, JWH-146, JWH-307, and JWH 368;

(g) Naphthylmethylindenes: Any compound containing a 1-(1-naphthylmethyl)indene structure with substitution at the 3-position of the indene ring by an alkyl, haloalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, 1-(N-methyl-2-piperidinyl)methyl, or 2-(4-morpholinyl)ethyl group whether or not further substituted in the indene ring to any extent and whether or not substituted in the naphthyl ring to any extent. Examples of this structural class include but are not limited to JWH-176;

(h) Tetramethylcyclopropanoylindoles: Any compound containing a 3-(1-tetramethylcyclopropoyl)indole structure with substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, cycloalkylmethyl, cycloalkylethyl, 1-(N-methyl-2-piperidinyl)methyl, or 2-(4-morpholinyl)ethyl group, whether or not further substituted in the indole ring to any extent and whether or not further substituted in the tetramethylcyclopropyl ring to any extent. Examples of this structural class include but are not limited to UR-144 and XLR-11;

(i) Adamantoylindoles: Any compound containing a 3-(1-adamantoyl)indole structure with substitution at the nitrogen atom of the indole ring by an alkyl, haloalkyl, alkenyl, cycloalkylmethyl, cycloalkylethyl, 1-(N-methyl-2-piperidinyl)methyl, or 2-(4-morpholinyl)ethyl group, whether or not further substituted in the indole ring to any extent and whether or not substituted in the adamantyl ring system to any extent. Examples of this structural class include but are not limited to AB-001 and AM-1248; or

(j) Any other synthetic cannabinoid or piperazine which is not approved by the United States Food and Drug Administration, or if approved, which is not dispensed or possessed in accordance with state and federal law;

(52) **"Synthetic cathinones"** means any chemical compound which is not approved by the United States Food and Drug Administration, or if approved, which is not dispensed or possessed in accordance with state and federal law (not including bupropion or compounds listed under a different schedule) structurally derived from 2-aminopropan-1-one by substitution at the 1-position with either phenyl, naphthyl, or thiophene ring systems, whether or not the compound is further modified in one (1) or more of the following ways:

(a) By substitution in the ring system to any extent with alkyl, alkylenedioxy, alkoxy, haloalkyl, hydroxyl, or halide substituents, whether or not further substituted in the ring system by one (1) or more other univalent substituents. Examples of this class include but are not limited to 3,4-Methylenedioxycathinone (bk-MDA);

(b) By substitution at the 3-position with an acyclic alkyl substituent. Examples of this class include but are not limited to 2-methylamino-1-phenylbutan-1-one (buphedrone);

(c) By substitution at the 2-amino nitrogen atom with alkyl, dialkyl, benzyl, or methoxybenzyl groups, or by inclusion of the 2-amino nitrogen atom in a cyclic structure. Examples of this class include but are not limited to Dimethylcathinone, Ethcathinone, and α-Pyrrolidinopropiophenone (α-PPP); or

(d) Any other synthetic cathinone which is not approved by the United States Food and Drug Administration, or if approved, is not dispensed or possessed in accordance with state or federal law;

(53) **"Synthetic drugs"** means any synthetic cannabinoids or piperazines or any synthetic cathinones.

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(55)**"Tetrahydrocannabinols"** means synthetic equivalents of the substances contained in the plant, or in the resinous extractives of the plant Cannabis, sp. or synthetic substances, derivatives, and their isomers with similar chemical structure and pharmacological activity such as the following:

1. Delta 1 cis or trans tetrahydrocannabinol, and their optical isomers;
2. Delta 6 cis or trans tetrahydrocannabinol, and their optical isomers;
3. Delta 3, 4 cis or trans tetrahydrocannabinol, and its optical isomers.

(56)**"Traffic,"** except as provided in KRS 218A.1431, means to manufacture, distribute, dispense, sell, transfer, or possess with intent to manufacture, distribute, dispense, or sell a controlled substance.

(57)**"Transfer"** means to dispose of a controlled substance to another person without consideration and not in furtherance of commercial distribution; and

(58)"**Ultimate user**" means a person who lawfully possesses a controlled substance for his or her own use or for the use of a member of his or her household or for administering to an animal owned by him or her or by a member of his household.

KRS 218A.015 Definitions of mental states

When used in this chapter, the terms "**intentionally**," "**knowingly**," "**wantonly**," and "**recklessly**," including but not limited to equivalent terms such as "with intent" shall have the same definition and the same principles shall apply to their use as those terms are defined and used in KRS Chapter 501.

KRS 218A.133 Exemption from prosecution for possession of controlled substance or drug paraphernalia if seeking assistance with drug overdose

(1) As used in this section:

(a) "Drug overdose" means an acute condition of physical illness, coma, mania, hysteria, seizure, cardiac arrest, cessation of breathing, or death which reasonably appears to be the result of consumption or use of a controlled substance, or another substance with which a controlled substance was combined, and that a layperson would reasonably believe requires medical assistance; and
(b) "Good faith: does not include seeking medical assistance during the course of the execution of an arrest warrant, or search warrant, or a lawful search.

(2) A person shall not be charged with or prosecuted for a criminal offense prohibiting the possession of a controlled substance or the possession of drug paraphernalia, for a violation of subsection (1)(d) of KRS 507.030 or subsection (1)(d) of KRS 507.040, or for an offense punishable under subsection (3)(c) of 218A.1412 if:
(a) In good faith, medical assistance with a drug overdose is sought from a public safety answering point, emergency medical services, a law enforcement officer, or a health practitioner because the person:
1. Requests emergency medical assistance for himself or herself or another person; or
2. Acts in concert with another person who requests emergency medical assistance; or
3. Appears to be in need of emergency medical assistance and is the individual for whom the request was made;
(b) The person remains with, or is, the individual who appears to be experiencing a drug overdose until the requested assistance is provided; and
(c) The evidence for the charge or prosecution is obtained as a result of the drug overdose and the need for medical assistance.

(3) The provisions of subsection (2) of this section shall not extend to the investigation and prosecution of any other crimes committed by a person who otherwise qualifies under this section.

(4) When contact information is available for the person who requested emergency medical assistance, it shall be reported to the local health department. Health department personnel shall make contact with the person who requested emergency medical assistance in order to offer referrals regarding substance abuse treatment, if appropriate.

(5) A law enforcement officer who makes an arrest in contravention of this section shall not be criminally or civilly liable for false arrest or false imprisonment if the arrest was based on probable cause.

TRAFFICKING AND POSSESSION OFFENSES

KRS 218A.140 Prohibited acts relating to controlled substances – Penalties

(1) (a) No person shall obtain or attempt to obtain a prescription for a controlled substance by knowingly misrepresenting to, or knowingly withholding information from, a practitioner.
(b) No person shall procure or attempt to procure the administration of a controlled substance by knowingly misrepresenting to, or withholding information from, a practitioner.
(c) No person shall obtain or attempt to obtain a controlled substance or procure or attempt to procure the administration of a controlled substance by the use of a false name or the giving of a false address.
(d) No person shall knowingly make a false statement regarding any prescription, order, report, or record required by this chapter.
(e) No person shall, for the purpose of obtaining a controlled substance, falsely assume the title of or represent himself or herself to be a manufacturer, wholesaler, distributor, repacker, pharmacist, practitioner, or other authorized person.
(f) In order to obtain a controlled substance, no person shall present a prescription for a controlled substance that was obtained in violation of this chapter.
(g) No person shall affix any false or forged label to a package or receptacle containing any controlled substance.

(2) No person shall possess, manufacture, sell, dispense, prescribe, distribute, or administer any counterfeit substance.

(3) No person shall knowingly obtain or attempt to obtain a prescription for a controlled substance without having formed a valid practitioner-patient relationship with the practitioner or his or her

designee from whom the person seeks to obtain the prescription.
(4) No person shall knowingly assist a person in obtaining or attempting to obtain a prescription in violation of this chapter.
(5) Any person who violates any subsection of this section shall be guilty of a Class D felony.

KRS 218A.1401 Selling controlled substances other than salvia to minor – Penalties

(1) A person is guilty of selling controlled substances to a minor when he or she, being eighteen (18) years of age or older, knowingly and unlawfully sells or transfers any quantity of a controlled substance other than salvia to any person under eighteen (18) years of age.
(2) Selling controlled substances to a minor is a Class C felony for a first offense, and a Class B felony for each subsequent offense, unless a more severe penalty for trafficking in controlled substances is applicable, in which case the higher penalty shall apply.

KRS 218A.1402 Criminal conspiracy to commit offense in KRS Chapter 218A -- Penalties

Except as provided in subsection (3) of 506.040 any person who commits a criminal conspiracy as defined in KRS 506.040 to commit any offense in this chapter shall be subject to the same penalties as provided for the underlying offense as specified in this chapter.

KRS 218A.1403 Advertising controlled substance – Penalties

(1) No person shall advertise through any media other than a professional or trade publication any controlled substance by either its "trade name" or by its generic or formulary name.
(2) Any person who violates subsection (1) of this section shall be guilty of a Class B misdemeanor for the first offense and a Class A misdemeanor for each subsequent offense.

KRS 218A.1404 Prohibited activities relating to controlled substances – Penalties

(1) No person shall traffic in any controlled substance except as authorized by law.
(2) No person shall possess any controlled substance except as authorized by law.
(3) No person shall dispense, prescribe, distribute, or administer any controlled substance except as authorized by law.
(4) Unless another specific penalty is provided in this chapter, any person who violates the provisions of subsection (1) or (3) of this section shall be guilty of a Class D felony for the first offense and a Class C felony for subsequent offenses and any person who violates the provisions of subsection (2) of this section shall be guilty of a Class A misdemeanor.

KRS 218A.1405 Use and investment of drug-related income – Penalties

(1) It shall be unlawful for any person who has knowingly received any income derived directly or indirectly from trafficking in a controlled substance to use or invest any part of that income, or any proceeds thereof, to acquire any property, or to establish or operate any commercial enterprise.
   (a) As used in this section, "**property**" includes real and personal property, whether tangible or intangible.
   (b) As used in this section, "**commercial enterprise**" means any proprietorship, partnership, corporation, association or other legal entity, including any individual or group not a legal entity, which is engaged in any business or commercial activity or whose activities affect business or commerce.
(2) Any person who violates this section shall be guilty of a Class D felony and, in addition to other penalties prescribed by law, shall forfeit any property constituting or derived from any income received directly or indirectly from trafficking in a controlled substance.

KRS 218A.141 Additional penalties for trafficking in controlled substance other than salvia or marijuana

Any person convicted of, pleading guilty to, or entering an Alford plea to any offense involving trafficking in a controlled substance, other than trafficking in salvia or marijuana shall, in addition to any other penalty authorized by law, be sentenced to:
(1) Pay the costs of disposal of the controlled substances;

(2) Pay the costs of disposal of all equipment, chemicals, materials, or other items used in or in furtherance of the trafficking offense;
(3) Pay the costs involved with environmental clean-up and remediation required for the real property and personal property used for or in furtherance of the trafficking offenses; and
(4) Pay the costs of protecting the public from dangers from chemicals, materials, and other items used for or in furtherance of the trafficking offense from the time of the arrest until the time that the clean-up or remediation of the real and personal property is concluded. The Commonwealth shall have a lien on all of the assets of the defendant until the amount specified by the court under this subsection is paid in full. The Commonwealth's attorney shall file the lien.

KRS 218A.1410 Importing heroin, carfentanil, fentanyl, or fentanyl derivatives

(1) A person is guilty of importing heroin, carfentanil, fentanyl, or fentanyl derivatives when he or she knowingly and unlawfully transports any quantity of heroin, carfentanil, fentanyl, or fentanyl derivatives into the Commonwealth by any means with the intent to sell or distribute the heroin, carfentanil, fentanyl, or fentanyl derivatives.
(2) The provisions of this section are intended to be a separate offense from others in this chapter, and shall be punished in addition to violations of this chapter occurring during the same course of conduct.
(3) (a) Importing heroin is a Class C felony, and the defendant shall not be released on probation, shock probation, conditional discharge, or parole until he or she has served at least fifty percent (50%) of the sentence imposed.
(b) Importing carfentanil, fentanyl, or fentanyl derivatives is a Class C felony, and the defendant:
1. Shall not be eligible for pretrial diversion; and
2. Shall not be released on probation, shock probation, conditional discharge, or parole until he or she has served at least eighty-five percent (85%) of the sentence imposed.

KRS 218A.1411 Trafficking in controlled substance in or near school – Exception for misdemeanor salvia offenses - Penalty

(1) Any person who unlawfully traffics in a controlled substance classified in Schedules I, II, III, IV or V, or a controlled substance analogue in any building used primarily for classroom instruction in a school or on any premises located within one thousand (1,000) feet of any school building used primarily for classroom instruction shall be guilty of a Class D felony, unless a more severe penalty is set forth in this chapter, in which case the higher penalty shall apply. The measurement shall be taken in a straight line from the nearest wall of the school to the place of violation.
(2) The provisions of subsection (1) of this section shall not apply to any misdemeanor offense relating to salvia.

KRS 218A.1412 Trafficking in controlled substance in first degree – Penalties

(1) A person is guilty of trafficking in a controlled substance in the first degree when he or she knowingly and unlawfully traffics in:
(a) Four (4) grams or more of cocaine;
(b) Two (2) grams or more of methamphetamine;
(c) Ten (10) or more dosage units of a controlled substance that is classified in Schedules I or II and is a narcotic drug or a controlled substance analogue;
(d) Any quantity of heroin, fentanyl, carfentanil, or fentanyl derivatives; lysergic acid diethylamide; phencyclidine; gamma hydroxybutyric acid (GHB), including its salts, isomers, salts of isomers and analogues; or flunitrazepam, including its salts, isomers, and salts of isomers; or
(e) Any quantity of a controlled substance specified in paragraph (a), (b), or (c) of this subsection in an amount less than the amounts specified in those paragraphs.
(2) The amounts specified in subsection (1) of this section may occur in a single transaction or may occur in a series of transactions over a period of time not to exceed ninety (90) days that cumulatively result in the quantities specified in this section.

(3) (a) Any person who violates the provisions of subsection (1)(a), (b), (c), or (d) of this section shall be guilty of a Class C felony for the first offense and a Class B felony for a second or subsequent offense.
(b) Any person who violates the provisions of subsection (1)(e) of this section shall be guilty of a Class D felony for the first offense and a Class C felony for a second or subsequent offense.
(c) If the substance is fentanyl or a fentanyl derivative, and the injection, ingestion, inhalation, or other introduction of the fentanyl or fentanyl derivative causes the death of a person, the penalty for the offense shall be one (1) level higher than the level otherwise specified in this section.
(d) Any person convicted of a Class C felony offense or higher under this section shall not be released on probation, shock probation, parole, conditional discharge, or other form of early release until he or she has served at least fifty percent (50%) of the sentence imposed in cases where the trafficked substance was heroin, carfentanil, fentanyl, or fentanyl derivatives.

KRS 218A.1413 Trafficking in controlled substance in second degree – Penalties

(1) A person is guilty of trafficking in a controlled substance in the second degree when:
(a) He or she knowingly and unlawfully traffics in:
1. Ten (10) or more dosage units of a controlled substance classified in Schedules I and II that is not a narcotic drug; or specified in KRS 218A.1412, and which is not a synthetic drug, salvia, or marijuana; or
2. Twenty (20) or more dosage units of a controlled substance classified in Schedule III;
(b) He or she knowingly and unlawfully prescribes, distributes, supplies, or sells an anabolic steroid for:
1. Enhancing human performance in an exercise, sport, or game; or
2. Hormonal manipulation intended to increase muscle mass, strength, or weight in the human species without a medical necessity; or
(c) He or she knowingly and unlawfully traffics in any quantity of a controlled substance specified in paragraph (a) of this subsection in an amount less than the amounts specified in that paragraph.
(2) (a) Except as provided in paragraph (b) of this subsection, any person who violates the provisions of subsection (1) of this section shall be guilty of a Class D felony for the first offense and a Class C felony for a second or subsequent offense.
(b) Any person who violates the provisions of subsection (1)(c) of this section shall be guilty of:
1. A Class D felony for the first offense, except that KRS Chapter 532 to the contrary notwithstanding, the maximum sentence to be imposed shall be no greater than three (3) years; and
2. A Class D felony for a second offense or subsequent offense.

KRS 218A.1414 Trafficking in controlled substance in third degree – Penalties

(1) A person is guilty of trafficking in a controlled substance in the third degree when he or she knowingly and unlawfully traffics in:
(a) Twenty (20) or more dosage units of a controlled substance classified in Schedules IV or V; or
(b) Any quantity of a controlled substance specified in paragraph (a) of this subsection in an amount less than the amount specified in that paragraph.
(2) (a) Any person who violates the provisions of subsection (1)(a) of this section shall be guilty of:
1. A Class A misdemeanor for a first offense involving one hundred twenty (120) or fewer dosage units;
2. A Class D felony for a first offense involving more than one hundred twenty (120) dosage units; and
3. A Class D felony for a second or subsequent offense.
(b) Any person who violates the provisions of subsection (1)(b) of this section shall be guilty of:
1. A Class A misdemeanor for the first offense, subject to the imposition of presumptive probation; and

2. A Class D felony for a second or subsequent offense, except that KRS Chapter 532 to the contrary notwithstanding, the maximum sentence to be imposed shall be no greater than three (3) years.

KRS 218A.14141 Trafficking in a misrepresented controlled substance

(1) A person is guilty of trafficking in a misrepresented controlled substance when he or she knowingly and unlawfully sells or distributes any Schedule I controlled substance, carfentanil, or fentanyl while misrepresenting the identity of the Schedule I controlled substance, carfentanil, or fentanyl being sold or distributed as a legitimate pharmaceutical product.
(2) The provisions of this section are intended to be a separate offense from others in this chapter, and shall be punished in addition to violations of this chapter occurring during the same course of conduct.
(3) Trafficking in a misrepresented controlled substance is a Class D felony.

KRS 218A.1415 Possession of controlled substance in first degree – Penalties

(1) A person is guilty of possession of a controlled substance in the first degree when he or she knowingly and unlawfully possesses:
   (a) A controlled substance that is classified in Schedules I or II and is a narcotic drug;
   (b) A controlled substance analogue;
   (c) Methamphetamine;
   (d) Lysergic acid diethylamide;
   (e) phencyclidine;
   (f) Gamma hydroxybutyric acid (GHB), including its salts, isomers, salts of isomers and analogues; or
   (g) Flunitrazepam, including its salts, isomers, and salts of isomers.
(2) Possession of a controlled substance in the first degree is a Class D felony subject to the following provisions:
   (a) The maximum term of incarceration shall be no greater than three (3) years, notwithstanding KRS Chapter 532;
   (b) For a person's first or second offense under this section, he or she may be subject to a period of:
      1. Deferred prosecution pursuant to KRS 218A.14151; or
      2. Presumptive probation;
   (c) Deferred prosecution under paragraph (b) of this subsection shall be the preferred alternative for a first offense; and
   (d) If a person does not enter a deferred prosecution program for his or her first or second offense, he or she shall be subject to a period of presumptive probation, unless a court determines the defendant is not eligible for presumptive probation as defined in KRS 218A.010.

KRS 218A.1416 Possession of controlled substance in second degree – Penalties

(1) A person is guilty of possession of a controlled substance in the second degree when he or she knowingly and unlawfully possesses: a controlled substance classified in Schedules I or II which is not a narcotic drug; or specified in KRS 218A.1415; or, a controlled substance classified in Schedule III; but not synthetic drugs, salvia, or marijuana.
(2) Possession of a controlled substance in the second degree is a Class A misdemeanor.

KRS 218A.1417 Possession of controlled substance in third degree – Penalties

(1) A person is guilty of possession of a controlled substance in the third degree when he or she knowingly and unlawfully possesses a controlled substance classified in Schedules IV or V.
(2) Possession of a controlled substance in the third degree is a Class A misdemeanor.

KRS 218A.142 Aggravated trafficking in controlled substance in first degree

(1) A person is guilty of aggravated trafficking in a controlled substance in the first degree when he or she knowingly and unlawfully traffics in:
  (a) One hundred (100) grams or more of heroin;
  (b) Twenty-eight (28) grams or more of fentanyl; or
  (c) Ten (10) grams or more of carfentanil or fentanyl derivatives.
(2) Aggravated trafficking in a controlled substance in the first degree is a Class B felony, and:
  (a) The defendant shall not be released on probation, shock probation, conditional discharge, or parole until he or she has served at least fifty percent (50%) of the sentence imposed where the trafficked substance was heroin; or
  (b) The defendant shall not be eligible for pretrial diversion, and shall not be released on probation, shock probation, conditional discharge, or parole until he or she has served at least eighty-five percent (85%) of the sentence imposed where the trafficked substance was fentanyl, carfentanil, or fentanyl derivatives.

Marijuana Offenses

KRS 218A.1421 Trafficking in marijuana – Penalties

(1) A person is guilty of trafficking in marijuana when he knowingly and unlawfully traffics in marijuana, and the trafficking is not in compliance with, or otherwise authorized by, KRS Chapter 218B.
(2) Unless authorized by KRS Chapter 218B, trafficking in less than eight (8) ounces of marijuana is:
  (a) For a first offense a Class A misdemeanor.
  (b) For a second or subsequent offense a Class D felony.
(3) Unless authorized by KRS Chapter 218B, trafficking in eight (8) or more ounces but less than five (5) pounds of marijuana is:
  (a) For a first offense a Class D felony.
  (b) For a second or subsequent offense a Class C felony.
(4) Unless authorized by KRS Chapter 218B, trafficking in five (5) or more pounds of marijuana is:
  (a) For a first offense a Class C felony.
  (b) For a second or subsequent offense a Class B felony.
(5) Unless authorized by KRS Chapter 218B, the unlawful possession by any person of eight (8) or more ounces of marijuana shall be prima facie evidence that the person possessed the marijuana with the intent to sell or transfer it.
(6) This section does not apply to:
  (a) A cannabis business or a cannabis business agent, as defined in KRS 218B.010, when acting in compliance with KRS Chapter 218B; or
  (b) A cardholder, as defined in KRS 218B.010, whose use of medicinal cannabis is in compliance with KRS Chapter 218B.

KRS 218A.1422 Possession of marijuana – Penalty – Maximum term of incarceration

(1) A person is guilty of possession of marijuana when he or she knowingly and unlawfully possesses marijuana, and the possession is not in compliance with, or otherwise authorized by, KRS Chapter 218B.
(2) Possession of marijuana is a Class B misdemeanor, except that, KRS Chapter 532 to the contrary notwithstanding, the maximum term of incarceration shall be no greater than forty-five (45) days.
(3) This section does not apply to: (a) A cannabis business or a cannabis business agent, as defined in KRS 218B.010, when acting in compliance with KRS Chapter 218B; or (b) A cardholder, as

defined in KRS 218B.010, whose use of medicinal cannabis is in compliance with KRS Chapter 218B.

KRS 218A.1423 Marijuana cultivation – Penalties

(1) A person is guilty of marijuana cultivation when he knowingly and unlawfully plants, cultivates, or harvests marijuana with the intent to sell or transfer it.
(2) Unless authorized by KRS Chapter 218B, marijuana cultivation of five (5) or more plants of marijuana is:
  (a) For a first offense a Class D felony.
  (b) For a second or subsequent offense a Class C felony.
(3) Unless authorized by KRS Chapter 218B, marijuana cultivation of fewer than five (5) plants is:
  (a) For a first offense a Class A misdemeanor.
  (b) For a second or subsequent offense a Class D felony.
(4) Unless authorized by KRS Chapter 218B, the planting, cultivating, or harvesting of five (5) or more marijuana plants shall be prima facie evidence that the marijuana plants were planted, cultivated, or harvested for the purpose of sale or transfer.
(5) This section does not apply to a cannabis business or a cannabis business agent, as defined in KRS 218B.010, when acting in compliance with KRS Chapter 218B

KRS 218A.1430 Trafficking in synthetic drugs – Penalties – Affirmative defense – Possession of synthetic drugs - Penalty

(1) (a) A person is guilty of trafficking in synthetic drugs when he or she knowingly and unlawfully traffics in synthetic drugs.
  (b)Trafficking in synthetic drugs is a Class D felony for the first offense and a Class C felony for a second or subsequent offense.
  (c) In lieu of the fine amounts otherwise allowed under KRS Chapter 534, for any offense under this subsection the court may impose a maximum fine of double the defendant's gain from the commission of the offense, in which case any fine money collected shall be divided between the same parties, in the same ratio, and for the same purposes as established for forfeited property under KRS 218A.420.
  (d) It shall be an affirmative defense to an offense under this subsection that the defendant committed the offense during the course of the defendant's employment as an employee of a retail store and that the defendant did not know and should not have known that the trafficked substance was a synthetic drug.
(2) (a) A person is guilty of possession of synthetic drugs when he or she knowingly and unlawfully possesses synthetic drugs.
  (b) Possession of synthetic drugs is:
    1. A Class B misdemeanor for the first offense; and
    2. A Class D felony for each subsequent offense.

METHAMPHETAMINE OFFENSES

KRS 218A.1431 Definitions for KRS 218A.1431 to 218A.1435 and KRS 218A.141

As used in KRS 218A.1431 to 218A.1438 and KRS 218A.141, the following definitions apply:
(1) **"Manufacture"** means the production, preparation, propagation, compounding, conversion, or processing of methamphetamine, or possession with intent to manufacture, either directly or indirectly by extraction from substances of natural origin or independently by means of chemical synthesis, or by a combination of extraction and chemical synthesis, except that this term does not include activities:
  (a) By a practitioner incident to administering or dispensing of a controlled substance in the course of his professional practice; or
  (b) By a practitioner, or by his authorized agent under his supervision, for the purpose of, or incident to, research, teaching, or chemical analysis; or
  (c) By a pharmacist incident to dispensing of a controlled substance in the course of his

professional practice.

(2) **"Methamphetamine"** means any substance that contains any quantity of methamphetamine, including its salts, isomers, and salts of isomers.

(3) **"Traffic"** means to distribute, dispense, sell, transfer, or possess with intent to distribute, dispense, or sell methamphetamine**.**

KRS 218A.1432 Manufacturing methamphetamine – Penalties

(1) A person is guilty of manufacturing methamphetamine when he knowingly and unlawfully:
   (a) Manufactures methamphetamine; or
   (b) With intent to manufacture methamphetamine possesses two (2) or more chemicals or two (2) or more items of equipment for the manufacture of methamphetamine.

(2) Manufacture of methamphetamine is a Class B felony for the first offense and a Class A felony for a second or subsequent offense.

KRS 218A.1437 Unlawful possession of a methamphetamine precursor – Prima facie evidence of intent - Penalties

(1) A person is guilty of unlawful possession of a methamphetamine precursor when he or she knowingly and unlawfully possesses a drug product or combination of drug products containing ephedrine, pseudoephedrine, or phenylpropanolamine, or their salts, isomers, or salts of isomers, with the intent to use the drug product or combination of drug products as a precursor to manufacturing methamphetamine or other controlled substance.

(2) (a) Except as provided in paragraph (b) of this subsection, possession of a drug product or combination of drug products containing more than nine (9) grams of ephedrine, pseudoephedrine, or phenylpropanolamine, or their salts, isomers, or salts of isomers, within any thirty (30) day period shall constitute prima facie evidence of the intent to use the drug product or combination of drug products as a precursor to methamphetamine or other controlled substance.(b) The prima facie evidence referred to in paragraph (a) of this subsection shall not apply to the following persons who lawfully possess a drug product or combination of drug products listed in subsection (1) of this section in the course of legitimate business:
      1. A retail distributor of drug products or wholesaler of drug products or its agent;
      2. A wholesale drug distributor, or its agent, issued a permit by the Board of Pharmacy;
      3. A pharmacist licensed by the Board of Pharmacy;
      4. A pharmacy permitted by the Board of Pharmacy;
      5. A licensed health care professional possessing the drug products in the course of carrying out his or her profession;
      6. A trained chemist working in a properly equipped research laboratory in an education, government, or corporate setting; or
      7. A common carrier under contract with any of the persons or entities set out in subparagraphs 1. to 6. of this paragraph.

(3) Unlawful possession of a methamphetamine precursor is a Class D felony for the first offense and a Class C felony for each subsequent offense.

KRS 218A.1438 Unlawful distribution of a methamphetamine precursor - Penalties

(1) Notwithstanding KRS 218A.1446, a person is guilty of unlawful distribution of a methamphetamine precursor when he or she knowingly and unlawfully sells, transfers, distributes, dispenses, or possesses with the intent to sell, transfer, distribute, or dispense any drug product or combination of drug products containing ephedrine, pseudoephedrine, or phenylpropanolamine, or any of their salts, isomers, or salts of isomers, if the person knows that the purchaser intends that the drug product or combination of drug products will be used as a precursor to methamphetamine or other controlled substance, or if the person sells, transfers, distributes, or dispenses the drug product or combination of drug products with reckless disregard as to how the drug product or combination of drug products will be used.

(2) Unlawful distribution of a methamphetamine precursor is a Class D felony for the first offense and a Class C felony for each subsequent offense.

(3) In addition to the criminal penalty specified in subsection (2) of this section, or in lieu of the criminal penalty specified in subsection (2) of this section, any person who traffics in or transfers any drug product or combination of drug products specified in subsection (1) of this section intentionally or recklessly with knowledge of or reason to know that the drug product or combination of drug products will be used to illegally manufacture methamphetamine or other controlled substance shall be liable for damages in a civil action for all damages, whether directly or indirectly caused by the sale or trafficking or transfer of the drug product or drug products.
   (a) Damages may include, but are not limited to:
      1. Any and all costs of detecting, investigating, and cleaning up or remediating unlawfully operated laboratories or other facilities for the illegal manufacture of methamphetamine or other controlled substance;
      2. Costs of prosecution of criminal cases arising from the illegal sale, transfer, distribution, manufacture, or dispensing of a controlled substance or their precursors;
      3. Court costs and reasonable attorney's fees for bringing this civil action;
      4. Consequential damages; and
      5. Punitive damages.
   (b) A civil action to recover damages against a person or persons violating this section may be brought by the Attorney General, an attorney of the Justice and Public Safety Cabinet, or by any Commonwealth's attorney in whose jurisdiction the defendant may be shown to have committed an act specified in this section.
   (c) All moneys collected pursuant to such civil action shall be distributed in the following order:
      1. Court costs and reasonable attorney's fees for bringing this civil action;
      2. The reimbursement of all reasonable costs of detecting, investigating, cleaning up or remediating the laboratory or other facility utilized for manufacture of methamphetamine underlying the present judgment;
      3. The reasonable costs of prosecution of criminal cases arising from trafficking in or transfer of a precursor for the illegal manufacture of methamphetamine giving rise to the present judgment; and
      4. All remaining moneys shall be distributed to the General Fund.

KRS 218A.1439 Trafficking in or transferring a dietary supplement – Exceptions - Penalties

(1) A person is guilty of trafficking in or transferring a dietary supplement, when he or she traffics in or transfers any dietary supplement product containing ephedrine group alkaloids, except as provided in this section.
(2) The prohibition in subsection (1) of this section shall not apply to:
   (a) A practitioner or pharmacist licensed in this Commonwealth who is practicing within his or her scope of practice and who prescribes or dispenses, or both, dietary supplement products containing ephedrine alkaloids in the course of the treatment of a patient under the direct care of the prescribing practitioner, except that a licensed practitioner or registered pharmacist shall not prescribe or dispense dietary supplement, products containing ephedrine group alkaloids for purposes of weight loss, body building, or athletic performance enhancement;
   (b) Dietary supplement products containing ephedrine group alkaloids that are sold or distributed directly to a licensed practitioner or registered pharmacist, when the dietary supplement products containing ephedrine group alkaloids are used solely for the purpose of the treatment of patients under the direct care of the practitioner;
   (c) Dietary supplement products containing ephedrine group alkaloids that are sold or distributed directly to a licensed practitioner or registered pharmacist for resale to a patient for whom the products have been prescribed under paragraph (a) of this subsection; or
   (d) Dietary supplement products containing ephedrine group alkaloids that are not for resale in this Commonwealth and that are sold or distributed directly to businesses not located in this Commonwealth.
(3) Trafficking in or transferring a dietary supplement is:
   (a) For the first offense, a Class A misdemeanor; and
   (b) For a second or subsequent offense, a Class D felony.

KRS 218A.1441 Controlled substance endangerment to a child in the first degree - Penalty

(1) A person is guilty of controlled substance endangerment to a child in the first degree when he or she knowingly causes or permits a child to be present when any person is illegally manufacturing a controlled substance or methamphetamine or possesses a hazardous chemical substance with intent to illegally manufacture a controlled substance or methamphetamine under circumstances that place a child in danger of serious physical injury or death, if the child dies as a result of the commission of the offense.
(2) Controlled substance endangerment to a child in the first degree is a Class A felony.

KRS 218A.1442 Controlled substance endangerment to a child in the second degree - Penalty

(1) A person is guilty of controlled substance endangerment to a child in the second degree when he or she knowingly causes or permits a child to be present when any person is illegally manufacturing a controlled substance or methamphetamine or possesses a hazardous chemical substance with intent to illegally manufacture a controlled substance or methamphetamine under circumstances that place a child in danger of serious physical injury or death, if the child receives serious physical injury as a result of the commission of the offense.
(2) Controlled substance endangerment to a child in the second degree is a Class B felony.

KRS 218A.1443 Controlled substance endangerment to a child in the third degree - Penalty

(1) A person is guilty of controlled substance endangerment to a child in the third degree when he or she knowingly causes or permits a child to be present when any person is illegally manufacturing a controlled substance or methamphetamine or possesses a hazardous chemical substance with intent to illegally manufacture a controlled substance or methamphetamine under circumstances that place a child in danger of serious physical injury or death, if the child receives physical injury as a result of the commission of the offense.
(2) Controlled substance endangerment to a child in the third degree is a Class C felony.

KRS 218A.1444 Controlled substance endangerment to a child in the fourth degree - Penalty

(1) A person is guilty of controlled substance endangerment to a child in the fourth degree when he or she knowingly causes or permits a child to be present when any person is illegally manufacturing a controlled substance or methamphetamine or possesses a hazardous chemical substance with intent to illegally manufacture a controlled substance or methamphetamine under circumstances that place a child in danger of serious physical injury or death, if the child is not injured as a result of the commission of the offense.
(2) Controlled substance endangerment to a child in the fourth degree is a Class D felony.

KRS 218A.1446 Requirements for dispensing of ephedrine-based products – Electronic log or recordkeeping mechanism – Thirty-day and one-year quantity limitations on ephedrine-based products – Exceptions – Preemption of local laws - Blocking mechanism – Annual report

(1) Any compound, mixture, or preparation containing any detectable quantity of ephedrine, pseudoephedrine, or phenylpropanolamine, their salts or optical isomers, or salts of optical isomers shall be dispensed, sold, or distributed only by a registered pharmacist, a pharmacy intern, or a pharmacy technician.
(2) Any person purchasing, receiving, or otherwise acquiring any nonprescription compound, mixture, or preparation containing any detectable quantity of ephedrine, pseudoephedrine, or phenylpropanolamine, their salts or optical isomers, or salts of optical isomers shall:
   (a) Produce a government issued photo identification showing the date of birth of the person; and
   (b) Sign a log or record showing the:
      1. Date of the transaction;
      2. Name, date of birth, and address of the person making the purchase; and
      3. The amount and name of the compound, mixture, or preparation.

   Only an electronic logging or recordkeeping mechanism approved by the Office of Drug

Control Policy may be utilized to meet the requirements of this subsection. No pharmacy may dispense or sell any compound, mixture, or preparation containing any detectable quantity of ephedrine, pseudoephedrine, or phenylpropanolamine, their salts or optical isomers, or salts of optical isomers unless the electronic logging or recordkeeping mechanism required by this section is provided at no cost to the pharmacy.

(3) An electronic log or record, as described in subsection (2) of this section, shall be kept of each day's transactions. The registered pharmacist, a pharmacy intern, or a pharmacy technician shall initial the entry of each sale in the log, evidencing completion of each transaction. The log shall be:
   (a) Kept for a period of two (2) years; and
   (b) Subject to random and warrantless inspection by city, county, or state law enforcement officers;

* * * * *

(5) No person shall purchase, receive, or otherwise acquire any product, mixture, or preparation or combinations of products, mixtures, or preparations containing more than seven and one-fifth (7.2) grams of ephedrine, pseudoephedrine, or phenylpropanolamine, their salts or optical isomers, or salts of optical isomers within any thirty (30) day period, provided that this limit shall not apply to any quantity of product, mixture or preparation dispensed pursuant to a valid prescription.

(6) A person under eighteen (18) years of age shall not purchase or attempt to purchase any quantity of a nonprescription ephedrine, pseudoephedrine, or phenylpropanolamine product as described in subsection (1) of this section. No person shall aid or assist a person under eighteen (18) years of age in purchasing any quantity of a nonprescription ephedrine, pseudoephedrine, or phenylpropanolamine product as described in subsection (1) of this section.

(7) The requirements of this section shall not apply to any compounds, mixtures, or preparation containing ephedrine, pseudoephedrine, or phenylpropanolamine, their salts or optical isomers, or salts of optical isomers which are in liquid, liquid capsule, or gel capsule form or to any compounds, mixtures, or preparations containing ephedrine, pseudoephedrine, or phenylpropanolamine, or their salts or optical isomers which are deemed to be not subject to abuse upon joint review and agreement of the Office of Drug Control Policy, the Board of Pharmacy, and the Cabinet for Health Services.

* * * * *

(9) The provisions of this section shall supersede and preempt all local laws, ordinances, and regulations pertaining to the sale of any compounds, mixtures, or preparation containing ephedrine, pseudoephedrine, phenylpropanolamine, their salts or optical isomers, or salts of optical isomers.

* * * * *

KRS 218A.1447 Restrictions on possession of dextromethorphan and sale of products containing dextromethorphan

(1) A person, other than a medical facility, medical practitioner, pharmacist, pharmacy intern, pharmacy technician, pharmacy licensed or registered under KRS Chapter 315, or registrant under the Federal Food, Drug, and Cosmetic Act, 21 U.S.C. secs. 301 et seq., shall not possess one (1) gram or more of:
   (a) Pure dextromethorphan; or
   (b) Dextromethorphan extracted from solid or liquid dose forms, as defined by United States Pharmacopeia reference standards.

(2) A person shall not sell any products containing dextromethorphan to individuals under eighteen (18) years of age, except that in any prosecution for selling a product containing dextromethorphan to an individual under eighteen (18) years of age it shall be an affirmative defense that the sale was induced by the use of false, fraudulent, or altered identification papers or other documents and that the appearance and character of the purchaser were such that his or her age could not have been ascertained by any other means and that the purchaser's appearance and character indicated strongly that he or she was of legal age to purchase products containing dextromethorphan. This evidence may be introduced either in mitigation of the charge or as a defense to the charge itself.

(3) Any person who sells any product containing dextromethorphan shall limit access to these products by requiring proof of age from a prospective buyer by showing a government-issued photo identification card that displays his or her date of birth if the person has reason to believe that the prospective buyer is under the age of eighteen (18) years.

KRS 218A.1448 Offenses relating to purchases of products containing dextromethorphan by minors

(1) No person shall aid or assist any person under eighteen (18) years of age in purchasing any product containing dextromethorphan.
(2) A person under eighteen (18) years of age shall not misrepresent his or her age for the purpose of inducing a retail establishment or the retail establishment's agent, servant, or employee to sell or serve a product containing dextromethorphan to the underage person.
(3) A person under eighteen (18) years of age shall not use or attempt to use any false, fraudulent, or altered identification card, paper, or any other document to purchase or attempt to purchase or otherwise obtain a product containing dextromethorphan.
(4) Any person under the age of eighteen (18) years of age shall not purchase or attempt to purchase or have another person purchase for him or her a product containing dextromethorphan.

KRS 218A.1449 Penalties for violation of KRS 218A.1447 or 218A.1448

(1) Any person who violates KRS 218A.1447(1) shall be subject to a fine of one thousand dollars ($1,000) for the first violation and two thousand five hundred dollars ($2,500) for each subsequent violation.
(2) Any person who knowingly violates KRS 218A.1447(2) shall be subject to a fine of twenty-five dollars ($25) for the first violation and two hundred dollars ($200) for each subsequent violation.
(3) Any person who knowingly violates KRS 218A.1447(3) shall be subject to a fine of twenty-five dollars ($25) for the first violation and two hundred fifty dollars ($250) for each subsequent violation.
(4) Any person who knowingly violates KRS 218A.1448(1) shall be subject to a fine of one hundred dollars ($100) for the first violation and two hundred dollars ($200) for each subsequent violation.
(5) Any person who violates KRS 218A.1448(2), (3) or (4) shall be subject to a fine of twenty-five dollars ($25) for the first violation, a fine of one hundred dollars ($100) for the second violation, and a fine of two hundred dollars ($200) for each subsequent violation.

KRS 218A.1450 Trafficking in salvia - Penalty

(1) A person is guilty of trafficking in salvia when he or she knowingly and unlawfully traffics in salvia for human consumption.
(2) Trafficking in salvia is a Class A misdemeanor.

KRS 218A.1451 Possession of salvia - Penalty – Maximum term of incarceration

(1) A person is guilty of possession of salvia when he or she knowingly and unlawfully possesses salvia for human consumption.
(2) Possession of salvia is a Class B misdemeanor, except that, KRS Chapter 532 to the contrary notwithstanding, the maximum term of incarceration shall be no greater than thirty (30) days.

KRS 218A.1452 Cultivation of salvia - Penalty

(1) A person is guilty of salvia cultivation when he or she knowingly and unlawfully plants, cultivates, or harvests salvia with the intent to sell or transfer it for human consumption.
(2) Salvia consumption is a Class A misdemeanor.

SCHEDULES UNDER KENTUCKY LAW
QUICK REFERENCE CHART

SCHEDULE I NARCOTICS
Includes: Heroin, Carfentanil

SCHEDULE I NON-NARCOTICS
Includes: Marijuana, Synthetic Drugs, Salvia, LSD, Mescaline, Methaqualone, MDMA, PCE, Peyote, Hashish, Psilocybin, MDA, MMDA, DMT, THC, DET, Phencyclidine (PCP or "Angel Dust"), synthetic drugs (Bath Salts), salvia, and other hallucinogens.

SCHEDULE II NARCOTICS
Includes: Opium Derivatives (Dilaudid, Morphine, Percodan, etc.), Fentanyl, Carfentanil, Cocaine, Demerol, Methadone, Oxycodone (Percocet), Oxycontin, hydrocodone (Lorcet, Lortab, Vicodin), Sufenatil, and Alfentanil.

SCHEDULE II NON-NARCOTICS
Includes: Amphetamine, Preludin, Ritalin, Amobarbital, Pentobarbital, Secobarbital, Dronabinol, and Doriden.

SCHEDULE III
Includes: Talwin, barbiturates (other than those specified in Schedule II Non-narcotics) and the following anorectic drugs:
Benzphetamine (Didrex), Chlorphentermine (Pre-sate), Chlortermine (Voranil), and Phendimetrazine (Plegine, Statobex). Also includes anabolic steroids, and codeine in combination (e.g., Tylenol with codeine).

SCHEDULE IV
Includes: Chloral hydrate, Meprobamate (Equanil, Milltown), Paraldehyde, Dextropropoxyphene (Darvon) (except bulk which is Schedule II), Chlordiazepoxide (Librium), Clonazepam (Klonopin), Chlorazepate (Tranxene), Diazepam (Valium), Flurazepam (Dalmane), Mebutamate (Capla), Methohexital (Brevital), Oxazepam (Serax), Alprazolam (Xanax), and Carisoprodol (Soma), Butorphanol (Stadol), Nalbuphine (Nubain), and stimulants such as Diethylpropion (Tenuate), Phentermine (Ionamin and Fastin), Pemoline (Cylert), Sibutramine (Meridia), and Mazindol (Sanorex).

SCHEDULE V
Includes: Codeine cough preparations--Cheracol, Robitussin AC, Cosanyl, Ambenyl, Phenergan with Codeine, etc.; Buprenorphine; and certain opium preparations. (Some of these substances require a prescription and some may be sold over the counter.)

CONTROLLED SUBSTANCES: Information About Specific Drugs

Categories & Drugs	Schedule	Trade Names & Street Names	Method of Administration	Symptoms
NARCOTICS Opium	II, III, V	**Trade Names:** Dover's Powder, Paragoric, Parapectolin **Street Names:** Blue Velvet, Ope, PG, PO, Hop, Mash	Oral, smoked	**Possible Effects:** Euphoria, drowsiness, respiratory depression, constricted pupils, nausea **Effects of Overdose:** Slow and shallow breathing, clammy skin, convulsions, coma,
Morphine	II, III	**Trade Names:** MS-Contin, Roxanol, Roxanol-SR, Duramorph	Oral, smoked, injected	

		Street Names: M, Miss Emma, Mud, Morp, Blue Heaven		possible death **Withdrawal Symptoms:** Watery eyes, runny nose, yawning, loss of appetite, irritability, tremors, panic, cramps, nausea, chills and sweating
Codeine	II, III, V	**Trade Names:** Empirin w/codeine, Tylenol w/codeine **Street Names:** School Boy, Subs	Oral, injected	
Heroin (Diacetylmorphine)	I	**Trade Names:** Heroin **Street Names:** Smack, H, Horse, Scag, Mexican Brown, Mexican Mud	Injected, sniffed, smoked	
Hydromorphone	II	**Trade Names:** Dilaudid **Street Names:** Drugstore heroin, Yellow D's, Delight, #1s, #2s, #3s, #4s	Oral, injected	
Meperidine (Pethidine)	II	**Trade Names:** Demerol **Street Names:** Subs, Demmies, Doctors	Oral, injected	
Methadone	II	**Trade Names:** Dolophine, Amidone **Street Names:** Dollies, Dolls	Oral, injected	
Other Narcotics	I, II, III, IV, V	**Trade Names:** Numorphan, Percodan, Percocet, Tylox, Fentanyl, Darvon **Street Names:** Perks, Yellow Footballs, China White	Oral, injected	
DEPRESSANTS Chloral Hydrate	IV	**Trade Names:** Noctec **Street Names:** Joy Juice, Mickey Finn, Mickey	Oral	**Possible Effects:** Slurred speech, disorientation, drunken behavior without the odor of alcohol **Effects of Overdose:** Shallow respiration, clammy skin, dilated pupils, weak and rapid pulse, coma, possible death **Withdrawal Symptoms:** Anxiety, insomnia, tremors, delirium, convulsions, possible death
Barbiturates	II, III, IV	**Trade Names:** Amytal, Butisol, Fiorinal, Nembutal, Seconal, Tuinal, Phenobarbital	Oral	
Benzodiapepines	IV	**Trade Names:** Ativan, Dalmane, Diazepam, Librium, Xanax, Valium, Restoril, Halcion **Street Names:** V's, Libs, Vals	Oral	
Methaqualone	I	**Trade Names:** Quaalude, Sopor, Parest **Street Names:** Ludes, 714's, Soapers, Sopes	Oral	
Glutehimide	II	**Trade Names:** Doriden	Oral	
Other Depressants	III, IV	**Trade Names:** Eqanil, Miltown, Noludar, Placidyl, Valmid **Street Names:** Noodles, Placid	Oral	
STIMULANTS Cocaine (designated a narcotic in KRS	II	**Trade Names:** Cocaine Hydrochloride **Street Names:** Coke, Snow,	Sniffed, smoked, injected	**Possible Effects:** Increased alertness, excitation, euphoria,

Chapter 218A)		Flake, Nose Candy, Blow, Crack		increased pulse rate & blood pressure, insomnia, loss of appetite **Effects of Overdose:** Agitation, increase in body temperature, hallucinations, convulsions, possible death **Withdrawal Symptoms:** Apathy, long periods of sleep, irritability, depression, disorientation
Amphetamines	II	**Trade Names:** Bihetamine, Delcobese, Desoxyn, Dexedrine, Benzedrine **Street Names:** Meth, Speed, Crystals, Ice, Whites, Uppers, Crank, Black Beauties, Hearts	Oral, injected	
Phenmetrazine	II	**Trade Names:** Preludin **Street Names:** Preludes	Oral, injected	
Methylphenidate	II	**Trade Names:** Ritalin	Oral, injected	
Other Stimulants	III, IV	**Trade Names:** Adipex, Cylert, Didrex, Ionamin, Sanorex, Tepanil, Prelu-2 **Street Name:** Speed	Oral, injected	
HALLUCINOGENS LSD	I	**Street Names:** Acid, Microdot, 25, Blotter, Paper, Haze	Oral	**Possible Effects:** Illusions and hallucinations, poor perception of time and distance **Effects of Overdose:** Longer, more intense "trip" episodes, psychosis, possible death **Withdrawal Symptoms:** Withdrawal symptoms not reported
Mescaline & Peyote	I	**Street Names:** Mex, Buttons, Cactus, Mescal	Oral	
Amphetamine Variants	I	**Trade Names:** 2, 5-DMA, PMA, STP, MDA, MDMA, TMA, DOM, DOB	Oral, injected	
Phencyclidine	I	**Street Names:** PCP, Angel Dust, Hog, Crystal	Smoked, oral, injected	
Phencyclidine Analogues	I	**Trade Names:** PCE, PCPy, TCP	Smoked, oral, injected	
Other Hallucinogens	I	**Trade Names:** Bufotenine, Ibogaine, DMT, DET, Psilocybin, Psilocyn **Street Names:** Magic Mushrooms	Smoked, oral, injected, sniffed	
CANNABIS Marijuana	I	**Street Names:** Pot, grass, sinsemilla, weed	Smoked, oral	**Possible Effects:** Euphoria, relaxed inhibitions, increased appetite, disoriented behavior **Effects of Overdose:** Fatigue, paranoia, possible psychosis **Withdrawal Symptoms:** Insomnia, hyperactivity, and decreased appetite occasionally reported
Tetrahydra-cannabinol	I, II	**Trade Names:** THC, Marinol	Smoked, oral	
Hashish	I	**Street Names:** Hash, Kif, Black Russian	Smoked, oral	
Hashish Oil	I	**Street Names:** Hash Oil, Honey Oil, Shish Oil	Smoked, oral	
SYNTHETIC CANNABIS Synthetic Marijuana	**I**	**Street Names:** K2, Spice, Haze Trainwreck, Herbal Incense	Smoked	**Possible Effects:** Euphoria, relaxed inhibitions, increased appetite, disoriented behavior

				Effects of Overdose: Acute psychosis, worsening of psychotic disorders, triggering psychotic disorders, agitation, vomiting, heart attacks, convulsions **Withdrawal Symptoms:** Similar to narcotics withdrawal
SYNTHETIC DRUGS MDPV	I	**Street Names:** Bath Salts	Smoked, rectal, injected, sniffed	**Possible Effects:** Euphoria; increased alertness, awareness, wakefulness, sexual stimulation **Effects of Overdose:** Rapid heartbeat, insomnia, nausea, headache, breathing difficulty, agitation, severe paranoia, confusion, psychotic delusions, suicidal thoughts/actions, "Zombie" behavior. **Withdrawal symptoms:** Strong cravings to re-administer, depression, lethargy, headache, anxiety

KRS 218A.180 Distribution by practitioner or pharmacist – Prescription requirements – Penalties

(1) Except when dispensed directly by a practitioner to an ultimate user, no controlled substance listed in Schedule II may be dispensed without the written, facsimile, electronic, or oral prescription of a practitioner. A prescription for a controlled substance listed in Schedule II may be dispensed by a facsimile prescription only as specified in administrative regulations promulgated by the cabinet. A prescription for a controlled substance listed in Schedule II may be dispensed by oral prescription only for immediate administration to a patient enrolled in a hospice program or a resident in a long-term care facility, as defined in KRS 216.535, excluding a family care home or personal care home, and the practitioner determines that immediate administration is necessary, no appropriate alternative treatment is available, and it is not reasonably possible for the prescriber to provide a written prescription. No prescription for a controlled substance in Schedule II shall be valid after sixty (60) days from the date issued. No prescription for a controlled substance in Schedule II shall be refilled. All prescriptions for controlled substances classified in Schedule II shall be maintained in a separate prescription file.

(2) Except when dispensed directly by a practitioner to an ultimate user, a controlled substance included in Schedules III, IV, and V, which is a prescription drug, shall not be dispensed without a written, electronic, or oral prescription by a practitioner. The prescription shall not be filled or refilled more than six (6) months after the date issued or be refilled more than five (5) times, unless renewed by the practitioner and a new prescription, written, electronic, or oral shall be required.

(3) (a) To be valid, a prescription for a controlled substance shall be issued only for a legitimate medical purpose by a practitioner acting in the usual course of his professional practice. Responsibility for the proper dispensing of a controlled substance pursuant to a prescription for a legitimate medical purpose is upon the pharmacist who fills the prescription.

(b) A prescription shall not be issued for a practitioner to obtain a controlled substance for the purpose of general dispensing or administering to patients.

(4) All written facsimile, and electronic prescriptions for controlled substances shall be dated and signed by the practitioner on the date issued. A computer-generated prescription that is printed out or faxed by the practitioner shall be manually signed. A prescription may be transmitted by facsimile only as specified in administrative regulations promulgated by the cabinet. Electronic prescriptions shall be created, signed, and transmitted in accordance with the requirements of 21 C.F.R. Part 1311.

(5) All prescriptions for controlled substances shall include the full name and address of the patient, drug name, strength, dosage form, quantity prescribed, directions for use, and the name, address and registration number of the practitioner.

(6) All oral prescriptions for controlled substances shall be immediately reduced to writing, dated, and signed by the pharmacist.

(7) A pharmacist refilling any prescription shall record on the prescription or other equivalent record the date, the quantity, and the pharmacist's initials. The maintenance of prescription records under the federal controlled substances laws and regulations containing substantially the same information as specified in this subsection shall constitute compliance with this subsection.

(8) The pharmacist filling a written, electronic, or oral prescription for a controlled substance shall affix to the package a label showing the date of filling, the pharmacy name and address, the serial number of the prescription, the name of the patient, the name of the prescribing practitioner and directions for use and cautionary statements, if any, contained in such prescription or required by law.

(9) Any person who violates any provision of this section shall:
   (a) For the first offense, be guilty of a Class A misdemeanor.
   (b) For a second or subsequent offense, be guilty of a Class D felony.

KRS 218A.190 Exempt codeine preparations

(1) Nonprescription medicinal preparations that contain in one hundred (100) milliliters, or as a solid or semisolid preparation, in one hundred (100) grams, not more than two hundred (200) milligrams of codeine or its salts may be sold over the counter subject to the following conditions:

(a) That the medicinal preparation shall contain in addition to the codeine in it, some drug or drugs conferring upon it medicinal qualities other than those possessed by the codeine alone;
(b) That such preparation shall be dispensed or sold in good faith as a medicine, and not for the purpose of evading the provisions of this chapter;
(c) That such preparation shall only be sold at retail without a prescription to a person at least eighteen (18) years of age and only by a pharmacist. An employee may complete the actual cash or credit transaction or delivery;
(d) That such preparations shall not be displayed in areas of the pharmacy open to the public; and
(e) That no person shall purchase and no pharmacist or practitioner shall sell to the same person within a forty-eight (48) hour period more than one hundred twenty (120) milliliters of an exempt codeine preparation. Any person purchasing in excess of this limitation shall be deemed to be in illegal possession.

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(3) All pharmacists and practitioners shall keep a separate exempt codeine registry showing the following:
(a) Date;
(b) Name of recipient;
(c) Address;
(d) Name of preparation;
(e) Quantity; and
(f) Pharmacist's or practitioner's name.

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KRS 218A.210 Controlled substances may be possessed only in original container – Penalties

(1) A person to whom or for whose use any controlled substance has been prescribed, sold, or dispensed, by a practitioner or other person authorized under this chapter, may lawfully possess it only in the container in which it was delivered to him by the person selling or dispensing the same.
(2) Violation of subsection (1) of this section is a Class B misdemeanor for the first offense and a Class A misdemeanor for subsequent offenses.

KRS 218A.220 Persons exempt from chapter

The provisions of this chapter shall not apply to common carriers or to warehousemen, while engaged in lawfully transporting or storing such substances, or to any employee of the same acting within the scope of his employment; or to public officers or their employees in the performance of their official duties requiring possession or control of controlled substances; or to temporary incidental possession by employees or agents of persons lawfully entitled to possession, or by persons whose possession is for the purpose of aiding public officers in performing their official duties.

KRS 218A.230 Controlled substances – Possession, forfeiture, disposition – Records, inspection

All controlled substances, the lawful possession of which is not established or the title to which cannot be ascertained, which have come into the custody of a peace officer, shall be forfeited and disposed of as follows:

(1) Except as otherwise provided in this section, the court having jurisdiction shall order such controlled substances forfeited and destroyed. A record of the place where said drugs were seized, of the kinds and quantities of drugs so destroyed, and of the time, place, and manner of destruction, shall be kept.

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(4) Prescriptions, orders, and records, required by this chapter, and stocks of controlled substances, shall be open for inspection only to federal, state, county, and municipal officers, whose duty it is to enforce the laws of this state or of the United States relating to controlled substances.
(5) No pharmacist, practitioner, manufacturer, or wholesaler or other custodian of records, prescriptions, or orders required by this chapter shall refuse to permit the inspection thereof by

any federal, state, county or municipal officer whose duty it is to enforce the laws of this state or of the United States relating to controlled substances.

KRS 218A.240 Controlled substances – Duties and authority of state and local officers, Cabinet for Health Services, and Kentucky Board of Pharmacy – Civil proceedings – Identification of trends – Identification of prescribers, dispensers, and patients for licensing board – Review of hospital's or health care facility's prescribing and dispensing practices

(1) All police officers and deputy sheriffs directly employed full-time by state, county, city, urban-county, or consolidated local governments, the State Police, the Cabinet for Health Services, their officers and agents, and of all city, county, and Commonwealth's attorneys, and the Attorney General, within their respective jurisdictions, shall enforce all provisions of this chapter and cooperate with all agencies charged with the enforcement of the laws of the United States, of this state, and of all other states relating to controlled substances.

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(5) Notwithstanding the existence or pursuit of any other remedy, civil or criminal, any law enforcement authority may maintain, in its own name, an action to restrain or enjoin any violation of this chapter, or to forfeit any property subject to forfeiture under KRS 218A.410, irrespective of whether the owner of the property has been charged with or convicted of any offense under this chapter.
   (a) Any civil action against any person brought pursuant to this section may be instituted in the Circuit Court in any county in which the person resides, in which any property owned by the person and subject to forfeiture is found, or in which the person has violated any provision of this chapter.
   (b) A final judgment rendered in favor of the Commonwealth in any criminal proceeding brought under this chapter shall estop the defendant from denying the essential allegations of the criminal offense in any subsequent civil proceeding brought pursuant to this section.
   (c) The prevailing party in any civil proceeding brought pursuant to this section shall recover his or her costs, including a reasonable attorney's fee.
   (d) Distribution of funds under this section shall be made in the same manner as in KRS 218A.420, except that if the Commonwealth's attorney has not initiated the forfeiture action under this section, his or her percentage of the funds shall go to the agency initiating the forfeiture action.

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(7) (a) The Cabinet for Health Services shall use the data compiled in the electronic system created in KRS 218A.202 for investigations, research, statistical analysis, and educational purposes, and shall proactively identify trends in controlled substance usage and other potential problem areas. Only cabinet personnel who have undergone training for the electronic system and who have been approved to use the system shall be authorized access to the data and reports under this subsection. The cabinet shall notify a board responsible for the licensure, regulation, or discipline of each practitioner, pharmacist, or other person who is authorized to prescribe, administer, or dispense controlled substances, if a report or analysis conducted under this subsection indicates that further investigation about inappropriate or unlawful prescribing or dispensing may be necessary by the board.
   (b) The cabinet shall develop criteria, in collaboration with the Board of Medical Licensure and the Board of Pharmacy, to be used to generate trend reports from the data obtained by the system. Meetings at which the criteria are developed shall be meetings, as defined in KRS 61.805, that comply with the open meetings laws, KRS 61.805 to 61.850.
   (c) The cabinet shall, on a quarterly basis, publish trend reports from the data obtained by the system.
   (d) Peace officers authorized to receive data under KRS 218A.202 may request trend reports not specifically published pursuant to paragraph (c) of this subsection. A report under this paragraph may be based upon the criteria developed under paragraph (b) of this subsection or upon any of the data collected pursuant to subsection (4) of KRS 218A.202, except that the report shall not identify an individual prescriber, dispenser, or patient.
   (e) No trend report generated under this subsection shall identify an individual prescriber,

dispenser, or patient.

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KRS 218A.281 Applicability of definitions in KRS 516.010 to KRS 218A.282 and 218A.284

For purposes of KRS 218A.282 and 218A.284, the definitions found in KRS 516.010 apply.

KRS 218A.282 Forgery of a prescription

(1) A person is guilty of forgery of a prescription when, with intent to defraud, deceive, or injure another, he falsely makes, completes, or alters a written instrument which is or purports to be or which is calculated to become or to represent a prescription for a controlled substance when completed.
(2) Forgery of a prescription is:
  (a) For a first offense, a Class D felony.
  (b) For a second or subsequent offense, a Class C felony.

KRS 218A.284 Criminal possession of a forged prescription

(1) A person is guilty of criminal possession of a forged prescription when, with knowledge that it is forged and with intent to defraud, deceive, or injure another, he utters or possesses a forged prescription for a controlled substance.
(2) Criminal possession of a forged prescription is:
  (a) For a first offense, a Class D felony.
  (b) For a second or subsequent offense, a Class C felony.

KRS 218A.286 Theft, criminal possession, trafficking, or unlawful possession of a prescription or blank

(1) A person is guilty of theft of a prescription blank when he unlawfully takes or exercises control over a prescription blank belonging to another.
(2) A person is guilty of criminal possession of a prescription blank when, with knowledge that he has no lawful authority to possess a prescription blank, he possesses a prescription blank with the intent to utter a forged prescription or sell or transfer the prescription blank to another person for that purpose.
(3) A person is guilty of trafficking in prescription blanks when he knowingly and unlawfully traffics in a prescription blank or a forged prescription for a controlled substance.
(4) The knowing, with intent to violate this chapter, possession of a prescription blank by a person other than a pharmacist, practitioner, or other person authorized by law to prescribe or dispense a controlled substance, a manufacturer, wholesaler, or distributor, or by a person lawfully printing or reproducing prescription blanks, shall be prima facie evidence that the prescription blank was possessed for the purpose of uttering a forged prescription or for sale or transfer to another person for that purpose.
(5) Any person who violates any subsection of this section shall be guilty of a Class D felony for the first offense and a Class C felony for a second or subsequent offense.

KRS 218A.288 Seizure of unlawful prescription

(1) A pharmacist, practitioner, or other person authorized by law to dispense controlled substances, or an employee of that person, may seize and retain any prescription which he has reasonable suspicion for believing is forged, altered, or deceitful in violation of KRS 218A.140, 218A.282, or 218A.284.
(2) Seizure and retention shall be for a reasonable period of time to make reasonable inquiry as to whether the prescription is forged, altered, or deceitful.
(3) If after reasonable inquiry the pharmacist, practitioner, or other person determines that the prescription is forged, altered, or deceitful, he shall report the seizure to a law enforcement officer and shall surrender the prescription to the officer upon the request of the officer.

KRS 218A.350 Prohibited practices concerning substances that simulate controlled substances – Penalties

(1) No person shall sell or transfer any substance, other than a controlled substance, with the representation or upon creation of an impression that the substance which is sold or transferred is a controlled substance.
(2) No person shall possess for sale or transfer any substance designed in any manner, including but not limited to design of the item or its container, markings, or color, to simulate a controlled substance.
(3) No person shall possess for sale or transfer any substance, not covered by subsection (2) of this section which is not a controlled substance with the representation or upon the creation of an impression that the substance held for sale or transfer is a controlled substance.
(4) No person shall manufacture, package, repackage, advertise, or mark any substance, which is not a controlled substance, in such a manner as to resemble a controlled substance, for the purpose of creating the impression that the substance is a controlled substance.
(5) For the purpose of determining whether this section has been violated, the court or other authority shall include in its consideration the following:
  (a) Whether the noncontrolled substance was packaged in a manner normally used for the illegal sale of controlled substances;
  (b) Whether the sale or attempted sale included an exchange of or demand for money or other property as consideration, and whether the amount of the consideration was substantially greater than the reasonable value of the noncontrolled substance.
  (c) Whether the physical appearance of the noncontrolled substance is substantially identical to that of a controlled substance.
(6) In any prosecution brought under this section, it is not a defense to a violation of this section that the defendant believed the noncontrolled substance to actually be a controlled substance.
(7)(a) Any person who violates any of the provisions of this section shall be guilty of a Class A misdemeanor for the first offense and a Class D felony for subsequent offenses.
  (b) In lieu of the fine amounts otherwise allowed under KRS Chapter 534, for any offense under this subsection the court may impose a maximum fine of double the defendant's gain from the commission of the offense, in which case any fine money collected shall be divided between the same parties, in the same ratio, and for the same purposes as established for forfeited property under KRS 218A.420.
  (c) It shall be an affirmative defense to an offense under this subsection that the defendant committed the offense during the course of the defendant's employment as an employee of a retail store and that the defendant did not know and should not have known that the trafficked substance was a synthetic drug.

DRUG PARAPHERNALIA

KRS 218A.500 Definitions for KRS 218A.500 and 218A.510 – Unlawful practices – Penalties

As used in this section and KRS 218A.510:
(1) "**Drug paraphernalia**" means all equipment, products and materials of any kind which are used, intended for use, or designed for use in planting, propagating, cultivating, growing, harvesting, manufacturing, compounding, converting, producing, processing, preparing, testing, analyzing, packaging, repackaging, storing, containing, concealing, injecting, ingesting, inhaling, or otherwise introducing into the human body a controlled substance in violation of this chapter. The term “drug paraphernalia” does not include medicinal cannabis accessories as defined in KRS 218B.010. It includes, but is not limited to:
  (a) Kits used, intended for use, or designed for use in planting, propagating, cultivating, growing, or harvesting of any species of plant which is a controlled substance or from which a controlled substance can be derived;
  (b) Kits used, intended for use, or designed for use in manufacturing, compounding, converting, producing, processing, or preparing controlled substances;
  (c) Isomerization devices used, intended for use, or designed for use in increasing the potency of any species of plant which is a controlled substance;

(d) Testing equipment used, intended for use, or designed for use in identifying, or in analyzing the strength, effectiveness or purity of controlled substances;
(e) Scales and balances used, intended for use, or designed for use in weighing or measuring controlled substances;
(f) Diluents and adulterants, such as quinine hydrochloride, mannitol, mannite, dextrose and lactose, used, intended for use, or designed for use in cutting controlled substances;
(g) Separation gins and sifters used, intended for use, or designed for use in removing twigs and seeds from, or in otherwise cleaning or refining marijuana;
(h) Blenders, bowls, containers, spoons, and mixing devices used, intended for use, or designed for use in compounding controlled substances;
(i) Capsules, balloons, envelopes, and other containers used, intended for use, or designed for use in packaging small quantities of controlled substances;
(j) Containers and other objects used, intended for use, or designed for use in storing or concealing controlled substances;
(k) Hypodermic syringes, needles, and other objects used, intended for use, or designed for use in parenterally injecting controlled substances into the human body;
(l) Objects used, intended for use, or designed for use in ingesting, inhaling, or otherwise introducing marijuana, cocaine, hashish, or hashish oil into the human body, such as: metal, wooden, acrylic, glass, stone, plastic, or ceramic pipes with or without screens, permanent screens, hashish heads, or punctured metal bowls; water pipes; carburetion tubes and devices; smoking and carburetion masks; roach clips which mean objects used to hold burning material, such as marijuana cigarettes, that have become too small or too short to be held in the hand; miniature cocaine spoons, and cocaine vials; chamber pipes; carburetor pipes; electric pipes; air-driven pipes; chillums; bongs; ice pipes or chillers.

(2) It is unlawful for any person to use, or to possess with intent to use, drug paraphernalia for the purpose of planting, propagating, cultivating, growing, harvesting, manufacturing, compounding, converting, producing, processing, preparing, testing, analyzing, packing, repacking, storing, containing, concealing, injecting, ingesting, inhaling, or otherwise introducing into the human body a controlled substance in violation of this chapter.

(3) It is unlawful for any person to deliver, possess with intent to deliver, or manufacture with intent to deliver, drug paraphernalia, knowing, or under circumstances where one reasonably should know, that it will be used to plant, propagate, cultivate, grow, harvest, manufacture, compound, convert, produce, process, prepare, test, analyze, pack, repack, store, contain, conceal, inject, ingest, inhale, or otherwise introduce into the human body a controlled substance in violation of this chapter.

(4) It is unlawful for any person to place in any newspaper, magazine, handbill, or other publication any advertisement, knowing, or under circumstances where one reasonably should know, that the purpose of the advertisement, in whole or in part, is to promote the sale of objects designed or intended for use as drug paraphernalia.

(5) (a) This section shall not prohibit a local health department from operating a substance abuse treatment outreach program which allows participants to exchange hypodermic needles and syringes.
(b) To operate a substance abuse treatment outreach program under this subsection, the local health department shall have the consent, which may be revoked at any time, of the local board of health and:
1. The legislative body of the first or home rule class city in which the program would operate if located in such a city; and
2. The legislative body of the county, urban-county government, or consolidated local government in which the program would operate.
(c) Items exchanged at the program shall not be deemed drug paraphernalia under this section while located at the program.

(6) (a) Prior to searching a person, a person's premises, or a person's vehicle, a peace officer may inquire as to the presence of needles or other sharp objects in the areas to be searched that may cut or puncture the officer and offer to not charge a person with possession of drug paraphernalia if the person declares to the officer the presence of the needle or other sharp object. If, in response to the offer, the person admits to the presence of the needle or other

sharp object prior to the search, the person shall not be charged with or prosecuted for possession of drug paraphernalia for the needle or sharp object or for possession of a controlled substance for residual or trace drug amounts present on the needle or sharp object.

(b) The exemption under this section shall not apply to any other drug paraphernalia that may be present and found during the search or to controlled substances present in other than residual or trace amounts.

(7) Any person who violates any provision of this section shall be guilty of a Class A misdemeanor.

KRS 218A.510 Factors to be considered in determining whether object is drug paraphernalia

In determining whether an object is drug paraphernalia, a court or other authority should consider, in addition to all other logically relevant factors, the following:

(1) Statements by an owner or by anyone in control of the object concerning its use;
(2) Prior convictions, if any, of an owner, or of anyone in control of the object, under any state or federal law relating to any controlled substance;
(3) The proximity of the object, in time and space, to a direct violation of KRS 218A.500 (2), (3) or (4);
(4) The proximity of the object to controlled substances;
(5) The existence of any residue of controlled substances on the object;
(6) Direct or circumstantial evidence of the intent of an owner, or of anyone in control of the object, to deliver it to persons whom he knows, or should reasonably know, intend to use the object to facilitate a violation of KRS 218A.500(2), (3) or (4); the innocence of an owner, or of anyone in control of the object, as to a direct violation of KRS 218A.500(2), (3) or (4) shall not prevent a finding that the object is intended for use, or designed for use as drug paraphernalia;
(7) Instructions, oral or written, provided with the object concerning its use;
(8) Descriptive materials accompanying the object which explain or depict its use;
(9) National and local advertising concerning its use;
(10) The manner in which the object is displayed for sale;
(11) Whether the owner, or anyone in control of the object, is a legitimate supplier of like or related items to the community, such as a licensed distributor or dealer of tobacco products;
(12) Direct or circumstantial evidence of the ratio of sales of the object to the total sales of the business enterprise;
(13) The existence and scope of legitimate uses for the object in the community;
(14) Expert testimony concerning its use.

PENALTIES

KRS 218A.991 Revocation or denial of operator's license

(1) Whenever a person who is seventeen (17) years of age or younger but not less than fourteen (14) years of age is convicted of a violation of any offense in this chapter or is adjudicated delinquent as a result of any act which would be an offense under this chapter, the court may, in addition to any other penalty:
   (a) If the person has a motor vehicle or motorcycle operator's license, recommend the revocation of the license for a period not to exceed one (1) year, if it is the person's first offense;
   (b) If the person has a motor vehicle or motorcycle operator's license, recommend the revocation of the license for two (2) years, if it is a second or subsequent offense so long as the suggested period of revocation does not extend beyond the person's eighteenth birthday; and
   (c) If the person has no motor vehicle or motorcycle operator's license, in the event of a first offense, recommend that no such license shall be issued to such person for the period described in paragraph (a) of this subsection and in the event of a second or subsequent offense, recommend that no license shall be issued to such person for the period described in paragraph (b) of this subsection.

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(5) Revocations of operator's licenses and denials of licenses pursuant to this section shall be in addition to any other suspension, revocation, or denial of motor vehicle or motorcycle operator's licenses authorized by law.

KRS 218A.992 Enhancement of penalty when in possession of a firearm at the time of commission of offense

(1) Other provisions of law notwithstanding, any person who is convicted of any violation of this chapter who was at the time of the commission of the offense in possession of a firearm, shall:
   (a) Be penalized one (1) class more severely than provided in the penalty provision pertaining to that offense if it is a felony; or
   (b) Be penalized as a Class D felon if the offense would otherwise be a misdemeanor.
(2) The provisions of this section shall not apply to a violation of KRS 218A.210, KRS 218A.1450, KRS 218A.1451, or KRS 218A.1452.

KRS 218A.993 Penalty for chapter provisions without a specific penalty

Any person who violates any provision of this chapter for which a specific penalty is not otherwise provided shall be guilty of a Class B misdemeanor.

KRS 218A.994 Applicability of penalties in KRS Chapter 506 to this chapter

Unless this chapter provides a specific penalty for the same act, the provisions of KRS Chapter 506 shall apply to offenses under this chapter.

KRS CHAPTER 222
KENTUCKY ALCOHOL AND OTHER DRUG ABUSE PREVENTION, INTERVENTION, AND TREATMENT LAW
(Selected Sections)

KRS 222.201 Definition

As used in KRS 222.202 to 222.204, 222.990(3) to (5), "**public place**" shall have the same meaning as it does in KRS 525.010, provided that for violations of KRS 222.202(2) the definition shall not include any public place where a license under KRS Chapter 243 to sell distilled spirits, wine or beer by the drink has been obtained.

KRS 222.202 Offenses of alcohol intoxication or drinking alcoholic beverages in a public place

1 **Penalty:** KRS 222.990(3) 2 **Penalty:** KRS 222.990(4)

(1) A person is guilty of alcohol intoxication when he appears in a public place manifestly under the influence of alcohol to the degree that he may endanger himself or other persons or property, or unreasonably annoy persons in his vicinity.
(2) A person is guilty of drinking alcoholic beverages in a public place when he drinks an alcoholic beverage in a public place, or in or upon any passenger coach, or other vehicle commonly used for the transportation of passengers, or in or about any depot, platform, or waiting room.

KRS 222.203 Arrest – Citation – Jail – Bail – Pretrial release

(1) A peace officer may make an arrest for a violation of KRS 222.202.
(2) Any peace officer who arrests a person for violation of KRS 222.202 shall take him to jail. A peace officer may issue a citation and may take the person to a facility authorized by county or city ordinance agreeing to care for the person. If the person is jailed, at the jail it shall be determined if the person has committed a previous offense under KRS 222.202.
(3) A citation shall be issued to such person showing thereon the date of such person's appearance in court and whether the offense is prepayable or not.
(4) Unless it has been determined that the defendant has had two (2) prior convictions for violation of KRS 222.202 within the previous twelve (12) months, the citation shall be marked as prepayable.

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KRS 222.990 Penalties

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(3) A person guilty of alcohol intoxication, or drinking alcoholic beverages in a public place shall, for a first or second offense be fined not less than twenty-five dollars ($25).
(4) A person guilty of alcohol intoxication, or drinking alcoholic beverages in a public place, shall for a third or subsequent offense within a twelve (12) month period be fined not less than twenty-five dollars ($25) nor more than one hundred dollars ($100), or be imprisoned in the county jail for not less than five (5) nor more than ninety (90) days, or both. Subsequent offenses not within the twelve (12) month proscription of this section shall be dealt with under subsection (3) of this section.
(5) In addition to any other penalty prescribed by law for violation of subsections (1) and (2) of KRS 222.202, the court may sentence the person to an alcohol or substance abuse treatment or education program subject to the following terms and conditions for a third or subsequent offender:
    (a) The sentence shall be for a period of up to six (6) months and the program shall provide an assessment to the court of the defendant's alcohol or other substance abuse problems.
    (b) Each defendant shall pay the cost of the treatment or education program up to his ability to pay but no more than the actual cost of the treatment.
    (c) A defendant may upon written recommendation to the court by the administrator of the program, be released by the court prior to the expiration of the six (6) month period.

(d) Failure to complete the treatment program or to pay the amount specified by the treatment program shall constitute contempt of court and the court may, in addition to any other remedy for contempt, reinstitute all penalties which were previously imposed but suspended or delayed pending the completion of treatment or education program.

KRS CHAPTER 235
BOATS AND BOATING
(Selected Sections)

KRS 235.240 Prohibition of operation of boat negligently or while intoxicated or drugged – Consent to test for alcohol or drugs – Elements of operation under influence of alcohol or other substance

Penalty: KRS 235.990(2)

* * * * *

(2) A person shall not operate any motorboat or vessel, or manipulate any water skis, surfboard, or similar device while intoxicated or under the influence of any other substance which impairs one's driving ability.

(3) Any person who operates a vessel upon the waters of the Commonwealth shall be deemed to have given consent to a test or tests as accepted by the state's evidentiary mandate for the purpose of determining the operator's alcohol concentration or the presence of other drugs. The test or tests shall be administered at the direction of a law enforcement officer who has probable cause to believe that the operator may have been violating this section.

(4) For the purposes of enforcing subsection (2) of this section, the elements of the offense are those established in KRS 189A.010 (1) to (4), except that the penalties for this offense are set forth in KRS 235.990.

KRS 235.990 Penalties

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(2) Any person who violates KRS 235.240 shall not be subject to the penalties of KRS Chapter 189A but shall be guilty of a separate offense and subject to a fine of two hundred dollars ($200) to two hundred fifty dollars ($250) or imprisonment for twenty-four (24) hours for the first offense, a fine of three hundred fifty dollars ($350) to five hundred dollars ($500) or imprisonment for forty-eight (48) hours for the second offense, and a fine of six hundred dollars ($600) to one thousand dollars ($1,000) or imprisonment in the county jail for not less than thirty (30) days, or both, for the third or subsequent offense. Refusal to submit to a breath alcohol analysis or similar test in violation of KRS 235.240(3) shall be deemed an offense.

(3) A person may, in addition or in lieu of the penalties specified in subsection (1) or (5) of this section and in addition to the penalties of subsection (2) of this section, be required to take a safe-boating course approved by the department or offered by the United States Coast Guard, Coast Guard Auxiliary, or United States Power Squadron and to present the court a certificate documenting successful completion of the course.

* * * * *

KRS 235.9995 Prepayment of fines subject to certain conditions

(1) All offenses classified as violations under this chapter shall be prepayable except for:
   (a) Violations of KRS 235.240 and 235.285;
   (b) An offense where evidence of the commission of the offense or another offense was seized and the citation is so marked and a court date set;
   (c) The offense is cited with another offense that is not prepayable and the citation is so marked and a court date set; or
   (d) An arrest is made under KRS 431.015.

(2) In the event that a prepayable offense is cited with another offense that is not prepayable, a court appearance shall be required on all of the offenses as required by KRS 431.452.

KRS CHAPTER 237
FIREARMS AND DESTRUCTIVE DEVICES
(Selected Sections)

KRS 237.030 Definitions for KRS 237.040 and 237.050

(1) "**Destructive device**" means any explosive, incendiary, or poison gas bomb, grenade, mine, rocket, missile, or similar device and includes the unassembled components from which such a device can be made.
(2) "**Booby trap device**" includes any device, or substance designed to surreptitiously or covertly take life, endanger life or destroy or damage property and shall not include firearms.

KRS 237.040 Criminal possession of destructive device or booby trap device

Penalty KRS 237.990

A person is guilty of criminal possession of a destructive device or a booby trap device when he possesses, manufactures, or transports such substance or device with:
(1) Intent to use that device to commit an offense against the laws of this state, a political subdivision thereof, or of the United States; or
(2) Knowledge that some other person intends to use that device to commit an offense against the laws of this state, a political subdivision thereof, or of the United States.
(3) Mere possession without substantial evidence of the requisite intent is insufficient to bring action under KRS 237.030 to 237.050.

KRS 237.050 Exemptions

KRS 237.030 to 237.050 shall not apply to:
(1) Destructive devices or booby trap devices which are possessed by the government of the United States, this state, or a political subdivision thereof;
(2) Any device which is lawfully possessed under the **Gun Control Act of 1968**, the **Organized Crime Control Act of 1971**, or any other law of the United States or this state, unless a crime is committed therewith;

EDITOR'S NOTES:

- ***Gun Control Act of 1968: codified as 18 U.S.C. (United States Code) §§ 921 to 928; and 26 U.S.C. §§ 5801, 5802, 5811, 5812, 5821, 5822, 5841 to 5849, 5851 to 5854, 5861, 5871, 5872, 6806, 7273.***
- ***Organized Crime Control Act of 1971: codified as 18 U.S.C. § 1961.***

(3) Nonlethal devices placed on the premises of the owner or the lawful occupant thereof for his own self-protection or the protection of the said property;
(4) The setting of traps suitable and legal for the taking of game by persons licensed or permitted to do so by the game laws of the Commonwealth;
(5) Inert devices which cannot readily be restored to operating condition; or
(6) The acquisition, possession, use, or control of firearms.

KRS 237.060 Definitions for KRS 237.060 to 237.090 and certain other sections

The following definitions apply in KRS 237.060 to 237.090 and KRS 197.170, 218A.992, 244.125, 244.990, and 514.110, unless the context otherwise requires:
(1) "**Handgun**" means any pistol or revolver originally designed to be fired by the use of a single hand, or any other firearm originally designed to be fired by the use of a single hand.
(2) "**Firearm**" means any weapon which will expel a projectile by the action of an explosive.
(3) "**Licensed gun dealer**" means a person who has a federal firearms license and any business license required by a state or local government entity.
(4) "**Loaded**" with respect to a firearm means:
  (a) There is ammunition in the chamber of the firearm; or
  (b) There is ammunition in the cylinder of the firearm; or
  (c) There is ammunition in the magazine of a firearm, if the magazine is attached to the firearm.

(5) "**Juvenile**" means a person who has not attained his eighteenth birthday.
(6) "**Ammunition**" means loaded ammunition designed for use in any firearm.
(7) "**Armor-piercing ammunition**" means a projectile or projectile core which may be used in a handgun and which is constructed entirely (excluding the presence of traces of other substances) from one (1) or a combination of tungsten alloys, steel, iron, brass, bronze, beryllium copper, or depleted uranium. "Armor piercing ammunition" does not include shotgun shot required by federal or state environmental or game regulations for hunting purposes, a frangible projectile designed for target shooting, a projectile which the Secretary of the Treasury of the United States finds is primarily intended to be used for sporting purposes, or any other projectile or projectile core which the Secretary of the Treasury of the United States finds is intended to be used for industrial purposes, including a charge used in an oil and gas well perforating device.
(8) "**Flanged ammunition**" means ammunition with a soft lead core and having sharp flanges which are designed to expand on impact.

KRS 237.070 Prohibition against sale or transfer of firearm to convicted felon

(1) No person shall knowingly sell or transfer a firearm to any person prohibited from possessing it by KRS 527.040 ***[Possession of firearm by convicted felon]***.
(2) Any person who violates the provisions of subsection (1) of this section is guilty of a Class A misdemeanor.
(3) Any firearm transferred in violation of this section shall be subject to forfeiture and shall be disposed of pursuant to KRS 237.090.

KRS 237.080 Prohibition against manufacture, sale, delivery, transfer, or importation of armor piercing ammunition – Exceptions

(1) It shall be unlawful for any person to knowingly manufacture, sell, deliver, transfer, or import armor-piercing ammunition.
(2) Subsection (1) of this section shall not apply to members of the Armed Forces of the United States or law enforcement officers within the scope of their duties, nor shall it prohibit licensed gun dealers from possessing armor-piercing ammunition for the purpose of receiving and transferring it to members of the Armed Forces of the United States, or law enforcement officers for use within the scope of their duties.
(3) A violation of subsection (1) of this section shall be a Class D felony for the first offense and a Class C felony for each subsequent offense.
(4) Any armor-piercing ammunition transferred, sold, or offered for sale, in violation of this section is contraband and shall be seized and summarily forfeited to the state and shall be disposed of pursuant to KRS 237.090.

KRS 237.090 Disposition of forfeited firearm or ammunition

Any firearm or ammunition forfeited pursuant to KRS 237.060 to 237.090 shall, upon order of a court of competent jurisdiction, be disposed of or retained as provided in KRS 500.090.

KRS 237.095 Persons barred by federal law from purchase of firearms – Duty to notify courts and law enforcement agencies of purchase or attempt to purchase – Protocol for providing notice – Duty to notify petitioner – Immunity from liability

(1) Upon receiving notice that a person barred from purchasing a firearm under 18 U.S.C. sec. 922(g)(8) has purchased or attempted to purchase a firearm, any agency with the responsibility of entering domestic violence records into the Law Information Network of Kentucky shall notify:
   (a) The court in the jurisdiction where the domestic violence order was issued under KRS 403.750; and
   (b) The law enforcement agencies, as designated by the Kentucky State Police, that have jurisdiction in the county where the domestic violence order was issued and in the county of the victim's residence if different from the county where the domestic violence order was issued.

* * * * *

(3) When a designated law enforcement agency for the county where the domestic violence order was issued or where the victim resides receives notice under subsection (1)(b) of this section, that agency shall make reasonable efforts to ensure that the petitioner who obtained the domestic violence order is notified that the respondent has purchased or attempted to purchase a firearm.
(4) Any person carrying out responsibilities under this section shall be immune from civil liability for good faith conduct in carrying out those responsibilities.
(5) This section shall apply only to domestic violence orders issued, or reissued, on or after July 14, 2000.

KRS 237.105 Prohibition of cooperation in enforcement of federal ban on firearms, ammunition, or accessories – Use of public funds and resources – Penalties – Interpretation

(1) As used in this section:
(a) "Ammunition" has the same meaning as KRS 237.060;
(b) "Federal ban" means a federal law, executive order, rule, or regulation that is enacted, adopted, or becomes effective on or after January 1, 2021, or a new and more restrictive interpretation of a law that existed on January 21, 2021, that infringes upon, calls into question, prohibits, restricts, or requires individual licensure for or registration of the purchase, ownership, possession, transfer, or use of any firearm, ammunition, or firearm accessory;
(c) "Firearm" has the same meaning as KRS 237.060;
(d) "Firearm accessory" means an item that is used in conjunction with or mounted on a firearm but is not essential to the basic function of the firearm, including but not limited to a detachable magazine;
(e) "Law enforcement agency" means:
1. Any public agency that employs a law enforcement officer;
2. Any public agency that is composed of or employs other public peace officers; and
3. A campus security authority as defined in KRS 164.948 of a public institution operating under KRS Chapter 164;
(f) "Law enforcement officer" means any "peace officer" as defined in KRS 446.010 and any "correctional officer" as defined in 441.045(15)(e);
(g) "Local government" means any city, county, charter county, urban-county, consolidated local, or unified local government; and
(h) "Public agency" has the same meaning as KRS 61.870, including a policy making board, or any officer, employee, or entity of a public institution operating under KRS Chapter 164.
(2) No law enforcement agency, law enforcement officer, employee of a law enforcement agency, public agency, public official, employee of a public agency, or employee of a local government shall enforce, assist in the enforcement of, or otherwise cooperate in the enforcement of a federal ban on firearms, ammunition, or firearm accessories, and shall not participate in any federal enforcement action implementing a federal ban on firearms, ammunition, or firearm accessories.
(3) No law enforcement agency, local government, or public agency shall adopt a rule, order, ordinance, or policy under which the entity enforces, assists in the enforcement of, or otherwise cooperates in a federal ban on firearms, ammunition, or firearm accessory.
(4) No local government, employee of a local government, public official, public agency, or employee of a public agency shall expend public funds or allocate resources for the enforcement of a federal ban on firearms, ammunition, or firearm accessories.
(5) A person commits an offense under this section when, while acting in his or her official capacity under color of law, he or she knowingly violates this section. An offense under this section is a Class B misdemeanor for the first offense and a Class A misdemeanor for each subsequent offense.
(6) A person who knowingly commits an offense under this section shall be subject to termination from employment to the extent allowable under state law.
(7) Nothing in this section may be interpreted to prohibit or otherwise limit a law enforcement agency, law enforcement officer, employee of a law enforcement agency, public agency, public official,

employee of a public agency, or employee of a local government from cooperating, communicating, or collaborating with a federal agency if the primary purpose is not:
(a) Law enforcement activity related to a federal ban on firearm, ammunition, or firearm accessories; or
(b) The investigation of a violation of a federal ban on firearm, ammunition, or firearm accessories.
(8) This section shall be retroactive to January 1, 2021.

KRS 237.106 Right of employees and other persons to possess firearms in vehicle – Employer liable for denying right - Exceptions

(1) No person, including but not limited to an employer, who is the owner, lessee, or occupant of real property shall prohibit any person who is legally entitled to possess a firearm from possessing a firearm, part of a firearm, ammunition, or ammunition component in a vehicle on the property.
(2) A person, including but not limited to an employer, who owns, leases, or otherwise occupies real property may prevent a person who is prohibited by state or federal law from possessing a firearm or ammunition from possessing a firearm or ammunition on the property.
(3) A firearm may be removed from the vehicle or handled in the case of self-defense, defense of another, defense of property, or as authorized by the owner, lessee, or occupant of the property.
(4) An employer that fires, disciplines, demotes, or otherwise punishes an employee who is lawfully exercising a right guaranteed by this section, and who is engaging in conduct in compliance with this statute shall be liable in civil damages. An employee may seek and the court shall grant an injunction against an employer who is violating the provisions of this section when it is found that the employee is in compliance with the provisions of this section.
(5) The provisions of this section shall not apply to any real property:
(a) Owned, leased, or occupied by the United States government upon which the possession or carrying of firearms is prohibited or controlled;
(b) Of a detention facility as defined in KRS 520.010; or
(c) Where a section of the Kentucky Revised Statutes specifically prohibits possession or carrying of firearms on the property.

KRS 237.109 Authorization to carry concealed deadly weapons without a license

(1) Persons age twenty-one (21) or older, and otherwise able to lawfully possess a firearm, may carry concealed firearms or other concealed deadly weapons without a license in the same locations as persons with valid licenses issued under KRS 237.110.
(2) Nothing in this section shall be construed to allow the carrying or possession of any deadly weapon where it is prohibited by federal law.

KRS 237.110 License to carry concealed deadly weapon -- Criteria -- Training – Paper or electronic application –Issuance and denial of licenses – Automated listing of license holders - Suspension or revocation -- Renewal -- Prohibitions -- Reciprocity -- Reports – Requirements for training classes.

(1) The Department of State Police is authorized to issue and renew licenses to carry concealed firearms or other deadly weapons, or a combination thereof, to persons qualified as provided in this section.
(2) An original or renewal license issued pursuant to this section shall:
(a) Be valid throughout the Commonwealth and, except as provided in this section or other specific section of the Kentucky Revised Statutes or federal law, permit the holder of the license to carry firearms, ammunition, or other deadly weapons, or a combination thereof, at any location in the Commonwealth.
(b) Unless revoked or suspended as provided by law, be valid for a period of five (5) years from the date of issuance;
(c) Authorize the holder of the license to carry a concealed firearm or other deadly weapon, or a combination thereof, on or about his or her person; and

(d) Authorize the holder of the license to carry ammunition for a firearm on or about his or her person.

* * * * *

(10)The Department of Kentucky State Police shall maintain an automated listing of license holders and pertinent information, and this information shall be available upon request, at all times to all Kentucky, federal, and other states' law enforcement agencies. A request for the entire list of licensees, or for all licensees in a geographic area, shall be denied. Only requests relating to a named licensee shall be honored or available to law enforcement agencies. Information on applications for licenses, names and addresses, or other identifying information relating to license holders shall be confidential and shall not be made available except to law enforcement agencies. No request for lists of local or statewide permit holders shall be made to any state or local law enforcement agency, peace officer, or other agency of government other than the Department of State Police, and no state or local law enforcement agency, peace officer, or agency of government, other than the Department of Kentucky State Police, shall provide any information to any requester not entitled to it by law.

(11)Within thirty (30) days after the changing of a permanent address, or within thirty (30) days after the loss, theft, or destruction of a license, the licensee shall notify the Department of Kentucky State Police of the loss, theft, or destruction. Failure to notify the Department of Kentucky State Police shall constitute a noncriminal violation with a penalty of twenty-five dollars ($25) payable to the clerk of the District Court. No court costs shall be assessed for a violation of this subsection. , . . .

(12)If a license is lost, stolen, or destroyed, the license shall be automatically invalid, and the person to whom the same was issued may , , , obtain a duplicate, upon furnishing a notarized statement to the Department of State Police that the license has been lost, stolen, or destroyed.

(13)(a) The commissioner of the Department of Kentucky State Police, or his designee in writing, shall revoke the license of any person who becomes permanently ineligible to be issued a license or have a license renewed under the criteria set forth in this section.

(b) The commissioner of the Department of Kentucky State Police, or his designee in writing, shall suspend the license of any person who becomes temporarily ineligible to be issued a license or have a license renewed under the criteria set forth in this section. The license shall remain suspended until the person is again eligible for the issuance or renewal of a license.

(c) Upon the suspension or revocation of a license, the commissioner of the Department of Kentucky State Police, or his designee in writing, shall:

1. Order any peace officer to seize the license from the person whose license was suspended or revoked; or
2. Direct the person whose license was suspended or revoked to surrender the license to the sheriff of the person's county of residence within two (2) business days of the receipt of the notice.

* * * * *

(h) If the license is not surrendered as ordered, the commissioner of the Department of Kentucky State Police shall order a peace officer to seize the license and deliver it to the commissioner.

(i) Failure to surrender a suspended or revoked license as ordered is a Class A misdemeanor.

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(k) When a domestic violence order or emergency protective order is issued pursuant to the provisions of KRS Chapter 403 against a person holding a license issued under this section, the holder of the permit shall surrender the license to the court or to the officer serving the order. The officer to whom the license is surrendered shall forthwith transmit the license to the court issuing the order. The license shall be suspended until the order is terminated, or until the judge who issued the order terminates the suspension prior to the termination of the underlying domestic violence order or emergency protective order, in writing and by return of the license, upon proper motion by the license holder. Subject to the same conditions as above, a peace officer against whom an emergency protective order or domestic violence order has been issued shall not be permitted to carry a concealed deadly weapon when not on duty, the provisions of KRS 527.020 to the contrary notwithstanding.

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(15)The licensee shall carry the license at all times the licensee is carrying a concealed firearm or

other deadly weapon and shall display the license upon request of a law enforcement officer. Violation of the provisions of this subsection shall constitute a noncriminal violation with a penalty of twenty-five dollars ($25), payable to the clerk of the District Court, but no court costs shall be assessed.

(16) Except as provided in KRS 527.020, no license issued pursuant to this section shall authorize any person to carry a concealed firearm into:
- (a) Any police station or sheriff's office;
- (b) Any detention facility, prison, or jail;
- (c) Any courthouse, solely occupied by the Court of Justice courtroom, or court proceeding;
- (d) Any meeting of the governing body of a county, municipality, or special district; or any meeting of the General Assembly or a committee of the General Assembly, except that nothing in this section shall preclude a member of the body, holding a concealed deadly weapon license, from carrying a concealed deadly weapon at a meeting of the body of which he is a member;
- (e) Any portion of an establishment licensed to dispense beer or alcoholic beverages for consumption on the premises, which portion of the establishment is primarily devoted to that purpose;
- (f) Any elementary or secondary school facility without the consent of school authorities as provided in KRS 527.070, any child-caring facility as defined in KRS 199.011, any day-care center as defined in KRS 199.894, or any certified family child-care home as defined in KRS 199.8982, except however, any owner of a certified child-care home may carry a concealed firearm into the owner's residence used as a certified child-care home;
- (g) An area of an airport to which access is controlled by the inspection of persons and property; or
- (h) Any place where the carrying of firearms is prohibited by federal law.

(17) The owner, business or commercial lessee, or manager of a private business enterprise, day-care center as defined in KRS 199.894 or certified or licensed family child-care home as defined in KRS 199.8982, or a health-care facility licensed under KRS Chapter 216B, except facilities renting or leasing housing, may prohibit persons holding concealed deadly weapon licenses from carrying concealed deadly weapons on the premises and may prohibit employees, not authorized by the employer, holding concealed deadly weapons licenses from carrying concealed deadly weapons on the property of the employer. If the building or the premises are open to the public, the employer or business enterprise shall post signs on or about the premises if carrying concealed weapons is prohibited. Possession of weapons, or ammunition, or both in a vehicle on the premises shall not be a criminal offense so long as the weapons, or ammunition, or both are not removed from the vehicle or brandished while the vehicle is on the premises. A private but not a public employer may prohibit employees or other persons holding a concealed deadly weapons license from carrying concealed deadly weapons, or ammunition, or both in vehicles owned by the employer, but may not prohibit employees or other persons holding a concealed deadly weapons license from carrying concealed deadly weapons, or ammunition, or both in vehicles owned by the employee, except that the Justice and Public Safety Cabinet may prohibit an employee from carrying any weapons, or ammunition, or both other than the weapons, or ammunition, or both issued or authorized to be used by the employee of the cabinet, in a vehicle while transporting persons under the employee's supervision or jurisdiction. Carrying of a concealed weapon, or ammunition, or both in a location specified in this subsection by a license holder shall not be a criminal act but may subject the person to denial from the premises or removal from the premises, and, if an employee of an employer, disciplinary measures by the employer.

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(20)(a) A person who is not a resident of Kentucky and who has a valid license issued by another state of the United States to carry a concealed deadly weapon in that state may, subject to provisions of Kentucky law, carry a concealed deadly weapon in Kentucky, and his license shall be considered as valid in Kentucky.

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KRS 237.115 Construction of KRS 237.110 – Prohibition by local government units of carrying concealed deadly weapons in governmental buildings – Restriction on criminal penalties

(1) Except as provided in KRS 527.020, nothing contained in KRS 237.110 or KRS 237.109 shall be construed to limit, restrict, or prohibit in any manner the right of a college, university, or any postsecondary education facility, including technical schools and community colleges, to control the possession of deadly weapons on any property owned or controlled by them or the right of any unit of state, city, county, urban-county, or charter county government to prohibit the carrying of concealed deadly weapons in that portion of a building actually owned, leased, or occupied by that unit of government.
(2) The legislative body of a state, city, county, or urban-county government may, by statute, administrative regulation, or ordinance, prohibit or limit the carrying of concealed deadly weapons in that portion of a building owned, leased, or controlled by that unit of government. That portion of a building in which the carrying of concealed deadly weapons is prohibited or limited shall be clearly identified by signs posted at the entrance to the restricted area. The statute or ordinance shall exempt any building used for public housing by private persons, highway rest areas, firing ranges, and private dwellings owned, leased, or controlled by that unit of government from any restriction on the carrying or possession of deadly weapons. The statute, administrative regulation, or ordinance shall not specify any criminal penalty for its violation but may specify that persons violating the statute or ordinance may be denied entrance to the building, ordered to leave the building, and if employees of the unit of government, be subject to employee disciplinary measures for violation of the provisions of the statute or ordinance. The provisions of this section shall not be deemed to be a violation of KRS 65.870 if the requirements of this section are followed. The provisions of this section shall not apply to any other unit of government.
(3) Unless otherwise specifically provided by the Kentucky Revised Statutes or applicable federal law, no criminal penalty shall attach to carrying a concealed firearm or other deadly weapon with a permit at any location at which an unconcealed firearm or other deadly weapon may be constitutionally carried.

KRS 237.137 Concealed carry authority for off-duty and certified retired peace officers

(1) Off-duty peace officers authorized to do so by the government employing the officer and retired peace officers certified under KRS 237.138 to 237.142 may carry concealed firearms on or about their persons at all times and at any location within the Commonwealth where an on-duty peace officer is permitted to carry firearms.
(2) (a) Any person who prevents or attempts to prevent an individual authorized under subsection (1) of this section from carrying a concealed firearm shall be guilty of a violation subject to a fine of:
1. Five hundred dollars ($500) for a first offense;
2. One thousand dollars ($1,000) for a second offense; and
3. Two thousand five hundred dollars ($2,500) for a third or any subsequent offense.
(b) A citation for the violation may be issued to an individual or an establishment where the violation occurs.

KRS 237.990 Penalties

(1) Any person who violates any of the provisions of KRS 237.030 to 237.050 shall be guilty of a Class D felony.
(2) Any person who violates any of the provisions of KRS 237.030 to 237.050, and in so doing uses any destructive device or booby trap device to avoid detection by law enforcement or other government personnel or to avoid theft or detection by any other person, of any controlled substance as set forth in KRS Chapter 218A and held in violation of KRS 218A.140, shall be guilty of a Class C felony.

KRS CHAPTER 244
ALCOHOLIC BEVERAGES;
PROHIBITIONS, RESTRICTIONS, AND REGULATIONS
(Selected Sections)

ALCOHOLIC BEVERAGES GENERALLY

KRS 244.080 Retail sales to certain persons prohibited – Affirmative defense in prosecution for selling to a minor

Penalty: KRS 244.990(1)

A retail licensee, or the licensee's agent, servant, or employee shall not sell, give away, or deliver any alcoholic beverages, or procure or permit any alcoholic beverages to be sold, given away, possessed by, or delivered to:

(1) A minor, except that in any prosecution for selling alcoholic beverages to a minor it shall be an affirmative defense that the sale was induced by the use of false, fraudulent, or altered identification papers or other documents and that the appearance and character of the purchaser were such that his or her age could not have been ascertained by any other means and that the purchaser's appearance and character indicated strongly that he or she was of legal age to purchase alcoholic beverages. This evidence may be introduced either in mitigation of the charge or as a defense to the charge itself.
(2) A person actually or apparently under the influence of alcoholic beverages.
(3) Anyone known to the seller or server to be an habitual drunkard or any person known to the seller or server to have been convicted of drunkenness as many as three (3) times within the most recent twelve (12) month period.
(4) Anyone known to the seller or server to have been convicted of any misdemeanor attributable directly or indirectly to the use of alcoholic beverages or anyone known to the seller or server to have been convicted of a felony.

KRS 244.085 Minors not to possess or purchase liquor nor to misrepresent age – Use of fraudulent identification – Prohibition against minors remaining on premises where alcoholic beverages sold

Penalty: KRS 244.990(4) 5 **Penalty:** KRS 244.990(5)

(1) As used in KRS 244.083 and this section: "**Premises**" has the meaning it is given in KRS 241.010 and also means the place of business of a person licensed to sell alcoholic beverages including, in the case of drive-in establishments, the entire lot upon which the business establishment is situated.
(2) A person under 21 years of age shall not enter any premises licensed for the sale of alcoholic beverages for the purpose of purchasing or receiving any alcoholic beverages.
(3) A person under 21 years of age shall not possess for his or her own use or purchase or attempt to purchase or have another purchase for him or her any alcoholic beverages. No person shall aid or assist any person under 21 years of age in purchasing or having delivered or served to him or her any alcoholic beverages.
(4) A person under 21 years of age shall not misrepresent his or her age for the purpose of inducing any licensee, or the licensee's agent, servant, or employee, to sell or serve any alcoholic beverages to the underage person.
(5) A person under 21 years of age shall not use, or attempt to use any false, fraudulent, or altered identification card, paper, or any other document to purchase or attempt to purchase or otherwise obtain any alcoholic beverage.
(6) Except as provided in KRS 244.087 and 244.090, a licensee, or his or her agents, servants, or employees shall not permit any person under twenty-one (21) years of age to remain on any premises where alcoholic beverages are sold by the drink or consumed on the premises, unless:
    (a) The usual and customary business of the establishment is a hotel, motel, restaurant, convention center, convention hotel complex, racetrack, simulcast facility, golf course, private club, park, fair, church, school, athletic complex, athletic arena, theater, small farm winery,

distillery or brewery or winery tour, convenience store, grocery store, drug store, or similar establishment;

(b) All alcoholic beverage inventory is kept in a separate, locked department at all times when minors are on the premises; or

(c) Written approval has been granted by the department to allow minors on the premises until 10 p.m. where the sale of alcohol is incidental to a specific family or community event including, but not limited to, weddings, reunions, or festivals. The licensee's request shall be in writing and shall specifically describe the event for which approval is requested. The state administrator shall approve or deny the request in writing; or

(d) The usual and customary business of the establishment is an entertainment facility where prebooked concerts are held. For the purpose of this paragraph, house bands, disc jockeys, and karaoke are not considered concerts. During the times minors are on the premises under this paragraph, the licensee shall:

1. Maintain the responsibility of all ticket sales;
2. Sell the concert tickets directly to the patron or have a contractual agreement with a vendor or promoter to sell the concert tickets for the licensee;
3. Maintain records of all gross concert ticket sales. The concert tickets shall have the name of a band or performer as well as the date of the concert;
4. Permit minors to be in the area where the concert is taking place only during the time of the concert; and
5. Prohibit minors on the premises until thirty (30) minutes prior to the concert and prohibit minors from remaining on the premises more than thirty (30) minutes after the concert performance has ended.

(7) Except as provided in subsection (6) of this section, a licensee or the licensee's agent, servant, or employee shall not allow any person under the age of twenty-one (21) to remain on any premises that sells alcoholic beverages by the package unless the underage person is accompanied by a parent or guardian or the usual and customary business of the establishment is a convenience store, grocery store, drugstore, or similar establishment.

(8) Except as provided in subsection (6) of this section, a person under the age of twenty-one (21) shall not remain on any premises that sells alcoholic beverages by the package unless he or she is accompanied by a parent or guardian or the usual and customary business of the establishment is a convenience store, grocery store, drugstore, or similar establishment.

(9) A violation of subsections (2), (3), (4), (5) or (8) of this section shall be deemed a status offense if committed by a person under the age of eighteen (18) years and shall be under the jurisdiction of the juvenile session of the District Court or the family division of the Circuit Court, as appropriate.

KRS 244.125 Prohibition against possession of loaded firearm in room where alcoholic beverages are being sold by the drink

Penalty: KRS 244.990(6)

(1) Except as provided in subsection (3) of this section, no person shall be in possession of a loaded, as defined in KRS 237.060, firearm while actually within the room where alcoholic beverages are being sold by the drink of a building on premises licensed to sell distilled spirits and wine at retail by the drink for consumption on the licensed premises pursuant to KRS Chapter 243.

(2) This section shall not apply to the owner manager, or employee of licensed premises, law enforcement officers, or special local peace officers commissioned pursuant to KRS 61.360.

(3) This section shall not apply to a bona fide restaurant open to the general public having dining facilities for not less than fifty (50) persons and which receives less than fifty percent (50%) of its gross annual food and beverage income from the dining facilities by the sale of alcohol.

(4) Nothing in this section shall be construed as permitting the carrying of a concealed deadly weapon in violation of KRS 527.020.

(5) Any firearm possessed in violation of this section shall be subject to forfeiture and shall be disposed of pursuant to KRS 237.090.

KRS 244.990 Penalties

(1) Any person who, by himself or herself or acting through another, directly or indirectly, violates any of the provisions of this chapter for which no other penalty is provided shall, for the first offense, be guilty of a Class B misdemeanor; and for the second and each subsequent violation, he or she shall be guilty of a Class A misdemeanor. The penalties provided for in this subsection shall be in addition to the revocation of the offender's license. If the offender is a corporation, joint stock company, association, or fiduciary, the principal officer or officers responsible for the violation may be imprisoned.
(2) Any person who violates KRS 244.170 shall, upon the first conviction, be guilty of a Class A misdemeanor. Upon a second conviction he or she shall be guilty of a Class D felony. Upon the third and each subsequent conviction, he or she shall be guilty of a Class C felony.
(3) Any person who violates any of the provisions of KRS 244.480 to 244.600 shall be guilty of a violation.
(4) Except as provided in subsection (7) or this section, any person, firm, or corporation violating any provision of KRS 244.083 and 244.085 shall be guilty of a violation and each violation shall constitute a separate offense.
(5) Except as provided in subsection (7) or this section, any person who violates the provisions of subsection (5) of KRS 244.085 shall, for the first offense, be guilty of a violation, and for each subsequent offense shall be guilty of a Class A misdemeanor.
(6) Any person who violates KRS 244.125 shall be guilty of a Class A misdemeanor for the first offense and a Class D felony for each subsequent offense.
(7) For any person under the age of eighteen (18) years, a violation of KRS 244.085(2), (3), (4), (5) or (8) shall be deemed a status offense and shall be under the jurisdiction of the juvenile session of the District Court or the family division of the Circuit Court, as appropriate.

KRS CHAPTER 433
OFFENSES AGAINST PROPERTY BY FORCE
(Selected Sections)

KRS 433.234 Shoplifting

(1) Willful concealment of unpurchased merchandise of any store or other mercantile establishment on the premises of such store shall be prima facie evidence of an intent to deprive the owner of his property without paying the purchase price therefor.
(2) All city and county law enforcement agencies shall cause to be made a photograph, a set of fingerprints and a general descriptive report of all persons except juveniles arrested for theft through an act of shoplifting. If convicted, two (2) copies of each item shall be forwarded within thirty (30) days to the Department of State Police of the Justice Cabinet.

KRS 433.236 Detention and arrest of shoplifting suspect

(1) A peace officer, security agent of a mercantile establishment, merchant or merchant's employee who has probable cause to believe that goods held for sale by the merchant have been unlawfully taken by a person may take the person into custody and detain him or her in a reasonable manner for a reasonable length of time, on the premises of the mercantile establishment or off the premises of the mercantile establishment, if the persons enumerated in this section are in fresh pursuit, for any of the following purposes:
    (a) To request identification;
    (b) To verify such identification;
    (c) To make reasonable inquiry as to whether such person has in his or her possession unpurchased merchandise, and to make reasonable investigation of the ownership of such merchandise;
    (d) To recover or attempt to recover goods taken from the mercantile establishment by such person, or by others accompanying him or her; or
    (e) To inform a peace officer or law enforcement agency of the detention of the person and to surrender the person to the custody of a peace officer, and in the case of a minor, to inform the parents, guardian, or other person having custody of that minor of his or her detention, in addition to surrendering the minor to the custody of a peace officer.
(2) Any person exercising any authority granted in subsection (1) of this section may use a reasonable amount of force necessary to protect himself or herself and to prevent the escape of the person detained or the loss of goods for sale. Except as provided in KRS Chapter 503, deadly force shall not be justified solely to protect property.
(3) The recovery of goods taken from the mercantile establishment by the person detained or by others shall not limit the right of the persons named in subsection (1) of this section to detain such person for peace officers or otherwise accomplish the purposes of subsection (1) of this section.
(4) Any person enumerated in subsection (1) of this section shall be immune from criminal liability and shall only be subject to civil liability for failing to exercise reasonable care for any authority granted under this section.
(5) Any peace officer may arrest without warrant any person he or she has probable cause to believe has committed larceny in retail or wholesale establishments.

KRS 433.750 Injuring public property or right of way

Any person who picks, pulls, digs, tears up, cuts, breaks, burns or otherwise damages any tree, shrub, flower, vine, bush or turf on the right of way of any state highway or county road or upon any land set aside, dedicated or maintained by this state as a public park or as a refuge or sanctuary for wild animals, birds or fish, without having first obtained permission in writing of the engineer having charge of the maintenance of the highway, or the superintendent or custodian of the park, refuge or sanctuary shall be fined not less than $25 nor more than $300.

KRS 433.753 Criminal littering on public highway – Rewards for information

(1) When any paper, waste material, litter or other refuse is thrown or dropped from a motor vehicle, the operator thereof shall be deemed prima facie to be guilty of criminal littering.
(2) It shall be the duty of the Kentucky State Police, county sheriffs and police officers, city police officers, and all other law enforcement and peace officers within their respective jurisdictions, to enforce the criminal littering laws.
(3) Any city or county may offer and pay rewards for the giving of information leading to the arrest and conviction of any person, firm or corporation for commission of the offense of criminal littering.

KRS 433.757 Littering public waters – Reward for information

(1) When any litter as defined in KRS 512.010 is thrown or dropped from a motorboat or vessel as defined in KRS 235.010, the operator thereof shall be deemed prima facie to have violated KRS 512.070.
(2) It shall be the duty of officers of the Department of Fish and Wildlife Resources as provided in KRS 235.010 and KRS Chapter 150 and all other law enforcement and peace officers of the Commonwealth and its political subdivisions to enforce the provisions of KRS 512.070.
(3) Any city or county may offer and pay rewards for the giving of information leading to the arrest and conviction of any person, firm, or corporation for a violation of KRS 512.070.

KRS CHAPTER 434
OFFENSES AGAINST PROPERTY BY FRAUD
(Selected Sections)
CREDIT OR DEBIT CARD CRIMES

KRS 434.550 Citation of KRS 434.550 to 434.730

KRS 434.550 to 434.730 may be cited as the Credit and Debit Card Crime Act.

KRS 434.560 Definitions for KRS 434.550 to 434.730

As used in KRS 434.550 to 434.730, unless the context otherwise requires:
(1) "**Automated banking device**" means any machine which when properly activated by a credit card, debit card or personal identification code will perform any of the following services:
  (a) Dispense money as a debit to the cardholder's savings or checking account;
  (b) Print the cardholder's savings or checking account balances on a statement;
  (c) Transfer funds between a cardholder's savings and checking account;
  (d) Accept payments on a cardholder's loan;
  (e) Dispense cash advances on an open end credit or a revolving charge agreement;
  (f) Accept deposits to a customer's savings or checking account;
  (g) Receive inquiries of verification of checks and dispense information which verifies that funds are available to cover said checks;
  (h) Cause money to be transferred electronically from a cardholder's account to an account held by any business, firm, retail merchant, corporation, or any other organization;
(2) "**Cardholder**" means:
  (a) For a credit or debit card, the person or organization named on the face of a credit or debit card to whom or for whose benefit the credit or debit card is issued by an issuer; or
  (b) For a gift card, any person or organization to whom a physical or virtual gift card is issued through a purchase, or who receives a gift card from a willing party;
(3) "**Credit card**" means any instrument or device, whether known as a credit card, credit plate, credit number or by any other name, issued by an issuer for the use of the cardholder in obtaining money, goods, services or anything else of value on credit;
(4) "**Debit card**" means any instrument or device, known by any name, issued with or without fee by an issuer for the use of the cardholder in obtaining money, goods, services and anything else of value, payment of which is made against funds previously deposited by cardholder;

(5) "**E.F.T. system**" means an electronic funds transfer system whereby funds are transferred electronically from a cardholder's account to any other account;
(6) "**Expired credit card**" means a credit card which is no longer valid because the term shown on it has expired;
(7) "**Expired debit card**" means a debit card which is no longer valid because the term shown on it has expired;
(8) **"Face value"** means the highest monetary value listed on a gift card or its packaging, or if no value is listed, two hundred fifty dollars ($250);
(9) **"Gift card"** means a card, code, or device, whether activated or unactivated, that:
(a) Is issued on a prepaid basis primarily for personal, family, or household purposes in a specified amount, regardless of whether that amount may be increased or reloaded in exchange for payment; and
(b) May be redeemable upon presentation by a cardholder at a single merchant or group of merchants, or at multiple unaffiliated merchants within a payment card network;
(10)**"Gift card redemption information"** means information unique to each gift card which allows the cardholder to access, transfer, or spend the funds on that gift card;
(11)"**Issuer**" means the business organization or financial institution which issues a credit, debit, or gift card or its duly authorized agent;
(12)**"Merchant"** means an owner or operator of any retail mercantile establishment or any agent, employee, lessee, consignee, officer, director, franchisee, or independent contractor of such owner or operator. "Merchant" also means:
(a) A person who receives from an authorized user of a payment card, or someone the person believes to be an authorized user, a payment card or information from a payment card, or what the person believes to be a payment card or information from a payment card, as the instrument for obtaining, purchasing, or receiving goods, services, money, or anything else of value from the person; or
(b) A person engaged in the business of selling gift cards to consumers;
(13)"**Participating party**" means a business organization or financial institution, or any duly authorized agent of such business organization or financial institution, which is obligated by contract to acquire from a person, business organization or financial institution providing money, goods, services or anything else of value, a sales slip, sales draft, or other instrument evidencing a credit, debit, or gift card transaction and from whom the issuer is obligated by contract to acquire or participate in such sales slip, sales draft or other instrument;
(14)“**Payment card**” means a credit card, charge card, debit card, or any other card that is issued to an authorized card user and that allows the user to obtain, purchase, or receive goods, services, money, or anything else of value from a merchant;
(15)"**Presentation or presents**" means those actions taken by a cardholder or any person to introduce a credit or debit card into an automated banking device or merely displaying or showing a credit, debit, or gift card to the issuer, a person or organization providing money, goods, services, or anything else of value, or any other entity with intent to defraud;
(16)"**Receives**" or "**receiving**" means acquiring possession or control of a credit or debit card;
(17)“**Reencoder**” means an electronic device that places encoded information from the magnetic strip or stripe of a payment card onto the magnetic strip or stripe of a different payment card;
(18)"**Revoked credit card**" means a credit card which is no longer valid because permission to use it has been suspended or terminated by the issuer;
(19)"**Revoked debit card**" means a debit card which is no longer valid because permission to use it has been suspended or terminated by the issuer; and
(20)“**Scanning device**” means a scanner, reader, or any other electronic device that is used to access, read, scan, obtain, memorize, or store, temporarily or permanently, information encoded on the magnetic strip or stripe of a payment card.

KRS 434.580 Theft – Receipt of stolen credit or debit card – Presumption

(1) (a) A person who takes a credit, debit, or gift card from the person, possession, custody, or control of another without the consent of the cardholder, the issuer, or, for a gift card, the merchant, or who, with knowledge that it has been so taken, receives the credit, debit, or gift card with intent

to use it or to sell it or to transfer it to a person other than the issuer, the cardholder, or, for a gift card, the merchant, is:

1. For a credit or debit card, subject to the penalties set forth in subsection (1) of KRS 434.730; or
2. For a gift card, subject to the penalties set forth in KRS 514.030 for the face value of the gift card.

(b) Taking a credit, debit, or gift card without consent includes obtaining it by conduct defined or known as statutory larceny, common-law larceny by trespassory taking, common law larceny by trick, embezzlement, or obtaining property by false pretenses, false promise, or extortion.

(2) A person who has in his or her possession or under his or her control two (2) or more credit, debit, or gift cards which have been taken or obtained in violation of subsection (1) of this section is presumed to know that the credit, debit, or gift cards have been so taken or obtained.

KRS 434.600 Sale by or purchase from person other than issuer
Penalty: KRS 434.730(2)

A person other than the issuer who sells a credit or debit card or a person who buys a credit or debit card from a person other than the issuer is guilty of a Class D felony.

KRS 434.620 Receipt of card in violation of KRS 434.570 to 434.610

A person, other than the issuer, who receives a credit or debit card which he knows was obtained, taken, or retained under circumstances which constitute a violation of KRS 434.570 to 434.610 is guilty of a Class D felony.

KRS 434.630 False making or embossing of credit or debit card – Possession of two or more falsely made or embossed cards – Definitions

(1) A person who, with intent to defraud a purported issuer, a participating party, a person or organization providing money, goods, services, or anything else of value, or any other person, falsely makes or falsely embosses a purported credit or debit card, or utters such a credit or debit card or possesses such a credit or debit card with knowledge that such credit or debit card has been falsely made or falsely embossed is guilty of a Class D felony.

(2) A person other than the purported issuer who possesses two (2) or more credit or debit cards which are falsely made or falsely embossed is presumed to possess the same with knowledge that they have been falsely embossed or falsely made and with the intent to defraud.

(3) A person "**falsely makes**" a credit or debit card when he makes or draws, in whole or in part, a device or instrument which purports to be the credit or debit card of a named issuer but which is not such a credit or debit card because the issuer did not authorize the making or drawing,or alters a credit or debit card which was validly issued. A person "falsely embosses" a credit or debit card when, without the authorization of the named issuer, he completes a credit or debit card by adding any of the matter, other than the signature of the cardholder, which an issuer requires to appear on the credit or debit card before it can be used by a cardholder.

KRS 434.635 Gift card tampering

(1) A person is guilty of gift card tampering when he or she intentionally manipulates a gift card's packaging or security features to access the gift card's information without authorization and with the intention of using the information to improperly access and utilize funds placed on the gift card by another.

(2) Gift card tampering is a Class D felony.

(3) This section shall not apply to tampering with an activated gift card with or without the consent of the cardholder.

(4) Conduct which may constitute a violation of this section may be used to show a violation of KRS 506.120**,** but a person shall not be convicted of a violation of this section and KRS 506.120.

KRS 434.650 Fraudulent use – Presumption as to knowledge of revocation

(1) (a) A person who, with intent to defraud the issuer, a participating party, a person or organization providing money, goods, services, or anything else of value, or any other person:

1. Uses for the purpose of obtaining money, goods, services, or anything else of value a credit or debit card obtained or retained in violation of KRS 434.570 to 434.650, or any of such sections, or a credit or debit card which he knows is forged, expired, or revoked;
2. Obtains money, goods, services, or anything else of value by representing without consent of the cardholder that he is the holder of a specified card or by representing that he is the holder of a card and such card has not in fact been issued;
3. Uses a credit or debit card obtained or retained in violation of KRS 434.570 to 434.650, or any of such sections, or a credit or debit card which he knows is forged, expired, or revoked, as authority or identification to cash or attempts to cash or otherwise negotiate or transfer a check or other order for payment of money, whether or not negotiable, if said negotiation or transfer or attempt to negotiate or transfer would constitute a crime under KRS 514.040 or 516.030;
4. Deposits into his account or any account, via an automated banking device, a false, fictitious, forged, altered, or counterfeit check, draft, money order, or any other such document not his lawful or legal property; or
5. Obtains a gift card or gift card redemption information from a cardholder, issuer, or merchant by means of false or fraudulent pretenses, representations, or promises;

is guilty as provided in paragraph (b) of this subsection.

(b) The penalty for violating paragraph (a) of this subsection is a Class B misdemeanor unless:

1. The value of all money, goods, services, or other things of value obtained in violation of this section over a six (6) month period is five hundred dollars ($500) or more but is less than one thousand dollars ($1,000), in which case it is a Class A misdemeanor;
2. The value of all money, goods, services, or other things of value obtained in violation of this section over a six (6) month period is one thousand dollars ($1,000) but is less than ten thousand dollars ($10,000), in which case it is a Class D felony;
3. The person has three (3) or more convictions under subparagraph 1 of this paragraph within the last five (5) years, in which case it is a Class D felony. The five (5) year period shall be measured from the dates on which the offenses occurred for which the judgments of convictions were entered; or
4. The value of all money, goods, services, or other things of value obtained in violation of this section over a six (6) month period is ten thousand dollars or more in which case it is a Class C felony.

(2) A person who receives money, goods, services, or anything else of value as a result of a false, fictitious, forged, altered, or counterfeit check, draft, money order, or any other such document having been deposited into an account via an automated banking device, knowing at the time of receipt of the money, goods, services, or item of value that the document so deposited was false, fictitious, forged, altered, or counterfeit or that the above described deposited item was not his or her lawful or legal property, violates this subsection and is subject to the penalties set forth in subsection (1) of this section.

(3) Knowledge of revocation shall be presumed to have been received by a cardholder four (4) days after it has been mailed to him at the address set forth on the credit or debit card or at his last known address by registered or certified mail, return receipt requested, and, if the address is more than five hundred (500) miles from the place of mailing, by air mail. If the address is located outside the United States, Puerto Rico, the Virgin Islands, the Canal Zone, and Canada, notice shall be presumed to have been received ten (10) days after mailing by registered or certified mail.

KRS 434.655 Fraudulent use of credit or debit card after reporting it lost, as stolen, or not received.

(1) A cardholder who fraudulently uses a credit or debit card to obtain money, goods, services, or anything else of value after said cardholder has reported to the issuer said credit or debit card lost, as stolen, or not received is deemed to have used said credit or debit card in order to defraud the issuer; and said cardholder shall be guilty of a Class B misdemeanor unless;
(a) The value of all money, goods, services, or other things of value furnished in violation of this section over a six (6) month period is five hundred dollars ($500) or more but is less than one thousand dollars ($1,000), in which case it is a Class A misdemeanor;
(b) The value of all money, goods, services, or other things of value furnished in violation of this section over a six (6) month period is one thousand dollars ($1,000) or more but is less than ten thousand dollars ($10,000), in which case it is a Class D felony;
(c) The person has three (3) or more convictions under paragraph (a) of this subsection within the last five (5) years, in which case it is a Class D felony. The five (5) year period shall be measured from the dates on which the offenses occurred for which the judgments of conviction were entered; or
(d) The value of all money, goods, services, or other things of value furnished in violation of this section over a six (6) month period is ten thousand dollars ($10,000) or more, in which case it is a Class C felony.

(2) A cardholder who, after using a credit or debit card, fraudulently reports to the issuer that such usage or transaction was not made by said cardholder, or that said credit or debit card was lost, stolen, or not received at the time of such usage or transaction, in order to defraud the issuer, the cardholder, or any other person in connection with said usage, shall be guilty of a Class B misdemeanor unless:
(a) The value of all money, goods, services, or other things of value furnished in violation of this section over a six (6) month period is five hundred dollars ($500) or more but is less than one thousand dollars ($1,000), in which case it is a Class A misdemeanor;
(b) The value of all money, goods, services, or other things of value furnished in violation of this section over a six (6) month period is one thousand dollars ($1,000) or more but is less than ten thousand dollars ($10,000), in which case it is a Class D felony;
(c) The person has three (3) or more convictions under paragraph (a) of this subsection within the last five (5) years, in which case it is a Class D felony. The five (5) year period shall be measured from the dates on which the offenses occurred for which the judgments of conviction were entered; or
(d) The value of all money, goods, services, or other things of value furnished in violation of this section over a six (6) month period is ten thousand dollars ($10,000) or more, in which case it is a Class C felony.

KRS 434.680 Unauthorized production or reproduction of credit or debit card – Definition – Presumption as to possession of incomplete card

(1) A person other than the cardholder possessing an incomplete credit or debit card, or possessing a purported distinctive element of a credit or debit card, with intent to complete such incomplete credit or debit card or to utilize such purported distinctive element in the production or reproduction of any credit or debit card without the consent of the issuer, or a person possessing, with knowledge of its character, a distinctive element of any credit or debit card or any machinery, plates, or any contrivance designed to produce or reproduce instruments purporting to be the credit or debit cards, or a distinctive element of the credit or debit cards, of an issuer or of any issuer in a group of issuers utilizing a common distinctive element or elements in credit or debit cards issued by all members of such group, who has not consented to the production or reproduction of such card, is guilty of a Class D felony. A credit or debit card is "**incomplete**" if part of the matter other than the signature of the cardholder, which an issuer or any issuer in a group of issuers utilizing a common distinctive element or elements in credit or debit cards issued by all members of such group, requires to appear on the credit or debit card before it can be used by the cardholder has not yet been stamped, embossed, imprinted, or written on it. A "**distinctive element**" of a credit or debit card is any material or component used in the fabrication of credit or

debit cards which, by virtue of such element's chemical or physical composition, color, or design, is unique to the credit or debit cards issued by a particular issuer or group of issuers utilizing a common distinctive element or elements in credit or debit cards issued by all members of such group.

(2) A person other than the cardholder or issuer who possesses two (2) or more incomplete credit or debit cards is presumed to possess the same without the consent of the issuer and with the intent to complete them.

KRS 434.695 Use of false, fictitious, unauthorized, or counterfeit card prima facie evidence of knowledge

The presentation or use of a false, fictitious, unauthorized or counterfeit, credit or debit card, or other credit or debit device for the purpose of obtaining money, goods, services or anything else of value shall be prima facie evidence of knowledge that the said credit or debit device is false, fictitious, counterfeit, or its use is unauthorized.

KRS 434.697 Phishing

(1) For the purposes of this section;
   (a) “Electronic mail message” means a message sent to a unique destination that consists of a unique user name or mailbox and a reference to an Internet domain, whether or not displayed, to which the message can be sent or delivered; and
   (b) “Identifying information” means specific details that can be used to access a person’s financial accounts or to obtain goods or services, including but not limited to the person’s Social Security number, driver’s license number, bank account number, credit or debit card number, personal identification number, automated or electronic signature, unique biometric data, or account password.

(2) A person is guilty of phishing if he or she knowingly or intentionally solicits, requests, or takes any action to induce another person to provide identifying information by means of a Web page, electronic mail message, or otherwise using the Internet, by representing himself or herself either directly or by implication, to be a third person without the authority or approval of such other person.

(3) In any prosecution for a violation of this section, the Commonwealth is not required to establish, and it is no defense that:
   (a) A person other than the defendant who violated this section has not been convicted, apprehended, or identified; or
   (b) Some of the acts constituting a violation of this section did not occur in Kentucky or were not a criminal offense or elements of a criminal offense where they did occur.

(4) Phishing is a Class D felony.

KRS 434.700 Prosecutions

In any prosecution for violation of KRS 434.550 to 434.730, the Commonwealth is not required to establish and it is no defense that:

(1) A person other than the defendant who violated KRS 434.550 to 434.730 has not been convicted, apprehended, or identified; or

(2) Some of the acts constituting the crime did not occur in Kentucky or were not a crime or elements of a crime where they did occur.

KRS 434.720 Construction of KRS 434.550 to 434.730

KRS 434.550 to 434.730 shall not be construed to preclude the applicability of any other provision of the criminal law of this Commonwealth which presently applies or may in the future apply to any transaction which violates KRS 434.550 to 434.730, unless such provision is inconsistent with the terms of KRS 434.550 to 434.730.

KRS 434.730 Penalties

(1) A person who has violated KRS 434.590 shall be guilty of a Class A misdemeanor.
(2) A person who has violated KRS 434.600 shall be guilty of a Class D felony.
(3) A person who has violated KRS 434.675 shall be guilty of a Class D felony for the first offense and a Class C felony for each subsequent offense.
(4) A person who has violated KRS 434.560 shall be guilty of a Class D felony for the first offense and a Class C felony for each subsequent offense.

UNLAWFUL ACCESS TO A COMPUTER

KRS 434.840 Definitions

For the purposes of KRS 434.840 to 434.860, the following words, including any form of the word, and terms shall have the following meanings:

(1) "**Access**" means to approach, instruct, communicate with, manipulate, store data in, retrieve or intercept data from, or otherwise make use of any resources of, a computer, computer system, or computer network;
(2) "**Computer**" means any device, equipment, or facility that uses a computer program or other instructions, stored either temporarily or permanently, to perform specific operations including but not limited to logical, arithmetic, or memory functions with or on data or a computer program that can store, retrieve, alter, or communicate the results of the operations to a person, computer program, computer, computer system, or computer network;
(3) "**Computer network**" means an interconnection of two (2) or more devices used for the purpose of transmitting any combination of voice, video, or data including but not limited to bridges, routers, switches, antennas, or towers connected by hardwire or wireless communications lines;
(4) "**Computer program**" means a set of instructions or statements and related data that, when executed in actual or modified form, cause a computer, computer system, or computer network to perform specified functions;
(5) "**Computer software**" means computer programs, procedures, or associated documentation concerned with the operation of a computer, computer system, or computer network for system control or processing of data;
(6) "**Computer system**" means a set of related computer equipment, devices, data, software, or hardware that is designed to perform a specific function;
(7) "**Data**" means a representation of information, knowledge, facts, concepts, or instructions which are being prepared or have been prepared in a formalized manner, and is intended to be stored or processed, or is being stored or processed, or has been stored or processed, in a computer, computer system, or computer network;
(8) "**Device**" includes but is not limited to an electronic, magnetic, electrochemical, biochemical, hydraulic, optical, or organic object that performs input, output, or storage functions by the manipulation of electronic, magnetic, or other impulses;
(9) "**Effective consent**" means consent by a person legally authorized to act for the owner. Consent is not effective if it is:
    (a) Induced by deception or coercion;
    (b) Given by a person who the actor knows is not legally authorized to act for the owner;
    (c) Given by a person who by reason of age, mental disease or defect, or intoxication is known by the actor to be unable to make responsible property or data dispositions; or
    (d) Used for a purpose other than that for which the consent is given;
(10) "**Financial instruments**" includes but is not limited to any check, draft, warrant, money order, certificate of deposit, negotiable instrument, letter of credit, bill of exchange, credit or debit card, transaction authorization mechanism, marketable security, or any electronic representation thereof;
(11) "**Intellectual property**" includes data, text, images, sound, codes, computer programs, software, or databases which may be in any form, including but not limited to, computer printouts, magnetic storage media, punched cards, or which may be stored internally in the memory of a computer;
(12) "**Loss or damage**" means the result of accessing, attempting to access, or causing to be accessed, without effective consent, any computer software, computer program, data, computer,

computer system, computer network, or any part thereof, including but not limited to theft, alteration, or destruction of data, security breaches, or disruption of services;

(13)"**Owner**" means a person who has title, license, or other lawful possession of the property, a person who has the right to restrict access to the property, or a person who has a greater right to possession of the property than the actor;

(14)"**Property**" includes but is not limited to intellectual property, financial instruments, data, computer programs, documentation associated with data, computers, computer systems and computer programs, all in machine-readable or human-readable form, and any tangible or intangible item of value; and

(15)"**Services**" includes but is not limited to the use of a computer, a computer system, a computer network, computer software, computer program, or data to perform tasks.

KRS 434.845 Unlawful access to a computer in the first degree

(1) A person is guilty of unlawful access to a computer in the first degree when he or she, without the effective consent of the owner, knowingly and willfully, directly or indirectly accesses, causes to be accessed, or attempts to access any computer software, computer program, data, computer, computer system, computer network, or any part thereof, for the purpose of:
   (a) Devising or executing any scheme or artifice to defraud; or
   (b) Obtaining money, property, or services for themselves or another by means of false or fraudulent pretenses, representations, or promises.

(2) Unlawful access to a computer in the first degree is a Class C felony.

KRS 434.850 Unlawful access to a computer in the second degree

(1) A person is guilty of unlawful access to a computer in the second degree when he or she, without the effective consent of the owner, knowingly and willfully, directly or indirectly accesses, causes to be accessed, or attempts to access any computer software, computer program, data, computer, computer system, computer network, or any part thereof, which results in the loss or damage of three hundred dollars ($300) or more.

(2) Unlawful access to a computer in the second degree is a Class D felony.

KRS 434.851 Unlawful access to a computer in the third degree

(1) A person is guilty of unlawful access in the third degree when he or she, without the effective consent of the owner, knowingly and willfully, directly or indirectly accesses, causes to be accessed, or attempts to access any computer software, computer program, data, computer, computer system, computer network, or any part thereof, which results in the loss or damage of less than three hundred dollars ($300).

(2) Unlawful access to a computer in the third degree is a Class A misdemeanor.

KRS 434.853 Unlawful access to a computer in the fourth degree

(1) A person is guilty of unlawful access in the fourth degree when he or she, without the effective consent of the owner, knowingly and willfully, directly or indirectly accesses, causes to be accessed, or attempts to access any computer software, computer program, data, computer, computer system, computer network, or any part thereof, which does not result in loss or damage.

(2) Unlawful access to a computer in the fourth degree is a Class B misdemeanor.

KRS 434.855 Misuse of computer information

(1) A person is guilty of misuse of computer information when he or she:
   (a) Receives, conceals, or uses, or aids another in doing so, any proceeds of a violation of KRS 434.845; or
   (b) Receives, conceals, or uses or aids another in doing so, any books, records, documents, property, financial instrument, computer software, computer program, or other material, property, or objects, knowing the same to have been used in or obtained from a violation of KRS 434.845.

(2) Misuse of computer information is a Class C felony.

KRS 434.860 Venue

For the purpose of venue under the provisions of KRS 434.845, 434.850, 434.851, 434.853, or 434.855, any violation of KRS 434.845, 434.850, 434.851, 434.853, or 434.855 shall be considered to have been committed: in any county in which any act was performed in furtherance of any transaction violating KRS 434.845, 434.850, 434.851, 434.853, or 434.855; in any county in which any violator had control or possession of any proceeds of said violation or of any books, records, documents, property, financial instrument, computer software, computer program or other material, objects, or items which were used in furtherance of said violation; and in any county from which, to which or through which any access to a computer, computer system, or computer network was made whether by wires, electromagnetic waves, microwaves, or any other means of communication.

KRS CHAPTER 437
OFFENSES AGAINST PUBLIC PEACE; CONSPIRACIES
(Selected Sections)

KRS 437.060 Use of reptiles in religious services

Any person who displays, handles or uses any kind of reptile in connection with any religious service or gathering shall be fined not less than fifty dollars ($50) nor more than one hundred dollars ($100).

KRS Chapter 438
OFFENSES AGAINST PUBLIC HEALTH AND SAFETY
(Selected Sections)

KRS 438.060 Contaminating watercourse

(1) Except as provided in subsection (2) of this section any person who places or causes to be placed in any stream, dam, pool or pond any substance that renders the water unfit for use or produces a stench shall be fined not less than ten dollars ($10) nor more than one hundred dollars ($100) and imprisoned for not less than thirty (30) days nor more than six (6) months.
(2) Any person who places the carcass of any beast in any watercourse or within twenty-five (25) yards of a watercourse, or casts it into any spring or pond shall be fined not less than five dollars ($5) nor more than twenty dollars ($20) for the first offense and for every subsequent offense not less than twenty dollars ($20) nor more than one hundred dollars ($100).

KRS 438.240 Abandonment or discard of refrigerator, freezer, icebox or ice chest with door or lid attached – Exceptions

(1) Whoever abandons or discards in any place accessible to children any refrigerator, freezer, icebox or ice chest, of a capacity of one and one-half (1-1/2) cubic feet or more, which has an attached lid or door which may be opened or shut, or who, being the owner, occupant, lessee, or manager of the place, knowingly permits an abandoned or discarded refrigerator, freezer, icebox or ice chest to remain there in such condition, is guilty of a Class B misdemeanor.
(2) A refrigerator in use for another purpose shall not be considered as discarded provided it is securely locked to prevent unauthorized entry.

KRS 438.305 Definitions for KRS 438.305 to 438.340

As used in KRS 438.305 to 438.340, unless the context requires otherwise:
(1) (a) "**Alternative nicotine product**" means a noncombustible product containing nicotine that is intended for human consumption, whether chewed, absorbed, dissolved, or ingested by any other means.
(b) "**Alternative nicotine product**" does not include any tobacco product, vapor product, or any other product regulated as a drug or device by the United States Food and Drug Administration under Chapter V of the Food, Drug, and Cosmetic Act;

* * * * *

(4) "**Proof of age**" means a driver's license or other documentary or written evidence of an individual's age;

* * * * *

(6) "**Sample**" means a tobacco product, alternative nicotine product, or vapor product distributed to members of the general public at no cost;

* * * * *

(8) (a) "**Tobacco product**" means any cigarette, cigar, snuff, smokeless tobacco product, smoking tobacco, chewing tobacco, and any kind or form of tobacco prepared in a manner suitable for chewing or smoking, or both, or any kind or form of tobacco that is suitable to be placed in a person's mouth. "Tobacco product" also means any product made or derived from tobacco that is intended for human consumption, including any component, part, or accessory of a tobacco product, except for raw materials other than tobacco used in manufacturing any component, part, or accessory of a tobacco product, in accordance with the federal Tobacco Control Act, Pub. L. No. 111-31.

(b) "Tobacco product" does not include any alternative nicotine product, vapor product, or product regulated as a drug or device by the United States Food and Drug Administration under Chapter V of the Food, Drug, and Cosmetic Act.

(9) (a) "**Vapor product**" means any noncombustible product containing nicotine that employs a heating element, battery, power source, electronic circuit, or other electronic, chemical, or mechanical means, regardless of shape or size and including the component parts and accessories thereto, that can be used to deliver vaporized nicotine or other substances to users inhaling from the device. "Vapor product" includes but is not limited to any device deemed to be an electronic nicotine delivery system by the United States Food and Drug Administration, any electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe, or similar product or device and every variation thereof, regardless of whether marketed as such, and any vapor cartridge or other container of a liquid solution or other material that is intended to be used with or in an electronic cigarette, electronic cigar, electronic cigarillo, electronic pipe, or other similar product or device.

(b)"Vapor product" does not include any product regulated as a drug or device by the United States Food and Drug Administration under Chapter V of the Food, Drug and Cosmetic Act.

KRS 438.310 Sale of tobacco products to persons under age 18 prohibited – Penalty

(1) No person shall sell or cause to be sold any tobacco product, alternative nicotine product, or vapor product at retail to any person under the age of twenty-one (21), or solicit any person under the age of twenty-one (21) to purchase any tobacco product, alternative nicotine product, or vapor product at retail.

(2) Any person who sells tobacco products, alternative nicotine product, or vapor products at retail shall cause to be posted in a conspicuous place in his establishment a notice stating that it is illegal to sell tobacco products, alternative nicotine product, or vapor products to persons under age twenty-one (21).

(3) Any person selling tobacco products, alternative nicotine product, or vapor products shall require proof of age from a prospective buyer or recipient if the person has reason to believe that the prospective buyer or recipient is under the age of twenty-one (21).

(4) A person who violates subsection (1) or (2) of this section shall be subject to a fine of not less than one hundred dollars ($100) nor more than five hundred dollars ($500) for a first violation and a fine of not less than five hundred dollars ($500) nor more than one thousand dollars ($1,000) for any subsequent violation. The fine shall be administered by the Department of Alcoholic Beverage Control using a civil enforcement procedure.

SALE AND DISTRIBUTION OF TOBACCO PRODUCTS

KRS 438.311 Unlawful acts by minors relating to purchase or receipt of tobacco – Penalty – Issuance of uniform citation

(1) Except for the provisions of KRS 438.330, it shall be unlawful for a person who has not attained the age of twenty-one (21) years to purchase or accept receipt of or to attempt to purchase or accept receipt of a tobacco product, alternative nicotine product, or vapor product or to present or offer to any person any purported proof of age which is false, fraudulent, or not actually his or her own, for the purpose of purchasing or receiving any tobacco product, alternative nicotine product, or vapor product. It shall not be unlawful for such a person to accept receipt of a tobacco product, alternative nicotine product, or vapor product from a family member, except if the child has been committed to the custody of the state under KRS Chapters 600 to 645, or from an employer when required in the performance of the person's duties.
(2) All peace officers with general law enforcement authority and employees of the Department of Alcoholic Beverage Control may confiscate the tobacco product, alternative nicotine product, or vapor product of a person under the age of twenty-one (21) who has violated this section. Notwithstanding any provision of law to the contrary, no other penalty shall apply to a person under the age of twenty-one (21) for a violation of this section.

KRS 438.313 Distribution of tobacco products to persons under age 18 prohibited – Penalty – Issuance of uniform citation

(1) No wholesaler, retailer, or manufacturer of cigarettes, tobacco products, alternative nicotine products, or vapor products may distribute cigarettes, tobacco products, alternative nicotine products, or vapor products, including samples thereof, free of charge or otherwise, to any person under the age of twenty-one (21).
(2) Any person who distributes cigarettes, tobacco products, alternative nicotine products, or vapor products, including samples thereof, free of charge or otherwise shall require proof of age from a prospective buyer or recipient if the person has reason to believe that the prospective purchaser or recipient is under the age of twenty-one (21).
(3) Any person who violates the provisions of this section shall be fined not less than one thousand dollars ($1,000) nor more than two thousand five hundred dollars ($2,500) for each offense. The fine shall be administered by the Department of Alcoholic Beverage Control using a civil enforcement procedure for persons eighteen (18) years of age or older.
(4) All peace officers with general law enforcement authority and employees of the Department of Alcoholic Beverage Control may issue a uniform citation, but may not make an arrest, or take a child into custody, for a violation of this section.

KRS 438.350 Prohibition against possession or use of tobacco products by minors – Exceptions

(1) No person under the age of twenty-one (21) shall possess or use tobacco products, alternative nicotine products, or vapor products.
(2) Any tobacco product, alternative nicotine products, or vapor products found in the possession of a person under the age of twenty-one (21) and in plain view of the law enforcement officer shall be confiscated by the law enforcement officer making the charge.
(3) This section shall not apply to persons exempted as provided by KRS 438.311 and 438.330.
(4) The terms “alternative nicotine product,” “tobacco product,” and “vapor product,” shall have the same meaning as in KRS 438.305.

KRS CHAPTER 500
GENERAL PROVISIONS
(Selected Sections)

KRS 500.010 Title

KRS Chapters 500 to 534 shall be known as the Kentucky Penal Code.

KRS 500.050 Time limitations

(1) Except as otherwise expressly provided, the prosecution of a felony is not subject to a period of limitation and may be commenced at any time.
(2) Except as otherwise expressly provided, the prosecution of an offense other than a felony must be commenced within one (1) year after it is committed.
(3) (a) For a misdemeanor sex offense when the victim is a minor at the time of the offense, the prosecution of the offense shall be commenced within ten (10) years after the victim attains the age of eighteen (18) years.

(b) As used in paragraph (a) of this subsection, “misdemeanor sex offense” means a misdemeanor offense in:
1. KRS Chapter 510;
2. KRS Chapter 531 involving a minor or depiction of a minor; or
3. KRS 506.010 or 506.030 for attempt to commit or solicitation to commit:
   a. Any of the offenses described in subparagraphs 1. and 2. of this paragraph;
   b. Promoting prostitution under KRS 529.040 when the defendant advances or profits from the prostitution of a minor;
   c. Human trafficking involving commercial sexual activity under KRS 529.100;
   d. Promoting human trafficking involving commercial sexual activity under KRS 529.110; or
   e. Unlawful transaction with a minor in the first degree under KRS 530.064(1)(a).

(4) For purposes of this section, an offense is committed either when every element occurs, or if a legislative purpose to prohibit a continuing courses of conduct plainly appears, at the time when the course of conduct or the defendant’s complicity therein is terminated.

KRS 500.080 Definitions for Kentucky Penal Code

As used in the Kentucky Penal Code, unless the context otherwise requires:
(1) **"Actor"** means any natural person and, where relevant, a corporation or an unincorporated association;
(2) **"Crime"** means a misdemeanor or a felony;
(3) **"Dangerous instrument"** means any instrument, including parts of the human body when a serious physical injury is a direct result of the use of that part of the human body, article, or substance which, under the circumstances in which it is used, attempted to be used, or threatened to be used, is readily capable of causing death or serious physical injury. “Dangerous instrument” may include a laser;
(4) **"Deadly weapon"** means any of the following:
   (a) A weapon of mass destruction;
   (b) Any weapon from which a shot, readily capable of producing death or other serious physical injury, may be discharged;
   (c) Any knife other than an ordinary pocket knife or hunting knife;
   (d) Billy, nightstick, or club;
   (e) Blackjack or slapjack;
   (f) Nunchaku karate sticks;
   (g) Shuriken or death star; or
   (h) Artificial knuckles made from metal, plastic, or other similar hard material;
(5) **"Felony"** means an offense for which a sentence to a term of imprisonment of at least one (1) year in the custody of the Department of Corrections may be imposed;
(6) "Fentanyl derivative" has the same meaning as in KRS 218A.010;

(7) **"Government"** means the United States, any state, county, municipality, or other political unit, or any department, agency, or subdivision of any of the foregoing, or any corporation or other association carrying out the functions of government;
(8) **"He"** means any natural person and, where relevant, a corporation or an unincorporated association;
(9) **"Impacted by the disaster"** means the location or in reasonable proximity to the location where a natural or man-made disaster has caused physical injury, serious physical injury, death, or substantial damage to property or infrastructure;
(10) "Laser" means any device designed or used to amplify electromagnetic radiation by stimulated emission that emits a beam, other than a medical laser when used in medical treatment or surgery;
(11)**"Law"** includes statutes, ordinances, and properly adopted regulatory provisions. Unless the context otherwise clearly requires, "law" also includes the common law;
(12)"**Minor**" means any person who has not reached the age of majority as defined in KRS 2.015;
(13)**"Misdemeanor"** means an offense, other than a traffic infraction, for which a sentence to a term of imprisonment of not more than twelve (12) months can be imposed;
(14)**"Natural or man-made disaster"** means a tornado, storm, or other severe weather, earthquake, flood, or fire that poses a significant threat to human health and safety, property, or critical infrastructure;
(15)**"Offense"** means conduct for which a sentence to a term of imprisonment or to a fine is provided by any law of this state or by any law, local law, or ordinance of a political subdivision of this state or by any law, order, rule, or regulation of any governmental instrumentality authorized by law to adopt the same;
(16)**"Person"** means a human being, and where appropriate, a public or private corporation, an unincorporated association, a partnership, a government, or a governmental authority;
(17)**"Physical injury"** means substantial physical pain or any impairment of physical condition;
(18)**"Possession"** means to have actual physical possession or otherwise to exercise actual dominion or control over a tangible object;
(19)**"Serious physical injury"** means physical injury which creates a substantial risk of death, or which causes serious and prolonged disfigurement, prolonged impairment of health, or prolonged loss or impairment of the function of any bodily organ, or eye damage or visual impairment. For a child twelve (12) years of age or less at the time of the injury, or for any person if the relationship between the perpetrator and the victim meets the definition of a family member or member of an unmarried couple as defined in KRS 403.720, or a dating relationship as defined in KRS 456.010, a serious physical injury includes but is not limited to the following:
(a) Bruising near the eyes, or on the head, neck, or lower back overlying the kidneys;
(b) Any bruising severe enough to cause underlying muscle damage as determined by elevated creatine kinase levels in the blood;
(c) Any bruising or soft tissue injury to the genitals that affects the ability to urinate or defecate;
(d) Any testicular injury sufficient to put fertility at risk;
(e) Any burn near the eyes or involving the mouth, airway, or esophagus;
(f) Any burn deep enough to leave scarring or dysfunction of the body;
(g) Any burn requiring hospitalization, debridement in the operating room, IV fluids, intubation, or admission to a hospital's intensive care unit;
(h) Rib fracture;
(i) Scapula or sternum fractures;
(j) Any broken bone that requires surgery;
(k) Head injuries that result in intracranial bleeding, skull fracture, or brain injury;
(l) A concussion that results in the child becoming limp, unresponsive, or results in seizure activity;
(m) Abdominal injuries that indicate internal organ damage regardless of whether surgery is required;
(n) Any injury requiring surgery;
(o) Any injury that requires a blood transfusion; and
(p) Any injury requiring admission to a hospital's critical care unit;

(20)**"Unlawful"** means contrary to law or, where the context so requires, not permitted by law. It does not mean wrongful or immoral;
(21)**"Violation"** means an offense, other than a traffic infraction, for which a sentence to a fine only can be imposed; and
(22)**"Weapon of mass destruction"** means:
(a) Any destructive device as defined in KRS 237.030, but not fireworks as defined in KRS 227.700;
(b) Any weapon that is designed or intended to cause death or serious physical injury through the release, dissemination, or impact of toxic or poisonous chemicals or their precursors;
(c) Any weapon involving a disease organism; or
(d) Any weapon that is designed to release radiation or radioactivity at a level dangerous to human life.

KRS 500.090 Forfeiture

(1) Except as provided in KRS 500.092, all property which is subject to forfeiture under any section of the Kentucky Penal Code shall be disposed of in accordance with this section.
(a) Property other than firearms which is forfeited under any section of this code may, upon order of the trial court, be destroyed by the sheriff of the county in which the conviction was obtained.
(b) Property other than firearms which is forfeited under any section of this code may, upon order of the trial court, be sold at public auction. The expenses of keeping and selling such property and the amount of all valid recorded liens that are established by intervention as being bona fide shall be paid out of the proceeds of the sale. The balance shall be paid to:
1. The state, if the property was seized by an agency of the state or peace officer thereof;
2. The county, if the property was seized by the sheriff or an agency or peace officer of the county;
3. The Department of Fish and Wildlife Resources, if the property was seized by a peace officer of the Department of Fish and Wildlife or was seized by any other officer for violation of KRS Chapter 150;
4. The city, if the property was seized by the city or by an agency or peace officer thereof and the property was delivered to the city property clerk;
5. The city (ninety percent (90%) of the proceeds) and the sheriff (ten percent (10%) of the proceeds), if the property was seized by the city or by an agency or peace officer thereof and the property was delivered to the sheriff or the county police; or
6. The state, if the property was seized by any combination of agencies listed above.
(c) Subject to the duty to return confiscated firearms and ammunition to innocent owners pursuant to this section, all firearms and ammunition confiscated by a state or local law enforcement agency, all firearms ordered forfeited by a court, and all abandoned firearms and ammunition coming into the custody of a state or local law enforcement agency and not retained for official use shall be transferred to the Kentucky State Police for disposition as provided by KRS 16.220. The transfer shall occur not more than ninety (90) days after the abandonment of the firearm or ammunition to the law enforcement agency or not more than ninety (90) days after its confiscation, unless a court requires the firearm or ammunition for use as evidence, in which case it shall be transferred to the Kentucky State Police not more than ninety (90) days following the order of forfeiture by the court or after the court returns the firearm or ammunition from use as evidence. Prior to the sale of any firearm or ammunition, the law enforcement agency shall make a bona fide attempt to determine if the firearm or ammunition to be sold has been stolen or otherwise unlawfully obtained from an innocent owner and return the firearm and ammunition to its lawful innocent owner, unless that person is ineligible to purchase a firearm under federal law. This subsection relating to auction of firearms and ammunition shall not apply to firearms and ammunition auctioned by the Department of Fish and Wildlife that may be sold to individual purchasers residing in Kentucky who are eligible under federal law to purchase firearms and ammunition of the type auctioned.

(d) If property which is forfeited under any section of this code is determined by the trial court to be worthless, encumbered with liens in excess of its value, or otherwise a burdensome asset, the court may abandon any interest in such property. Property which is abandoned pursuant to this section shall be returned to the lawful claimant upon payment of expenses for keeping the property.

(e) Property which is forfeited under any section of this code may, upon order of the trial court, be retained for official use in the following manner. Property which has been seized by an agency of the state may be retained for official state use. Property which has been seized by an agency of county, city, or urban-county government may be retained for official use by the government whose agency seized the property or for official state use. Property seized by any other unit of government may be retained only for official state use. The expenses for keeping and transferring such property shall be paid by the unit of government by which the property is retained.

(2) Money which has been obtained or conferred in violation of any section of this code shall, upon conviction, be forfeited for the use of the state. This subsection shall not apply when, during the course of the proceeding in which the conviction is obtained, the person from whom said money was unlawfully acquired is identified.

(3) Property forfeited under any section of this code shall be disposed of in accordance with this section only after being advertised pursuant to KRS Chapter 424. This subsection shall not apply to property which is designed and suitable only for criminal use or to money forfeited under subsection (2) of this section.

(4) The trial court shall remit the forfeiture of property when the lawful claimant:

(a) Asserts his claim before disposition of the property pursuant to this section;

(b) Establishes his legal interest in the property; and

(c) Establishes that the unlawful use of the property was without his knowledge and consent. Subsection (4) shall not apply to a lienholder of record when the trial court elects to dispose of the property pursuant to subsection (1) (b) of this section.

(5) For purposes of this section, "**lawful claimant**" means owner or lienholder of record.

(6) Before property which has had its identity obscured in violation of KRS 514.120 may be sold or retained for official use as provided in this section, the court shall cause a serial or other identifying number to be placed thereon and a record of the number assigned shall be placed in the court order authorizing the sale or retention of the property. This number shall be assigned, whenever applicable, in consultation with the Kentucky State Police and any other state or federal regulatory agency. The purchaser of the property shall be given a document stating that the property had been forfeited pursuant to law and that a number, shown on the document, has been assigned which shall be deemed as compliance of the owner with KRS 514.120. When property is returned to an owner pursuant to this section and its identity has been obscured by another person in violation of KRS 514.120, the court shall provide a document to the owner relieving him of liability for its continued possession. This document shall serve as evidence of compliance with KRS 514.120 by the owner or any person to whom he lawfully disposes of the property. This section shall not apply to any person after property has been sold or returned in compliance with this section who violates the provisions of KRS 514.120 with respect to that property.

(7) Before forfeiture of any property under this section, it shall be the duty of the trial court to determine if a lawful owner or claimant to the property has been identified or is identifiable. If a lawful owner or claimant has been identified or is identifiable, the court shall notify the owner or claimant that the property is being held and specify a reasonable period of time during which the claim may be made or may, in lieu thereof, order the return of the property to the lawful owner or claimant. If the lawful owner or claimant does not assert his claim to the property after notification or if he renounces his claim to the property, the property shall be disposed of as provided in this section. It shall be the duty of all peace officers and other public officers or officials having knowledge of the lawful owner or claimant of property subject to forfeiture to report the same to the trial court before the act of forfeiture occurs.

KRS 500.092 Forfeiture of personal property not used as a residence

(1) (a) Notwithstanding KRS 500.090, all personal property which is not used as a permanent residence in this state which is used in connection with or acquired as a result of a violation or attempted violation of any of the statutes set out in subsection (3) of this section shall be subject to forfeiture under the same terms, conditions, and defenses and using the same process as set out in KRS 218A.405 to 218A.460 for property subject to forfeiture under that chapter.

(b) Notwithstanding KRS 500.090, all real and personal property in this state which is used in connection with or acquired as a result of a violation or attempted violation of KRS 531.310 or 531.320 shall be subject to forfeiture under the same terms, conditions, and defenses and using the same process as set out in KRS 218A.405 to 218A.460 for property subject to forfeiture under that chapter.

(2) Administrative regulations promulgated under KRS 218A.420 shall govern expenditures derived from forfeitures under this section to the same extent that they govern expenditures from forfeitures under KRS 218A.405 to 218A.460.

(3) The following offenses may trigger forfeiture of personal property under subsection (1) of this section:

(a) 17.546;

(b) KRS 508.140 and 508.150 involving the use of any equipment, instrument, machine, or other device by which communication or information is transmitted, including computers, the Internet or other electronic network, camera or other recording devices, telephones or other personal communications devices, scanners or other copying devices, and any device that enables the use of a transmitting device;

(c) KRS 510.155;

(d) KRS 530.064(1)(a);

(e) KRS 531.030;

(f) KRS 531.040;

(g) KRS 531.310;

(h) KRS 531.320;

(i) KRS 531.335;

(j) KRS 531.340;

(k) KRS 531.350;

(l) KRS 531.360; and

(m) KRS 531.370.

KRS 500.093 Prohibition against court or law enforcement agency retaining firearms or ammunition to prevent their transfer or sale

No court or law enforcement agency shall retain a firearm or ammunition for official use for the purpose of avoiding transfer of the firearm or ammunition to the Kentucky State Police under KRS 237.090, 500.090, or other statute to avoid its being sold pursuant to KRS 16.220.

KRS 500.130 Operation of unmanned aircraft system – Citizen's Freedom from Unwarranted Surveillance Act

(1) As used in this section:

(a) "Communications service" means a cable, broadband, streaming, or telecommunications service; and

(b) "Surveillance" means:

1. With respect to an owner, tenant, occupant, invitee, or licensee of privately owned real property, the observation of such persons with sufficient visual clarity to be able to obtain information about their identity, habits, conduct, movements, or location; or

2. With respect to privately owned real property, the observation of such property's physical improvements with sufficient visual clarity to be able to determine unique identifying features or its occupancy by one (1) or more persons.

(2) Except for unmanned aircraft systems operated by the United States Army, Navy, Marine Corps, Air Force, Space Force, or Coast Guard, or a reserve component thereof, or by the Army National Guard or Air National Guard, unmanned aircraft systems may not be equipped with a lethal payload.

(3) Except as provided in subsection (12) of this section, any business entity doing business lawfully within this state may use an unmanned aircraft system for business purposes, in compliance with 14 C.F.R. pt. 107. Business entities operating an unmanned aircraft system pursuant to this subsection may include but are not limited to:

(a) A property appraiser, assessing property for ad valorem taxation with the express, prior, written permission of the owner, tenant, occupant, invitee, or licensee of the privately owned real property;

(b) A utility or communications service;

(c) An entity conducting aerial mapping;

(d) An entity conducting cargo;

(e) An insurance company or a person acting on behalf of an insurance company for purposes of underwriting an insurance risk or investigating damage to insured property; or

(f) An entity conducting images necessary for the safe operation or navigation of an unmanned aircraft system that is being used for a purpose allowed under federal or Kentucky law.

(4) Any recreational user may operate an unmanned aircraft system within this state, in compliance with 14 C.F.R. pt. 101.

(5) Any institution of higher education, or school district, may use an unmanned aircraft system for educational, research, or testing purposes.

(6) No law enforcement agency, or agent thereof, shall use an unmanned aircraft system to conduct a search unless authorized under the Fourth Amendment to the United States Constitution and Section 10 of the Kentucky Constitution. If the search is conducted pursuant to a warrant, the warrant shall specifically authorize the use of an unmanned aircraft system.

(7) Except as limited by subsection (6) of this section, any government agency, including a law enforcement agency, may use an unmanned aircraft system for legitimate governmental purposes.

(8) When an unmanned aircraft system is used by law enforcement pursuant to subsections (6) and (7) of this section, it shall be operated in a lawful manner and shall minimize data collection on nonsuspects. Disclosure of such data shall be prohibited except by order of a court of competent jurisdiction.

(9) No evidence obtained or collected as the result of the use of an unmanned aircraft system shall be admissible as evidence in any civil, criminal, or administrative proceeding within this state for the purpose of enforcing state or local law, except for:

(a) Evidence collected as permitted by subsections (3) to (7) of this section; or

(b) Evidence which is offered against the owner or operator of an unmanned aircraft system to show misconduct.

(10) No law enforcement agency shall be required to operate unmanned aircraft systems.

(11) Operation of an unmanned aircraft system in violation of subsection (3) or (4) of this section shall be a violation for the first offense and a Class B misdemeanor for the second or subsequent offense.

(12) A person operating an unmanned aircraft system pursuant to subsections (3) to (5) of this section shall not use an unmanned aircraft system to record an image of privately owned real property or of the owner, tenant, occupant, invitee, or licensee of such property with the intent to conduct surveillance on, or publish unauthorized images of, the individual or property captured in the image in violation of the person's reasonable expectation of privacy. For purposes of this subsection, a person is presumed to have a reasonable expectation of privacy on his or her privately owned real property if he or she is not observable by persons located at ground level in a place where they have a legal right to be, regardless of whether he or she is observable from the air with the use of an unmanned aircraft system.

KRS CHAPTER 501
GENERAL PRINCIPLES OF LIABILITY

KRS 501.010 Definitions

The following definitions apply in this chapter:
(1) **"Culpable mental state"** means "intentionally" or "knowingly" or "wantonly" or "recklessly," as these terms are defined in KRS 501.020.
(2) **"Intoxication"** means a disturbance of mental or physical capacities resulting from the introduction of substances into the body.
(3) **"Voluntary act"** means a bodily movement performed consciously as a result of effort or determination and includes the possession of property if the actor was aware of his physical possession or control thereof for a sufficient period to have been able to terminate it.
(4) **"Voluntary intoxication"** means intoxication caused by substances which the defendant knowingly introduces into his body, the tendency of which to cause intoxication he knows or ought to know, unless he introduces them pursuant to medical advice or under such duress as would afford a defense to a charge of crime.

KRS 501.020 Definition of mental states

The following definitions apply in the Kentucky Penal Code:
(1) **"Intentionally"**--A person acts intentionally with respect to a result or to conduct described by a statute defining an offense when his conscious objective is to cause that result or to engage in that conduct.
(2) **"Knowingly"**--A person acts knowingly with respect to conduct or to a circumstance described by a statute defining an offense when he is aware that his conduct is of that nature or that the circumstance exists.
(3) **"Wantonly"**--A person acts wantonly with respect to a result or to a circumstance described by a statute defining an offense when he is aware of and consciously disregards a substantial and unjustifiable risk that the result will occur or that the circumstance exists. The risk must be of such nature and degree that disregard thereof constitutes a gross deviation from the standard of conduct that a reasonable person would observe in the situation. A person who creates such a risk but is unaware thereof solely by reason of voluntary intoxication also acts wantonly with respect thereto.
(4) **"Recklessly"**--A person acts recklessly with respect to a result or to a circumstance described by a statute defining an offense when he fails to perceive a substantial and unjustifiable risk that the result will occur or that the circumstance exists. The risk must be of such nature and degree that failure to perceive it constitutes a gross deviation from the standard of care that a reasonable person would observe in the situation.

KRS 501.030 Criminal liability

A person is not guilty of a criminal offense unless:
(1) He has engaged in conduct which includes a voluntary act or the omission to perform a duty which the law imposes upon him and which he is physically capable of performing; and
(2) He has engaged in such conduct intentionally, knowingly, wantonly or recklessly as the law may require, with respect to each element of the offense, except that this requirement does not apply to any offense which imposes absolute liability, as defined in KRS 501.050.

KRS 501.040 Culpability – Construction of statutes

Although no culpable mental state is expressly designated in a statute defining an offense, a culpable mental state may nevertheless be required for the commission of such offense, or with respect to some or all of the material elements thereof, if the proscribed conduct necessarily involves such culpable mental state.

KRS 501.050 Absolute liability

A person may be guilty of an offense without having one (1) of the culpable mental states defined in KRS 501.020 only when:

(1) The offense is a violation or a misdemeanor as defined in KRS 500.080 and no particular culpable mental state is included within the definition of the offense; or
(2) The offense is defined by a statute other than this Penal Code and the statute clearly indicates a legislative purpose to impose absolute liability for the conduct described.

KRS 501.060 Causal relationships

(1) Conduct is the cause of a result when it is an antecedent without which the result in question would not have occurred.
(2) When intentionally causing a particular result is an element of an offense, the element is not established if the actual result is not within the intention or the contemplation of the actor unless:
    (a) The actual result differs from that intended or contemplated, as the case may be, only in the respect that a different person or different property is injured or affected or that the injury or harm intended or contemplated would have been more serious or more extensive; or
    (b) The actual result involves the same kind of injury or harm as that intended or contemplated and occurs in a manner which the actor knows or should know is rendered substantially more probable by his conduct.
(3) When wantonly or recklessly causing a particular result is an element of an offense, the element is not established if the actual result is not within the risk of which the actor is aware or, in the case of recklessness, of which he should be aware unless:
    (a) The actual result differs from the probable result only in the respect that a different person or different property is injured or affected or that the probable injury or harm would have been more serious or more extensive than that caused; or
    (b) The actual result involves the same kind of injury or harm as the probable result and occurs in a manner which the actor knows or should know is rendered substantially more probable by his conduct.
(4) The question of whether an actor knew or should have known the result he caused was rendered substantially more probable by his conduct is an issue of fact.

KRS 501.070 Liability – Ignorance or mistake

(1) A person's ignorance or mistake as to a matter of fact or law does not relieve him of criminal liability unless:
    (a) Such ignorance or mistake negatives the existence of the culpable mental state required for commission of an offense; or
    (b) The statute under which he is charged or a statute related thereto expressly provides that such ignorance or mistake constitutes a defense or exemption; or
    (c) Such ignorance or mistake is of a kind that supports a defense of justification as defined in this Penal Code.
(2) When ignorance or mistake relieves a person of criminal liability under subsection (1) but he would be guilty of another offense had the situation been as he supposed it was, he may be convicted of that other offense.
(3) A person's mistaken belief that his conduct, as a matter of law, does not constitute an offense does not relieve him of criminal liability, unless such mistaken belief is actually founded upon an official statement of the law, afterward determined to be invalid or erroneous, contained in:
    (a) A statute or other enactment; or
    (b) A judicial decision, opinion or judgment; or
    (c) An administrative order or grant of permission; or
    (d) An official interpretation of the public officer or body charged by law with responsibility for the interpretation, administration or enforcement of the law defining the offense.

KRS 501.080 Liability – Intoxication

Intoxication is a defense to a criminal charge only if such condition either:
(1) Negatives the existence of an element of the offense; or
(2) Is not voluntarily produced and deprives the defendant of substantial capacity either to appreciate the criminality of his conduct or to conform his conduct to the requirements of the law.

KRS 501.090 Liability – Duress

(1) In any prosecution for an offense other than an intentional homicide, it is a defense that the defendant engaged in the proscribed conduct because he was coerced to do so by the use of, or a threat of the use of, unlawful physical force against him or another person which a person in his situation could not reasonably be expected to resist.
(2) The defense provided by subsection (1) is unavailable if the defendant intentionally or wantonly placed himself in a situation in which it was probable that he would be subjected to coercion.

KRS 501.100 Offense against a vulnerable victim

(1) As used in this section, "offense against a vulnerable victim" means any violation of:
  (a) KRS 508.100;
  (b) KRS 508.110;
  (c) KRS 508.120;
  (d) KRS 510.040, 510.050, 510.060, 510.070, 510.080, 510.090, 510.110, 510.120, or 530.020, if the victim is under the age of fourteen (14), or if the victim is an individual with an intellectual disability, physically helpless, or mentally incapacitated, as those terms are defined in KRS 510.010;
  (e) KRS 529.100 or 529.110 if the victim is a minor;
  (f) KRS 530.064(1)(a);
  (g) KRS 531.310;
  (h) KRS 531.320; or
  (i) Any felony in KRS Chapter 209.
(2) A person may be charged with committing an offense against a vulnerable victim in a continuing course of conduct if the unlawful act was committed against the same person two (2) or more times over a specified period of time.
(3) If a person is charged as committing the crime in a continuing course of conduct, the indictment shall clearly charge that the crime was committed in a continuing course of conduct.
(4) To convict a person of an offense against a vulnerable victim in a continuing course of conduct, the jury shall unanimously agree that two (2) or more acts in violation of the same statute occurred during the specified period of time. The jury need not agree on which specific acts occurred.
(5) If a person is convicted of an offense against a vulnerable victim in a continuing course of conduct, that person may not also be convicted of charges based on the individual unlawful acts that were part of the continuing course of conduct.
(6) The penalty, probation and parole eligibility, and other consequences of an offense charged under this section shall be the same as for the offense when charged based on an individual act.
(7) The applicability of this section shall be governed by the age of the victim at the time of the offense.

KRS CHAPTER 502
PARTIES TO OFFENSES – ACCOUNTABILITY

KRS 502.010 Liability for conduct of innocent or irresponsible person

(1) A person is guilty of an offense committed by an innocent or irresponsible person when he:
  (a) Acts with the culpability that is sufficient for commission of that offense; and
  (b) Causes that innocent or irresponsible person to engage in conduct constituting the offense.

(2) As used in this section, an "innocent or irresponsible person" includes anyone who is not guilty of the offense in question, despite his participation, because of:
   (a) Criminal irresponsibility or other legal incapacity or exemption; or
   (b) Unawareness of the criminal nature of the conduct in question or the defendant's criminal purpose; or
   (c) Any other factor precluding the mental state sufficient for the commission of the offense in question.

KRS 502.020 Liability for conduct of another – Complicity

(1) A person is guilty of an offense committed by another person when, with the intention of promoting or facilitating the commission of the offense, he:
   (a) Solicits, commands, or engages in a conspiracy with such other person to commit the offense; or
   (b) Aids, counsels, or attempts to aid such person in planning or committing the offense; or
   (c) Having a legal duty to prevent the commission of the offense, fails to make a proper effort to do so.
(2) When causing a particular result is an element of an offense, a person who acts with the kind of culpability with respect to the result that is sufficient for the commission of the offense is guilty of that offense when he:
   (a) Solicits or engages in a conspiracy with another person to engage in the conduct causing such result; or
   (b) Aids, counsels, or attempts to aid another person in planning, or engaging in the conduct causing such result; or
   (c) Having a legal duty to prevent the conduct causing the result, fails to make a proper effort to do so.

KRS 502.030 Liability for conduct of another – No defense

In any prosecution for an offense in which the criminal liability of the accused is based upon the conduct of another person pursuant to KRS 502.010 and 502.020, it is no defense that:
(1) Such other person has not been prosecuted for or convicted of any offense based on the conduct in question, or has previously been acquitted thereof, or has been convicted of a different offense, or has an immunity to prosecution or conviction for such conduct; or
(2) The offense in question, as defined, can be committed only by a particular class or classes of persons, and the accused, not belonging to such class or classes, is for that reason legally incapable of committing the offense in an individual capacity.

KRS 502.040 Liability for conduct of another – Exemptions

A person is not guilty under KRS 502.010 or 502.020 for an offense committed by another person when:
(1) The offense is so defined that his conduct is inevitably incident to its commission; or
(2) Prior to the commission of the offense, he manifests a voluntary and complete renunciation, as defined in KRS 506.060, of his criminal purposes and:
   (a) Deprives his prior effort of its effectiveness in such commission; or
   (b) Gives timely warning to the proper law enforcement authorities or otherwise makes proper effort to prevent commission of the offense.

KRS CHAPTER 503
GENERAL PRINCIPLES OF JUSTIFICATION

KRS 503.010 Definitions for chapter

The following definitions apply in this chapter unless the context otherwise requires:
   (1) "**Deadly physical force**" means force which is used with the purpose of causing death or serious physical injury or which the defendant knows to create a substantial risk of causing

death or serious physical injury.

(2) "**Dwelling**" means a building or conveyance of any kind, including any attached porch, whether the building or conveyance is temporary or permanent, mobile or immobile, which has a roof over it, including a tent, and is designed to be occupied by people lodging therein at night.
(3) "**Imminent**" means impending danger, and, in the context of domestic violence and abuse as defined by KRS 403.720, belief that danger is imminent can be inferred from a past pattern of repeated serious abuse.
(4) "**Physical force**" means force used upon or directed toward the body of another person and includes confinement.
(5) "**Residence**" means a dwelling in which a person resides either temporarily or permanently or is visiting as an invited guest.
(6) "**Vehicle**" means a conveyance of any kind, whether or not motorized, which is designed to transport people or property.

KRS 503.020 Justification – A defense

In any prosecution for an offense, justification, as defined in this chapter, is a defense.

KRS 503.030 Choice of evils

(1) Unless inconsistent with the ensuing sections of this code defining justifiable use of physical force or with some other provisions of law, conduct which would otherwise constitute an offense is justifiable when the defendant believes it to be necessary to avoid an imminent public or private injury greater than the injury which is sought to be prevented by the statute defining the offense charged, except that no justification can exist under this section for an intentional homicide.
(2) When the defendant believes that conduct which would otherwise constitute an offense is necessary for the purpose described in subsection (1), but is wanton or reckless in having such belief, or when the defendant is wanton or reckless in bringing about a situation requiring the conduct described in subsection (1), the justification afforded by this section is unavailable in a prosecution for any offense for which wantonness or recklessness, as the case may be, suffices to establish culpability.

KRS 503.040 Execution of public duty

(1) Unless inconsistent with the ensuing sections of this code defining justifiable use of physical force or with some other provisions of law, conduct which would otherwise constitute an offense is justifiable when it is required or authorized by a provision of law imposing a public duty or by a judicial decree.
(2) The justification afforded by subsection (1) applies when:
    (a) The defendant believes his conduct to be required or authorized by the judgment or direction of a competent court or tribunal or in the lawful execution of legal process, notwithstanding lack of jurisdiction of the court or defect in the legal process; or
    (b) The defendant believes his conduct to be required or authorized to assist a public officer in the performance of his duties, notwithstanding that the officer exceeded his legal authority.

KRS 503.050 Use of physical force in self-protection – Admissibility of evidence of prior acts of domestic violence and abuse

(1) The use of physical force by a defendant upon another person is justifiable when the defendant believes that such force is necessary to protect himself against the use or imminent use of unlawful physical force by the other person.
(2) The use of deadly physical force by a defendant upon another person is justifiable under subsection (1) only when the defendant believes that such force is necessary to protect himself against death, serious physical injury, kidnapping, **sexual intercourse** compelled by force or threat, felony involving the use of force, or under those circumstances permitted pursuant to KRS 503.055.

EDITOR'S NOTE: As used in this section, "sexual intercourse" includes "deviate sexual intercourse" as defined in KRS 510.010. **Boyle v. Com., 694 S.W.2d 711 (Ky App., 1985)**

(3) Any evidence presented by the defendant to establish the existence of a prior act or acts of domestic violence and abuse as defined in KRS 403.720 by the person against whom the defendant is charged with employing physical force shall be admissible under this section.
(4) A person does not have a duty to retreat prior to the use of deadly physical force.

KRS 503.055 Use of defensive force regarding dwelling, residence, or occupied vehicle - Exceptions

(1) A person is presumed to have held a reasonable fear of imminent peril of death or great bodily harm to himself or herself or another when using defensive force that is intended or likely to cause death or great bodily harm to another if:
   (a) The person against whom the defensive force was used was in the process of unlawfully and forcibly entering or had unlawfully and forcibly entered a dwelling, residence, or occupied vehicle, or if that person had removed or was attempting to remove another against that person's will from the dwelling, residence, or occupied vehicle; and
   (b) The person who uses defensive force knew or had reason to believe that an unlawful and forcible entry or unlawful and forcible act was occurring or had occurred.
(2) The presumption set forth in subsection (1) does not apply if:
   (a) The person against whom the defensive force is used has the right to be in or is a lawful resident of the dwelling, residence, or vehicle, such as an owner, lessee, or titleholder, and there is not an injunction for protection from domestic violence or a written pretrial supervision order of no contact against that person; or
   (b) The person sought to be removed is a child or grandchild, or is otherwise in the lawful custody or under the lawful guardianship of, the person against whom the defensive force is used; or
   (c) The person who uses defensive force is engaged in an unlawful activity or is using the dwelling, residence, or occupied vehicle to further an unlawful activity; or
   (d) The person against whom the defensive force is used is a peace officer, as defined in KRS 446.010, who enters or attempts to enter a dwelling, residence, or vehicle in the performance of his or her official duties and the officer identified himself or herself in accordance with any applicable law or the person using force knew or reasonably should have known that the person entering or attempting to enter was a peace officer.
(3) A person who is not engaged in an unlawful activity and who is attacked in any other place where he or she has a right to be has no duty to retreat and has the right to stand his or her ground and meet force with force, including deadly force if he or she reasonably believes it is necessary to do so to prevent death or great bodily harm to himself or herself or another or to prevent the commission of a felony involving the use of force.
(4) A person who unlawfully and by force enters or attempts to enter a person's dwelling, residence, or occupied vehicle is presumed to be doing so with the intent to commit an unlawful act involving force or violence.

KRS 503.060 Improper use of physical force in self-protection

Notwithstanding the provisions of KRS 503.050, the use of physical force by a defendant upon another person is not justifiable when:
(1) The defendant is resisting an arrest by a peace officer, recognized to be acting under color of official authority and using no more force than reasonably necessary to effect the arrest, although the arrest is unlawful; or
(2) The defendant, with the intention of causing death or serious physical injury to the other person, provokes the use of physical force by such other person; or
(3) The defendant was the initial aggressor, except that his use of physical force upon the other person under this circumstance is justifiable when:
   (a) His initial physical force was nondeadly and the force returned by the other is such that he believes himself to be in imminent danger of death or serious physical injury; or

(b) He withdraws from the encounter and effectively communicates to the other person his intent to do so and the latter nevertheless continues or threatens the use of unlawful physical force.

KRS 503.070 Protection of another

(1) The use of physical force by a defendant upon another person is justifiable when:
   (a) The defendant believes that such force is necessary to protect a third person against the use or imminent use of unlawful physical force by the other person; and
   (b) Under the circumstances as the defendant believes them to be, the person whom he seeks to protect would himself have been justified under KRS 503.050 and 503.060 in using such protection.
(2) The use of deadly physical force by a defendant upon another person is justifiable when:
   (a) The defendant believes that such force is necessary to protect a third person against imminent death, serious physical injury, kidnapping, sexual intercourse compelled by force or threat, or other felony involving the use of force, or under those circumstances permitted pursuant to KRS 503.055. and
   (b) Under the circumstances as they actually exist, the person whom he seeks to protect would himself have been justified under KRS 503.050 and 503.060 in using such protection.
(3) A person does not have a duty to retreat if the person is in a place where he or she has a right to be.

KRS 503.080 Protection of property

(1) The use of physical force by a defendant upon another person is justifiable when the defendant believes that such force is immediately necessary to prevent:
   (a) The commission of criminal trespass, robbery, burglary, or other felony involving the use of force, or under those circumstances permitted pursuant to KRS 503.055, in a dwelling, building or upon real property in his or her possession or in the possession of another person for whose protection he or she acts;
   (b) Theft, criminal mischief, or any trespassory taking of tangible, movable property in his or her possession or in the possession of another person for whose protection he or she acts; or
   (c) The commission of unlawful camping in violation of KRS 511.110, when:
      1. The offense is occurring on property owned or leased by the defendant;
      2. The individual engaged in unlawful camping has been told to cease; and
      3. The individual committing the offense has used force or threatened to use force against the defendant.
(2) The use of deadly physical force by a defendant upon another person is justifiable under subsection (1) of this section only when the defendant believes that the person against whom such force is used is:
   (a) Attempting to dispossess him or her of his or her dwelling otherwise than under a claim of right to its possession; or
   (b) Committing or attempting to commit a burglary, robbery, or other felony involving the use of force, or under those circumstances permitted pursuant to KRS 503.055, of such dwelling; or
   (c) Committing or attempting to commit arson of a dwelling or other building in his or her possession.
(3) A person does not have a duty to retreat if the person is in a place where he or she has a right to be.

KRS 503.085 Justification and criminal and civil immunity for use of permitted force - Exceptions

(1) A person who uses force as permitted in KRS 503.055 in KRS 503.050, 503.070, and 503.080 is justified in using such force and is immune from criminal prosecution and civil action for the use of such force, unless the person against whom the force was used is a peace officer, as defined in KRS 446.010, who was acting in the performance of his or her official duties and the officer identified himself or herself in accordance with any applicable law, or the person using force knew or reasonably should have known that the person was a peace officer. As used in this subsection, the term "criminal prosecution" includes arresting, detaining in custody, and charging or

prosecuting the defendant.

(2) A law enforcement agency may use standard procedures for investigating the use of force as described in subsection (1) of this section, but the agency may not arrest the person for using force unless it determines that there is probable cause that the force that was used was unlawful.

(3) The court shall award reasonable attorney's fees, court costs, compensation for loss of income, and all expenses incurred by the defendant in defense of any civil action brought by a plaintiff if the court finds that the defendant is immune from prosecution as provided in subsection (1).

KRS 503.090 Use of physical force in law enforcement

(1) The use of physical force by a defendant upon another person is justifiable when the defendant, acting under official authority, is making or assisting in making an arrest, and he:
   (a) Believes that such force is necessary to effect the arrest;
   (b) Makes known the purpose of the arrest or believes that it is otherwise known or cannot reasonably be made known to the person to be arrested; and
   (c) Believes the arrest to be lawful.

(2) The use of deadly physical force by a defendant upon another person is justifiable under subsection (1) only when:
   (a) The defendant, in effecting the arrest, is authorized to act as a peace officer; and
   (b) The arrest is for a felony involving the use or threatened use of physical force likely to cause death or serious physical injury; and
   (c) The defendant believes that the person to be arrested is likely to endanger human life unless apprehended without delay.

(3) The use of physical force, including deadly physical force, by a defendant upon another person is justifiable when the defendant is preventing the escape of an arrested person and when the force could justifiably have been used to effect the arrest under which the person is in custody, except that a guard or other person authorized to act as a peace officer is justified in using any force, including deadly force, which he believes to be necessary to prevent the escape of a person from jail, prison, or other institution for the detention of persons charged with or convicted of a crime.

KRS 503.100 Prevention of a suicide or crime

(1) The use of physical force by a defendant upon another person is justifiable when the defendant believes that such force is immediately necessary to prevent such other person from:
   (a) Committing suicide or inflicting serious physical injury upon himself; or
   (b) Committing a crime involving or threatening serious physical injury to person, substantial damage to or loss of property, or any other violent conduct.

(2) The use of deadly physical force by a defendant upon another person is justifiable under subsection (1) (b) only when the defendant believes that the person whom he seeks to prevent from committing a crime is likely to endanger human life.

(3) The limitations imposed on the justifiable use of force in self-protection by KRS 503.050 and 503.060, for the protection of others by KRS 503.070, for the protection of property by KRS 503.080, and for the effectuation of an arrest or the prevention of an escape by KRS 503.090 apply notwithstanding the criminality of the conduct against which such force is used.

KRS 503.110 Use of force by person with responsibility for care, discipline, or safety of others

(1) The use of physical force by a defendant upon another person is justifiable when the defendant is a parent, guardian, or other person entrusted with the care and supervision of a minor or an incompetent person or when the defendant is a teacher or other person entrusted with the care and supervision of a minor, for a special purpose, and:
   (a) The defendant believes that the force used is necessary to promote the welfare of a minor or mentally disabled person or, if the defendant's responsibility for the minor or mentally disabled person is for a special purpose, to further that special purpose or maintain reasonable discipline in a school, class, or other group; and

(b) The force that is used is not designed to cause or known to create a substantial risk of causing death, serious physical injury, disfigurement, extreme pain, or extreme mental distress.

(2) The use of physical force by a defendant upon another person is justifiable when the defendant is a warden or other authorized official of a correctional institution, and
   (a) The defendant believes that the force used is necessary for the purpose of enforcing the lawful rules of the institution;
   (b) The degree of force used is not forbidden by any statute governing the administration of the institution; and
   (c) If deadly force is used, its use is otherwise justifiable under this code.

(3) The use of physical force by a defendant upon another person is justifiable when the defendant is a person responsible for the operation of or the maintenance of order in a vehicle or other carrier of passengers and the defendant believes that such force is necessary to prevent interference with its operation or to maintain order in the vehicle or other carrier, except that deadly physical force may be used only when the defendant believes it necessary to prevent death or serious physical injury.

(4) The use of physical force by a defendant upon another person is justifiable when the defendant is a doctor or other therapist or a person assisting him at his direction, and:
   (a) The force is used for the purpose of administering a recognized form of treatment which the defendant believes to be adapted to promoting the physical or mental health of the patient; and
   (b) The treatment is administered with the consent of the patient or, if the patient is a minor or a mentally disabled person, with the consent of the parent, guardian, or other person legally competent to consent in his behalf, or the treatment is administered in an emergency when the defendant believes that no one competent to consent can be consulted and that a reasonable person, wishing to safeguard the welfare of the patient, would consent.

KRS 503.120 Justification – General provisions

(1) When the defendant believes that the use of force upon or toward the person of another is necessary for any of the purposes for which such belief would establish a justification under KRS 503.050 to 503.110 but the defendant is wanton or reckless in believing the use of any force, or the degree of force used, to be necessary or in acquiring or failing to acquire any knowledge or belief which is material to the justifiability of his use of force, the justification afforded by those sections is unavailable in a prosecution for an offense for which wantonness or recklessness, as the case may be, suffices to establish culpability.

(2) When the defendant is justified under KRS 503.050 to 503.110 in using force upon or toward the person of another, but he wantonly or recklessly injures or creates a risk of injury to innocent persons, the justification afforded by those sections is unavailable in a prosecution for an offense involving wantonness or recklessness toward innocent persons.

KRS CHAPTER 504
RESPONSIBILITY
(Selected Sections)

KRS 504.020 Mental illness or intellectual disability

(1) A person is not responsible for criminal conduct if at the time of such conduct, as a result of mental illness or intellectual disability, he lacks substantial capacity either to appreciate the criminality of his conduct or to conform his conduct to the requirements of law.

(2) As used in this chapter, the term "**mental illness or intellectual disability**" does not include an abnormality manifested only by repeated criminal or otherwise antisocial conduct.

(3) A defendant may prove mental illness or intellectual disability, as used in this section, in exculpation of criminal conduct.

KRS 504.060 Definitions for chapter

As used in this chapter, unless the context otherwise requires:
* * * * *
(5) **"Incompetency to stand trial"** means, as a result of mental condition, lack of capacity to appreciate the nature and consequences of the proceedings against one or to participate rationally in one's own defense;
(6) **"Insanity"** means, as a result of mental condition, lack of substantial capacity either to appreciate the criminality of one's conduct or to conform one's conduct to the requirements of law;
(7) **"Mental illness"** means substantially impaired capacity to use self-control, judgment, or discretion in the conduct of one's affairs and social relations, associated with maladaptive behavior or recognized emotional symptoms where impaired capacity, maladaptive behavior, or emotional symptoms can be related to physiological, psychological, or social factors;
(8) **"Individual with an intellectual disability"** means significantly subaverage general intellectual functioning existing concurrently with deficits in adaptive behavior and manifested during the developmental period and is a condition which may exist concurrently with mental illness or insanity;
* * * * *

KRS 504.090 Incompetent defendant not to be tried

No defendant who is incompetent to stand trial shall be tried, convicted or sentenced so long as the incompetency continues.

KRS 504.120 Verdicts of jury

In cases in which the defendant provides evidence at trial of his mental illness or insanity at the time of the offense, the jury or court may find the defendant:
(1) Guilty;
(2) Not guilty;
(3) Not guilty by reason of insanity at the time of the offense; or
(4) Guilty but mentally ill at the time of the offense.

KRS 504.130 Grounds for finding defendant guilty but mentally ill

(1) The defendant may be found guilty but mentally ill if:
  (a) The prosecution proves beyond a reasonable doubt that the defendant is guilty of an offense; and
  (b) The defendant proves by a preponderance of the evidence that he was mentally ill at the time of the offense.
(2) If the defendant waives his right to trial, the court may accept a plea of guilty but mentally ill if it finds that the defendant was mentally ill at the time of the offense.

KRS CHAPTER 505
PROTECTION AGAINST UNFAIR OR OPPRESSIVE PROSECUTION
(Selected Sections)

KRS 505.010 Entrapment

(1) A person is not guilty of an offense arising out of proscribed conduct when:
  (a) He was induced or encouraged to engage in that conduct by a public servant or by a person acting in cooperation with a public servant seeking to obtain evidence against him for the purpose of criminal prosecution; and
  (b) At the time of the inducement or encouragement, he was not otherwise disposed to engage in such conduct.
(2) The relief afforded by subsection (1) is unavailable when:

(a) The public servant or the person acting in cooperation with a public servant merely affords the defendant an opportunity to commit an offense; or
(b) The offense charged has physical injury or the threat of physical injury as one (1) of its elements and the prosecution is based on conduct causing or threatening such injury to a person other than the person perpetrating the entrapment.

(3) The relief provided a defendant by subsection (1) is a defense.

KRS 505.020 Prosecution for multiple offenses

(1) When a single course of conduct of a defendant may establish the commission of more than one (1) offense, he may be prosecuted for each such offense. He may not, however, be convicted of more than one (1) offense when:
(a) One offense is included in the other, as defined in subsection (2); or
(b) Inconsistent findings of fact are required to establish the commission of the offenses; or
(c) The offense is designed to prohibit a continuing course of conduct and the defendant's course of conduct was uninterrupted by legal process, unless the law expressly provides that specific periods of such conduct constitute separate offenses.

(2) A defendant may be convicted of an offense that is included in any offense with which he is formally charged. An offense is so included when:
(a) It is established by proof of the same or less than all the facts required to establish the commission of the offense charged; or
(b) It consists of an attempt to commit the offense charged or to commit an offense otherwise included therein; or
(c) It differs from the offense charged only in the respect that a lesser kind of culpability suffices to establish its commission; or
(d) It differs from the offense charged only in the respect that a less serious injury or risk of injury to the same person, property or public interest suffices to establish its commission.

KRS CHAPTER 506
INCHOATE OFFENSES

KRS 506.010 Criminal attempt

(1) A person is guilty of criminal attempt to commit a crime when, acting with the kind of culpability otherwise required for commission of the crime, he or she:
(a) Intentionally engages in conduct which would constitute the crime if the attendant circumstances were as he or she believes them to be; or
(b) Intentionally does or omits to do anything which, under the circumstances as he or she believes them to be, is a substantial step in a course of conduct planned to culminate in his commission of the crime.

(2) Conduct shall not be held to constitute a substantial step under subsection (1)(b) of this section unless it is an act or omission which leaves no reasonable doubt as to the defendant's intention to commit the crime which he or she is charged with attempting.

(3) A person is guilty of criminal attempt to commit a crime when he engages in conduct intended to aid another person to commit that crime, although the crime is not committed or attempted by the other person, provided that his or her conduct would establish complicity under KRS 502.020 if the crime were committed by the other person.

(4) A criminal attempt is a:
(a) Class C felony when the crime attempted is a violation of KRS 521.020 ***[Bribery of a public servant]*** or 521.050 ***[Providing pecuniary benefit for bribery of a public servant]***;
(b) Class B felony when the crime attempted is a Class A felony or capital offense;
(c) Class C felony when the crime attempted is a Class B felony;
(d) Class A misdemeanor when the crime attempted is a Class C or D felony;
(e) Class B misdemeanor when the crime attempted is a misdemeanor; or

(5) Notwithstanding KRS Chapter 532, a person who has been convicted of, or entered a plea of guilty or nolo contendere to, criminal attempt to commit murder of a first responder shall be sentenced to imprisonment for:

(a) At least twenty (20) years;
(b) Life; or
(c) Life without benefit of probation or parole until the person has served a minimum of twenty-five (25) years.

KRS 506.020 Criminal attempt – Defense of renunciation

(1) In any prosecution for criminal attempt to commit a crime, it is a defense that, under circumstances manifesting a voluntary and complete renunciation of his criminal purpose, the defendant abandoned his effort to commit the crime and, if mere abandonment was insufficient to avoid the commission of the crime, took the necessary affirmative steps to prevent its commission.
(2) A renunciation is not "voluntary and complete" within the meaning of this section if it is motivated in whole or in part by:
   (a) A belief that circumstances exist which pose a particular threat of apprehension or detection of the accused or another participant in the criminal enterprise or which render more difficult the accomplishment of the criminal purpose; or
   (b) A decision to postpone the criminal conduct until another time or to transfer the criminal effort to another victim or another but similar object.

KRS 506.030 Criminal solicitation

(1) A person is guilty of criminal solicitation when, with the intent of promoting or facilitating the commission of a crime, he commands or encourages another person to engage in specific conduct which would constitute that crime or an attempt to commit that crime or which would establish the other's complicity in its commission or attempted commission.
(2) A criminal solicitation is a:
   (a) Class C felony when the crime solicited is a violation of KRS 521.020 or 521.050;
   (b) Class B felony when the crime solicited is a Class A felony or capital offense;
   (c) Class C felony when the crime solicited is a Class B felony;
   (d) Class A misdemeanor when the crime solicited is a Class C or D felony;
   (e) Class B misdemeanor when the crime solicited is a misdemeanor.

KRS 506.040 Criminal conspiracy

(1) A person having the intention of promoting or facilitating the commission of a crime is guilty of criminal conspiracy when he:
   (a) Agrees with one (1) or more persons that at least one (1) of them will engage in conduct constituting that crime or an attempt or solicitation to commit such a crime; or
   (b) Agrees to aid one or more persons in the planning or commission of that crime or an attempt or solicitation to commit such a crime.
(2) Except as provided in subsection (3) of this section, or in a specific statute to the contrary, a criminal conspiracy is a:
   (a) Class C felony when the conspiratorial agreement is a violation of KRS 521.020 or 521.050;
   (b) Class B felony when the object of the conspiratorial agreement is a Class A felony or capital offense;
   (c) Class C felony when the object of the conspiratorial agreement is a Class B felony;
   (d) Class A misdemeanor when the object of the conspiratorial agreement is a Class C or D felony;
   (e) Class B misdemeanor when the object of the conspiratorial agreement is a misdemeanor.
(3) Any person who is eighteen (18) years of age or older who engages in a criminal conspiracy with a minor shall be charged one (1) level higher than the level provided for the offense which is the object of the conspiratorial agreement.

KRS 506.050 Conspiracy – General provisions

(1) No person may be convicted of conspiracy to commit a crime unless an overt act in furtherance of the conspiracy is alleged and proved to have been committed by one (1) of the conspirators.
(2) A person who conspires to commit more than one (1) crime, all of which are the object of the same agreement or continuous conspiratorial relationship, is guilty of only one (1) conspiracy. The classification of this crime under subsection (2) of KRS 506.040 shall be determined by the most serious offense which he is found guilty of conspiring to commit.
(3) If a person guilty of conspiracy, as defined by KRS 506.040, knows that a person with whom he conspires to commit a crime has conspired with another person or persons to commit the same crime, he is guilty of conspiring to commit the crime with the other person or persons, whether or not he knows their identity.
(4) No person may be convicted of conspiracy to commit a crime when an element of that crime is agreement with the person with whom he is alleged to have conspired or when that crime is so defined that his conduct is an inevitable incident to its commission.

KRS 506.060 Criminal solicitation or conspiracy – Defense of renunciation

(1) In any prosecution for criminal solicitation or criminal conspiracy in which the crime solicited or the crime contemplated by the conspiracy was not in fact committed, it is a defense that, under circumstances manifesting a voluntary and complete renunciation of his criminal purpose, the defendant prevented the commission of the crime.
(2) A renunciation is not "voluntary and complete" within the meaning of this section when it is motivated in whole or in part by:
    (a) A belief that circumstances exist which pose a particular threat of apprehension or detection of the accused or another participant in the criminal enterprise or which render more difficult the accomplishment of the criminal purpose; or
    (b) A decision to postpone the criminal conduct until another time or to transfer the criminal effort to another victim or another but similar object.

KRS 506.070 Incapacity or solicitee or co-conspirator

(1) It is no defense to a prosecution for criminal solicitation that the person solicited could not be guilty of the crime solicited because of:
    (a) Criminal irresponsibility or other legal incapacity or exemption; or
    (b) Unawareness of the criminal nature of the conduct solicited or of the defendant's criminal purpose; or
    (c) Any other factor precluding the mental state required for the commission of the crime solicited.
(2) It is no defense to a prosecution for criminal conspiracy that a co-conspirator could not be guilty of the conspiracy or the crime contemplated by the conspiracy because of:
    (a) Criminal irresponsibility or other legal incapacity or exemption; or
    (b) Unawareness of the criminal nature of the conspiracy or the conduct contemplated by the conspiracy or of the defendant's criminal purpose; or
    (c) Any other factor precluding the mental state required for the commission of the conspiracy or the crime contemplated by the conspiracy.
(3) A defendant cannot be convicted of conspiracy if all of his co-conspirators have been acquitted or discharged under circumstances amounting to an acquittal.

KRS 506.080 Criminal facilitation

(1) A person is guilty of criminal facilitation when, acting with knowledge that another person is committing or intends to commit a crime, he engages in conduct which knowingly provides such person with means or opportunity for the commission of the crime and which in fact aids such person to commit the crime.
(2) Criminal facilitation is a:
    (a) Class D felony when the crime facilitated is a Class A or Class B felony or capital offense;

(b) Class A misdemeanor when the crime facilitated is a Class C or Class D felony;
(c) Class B misdemeanor when the crime facilitated is a misdemeanor.

KRS 506.090 Criminal facilitation – No defense

In any prosecution for criminal facilitation, it is no defense that:
(1) The person facilitated could not be guilty of the crime facilitated because of criminal irresponsibility or other legal incapacity or exemption, unawareness of the criminal nature of the conduct facilitated, or any other factor precluding the mental state required for commission of the crime facilitated; or
(2) The person facilitated has not been prosecuted for or convicted of the crime facilitated, or has been convicted of a different crime, or has an immunity to prosecution or conviction for such conduct; or
(3) The crime facilitated can be committed only by a particular class or classes of persons, and the accused, not belonging to such class or classes, is for that reason legally incapable of committing the crime in an individual capacity.

KRS 506.100 Criminal facilitation -- Exemptions

A person is not guilty of criminal facilitation when:
(1) The crime facilitated is so defined that his conduct is inevitably incident to its commission; or
(2) Prior to the commission of the crime facilitated he makes a substantial effort to prevent the commission of that crime.

KRS 506.110 Multiple convictions

(1) A person may not be convicted on the basis of the same course of conduct of both the actual commission of a crime and:
(a) A criminal attempt to commit that crime; or
(b) A criminal solicitation of that crime; or
(c) A criminal facilitation of that crime; or
(d) A conspiracy to commit that crime, except as provided in subsection (2) of this section.
(2) A person may be convicted on the basis of the same course of conduct of both the actual commission of a crime and a conspiracy to commit that crime when the conspiracy from which the consummated crime resulted had as an objective of the conspiratorial relationship the commission of more than one (1) crime.
(3) A person may not be convicted of more than one (1) of the offenses defined in KRS 506.010, 506.030, 506.040 and 506.080 for a single course of conduct designed to consummate in the commission of the same crime.

KRS 506.120 Engaging in organized crime

(1) A person, with the purpose to establish or maintain a criminal syndicate or to facilitate any of its activities, shall not do any of the following:
(a) Organize or participate in organizing a criminal syndicate or any of its activities;
(b) Provide material aid to a criminal syndicate or any of its activities, whether such aid is in the form of money or other property, or credit;
(c) Manage, supervise, or direct any of the activities of a criminal syndicate, at any level of responsibility;
(d) Knowingly furnish legal, accounting, or other managerial services to a criminal syndicate;
(e) Commit, or conspire or attempt to commit, or act as an accomplice in the commission of, any offense of a type in which a criminal syndicate engages on a continuing basis;
(f) Commit, or conspire or attempt to commit or act as an accomplice in the commission of, any offense of violence;
(g) Commit, or conspire or attempt to commit, or act as an accomplice in the commission of bribery in violation of KRS Chapters 518 ***[Miscellaneous crimes affecting businesses, occupations and professions]*** or 521 ***[Bribery and corrupt influences]*** or KRS 119.205, ***[Making or receiving expenditures for vote, for withholding of vote, or for signing a***

petition to have public question on ballot], 121.025 ***[Corporate contribution to candidate]***, 121.055 ***[Candidate obligating self for actions to be taken when elected]***, 524.070 ***[Bribe receiving by a juror]***, 156.465 ***[Giving reward to department of education personnel for adoption of books]***, 45A.340 ***[Conflicts of interest of public officers and employees under model procurement code]***, 63.090 ***[Neglect of duty]***, 6.080 ***[Refusal to testify before legislature or attempt to corrupt legislator]***, 18A.145 ***[Other acts prohibited by state personnel]***, or 244.600 ***[Commercial bribery unlawful]***;

(h) Commit, or conspire or attempt to commit, or act as an accomplice in the commission of more than one (1) theft of retail merchandise with the intent to resell the stolen merchandise; or

(i) Acquire stolen retail merchandise for the purpose of reselling it where the person knew or should have known that the merchandise had been stolen.

(2) Whoever violates this section is guilty of engaging in organized crime, which shall be a Class B felony, unless the offense involves only the theft or acquisition of retail merchandise for the purpose of reselling it in which case it shall be a Class C felony.

(3) As used in this section "criminal syndicate" means three (3) or more persons, or, in cases of merchandise theft from a retail store for the purpose of reselling the stolen merchandise, two (2) or more persons, collaborating to promote or engage in any of the following criminal acts provided in subsection (4)(a) to (f) of this section on a continuing basis.

(4) As used in this section, “criminal gang syndicate” means three (3) or more persons acting as a part of or members of a criminal gang and collaborating to promote or engage in any of the following on a continuing basis:

(a) Extortion or coercion in violation of KRS 514.080 ***[Theft by extortion]*** or 521.020 ***[Bribery of a public servant]***;

(b) Engaging in, promoting, or permitting prostitution or human trafficking in violation of KRS Chapter 529 ***[Prostitution offenses]***;

(c) Any theft offense as defined in KRS Chapter 514 ***[Theft and related offenses]***;

(d) Any gambling offense as defined in KRS 411.090 ***[Gaming on premises without permission]***, KRS Chapter 528 ***[Gambling]***, or Section 226 of the Constitution ***[State lottery]***;

(e) Illegal trafficking in controlled substances as prohibited by KRS Chapter 218A, in intoxicating or spirituous liquor as defined in KRS Chapters 242 or 244, or in destructive devices or booby traps as defined in KRS Chapter 237;

(f) Lending at usurious interest, and enforcing repayment by illegal means in violation of KRS Chapter 360.

(5) Any person found to have been a member of a criminal gang syndicate while engaging in the criminal acts listed in subsection (4) of this section shall not be released on probation or parole until he or she has served at least eighty-five percent (85%) of the sentence imposed.

KRS 506.135 Definitions for chapter

As used in this chapter:

(1) "Criminal gang" means any alliance, network, conspiracy, or group that:

(a) Consists of three (3) or more persons who have any of the following in common:

1. Name;
2. Identifying hand signal or sign;
3. Colors;
4. Symbols;
5. Geographical location; or
6. Leader;

(b) Has been identified or prosecuted as a gang by the Commonwealth, or another state or any federal law enforcement agency; and

(c) Has two (2) or more members who, individually or collectively, through its members or actions of its members engage in or have engaged in a pattern of criminal activity.

"Criminal gang" does not include fraternal organizations, unions, corporations, associations, or similar entities, unless organized for the primary purpose of engaging in criminal activity; and

(2) "Pattern of criminal gang activity" means acts performed on separate occasions within a five (5) year period by any member or members of a criminal gang for the commission, attempt, or solicitation of, or conspiracy to commit:
(a) Two (2) or more felony offenses;
(b) Three (3) or more of the misdemeanor offenses enumerated in KRS 506.160; or
(c) A combination of at least:
1. One (1) felony offense; and
2. One (1) of the misdemeanor offenses enumerated in KRS 506.160.

KRS 506.140 Criminal gang recruitment

(1) (a) Any person who is age eighteen (18) or older is guilty of criminal gang recruitment in the first degree if he or she:
1. Solicits or entices any person under the age of fifteen (15) to join a criminal gang; and
2. Requires as a condition of membership the commission of a crime.
(b) Criminal gang recruitment in the first degree is a Class C felony for the first offense and a Class B felony for a second or subsequent offense.
(2) (a) Any person over the age of eighteen (18) is guilty of criminal gang recruitment in the second degree if he or she entices or solicits another person to join a criminal gang or intimidates or threatens another person because the other person:
1. Refuses to join a criminal gang;
2. Has withdrawn or is attempting to withdraw from a criminal gang; or
3. Refuses to submit to a demand made by a criminal gang.
(b) Criminal gang recruitment in the second degree is a Class D felony for the first offense and a Class C felony for a second or subsequent offense.
(3) (a) Any person under the age of eighteen (18) is guilty of criminal gang recruitment in the third degree when he or she intentionally encourages or solicits another person to join a criminal gang.
(b) Criminal gang recruitment in the third degree is a Class A misdemeanor for the first offense and a Class D felony for a second or subsequent offense.
(4) It shall be no defense to prosecution under this section that the other person never intended to or did not commit the crime.

KRS 506.150 Criminal gang activity or recruitment – Actions not constituting defenses

(1) To establish the existence of a "criminal gang" as defined in KRS 506.135, competent evidence that is probative of the existence of or membership in a criminal gang shall be admissible, including two (2) or more of the following:
(a) Self-proclamation, either at the time of arrest or any time before or thereafter;
(b) A common name, insignia, flag, or means of recognition;
(c) Common identifying hand or body signs, signals, graffiti, or code;
(d) A common identifying mode, style, or color of dress;
(e) An identifying tattoo or body marking;
(f) Membership, age, or other qualifications;
(g) Creed of belief;
(h) An organizational or command structure, overt or covert;
(i) A de facto claim of territory or jurisdiction;
(j) Participation, whether present or under direction, in an initiation ritual;
(k) Directing or ordering participation in an initiation ritual;
(l) A concentration of specialty;
(m) A method of criminal enterprise;
(n) Identification as a gang member by a reliable informant;
(o) Identification as a criminal gang member by the alleged gang member's parent or guardian;
(p) Self-proclamation of association, whether for business or enjoyment, with criminal gang members;
(q) Identification through criminal gang publications, rosters, or bylaws;
(r) Participation in some form of verbal or written communication indicating the commission of a crime by the criminal gang;

(s) Participation in photos or social media interactions with criminal gang members promoting or furthering criminal activity; or
(t) Having committed or planning to commit crime or a criminal activity to target a rival criminal gang.

(2) It is no defense to prosecution under KRS 506.120, KRS 506.140, KRS 506.160, or KRS 506.170 that:
(a) One (1) or more members of the gang are not criminally responsible for the offense;
(b) One (1) or more members of the gang have been acquitted, have not been prosecuted or convicted, have been convicted of a different offense, or are under prosecution;
(c) A person has been charged with, acquitted, or convicted of any offense under KRS 506.120, KRS 506.140, KRS 506.160, or KRS 506.170;
(d) The participants may not know each other's identity;
(e) The membership in the criminal gang may change from time to time; or
(f) The participants may stand in a wholesaler-retailer or other arm's length arrangement in the conduct of illicit distribution or other operations.

(3) Once the initial combination of three (3) or more persons is formed, the number or identity of persons remaining in the gang is immaterial as long as two (2) or more persons in the gang, excluding the defendant, are involved in a continuing pattern of criminal gang activity constituting a violation of KRS 506.120, KRS 506.140, KRS 506.160, or KRS 506.170.

KRS 506.190 Criminal gang related property subject to forfeiture under same criteria and process as set out in KRS 218A.405 to 218A.460

All property used in connection with or acquired by a criminal gang as defined in 506.135 or any of its members in committing, attempting to commit, or facilitating the commission of a criminal offense shall be subject to forfeiture under the same terms, conditions, and defenses and using the same process as set out in KRS 218A.405 to 218A.460.

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KRS CHAPTER 507
CRIMINAL HOMICIDE

KRS 507.010 Definitions

As used in this chapter:

(1) "Abuse" has the same meaning as in KRS 508.090;

(2) "Criminal homicide" means that a person is guilty of causing the death of another human being under circumstances which constitute murder, manslaughter in the first degree, manslaughter in the second degree, or reckless homicide; and

(3) "Physically helpless" and "mentally helpless" have the same meaning as n KRS 508.090.

KRS 507.020 Murder

(1) A person is guilty of murder when:
   (a) With intent to cause the death of another person, he causes the death of such person or of a third person; except that in any prosecution a person shall not be guilty under this subsection if he acted under the influence of extreme emotional disturbance for which there was a reasonable explanation or excuse, the reasonableness of which is to be determined from the viewpoint of a person in the defendant's situation under the circumstances as the defendant believed them to be. However, nothing contained in this section shall constitute a defense to a prosecution for or preclude a conviction of manslaughter in the first degree or any other crime; or
   (b) Including, but not limited to, the operation of a motor vehicle under circumstances manifesting extreme indifference to human life, he wantonly engages in conduct which creates a grave risk of death to another person and thereby causes the death of another person.

(2) Murder is a capital offense.

KRS 507.030 Manslaughter in the first degree

(1) A person is guilty of manslaughter in the first degree when:
   (a) With intent to cause serious physical injury to another person, he or she causes the death of such person or of a third person; or
   (b) With intent to cause the death of another person, he or she causes the death of such person or of a third person under circumstances which do not constitute murder because he acts under the influence of extreme emotional disturbance, as defined in subsection (1)(a) of KRS 507 020; or
   (c) Through circumstances not otherwise constituting the offense of murder, he or she intentionally abuses another person or knowingly permits another person of whom he or she has actual custody to be abused and thereby causes death to a person twelve (12) years of age or less, or who is physically helpless or mentally helpless; or
   (d) He or she knowingly sells fentanyl or a fentanyl derivative to another person, and the injection, ingestion, inhalation, or other introduction of the fentanyl or fentanyl derivative causes the death of the person.

(2) Manslaughter in the first degree is a Class B felony.

KRS 507.040 Manslaughter in the second degree

(1) A person is guilty of manslaughter in the second degree when he or she wantonly causes the death of another person, including, but not limited to, situations where the death results from the person's:
   (a) Operation of a motor vehicle;
   (b) Leaving a child under the age of eight (8) years in a motor vehicle under circumstances which manifest an extreme indifference to human life and which create a grave risk of death to the child, thereby causing the death of the child; or
   (c) Unlawful distribution for remuneration of a Schedule I or II controlled substance when the controlled substance is the proximate cause of death; or

(d)Knowing distribution of fentanyl or a fentanyl derivative to another person without remuneration, and the injection, ingestion, inhalation, or other introduction of the fentanyl or fentanyl derivative causes the death of the person.

(2) Manslaughter in the second degree is a Class C felony.

KRS 507.050 Reckless homicide

(1) A person is guilty of reckless homicide when, with recklessness he causes the death of another person.

(2) Reckless homicide is Class D felony.

KRS 507.060 Vehicular Homicide

(1) A person is guilty of vehicular homicide when:
(a) He or she causes the death of another; and
(b)The death results from the person's operation of a motor vehicle, including but not limited to boats and airplanes, under the influence of alcohol, a controlled substance, or other substance which impairs driving ability as described in KRS 189A.010.

(2) Vehicular homicide is a Class B felony.

KRS 507.070 Murder of a first responder

(1) As used in this section, "first responder" means:
(a) A peace officer;
(b) Paid or volunteer emergency medical services or rescue personnel;
(c) A paid or volunteer member of an organized fire department; or
(d) Personnel of a private nonprofit organization providing fire, rescue, or emergency medical services; engaged at the time of the act in the lawful performance of his or her duties.

(2) A person is guilty of murder of a first responder when, with the intent to cause the death of a first responder, he or she causes the death of a first responder.

(3) Notwithstanding KRS Chapter 532, murder of a first responder is a capital offense and the person shall be sentenced to death or imprisonment for life without benefit of probation or parole.

KRS CHAPTER 507A

FETAL HOMICIDE

KRS 507A.010 Definitions -- Exceptions

(1) As used in this chapter:
(a) "**Abortion**" has the same meaning as in KRS 311.720;
(b) "**Health care provider**" has the same meaning as in KRS 304.17A-005; and
(c) "**Unborn child**" means a member of the species homo sapiens in utero from conception onward, without regard to age, health, or condition of dependency.

(2) In a prosecution for the death of an unborn child, nothing in this chapter shall apply to acts performed by or at the direction of a health care provider that cause the death of an unborn child if those acts were committed:
(a) During any abortion for which the consent of the pregnant woman has been obtained or for which the consent is implied by law in a medical emergency; or
(b) As part of or incident to diagnostic testing or therapeutic medical or fertility treatment, provided that the acts were performed with that degree of care and skill which an ordinarily careful, skilled, and prudent health care provider or a person acting under the provider's direction would exercise under the same or similar circumstances.

(3) Nothing in this chapter shall apply to any acts of a pregnant woman that caused the death of her unborn child.

KRS 507A.020 Fetal homicide in the first degree

(1) A person is guilty of fetal homicide in the first degree when:

(a) With intent to cause the death of an unborn child or with the intent necessary to commit an offense under KRS 507.020(1)(a), he causes the death of an unborn child; except that in any prosecution, a person shall not be guilty under this subsection if he acted under the influence of extreme emotional disturbance for which there was a reasonable explanation or excuse, the reasonableness of which is to be determined from the viewpoint of a person in the defendant's situation under the circumstances as the defendant believed them to be. However, nothing contained in this section shall constitute a defense to a prosecution for or preclude a conviction of fetal homicide in the second degree or any other crime; or
(b) Including but not limited to the operation of a motor vehicle under circumstances manifesting extreme indifference to human life, he wantonly engages in conduct which creates a grave risk of death to an unborn child and thereby causes the death of an unborn child.

(2) Fetal homicide in the first degree is a capital offense.

KRS 507A.030 Fetal Homicide in the second degree

(1) A person is guilty of fetal homicide in the second degree when:
(a) With intent to cause serious physical injury to an unborn child or with the intent necessary to commit an offense under KRS 507.030(1)(a), he causes the death of an unborn child; or
(b) With intent to cause the death of an unborn child or with the intent necessary to commit an offense under KRS 507.030(1) (b), he causes the death of an unborn child under circumstances which do not constitute fetal homicide in the first degree because he acts under the influence of extreme emotional disturbance, as defined in KRS 507A.020 (1) (a).

(2) Fetal homicide in the second degree is a Class B felony.

KRS 507A.040 Fetal homicide in the third degree

(1) A person is guilty of fetal homicide in the third degree when he wantonly causes the death of an unborn child, including but not limited to situations where the death results from the person's operation of a motor vehicle.
(2) Fetal homicide in the third degree is a Class C felony.

KRS 507A.050 Fetal homicide in the fourth degree

(1) A person is guilty of fetal homicide in the fourth degree when, with recklessness, he causes the death of an unborn child.
(2) Fetal homicide in the fourth degree is a Class D felony.

KRS 507A.060 Death sentence prohibited

The death of an unborn child shall not result in the imposition of a sentence of death, either as a result of the violation of KRS 507A.020 or as a result of the aggravation of another capital offense under KRS 532.025(2).

KRS CHAPTER 508
ASSAULT AND RELATED OFFENSES

KRS 508.010 Assault in the first degree

(1) A person is guilty of assault in the first degree when:
(a) He intentionally causes serious physical injury to another person by means of a deadly weapon or a dangerous instrument; or
(b) Under circumstances manifesting extreme indifference to the value of human life he wantonly engages in conduct which creates a grave risk of death to another and thereby causes serious physical injury to another person.

(2) Assault in the first degree is a Class B felony.

KRS 508.020 Assault in the second degree

(1) A person is guilty of assault in the second degree when:

(a) He intentionally causes serious physical injury to another person; or
(b) He intentionally causes physical injury to another person by means of a deadly weapon or a dangerous instrument; or
(c) He wantonly causes serious physical injury to another person by means of a deadly weapon or a dangerous instrument.

(2) Assault in the second degree is a Class C felony.

KRS 508.025 Assault in the third degree

(1) A person is guilty of assault in the third degree when the actor:
(a) Recklessly, with a deadly weapon or dangerous instrument, or intentionally causes or attempts to cause physical injury to:
1. A state, county, city, or federal peace officer;
2. An employee of a detention facility, or state residential treatment facility or state staff secure facility for residential treatment which provides for the care, treatment, or detention of a juvenile charged with or adjudicated delinquent because of a public offense or as a youthful offender;
3. A healthcare provider as defined in KRS 311.821 or other person employed by or under contract with a health clinic, doctor's office, dental office, long-term care facility, hospital, or a hospital-owned or affiliate outpatient facility, if the event occurs in or on the premises of a health clinic, doctor's office, dental office, long-term care facility, hospital, or a hospital-owned or affiliate outpatient facility;
4. An employee of the Department for Community Based Services employed as a social worker to provide direct client services, if the event occurs while the worker is performing job related duties;
5. Paid or volunteer emergency medical services personnel certified or licensed pursuant to KRS Chapter 311A, if the event occurs while personnel are performing job-related duties;
6. A paid or volunteer member of an organized fire department, if the event occurs while the member is performing job-related duties;
7. Paid or volunteer rescue squad personnel affiliated with the Division of Emergency Management of the Department of Military Affairs or a local disaster and emergency services organization pursuant to KRS Chapter 39F, if the event occurs while personnel are performing job-related duties;
8. A probation and parole officer;
9. A transportation officer appointed by a county fiscal court or legislative body of a consolidated local government, urban-county government, or charter government to transport inmates when the county jail or county correctional facility is closed while the transportation officer is performing job related duties;
10. A public or private elementary or secondary school or school district classified or certified employee, school bus driver, or other school employee acting in the course and scope of the employee's employment; or
11. A public or private elementary or secondary school or school district volunteer acting in the course and scope of that person's volunteer service for the school or school district;
(b) Being a person confined in a detention facility, or a juvenile in a state residential treatment facility or state staff secure facility for residential treatment which provides for the care, treatment, or detention of a juvenile charged with or adjudicated delinquent because of a public offense or as a youthful offender, inflicts physical injury upon or throws or causes feces, urine, or other bodily fluid to be thrown upon an employee of the facility; or
(c) Intentionally causes a person, whom the actor knows or reasonably should know to be a peace officer discharging official duties, to come into contact with saliva, vomit, mucus, blood, seminal fluid, urine, or feces without the consent of the officer.

EDITOR'S NOTE: Although no mental state is specified in KRS 508.025(1) (b), read it as requiring a mental state of "intentionally" or "wantonly". Covington v. Com., 849 S.W.2d 560 (Ky. App. 1992).

(2) (a) For a violation of subsection (1)(a) of this section, assault in the third degree is a Class D felony, unless the offense occurs during a declared emergency as defined by KRS 39A.020

arising from a natural or man-made disaster, within the area covered by the emergency declaration, and within the area impacted by the disaster, in which case it is a Class C felony.

(b) For a violation of subsection (1)(b) of this section, assault in the third degree is a Class D felony.

(c) For violations of subsection (1)(c) of this section, assault in the third degree is a Class B misdemeanor, unless the assault is with saliva, vomit, mucus, blood, seminal fluid, urine, or feces from an adult who knows that he or she has a serious communicable disease and competent medical or epidemiological evidence demonstrates that the specific type of contact caused by the actor is likely to cause transmission of the disease or condition, in which case it is a Class A misdemeanor.

(d) As used in paragraph (c) of this subsection, "serious communicable disease" means a non-airborne disease that is transmitted from person to person and determined to have significant, long-term consequences on the physical health or life activities of the person infected.

KRS 508.030 Assault in the fourth degree

(1) A person is guilty of assault in the fourth degree when:
   (a) He intentionally or wantonly causes physical injury to another person; or
   (b) With recklessness he causes physical injury to another person by means of a deadly weapon or a dangerous instrument.

(2) Assault in the fourth degree is a Class A misdemeanor.

KRS 508.032 Assault of family member or member of an unmarried couple – Enhancement of penalty

(1) If an individual is found guilty or pleads guilty to a third or subsequent offense of assault in the fourth degree pursuant to KRS 508.030 within five (5) years, and the relationship between the perpetrator and the victim in each of the offenses meets the definition of family member or member of an unmarried couple, as defined in KRS 403.720, the penalty shall be enhanced by one (1) degree above the penalty otherwise provided for the offense. The victim in the second or subsequent offense is not required to be the same person who was assaulted in the prior offenses in order for the provisions of this section to apply.

(2) In determining the five (5) year period under this section, the period shall be measured from the dates on which the offenses occurred for which the judgments of conviction were entered by a court of competent jurisdiction.

KRS 508.040 Assault under extreme emotional disturbance

(1) In any prosecution under KRS 508.010, 508.020 or 508.030 in which intentionally causing physical injury or serious physical injury is an element of the offense, the defendant may establish in mitigation that he acted under the influence of extreme emotional disturbance, as defined in subsection (1)(a) of KRS 507.020.

(2) An assault committed under the influence of extreme emotional disturbance is:
   (a) A Class D felony when it would constitute an assault in the first degree or an assault in the second degree if not committed under the influence of an extreme emotional disturbance; or
   (b) A Class B misdemeanor when it would constitute an assault in the fourth degree if not committed under the influence of an extreme emotional disturbance.

KRS 508.050 Menacing

(1) A person is guilty of menacing when he intentionally places another person in reasonable apprehension of imminent physical injury.

(2) Menacing is a Class B misdemeanor.

KRS 508.060 Wanton endangerment in the first degree

(1) A person is guilty of wanton endangerment in the first degree when, under circumstances manifesting extreme indifference to the value of human life, he or she wantonly engages in conduct which creates a substantial danger of death or serious physical injury to another person.
(2) Wanton endangerment in the first degree is a Class D felony, unless the person discharges a firearm in the commission of the offense, in which case it is a Class C felony.

KRS 508.070 Wanton endangerment in the second degree

(1) A person is guilty of wanton endangerment in the second degree when he wantonly engages in conduct which creates a substantial danger of physical injury to another person.
(2) Wanton endangerment in the second degree is a Class A misdemeanor.

KRS 508.075 Terroristic threatening in the first degree

(1) A person is guilty of terroristic threatening in the first degree when he or she:
   (a) Intentionally makes false statements that he or she or another person has placed a weapon of mass destruction on:
      1. The real property or any building of any public or private elementary or secondary school, vocational school, or institution of postsecondary education;
      2. A school bus or other vehicle owned, operated, or leased by a school;
      3. The real property or any building public or private that is the site of an official school-sanctioned function;
      4. The real property of any building owned or leased by a government agency;
      5. The real property or any building owned or leased by a domestic violence shelter as defined in KRS 511.085;
      6. Any workplace; or
      7. The real property or any building public or private that is the site of any gathering of three (3) or more persons; or
   (b) Intentionally and without lawful authority, places a counterfeit weapon of mass destruction at any location or on any object specified in paragraph (a) of this subsection.
(2) A counterfeit weapon of mass destruction is placed with lawful authority if it is placed, with the written permission of the chief officer of the school or other institution, as a part of an official training exercise and is placed by a public servant, as defined in KRS 522.010.
(3) A person is not guilty of commission of an offense under this section if he or she, innocently and believing the information to be true, communicates a threat made by another person to school personnel, domestic violence shelter personnel, a peace officer, a law enforcement agency, a public agency involved in emergency response, or a public safety answering point and identifies the person from whom the threat was communicated, if known.
(4) Terroristic threatening in the first degree is a Class C felony.

KRS 508.078 Terroristic threatening in the second degree

(1) A person is guilty of terroristic threatening in the second degree when, other than as provided in KRS 508.075 he or she intentionally:
   (a) With respect to any scheduled, publicly advertised event open to the public, any place of worship, any school function, any workplace, or any gathering of three (3) or more persons, threatens to commit by any means, including by use of a firearm, any act likely to result in death or serious physical injury to any person. A threat directed at a person or persons at a scheduled publicly advertised event open to the public, place of worship, school, workplace, or gathering of three (3) or more persons does not need to identify a specific person or persons or school in order for a violation of this section to occur;
   (b) Makes false statements by any means, including by electronic communication, indicating that an act likely to result in death or serious physical injury is occurring or will occur for the purpose of:
      1. Causing evacuation of a school building, school property, or school sanctioned activity;
      2. Causing cancellation of school classes or school sanctioned activity; or

3. Creating fear of death or serious physical injury among students, parents, or school personnel;

(c) Makes false statements that he or she has placed a weapon of mass destruction at any location other than one specified in KRS 508.075; or

(d) Without lawful authority places a counterfeit weapon of mass destruction at any location other than one specified in KRS.508.075.

(2) A counterfeit weapon of mass destruction is placed with lawful authority if it is placed as part of an official training exercise by a public servant, as defined in KRS 522.010.

(3) A person is not guilty of commission of an offense under this section if he or she, innocently and believing the information to be true, communicates a threat made by another person to school personnel, a peace officer, a law enforcement agency, a public agency involved in emergency response, or a public safety answering point and identifies the person from whom the threat was communicated, if known.

(4) Except as provided in subsection (5) of this section, terroristic threatening in the second degree is a Class D felony.

(5) Terroristic threatening in the second degree is a Class C felony when, in addition to violating subsection (1) of this section, the person intentionally engages in substantial conduct required to prepare for or carry out the threatened act, including but not limited to gathering weapons, ammunition, body armor, vehicles, or materials required to manufacture a weapon of mass destruction.

KRS 508.080 Terroristic threatening in the third degree

(1) Except as provided in KRS 508.075 or 508.078, a person is guilty of terroristic threatening in the third degree when:

(a) He threatens to commit any crime likely to result in death or serious physical injury to another person or likely to result in substantial property damage to another person; or

(b) He intentionally makes false statements for the purpose of causing evacuation of a building, place of assembly, or facility of public transportation.

(2) Terroristic threatening in the third degree is a Class A misdemeanor.

KRS 508.090 Definitions for KRS 508.100 to 508.120

The following definitions apply in KRS 508.100 to 508.120 unless the context otherwise requires:

(1) "**Abuse**" means the infliction of physical pain, injury, or mental injury, or the deprivation of services by a person which are necessary to maintain the health and welfare of a person, or a situation in which an adult, living alone, is unable to provide or obtain for himself the services which are necessary to maintain his health or welfare.

(2) "**Physically helpless**" and "**mentally helpless**" means a person who lacks substantial capacity to defend himself or solicit protection from law enforcement agencies.

KRS 508.100 Criminal abuse in the first degree

(1) A person is guilty of criminal abuse in the first degree when he intentionally abuses another person or permits another person of whom he has actual custody to be abused and thereby:

(a) Causes serious physical injury; or

(b) Places him in a situation that may cause him serious physical injury; or

(c) Causes torture, cruel confinement or cruel punishment;

to a person twelve (12) years of age or less, or who is physically helpless or mentally helpless.

(2) Criminal abuse in the first degree is a Class C felony unless the victim is under twelve (12) years old in which case it is a Class B felony.

KRS 508.110 Criminal abuse in the second degree

(1) A person is guilty of criminal abuse in the second degree when he wantonly abuses another person or permits another person of whom he has actual custody to be abused and thereby:

(a) Causes serious physical injury; or

(b) Places him in a situation that may cause him serious physical injury; or

(c) Causes torture, cruel confinement or cruel punishment
to a person twelve (12) years of age or less, or who is physically helpless or mentally helpless.
(2) Criminal abuse in the second degree is a Class D felony.

KRS 508.120 Criminal abuse in the third degree

(1) A person is guilty of criminal abuse in the third degree when he recklessly abuses another person or permits another person of whom he has actual custody to be abused and thereby:
(a) Causes serious physical injury; or
(b) Places him in a situation that may cause him serious physical injury; or
(c) Causes torture, cruel confinement or cruel punishment;
to a person twelve (12) years of age or less, or who is physically helpless or mentally helpless.
(2) Criminal abuse in the third degree is a Class A misdemeanor.

KRS 508.125 Female genital mutilation

(1) As used in this section, "female genital mutilation" means a procedure that involves the partial or total removal of the external female genitalia or any procedure harmful to the female genitalia, including but not limited to:
(a) A clitoridectomy;
(b) The partial or total removal of the clitoris and the labia minora, with or without excisions of the labia majora;
(c) The excision or the partial or total removal of the clitoris and the labia minora, with or without excisions of the labia majora;
(d) The infibulation of the narrowing of the vaginal orifice with the creation of a covering seal by cutting and appositioning of the labia minora or the labia majora, with or without the excision of the clitoris;
(e) Pricking, piercing, incising, scraping, or cauterizing the genital area; or
(f) Any other action to purposely alter the structure or function of the female genitalia for a nonmedical reason.
(2) A person is guilty of female genital mutilation when:
(a) The person knowingly performs female genital mutilation on another person under eighteen (18) years of age;
(b) The person is a parent, guardian, or has immediate custody or control of a person under eighteen (18) years of age and knowingly consents to or permits female genital mutilation of such person; or
(c) The person knowingly removes or causes or permits the removal of a person under eighteen (18) from Kentucky for the purposes of performance of female genital mutilation of the person.
(3) It is not a defense to female genital mutilation that the conduct under subsection (2) of this section is:
(a) Required as a matter of religion, custom, ritual, or standard practice; or
(b) Consented to by the individual on whom it is performed or the individual's parent or guardian.
(4) A surgical procedure is not a violation of subsection (1) of this section if the procedure is:
(a) Necessary to the health of the person on whom it is performed and is performed by a person licensed in the place of its performance as a health care provider; or
(b) Performed on a person in labor or who has just given birth and is performed for medical purposes connected with that labor or birth by a person licensed in the place of its performance as a health care provider.
(5) Female genital mutilation is a Class B felony.

KRS 508.130 Definitions for KRS 508.130 to 508.150

As used in KRS 508.130 to 508.150, unless the context requires otherwise:

(1) (a) To "**stalk**" means to engage in an intentional course of conduct:
1. Directed at a specific person or persons;
2. Which seriously alarms, annoys, intimidates, or harasses the person or persons; and
3. Which serves no legitimate purpose.

(b) The course of conduct shall be that which would cause a reasonable person to suffer substantial mental distress.

(2) "**Course of conduct**" means a pattern of conduct composed of two (2) or more acts, evidencing a continuity of purpose. One (1) or more of these acts may include the use of any equipment, instrument, machine, or other device by which communication or information is transmitted, including computers, the Internet or other electronic network, cameras, or other recording devices, telephones or other personal communications devices, scanners or other copying devices, and any device that enables the use of a transmitting device. Constitutionally-protected activity is not included within the meaning of "course of conduct." If the defendant claims that he was engaged in constitutionally protected activity, the court shall determine the validity of that claim as a matter of law and, if found valid, shall exclude that activity from evidence.

(3) "**Protective order**" means:
(a) An emergency protective order or domestic violence order issued under KRS 403.715 to 403.785;
(b) A foreign protective order, as defined in KRS 403.720 and 456.010;
(c) An order issued under KRS 431.064;
(d) A restraining order issued in accordance with KRS 508.155; and
(e) An order of protection as defined in KRS 403.720 and 456.010; and
(f) Any condition of a bond, conditional release, probation, parole, or pretrial diversion order designed to protect the victim from the offender.

KRS 508.140 Stalking in the first degree.

(1) A person is guilty of stalking in the first degree,
(a) When he intentionally:
1. Stalks another person; and
2. Makes an explicit or implicit threat with the intent to place that person in reasonable fear of:
a. Sexual contact as defined in KRS 510.010; or
b. Serious physical injury; or
c. Death; and

(b) 1. A protective order has been issued by the court to protect the same victim or victims and the defendant has been served with the summons or order or has been given actual notice; or
2. A criminal complaint is currently pending with a court, law enforcement agency, or prosecutor by the same victim or victims and the defendant has been served with a summons or warrant or has been given actual notice; or
3. The defendant has been convicted of or pled guilty within the previous five (5) years to a felony or to a Class A misdemeanor against the same victim or victims; or
4. The act or acts were committed while the defendant had a deadly weapon on or about his person.

(2) Stalking in the first degree is a Class D felony.

KRS 508.150 Stalking in the second degree.

(1) A person is guilty of stalking in the second degree when he intentionally:
(a) Stalks another person; and
(b) Makes an explicit or implicit threat with the intent to place that person in reasonable fear of;
1. Sexual contact as defined in KRS 510.010;
2. Physical injury; or

3. Death.

(2) Stalking in the second degree is a Class A misdemeanor.

KRS 508.152 Unlawful use of a tracking device

(1) As used in this section:
(a) "Motor vehicle" has the same meaning as "vehicle" in KRS 186.010(8)(a);
(b) "Protective order" has the same meaning as in KRS 508.130; and
(c) "Tracking device" means an electronic or mechanical device that is designed or intended to allow a person to remotely determine or track the position or movement of another person or an object, regardless of whether that information is recorded.

(2) A person is guilty of unlawful use of a tracking device when he or she intentionally:
(a) Install or places a tracking device, or causes a tracking device to be installed or placed, in or on a motor vehicle without the knowledge and consent of the owner of the motor vehicle or, if the motor vehicle is leased, the lessee or authorized operator of the motor vehicle;
(b) Tracks the location of a motor vehicle with a tracking device without the knowledge and consent of either the owner or the authorized operator of the motor vehicle or, if the motor vehicle is leased, either the lessee or authorized operator of the motor vehicle;
(c) While being the restrained party under a protective order, uses a tracking device to track the location of a motor vehicle operated or occupied by an individual protected under the order; or
(d) While on probation or parole for a crime defined in KRS Chapter 508, uses a tracking device to track the location of a motor vehicle operated or occupied by a victim of the crime or by a family member of the victim of the crime without the knowledge and consent of the victim or family member.

(3) Unlawful use of a tracking device is a Class A misdemeanor.

(4) Subsection (2) of this section does not apply to the installation or use of any:
(a)Device providing vehicle tracking for purposes of providing mechanical, operational, directional, navigation, weather, or traffic information to the operator of the vehicle;
(b)Device for providing emergency assistance to the operator or passengers of the vehicle under the terms and conditions of a subscription service, including any trial period of that subscription service;
(c) Device for providing missing vehicle assistance for the benefit of the owner or operator of the vehicle;
(d) Device providing diagnostic services regarding the mechanical operation of a vehicle under the terms and conditions of a subscription service, including any trial period of the subscription service;
(e) Device or service providing the lessee of the vehicle with clear notice that the vehicle may be tracked. For a lessor who installs a tracking device subsequent to the original vehicle manufacture, the notice shall be provided in writing with an acknowledgment signed by the lessee, regardless of whether the tracking device is original equipment, a retrofit, or an aftermarket product. The requirement for written acknowledgment placed upon the lessor is not imposed upon the manufacturer of the tracking device or the manufacturer of the vehicle;
(f) Tracking device by the parent or guardian of a minor on any vehicle owned or leased by that parent or guardian of the minor, and operated by the minor; or
(g) Tracking device by a police officer while lawfully performing his or her duties as a police officer.

KRS 508.155 Restraining order or interpersonal protective order to be issued upon violation of KRS 508.140 or 508.150

(1) (a) Before January 1, 2016, a verdict of guilty or a plea of guilty to KRS 508.140 or 508.150 shall operate as an application for a restraining order utilizing the provisions of this section and limiting the contact of the defendant and the victim who was stalked, unless the victim requests otherwise.

(b) Beginning January 1, 2016, a verdict of guilty or a plea of guilty to KRS 508.140 or 508.150 shall operate as an application for an interpersonal protective order issued under KRS Chapter 456, unless the victim requests otherwise. Notwithstanding the provisions of KRS Chapter 456:

1. An interpersonal protective order requested under this subsection may be issued by the court that entered the judgment of conviction;

2. The judgment of conviction shall constitute sufficient cause for the entry of the order without the necessity of further proof being taken; and

3. The order may be effective for up to ten (10) years, with further renewals in increments of up to ten (10) years.

* * * * *

(4) A restraining order may grant the following specific relief:
   (a) An order restraining the defendant from entering the residence, property, school, or place of employment of the victim; or
   (b) An order restraining the defendant from making contact with the victim, including an order forbidding the defendant from personally, or through an agent, initiating any communication likely to cause serious alarm, annoyance, intimidation, or harassment including, but not limited to, personal, written, telephonic, or any other form of written or electronic communication or contact with the victim. An order issued pursuant to this subsection relating to a school, place of business, or similar nonresidential location shall be sufficiently limited to protect the stalking victim but shall also protect the defendant's right to employment, education, or the right to do legitimate business with the employer of a stalking victim as long as the defendant does not have contact with the stalking victim. The provisions of this subsection shall not apply to a contact by an attorney regarding a legal matter.

(5) A restraining order issued pursuant to this section shall be valid for a period of not more than ten (10) years, the specific duration of which shall be determined by the court. Any restraining order shall be based upon the seriousness of the facts before the court, the probability of future violations, and the safety of the victim, his or her immediate family, or both.

(6) Unless the defendant has been convicted of a felony, or is otherwise ineligible to purchase or possess a firearm under federal law, a restraining order issued pursuant to this section shall not operate as a ban on the purchase or possession of firearms or ammunition by the defendant.

* * * * *

(8) Within twenty-four (24) hours of entry of a restraining order or entry of an order rescinding a restraining order, the circuit clerk shall forward a copy of the order to the Law Information Network of Kentucky (LINK).

(9) A restraining order issued under this section shall be enforced in any county of the Commonwealth. Law enforcement officers acting in good faith in enforcing a restraining order shall be immune from criminal and civil liability.

(10) A violation by the defendant of an order issued pursuant to this section shall be a Class A misdemeanor. Nothing in this section shall preclude the filing of a criminal complaint for stalking based on the same act which is the basis for the violation of the restraining order.

KRS 508.160 Disarming a peace officer – Penalty - Applicability

(1) A person is guilty of disarming a peace officer when he intentionally:
   (a) Removes a firearm or other deadly weapon from the person of a peace officer when the peace officer is acting within the scope of his official duties; or
   (b) Deprives a peace officer of the officer’s use of a firearm or deadly weapon when the peace officer is acting within the scope of his official duties.

(2) Disarming a peace officer is a Class D felony.

(3) The provisions of this section shall not apply when:
   (a) The defendant does not know or could not reasonably have known that the person disarmed was a peace officer; or
   (b) The peace officer was, at the time of the disarming or incident thereto, engaged in felonious conduct.

KRS 508.170 Strangulation in the first degree

(1) A person is guilty of strangulation in the first degree when the person, without consent, intentionally impedes the normal breathing or circulation of the blood of another person by:
  (a) Applying pressure on the throat or neck of the other person; or
  (b) Blocking the nose or mouth of the other person.
(2) Strangulation in the first degree is a Class C felony.

RS 508.175 Strangulation in the second degree

(1) A person is guilty of strangulation in the second degree when the person, without consent, wantonly impedes the normal breathing or circulation of the blood of another person by:
  (a) Applying pressure on the throat or neck of the other person; or
  (b) Blocking the nose or mouth of the other person.
(2) Strangulation in the second degree is a Class D felony.

KRS 508.180 Definitions for KRS 508.180 to 508.186

As used in KRS 508.180 to 508.186, unless the context requires otherwise:
(1) "Hazing" means a direct action which substantially endangers the physical health of a minor or student for the purpose of recruitment, initiation into, affiliation with, or enhancing or maintaining membership or status within any organization, including but not limited to actions which coerce or force a minor or a student to:
  (a) Violate federal or state criminal law;
  (b) Consume any food, liquid, alcoholic liquid, drug, tobacco product, or other controlled substance which subjects the minor or student to a risk of serious physical injury;
  (c) Endure brutality of a physical nature, including whipping, beating or paddling, branding, or exposure to the elements;
  (d) Endure brutality of a sexual nature; or
  (e) Endure any other activity that creates a reasonable likelihood of serious physical injury to the minor or student;
(2) "Organization":
  (a) Means a number of persons who are associated with a school or postsecondary education institution and each other, including a student organization, fraternity, sorority, association, corporation, order, society, corps, club, or similar group; and
  (b) Includes any student organization registered pursuant to the policies of the school or postsecondary education institution at any time during the previous five (5) years; and
(3) "Student" means an individual enrolled in a public or private school or postsecondary program of study.

KRS 508.182 Hazing in the First Degree – Defenses – Sentencing

(1) A person is guilty of hazing in the first degree when he or she intentionally or wantonly engages in an act of hazing that results in serious physical injury or death to a minor or student.
(2) It shall be a defense under this section that the act was part of reasonable and customary:
  (a) Interscholastic or intercollegiate athletic practices, competitions, or events;
  (b) Law enforcement training; or
  (c) Military training.
(3) Hazing in the first degree is a Class D felony. Any sentence imposed on a defendant under this section shall run concurrently with any sentence imposed under KRS 508.060 or 508.070 arising from the same act or occurrence.

KRS 508.184 Hazing in the Second Degree – Defenses – Sentencing

(1) A person is guilty of hazing in the second degree when he or she recklessly engages in an act of hazing.

(2) It shall be a defense under this section that the act was part of reasonable and customary:
(a) Interscholastic or intercollegiate athletic practices, competitions, or events;
(b) Law enforcement training; or
(c) Military training.
(3) Hazing in the second degree is a Class A misdemeanor. Any sentence imposed on a defendant under this section shall run concurrently with any sentence imposed under KRS 508.060 or 508.070 arising from the same act or occurrence.

KRS 508.186 Construction of KRS 508.180 to 508.186

Nothing in KRS 508.180 to 508.186 shall be construed to create or imply a new cause of action against any educational institution.

ASSAULT OFFENSES CHART
(KRS 508.010 - .030 Assault 1st – 4th)

SPI = Serious Physical Injury PI = Physical Injury DW = Deadly Weapon
DI = Dangerous Instrument

Charge *Type	**Culpable Mental State**	**Injury Caused**	**How Injury Caused**
Assault 1st 1 KRS 508.010 -------- Class B Felony 2	Intentionally ---------- Wantonly (under circumstances showing extreme indifference to human life) **(NOTE 1)**	SPI ---------- SPI	DW or DI ---------- Any means **(NOTE 2)**
Assault 2nd 1 KRS 508.020 Class C Felony -------- 2 ------- 3	Intentionally ---------- Intentionally ---------- Wantonly	SPI ---------- PI ---------- SPI	Any means **(NOTES 2 & 3)** ---------- DW or DI ---------- DW or DI
Assault 3rd (NOTE 5) 1 KRS 508.025 ------- Class D Felony 2 ------- 3 ------- 4	Recklessly ---------- Intentionally ---------- Intentionally ---------- Intentionally or Wantonly **(NOTE 7)**	PI ---------- PI ---------- None **(NOTE 6)** ---------- None	DW or DI ---------- Any means **(NOTES 2 & 4)** ---------- Any means ---------- Throw feces, urine or other bodily fluids **(NOTE 8)**

Assault 4th 1 KRS 508.030 -------- Class A 2 Misdemeanor -------- 3	Intentionally ----------	PI ----------	Any means **(NOTES 2 & 4)** ----------
	Wantonly ----------	PI ----------	Any means ----------
	Recklessly	PI	DW or DI

* "Type" refers to the combination of factors or elements under which the offense may be committed. Assault offenses should be analyzed to determine:

1. The mental state of the actor.
2. The nature of the injury caused (all assault charges, except Assault 3rd, require some degree of injury.
3. What was used to cause the injury.
4. Whether the victim is a member of a protected class (Assault 3rd only).

NOTE 1 A person who acts with this degree of wantonness elevates the likelihood of harm resulting from "possible" to "probable". "Wantonly" + "extreme indifference to human life may thus be close to = "Intentionally".

NOTE 2 "Dangerous instrument" is defined as anything "which under the circumstances in which it is used, attempted to be used, attempted to be used, or threatened to be used is readily capable of causing death or serious physical injury." (KRS 500.080(3)). Even parts of the body are "dangerous instruments" when they produce serious physical injury. A "serious physical injury" will in most cases be the result of use of a deadly weapon or dangerous instrument.

NOTE 3 If a deadly weapon or dangerous instrument is used, charge with Assault 1st (type 1).

NOTE 4 If a deadly weapon or dangerous instrument is used, charge with Assault 2nd (type 2).

NOTE 5 Assault 3rd originally included causing injury to a very limited class of victim (a peace officer) and throwing feces or urine (now expanded to include any bodily fluid). The limited class of victim has been expanded to include:

1. Peace officers
2. Employees of detention facilities or juvenile detention facilities
3. DSS social workers
4. Probation or parole officers
5. Jail transportation officers
6. School employees
7. School volunteers

NOTE 6 Assault 3rd originally punished attempting to "recklessly cause physical injury by means of a deadly weapon or dangerous instrument." To clarify an apparent inconsistency (i.e., can you "attempt" to "recklessly" act), the legislature amended the statute but did not limit "intentionally attempting to cause physical injury" to apply only if deadly weapons and dangerous instruments are used. The amended statute seems to make a mere attempt to cause physical injury by swinging a fist at but not striking a member of the protected class a Class D Felony. In order to avoid further "clarification" which might adversely affect this valuable protection, officers should consider charging under Type 3 only where deadly weapons or dangerous instruments are involved.

NOTE 7 No mental state is specified for Type 4 (KRS 508.025(1)(b)). Since this is a felony, this is not an "absolute liability" offense under KRS 501.050 and should be read as requiring a mental state of "intentionally" or "wantonly". Covington v. Commonwealth, 849 S.W.2d 560 (Ky.App., 1992).

NOTE 8 Assault 3rd previously applied only if an inmate of a facility throws the substance on 'an employee of the facility". The charge apparently would not apply if substances were thrown either (1) outside a facility or (2) upon anyone other than an employee of the facility (e.g., an officer not employed by the jail who is helping escort a prisoner to a cell would not be covered). However, Mullikan v. Commonwealth, 341 S.W.3d 99 (2011) held that suspect spitting in an officer's face, who had his face then sprayed with a disinfectant, and

felt physically ill after the incident was enough to conclude defendant attempted to cause a physical injury, and thus upheld a conviction for Assault 3rd.

KRS CHAPTER 509
KIDNAPPING AND RELATED OFFENSES

KRS 509.010 Definitions

The following definitions apply in this chapter unless the context otherwise requires:
(1) "**Relative**" means a parent, ancestor, brother, sister, uncle or aunt.
(2) "**Restrain**" means to restrict another person's movements in such a manner as to cause a substantial interference with his liberty by moving him from one place to another or by confining him either in the place where the restriction commences or in a place to which he has been moved without consent. A person is moved or confined "without consent" when the movement or confinement is accomplished by physical force, intimidation, or deception, or by any means, including acquiescence of a victim, if he is under the age of sixteen (16) years, or is substantially incapable of appraising or controlling his own behavior.

KRS 509.020 Unlawful imprisonment in the first degree

(1) A person is guilty of unlawful imprisonment in the first degree when he knowingly and unlawfully restrains another person under circumstances which expose that person to a risk of serious physical injury.
(2) Unlawful imprisonment in the first degree is a Class D felony.

KRS 509.030 Unlawful imprisonment in the second degree

(1) A person Is guilty of unlawful imprisonment in the second degree when he knowingly and unlawfully restrains another person.
(2) Unlawful imprisonment in the second degree is a Class A misdemeanor.

KRS 509.040 Kidnapping

(1) A person is guilty of kidnapping when he unlawfully restrains another person and when his intent is:
  (a) To hold him for ransom or reward; or
  (b) To accomplish or to advance the commission of a felony; or
  (c) To inflict bodily injury or to terrorize the victim or another; or
  (d) To interfere with the performance of a governmental or political function; or
  (e) To use him as a shield or hostage; or
  (f) To deprive the parents or guardian of the custody of a minor, when the person taking the minor is not a person exercising custodial control or supervision of the minor as the term "person exercising custodial control or supervision" is defined in KRS 600.020.
(2) Kidnapping is a Class B felony when the victim is released alive and in a safe place prior to trial, except as provided in this section. Kidnapping is a Class A felony when the victim is released alive but the victim has suffered serious physical injury during the kidnapping, or as a result of not being released in a safe place, or as a result of being released in any circumstances which are intended, known or should have been known to cause or lead to serious physical injury. Kidnapping is a capital offense when the victim is not released alive or when the victim is released alive but subsequently dies as a result of:
  (a) Serious physical injuries suffered during the kidnapping; or
  (b) Not being released in a safe place; or
  (c) Being released in any circumstances which are intended, known or should have been known to cause or lead to the victim's death.

KRS 509.050 Exemption

A person may not be convicted of unlawful imprisonment in the first degree, unlawful imprisonment in the second degree, or kidnapping when his criminal purpose is the commission of an offense defined outside this chapter and his interference with the victim's liberty occurs immediately with and incidental to the commission of that offense, unless the interference exceeds that which is ordinarily incident to commission of the offense which is the objective of his criminal purpose. The exemption provided by this section is not applicable to a charge of kidnapping that arises from an interference with another's liberty that occurs incidental to the commission of a criminal escape.

KRS 509.060 Defense

In any prosecution for unlawful imprisonment or kidnapping it is a defense that the defendant was a relative of the victim and his sole purpose was to assume custody of the victim.

KRS 509.070 Custodial interference

(1) A person is guilty of custodial interference when, knowing that he has no legal right to do so, he takes, entices or keeps from lawful custody any mentally disabled or other person entrusted by authority of law to the custody of another person or to an institution.
(2) It is a defense to custodial interference that the person taken from lawful custody was returned by the defendant voluntarily and before arrest or the issuance of a warrant for arrest.
(3) Custodial interference is a Class D felony unless the person taken from lawful custody is returned voluntarily by the defendant.

KRS 509.080 Criminal coercion

(1) A person is guilty of criminal coercion when, with intent to compel another person to engage in or refrain from conduct, he unlawfully threatens to:
    (a) Commit any crime; or
    (b) Accuse anyone of a crime; or
    (c) Expose any secret tending to subject any person to hatred, contempt or ridicule or to impair another's credit or business repute; or
    (d) Take or withhold action as an official or cause an official to take or withhold action.
(2) Defendant may prove in exculpation of criminal coercion committed under subsection (1) (b), (c) or (d) that he believed the accusation or secret to be true or the proposed official action justified and that his sole purpose was to compel or induce the victim to desist from misbehavior or to make good a wrong done by him.
(3) Criminal coercion is a Class A misdemeanor.

KRS CHAPTER 510
SEXUAL OFFENSES

KRS 510.010 Definitions for chapter

The following definitions apply in this chapter unless the context otherwise requires:
(1) "**Deviate sexual intercourse**" means any act of sexual gratification involving the sex organs of one person and the mouth or anus of another; or penetration of the anus of one person by any body part or a foreign object manipulated by another person. "Deviate sexual intercourse" does not include penetration of the anus by any body part or a foreign object in the course of the performance of generally recognized health care practices;
(2) "**Forcible compulsion**" means physical force or threat of physical force, express or implied, which places a person in fear of immediate death, physical injury to self or another person, fear of the immediate kidnap of self or another person, or fear of any offense under this chapter. Physical resistance on the part of the victim shall not be necessary to meet this definition;
(3) "**Mental illness**" means a diagnostic term that covers many clinical categories, typically including behavioral or psychological symptoms, or both, along with impairment of personal and social function, and specifically defined and clinically interpreted through reference to criteria contained in the Diagnostic and Statistical Manual of Mental Disorders (Third Edition) and any subsequent

revision thereto, of the American Psychiatric Association;

(4) "**Individual with an intellectual disability**" means a person with significantly subaverage general intellectual functioning existing concurrently with deficits in adaptive behavior and manifested during the developmental period, as defined in KRS Chapter 202B;

(5) "**Mentally incapacitated**" means that a person is rendered temporarily incapable of appraising or controlling his conduct as a result of the influence of an intoxicating substance administered to him without his consent or as a result of any other act committed upon him without his consent;

(6) "**Physically helpless**" means that a person is unconscious or for any other reason is physically unable to communicate unwillingness to an act; "Physically helpless" also includes a person who has been rendered unconscious or for any other reason is physically unable to communicate an unwillingness to an act as a result of the influence of a controlled substance or legend drug;

(7) "**Sexual contact**" means the touching of a person's intimate parts or the touching of the clothing or other material intended to cover the immediate area of a person's intimate parts, if that touching can be construed by a reasonable person as being done:
   (a) For the purpose of sexual arousal or gratification of either party;
   (b) For a sexual purpose; or
   (c) In a sexual manner for the purpose of:
      1. Exacting revenge or retribution;
      2. Humiliating or degrading; or
      3. Punishment

(8) "**Sexual intercourse**" means sexual intercourse in its ordinary sense and includes penetration of the sex organs of one person by any body part or a foreign object manipulated by another person. Sexual intercourse occurs upon any penetration, however slight; emission is not required. "Sexual intercourse" does not include penetration of the sex organ by any body part or a foreign object in the course of the performance of generally recognized health care practices; and

(9) "**Foreign object**" means anything used in commission of a sexual act other than the person of the actor.

(10) **"Registrant"** has the same meaning as in KRS 17.500; and

(11) **"Adult intermediary"** means a person who is age eighteen (18) years or older, who communicates with another for the purpose of procuring or promoting the use of a minor in violation of KRS 510.155.

KRS 510.020 Lack of consent

(1) Whether or not specifically stated, it is an element of every offense defined in this chapter that the sexual act was committed without consent of the victim.

(2) Lack of consent results from:
   (a) Forcible compulsion;
   (b) Incapacity to consent; or
   (c) If the offense charged is sexual abuse, any circumstances in addition to forcible compulsion or incapacity to consent in which the victim does not expressly or impliedly acquiesce in the actor's conduct.

(3) A person is deemed incapable of consent when he or she is:
   (a) Less than sixteen (16) years old;
   (b) Sixteen (16) or seventeen (17) years old and the actor is at least ten (10) years older than the victim at the time of the sexual act;
   (c) An individual unable to communicate consent or lack of consent, or unable to understand the nature of the act or its consequences, due to an intellectual disability or a mental illness;
   (d) Mentally incapacitated;
   (e) Physically helpless; or
   (f) Under the care or custody of a state or local agency pursuant to court order and the actor is employed by or working on behalf of the state or local agency.

(4) The provisions of paragraph (f) of subsection (3) of this section shall not apply to persons who are lawfully married to each other and no court order is in effect prohibiting contact between the parties.

KRS 510.030 Defenses

In any prosecution under this chapter in which the victim's lack of consent is based solely on his or her incapacity to consent because he or she was, at the time of the offense:

(1) Less than sixteen (16) years old;
(2) Sixteen (16) or seventeen (17) years old and the defendant was at least ten (10) years older than the victim;
(3) An individual with an intellectual disability;
(4) Mentally incapacitated; or
(5) Physically helpless;

the defendant may prove in exculpation that at the time of the conduct constituting the offense he or she did not know of the facts or conditions responsible for such incapacity to consent.

KRS 510.035 Exception to KRS 510.020

A person who engages in sexual intercourse or deviate sexual intercourse with another person to whom the person is married, or subjects another person to whom the person is married to sexual contact, does not commit an offense under this chapter regardless of the person's age solely because the other person is less than sixteen (16) years old or an individual with an intellectual disability.

KRS 510.040 Rape in the first degree

(1) A person is guilty of rape in the first degree when:
   (a) He engages in sexual intercourse with another person by forcible compulsion; or,
   (b) He engages in sexual intercourse with another person who is incapable of consent because he;
      (i) Is physically helpless; or
      (ii) is less than twelve years old.
(2) Rape in the first degree is a Class B felony unless the victim is under twelve years old or receives a serious physical injury in which case it is a Class A felony.

KRS 510.050 Rape in the second degree

(1) A person is guilty of rape in the second degree when:
   (a) Being eighteen years old or more, he or she engages in sexual intercourse with another person less than fourteen years old; or
   (b) He or she engages in sexual intercourse with another person who is mentally incapacitated or who is incapable of consent because he or she is an individual with an intellectual disability.
(2) Rape in the second degree is a Class C felony, unless the defendant is a person in a position of authority or position of special trust as those terms are defined in KRS 532.045, in which case it is a Class B felony.

KRS 510.060 Rape in the third degree

(1) A person is guilty of rape in the third degree when:
   (a) Being twenty-one (21) years old or more, he or she engages in sexual intercourse with another person less than sixteen (16) years old; or
   (b) Being at least ten (10) years older than a person who is sixteen (16) or seventeen (17) years old at the time of sexual intercourse, he or she engages in sexual intercourse with the person;
   (c) Being twenty-one (21) years old or more, he or she engages in sexual intercourse with another person less than eighteen (18) years old and for whom he or she provides a foster family home as defined in KRS 600.020;
   (d) Being a person in a position of authority or position of special trust, as defined in KRS 532.045, he or she engages in sexual intercourse with a minor under eighteen (18) years old with whom he or she comes into contact as a result of that position; or
   (e) Being a jailer, or an employee, contractor, vendor, or volunteer of the Department of Corrections, Department of Juvenile Justice, or a detention facility as defined in KRS

520.010, or of an entity under contract with either department or a detention facility for the custody, supervision, evaluation, or treatment of offenders, he or she subjects a person who he or she knows is incarcerated, supervised, evaluated, or treated by the Department of Corrections, Department of Juvenile Justice, detention facility, or contracting entity, to sexual intercourse; or

(f) Being a peace officer, while serving in his or her official capacity, he or she subjects a person who the officer:

1. Arrested, held in custody, or investigated for commission of a traffic or criminal offense; or

2. Knew or should have known was under arrest, held in custody, or being investigated for commission of a traffic or criminal offense;

to sexual intercourse.

(2) Rape in the third degree is a Class D felony.

KRS 510.070 Sodomy in the first degree

(1) A person is guilty of sodomy in the first degree when:
   (a) He engages in deviate sexual intercourse with another person by forcible compulsion; or
   (b) He engages in deviate sexual intercourse with another person who is incapable of consent because he:
      (i) is physically helpless; or
      (ii) is less than twelve years old.

(2) Sodomy in the first degree is a Class B felony unless the victim is under twelve years old or receives a serious physical injury in which case it is a Class A felony.

KRS 510.080 Sodomy in the second degree

(1) A person is guilty of sodomy in the second degree when:
   (a) Being eighteen years old or more, he or she engages in deviate sexual intercourse with another person less than fourteen years old; or
   (b) He or she engages in deviate sexual intercourse with another person who is mentally incapacitated or who is incapable of consent because he or she is an individual with an intellectual disability.

(2) Sodomy in the second degree is a Class C felony, unless the defendant is a person in a position of authority or position of special trust as those terms are defined in KRS 532.045, in which case it is a Class B felony.

KRS 510.090 Sodomy in the third degree

(1) A person is guilty of sodomy in the third degree when:
   (a) Being twenty-one (21) years old or more, he or she engages in deviate sexual intercourse with another person less than sixteen (16) years old; or
   (b) Being at least ten (10) years older that a person who is sixteen (16) or seventeen (17) years old at the time of deviate sexual intercourse, he or she engages in deviate sexual intercourse with the person;
   (c) Being twenty-one (21) years old or more, he or she engages in deviate sexual intercourse with another person less than eighteen (18) years old and for whom he or she provides a foster family home as defined in KRS 600.020;
   (d) Being a person in a position of authority or position of special trust, as defined in KRS 532.045, he or she engages in deviate sexual intercourse with a minor less than eighteen (18) years old with whom he or she comes into contact as a result of that position; or
   (e) Being a jailer, or an employee, contractor, vendor, or volunteer of the Department of Corrections, Department of Juvenile Justice, or a detention facility as defined in KRS 520.010, or of an entity under contract with either department or a detention facility for the custody, supervision, evaluation, or treatment of offenders, he or she subjects a person who he or she knows is incarcerated, supervised, evaluated, or treated by the Department of Corrections, Department of Juvenile Justice, detention facility, or contracting entity, to deviate sexual intercourse; or

(f) Being a peace officer, while serving in his or her official capacity, he or she subjects a person who the officer:
1. Arrested, held in custody, or investigated for commission of a traffic or criminal offense; or
2. Knew or should have known was under arrest, held in custody, or being investigated for commission of a traffic or criminal offense;
to deviate sexual intercourse.

(2) Sodomy in the third degree is a Class D felony.

KRS 510.110 Sexual abuse in the first degree

(1) A person is guilty of sexual abuse in the first degree when:
(a) He or she subjects another person to sexual contact by forcible compulsion; or
(b) He or she subjects another person to sexual contact who is incapable of consent because he or she:
1. Is physically helpless;
2. Is less than twelve (12) years old; or
3. Is mentally incapacitated; or
4. Is an individual with an intellectual disability; or
(c) Being twenty-one (21) years old or more, he or she:
1. Subjects another person who is less than sixteen (16) years old to sexual contact; or
2. Engages in masturbation in the presence of another person who is less than sixteen (16) years old and knows or has reason to know the other person is present; or
3. Engages in masturbation while using the Internet, telephone, or other electronic communication device while communicating with a minor who the person knows is less than sixteen (16) years old, and the minor can see or hear the person masturbate; or
(d) Being a person in a position of authority or position of special trust, as defined in KRS 532.045, he or she, regardless of his or her age, subjects a minor who is less than eighteen (18) years old, with whom he or she comes into contact as a result of that position, to sexual contact or engages in masturbation in the presence of the minor and knows or has reason to know the minor is present or engages in masturbation while using the Internet, telephone, or other electronic communication device while communicating with a minor who the person knows is less than sixteen (16) years old, and the minor can see or hear the person masturbate.

(2) Sexual abuse in the first degree is a Class D felony, unless the victim is less than twelve (12) years old, in which case the offense shall be a Class C felony.

KRS 510.120 Sexual abuse in the second degree

(1) A person is guilty of sexual abuse in the second degree when:
(a) He or she is at least eighteen (18) years old but less than twenty-one (21) years old and subjects another person who is less than sixteen (16) years old to sexual contact; or
(b) Being a jailer, or an employee, contractor, vendor, or volunteer of the Department of Corrections, Department of Juvenile Justice, or a detention facility as defined in KRS 520.010, or of an entity under contract with either department or a detention facility for the custody, supervision, evaluation, or treatment of offenders, he or she subjects a person who is at least eighteen (18) years old and who he or she knows is incarcerated, supervised, evaluated, or treated by the Department of Corrections, Department of Juvenile Justice, detention facility, or contracting entity, to sexual contact; or
(c) Being a peace officer, while serving in his or her official capacity, he or she subjects a person who the officer:
1. Arrested, held in custody, or investigated for commission of a traffic or criminal offense; or
2. Knew or should have known was under arrest, held in custody, or being investigated for commission of a traffic or criminal offense;
to sexual contact.

(2) In any prosecution under paragraph (1)(a) of this section, it is a defense that:
(a) The other person's lack of consent was due solely to incapacity to consent by reason of being less than sixteen (16) years old; and

(b). The other person was at least fourteen (14) years old; and
(c). The actor was less than five (5) years older than the other person.

(3) Sexual abuse in the second degree is a Class A misdemeanor.

KRS 510.130 Sexual abuse in the third degree

(1) A person is guilty of sexual abuse in the third degree when:
  (a) He or she subjects another person to sexual contact without the latter's consent.
  (b) In any prosecution under this section, it is a defense that:
    (i) The other person's lack of consent was due solely to incapacity to consent by reason of being less than sixteen years old; and
    (ii) The other person was at least fourteen years old; and
    (iii) The actor was less than eighteen (18) years old.

(2) Sexual abuse in the third degree is a Class B misdemeanor.

KRS 510.140 Sexual misconduct

(1) A person is guilty of sexual misconduct when he engages in sexual intercourse or deviate sexual intercourse with another person without the latter's consent.

(2) Sexual misconduct is a Class A misdemeanor.

KRS 510.148 Indecent exposure in the first degree

(1) A person is guilty of indecent exposure in the first degree when he intentionally exposes his genitals under circumstances in which he knows or should know that his conduct is likely to cause affront or alarm to a person under the age of eighteen (18) years.

(2) Indecent exposure in the first degree is a:
  (a) Class B misdemeanor for the first offense;
  (b) Class A misdemeanor for the second offense, if it was committed within three (3) years of the first conviction;
  (c) Class D felony for the third offense, if it was committed within three (3) years of the second conviction; and
  (d) Class D felony for any subsequent offense, if it was committed within three (3) years of the prior conviction

KRS 510.150 Indecent exposure in the second degree

(1) A person is guilty of indecent exposure in the second degree when he intentionally exposes his genitals under circumstances in which he knows or should know that his conduct is likely to cause affront or alarm to a person eighteen (18) years of age or older.

(2) Indecent exposure in the second degree is a Class B misdemeanor.

KRS 510.155 Unlawful use of electronic means originating or received within the Commonwealth to induce a minor to engage in sexual or other prohibited activities -- Prohibition of multiple convictions arising from single course of conduct – Solicitation as evidence of intent

(1) It shall be unlawful for any person to knowingly use a communications system, including computers, computer networks, computer bulletin boards, cellular telephones, or any other electronic means, for the purpose of:
  (a) Procuring or promoting the use of a minor, including a peace officer, or a person working in coordination with law enforcement, posing as a minor if the person believes that the peace officer or the person working in coordination with law enforcement is a minor or is wanton or reckless in that belief; or
  (b) Procuring or promoting the use of a minor from an adult intermediary, including a peace officer, or a person working in coordination with law enforcement, posing as an adult intermediary for a minor if the person believes that the peace officer or the person working in coordination with law enforcement is an adult intermediary for a minor or is wanton or reckless in that belief;

for any activity in violation of KRS 510.040, 510.050, 510.060, 510.070, 510.080, 510.090, 510.110, 529.100 where that offense involves commercial sexual activity, or 530.064(1)(a), or Chapter 531.

(2) No person shall be convicted of this offense and an offense specified in KRS 506.010, 506.030, 506.040, or 506.080 for a single course of conduct intended to consummate in the commission of the same offense with the same minor or peace officer.

(3) Each day a person knowingly uses a communications system for the purpose of procuring or promoting the use of a minor shall be a separate violation of this section.

(4) The solicitation of a minor through electronic communication under subsection (1) of this section shall be prima facie evidence of the person's intent to commit the offense and the offense is complete at that point without regard to whether the person met or attempted to meet the minor

(5) This section shall apply to electronic communications originating within or received within the Commonwealth.

(6) Except as provided in subsection (7) of this section, a violation of this section is punishable as a Class C felony.

(7) A violation of this section is punishable as a Class B felony if:
   (a) The minor or perceived minor procured or promoted is under twelve (12) years old;
   (b) The offender is a person in a position of authority or position of special trust as those terms are defined in KRS 532.045;
   (c) The offender is a registrant;
   (d) A person enters the Commonwealth from another jurisdiction for the purpose of procuring or promoting the use of a minor or perceived minor in violation of this section; or
   (e) The minor or perceived minor procured or promoted is for an activity in violation of KRS 529.100 where that offense involves commercial sexual activity.

KRS 510.300 Expungement of arrest record

(1) The arrest record of anyone accused by his spouse of an offense under this chapter shall be expunged if said charge was either dismissed with prejudice or a verdict of not guilty on said charge was entered.

(2) If the charges brought against a defendant under this chapter are dismissed with prejudice or the defendant is found not guilty, the court shall order all law enforcement and other public agencies holding records of the offense to expunge the records.

(3) No person whose records have been expunged pursuant to this section shall have to answer "Yes" and may answer "No" to the question "Have you ever been arrested?" or any similar question with regard to the offense for which the records were expunged.

SEXUAL OFFENSES CHART

Offense	Age of Victim	Age of Defendant	Class of Offense
1. RAPE (Sexual Intercourse) OR SODOMY (Deviate Sexual Intercourse			
First Degree			**B** felony
1. By forcible compulsion	Any	Any	**A** felony if the victim is
2. Victim under 12	Under 12	Any	under 12 or receives
3. Victim physically helpless	Any	Any	serious physical injury
Second Degree			**C** felony
1. Victim under 14 (12 or 13)	Under 14	18 or over	
2. Victim mentally incapacitated	Any	Any	
3. Victim with intellectual disability	Any	Any	
Third Degree			**D** felony
1. Victim under 16 (14 or 15)	Under 16	21 or over	
2. Victim under 18 in foster home provided by defendant	Under 18	21 or over	
3. Victim under 18, Defendant in a	Under 16	Any	

position of authority or special trust 4. Victim incarcerated, supervised, evaluated, or treated by Depts. of Corrections or Juvenile Justice, a detention facility, or contracting entity 5. Victim arrested, held in custody, or investigated for commission of traffic or criminal offense and defendant is an officer	Any Any	Any Any	
Fourth Degree Sodomy **Unconstitutional, do not charge**			
2. SEXUAL MISCONDUCT Charge only where rape and sodomy statutes have created a loophole because the defendant is young, lack of consent is only due to age of victim, and due to their relative ages Second Degree Rape and Sodomy cannot be charged	Any	Any	**A** misdemeanor
3. SEXUAL ABUSE (Sexual Contact)			
First Degree 1. By forcible compulsion 2. Victim physically helpless 3. Victim with intellectual disability 4. Victim under 12 5. Victim mentally incapacitated 6. Subjects to sexual contact 7. Masturbates in the presence of victim and knows or has reason to know victim is present 8. Masturbates using communication device while communicating with victim and knows or has reason to know is under 16 and minor can see or hear actor masturbate 9. Victim under 18, Defendant in a position of authority or special trust and subjects victim to sexual contact 10. Victim under 18, Defendant in a position of authority or special trust masturbates in presence of victim and knows or has reason to know minor is present 11. Victim under 16, Defendant in a position of authority or special trust masturbates using communications device while communicating with victim and knows or has reason to know is under 16 and minor can see or hear actor masturbate	 Any Any Any Under 12 Any Under 16 Under 16 Under 16 Under 18 Under 18	 Any Any Any Any Any 21 or over 21 or over 21 or over Any Any	**D** felony **C** felony if victim under 12
Second Degree 1. Victim under 16 2. Victim incarcerated, defendant is person in position of authority at detention facility 3. Victim arrested, held in custody, or investigated for commission of traffic or criminal offense and defendant is an officer	 Any	 Any	**A** misdemeanor
Third Degree			**B** misdemeanor

1. Actor subjects another to sexual contact without consent	Any	Any	
4. INDECENT EXPOSURE			
First Degree Actor intentionally exposes genitals	Under 18	Any	**B** misdemeanor – 1st offense **A** misdemeanor – 2nd offense if committed within 3 years **D** felony – 3rd offense, if committed within 3 years of 2nd offense **D** felony – any subsequent offense if committed within 3 years of a prior conviction
Second Degree Actor intentionally exposes genitals	18 or over	Any	**B** misdemeanor

KRS CHAPTER 511
BURGLARY AND RELATED OFFENSES

KRS 511.010 Definitions

The following definitions apply in this chapter unless the context otherwise requires:

(1) "**Building**", in addition to its ordinary meaning, means any structure, vehicle, watercraft or aircraft:
   (a) Where any person lives; or
   (b) Where people assemble for purposes of business, government, education, religion, entertainment or public transportation.

   Each unit of a building consisting of two (2) or more units separately secured or occupied is a separate building.

(2) "**Dwelling**" means a building which is usually occupied by a person lodging therein.

(3) "**Premises**" includes the term "building" as defined herein and any real property.

KRS 511.020 Burglary in the first degree

(1) A person is guilty of burglary in the first degree when, with the intent to commit a crime, he or she knowingly enters or remains unlawfully in a building, and when in effecting entry or while in the building or in the immediate flight therefrom, he or she or another participant in the crime:
   (a) Is armed with explosives or a deadly weapon;
   (b) Causes physical injury to any person who is not a participant in the crime; or
   (c) Uses or threatens the use of a dangerous instrument against any person who is not a participant in the crime.

(2) Burglary in the first degree is a Class B felony, unless the offense occurs during a declared emergency as defined by KRS 39A.020 arising from a natural or man-made disaster, within the area covered by the emergency declaration, and within the area impacted by the disaster, in which case it is a Class A felony.

KRS 511.030 Burglary in the second degree

(1) A person is guilty of burglary in the second degree when, with the intent to commit a crime, he or she knowingly enters or remains unlawfully in a dwelling.

(2) Burglary in the second degree is a Class C felony, unless the offense occurs during a declared emergency as defined by KRS 39A.020 arising from a natural or man-made disaster, within the area covered by the emergency declaration, and within the area impacted by the disaster, in which case it is a Class B felony.

KRS 511.040 Burglary in the third degree

(1) A person is guilty of burglary in the third degree when, with the intent to commit a crime, he or she knowingly enters or remains unlawfully in a building.

(2) Burglary in the third degree is a Class D felony, unless the offense occurs during a declared emergency as defined by KRS 39A.020 arising from a natural or man- made disaster, within the area covered by the emergency declaration, and within the area impacted by the disaster, in which case it is a Class C felony.

KRS 511.050 Possession of burglar's tools

(1) A person is guilty of possession of burglar's tools when he possesses any tool, instrument or other thing adapted, designed or commonly used for committing or facilitating the commission of an offense involving forcible entry into premises or theft by a physical taking under circumstances which leave no reasonable doubt as to his:
   (a) Intention to use the same in the commission of an offense of such character; or
   (b) Knowledge that some other person intends to use the same in the commission of an offense of such character.

(2) Possession of burglar's tools is a Class A misdemeanor.

KRS 511.060 Criminal trespass in the first degree

(1) A person is guilty of criminal trespass in the first degree when he or she knowingly enters or remains unlawfully in a dwelling.
(2) Criminal trespass in the first degree is Class A Misdemeanor, unless the offense occurs during a declared emergency as defined by KRS 39A.020 arising from a natural or man-made disaster, within the area covered by the emergency declaration, and within the area impacted by the disaster, in which case it is a Class D felony.

KRS 511.070 Criminal trespass in the second degree

(1) A person is guilty of criminal trespass in the second degree when he or she knowingly enters or remains unlawfully in a building or upon premises as to which notice against trespass is given by fencing or other enclosure.
(2) For the purposes of this section, notice against trespass includes the placement of identifying purple paint marks on trees or posts on the property, if the marks are:
  (a) Vertical lines of not less than eight (8) inches in length and not less than one (1) inch in width;
  (b) Placed so that the bottom of the mark is not less than three (3) feet from the ground nor more than five (5) feet from the ground; and
  (c) Placed at locations that are readily visible to any person approaching the property and no more than:
    1. One hundred (100) feet apart on forest land; or
    2. One thousand (1,000) feet apart on land other than forest land.
(3) Criminal trespass in the second degree is a Class B misdemeanor, unless the offense occurs during a declared emergency as defined by KRS 39A.020 arising from a natural or man-made disaster, within the area covered by the emergency declaration, and within the area impacted by the disaster, in which case it is a Class A misdemeanor.

KRS 511.080 Criminal trespass in the third degree

(1) A person is guilty of criminal trespass in the third degree when he knowingly enters or remains unlawfully in or upon premises.
(2) Criminal trespass in the third degree is a violation, unless the offense occurs during a declared emergency as defined by KRS 39A.020 arising from a natural or man-made disaster, within the area covered by the emergency declaration, and within the area impacted by the disaster, in which case it is a Class B misdemeanor.

KRS 511.085 Domestic violence shelter trespass

(1) As used in this section, “domestic violence shelter” means a residential facility providing protective shelter services for domestic violence victims.
(2) A person is guilty of domestic violence shelter trespass when:
  (a) The person enters the buildings or premises of a domestic violence shelter that the person knows or should know is a domestic violence shelter or which is clearly marked on the building or premises as being a domestic violence shelter; and
  (b) At the time of the entering, the person is the subject of an order of protection entered under KRS 403.740 or 403.750 or a foreign protective order filed under KRS 403.7521.
(3) It shall be a defense to a prosecution under this section that the person entered the shelter with the permission of the operator of the shelter after disclosing to the operator that the person is the subject of an order of protection or a foreign protective order. Authority to enter under this subsection may not be granted by a person taking shelter at the facility.
(4) A person shall not be convicted of a violation of this section and a violation of KRS 511.060, 511.070, or 511.080 arising from the same act of trespass.
(5) Domestic violence shelter trespass is a Class A misdemeanor.

KRS 511.090 General provisions

(1) A person "**enters or remains unlawfully**" in or upon premises when he is not privileged or licensed to do so.
(2) A person who, regardless of his intent, enters or remains in or upon premises which are at the time open to the public does so with license or privilege unless he defies a lawful order not to enter or remain personally communicated to him by the owner of such premises or other authorized person.
(3) A license or privilege to enter or remain in or upon premises which are only partly open to the public is not a license or privilege to enter or remain in or upon a part of the premises which is not open to the public.
(4) A person who enters or remains upon unimproved and apparently unused land which is neither fenced nor otherwise enclosed does not commit criminal trespass unless notice against trespass is personally communicated to him by the owner of the land or some other authorized person or unless notice is given by posting in a conspicuous manner.
(5) Private land adjoining a railtrail that is neither fenced nor otherwise enclosed shall be presumed to be land where notice against trespassing has been given by the owner of the land, and a person utilizing the railtrail shall be presumed to lack privilege or license to enter upon that land unless the person has permission from an adjoining landowner to do so.

KRS 511.100 Trespass upon key infrastructure assets

(1) As used in this section:
(a) "Key infrastructure assets" means:
1. Any critical node of a system used in the production or generation of electrical energy;
2. A petroleum refinery;
3. A rubber or hazardous chemical manufacturing facility;
4. A petroleum or hazardous chemical storage facility or terminal;
5. Natural gas processing, fractionation, stabilization, and compressor station facilities, as well as above-ground natural gas or petroleum pipelines and related facilities;
6. Railroad yards and railroad tunnel portals;
7. A drinking water collection, treatment, or storage facility;
8. Grounds or property of a state prison, juvenile justice facility, jail, or other facility for the detention of persons charged with or convicted of crimes;
9. A facility used for research, development, design, production, delivery, or maintenance of military weapons systems, subsystems, and components or parts to meet military requirements of the United States; or
10. A wireless communications facility, including the tower, antennae, support structures and all associated ground-based equipment, and a telecommunications central switching office; or
11. A facility, equipment, or communication line used in the delivery of cable television, telephony, or broadband service;
12. A commercial food manufacturing or processing facility in which food is manufactured, processed, or packaged, commercially, for human consumption, but not including retail food establishments, home-based processors, or home-based microprocessors as those terms are defined in KRS 217.015;
13. An animal feeding operation as defined in 40 C.F.R. sec. 122.23;
14. A concentrated animal feeding operation as defined in 40 C.F.R. sec. 122.23; or
15. Electrical highway infrastructure; and
(b) "Unmanned aircraft system" means an aircraft that is operated without the possibility of direct human interaction from within or on the aircraft and includes everything that is on board or otherwise attached to the aircraft and all associated elements, including communication links and the components that control the small unmanned aircraft, that are required for the safe and efficient operation of the unmanned aircraft in the national airspace system.
(2) (a) A person commits the offense of trespass upon key infrastructure assets if he or she knowingly enters or remains unlawfully in or upon real property on which key infrastructure assets are located.

(b) A person commits the offense of trespass upon key infrastructure assets if he or she knowingly uses, or retains or authorizes a person to use, an unmanned aircraft system to fly above real property on which key infrastructure assets are located with the intent to cause harm or damage to or conduct surveillance of the key infrastructure asset without the prior consent of the owner, tenant, or lessee of the real property.

(3) Trespass upon key infrastructure assets is a Class B misdemeanor for the first offense, and a Class A misdemeanor for a second or subsequent offense.

(4) This section does not apply to:

(a) An unmanned aircraft system used by the federal government or by the Commonwealth, or by a person acting pursuant to a contract with the federal government or the Commonwealth;

(b) An unmanned aircraft system used by:

1. The owner of the real property or key infrastructure asset;

2. A person under a valid lease, servitude, right-of-way, right of use, permit, license, or other right granted by the owner of the real property or key infrastructure asset; or

3. A third party who is retained or authorized by a person specified in subparagraph 1. or 2. of this paragraph;

(c) An unmanned aircraft system used by a law enforcement agency, emergency medical service agency, hazardous material response team, disaster management agency, or other emergency management agency for the purpose of incident command, area reconnaissance, personnel and equipment deployment monitoring, training, or a related purpose;

(d) Operation of an unmanned aircraft system by a person or entity for a commercial purpose in compliance with applicable Federal Aviation Administration authorization, regulations, or exemptions.

(e) A satellite orbiting the earth;

(f) An unmanned aircraft system used by an insurance company or a person acting on behalf of an insurance company for purposes of underwriting an insurance risk or investigating damage to insured property; or

(g) An unmanned aircraft system used strictly in accordance with an order of a court of competent jurisdiction.

KRS 511.110 Unlawful camping

(1) For purposes of this section:

(a) "Camp" means to pitch, erect, or occupy camp facilities, or to use camp paraphernalia;

(b) "Camp facilities" means structures for the use of camping, including but not limited to tents, huts, temporary shelters, and vehicles; and

(c) "Camp paraphernalia" means items used for camping purposes, including but not limited to cots, beds, sleeping bags, and hammocks.

(2) A person is guilty of unlawful camping when he or she knowingly enters or remains on a public or private street, sidewalk, area under a bridge or underpass, path, park, cemetery, or other area designated for use by pedestrians or vehicles, including areas used for ingress or egress to businesses, homes, or public buildings, with the intent to sleep or camp in that area, when the area has not been designated for the purpose of sleeping or camping or the individual lacks authorization to sleep or camp in the area.

(3) Unlawful camping is a:

(a) Violation for the first offense; and

(b) Class B misdemeanor for the second and each subsequent offense, or if during the first offense the individual refuses to cease the offense.

(4) Nothing in this section shall be construed to prohibit the customary and temporary use of recreational camping areas, rest areas, or other properties that are specifically designated for purposes of resting or sleeping.

(5) Nothing in this section shall prevent a person from sleeping temporarily in his or her vehicle parked lawfully on a public road, street, or parking lot, where the sleeping and parking of the vehicle at the location occur for a period of less than twelve (12) hours.

BURGLARY AND RELATED OFFENSES CHART
(KRS Chapter 511)

Elements:	**Trespass 3rd** KRS 511.080	**Trespass 2nd** KRS 511.070	**Trespass 1st** KRS 511.060	**Burglary 3rd** KRS 511.040	**Burglary 2nd** KRS 511.030	**Burglary 1st** KRS 511.020
Mental State NOTE 1	**Knowingly**	Knowingly	Knowingly	Knowingly	Knowingly	Knowingly
Action: NOTE 2	Enters or remains	Enters or remains	Enters or remains	Enters or remains	Enters or remains	Enters or remains
Qualifier NOTE 3	Unlawfully	Unlawfully	Unlawfully	Unlawfully	Unlawfully	Unlawfully
Place	Premises NOTE 4	Building NOTE 5 **OR** Premises -- notice by fencing or enclosure	Dwelling NOTE 6	Building NOTE 7	Dwelling NOTE 6, 7	Building NOTE 7 OR Dwelling
Purpose (Intent)	None	None	None	Commit a Crime NOTE 8	Commit a Crime NOTE 8	Commit a Crime NOTE 8
Aggravating Circumstances:	None	None	None	None	None	• **Armed** with explosives or **deadly weapon OR** • Causes **physical injury OR** • **Uses**/ threatens **dangerous instrument**

NOTE 1 Defendant must be "**aware**" that he is on someone else's property.

NOTE 2 Defendant may commit this offense when either (1) he enters *[e.g., he doesn't have permission]* or (2) he remains *[e.g., although he had permission to enter, that permission is revoked].*

NOTE 3 KRS 511.090(1) "General Provisions" states that "a person enters or remains unlawfully when he is not privileged or licensed to do so". Subsections (2)-(5) give some special circumstances under which a person may or may not be privileged.

NOTE 4 KRS 511.010(3) defines "premises" as including both buildings and real estate. Since Trespass 2nd includes "buildings" and premises fenced or otherwise enclosed, and KRS 511.090(4) excludes unfenced, unimproved, and apparently unused land from being trespassable, Trespass 3rd would apply to unfenced but improved (e.g., by buildings or crops, etc.) land. Posting is not required if the land is apparently used or improved.

NOTE 5 KRS 511.010(1) expands for KRS Chapter 511 the meaning of "**building**": "in addition to its ordinary meaning ***[i.e., 4 walls and a roof permanently attached to the land]***, means any structure, vehicle, watercraft or aircraft: (a) Where any person lives; or (b) Where people assemble for purposes of business, government, education, religion, entertainment or public transportation." This differs from the definition of "building" in KRS Chapter 513 by requiring that such structures or vehicles have a special use.

NOTE 6 KRS 511.010(2) defines "**dwelling**" as a building that "is usually occupied by a person lodging therein."

NOTE 7 Whereas trespass can occur on land, burglary may only occur in a building (all dwellings are buildings).

NOTE 8 KRS 500.080(2) defines "**crime**" as being a felony or misdemeanor. Therefore, the offense intended cannot be a "violation".

KRS CHAPTER 512
CRIMINAL DAMAGE TO PROPERTY

KRS 512.010 Definitions

As used in this chapter:
(1) “Lease or rental agreement” means all agreements, written or oral, embodying the terms and conditions concerning the use and occupancy of a dwelling unit or premises;
(2) “Litter means rubbish, refuse, waste material, offal, paper, glass, cans, bottles, trash, debris or any foreign substance of whatever kind or description and whether or not it is of value;
(3) “Noxious substance” means any substance capable of generating offensive, noxious, or suffocating fumes, gases or vapors;
(4) “Property” includes livestock as defined in KRS 150.010 and poultry as defined in KRS 246.010;
(5) “Residential rental property” means any residential premises or property contained therein leased or otherwise rented to a tenant solely for residential purposes under a lease or rental agreement to which the tenant is a party; and
(6) "Squatter" means a person who enters or remains unlawfully on real property when he or she is not privileged or licensed to do so, including a person who takes up residence in a property he or she does not own, provided he or she is not a current or former tenant at the premises, did not have an agreement to occupy the premises at any time, and is not an immediate family member of the property owner; and
(7) “Tenant” means a person entitled under a lease or rental agreement to occupy a residential rental property to the exclusion of others.

KRS 512.020 Criminal mischief in the first degree
(1) A person is guilty of criminal mischief in the first degree when having no right to do so or any reasonable ground to believe that he or she has such right, he or she intentionally or wantonly:
  (a) Defaces destroys or damages any property causing pecuniary loss of five hundred dollars ($500) or more;
  (b) Damages, possesses, or tampers with the operations of a key infrastructure asset, as defined in KRS 511.100, in a manner that renders the asset inoperable, in whole or in part, or renders the operation of the asset harmful or dangerous;
  (c) As a tenant, intentionally or wantonly defaces, destroys, or damages residential rental property causing pecuniary loss of five hundred dollars ($500) or more; or
  (d) As a squatter, intentionally or wantonly defaces, destroys, or damages real property causing pecuniary loss of five hundred dollars ($500) or more.
(2) Criminal mischief in the first degree is a Class D felony, unless:
  (a) The offense occurs during a declared emergency as defined by KRS 39A.020 arising from a natural or man-made disaster, within the area covered by the emergency declaration, and within the area impacted by the disaster, in which case it is a Class C felony;
  (b) For the first offense, if the defendant at any time prior to trial effects repair or replacement of the defaced, destroyed, or damaged property, makes complete restitution in the amount of the damage, or performs community service as required by the court, in which case it is a Class B misdemeanor. The court shall determine the number of hours of community service commensurate with the total amount of monetary damage caused by or incidental to the commission of the crime, of not less than sixty (60) hours; or
  (c) For the second or subsequent offense, if the defendant at any time prior to trial effects repair or replacement of the defaced, destroyed, or damaged property, makes complete restitution in the amount of the damage, or performs community service as required by the court, in which case it is a Class A misdemeanor. The court shall determine the number of hours of community service commensurate with the total amount of monetary damage caused by or incidental to the commission of the crime, of not less than sixty (60) hours.

KRS 512.030 Criminal mischief in the second degree

(1) A person is guilty of criminal mischief in the second degree when, having no right to do so or any reasonable ground to believe that he or she has such right, he or she:
   (a) Intentionally or wantonly defaces, destroys or damages any property causing pecuniary loss of less than five hundred dollars ($500);
   (b) As a tenant, intentionally or wantonly defaces, destroys, or damages residential rental property causing pecuniary loss of less than five hundred dollars ($500); or
   (c) As a squatter, intentionally or wantonly defaces, destroys, or damages real property causing a pecuniary loss of less than five hundred dollars ($500).
(2) Criminal mischief in the second degree is a Class A misdemeanor, unless;
   (a) The offense occurs during a declared emergency as defined by KRS 39A.020 arising from a natural or man-made disaster, within the area covered by the emergency declaration, and within the area impacted by the disaster, in which case it is a Class D felony; or
   (b) The defendant at any time prior to trial effects repair or replacement of the defaced, destroyed, or damaged property, makes complete restitution in the amount of the damage, or performs community service as required by the court, in which case it is a Class B misdemeanor. The court shall determine the number of hours of community service commensurate with the total amount of monetary damage caused by or incidental to the commission of the crime, of not less than fifteen (15) hours.

KRS 512.050 Criminal use of a noxious substance

(1) A person is guilty of criminal use of a noxious substance when he unlawfully deposits on the land or in the building or vehicle of another any stink bomb, device, or irritant with the intent to interfere with another's use of the land, building or vehicle.
(2) Criminal use of a noxious substance is a Class B misdemeanor.

KRS 512.060 Criminal possession of noxious substance

(1) A person is guilty of criminal possession of a noxious substance when he possesses such substance under circumstances evincing an intent unlawfully to use or cause it to be used to inflict injury upon or to cause annoyance to a person, or to damage property of another or to disturb the public peace.
(2) Criminal possession of a noxious substance is a Class B misdemeanor.

KRS 512.070 Criminal littering

(1) A person is guilty of criminal littering when he:
   (a) Drops or permits to drop on a highway any destructive or injurious material and does not immediately remove it; or
   (b) Knowingly places or throws litter on any public or private property or in any public or private water without permission; or
   (c) Negligently places or throws glass or other dangerous pointed or edged substances on or adjacent to water to which the public has access for swimming or wading or on or within fifty feet of a public highway; or
   (d) Discharges sewage, minerals, oil products or litter into any public waters or lakes within the state.
(2) Criminal littering is a Class A misdemeanor.
(3) Violators may prepay to the Circuit Court clerk if prepayment is so noted on the citation and if the littering offense is not combined with an offense that is not prepayable.

KRS 512.080 Unlawfully posting advertisements

(1) A person is guilty of unlawfully posting advertisements when, having no right to do so or any reasonable ground to believe he has such a right, he posts, paints or otherwise affixes to the property of another person or to public property any advertisement, poster, notice or other matter.
(2) Unlawfully posting advertisements is a violation.

KRS 512.090 Unlawful acts relating to acquiring metals

(1) A person is guilty of unlawful acts relating to acquiring metals when the person intentionally and without permission cuts, mutilates, defaces, or otherwise injures any personal or real property of another, including any fixtures or improvements, for the purpose of obtaining any restricted metal, nonferrous metal, or ferrous metal as defined in KRS 433.900, in any amount.
(2) Unlawful acts relating to acquiring metals is:
   (a) A Class B misdemeanor with a fine of not more than two hundred fifty dollars ($250) or imprisonment in the county jail for less than ninety (90) days, or both, if the direct injury to the property, the amount of loss in value to the property, the amount of repairs necessary to return the property to its condition before the act, or the property loss, including fixtures or improvements, is less than three thousand dollars ($3,000); or
   (b) A Class D felony with a fine of not less than one thousand dollars ($1,000) and not more than ten thousand dollars ($10,000) or double his or her gain from commission of the offense, whichever is the greater, or imprisonment for not less than one (1) year but not more than five (5) years, or both, if the direct injury to the property, the amount of loss in value to the property, the amount of repairs necessary to return the property to its condition before the act, or the property loss, including fixtures or improvements, is three thousand dollars ($3,000) or more.

KRS CHAPTER 513
ARSON AND RELATED OFFENSES

KRS 513.010 Definition of “building”

The following definition applies in this chapter unless the context otherwise requires:
"**Building**", in addition to its ordinary meaning, specifically includes any dwelling, hotel, commercial structure, automobile, truck, watercraft, aircraft, trailer, sleeping car, railroad car, or other structure or vehicle, or any structure with a valid certificate of occupancy.

KRS 513.020 Arson in the first degree

(1) A person is guilty of arson in the first degree when, with intent to destroy or damage a building, he starts a fire or causes an explosion, and;
   (a) The building is inhabited or occupied or the person has reason to believe the building may be inhabited or occupied; or
   (b) Any other person sustains serious physical injury as a result of the fire or explosion or the fire fighting as a result thereof.
(2) Arson in the first degree is a Class A felony.

KRS 513.030 Arson in the second degree

(1) A person is guilty of arson in the second degree when he starts a fire or causes an explosion with intent to destroy or damage a building:
   (a) Of another; or
   (b) Of his own or of another, to collect or facilitate the collection of insurance proceeds for such loss.
(2) In any prosecution under this section, it is a defense that:
   (a) No person other than the defendant had a possessory or proprietary interest in the building, or, if other persons had such an interest, all of them consented to the defendant's conduct; and
   (b) The defendant's sole intent was to destroy or damage the building for a lawful purpose.
(3) Arson in the second degree is a Class B felony.

KRS 513.040 Arson in the third degree

(1) A person is guilty of arson in the third degree if he wantonly causes destruction or damage to a building of his own or of another by intentionally starting a fire or causing an explosion.

(2) In any prosecution under this section, it is a defense that no person other than the defendant had a possessory or proprietary interest in the building, or, if other persons had such an interest, all of them consented to defendant's conduct.
(3) Arson in the third degree is a Class D felony.

KRS 513.060 Burning personal property to defraud an insurer

(1) A person is guilty of burning personal property to defraud an insurer when, with intent to defraud or injure an insurer, he:
   (a) Sets fire to, burns, or causes to be burned; or
   (b) Aids, counsels, or procures the burning of any of the goods, wares, merchandise, or other personal property of himself or another, that is insured at the time against loss or damage by fire.
(2) Burning personal property to defraud an insurer is a Class D felony.

ARSON OFFENSES CHART
(KRS Chapter 513)

		Arson 3rd (KRS 513.040)	Arson 2nd (KRS 513.030)	Arson 1st (KRS 513.020)
Defendant Sets **fire** Causes **explosion**	**OR**	**Intentionally**	**Intentionally**	**Intentionally**
To a **building**	**(NOTE 1)**			
With **intent to damage** the building	**AND**	**No** (causing the damage is **wanton**)	**Yes**	**Yes**
Fire or explosion **damages the building**	**AND**	**Yes (NOTE 2)**	**No**	**No**
Either building Belongs to another	**OR**	**Yes**	**Yes (NOTE 3)**	**Not Required**
Burned/exploded to collect insurance (building belongs to self or another)	**AND**	**N/A** (Damage not intended)	**Yes**	**Not Required**
One or more **aggravating circumstances** exist: At the time of fire/explosion building: Is **inhabited or occupied** Defendant has **reason to believe it is Inhabited or occupied** Another person is **seriously injured** as a result of The fire or explosion The firefighting	**OR** **OR** **OR**	**No (NOTE 4)**	**No**	**Yes**
Defense available: No one else has **proprietary** (ownership) or **Possessory** interest (right to occupy) **All consented** to defendant's actions	**OR**	**Yes**	**Yes** (fire or explosion for lawful purpose)	**No**

NOTE 1 KRS 513.010 expands for KRS Chapter 513 the meaning of **"building"**: "in addition to its ordinary meaning ***[i.e. 4 walls and a roof permanently attached to the land]*** specifically includes any . . . automobile, truck, watercraft, aircraft, trailer, sleeping car, railroad car, or other . . . vehicle . . .." Therefore, although these would normally be considered to be "personal property", a person setting fire to one or these to collect insurance should be charged with **"Arson 2nd"**, not **"Burning Personal Property to Defraud and Insurer"** (KRS 513.060). *See also* Com. v. Cross, 78 S.W.2d 63 (Ky.App., 1988); Com. v. Plowman, 86 S.W.3d 47 (Ky., 2002). Compare KRS 513.010 with KRS 511.010(1) which also defines "building" for the purposes of the burglary and trespass statutes.

NOTE 2 Only the statutory language of **Arson 3rd** requires **actual damage**. **Arson 1st** and **Arson 2nd** only require that the defendant **intend to cause damage.**

NOTE 3 Intentionally burning or exploding another person's building is at least **Arson 2nd**. The building may be your own or belong to someone else if done to collect insurance.

NOTE 4 **Arson 1st** requires that the defendant intend to damage the property. Even if the aggravating circumstances in **Arson 1st** are present, if setting the fire or causing the explosion is wanton (not intentional), the defendant committed **Arson 3rd**, not **Arson 1st**.

KRS CHAPTER 514
THEFT AND RELATED OFFENSES

KRS 514.010 Definitions

The following definitions apply in this chapter unless the context otherwise requires:

(1) "**Deprive**" means:
   (a) To withhold property of another permanently or for so extended a period as to appropriate a major portion of its economic value or with intent to restore only upon payment of reward or other compensation; or
   (b) To dispose of the property so as to make it unlikely that the owner will recover it.

(2) "**Financial institution**" means a bank, insurance company, credit union, building and loan association, savings and loan association, investment trust or other organization held out to the public as a place of deposit of funds or medium of savings or collective investment.

(3) "**Movable property**" means property the location of which can be changed, including things growing on, affixed to, or found in land, and documents although the rights represented thereby have no physical location. **"Immovable property"** is all other property.

(4) "**Obtain**" means:
   (a) In relation to property, to bring about a transfer or purported transfer from another person of a legal interest in the property, whether to the obtainer or another; or
   (b) In relation to labor or service, to secure performance thereof.

(5) "**Propelled vehicle**" means any vehicle, including but not limited to motor vehicles, aircraft, boats, or construction machinery, which is propelled otherwise than by muscle power or which is readily capable of being towed otherwise than by muscle power.

(6) "**Property**" means anything of value, including real estate, tangible and intangible personal property, contract rights, documents, choses-in-action and other interests in or claims to wealth, admission or transportation tickets, captured or domestic animals, food and drink.

(7) "**Property of another**" includes property in which any person other than the actor has an interest which the actor is not privileged to infringe, regardless of the fact that the actor also has an interest in the property and regardless of the fact that the other person might be precluded from civil recovery because the property was used in an unlawful transaction or was subject to forfeiture as contraband. Property in possession of the actor shall not be deemed property of another who has only a security interest therein, even if legal title is in the creditor pursuant to a conditional sales contract or other security arrangement.

(8) "**Receiving**" means acquiring possession, control or title or lending on the security of the property.

(9) "**Services**" includes labor, professional service, transportation, telephone, electricity, gas, water or other public service, accommodation in hotels, restaurants or elsewhere, admission to exhibitions, use of vehicles or other movable property.

(10) "**Tax liability**" for purposes of this chapter means the amount of money by which a person understates the total amount of taxes due or collected and not remitted to the Commonwealth, or the amount he fails to pay to the state, or both. Any person whose income is subject to the withholding of income tax and from whose income taxes are withheld shall be considered, for purposes of this chapter, to have paid to the Commonwealth the sum of money withheld, whether or not such sum withheld is paid to the Commonwealth.

(11) "**Tax return**" means any return, declaration, report or form issued or prescribed by the Revenue Cabinet and required to be filed with the Revenue Cabinet as prescribed by law.

KRS 514.020 General provisions

(1) It is a defense to prosecution for theft that the actor:
   (a) Was unaware that the property or service was that of another; or
   (b) Acted under a claim of right to the property or service involved or a claim that he or she had a right to acquire or dispose of it as he or she did; or
   (c) Took property exposed for sale, intending to purchase and pay for it promptly, or reasonably believing that the owner, if present, would have consented.

(2) It is no defense that theft was from the actor's spouse, except that misappropriation of household and personal effects or other property normally accessible to both spouses is theft only if it

involves the property of the other spouse and only if it occurs after the parties have ceased living together.

(3) It shall be prima facie evidence of intent to commit theft by deception when one who has leased or rented the personal property of another fails to return the personal property to its owner within four (4) days after the lease or rental agreement has expired. It shall also be prima facie evidence of intent to commit theft by deception when one presents to the owner identification which is false, fictitious or not current as to name, address, place of employment or other items of identification for the purpose of obtaining the lease or rental agreement. Nothing herein contained shall relieve the owner from making demand for return of property so leased or rented. Notice addressed and mailed to the lessee or renter at the address given at the time of the making of the lease or rental agreement shall constitute proper demand.

KRS 514.030 Theft by unlawful taking or disposition - Penalties

(1) Except as otherwise provided in KRS 217.181 or 218A.1418, a person is guilty of theft by unlawful taking or disposition when he or she unlawfully:
   (a) Takes or exercises control over movable property of another with intent to deprive him or her thereof; or
   (b) Obtains immovable property of another or any interest therein with intent to benefit himself or herself or another not entitled thereto.

   EDITOR'S NOTES:
   - ***Most shoplifters are charged under this section, but other sections of this chapter may also be appropriate, See KRS 433.234 and 433.236 (above at page 7.2.1) for special provisions relating to "shoplifting".***
   - ***The General Assembly authorized suspending operator's licenses for second or subsequent convictions under this section for theft of gasoline or special fuels from a "retail establishment" (see KRS 532.356(2) at page 8.8.4).***
   - ***KRS 532.356 designates this section (not Theft of Services) as the proper charge.***
   - ***By using shoplifting language ("retail establishment") the Legislature apparently approved treating "gas drive-offs" as a form of shoplifting, thus empowering officers to make warrantless arrests for a misdemeanor not committed in the officers' presence.***
   - ***Officers should consult their prosecuting attorneys for local policy on whether to seize vehicles used to transport stolen property (i.e., gasoline) the vehicles of persons who drive off without paying for gasoline – see KRS 514.130(1) herein at page 8.3.14.***

(2) Theft by unlawful taking or disposition is a Class B misdemeanor unless:
   (a) The property is a firearm (regardless of the value of the firearm), in which case it is a Class D felony;
   (b) The property is anhydrous ammonia (regardless of the value of the ammonia), in which case it is a Class D felony unless it is proven that the person violated this section with the intent to manufacture methamphetamine in violation of KRS 218A.1432, in which case it is a Class B felony for the first offense and a Class A felony for each subsequent offense;
   (c) The property is one (1) or more controlled substances valued collectively at less than ten thousand dollars ($10,000), in which case it is a Class D felony;
   (d) The value of the property is five hundred dollars ($500) or more but less than one thousand dollars ($1,000), in which case it is a Class A misdemeanor;
   (e) The value of the property is one thousand dollars ($1,000) or more but less than ten thousand dollars ($10,000), in which case it is a Class D felony;
   (f) The person has three (3) or more convictions under paragraph (d) of this subsection within the last five (5) years, in which case it is a Class D felony. The five (5) year period shall be measured from the dates on which the offenses occurred for which the judgments of conviction were entered;
   (g) The value of the property is ten thousand dollars ($10,000) or more, in which case it is a Class C felony;
   (h) The value of the property is one million dollars ($1,000,000) or more but less than ten million

dollars ($10,000,000), in which case it is a Class B felony;

(i) The value of the property is ten million dollars ($10,000,000) or more, in which case it is a Class B felony: or

(j) The offense occurs during a declared emergency as defined by KRS 39A.020 arising from a natural or man-made disaster, within the area covered by the emergency declaration, and within the area impacted by the disaster, in which case the person shall be charged one (1) level higher than the level otherwise specified in this subsection.

(3) Any person convicted under subsection (2)(g) of this section shall not be released on probation or parole until he or she has served at least fifty percent (50%) of the sentence imposed, any statute to the contrary notwithstanding.

(4) If any person commits two (2) or more separate offenses of theft by unlawful taking or disposition within one (1) year, the offenses may be combined and treated as a single offense, and the value of the property in each offense may be aggregated for the purpose of determining the appropriate charge. Offenses committed in different jurisdictions within the Commonwealth may be combined pursuant to this subsection and tried in any jurisdiction in which venue would be proper for at least one (1) of the offenses. A defendant shall not be tried in more than one (1) jurisdiction for the same offense or offenses.

KRS 514.040 Theft by deception

(1) A person is guilty of theft by deception when the person obtains property or services of another by deception with intent to deprive the person thereof. A person deceives when the person intentionally:

(a) Creates or reinforces a false impression, including false impressions as to law, value, intention, or other state of mind;

(b) Prevents another from acquiring information which would affect judgment of a transaction;

(c) Fails to correct a false impression which the deceiver previously created or reinforced or which the deceiver knows to be influencing another to whom the person stands in a fiduciary or confidential relationship;

(d) Fails to disclose a known lien, adverse claim, or other legal impediment to the enjoyment of property which the person transfers or encumbers in consideration for the property obtained, whether the impediment is or is not valid or is or is not a matter of official record; or

(e) Issues or passes a check or similar sight order for the payment of money, knowing that it will not be honored by the drawee.

(2) The term "deceive" does not, however, include falsity as to matters having no pecuniary significance or puffing by statements unlikely to deceive ordinary persons in the group addressed.

(3) Deception as to a person's intention to perform a promise shall not be inferred from the fact alone that he did not subsequently perform the promise.

(4) For purposes of subsection (1) of this section, a maker of a check or similar sight order for the payment of money is presumed to know that the check or order, other than a postdated check or order, would not be paid, if:

(a) The maker had no account with the drawee at the time the check or order was issued; or

(b) Payment was refused by the drawee for lack of funds, upon presentation within thirty (30) days after issue, and the maker failed to make good within ten (10) days after receiving notice of that refusal. Notice of the refusal may include a citation to this section and a description of this section’s criminal penalties and shall be deemed properly addressed when mailed to the address printed or written on the check or sight order or provided by the drawer or maker upon issuance of the check or sight order. The notice, if mailed, shall be deemed received by the addressee seven (7) days after it is placed in the United States mail. The notice may be sent by first-class mail if supported by an affidavit of service setting out the contents of the notice, the address to which the notice was mailed, that correct postage was applied, and the date the notice was placed in the United States mail. A maker makes good on a check or similar sight order for the payment of money by paying to the holder the face amount of the instrument, together with any merchant's posted bad check handling fee not to exceed fifty dollars ($50) and any fee imposed pursuant to subsection (5) of this section.

(5) If a county attorney issues notice to a maker that a drawee has refused to honor an instrument due to a lack of funds as described in subsection (4)(b) of this section, the county attorney may

charge a fee to the maker of fifty dollars ($50), if the instrument is paid. Money paid to the county attorney pursuant to this section shall be used only for payment of county attorney office operating expenses. Excess fees held by the county attorney on June 30 of each year shall be turned over to the county treasurer before the end of the next fiscal year for use by the fiscal court of the county.

(6) A person is guilty of theft by deception when the person issues a check or similar sight order in payment of all or any part of any tax payable to the Commonwealth knowing that it will not be honored by the drawee.

(7) A person is guilty of theft by deception when the person issues a check or similar sight order in payment of all or any part of a child support obligation knowing that it will not be honored by the drawee.

(8) Theft by deception is a Class B misdemeanor unless:
   (a) The value of the property, service, or the amount of the check or sight order referred to in subsection (6) or (7) of this section is five hundred dollars ($500) or more but less than one thousand dollars ($1,000), in which case it is a Class A misdemeanor;
   (b) The value of the property, service or the amount of the check or sight order referred to in subsection (6) or (7) of this section is one thousand dollars ($1,000) or more but less than ten thousand dollars ($10,000), in which case it is a Class D felony;
   (c) A person has three (3) or more convictions under paragraph (a) of this subsection within the last five (5) years, in which case it is a Class D felony. The five (5) year period shall be measured from the dates on which the offenses occurred for which the judgments of conviction were entered;
   (d) The value of the property, service, or the amount of the check or sight order referred to in subsection (6) or (7) of this section is ten thousand dollars ($10,000) or more, in which case it is a Class C felony: or
   (e) The offense occurs during a declared emergency as defined by KRS 39A.020 arising from a natural or man-made disaster, within the area covered by the emergency declaration, and within the area impacted by the disaster, in which case the person shall be charged one (1) level higher than the level otherwise specified in this subsection.

(9) If any person commits two (2) or more separate offenses of theft by deception within ninety (90) days, the offenses may be combined and treated as a single offense, and the value of the property in each offense may be aggregated for the purpose of determining the appropriate charge.

KRS 514.050 Theft of property lost, mislaid or delivered by mistake

(1) Except as provided in KRS 365.710 ***[unsolicited goods]***, a person is guilty of theft of property lost, mislaid or delivered by mistake when:
   (a) He comes into control of the property of another that he knows to have been lost, mislaid, or delivered under a mistake as to the nature or amount of the property or the identity of the recipient; and
   (b) With intent to deprive the owner thereof, he fails to take reasonable measures to restore the property to a person entitled to have it.

(2) Theft of property lost, mislaid or delivered by mistake is a Class B misdemeanor unless***:***
   (a) The value of the property is five hundred dollars ($500) or more but less than one thousand dollars ($1,000), in which case it is a Class A misdemeanor;
   (b) The value of the property is one thousand dollars ($1,000) or more but less than ten thousand dollars ($10,000), in which case it is a Class D felony; or
   (c) A person has three (3) or more convictions under paragraph (a) of this subsection within the last five (5) years, in which case it is a Class D felony. The five (5) year period shall be measured from the dates on which the offenses occurred for which the judgments of conviction were entered; or
   (d) The value of the property is ten thousand dollars ($10,000) or more, in which case it is a Class C felony.

(3) If any person commits two (2) or more separate offenses of theft of property lost, mislaid, or delivered by mistake within ninety (90) days, the offenses may be combined and treated as a

single offense, and the value of the property in each offense may be aggregated for the purpose of determining the appropriate charge.

KRS 514.060 Theft of services

(1) A person is guilty of theft of services when:
   (a) The person intentionally obtains services by deception or threat or by false token or other means to avoid payment for the services which he knows are available only for compensation;
   (b) The person intentionally obtains wireless communications services or access to services by any of the following means:
      1. Unauthorized interception of any electronic serial number, mobile identification number, personal identification number, or like identifying number;
      2. Unauthorized interception of any cellular service or personal communications service as terms may be defined in Title 47 C.F.R., Parts 22 and 24 respectively;
      3. Unauthorized interception of any similar telephone service; or
      4. Use of deception, threat, or other means to avoid payment for the services which the person knows are available only for charge or compensation; or
   (c) Having control over or unauthorized access to the use of the services of others to which the person is not entitled, the person intentionally diverts the services to the person's own benefit or the benefit of another not entitled thereto.

(2) Where compensation for services is ordinarily paid immediately upon the rendering of the services, as in the case of hotels and restaurants, refusal to pay or absconding without payment or offer to pay shall be prima facie evidence that the services were obtained by deception as to intention to pay.

(3) In any prosecution for theft of gas, water, electricity or other public service, where the utility supplying the service had installed a meter or other device to record the amount of service supplied, proof that:
   (a) The meter or other device has been altered, tampered with, or bypassed in a manner so as to prevent or reduce the recording thereof; or
   (b) Service has been, after having been disconnected by the utility supplying service, reconnected without authorization of the utility;

   shall be prima facie evidence of the intent to commit theft of service by the person or persons obligated to pay for service supplied through the meter or other device.

(4) Theft of services is a Class B misdemeanor unless:
   (a) The value of the service is five hundred dollars ($500) or more but less than one thousand dollars ($1,000), in which case it is a Class A misdemeanor;
   (b) The value of the service is one thousand dollars ($1,000) or more but less than ten thousand dollars ($10,000), in which case it is a Class D felony; or
   (c) A person has three (3) or more convictions under paragraph (a) of this subsection within the last five (5) years, in which case it is a Class D felony. The five (5) year period shall be measured from the dates on which the offenses occurred for which the judgments of conviction were entered; or
   (d) The value of the service is ten thousand dollars ($10,000) or more, in which case it is a Class C felony.

(5) If any person commits two (2) or more separate offenses of theft of services within ninety (90) days, the offenses may be combined and treated as a single offense, and the value of the property in each offense may be aggregated for the purpose of determining the appropriate charge.

KRS 514.065 Possession, use or transfer for use of a device for theft of telecommunications services

(1) As used in this section, "**telecommunications service**" means any communication service ordinarily provided for a charge or compensation to facilitate the origination, transmission, emission, or reception of signs, signals, writings, images, sounds, or intelligence of any nature by telephone, including but not limited to cellular and personal communications service, as terms

may be defined in Title 47 C.F.R., Parts 22 and 24, respectively, telephones, wire, radio, electromagnetic, photoelectronic, or photooptical systems, but excluding cable television services, even if provided by a telephone utility.

(2) A person is guilty of possession, use, or transfer for use of a device for theft of telecommunications services when the person:
   (a) Makes, assembles, or possesses any instrument, apparatus, equipment or device designed, modified, altered, programmed, reprogrammed, or otherwise adapted for or used for commission of a theft of telecommunications services in violation of KRS 514.060; or
   (b) Sells, gives, transports, or otherwise transfers to another, or offers or advertises to sell, give, or otherwise transfer any instrument, apparatus, equipment or device described in paragraph (a) of this subsection, or plans or instructions for making or assembling the same under circumstances evincing an intent to use or employ the instrument, apparatus, equipment, or device, or to allow the same to be used or employed, for a purpose described in paragraph (a) of this subsection, or knowing or having reason to believe that the same is intended to be so used, or that the aforesaid plans or instructions are intended to be used for making or assembling the instrument, apparatus, equipment, or device.

(3) An instrument, apparatus, equipment or device described in paragraph (a) of subsection (2) of this section shall not include any instrument, apparatus, equipment or device authorized or approved or otherwise permitted by an agency of the federal government or the Commonwealth of Kentucky.

(4) Possession, use, or transfer for use of a device for theft of telecommunications services is a Class A misdemeanor unless the defendant has previously been convicted of violating this section, in which case it is a Class D felony.

(5) Notwithstanding any other provision of this chapter, any instrument, apparatus, equipment, or device designed, modified, altered, programmed, reprogrammed, or otherwise adapted for or used for commission of a theft of telecommunications service in violation of KRS 514.060, may be seized under warrant or incident to a lawful arrest for the violation of KRS 514.060, and, upon the conviction of any person for a violation, the court shall order any instrument, apparatus, equipment, device, or plans or instructions for making or assembling them forfeited to the state or destroyed in accordance with KRS 500.090(1)(a), or if requested by the person providing the telecommunications service in the territory in which they were seized, turned over to the telecommunications service provider.

KRS 514.070 Theft by failure to make required disposition of property

(1) A person is guilty of theft by failure to make required disposition of property received when he or she:
   (a) 1. Obtains property upon agreement or subject to a known legal obligation to make specified payment, with no option to purchase, or other disposition whether from such property or its proceeds or from his own property to be reserved in equivalent amount; and
   2. Intentionally deals with the property as his own and fails to make the required payment or disposition; or
   (b) 1. Rents or leases personal property having a fair market value of one hundred dollars ($100) or more under a written agreement with no option to purchase;
   2. Fails to return the personal property within five (5) days after receiving notice sent by the merchant or lessor demanding return by certified mail at the address on the written agreement; and
   3. Intentionally possesses or conceals the personal property, or otherwise withholds the location, if known, of the personal property.

(2) (a) It shall not be a defense to subsection (1)(b) of this section that the person returned the personal property after the expiration of the time period specified in subsection (1)(b)2. of this section.
   (b) If the personal property is returned, any monetary loss resulting from the deprivation of the right of the owner to use the personal property for future rentals may only be pursued as a civil matter under the terms of the rental agreement.

(c) This section shall not be construed to prevent a person from being prosecuted under any other provision of the Kentucky Penal Code for the failure to return the personal property as provided in subsection (1)(b) of this section.

(3) The provisions of subsection (1) of this section apply notwithstanding that it may be impossible to identify particular property as belonging to the victim at the time of the actor's failure to make the required payment or disposition.

(4) An officer or employee of the government or of a financial institution is presumed:
(a) To know any legal obligation relevant to his or her criminal liability under this section; and
(b) To have dealt with the property as his or her own when:
1. He or she fails to account or pay upon lawful demand; or
2. An audit reveals a shortage or falsification of accounts.

(5) Theft by failure to make required disposition of property received is a Class B misdemeanor unless, for a violation of subsection (1)(a) of this section:
(a) The value of the property is five hundred dollars ($500) or more but less than one thousand dollars ($1,000), in which case it is a Class A misdemeanor;
(b) The value of the property is one thousand dollars ($1,000) or more but less than ten thousand dollars, in which case it is a Class D felony;
(c) A person has three (3) or more convictions under paragraph (a) of this subsection within the last five (5) years, in which case it is a Class D felony. The five (5) year period shall be measured from the dates on which the offenses occurred for which the judgments of conviction were entered; or
(d) The value of the property is ten thousand dollars ($10,000) or more, in which case it is a Class C felony.

(6) A person shall not be convicted of theft by failure to make required disposition of property received when he or she has also been convicted of a violation of KRS 522.050 arising out of the same incident.

(7) If any person commits two (2) or more separate offenses of theft by failure to make a required disposition of property received within ninety (90) days, the offenses may be combined and treated as a single offense, and the value of the property in each offense may be aggregated for the purpose of determining the appropriate charge.

KRS 514.080 Theft by extortion

(1) A person is guilty of theft by extortion when he intentionally obtains property of another by threatening to:
(a) Inflict bodily injury on anyone or commit any other criminal offense; or
(b) Accuse anyone of a criminal offense; or
(c) Expose any secret tending to subject any person to hatred, contempt or ridicule, or to impair his credit or business repute; or
(d) Use wrongfully his position as a public officer or servant or employee by performing some act within or related to his official duties either expressed or implied, or by refusing or omitting to perform an official duty, either expressed or implied, in a manner affecting some person adversely; or
(e) Bring about or continue a strike, boycott or other collective unofficial action, if the property is not demanded or received for the benefit of the group in whose interest the actor purports to act; or
(f) Testify or provide information or withhold testimony or information with respect to another's legal claim or defense.

(2) It is a defense to prosecution based on subsection (1)(b), (c) or (d) that the property obtained by threat of accusation, exposure, lawsuit or other invocation of official action was claimed as restitution or indemnification for harm done in the circumstances to which accusation, exposure, lawsuit or other official action relates, or as compensation for property or lawful services.

(3) Theft by extortion is a Class B misdemeanor unless:
(a) The value of the property obtained is five hundred dollars ($500) or more but less than one thousand dollars ($1,000), in which case it is a Class A misdemeanor;

(b) The value of the property is one thousand dollars ($1,000) or more but less than ten thousand dollars ($10,000), in which case it is a Class D felony;
(c) A person has three (3) or more convictions under paragraph (a) of this subsection within the last five (5) years, in which case it is a Class D felony. The five (5) year period shall be measured from the dates on which the offenses occurred for which the judgments of conviction were entered; or
(d) The value of the property is ten thousand dollars ($10,000) or more, in which case it is a Class C felony.

(4) If any person commits two (2) or more separate offenses of theft by extortion within ninety (90) days, the offenses may be combined and treated as a single offense, and the value of the property in each offense may be aggregated for the purpose of determining the appropriate charge.

KRS 514.090 Theft of labor already rendered

(1) A person is guilty of theft of labor already rendered when, in payment of labor already rendered by another, he intentionally issues or passes a check or similar sight order for the payment of money, knowing that it will not be honored by the drawee.
(2) For purposes of subsection (1), an issuer of a check or similar sight order for the payment of money is presumed to know that the check or order, other than a postdated check or order, would not be paid, if:
(a) The issuer had no account with the drawee at the time the check or order was issued; or
(b) Payment was refused by the drawee for lack of funds, upon presentation within 30 days after issue, and the issuer failed to make good within 10 days after receiving notice of that refusal.
(3) Theft of labor already rendered is a Class B misdemeanor unless:
(a) The value of the labor rendered is five hundred dollars ($500) or more but less than one thousand dollars ($1,000), in which case it is a Class A misdemeanor;
(b) The value of the labor rendered is one thousand dollars ($1,000) or more but less than ten thousand dollars ($10,000), in which case it is a Class D felony;
(c) A person has three (3) or more convictions under paragraph (a) of this subsection within the last five (5) years, in which case it is a Class D felony. The five (5) year period shall be measured from the dates on which the offenses occurred for which the judgments of conviction were entered; or
(d) The value of the labor rendered is ten thousand dollars ($10,000) or more, in which case it is a Class C felony.
(4) If any person commits two (2) or more separate offenses of theft of labor already rendered within ninety (90) days, the offenses may be combined and treated as a single offense, and the value of the property in each offense may be aggregated for the purpose of determining the appropriate charge.

KRS 514.100 Unauthorized use of automobile or other propelled vehicle

(1) A person is guilty of the unauthorized use of an automobile or other propelled vehicle when he knowingly operates, exercises control over, or otherwise uses such vehicle without consent of the owner or person having legal possession thereof.
(2) Unauthorized use of automobiles or other propelled vehicle is a Class A misdemeanor unless the defendant has previously been convicted of this offense or of violation of KRS 514.030 for having stolen an automobile or other propelled vehicle in which case it shall be a Class D felony.

KRS 514.110 Receiving stolen property

(1) A person is guilty of receiving stolen property when he receives, retains, or disposes of movable property of another knowing that it has been stolen, or having reason to believe that it has been stolen, unless the property is received, retained, or disposed of with intent to restore it to the owner.
(2) The possession by any person of any recently stolen movable property shall be prima facie evidence that such person knew such property was stolen.

(3) Receiving stolen property is a Class B misdemeanor unless:
   (a) The value of the property is five hundred dollars ($500) or more but less than one thousand dollars ($1,000), in which case it is a Class A misdemeanor;
   (b) The value of the property is one thousand dollars ($1,000) or more but less than ten thousand dollars ($10,000), in which case it is a Class D felony;
   (c) A person has three (3) or more convictions under paragraph (a) of this subsection within the last five (5) years, in which case it is a Class D felony. The five (5) year period shall be measured from the dates on which the offenses occurred for which the judgments of conviction were entered;
   (d) The value of the property is ten thousand dollars ($10,000) or more, in which case it is a Class C felony;
   (e) The property is a firearm (regardless of the value of the firearm), in which case it is a Class D felony;
   (f) The property is anhydrous ammonia (regardless of the value of the ammonia), in which case it is a Class D felony unless it is proven that the person violated this section with the intent to manufacture methamphetamine in violation of KRS 218A.1432 in which case it is a Class B felony for the first offense and a Class A felony for each subsequent offense; or
   (g) The offense occurs during a declared emergency as defined by KRS 39A.020 arising from a natural or man-made disaster, within the area covered by the emergency declaration, and within the area impacted by the disaster, in which case the person shall be charged one (1) level higher than the level otherwise specified in this subsection.
(4) If any person commits two (2) or more separate offenses of receiving stolen property within ninety (90) days, the offenses may be combined and treated as a single offense, and the value of the property in each offense may be aggregated for the purpose of determining the appropriate charge.

KRS 514.120 Obscuring the identity of machine or other property

(1) A person is guilty of obscuring the identity of a machine or other property when he:
   (a) Removes, defaces, covers, alters, destroys or otherwise obscures the manufacturer's serial number or any other distinguishing identification number or mark including property marked with a Social Security number or motor vehicle operator's license number for identification purposes, upon any automobile or other propelled vehicle, machine, or electrical or mechanical device or other property (including any part thereof) with intent to render it or other property unidentifiable; or
   (b) Possesses any automobile or other propelled vehicle, machine, or electrical or mechanical device or other property (including any part thereof) knowing that the serial number or other identification number or mark including property marked with a Social Security number for identification purposes has been removed, defaced, covered, altered, destroyed or otherwise obscured.
(2) Possession of any automobile or other propelled vehicle, machine or electrical or mechanical device or other property (including any part thereof) on which the serial number or any other distinguishing identification number or mark including property marked with a Social Security number or motor vehicle operator's license number for
identification purposes has been removed, defaced, covered, altered, destroyed or otherwise obscured is prima facie evidence of knowledge of that fact.
(3) A person in possession of any property which is otherwise in violation of this section may apply in writing to the Kentucky state police, through any law enforcement agency in the county of his residence, for assignment of a number for the property providing he can show that he is the lawful owner of the property pursuant to the provisions of this section, KRS 16.200 and 500.090. If a number is issued in conformity with the provisions of this section, KRS 16.200 and 500.090 then the person to whom it was issued and any person to whom the property is lawfully disposed of shall not be in violation of these sections. A person lawfully holding a certification issued pursuant to KRS 500.090 shall also be deemed in compliance with this section. This section shall apply only when the application has been filed by the defendant prior to arrest or authorization of a warrant of arrest for the defendant by a court.

(4) Obscuring the identity of a machine or other property is a Class A misdemeanor unless the value of the property is:
   (a) Five hundred dollars ($500) or more but less than ten thousand dollars ($10,000), in which case it is a Class D felony; or
   (b) Ten thousand dollars ($10,000) or more, in which case it is a Class C felony.

KRS 514.130 Seizure and forfeiture of certain property

(1) Upon the conviction of any person for the violation of any offense in this chapter all property held in violation of this chapter, and any personal property, including but not limited to vehicles or aircraft, used in the commission or furtherance of an offense under this chapter or in the transportation of stolen property shall be forfeited as provided in KRS 500.090 by court order and sold, destroyed or otherwise disposed of in accordance with KRS 500.090.
(2) Possession of a vehicle with a stolen major part or parts installed thereon shall be deemed to bring the entire vehicle within the provisions of subsection (1) of this section.
(3) For the purposes of this section a major part of an automobile or other propelled vehicle shall mean.
   (a) The engine;
   (b) The frame;
   (c) The transmission;
   (d) The front cap ("dog house");
   (e) The front clip;
   (f) The rear clip;
   (g) The top clip;
   (h) The cowl clip;
   (i) A door;
   (j) A truck bed;
   (k) A truck cab; or
   (l) A vehicle body shell.
(4) It shall be the duty of every peace officer to seize any property which is subject to forfeiture under this action.

KRS 514.140 Theft of mail matter

(1) A person is guilty of theft of mail matter when with intent to deprive the owner thereof he or she:
   (a) Steals;
   (b) By fraud or deception obtains;
   (c) Embezzles;
   (d) Conceals;
   (e) Damages; or
   (f) Destroys;

   any mail matter of another (including but not limited to any letter, postal card, package, bag, or other item) from any letter box, mail receptacle, or other authorized depository for mail matter, or from a letter carrier, postal vehicle, or private mailbox or which has been left for collection or delivery adjacent thereto by the United States postal service, common carrier, or delivery service.
(2) Theft of mail matter is a Class D felony.

KRS 514.150 Possession of stolen mail matter

(1) A person is guilty of possession of stolen mail matter when he knowingly or having reason to believe that it has been the subject of theft in violation of KRS 514.140:
   (a) Possesses;
   (b) Buys;
   (c) Receives;
   (d) Conceals;
   (e) Deals in; or
   (f) Sells; any mail matter (as defined in KRS 514.140.)
(2) Possession of stolen mail matter is a Class D felony.

KRS 514.160 Theft of the identity of another

(1) A person is guilty of the theft of the identity of another when he or she knowingly possesses or uses any current or former identifying information of the other person or family member or ancestor of the other person, such as that person's or family member's or ancestor's name, address, telephone number, electronic mail address, Social Security number, driver's license number, birth date, personal identification number or code, and any other information which could be used to identify the person, including unique biometric data, with the intent to represent that he or she is the other person for the purpose of:
   (a) Depriving the other person of property;
   (b) Obtaining benefits or property to which he or she would otherwise not be entitled;
   (c) Making financial or credit transactions using the other person's identity;
   (d) Avoiding detection; or
   (e) Commercial or political benefit.
(2) Theft of identity is a Class D felony. If the person violating this section is a business that has violated this section on more than one (1) occasion, then that person also violates the Consumer Protection Act, KRS 367.110 to 367.300.
(3) This section shall not apply when a person obtains the identity of another to misrepresent his or her age for the purpose of obtaining alcoholic beverages, tobacco, or another privilege denied to minors.
(4) This section does not apply to credit or debit card fraud under KRS 434.550 to 434.730.
(5) Where the offense consists of theft by obtaining or trafficking in the personal identity of another person, the venue of the prosecution may be in either the county where the offense was committed or the county where the other person resides.
(6) A person found guilty of violating any provisions of this section shall forfeit any lawful claim to the identifying information, property, or other realized benefit of the other person as a result of such violation.

KRS 514.170 Trafficking in stolen identities

(1) A person is guilty of trafficking in stolen identities when he or she manufactures, sells, transfers, or purchases, or possesses with the intent to manufacture, sell, transfer, or purchase the personal identity of another person or persons for any purpose listed in KRS 514.160(1). The personal identity of an individual includes any of the identifying information described in KRS 514.160(1).
(2) Possession of five (5) or more separate identities shall be prima facie evidence that the identities are possessed for the purpose of trafficking.
(3) Trafficking in stolen identities is a Class C felony. If the person violating this section is a business that has violated this section on more than one (1) occasion, then that person also violates the Consumer Protection Act, KRS 367.110 to 367.300.

KRS CHAPTER 515
ROBBERY

KRS 515.010 Definition

The following definition applies in this chapter, unless the context otherwise requires:
"**Physical force**" means force used upon or directed toward the body of another person.

KRS 515.020 Robbery in the first degree

(1) A person is guilty of robbery in the first degree when, in the course of committing theft, he or she uses or threatens the immediate use of physical force upon another person with intent to accomplish the theft and when he or she:
   (a) Causes physical injury to any person who is not a participant in the crime; or
   (b) Is armed with a deadly weapon; or
   (c) Uses or threatens the immediate use of a dangerous instrument upon any person who is not a participant in the crime.
(2) Robbery in the first degree is a Class B felony, unless the offense occurs during a declared emergency as defined by KRS 39A.020 arising from a natural or man-made disaster, within the area covered by the emergency declaration, and within the area impacted by the disaster, in which case it is a Class A felony.

KRS 515.030 Robbery in the second degree

(1) A person is guilty of robbery in the second degree when, in the course of committing theft, he or she uses or threatens the immediate use of physical force upon another person with intent to accomplish the theft.
(2) Robbery in the second degree is a Class C felony, unless the offense occurs during a declared emergency as defined by KRS 39A.020 arising from a natural or man-made disaster, within the area covered by the emergency declaration, and within the area impacted by the disaster, in which case it is a Class B felony.

KRS 515.040 Carjacking

(1) A person is guilty of carjacking when he or she takes a motor vehicle in the possession of another without lawful authority or ownership, from the possessor's person or immediate presence, or from the person or immediate presence of a passenger of the motor vehicle, against the possessor's or passenger's will and with the intent to either permanently or temporarily deprive the possessor of the motor vehicle of his or her possession, accomplished by means of force or intimidation.
(2) Carjacking is a Class B felony.
(3) A person shall not be convicted of a violation of this section and a violation of KRS 515.020 or KRS Chapter 514 arising from the same act.

KRS CHAPTER 516
FORGERY AND RELATED OFFENSES

KRS 516.010 Definitions

The following definitions apply in this chapter unless the context otherwise requires:

(1) "**Coin machine**" means a coin box, turnstile, vending machine, or other mechanical or electronic device or receptacle designed:
   (a) To receive a coin or bill or token made for the purpose; and
   (b) In return for the insertion or deposit thereof, automatically to offer, provide, assist in providing, or permit the acquisition of property or service;

(2) "**Complete written instrument**" means a written instrument which purports to be a genuine written instrument fully drawn with respect to every essential feature thereof;

(3) "**Controlled substance**" has the same meaning as it does in KRS 218A.010;

(4) "**Incomplete written instrument**" means a written instrument which contains some matter by way of content or authentication but which requires additional matter in order to render it a complete written instrument;

(5) To "**falsely alter**" a written instrument means to change, without the authority of anyone entitled to grant it, a written instrument, whether it be in complete or incomplete form, by means of erasure, obliteration, deletion, insertion of new matter, transposition of matter, or in any other manner, so that such instrument in its thus altered form appears or purports to be in all respects an authentic creation of or fully authorized by its ostensible maker or drawer;

(6) To "**falsely complete**" a written instrument means to transform, by adding, inserting or changing matter, an incomplete written instrument into a complete one, without the authority of anyone entitled to grant it, so that the complete instrument appears or purports to be in all respects an authentic creation of or fully authorized by its ostensible maker or drawer;

(7) To "**falsely make**" a written instrument means to make or draw a complete written instrument in its entirety or an incomplete written instrument, which purports to be an authentic creation of its ostensible maker or drawer, but which is not either because the ostensible maker or drawer is fictitious or because, if real, he did not authorize the making or drawing thereof;

(8) "**Forged instrument**" means a written instrument which has been falsely made, completed or altered;

(9) "**Slug**" means an object or article which by virtue of its size, shape or any other quality is capable of being inserted, deposited or otherwise used in a coin machine as an improper substitute for a genuine coin, bill, or token;

(10) "**Value of the slug**" means the value of the coin, bill, or token for which it is capable of being substituted; and

(11) "**Written instrument**" means any instrument or article containing written or printed matter or its equivalent used for the purpose of reciting, embodying, conveying, or recording information, or constituting symbol or evidence of value, right, privilege, or identification, which is capable of being used to the advantage or disadvantage of some person.

KRS 516.020 Forgery in the first degree

(1) A person is guilty of forgery in the first degree when with intent to defraud, deceive or injure another, he falsely makes, completes or alters a written instrument which is or purports to be or which is calculated to become or to represent when completed:
   (a) Part of an issue of money stamps, securities or other valuable instruments issued by a government or governmental agency; or
   (b) Part of an issue of stock, bonds or other instruments representing interests in or claims against a corporate or other organization or its property.

(2) Forgery in the first degree is a Class C felony.

KRS 516.030 Forgery in the second degree

(1) A person is guilty of forgery in the second degree when, with intent to defraud, deceive or injure another, he falsely makes, completes or alters a written instrument, or in the commission of a

human trafficking offense as described in KRS 529.100 or 529.110, coerces another person to falsely make, complete, or alter a written instrument, which is or purports to be or which is calculated to become or to represent when completed:

(a) A deed, will, codicil, contract, assignment, commercial instrument, credit card or other instrument which does or may evidence, create, transfer, terminate or otherwise affect a legal right, interest, obligation or status; or
(b) A public record or an instrument filed or required or authorized by law to be filed in or with a public office or public employee; or
(c) A written instrument officially issued or created by a public office, public employee or governmental agency.

(2) Forgery in the second degree is a Class D felony.

KRS 516.040 Forgery in the third degree

(1) A person is guilty of forgery in the third degree when, with intent to defraud, deceive or injure another, he falsely makes, completes or alters a written instrument.
(2) Forgery in the third degree is a Class A misdemeanor.

KRS 516.050 Criminal possession of forged instrument in the first degree

(1) A person is guilty of criminal possession of a forged instrument in the first degree when, with knowledge that it is forged and with intent to defraud, deceive or injure another, he utters or possesses any forged instrument of a kind specified in KRS 516.020.
(2) Criminal possession of a forged instrument in the first degree is a Class C felony.

KRS 516.060 Criminal possession of forged instrument in the second degree

(1) A person is guilty of criminal possession of a forged instrument in the second degree when, with knowledge that it is forged and with in lent to defraud, deceive or injure another, he utters or possesses any forged instrument of a kind specified in KRS 516.030.
(2) Criminal possession of a forged instrument in the second degree is a Class D felony.

KRS 516.070 Criminal possession of forged instrument in the third degree

(1) A person is guilty of criminal possession of a forged instrument in the third degree when, with knowledge that it is forged and with intent to defraud, deceive or, injure another, he utters or possesses a forged instrument.
(2) Criminal possession of a forged instrument in the third degree is a Class A misdemeanor.

KRS 516.080 Limitations on criminal liability

A person may not be convicted of both forgery and criminal possession of a forged instrument with respect to the same instrument.

KRS 516.090 Possession of a forgery device

(1) A person is guilty of possession of a forgery device when he:
(a) Makes or possesses with knowledge of its character any plate, die or other device, apparatus, equipment or article specifically designed or adapted for use in forging written instruments; or
(b) Makes or possesses with knowledge of its character any device, apparatus, equipment or article capable of or adaptable to use in forging written instruments with intent to use it himself or to aid or permit another to use it for purposes of forgery.

(2) Possession of a forgery device is a Class D Felony.

KRS 516.100 Forfeiture of forgery device

Any forgery device which is made, possessed or used in violation of this chapter is forfeited to the state and shall be disposed of in accordance with KRS 500.090.

KRS 516.108 Criminal simulation in the first degree

(1) A person is guilty of criminal simulation in the first degree when he or she knowingly manufactures, markets, or distributes any product which is intended to defraud a test designed to detect the presence of alcohol or a controlled substance.
(2) Criminal simulation in the first degree is a Class D felony.

KRS 516.110 Criminal simulation in the second degree

(1) A person is guilty of criminal simulation in the second degree when, with intent to defraud, he or she:
   (a) Makes or alters any object in such manner that it appears to have an antiquity, rarity, source, or authorship which it does not in fact possess;
   (b) Uses any product to alter the results of a test designed to detect the presence of alcohol or a controlled substance in that person; or
   (c) Possesses an object so simulated with knowledge of its character.
(2) Criminal simulation in the second degree is a Class A misdemeanor.

KRS 516.120 Using slugs in the first degree

(1) A person is guilty of unlawfully using slugs in the first degree when:
   (a) He makes, possesses or disposes of slugs with intent to enable a person to insert, deposit or use them in a coin machine; and
   (b) The value of such slugs exceeds $100.
(2) Unlawfully using slugs in the first degree is a Class D felony.

KRS 516.130 Using slugs in the second degree

(1) A person is guilty of unlawfully using slugs in the second degree when:
   (a) With intent to defraud the owner, licensee or lessee of a coin machine, he inserts, deposits or uses a slug in such machine; or
   (b) He makes, possesses or disposes of a slug with intent to enable a person to insert, deposit or use it in a coin machine.
(2) Unlawfully using slugs in the second degree is a Class B misdemeanor.

KRS CHAPTER 517
BUSINESS AND COMMERCIAL FRAUDS

KRS 517.010 Definitions for chapter

The following definitions apply in this chapter, unless the context otherwise requires:
(1) "**Adulterated**" means varying from the standard of composition or quality prescribed by statute or lawfully promulgated administrative regulation or, if none, as set by established commercial usage.
(2) "**Business record**" means any writing or article kept or maintained by an enterprise for the purpose of evidencing or reflecting its condition or activity.
(3) "**Enterprise**" means any entity of one (1) or more persons, corporate or otherwise, public or private, engaged in business, commercial, professional, industrial, eleemosynary, social, political, or governmental activity.
(4) "**Fiduciary**" means a trustee, guardian, executor, administrator, receiver, and any person carrying on fiduciary functions on behalf of a corporation or other organization which is a fiduciary.
(5) "**Mislabeled**" means:

(a) Varying from the standard of truth or disclosure in labeling prescribed by statute or lawfully promulgated administrative regulation or, if none, as set by established commercial usage; or
(b) Represented as being another person's product, though otherwise labeled accurately as to quality or quantity.

(6) "**Sham or front company**" means any business established or in existence which falsely represents that business to be a minority business enterprise, or disadvantaged business enterprise, as defined in 79 C.F.R. 23.5 or 15 C.F.R. 1400.2, operated or operating for the purpose of obtaining funds, contracts, subcontracts, services, or other benefits from any local government, local government agency, or special district of this Commonwealth from the Commonwealth, or any state government agency or public corporation of this Commonwealth, or from the United States government or any federal government agency.

KRS 517.020 Deceptive business practices

(1) A person is guilty of deceptive business practices when, in the course of engaging in a business, occupation or profession, he knowingly:
(a) Uses or possesses for use a false weight or measure or any other device for falsely determining or recording any quality or quantity; or
(b) Sells, offers or exposes for sale, or delivers less than the represented quantity of any commodity or service; or
(c) Takes or attempts to take more than the represented quantity of any commodity, thing or service when as a buyer, agency or receiver he furnishes the weight, measure, or weighing or measuring device by means of which the amount of the commodity, thing or service is determined; or
(d) Sells, offers or exposes for sale adulterated commodities; or
(e) Sells, offers or exposes for sale mislabeled commodities.

(2) Deceptive business practices is a Class A misdemeanor.

KRS 517.030 False advertising

(1) A person is guilty of false advertising when, in connection with the promotion of the sale of or to increase the consumption of property or services, he knowingly makes or causes to be made a false or misleading statement in any advertisement addressed to the public or to a substantial number of persons.

(2) False advertising is a Class A misdemeanor.

KRS 517.040 Bait advertising

(1) A person is guilty of bait advertising when in any manner, including advertising or other means of communication, he offers to the public or a substantial number of persons, property or services as part of a scheme or plan with the intent not to sell or provide the advertised property or services:
(a) At the price at which he offered them; or
(b) In a quantity sufficient to meet the reasonably expected public demand, unless the quantity is specifically stated in the advertisement; or
(c) At all.

(2) Bait advertising is a Class A misdemeanor.

KRS 517.050 Falsifying business records

(1) A person is guilty of falsifying business records when, with intent to defraud, he:
(a) Makes or causes a false entry to be made in the business records of an enterprise; or
(b) Alters, erases, obliterates, deletes, removes or destroys a true entry in the business records of an enterprise; or
(c) Omits to make a true entry in the business records of an enterprise in violation of a duty to do so which he knows to be imposed upon him by law or by the nature of his position; or
(d) Prevents the making of a true entry or causes the omission thereof in the business records of an enterprise.

(2) Falsifying business records is a Class A misdemeanor,

KRS 517.060 Defrauding secured creditors

(1) A person is guilty of defrauding secured creditors when he destroys, damages, removes, conceals, encumbers, transfers or otherwise deals with property subject to a security interest with intent either to lower the value of the secured interest or unlawfully to hinder enforcement of that interest.
(2) Defrauding secured creditors is a Class A misdemeanor unless the value of the property subject to the security interest is:
   (a) Five hundred dollars ($500) or more up to ten thousand dollars ($10,000), in which case it is a Class D felony; or
   (b) Ten thousand dollars ($10,000) or more, in which case it is a Class C felony.

KRS 517.070 Defrauding judgment creditors

(1) A person is guilty of defrauding judgment creditors when he secretes, assigns, conveys or otherwise disposes of his property with intent to defraud a judgment creditor or to prevent that property from being subjected to payment of a judgment.
(2) Defrauding judgment creditors is a Class A misdemeanor.

KRS 517.080 Fraud in insolvency

(1) A person is guilty of fraud in insolvency when, knowing that proceedings have been or are about to be instituted for the appointment of a receiver or other person entitled to administer property for the benefit of creditors, or that any other composition or liquidation for the benefit of creditors has been or is about to be made, he:
   (a) Destroys, removes, conceals, encumbers, transfers or otherwise deals with any property with intent to defeat or obstruct the claim of any creditor, or otherwise to obstruct the operation of any law relating to administration of property for the benefit of creditors; or
   (b) Knowingly falsifies any writing or record relating to the property; or
   (c) Knowingly misrepresents or refuses to disclose to a receiver or other person entitled to administer property for the benefit of creditors, the existence, amount or location of the property, or any other information which the actor would be legally required to furnish to such administrator.
(2) Fraud in insolvency is a Class A misdemeanor.

KRS 517.090 Issuing a false financial statement

(1) A person is guilty of issuing a false financial statement when, with intent to defraud, he:
   (a) Knowingly makes or utters a written instrument which purports to describe the financial condition or ability to pay of himself or of some other person and which is inaccurate in some material respect; or
   (b) Represents in writing that a written instrument purporting to describe a person's financial condition or ability to pay as of a prior date is accurate with respect to that person's financial condition or ability to pay, knowing the instrument to be materially inaccurate in that respect.
(2) Issuing a false financial statement is a Class A misdemeanor.

KRS 517.100 Receiving deposits in failing financial institution

(1) A person is guilty of receiving deposits in a failing financial institution when, as an officer, manager or other person participating in the direction of a financial institution, he knowingly receives or permits the receipt of a deposit or other investment, knowing that the institution is insolvent.
(2) A financial institution is insolvent within the meaning of this section when it is unable to pay its obligations in the ordinary or usual course of business for any reason.
(3) Receiving deposits in a failing financial institution is a Class D felony.

KRS 517.110 Misapplication of entrusted property

(1) A person is guilty of misapplication of entrusted property when he applies or disposes of property that has been entrusted to him as a fiduciary, or property of the government or of a financial institution in a manner which he knows is unauthorized and involves substantial risk of loss or detriment to the owner of the property or to a person for whose benefit the property was entrusted.
(2) Misapplication of entrusted property is a Class A misdemeanor.

KRS 517.120 Operating a sham or front company

(1) A person is guilty of operating a sham or front company when he knowingly:
  (a) Establishes;
  (b) Assists in the establishment of;
  (c) Operates; or
  (d) Assists in the operation of;
  a sham or front company.
(2) Operating a sham or front company is a Class D felony.

KRS 517.130 Possession of automated business record falsification device

(1) A person is guilty of possession of an automated business record falsification device when he or she knowingly possesses any device or software program that falsifies the business records created by a point-of-sale system, such as any electronic device or computer system that keeps a register or supporting documents designed to record retail sales transaction information, by eliminating or manipulating true retail sales transaction information in order to represent a false record of transactions. These devices may also be referred to as "zappers" or "phantom-ware."
(2) Possession of an automated business record falsification device is a Class D felony.
(3) In addition to any other penalty provided by law:
(a) Any person guilty of possession of an automated business record falsification device shall forfeit all proceeds associated with its creation, sale, or usage; and
(b) An automated business record falsification device, and any device containing an automated business record falsification device, is contraband and shall be seized and forfeited to the state to be disposed of as provided in KRS 500.090.

KRS CHAPTER 518
MISCELLANEOUS CRIMES AFFECTING BUSINESSES, OCCUPATIONS AND PROFESSIONS

KRS 518.010 Definitions for chapter

The following definitions apply in this chapter, unless the context otherwise requires:
(1) "**Benefit**" means gain or advantage to the beneficiary or to a third person pursuant to the desire or consent of the beneficiary.
(2) "**Event**" means a sports contest or other public performance to which the general public is not admitted without consideration.
(3) "**Public performance**" means any form of entertainment other than a sports contest involving machines, persons, animals, or objects that is viewed by the public.
(4) "**Sports contest**" means any professional or amateur sport, athletic game or contest, or race or contest involving machines, persons, animals, or objects that is viewed by the public.
(5) "**Sports official**" means any person who acts or expects to act in a sports contest as an umpire, referee, or judge, or otherwise to officiate at a sports contest.
(6) "**Sports participant**" means any person who participates or expects to participate in a sports contest as a player, contestant, or member of a team, or as a coach, manager, trainer or other person directly associated with a player, contestant, or team.

KRS 518.020 Commercial bribery

(1) A person is guilty of commercial bribery when he:
   (a) Offers, confers or agrees to confer any benefit upon any employee or agent without the consent of the latter's employer or principal with intent to influence his conduct contrary to his employer's or principal's best interests; or
   (b) Offers, confers or agrees to confer any benefit upon any fiduciary without the consent of the latter's beneficiary with intent to influence him to act or conduct himself contrary to his fiduciary obligation.
(2) Commercial bribery is a Class A misdemeanor.

KRS 518.030 Receiving a commercial bribe

(1) A person is guilty of receiving a commercial bribe when:
   (a) As an employee or agent, and without the consent of his employer or principal, he knowingly solicits, accepts or agrees to accept any benefit from another person upon an agreement or understanding that the benefit will influence his conduct contrary to his employer's or principal's best interest; or
   (b) As a fiduciary, and without the consent of his beneficiary, he knowingly solicits, accepts or agrees to accept any benefit from another person upon an agreement or understanding that the benefit will influence his conduct contrary to his fiduciary obligation.
(2) Receiving a commercial bribe is a Class A misdemeanor.

KRS 518.040 Sports bribery

(1) A person is guilty of sports bribery when he:
   (a) Offers, confers or agrees to confer any benefit upon a sports participant with intent to influence him not to give his best effort in a sports contest; or
   (b) Offers, confers or agrees to confer any benefit upon a sports official with intent to influence him to perform his duties improperly.
(2) Sports bribery is a Class D felony.

KRS 518.050 Receiving a sports bribe

(1) A person is guilty of receiving a sports bribe when:
   (a) Being a sports participant, he knowingly solicits, accepts or agrees to accept any benefit from another person upon an agreement or understanding that he will thereby be influenced not to give his best efforts in a sports contest; or
   (b) Being a sports official, he knowingly solicits, accepts or agrees to accept any benefit from another person upon an agreement or understanding that he will perform his duties improperly.
(2) Receiving a sports bribe is a Class D felony.

KRS 518.060 Tampering with or rigging sports contest

(1) A person is guilty of tampering with or rigging a sports contest when, with intent to influence the outcome of a sports contest, he:
   (a) Tampers with any sports participant or sports official or with any animal, equipment or other thing involved in the conduct or operation of a sports contest in a manner contrary to the rules governing the sports contest in question; or
   (b) Substitutes a sports participant, animal, other than a horse, equipment or other thing involved in the conduct or operation of a sports contest for the genuine person, animal or thing.
(2) Tampering with or rigging a sports contest is a Class A misdemeanor.

KRS 518.070 Ticket scalping

(1) A person is guilty of ticket scalping when he intentionally sells or offers to sell a ticket to an event at a price greater than that charged at the place of admission or printed on the ticket, unless authorized by the issuer or by law.

(2) Ticket scalping is a violation.

KRS 518.090 Assault of a sports official

(1) A person is guilty of assault of a sports official when he intentionally causes physical injury to a sports official:
   (a) Who was performing sports official duties at the time the physical injury was perpetrated; or
   (b) If the physical injury occurs while the sports official is arriving at or departing from the athletic facility at which the athletic event occurred.

(2) For the purposes of this section, "**sports official**" means an individual who serves as a referee, umpire, linesman, or in a similar capacity that may be known by another title, and who is duly registered as or is a member of a national, state, regional, or local organization engaged, in part, in providing education and training to sports officials.

(3) A person who is guilty of assault of a sports official shall, for a first offense, be guilty of a Class A misdemeanor, unless the defendant assembles with five (5) or more persons for the purpose of assaulting a sports official, in which case it is a Class D felony.

(4) A person who is guilty of assault of a sports official shall, for a second or subsequent offense, be guilty of a Class D felony.

KRS CHAPTER 519
OBSTRUCTION OF PUBLIC ADMINISTRATION

KRS 519.010 Definitions

The following definitions apply in this chapter unless the context otherwise requires:
(1) **"Benefit"** means gain or advantage to the beneficiary or to a third person pursuant to the desire or consent of the beneficiary;
(2) **"Emergency response"** means a response by two (2) or more first responders to a reported incident that:
  (a) Is of such an emergent nature that the exemptions provided under KRS 189.940 would apply; and
  (b) Jeopardizes or could jeopardize public safety;
(3) **"First responder"** means:
  (a) Peace officer;
  (b) Fire personnel;
  (c) Paid or volunteer emergency medical services personnel certified or licensed pursuant to KRS Chapter 311A; or
  (d) Private not-for-profit organization personnel providing fire, rescue, or emergency medical services;
(4) "**Governmental function**" means any activity which a public servant is legally authorized to undertake on behalf of the governmental unit which he serves;
(5) "**Public record**" includes all books, papers, maps, photographs, cards, tapes, discs, diskettes, recordings, magnetic or electronic images, optical images or other documentary materials regardless of physical form or characteristics, which are prepared, owned, used, in the possession of, received or retained by a public agency. "Public record" shall not include any records owned by a private person or corporation that are not related to functions, activities, programs, or operations funded by state or local authority;
(6) "**Public servant**" means:
  (a) Any public officer or employee of the state or of any political subdivision thereof or of any governmental instrumentality within the state;
  (b) Any person exercising the functions of any public officer or employee;
  (c) Any person participating as advisor, consultant or otherwise in performing a governmental function, but not including witnesses; or
  (d) Any person elected, appointed or designated to become a public servant although not yet occupying that position.

KRS 519.020 Obstructing governmental operations

(1) A person is guilty of obstructing governmental operations when he intentionally obstructs, impairs or hinders the performance of a governmental function by using or threatening to use violence, force or physical interference.
(2) This section shall not apply to:
  (a) Any means of avoiding compliance with the law without affirmative interference with governmental functions; or
  (b) The obstruction, impairment or hindrance of unlawful action by a public servant; or
  (c) The obstruction, impairment or hindrance of an arrest.
(3) Obstructing governmental operations is a Class A misdemeanor.

KRS 519.030 Compounding a crime

(1) A person is guilty of compounding a crime when:
  (a) He solicits, accepts or agrees to accept any benefit upon an agreement or understanding that he will refrain from initiating a prosecution for a crime; or
  (b) He confers, offers or agrees to confer any benefit upon another person upon agreement or understanding that such other person will refrain from initiating a prosecution for a crime.

(2) In any prosecution under this section it is a defense that the benefit did not exceed an amount which the defendant reasonably believed to be due as restitution or indemnification for harm caused by the offense.
(3) Compounding a crime is a Class A misdemeanor.

KRS 519.040 Falsely reporting an incident

(1) A person is guilty of falsely reporting an incident when the person:
  (a) Knowingly causes a false alarm of fire or other emergency to be transmitted to or within any organization, official or volunteer, that deals with emergencies involving danger to life or property, and the false report results in an emergency response; or
  (b) Reports to law enforcement authorities an offense or incident within their official concern knowing that it did not occur; or
  (c) Furnishes law enforcement authorities with information allegedly relating to an offense or incident within their official concern when the person knows he or she has no information relating to such offense or incident; or
  (d) Knowingly gives false information to any law enforcement officer with intent to implicate another; or
  (e) Initiates or circulates a report or warning of an alleged occurrence or impending occurrence of a fire or other emergency under circumstances likely to cause public inconvenience or alarm when the person knows the information reported, conveyed or circulated is false or baseless, and the false report results in an emergency response.
(2) (a) Falsely reporting an incident under subsection (1)(b), (c), or (d) of this section is a Class A misdemeanor.
  (b) Falsely reporting an incident under subsection (1)(a) or (e) of this section is a Class D felony.
(3) Any violation under this section may be prosecuted in any county where:
  (a) The defendant resides;
  (b) The false report was communicated; or
  (c) There was an emergency response to the false report.
(4) (a) The court, in imposing a sentence on a defendant who has been convicted of any offense under this section, shall order restitution to:
    1. Any agency or organization for the reasonable costs of the emergency response incurred by that agency or organization resulting from the false report; and
    2. Any person who suffered damages caused by the agency or organization that provided an emergency response.
  (b) An order of restitution under this subsection shall, for the purpose of enforcement, be treated as a civil judgment.

KRS 519.050 Impersonating a public servant

(1) A person is guilty of impersonating a public servant, other than a peace officer, if he pretends to be a public servant, other than a peace officer, or to represent a public agency, other than a law enforcement agency, or act with the authority or approval of a public agency, other than a law enforcement agency, with intent to induce another to submit to such pretended official authority or otherwise to act in reliance upon that pretense to his prejudice.
(2) Impersonating a public servant, other than a peace officer, is a Class A misdemeanor.

KRS 519.055 Impersonating a peace officer

(1) A person is guilty of impersonating a peace officer if he pretends to be a peace officer, or to represent a law enforcement agency or act with the authority or approval of law enforcement agency, with intent to induce another to submit to the pretended official authority or otherwise to act in reliance upon the pretense to his prejudice.
(2) Impersonating a peace officer is a Class D felony.
(3) As used in this section, the phrase "**peace officer**" means a peace officer as defined in KRS 446.010.

KRS 519.060 Tampering with public records

(1) A person is guilty of tampering with public records when:
   (a) He knowingly makes a false entry in or falsely alters any public record; or
   (b) Knowing he lacks the authority to do so, he intentionally destroys, mutilates, conceals, removes or otherwise impairs the availability of any public records; or
   (c) Knowing he lacks the authority to retain it, he intentionally refuses to deliver up a public record in his possession upon proper request of a public servant lawfully entitled to receive such record for examination or other purposes.
(2) Tampering with public records is a Class D felony.

KRS 519.070 Tampering with a prisoner monitoring device

(1) A person is guilty of tampering with a prisoner monitoring device when he or she intentionally alters, disables, deactivates, tampers with, removes, damages, or destroys any device used to facilitate electronic monitoring or supervision of a person who is on probation or parole, or has been ordered to wear a device as a condition of pretrial release.
(2) Tampering with a prisoner monitoring device is a Class D felony.

KRS CHAPTER 520
ESCAPE AND OTHER OFFENSES RELATING TO CUSTODY

KRS 520.010 Definitions

The following definitions apply in this chapter, unless the context otherwise requires:

(1) "**Contraband**" means any article or thing which a person confined in a detention facility is prohibited from obtaining or possessing by statute, departmental regulation, or posted institutional rule or order;

(2) "**Custody**" means restraint by a public servant pursuant to a lawful arrest, detention, or an order of court for law enforcement purposes, but does not include supervision of probation or parole or constraint incidental to release on bail;

(3) "**Dangerous contraband**" means contraband which is capable of use to endanger the safety or security of a detention facility or persons therein, including, but not limited to, dangerous instruments as defined in KRS 500.080; any controlled substances; any quantity of an alcoholic beverage; any quantity of marijuana; cell phones not authorized under KRS 441.111; drones, unmanned aircraft, or other remotely controlled vehicles; and any payload carried by those vehicles, and saws, files, and similar metal cutting instruments;

(4) "**Detention facility**" means any building and its premises used for the confinement of a person:
   (a) Charged with or convicted of an offense;
   (b) Alleged or found to be delinquent;
   (c) Held for extradition or as a material witness; or
   (d) Otherwise confined pursuant to an order of court for law enforcement purposes;

(5) "**Escape**" means departure from custody or the detention facility in which a person is held or detained when the departure is unpermitted, or failure to return to custody or detention following a temporary leave granted for a specific purpose or for a limited period; and

(6) As used in this section and KRS 520.015, "**penitentiary**" includes any facility operated by the Department of Corrections and the confines of any work detail or other detail, whether under guard or not, under the custody and control of the Department of Corrections.

KRS 520.015 Attempting to escape from penitentiary

(1) A person is guilty of attempting to escape from the penitentiary when he or she:
   (a) Conceals himself or herself within the walls of the penitentiary;
   (b) Attempts to scale the enclosure surrounding the penitentiary;
   (c) Flees from whatever bounds he or she may be assigned, whether under guard or as a trusty;
   (d) Escapes from a locked cell, dormitory, hospital or other lockup in the penitentiary;
   (e) Escapes from one part of the penitentiary to another;
   (f) Does any other act in furtherance of an escape from the penitentiary;
   (g) Obstructs, disables, tampers with, removes, damages, or destroys any video recording or monitoring device within the penitentiary; or
   (h) Does any act or omission constituting criminal attempt under KRS 506.010.

(2) Attempting to escape from the penitentiary is a Class D felony.

(3) No penalty provision of KRS 506.010 shall apply to an offense committed under this section.

KRS 520.020 Escape in the first degree

(1) A person is guilty of escape in the first degree when he escapes from custody or a detention facility by the use of force or threat of force against another person.

(2) Escape in the first degree is a Class C felony.

KRS 520.030 Escape in the second degree

(1) A person is guilty of escape in the second degree when he escapes from a detention facility or, being charged with or convicted of a felony, he escapes from custody.

(2) Escape in the second degree is a Class D felony.

KRS 520.040 Escape in the third degree

(1) A person is guilty of escape in the third degree when he escapes from custody.
(2) Escape in the third degree is a Class B misdemeanor.

KRS 520.050 Promoting contraband in the first degree

(1) A person is guilty of promoting contraband in the first degree when:
    (a) He or she knowingly introduces dangerous contraband into a detention facility or a penitentiary; or
    (b) Being a person confined in a detention facility or a penitentiary, he or she knowingly makes, obtains or possesses dangerous contraband.
(2) Promoting contraband in the first degree is a Class D felony, unless the dangerous contraband is fentanyl, carfentanil, or a fentanyl derivative, in which case it is a Class C felony.

KRS 520.060 Promoting contraband in the second degree

(1) A person is guilty of promoting contraband in the second degree when:
    (a) He knowingly introduces contraband into a detention facility or a penitentiary; or
    (b) Being a person confined in a detention facility or a penitentiary, he knowingly makes, obtains or possesses contraband.
(2) Promoting contraband in the second degree is a Class A misdemeanor.

KRS 520.070 Bail jumping in the first degree

(1) A person is guilty of bail jumping in the first degree when, having been released from custody by court order, with or without bail, upon condition that
(2) He will subsequently appear at a specified time and place in connection with a charge of having committed a felony, he intentionally fails to appear at that time and place.
(3) In any prosecution for bail jumping, the defendant may prove in exculpation that his failure to appear was unavoidable and due to circumstances beyond his control.
(4) Bail jumping in the first degree is a Class D felony.

KRS 520.080 Bail jumping in the second degree

(1) A person is guilty of bail jumping in the second degree when, having been released from custody by court order, with or without bail, upon condition that he will subsequently appear at a specified time and place in connection with a charge of having committed a misdemeanor, he intentionally fails to appear at that time and place.
(2) In any prosecution for bail jumping, the defendant may prove in exculpation that his failure to appear was unavoidable and due to circumstances beyond his control.
(3) Bail jumping in the second degree is a Class A misdemeanor.

KRS 520.090 Resisting arrest

(1) A person is guilty of resisting arrest when he intentionally prevents or attempts to prevent a peace officer, recognized to be acting under color of his official authority, from effecting an arrest of the actor or another by:
    (a) Using or threatening to use physical force or violence against the peace officer or another; or
    (b) Using any other means creating a substantial risk of causing physical injury to the peace officer or another.
(2) Resisting arrest is a Class A misdemeanor.

KRS 520.095 Fleeing or evading police in the first degree

(1) A person is guilty of fleeing or evading police in the first degree:
    (a) When, while operating a motor vehicle with intent to elude or flee, the person knowingly or wantonly disobeys a direction to stop his or her motor vehicle, given by a person recognized to be a police officer, and at least one (1) of the following conditions exists:
        1. The person is fleeing immediately after committing an act of domestic violence as defined in KRS 403.720;

2. The person is driving under the influence of alcohol or any other substance or combination of substances in violation of KRS 189A.010;
3. The person is driving while his or her driver's license is suspended for violating KRS 189A.010; or
4. By fleeing or eluding, the person is the cause, or creates substantial risk, of serious physical injury or death to any person or property; or

(b) When, as a pedestrian, and with intent to elude or flee, the person knowingly or wantonly disobeys an order to stop, given by a person recognized to be a peace officer, and at least one (1) of the following conditions exists:
1. The person is fleeing immediately after committing an act of domestic violence as defined in KRS 403.720; or
2. By fleeing or eluding, the person is the cause of serious physical injury or death to any person or property.

(2) Fleeing or evading police in the first degree is a Class C felony and the defendant shall not be released on probation, shock probation, conditional discharge, or parole until he or she has served at least fifty percent (50%) of the sentence imposed.

KRS 520.100 Fleeing or evading police in the second degree

(1) A person is guilty of fleeing or evading police in the second degree when:
(a) As a pedestrian, and with intent to elude or flee the person knowingly or wantonly disobeys a direction to stop given by a person recognized to be a peace officer who has an articulable reasonable suspicion that a crime has been committed by the person fleeing, and in fleeing or eluding the person is the cause of physical injury to any person; or
(b) While operating a motor vehicle with intent to elude or flee, the person knowingly or wantonly disobeys a recognized direction to stop his or her vehicle, given by a person recognized to be a peace officer.

(2) No offense is committed under this section when the conduct involved constitutes a failure to comply with a directive of a traffic control officer.

(3) Fleeing or evading police in the second degree is a Class D felony and the defendant shall not be released on probation, shock probation, conditional discharge, or parole until he or she has served at least fifty percent (50%) of the sentence imposed.

KRS 520.105 Fleeing or evading police in the third degree

(1) A person is guilty of fleeing or evading police in the third degree when, as a pedestrian and with intent to elude or flee, the person knowingly or wantonly disobeys a direction to stop given by a person recognized to be a peace officer, and in fleeing or eluding the person creates a substantial risk of physical injury to any person.

(2) No offense is committed under this section when the conduct involved constitutes a failure to comply with a directive of a traffic control officer.

(3) Fleeing or evading police in the third degree is a Class A misdemeanor.

KRS 520.110 Definitions for KRS 520.120 and 520.130

(1) For the purposes of KRS 520.120 and 520.130, a person renders assistance to another when he:
(a) Harbors or conceals such person; or
(b) Warns such person of impending discovery or apprehension, except that this does not apply to a warning given in connection with an effort to bring another into compliance with law; or
(c) Provides such person with money, transportation, weapon, disguise or other means of avoiding discovery or apprehension, or
(d) Prevents or obstructs, by means of force, deception or intimidation, anyone from performing an act that might aid in the discovery or apprehension of such person; or
(e) Volunteers false information to a law enforcement officer; or
(f) Suppresses by an act of concealment, alteration or destruction any physical evidence that might aid in the discovery or apprehension of such person.

(2) In any prosecution for hindering prosecution or apprehension it is a defense that the accused is the spouse, parent, child, brother, sister, grandparent or grandchild of the person whose discovery or apprehension he sought to prevent.

KRS 520.120 Hindering prosecution or apprehension in the first degree

(1) A person is guilty of hindering prosecution or apprehension in the first degree when, with the intent to hinder the apprehension, prosecution, conviction or punishment of another whom he knows is being sought in connection with the commission of a capital offense or Class A felony, he renders assistance to such person.
(2) Hindering prosecution or apprehension in the first degree is a Class D felony.

KRS 520.130 Hindering prosecution or apprehension in the second degree

(1) A person is guilty of hindering prosecution or apprehension in the second degree when, with the intent to hinder the apprehension, prosecution, conviction or punishment of another who is being sought in connection with the commission of a criminal offense, he renders assistance to such person.
(2) Hindering prosecution or apprehension in the second degree is a Class A misdemeanor.

KRS CHAPTER 521
BRIBERY AND CORRUPT INFLUENCES

KRS 521.010 Definitions

The following definitions apply in this chapter, unless the context otherwise requires:
(1) "**Public servant**" means:
  (a) Any public officer or employee of the state or of any political subdivision thereof or of any governmental instrumentality within the state; or
  (b) Any person exercising the functions of any such public officer or employee; or
  (c) Any person participating as advisor, consultant or otherwise in performing a governmental function, but not including witnesses; or
  (d) Any person elected, appointed or designated to become a public servant although not yet occupying that position.
(2) "**Pecuniary benefit**" means benefit in the form of money, property, commercial interests or anything else the primary significance of which is economic gain.

KRS 521.020 Bribery of public servant

(1) A person is guilty of bribery of a public servant when:
  (a) He offers, confers or agrees to confer any pecuniary benefit upon a public servant with the intent to influence the public servant's vote, opinion, judgment, exercise of discretion or other action in his official capacity as a public servant; or
  (b) While a public servant, he solicits, accepts or agrees to accept any pecuniary benefit upon an agreement or understanding that his vote, opinion, judgment, exercise of discretion or other action as a public servant will thereby be influenced.
(2) It is a defense under this section if a person confers or agrees to confer any pecuniary benefit upon a public servant as a result of conduct of the public servant which constitutes extortion or coercion.
(3) It is no defense to a prosecution under this section that the person sought to be influenced was not qualified to act in the desired way because he had not yet assumed office, lacked jurisdiction, or for any other reason.
(4) Bribery of a public servant is a Class C felony.

KRS 521.030 Soliciting unlawful compensation

(1) A public servant is guilty of soliciting unlawful compensation when he requests a pecuniary benefit for the performance of an official action knowing that he was required to perform that action without compensation or at a level of compensation lower than that requested.
(2) Solicitation of unlawful compensation is a Class B misdemeanor.

KRS 521.040 Unlawful compensation for assistance in public matters

(1) A person is guilty of unlawful compensation for assistance in public matters when:
   (a) While a public servant, he solicits, accepts or agrees to accept compensation for advice or other assistance in preparing a bill, contract, claim or other transaction or proposal as to which he knows that he is likely to have an official discretion to exercise; or
   (b) He offers, pays or agrees to pay compensation to a public servant for advice or other assistance in preparing or promoting a bill, contract, claim or other transaction with knowledge that acceptance by the public servant is unlawful.
(2) Unlawful compensation for assistance in public matters is a Class A misdemeanor.

KRS 521.050 Providing a pecuniary benefit for bribery of a public servant

(1) A person is guilty of providing a pecuniary benefit for bribery of a public servant when, while not engaging in the bribery directly, he intentionally provides the pecuniary benefit to the person who offers or accepts the bribe.
(2) It is a defense under this section if a person provides the pecuniary benefit, confers, or agrees to confer any pecuniary benefit upon a public servant as a result of conduct of the public servant which constitutes extortion or coercion.
(3) It is no defense to a prosecution under this section that the person sought to be influenced was not qualified to act in the desired way because he had not yet assumed office, because he lacked jurisdiction, or for any other reason.
(4) Providing a pecuniary benefit for bribery of a public servant is a Class C felony.

KRS CHAPTER 522
ABUSE OF PUBLIC OFFICE

KRS 522.010 Definitions

The following definitions apply in this chapter, unless the context otherwise requires:
(1) "**Public servant**" means:
   (a) Any public officer or employee of the state or of any political subdivision thereof or of any governmental instrumentality within the state; or
   (b) Any person exercising the functions of any such public officer or employee; or
   (c) Any person participating as advisor, consultant or otherwise in performing a governmental function, but not including witnesses; or
   (d) Any person elected, appointed or designated to become a public servant although not yet occupying that position.
(2) "**Benefit**" means gain or advantage to the beneficiary or to a third person pursuant to the desire or consent of the beneficiary.

KRS 522.020 Official misconduct in the first degree

(1) A public servant is guilty of official misconduct in the first degree when, with intent to obtain or confer a benefit or to injure another person or to deprive another person of a benefit, he knowingly:
   (a) Commits an act relating to his office which constitutes an unauthorized exercise of his official functions; or
   (b) Refrains from performing a duty imposed upon him by law or clearly inherent in the nature of his office; or

(c) Violates any statute or lawfully adopted rule or regulation relating to his office.

(2) Official misconduct in the first degree is a Class A misdemeanor.

KRS 522.030 Official misconduct in the second degree

(1) A public servant is guilty of official misconduct in the second degree when he knowingly:
   (a) Commits an act relating to his office which constitutes an unauthorized exercise of his official functions or
   (b) Refrains from performing a duty imposed upon him by law or clearly inherent in the nature of his office; or
   (c) Violates any statute or lawfully adopted rule or regulation relating to his office.

(2) Official misconduct in the second degree is a Class B misdemeanor.

KRS 522.040 Misuse of confidential information

(1) A public servant is guilty of misuse of confidential information when, in contemplation of official action by himself or by a governmental unit with which he is associated, or in reliance on information to which he has access in his official capacity and which has not been made public, he:
   (a) Accepts or agrees to accept a pecuniary interest in any property, transaction or enterprise which may be affected by such information or official action; or
   (b) Speculates or wagers on the basis of such information or official action; or
   (c) Aids another to do any of the foregoing.

(2) Misuse of confidential information is a Class D felony.

KRS CHAPTER 523
PERJURY AND RELATED OFFENSES

KRS 523.010 Definitions

The following definitions apply in this chapter unless the context otherwise requires:

(1) "**Material false statement**" means any false statement, regardless of its admissibility under the rules of evidence which could have affected the outcome of the proceeding. Whether a falsification is material in a given factual situation is a question of law.

(2) "**Oath**" means an affirmation or other legally authorized manner of attesting to the truth of a statement. A written statement shall be treated as if made under oath when:
   (a) The statement was made on or pursuant to a form bearing notice, authorized by law, that false statements made therein are punishable; or
   (b) 1. The document recites that the statement was made under oath, and
   2. a. The declarant was aware of such recitation at the time he made the statement;
   b. The declarant intended that the statement be represented as sworn; and
   c. The statement was in fact so represented by its delivery or utterance with the signed jurat of an officer, authorized to administer oaths appended thereto.

(3) "**Official proceeding**" means a proceeding heard before any legislative, judicial, administrative or other governmental agency or official authorized to hear evidence under oath, including any referee, hearing examiner, commissioner, notary or other person taking testimony or depositions in any such proceedings.

(4) "**Required or authorized by law**" means the oath is provided for by statute, regulation, court rule, or otherwise by law.

(5) "**Statement**" means any representation, but includes a representation of opinion, belief or other state of mind only if the representation clearly relates to state of mind apart from or in addition to any facts which are the subject of the representation.

(6) "**Public servant**" means:
   (a) Any public officer or employee of the state or of any political subdivision thereof or of any governmental instrumentality within the state; or
   (b) Any person exercising the functions of any such public officer or employee; or
   (c) Any person participating as advisor, consultant or otherwise in performing a governmental function, but not including witnesses; or

(d) Any person elected, appointed or designated to become a public servant although not yet occupying that position.

KRS 523.020 Perjury in the first degree

(1) A person is guilty of perjury in the first degree when he or she makes a material false statement which he or she does not believe:
   (a) In any official proceeding under an oath required or authorized by law;
   (b) In a subscribed written instrument for which an oath is required or authorized by law, with the intent to mislead a public servant in the performance of his or her official functions when such person is subscribing a warrant accusing his or her spouse of an offense under KRS Chapter 510; or
   (c) In an application for a warrant under KRS 455.180.
(2) Perjury in the first degree is a Class D felony.

KRS 523.030 Perjury in the second degree

(1) A person is guilty of perjury in the second degree when he makes a material false statement which he does not believe in a subscribed written instrument for which an oath is required or authorized by law with the intent to mislead a public servant in the performance of his official functions.
(2) Perjury in the second degree is a Class A misdemeanor.

KRS 523.040 False swearing

(1) A person is guilty of false swearing when he makes a false statement which he does not believe under oath required or authorized by law.
(2) False swearing is a Class B misdemeanor.

KRS 523.090 Retraction

No person shall be guilty of an offense under this chapter if he retracted the falsification in the course of the proceeding in which it was made before such false statement substantially affected the proceeding and before it became manifest that its falsity was or would be exposed.

KRS 523.100 Unsworn falsification to authorities

(1) A person is guilty of unsworn falsification to authorities when with an intent to mislead a public servant in the performance of his duty he:
   (a) Makes a material false written statement which he does not believe in an application for any pecuniary or other benefit or in a record required by law to be submitted to any governmental agency;
   (b) Submits or invites reliance on any writing which he knows to be a forged instrument as defined in KRS 516.010; or
   (c) Submits or invites reliance, except as provided in KRS 516.108, on any sample, specimen, map, boundary mark or other object he knows to be false.
(2) Unsworn falsification to authorities is a Class B misdemeanor.

KRS 523.110 Giving peace officer false identifying information

(1) A person is guilty of giving a peace officer false identifying information when he or she gives a false name, address, or date of birth to a peace officer who has asked for the same in the lawful discharge of his or her official duties with the intent to mislead the officer as to his or her identity. The provisions of this section shall not apply unless the peace officer has first warned the person whose identification he or she is seeking that giving false identifying information is a criminal offense.
(2) Giving a peace officer a false name or address is a Class B Misdemeanor.

KRS CHAPTER 524
INTERFERENCE WITH JUDICIAL ADMINISTRATION

KRS 524.010 Definitions

The following definitions apply in this chapter unless the context otherwise requires:

(1) "**Judge**" means, with reference to intimidating a participant in the legal process, any current justice or judge of the Court of Justice, a trial commissioner of the Court of Justice, and any person serving as a judge at a trial or judicial proceeding of or authorized by the Court of Justice. With reference to retaliating against a participant in the legal process, the term "judge" also includes a former justice or judge of the Court of Justice, a trial commissioner of the Court of Justice, and any person serving as a judge at a trial or judicial proceeding authorized by the Court of Justice. The term includes persons who have been elected or appointed, but have not yet taken office.

(2) "**Juror**" means a person who is or has been a member of any impaneled jury, including a grand jury, and includes any person who has been drawn or summoned to attend as a prospective juror.

(3) "**Participant in the legal process**" means any judge, prosecutor, attorney defending a criminal case, juror, or witness and includes members of the participant's immediate family.

(4) "**Official proceeding**" means a proceeding heard before any legislative, judicial, administrative or other governmental agency or official authorized to hear evidence under oath, including any referee, hearing examiner, commissioner, notary or other person taking testimony or depositions in any such proceedings.

(5) "**Pecuniary benefit**" means benefit in the form of money, property, commercial interests or anything else the primary significance of which is economic gain.

(6) "**Physical evidence**" means any article, object, document, record or other thing of physical substance.

(7) "**Prosecutor**" means, with reference to intimidating a participant in the legal process, a current Commonwealth's attorney, assistant Commonwealth's attorney, county attorney, assistant county attorney, attorney general, deputy attorney general, assistant attorney general, or special prosecutor appointed pursuant to law. With reference to retaliating against a participant in the legal process, the term "prosecutor" also includes a former Commonwealth's attorney, assistant Commonwealth's attorney, county attorney, assistant county attorney, attorney general, deputy attorney general, assistant attorney general, or special prosecutor appointed pursuant to law.

(8) "**Threat**" means any direct threat to kill or injure a person protected by this chapter or an immediate family member of such a person. Persons protected by this chapter include persons who have been elected or appointed but have not yet taken office.

(9) "**Witness**" means any person who may be called to testify in an official proceeding, has been called to testify in an official proceeding, is testifying in an official proceeding, or who has testified in an official proceeding.

KRS 524.020 Bribing a witness

(1) A person is guilty of bribing a witness when he offers, confers or agrees to confer any pecuniary benefit upon a witness or a person he believes may be called as a witness in any official proceeding with intent to:
   (a) Influence the testimony of that person; or
   (b) Induce that person to avoid legal process summoning him to testify; or
   (c) Induce that person to absent himself from an official proceeding to which he has been legally summoned.

(2) Bribing a witness is a Class D felony.

KRS 524.030 Bribe receiving by a witness

(1) A witness or a person believing he may be called as a witness in any official proceeding is guilty of bribe receiving by a witness when he solicits, accepts or agrees to accept any pecuniary benefit upon an agreement or understanding that:

(a) His testimony will thereby be influenced; or
(b) He will attempt to avoid legal process summoning him to testify; or
(c) He will attempt to absent himself from an official proceeding to which he has been legally summoned.

(2) Bribe receiving by a witness is a Class D felony.

KRS 524.040 Intimidating a participant in the legal process

(1) A person is guilty of intimidating a participant in the legal process when, by use of harassing communications as described in KRS 525.080, physical force or a threat directed to a person he believes to be a participant in the legal process, he or she:
(a) Influences, or attempts to influence, the testimony, vote, decision, or opinion of that person;
(b) Induces, or attempts to induce, that person to avoid legal process summoning him or her to testify;
(c) Induces, or attempts to induce, that person to absent himself or herself from an official proceeding to which he has been legally summoned;
(d) Induces, or attempts to induce, that person to withhold a record, document, or other object from an official proceeding;
(e) Induces, or attempts to induce, that person to alter, destroy, mutilate, or conceal an object with intent to impair the object's integrity or availability for use in an official proceeding; or
(f) Hinders, delays, or prevents the communication to a law enforcement officer or judge of information relating to the possible commission of an offense or a violation of conditions of probation, parole or release pending judicial proceedings.

(2) For purposes of this section:
(a) An official proceeding need not be pending or about to be instituted at the time of the offense; and
(b) The testimony, record, document or other object need not be admissible in evidence or free of a claim of privilege.

(3) Intimidating a participant in the legal process is a Class D felony.

(4) In order for a person to be convicted of a violation of this section, the act against a participant in the legal process or the immediate family of a participant in the legal process shall be related to the performance of a duty or role played by the participant in the legal process.

KRS 524.050 Tampering with a witness

(1) A person is guilty of tempering with a witness when, knowing that a person is or may be called as a witness in an official proceeding, he:
(a) Induces or attempts to induce the witness to absent himself or otherwise avoid appearing or testifying at the official proceeding with intent to influence the outcome thereby; or
(b) Knowingly makes any false statement or practices any fraud or deceit with intent to affect the testimony of the witness.

(2) Tampering with a witness is a Class D felony.

KRS 524.055 Retaliating against a participant in the legal process

(1) A person is guilty of retaliating against a participant in the legal process when he or she engages or threatens to engage in conduct causing or intended to cause bodily injury or damage to the tangible property of a participant in the legal process or a person he or she believes may be called as a participant in the legal process in any official proceeding or because the person has participated in a legal proceeding:
(a) Attending an official proceeding, or giving or producing any testimony, record, document, or other object produced at that proceeding;
(b) Giving information to a law enforcement officer relating to the possible commission of an offense or a violation of conditions of probation, parole, or release pending judicial proceedings;
(c) Vote, decision, or opinion; or
(d) Performance of his or her duty.

(2) Retaliating against a participant in the legal process is a Class D felony.

(3) In order for a person to be convicted of a violation of this section, the act against a participant in the legal process or the immediate family of a participant in the legal process shall be related to the performance of a duty or role played by the participant in the legal process.

KRS 524.060 Bribing a juror

(1) A person is guilty of bribing a juror when he offers, confers or agrees to confer any pecuniary benefit upon a juror with intent to influence the juror's vote, opinion, decision or other action as a juror.
(2) Bribing a juror is a Class D felony.

KRS 524.070 Bribe receiving by a juror

(1) A person is guilty of bribe receiving by a juror when he solicits, accepts or agrees to accept any pecuniary benefit upon an agreement or understanding that his vote, opinion, decision or other action as a juror will thereby be influenced.
(2) Bribe receiving by a juror is a Class D felony.

KRS 524.090 Jury tampering

(1) A person is guilty of jury tampering when, with intent to influence a juror's vote, opinion, decision or other action in a case, he communicates or attempts to communicate, directly or indirectly, with a juror other than as a part of the proceedings in the trial of the case.
(2) Jury tampering is a Class D felony.

KRS 524.100 Tampering with physical evidence

(1) A person is guilty of tampering with physical evidence when, believing that an official proceeding is pending or may be instituted, he:
   (a) Destroys, mutilates, conceals, removes or alters physical evidence which he believes is about to be produced or used in the official proceeding with intent to impair its verity or availability in the official proceeding; or
   (b) Fabricates any physical evidence with intent that it be introduced in the official proceeding or offers any physical evidence, knowing it to be fabricated or altered.
(2) Tampering with physical evidence is a Class D felony.

KRS 524.110 Simulating legal process

(1) A person is guilty of simulating legal process when he delivers or causes to be delivered to another a request for the payment of money on behalf of a creditor knowing that in form and substance it simulates any legal process issued by any court of this state.
(2) Simulating legal process is a Class B misdemeanor.

KRS 524.130 Unauthorized practice of law

(1) Except as provided in KRS 341.470 and subsection (2) of this section, a person is guilty of unlawful practice of law when, without a license issued by the Supreme Court, he or she engages in the practice of law, as defined by rule of the Supreme Court.
(2) A licensed nonresident attorney in good standing, although not licensed in Kentucky, is not guilty of unlawful practice if, in accordance with rules adopted by the Supreme Court, he or she practices law under specific authorization of a court.
(3) Unlawful practice of law is
   (a) A Class A misdemeanor for the first offense; and
   (b) A Class D felony for a second or subsequent offense.

KRS 524.140 Disposal of evidence that may be subject to DNA testing – Motion to destroy – Liability for destruction –Penalty – Retention of biological material

(1) As used in this section:
   (a)**"Biological evidence"** means:

1. The contents of a sexual assault evidence collection kit; or
2. Any item, or representative sample taken from an item, that contains blood, saliva, sperm, hair, tissue, bones, teeth, or other bodily fluids that was collected as part of a criminal investigation and that reasonably may be used to incriminate or exculpate any person from an offense or delinquent act;

(b) "**Defendant**" means a person charged with a:
1. Capital offense, Class A felony, Class B felony, or Class C felony; or
2. Class D felony under KRS Chapter 510; and

(c) "**Following trial**" means after:
1. The first appeal authorized by the Constitution of Kentucky in a criminal case has been decided; or
2. The time for the first appeal authorized by the Constitution of Kentucky in a criminal case has lapsed without an appeal having been filed.

(2) No item of biological evidence gathered by law enforcement, prosecutorial, or defense authorities that may be subject to deoxyribonucleic acid (DNA) evidence testing and analysis in order to assist federal, state, and local criminal justice and law enforcement agencies within and outside the Commonwealth in the identification, detection, or exclusion of individuals who are subjects of investigation or prosecution, or to confirm the guilt or innocence of a criminal defendant shall be disposed of prior to a criminal trial unless:
(a) The evidence has been in custody not less than fifty (50) years; or
(b) The evidence has been in custody not less than ten (10) years; and
1. The prosecution has determined that the defendant will not be tried for the criminal offense; and
2. The prosecution has made a motion before the court in which the case would have been tried to destroy the evidence.

(3) No item of biological evidence gathered by law enforcement, prosecutorial, or defense authorities that may be subject to deoxyribonucleic acid (DNA) evidence testing and analysis in order to confirm the guilt or innocence of a criminal defendant shall be disposed of following the trial unless:
(a) The evidence, together with DNA evidence testing and analysis results, has been presented at the trial, and the defendant has been found guilty, pled guilty, or entered an Alford plea at the trial;
(b) The evidence was not introduced at the trial, or if introduced at the trial was not the subject of DNA testing and analysis, and the defendant has been found guilty, pled guilty, or entered an Alford plea at the trial, and the trial court has ordered the destruction of the evidence after an adversarial hearing conducted upon motion of either the prosecution or the defendant;
(c) The trial resulted in the defendant being found not guilty or the charges were dismissed after jeopardy attached, whether or not the evidence was introduced at the trial or was subject to DNA testing and analysis or not, and the trial court ordered the destruction of the evidence after an adversarial hearing conducted upon motion of either the prosecution or the defendant; or
(d) The trial resulted in the dismissal of charges against the defendant, and the defendant may be subject to retrial, in which event the evidence shall be retained until after the retrial, which shall be considered a new trial for the purposes of this section.

(4) The burden of proof for a motion to destroy biological evidence that may be subject to DNA testing and analysis shall be upon the party making the motion, and the court may permit the destruction of the evidence under this section upon good cause shown favoring its destruction.

(5) It is recognized by the General Assembly that the DNA evidence laboratory testing and analysis procedure consumes and destroys a portion of the evidence or may destroy all of the evidence if the sample is small. The consuming and destruction of evidence during the laboratory analysis process shall not result in liability for its consumption or destruction if the following conditions are met:
(a) The Kentucky State Police laboratory uses a method of testing and analysis which preserves as much of the biological material or other evidence tested and analyzed as is reasonably possible; or

(b) If the Kentucky State Police laboratory knows or reasonably believes that the entire sample of evidence to be tested and analyzed that the laboratory, prior to the testing or analysis of the evidence, notifies in writing the court which ordered the testing and analysis and counsel for all parties:
   1. That the entire sample of evidence may be destroyed by the testing and analysis;
   2. The possibility that another laboratory may be able to perform the testing and analysis in a less destructive manner with at least equal results;
   3. The name of the laboratory capable of performing the testing and analysis, the costs of testing and analysis, the advantages of sending the material to that other laboratory, and the amount of biological material or other evidence which might be saved by alternative testing and analysis; and
   4. The Kentucky State Police laboratory follows the directive of the court with regard to the testing and analysis; or

(c) If the Kentucky State Police laboratory knows or reasonably believes that so much of the biological material or evidence may be consumed or destroyed in the testing and analysis that an insufficient sample will remain for independent testing and analysis that the laboratory follows the procedure specified in paragraph (b) of this subsection.

(6) Destruction of evidence in violation of this section shall be a violation of KRS 524.100.

(7) Subject to KRS 17.172(9), the appropriate governmental entity shall retain any biological material secured in connection with a criminal case for the period of time that any person remains incarcerated in connection with that case. The governmental entity shall have the discretion to determine how the evidence is retained pursuant to this section, provided that the evidence is retained in a condition suitable for DNA testing and analysis.

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KRS CHAPTER 525
RIOT, DISORDERLY CONDUCT AND RELATED OFFENSES

KRS 525.010 Definitions

The following definitions apply in this chapter unless the context otherwise requires:

(1) "**Desecrate**" means defacing, damaging, polluting or otherwise physically mistreating in a way that the actor knows will outrage the sensibilities of persons likely to observe or discover his action.

(2) "**Public**" means affecting or likely to affect a substantial group of persons.

(3) "**Public place**" means a place to which the public or a substantial group of persons has access and includes but is not limited to highways, transportation facilities, schools, places of amusements, parks, places of business, playgrounds and hallways, lobbies and other portions of apartment houses and hotels not constituting rooms or apartments designed for actual residence. An act is deemed to occur in a public place if it produces its offensive or proscribed consequences in a public place.

(4) "**Transportation facility**" means any conveyance, premises, or place used for or in connection with public passenger transportation by air, railroad, motor vehicle, or any other method. It includes aircraft, watercraft, railroad cars, buses, and air, boat, railroad, and bus terminals and stations and all appurtenances thereto.

(5) "**Riot**" means a public disturbance involving an assemblage of five (5) or more persons which by tumultuous and violent conduct creates grave danger of damage or injury to property or persons or substantially obstructs law enforcement or other government function.

(6) "**Service animal**" includes a:

(a) "**Bomb detection dog**," which means a dog that is trained to locate bombs or explosives by scent;

(b) "**Narcotic detection dog**," which means a dog that is trained to locate narcotics by scent;

(c) "**Patrol dog**," which means a dog that is trained to protect a peace officer and to apprehend a person;

(d) "**Tracking dog**," which means a dog that is trained to track and find a missing person, escaped inmate, or fleeing felon;

(e) "**Search and rescue dog**," which means a dog that is trained to locate lost or missing persons, victims of natural or man-made disasters, and human bodies;

(f) "**Accelerant detection dog**," which means a dog that is trained for accelerant detection, commonly referred to as arson canines;

(g) "**Cadaver dog**," which means a dog that is trained to find human remains;

(h) "**Assistance dog**," which means any dog that is trained to meet the requirements of KRS 258.500;

(i) Any dog that is trained in more than one (1) of the disciplines specified in paragraphs (a) to (h) of this subsection; or

(j) "**Police horse**," which means any horse that is owned, or the service of which is employed, by a law enforcement agency for the principal purpose of aiding in detection of criminal activity, enforcement of laws, and apprehension of offenders.

KRS 525.015 Obstructing an emergency responder

(1) As used in this section, “emergency responder” means state or local law enforcement personnel, fire department personnel, corrections officers, and emergency medical personnel and those contracted for official use by emergency responders.

(2) No person shall intentionally obstruct or disrupt an emergency responder from performing his or her official duties.

(3) Obstructing an emergency responder is a violation for a first offense, and a Class B misdemeanor for a second or subsequent offense.

KRS 525.020 Riot in the first degree

(1) A person is guilty of riot in the first degree when:

(a) He knowingly participates in a riot; and
(b) In the course of and as a result of such riot a person other than one of the participants suffers physical injury or substantial property damage occurs.

(2) Riot in the first degree is a Class D felony.

KRS 525.030 Riot in the second degree

(1) A person is guilty of riot in the second degree when he knowingly participates in a riot.
(2) Riot in the second degree is a Class A misdemeanor.

KRS 525.040 Inciting to riot

(1) A person is guilty of inciting to riot when he incites or urges five or more persons to create or engage in a riot.
(2) Inciting to riot is a Class A misdemeanor.

KRS 525.045 Terrorism

(1) A person is guilty of the separate offense of terrorism if conviction of the underlying offense committed would classify the person as a violent offender under KRS 439.3401(1)(a), (b), (c), or (d), or the underlying offense was an offense under KRS 527.200, 527.205, or 527.210 and the person had the intent to:
(a) Intimidate the civilian population at large, or an identifiable group of the civilian population; or
(b) Influence, through intimidation, the conduct or activities of the government of the United States, the Commonwealth, any other state, or any unit of local government.
(2) A conviction of terrorism shall be punishable by a term of imprisonment for life without benefit of probation or parole. An offense under this section is a separate offense from the underlying offense and shall not merge with other offenses.
(3) A person convicted under this section shall not be released on probation, shock probation, parole, conditional discharge, or any other form of conditional release.
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KRS 525.050 Unlawful assembly

(1) A person is guilty of unlawful assembly when:
(a) He assembles with five or more persons for the purpose of engaging or preparing to engage with them in a riot; or
(b) Being present at an assembly which either has or develops such a purpose, he remains there with intent to advance that purpose.

(2) Unlawful assembly is a Class B misdemeanor.

KRS 525.055 Disorderly Conduct in the first degree

(1) A person is guilty of disorderly conduct in the first degree when he or she:
(a) In a public place and with intent to cause public inconvenience, annoyance, or alarm, or wantonly creating a risk thereof:
1. Engages in fighting or in violent, tumultuous, or threatening behavior;
2. Makes unreasonable noise; or
3. Creates a hazardous or physically offensive condition by any act that serves no legitimate purpose; and
(b) Acts in a way described in paragraph (a) of this subsection within three hundred (300) feet of a:
1. Cemetery during a funeral or burial;
2. Funeral home during the viewing of a deceased person;
3. Funeral procession;
4. Funeral or memorial service; or
5. Building in which a funeral or memorial service is being conducted; and
(c) Acts in a way described in paragraph (a) of this subsection at any point in time between one

(1) hour prior to the commencement of an event specified in paragraph (b) of this subsection and one (1) hour following its conclusion; and

(d) Knows that he or she is within three hundred (300) feet of an occasion described in paragraph (b) of this subsection.

(2) Disorderly conduct in the first degree is a Class A misdemeanor.

KRS 525.060 Disorderly conduct in the second degree

(1) A person is guilty of disorderly conduct in the second degree when in a public place and with intent to cause public inconvenience, annoyance, or alarm, or wantonly creating a risk thereof, he:
   (a) Engages in fighting or in violent, tumultuous, or threatening behavior;
   (b) Makes unreasonable noise;
   (c) Refuses to obey an official order to disperse issued to maintain public safety in dangerous proximity to a fire, hazard, or other emergency; or
   (d) Creates a hazardous or physically offensive condition by any act that serves no legitimate purpose.

(2) Disorderly conduct in the second degree is a Class B misdemeanor.

KRS 525.070 Harassment

(1) A person is guilty of harassment when with intent to intimidate, harass, annoy or alarm another person he or she:
   (a) Strikes, shoves, kicks or otherwise subjects him to physical contact; or
   (b) Attempts or threatens to strike, shove, kick, or otherwise subject the person to physical contact; or
   (c) In a public place, makes an offensively coarse utterance, gesture or display, or addresses abusive language to any person present; or

   EDITOR'S NOTE: The Kentucky Supreme Court ruled subsection (1) (c) to be too broad and vague, thus unconstitutional. Musselman v. Com., 705 S.W.2d 476 (Ky. 1986).

   (d) Follows a person in or about a public place or places; or
   (e) Engages in a course of conduct or repeatedly commits acts which alarm or seriously annoy such other person and which serve no legitimate purpose; or
   (f) Being enrolled as a student in a local school district, and while on school premises, on school-sponsored transportation, or at a school-sponsored event:
      1. Damages or commits a theft of the property of another student;
      2. Substantially disrupts the operation of the school; or
      3. Creates a hostile environment by means of any gestures, written communications, oral statements, or physical acts that a reasonable person under the circumstances should know would cause another student to suffer fear of physical harm, intimidation, humiliation, or embarrassment.

(2) (a) Except as provided in paragraph (b) of this subsection, harassment is a violation.
   (b) Harassment, as defined in paragraph (a) of subsection (1) of this section, is a Class B misdemeanor

KRS 525.080 Harassing communications

(1) A person is guilty of harassing communications when with intent to intimidate, harass, annoy or alarm another person he or she:
   (a) Communicates with a person, anonymously or otherwise, by telephone, telegraph, mail or any other form of electronic or written communication in a manner which causes annoyance or alarm and serves no purpose of legitimate communication;
   (b) Makes a telephone call, whether or not conversation ensues, with no purpose of legitimate communication; or
   (c) Communicates, while enrolled as a student in a local school district, with or about another school student, anonymously or otherwise, by telephone, the Internet, telegraph, mail, or any other form of electronic or written communication in a manner which a reasonable person

under the circumstances should know would cause the other student to suffer fear of physical harm, intimidation, humiliation, or embarrassment and which serves no purpose of legitimate communication.

(2) Harassing communications is a Class B misdemeanor.

KRS 525.085 Dissemination of personally identifiable information

(1) For the purposes of this section:
   (a) "Dissemination" means electronically publishing, posting, or otherwise disclosing information to a public Internet site or public forum;
   (b) "Household member" means a person who regularly resides in the household or who within six (6) months preceding the conduct of the offense regularly resided in the household;
   (c) "Immediate family member" means a parent, grandparent, spouse, child, stepchild, father-in-law, mother-in-law, son-in-law, daughter-in-law, sibling, brother-in-law, or grandchild; and
   (d) "Personally identifying information" means information that identifies or reasonably can be used to identify an individual, including but not limited to:
      1. Social Security number or other government-issued identifier;
      2. Date of birth;
      3. Home or physical address;
      4. Electronic-mail address or telephone number;
      5. Financial account number or credit or debit card number;
      6. Biometric, health, or medical data, or insurance information; or
      7. School or employment locations.

(2) A person is guilty of disseminating personally identifying information about another person when, with the intent to intimidate, abuse, threaten, harass, or frighten a person who resides in the Commonwealth, he or she:
   (a) Intentionally disseminates the personally identifying information of the person or person's immediate family member or household member; and
   (b) The dissemination would cause a reasonable person to be in fear of physical injury to himself or herself, or to his or her immediate family member or household member.

(3) This section shall apply to electronic communications originating within or accessible within the Commonwealth.

(4) Disseminating personally identifying information is a Class A misdemeanor, unless the dissemination results in:
   (a) Physical injury to the victim or to a victim's immediate family member or household member, in which case it is a Class D felony.
   (b) Serious physical injury to the victim or to a victim's immediate family member or household member, in which case it is a Class C felony; or
   (c) Death of the victim or of a victim's immediate family member or household member, in which case it is a Class B felony.

(5) Nothing in this section shall be construed to impose liability on a broadband Internet access service provider, a telecommunications service provider, an interconnected VoIP Provider, or a mobile service provider as defined in 47 U.S.C. sec. 153, a commercial mobile service provider as defined in 47 U.S.C. sec. 332(d), or a cable operator as defined in 47 U.S.C. sec. 522, when acting in its capacity as a provider of those services.

KRS 525.090 Loitering

(1) A person is guilty of loitering when he:
   (a) Loiters or remains in a public place for the purpose of gambling with cards, dice or other gambling paraphernalia, except that the provisions of this section shall not apply if the person is participating in charitable gaming defined by KRS 238.505; or
   (b) Loiters or remains in a public place for the purpose of unlawfully using a controlled substance: or
   (c) Loiters or remains in or about a school, college or university building or grounds, not having any reason or relationship involving custody of or responsibility for a pupil or student or any

other specific legitimate reason for being there and not having written permission from anyone authorized to grant the same; or

(d) Loiters or remains in any transportation facility, unless specifically authorized to do so, for the purpose of soliciting or engaging in any business, trade or commercial transactions involving the sale of merchandise or services.

(2) Loitering is a violation.

KRS 525.100 Public intoxication

(1) A person is guilty of public intoxication when he appears in a public place manifestly under the influence of a controlled substance, or other intoxicating substance, excluding alcohol (unless the alcohol is present in combination with any of the above), not therapeutically administered, to the degree that he may endanger himself or other persons or property, or unreasonably annoy persons in his vicinity.

(2) Public intoxication is a Class B misdemeanor.

EDITOR'S NOTE: If alcohol is the only intoxicating substance involved, charge with violation of KRS 222.202(1) – Alcohol Intoxication; KRS 222.202(2) – Drinking Alcoholic Beverage in a Public Place; or KRS 189.530(2) – Possession of Alcoholic Beverages in an Open Container on a Highway.

KRS 525.105 Desecration of venerated objects in the first degree

(1) A person is guilty of desecration of venerated objects in the first degree when, other than authorized by law, he intentionally excavates or disinters human remains for the purpose of commercial sale or exploitation of the remains themselves or of objects buried contemporaneously with the remains.

(2) Desecration of venerated objects in the first degree is a Class C felony.

KRS 525.110 Desecration of venerated objects in the second degree

(1) A person is guilty of desecration of venerated objects in the second degree when he intentionally:

(a) Desecrates any public monument or object or place of worship; or

(b) Desecrates in a public place the national or state flag or other patriotic or religious symbol which is an object of veneration by the public or a substantial segment thereof.

(2) Desecration of venerated objects in the second degree is a Class A misdemeanor.

KRS 525.113 Institutional vandalism

(1) A person is guilty of institutional vandalism when he, because of race, color, religion, sexual orientation, or national origin of another individual or group of individuals, knowingly vandalizes, defaces, damages, or desecrates objects defined in KRS 525.110.

(2) Institutional vandalism is a Class D felony.

KRS 525.115 Violating graves

(1) A person is guilty of violating graves when he intentionally:

(a) Mutilates the graves, monuments, fences, shrubbery, ornaments, grounds, or buildings in or enclosing any cemetery or place of sepulchre; or

(b) Violates the grave of any person by destroying, removing, or damaging the headstone or footstone, or the tomb over the enclosure protecting any grave; or

(c) Digs into or plows over or removes any ornament, shrubbery, or flower placed upon any grave or lot.

(2) The provisions of subsection (1) of this section shall not apply to ordinary maintenance and care of a cemetery nor the removal and relocation of graves pursuant to procedures authorized by and in accordance with applicable statutes.

(3) Violating graves is a Class D felony.

(4) The court shall order the defendant to restore the cemetery to its pre-damage condition.

KRS 525.120 Abuse of a corpse

(1) A person is guilty of abuse of a corpse when except as authorized by law he intentionally treats a corpse in a way that would outrage ordinary family sensibilities. A person shall also be guilty of abuse of a corpse if that person enters into a contract and accepts remuneration for the preparation of a corpse for burial or the burial or cremation of a corpse and then deliberately fails to prepare, bury, or cremate that corpse in accordance with that contract.
(2) Abuse of a corpse is a Class D felony.

KRS 525.125 Cruelty to animals in the first degree

(1) As used in this section:
(a) "Dog" means a domesticated canid of the genus canis lupus familiaris; and
(b) "Dog fight" or "dog fighting" means any event that involves a fight conducted or to be conducted between at least two (2) dogs for purposes of sport, wagering, or entertainment, except that the term "dog fight" or "dog fighting" shall not be deemed to include any activity the purpose of which involves the use of one (1) or more dogs in hunting or taking another animal.
(2) The following persons are guilty of cruelty to animals in the first degree:
(a) Whenever a dog is knowingly caused to dog fight for pleasure or profit:
1. The owner of the dog;
2. The owner of the property on which the fight is conducted if the owner knows of the dog fight; and
3. Anyone who participates in the organization of the fight; and
(b) Any person who knowingly owns, possesses, keeps, trains, sells, or otherwise transfers a dog for the purpose of dog fighting.
(3) Activities of dogs engaged in hunting, field trials, dog training, and other activities authorized either by a hunting license or by the Department of Fish and Wildlife Resources shall not constitute a violation of this section.
(4) Activities of dogs engaged in working or guarding livestock shall not constitute a violation of this section.
(5) Cruelty to animals in the first degree is a Class D felony.

KRS 525.130 Cruelty to animals in the second degree

(1) A person is guilty of cruelty to animals in the second degree when except as authorized by law he intentionally or wantonly:
(a) Subjects any animal to or causes cruel or injurious mistreatment through abandonment, participates other than as provided in KRS 525.125 in causing it to fight for pleasure or profit (including, but not limited to being, a spectator or vendor at an event where a four-legged animal is caused to fight for pleasure or profit), mutilation, beating, torturing, tormenting. failing to provide adequate food, drink, space or health care, or by any other means; or
(b) Subjects any animal in his custody to cruel neglect; or
(c) Kills any animal other than a domestic animal by poisoning. This paragraph shall not apply to the intentional poisoning of a dog or cat. Intentional poisoning of a dog or cat shall constitute a violation of this section..
(2) Nothing in this section shall apply to the killing of animals:
(a) Pursuant to a license to hunt, fish or trap;
(b) Incident to the processing as food or for other commercial purposes;
(c) For humane purposes;
(d) For any other purpose authorized by law.
(3) Activities of animals engaged in hunting, field trials, dog training, and other activities authorized either by a hunting license or by the Department of Fish and Wildlife shall not constitute a violation of this section.
(4) Cruelty to animals in the second degree is a Class A misdemeanor.
* * * * *

KRS 525.135 Torture of dog or cat.

(1) As used in this section, unless the context otherwise requires;
   (a) "Torture" means the intentional infliction of or subjection to extreme physical pain or serious injury or death to a dog or cat, motivated by intent or wanton disregard that causes, increases, or prolongs the pain or suffering of the dog or cat, including serious physical injury or infirmity. "Torture" shall include situations where the extreme physical pain, serious physical injury or infirmity, or death results from restraint of the dog or cat, which may include being:
      1. Locked in a cage or kennel;
      2. Sealed in a plastic bag or box;
      3. Chained or tied down to restrict motion;
      4. Pitched in a dumpster;
      5. Abandoned in a building for three (3) days or more with no intention of returning or having made provisions for the animal's care;
      6. Physically restrained with tie wraps, rope, chains, or tape;
      7. Intentionally injured to cause immobility so that the animal cannot save itself from starvation, dehydration, physical impairment, serious physical injury or infirmity, or death; or
      8. Manually restrained; and
   (b)"Serious physical injury or infirmity" means physical injury or physical infirmity that creates a substantial risk of death, protracted loss, or impairment of the function of the limb or bodily organ caused by willful or wanton disregard while restrained. As used in this paragraph:
      1."Physical infirmity" includes intentional starvation, dehydration, hypothermia, hyperthermia, muscle atrophy, restriction of blood flow to a limb or organ, mange or other skin disease or parasitic infestation for which medical care has been denied, denial of life-saving medical care or professional euthanasia while intentionally restraining with the intent to cause or the wanton disregard for extreme physical pain, serious injury, or death; and
      2."Physical injury" includes substantial physical pain, serious injury, or death intentionally caused by fractures, cuts, burns, punctures, bruises due to crushing, burning, drowning, beating, poisoning, suffocating, hanging, impaling or skinning alive, physical disfigurement, loss of function of a limb or body organ or other wounds or illnesses produced by violence or a thermal or chemical agent while intentionally restrained with the intent to cause or the wanton disregard for extreme physical pain, serious injury, or death.
(2) A person is guilty of torture of a dog or cat when he or she without legal justification intentionally tortures a domestic dog or cat.
(3) Torture of a dog or cat is a Class D felony.
(4) Each act of torture of a dog or cat may constitute a separate offense.
(5) Under recommendation of a veterinarian, a tortured dog or cat may be humanely euthanized after it is seized if it is still alive but suffering from the intentional torture that will lead to its death.
(6) Nothing in this section shall apply to the killing or injuring of a dog or cat:
   (a) In accordance with a license to hunt, fish, or trap;
   (b) For humane purposes;
   (c) For veterinary, agricultural, spaying or neutering, or cosmetic purposes or breed-specific alterations such as cropping of ears, docking of tails, or declawing of a cat, all done by a veterinarian;
   (d) For purposes relating to sporting activities including but not limited to training for organized dog or cat shows, or other animal shows in which a dog or a cat, or both, participate;
   (e) For bona fide animal research activities, using dogs or cats, of institutions of higher education; or a business entity registered with the United States Department of Agriculture under the Animal Welfare Act or subject to other federal laws governing animal research;
   (f) In defense of self or another person against an aggressive or diseased dog or cat;
   (g) In defense of a domestic animal against an aggressive or diseased dog or cat;
   (h) For animal or pest control; or
   (i) For any other purpose authorized by law.

(7) Activities of animals engaged in hunting, field trials, dog training other than training a dog to fight for pleasure or profit, and other activities authorized either by a hunting license or by the Department of Fish and Wildlife Resources shall not constitute a violation of this section.
(8) The acts specified in this section shall not constitute cruelty to animals under KRS 525.125 or 525.130.

KRS 525.137 Sexual crimes against an animal

(1) As used in this section:
(a) "Animal" means any nonhuman creature; and
(b) "Sexual contact" means any act committed between a person and an animal for the purpose of sexual arousal, sexual gratification, abuse, or financial gain involving:
1. Contact between the sex organs or anus of one (1) and the mouth, sex organs, or anus of another;
2. The insertion of any part of the animal's body into the vaginal or anal opening of the person; or
3. The insertion of any part of the body of a person or any object into the vaginal or anal opening of an animal without a bona fide veterinary or animal husbandry purpose.
(2) A person is guilty of sexual crimes against an animal if he or she:
(a) Engages in sexual contact with an animal;
(b) Advertises, solicits, offers, or accepts the offer of an animal, or possesses, purchases, or otherwise obtains an animal, with the intent that the animal be subject to sexual contact; or
(c) Causes, aids, or abets another person to engage in sexual contact with an animal.
(3) Sexual crimes against an animal is a Class D felony.
(4) Nothing in this section shall apply to:
(a) Accepted veterinary practices;
(b) Artificial insemination of an animal for reproductive purposes;
(c) Accepted animal husbandry practices, including grooming, raising, breeding, or assisting with the birthing process of animals or any other procedure that provides care for an animal; or
(d) Generally accepted practices related to the judging of breed conformation.
* * * * *

KRS 525.140 Obstructing a highway or other public passage

(1) A person is guilty of obstructing a highway or other public passage when having no legal privilege to do so he, alone or with other persons, intentionally or wantonly renders any highway or public passage impassable without unreasonable inconvenience or hazard.
(2) No person shall be convicted under this section solely because of a gathering of persons to hear him speak or otherwise communicate or solely because of being a member of such a gathering.
(3) An order to disperse issued by a peace officer or other public servant engaged in executing or enforcing the law and addressed to a person whose speech or other lawful behavior attracts an obstructing audience shall not be deemed lawful if the obstruction can be readily remedied by police control of the size or location of the gathering.
(4) Obstructing a highway or other public passage is a Class B misdemeanor.

KRS 525.145 Disrupting meetings and processions in the first degree

(1) A person is guilty of disrupting meetings and processions in the first degree when, with intent to prevent or disrupt a funeral or burial, funeral home viewing of a deceased person, funeral procession, or funeral or memorial service for a deceased person, he or she does any act tending to obstruct or interfere with it physically or makes any utterance, gesture, or display designed to outrage the sensibilities of the group attending the occasion.
(2) Disrupting meetings and processions in the first degree is a Class A misdemeanor.

KRS 525.150 Disrupting meetings and processions in the second degree

(1) A person is guilty of disrupting meetings and processions in the second degree when, with intent to prevent or disrupt a lawful meeting, procession, or gathering, he or she does any act tending to

obstruct or interfere with it physically or makes any utterance, gesture, or display designed to outrage the sensibilities of the group.
(2) Disrupting meetings and processions in the second degree is a Class B misdemeanor.

KRS 525.160 Failure to disperse

(1) A person is guilty of failure to disperse if he participates with two or more persons in a course of disorderly conduct likely to cause substantial harm or serious inconvenience, annoyance or alarm, and intentionally refuses to disperse when ordered to do so by a peace officer or other public servant engaged in executing or enforcing the law.
(2) Failure to disperse is a Class B misdemeanor.

KRS 525.200 Assault on a service animal in the first degree

(1) A person is guilty of assault on a service animal in the first degree when, without legal justification or lawful authority:
    (a) He or she intentionally kills or causes serious physical injury to a service animal;
    (b) He or she intentionally causes physical injury to a service animal by means of a deadly weapon or dangerous instrument; or
    (c) He or she wantonly causes serious physical injury to a service animal by means of a deadly weapon or dangerous instrument.
(2) For the purposes of this section, "service animal" has the same meaning as defined in KRS 525.010, except that "service animal" does not include assistance dogs as defined in KRS 525.010(6)(h).
(3) Assault on a service animal in the first degree is a Class D felony.

KRS 525.205 Assault on a service animal in the second degree

(1) A person is guilty of assault on a service animal in the second degree when he intentionally and without legal justification or lawful authority causes physical injury to a service animal.
(2) Assault on a service animal in the second degree is a Class B misdemeanor.

KRS 525.210 Duty status of service animal not a factor in application of KRS 525.200 and 525.205

KRS 525.200 and 525.205 shall apply whether or not the service animal is on duty or off duty.

KRS 525.215 Defendant's liability for damages upon conviction of assault on a service animal

In any case in which a defendant is convicted of a violation of the provisions of KRS 525.200 or 525.205, the defendant may be ordered to make restitution to the person or agency owning the animal for any veterinary bills, replacement costs of the animal if it is disabled or killed, and the salary of the animal handler for the period of time his services are lost to the agency or self-employment.

KRS 525.220 Bars and defenses to conviction of assault on a service animal

No person shall be convicted of assault on a service animal when he or she has:
(1) Also been convicted of a violation of KRS 525.125, 525.130, 512.020, or 512.030 arising out of the same incident;
(2) Destroyed or treated a service animal that is injured, diseased, or suffering or which constitutes a hazard to public safety if not destroyed;
(3) Used physical force against the service animal in protection of himself, herself or a third person; or
(4) Used physical force without knowledge that the animal was a service animal.

KRS CHAPTER 526
EAVESDROPPING

KRS 526.010 Definition

The following definition applies in this chapter, unless the context otherwise requires:

"**Eavesdrop**" means to overhear, record, amplify or transmit any part of a wire or oral communication of others without the consent of at least one (1) party thereto by means of any electronic, mechanical or other device.

KRS 526.020 Eavesdropping

(1) A person is guilty of eavesdropping when he intentionally uses any device to eavesdrop, whether or not he is present at the time.
(2) Eavesdropping is a Class D felony.

KRS 526.030 Installing eavesdropping device

(1) A person is guilty of installing an eavesdropping device when he intentionally installs or places such a device in any place with the knowledge that it is to be used for eavesdropping.
(2) Installing an eavesdropping device is a Class D felony.

KRS 526.040 Possession of eavesdropping device

(1) A person is guilty of possession of an eavesdropping device when he possesses any electronic, mechanical or other device designed or commonly used for eavesdropping with intent to use that device to eavesdrop or knowing that another intends to use that device to eavesdrop.
(2) Possession of an eavesdropping device is a Class A misdemeanor.

KRS 526.050 Tampering with private communications

(1) A person is guilty of tampering with private communications when knowing that he does not have the consent of the sender or receiver. he unlawfully:
    (a) Opens or reads a sealed letter or other sealed private communication; or
    (b) Obtains in any manner from an employee, officer or representative of a communications common carrier information with respect to the contents or nature of a communication.
(2) The provisions of this section do not apply to the censoring of sealed letters or sealed communications for security purposes in official detention or penal facilities.
(3) Tampering with private communications is a Class A misdemeanor.

KRS 526.060 Divulging illegally obtained information

(1) A person is guilty of divulging illegally obtained information when he knowingly uses or divulges information obtained through eavesdropping or tampering with private communications or learned in the course of employment with a communications common carrier engaged in transmitting the message.
(2) Divulging illegally obtained information is a Class A misdemeanor.

KRS 526.070 Eavesdropping - Exceptions

A person is not guilty under this chapter when he:
(1) Inadvertently overhears the communication through a regularly installed telephone party line or on a telephone extension but does not divulge it; or
(2) Is an employee of a communications common carrier who while acting in the course of his employment, intercepts, discloses or uses a communication transmitted through the facilities of his employer for a purpose which is a necessary incident to the rendition of the service or to the protection of the rights of the property of the carrier of such communication, provided however that communications common carriers shall not utilize service observing or random monitoring except for mechanical or service quality control checks.

KRS 526.080 Forfeiture

Any electronic, mechanical or other device designed or commonly used for eavesdropping which is possessed or used in violation of this chapter, is forfeited to the state and shall be disposed of in accordance with KRS 500.090.

KRS CHAPTER 527
OFFENSES RELATING TO FIREARMS AND WEAPONS

KRS 527.010 Definitions for chapter

The following definitions apply in this chapter unless the context otherwise requires:
(1) "**Booby trap device**" shall have the same meaning as set forth in KRS 237.030.
(2) "**Deface**" means to remove, deface, cover, alter, or destroy the manufacturer's serial number or any other distinguishing number or identification mark.
(3) "**Destructive device**" shall have the same meaning as set forth in KRS 237.030.
(4) "**Firearm**" means any weapon which will expel a projectile by the action of an explosive.
(5) "**Handgun**" means any pistol or revolver originally designed to be fired by the use of a single hand, or any other firearm originally designed to be fired by the use of a single hand.

KRS 527.020 Carrying concealed deadly weapon

(1) A person is guilty of carrying a concealed weapon when he carries concealed a firearm or other deadly weapon on or about his person in violation of this section.
(2) Peace officers and certified court security officers, when necessary for their protection in the discharge of their official duties; United States mail carriers when actually engaged in their duties; and agents and messengers of express companies, when necessary for their protection in the discharge of their official duties, may carry concealed weapons on or about their person.
(3) The director of the Division of Law Enforcement in the Department of Fish and Wildlife Resources, conservation officers of the Department of Fish and Wildlife Resources, and policemen directly employed by state, county, city, or urban-county governments may carry concealed deadly weapons on or about their person at all times within the Commonwealth of Kentucky, when expressly authorized to do so by law or by the government employing the officer.
(4) Persons, carrying concealed weapons in accordance with KRS 237.109 or licensed to carry a concealed deadly weapon pursuant to KRS 237.110 may carry a concealed firearm or other concealed deadly weapon on or about their persons at all times within the Commonwealth of Kentucky, if the firearm or concealed deadly weapon is carried in conformity with the requirements of KRS 237.109 or KRS 237.110. Unless otherwise specifically provided by the Kentucky Revised Statutes or applicable federal law, no criminal penalty shall attach to carrying a concealed firearm or other deadly weapon at any location at which an unconcealed firearm or other deadly weapon may be constitutionally carried. No person or organization, public or private, shall prohibit a person from possessing a firearm, ammunition, or both, or other deadly weapon in his or her vehicle in compliance with the provisions of KRS 237.109, KRS 237.110 and 237.115. Any attempt by a person or organization, public or private, to violate the provisions of this subsection may be the subject of an action for appropriate relief or for damages in a Circuit Court or District Court of competent jurisdiction.

(5) (a) The following persons, if they hold a license to carry a concealed deadly weapon pursuant to KRS 237.110 or 237.138 to 237.142, may carry a firearm or other concealed deadly weapon on or about their persons at all times and at all locations within the Commonwealth of Kentucky, without limitation other than as provided in this subsection:
1. A Commonwealth's attorney or assistant Commonwealth's attorney;
2. A retired Commonwealth's attorney or retired assistant Commonwealth's attorney;
3. A county attorney or assistant county attorney;
4. A retired county attorney or retired assistant county attorney;
5. A justice or judge of the Court of Justice;
6. A retired or senior status justice or judge of the Court of Justice; and
7. A retired peace officer who holds a concealed deadly weapon license issued pursuant to the federal Law Enforcement Officers Safety Act, 18 U.S.C. sec. 926C, and KRS 237.138 to 237.142.

(b) The provisions of this subsection shall not authorize a person specified in this subsection to carry a concealed deadly weapon in a detention facility as defined in KRS 520.010 or on the premises of a detention facility without the permission of the warden, jailer, or other person in charge of the facility, or the permission of a person authorized by the warden, jailer, or other person in charge of the detention facility to give such permission. As used in this section, "detention facility" does not include courtrooms, facilities, or other premises used by the Court of Justice or administered by the Administrative Office of the Courts.

(c) A person specified in this section who is issued a concealed deadly weapon license shall be issued a license which bears on its face the statement that it is valid at all locations within the Commonwealth of Kentucky and may have such other identifying characteristics as determined by the Kentucky State Police.

(6) (a) Except as provided in this subsection, the following persons may carry concealed deadly weapons on or about their person at all times and at all locations within the Commonwealth of Kentucky:
1. An elected sheriff and full-time and part-time deputy sheriffs certified pursuant to KRS 15.380 to 15.404 when expressly authorized to do so by the unit of government employing the officer;
2. An elected jailer and a deputy jailer who has successfully completed Department of Corrections basic training and maintains his or her current in-service training when expressly authorized to do so by the jailer;
3. The department head or any employee of a corrections department in any jurisdiction where the office of elected jailer has been merged with the office of sheriff who has successfully completed Department of Corrections basic training and maintains his or her current in-service training when expressly authorized to do so by the unit of government by which he or she is employed.

(b) The provisions of this subsection shall not authorize a person specified in this subsection to carry a concealed deadly weapon in a detention facility as defined in KRS 520.010 or on the premises of a detention facility without the permission of the warden, jailer, or other person in charge of the facility, or the permission of a person authorized by the warden, jailer, or other person in charge of the detention facility to give such permission. As used in this section, "detention facility" does not include courtrooms, facilities, or other premises used by the Court of Justice or administered by the Administrative Office of the Courts.

(7) (a) A full-time paid peace officer of a government agency from another state or territory of the United States or an elected sheriff from another territory of the United States may carry a concealed deadly weapon in Kentucky, on or off duty, if the other state or territory accords a Kentucky full-time paid peace officer and a Kentucky elected sheriff the same rights by law. If the other state or territory limits a Kentucky full-time paid peace officer or elected sheriff to carrying a concealed deadly weapon while on duty, then that same restriction shall apply to a full-time paid peace officer or elected sheriff from that state or territory.

(b) The provisions of this subsection shall not authorize a person specified in this subsection to carry a concealed deadly weapon in a detention facility as defined in KRS 520.010 or on the premises of a detention facility without the permission of the warden, jailer, or other person in

charge of the facility, or the permission of a person authorized by the warden, jailer, or other person in charge of the detention facility to give such permission. As used in this section, "detention facility" does not include courtrooms, facilities, or other premises used by the Court of Justice or administered by the Administrative Office of the Courts.

(8) A loaded or unloaded firearm or other deadly weapon shall not be deemed concealed on or about the person if it is located in any enclosed container, compartment, or storage space installed as original equipment in a motor vehicle by its manufacturer, including but not limited to a glove compartment, center console, or seat pocket, regardless of whether said enclosed container, storage space, or compartment is locked, unlocked, or does not have a locking mechanism. No person or organization, public or private, shall prohibit a person from keeping a loaded or unloaded firearm or ammunition, or both, or other deadly weapon in a vehicle in accordance with the provisions of this subsection. Any attempt by a person or organization, public or private, to violate the provisions of this subsection may be the subject of an action for appropriate relief or for damages in a Circuit Court or District Court of competent jurisdiction. This subsection shall not apply to any person prohibited from possessing a firearm pursuant to KRS 527.040.

(9) The provisions of this section shall not apply to a person who carries a concealed deadly weapon on or about his or her person:
   (a) If he or she is the owner of the property or has the permission of the owner of the property, on real property which he or she or his or her spouse, parent, grandparent, or child owns;
   (b) If he or she is the lessee of the property or has the permission of the lessee of the property, on real property which he or she or his or her spouse, parent, grandparent, or child occupies pursuant to a lease; or
   (c) If he or she is the sole proprietor of the business, on real property owned or leased by the business.

(10) Carrying a concealed weapon is a Class A misdemeanor unless the defendant has been previously convicted of a felony in which a deadly weapon was possessed, used or displayed in which case it is a Class D felony.

KRS 527.030 Defacing a firearm

(1) A person is guilty of defacing a firearm when he intentionally defaces a firearm.
(2) Defacing a firearm is a Class A misdemeanor.

KRS 527.040 Possession of firearm by convicted felon - Exceptions

(1) A person is guilty of possession of a firearm by a convicted felon when he possesses, manufactures, or transports a firearm when he has been convicted of a felony, as defined by the laws of the jurisdiction in which he was convicted, in any state or federal court and has not:
   (a) Been granted a full pardon by the Governor or by the President of the United States; or
   (b) Been granted relief by the United States Secretary of the Treasury pursuant to the Federal Gun Control Act of 1968 as amended.

(2) (a) Possession of a firearm by a convicted felon is a Class D felony unless the firearm possessed is a handgun in which case it is a Class C felony.
   (b) If a felon is convicted of a criminal offense other than possession of a firearm by a convicted felon, and he or she possessed a firearm in commission of that offense, then the felon shall be penalized for violating this section one (1) class more severely if it is a second or subsequent violation of this section.

(3) The provisions of this section shall apply to any youthful offender convicted of a felony offense under the laws of this Commonwealth. The exceptions contained in KRS 527.100 prohibiting possession of a handgun by a minor shall not apply to this section.

(4) The provisions of this section with respect to handguns shall apply only to persons convicted after January 1, 1975, and with respect to other firearms, to persons convicted after July 15, 1994.

KRS 527.050 Possession of a defaced firearm

(1) A person is guilty of possession of a defaced firearm when he knowingly possesses a defaced firearm unless he makes a report to the police or other appropriate government agency of such possession prior to arrest or authorization of a warrant by a court.

(2) Possession of a defaced firearm is a Class A misdemeanor.

KRS 527.060 Forfeiture

Upon the conviction of any person for the violation of any law of this Commonwealth in which a deadly weapon was used, displayed or unlawfully possessed by such person the court shall order the weapon forfeited to the state and sold, destroyed or otherwise disposed of in accordance with KRS 500.090.

KRS 527.070 Unlawful possession of a weapon on school property – Posting of sign - Exemptions

(1) A person is guilty of unlawful possession of a weapon on school property when he knowingly deposits, possesses, or carries, whether openly or concealed, for purposes other than instructional or school-sanctioned ceremonial purposes, or the purposes permitted in subsection (3) of this section, any firearm or other deadly weapon, destructive device, or booby trap device in any public or private school building or bus, on any public or private school campus, grounds, recreation area, athletic field or any other property owned, used, or operated by any board of education, school, board of trustees, regents, or directors for the administration of any public or private educational institution. The provisions of this section shall not apply to institutions of postsecondary or higher education.

(2) Each chief administrator of a public or private school shall display about the school in prominent locations, including, but not limited to, sports arenas, gymnasiums, stadiums, and cafeterias, a sign at least six (6) inches high and fourteen (14) inches wide stating:

UNLAWFUL POSSESSION OF A WEAPON ON SCHOOL PROPERTY IN KENTUCKY IS A FELONY PUNISHABLE BY A MAXIMUM OF FIVE (5) YEARS IN PRISON AND A TEN THOUSAND DOLLAR ($10,000) FINE.

Failure to post the sign shall not relieve any person of liability under this section.

(3) The provisions of this section prohibiting the unlawful possession of a weapon on school property shall not apply to:

(a) An adult who is not a pupil of any secondary school and who possesses a firearm, if the firearm is contained within a vehicle operated by the adult and is not removed from the vehicle, except for a purpose permitted herein, or brandished by the adult, or by any other person acting with expressed or implied consent of the adult, while the vehicle is on school property;

(b) Any pupils who are members of the reserve officers training corps or pupils enrolled in a course of instruction or members of a school club or team, to the extent they are required to carry arms or weapons in the discharge of their official class or team duties;

(c) Any peace officer or police officer authorized to carry a concealed weapon pursuant to KRS 527.020;

(d) Persons employed by the Armed Forces of the United States or members of the National Guard or militia when required in the discharge of their official duties to carry arms or weapons;

(e) Civil officers of the United States in the discharge of their official duties. Nothing in this section shall be construed as to allow any person to carry a concealed weapon into a public or private elementary or secondary school building;

(f) Any other persons, including, but not limited to, exhibitors of historical displays, who have been authorized to carry a firearm by the board of education or board of trustees of the public or private institution;

(g) A person hunting during the lawful hunting season on lands owned by any public or private educational institution and designated as open to hunting by the board of education or board of trustees of the educational institution;

(h) A person possessing unloaded hunting weapons while traversing the grounds of any public or private educational institution for the purpose of gaining access to public or private lands open to hunting with the intent to hunt on the public or private lands, unless the lands of the educational institution are posted prohibiting the entry; or

(i) A person possessing guns or knives when conducting or attending a "gun and knife show" when the program has been approved by the board of education or board of trustees of the educational institution.

(4) Unlawful possession of a weapon on school property is a Class D felony.

KRS 527.080 Using restricted ammunition during the commission of a crime - Exception

(1) A person is guilty of using restricted ammunition during the commission of a crime when he commits any felony offense under this code and is armed at the time of the commission of the offense or in the immediate flight therefrom with a firearm loaded, as defined in KRS 237.060, with armor-piercing ammunition as defined in KRS 237.060 or flanged ammunition as defined in KRS 237.060.

(2) Using restricted ammunition during the commission of a crime is:
   (a) A Class D felony if no shot is fired;
   (b) A Class C felony if a shot is fired and no person is killed or wounded thereby;
   (c) A Class B felony if a shot is fired and a person other than the defendant or an accomplice of the defendant is wounded by the shot; and
   (d) A Class A felony if a shot is fired and a person other than the defendant or an accomplice of the defendant is killed by the shot.

(3) The provisions of this section are intended to be a separate offense from the underlying crime, which shall be punished separately. If a person is convicted of this offense, his sentence shall be served consecutively to the sentence for the underlying offense.

(4) The provisions of this section shall not apply to any person who is justified in acting pursuant to the provisions of KRS Chapter 503.

KRS 527.090 Fraudulent firearm transaction

(1) As used in this section:
   (a) “Licensed dealer” means a person who is licensed pursuant to 18 U.S.C. sec. 923 and pursuant to any laws of this Commonwealth and engages in the business of dealing in firearms;
   (b) “Materially false information” means information that portrays an illegal transaction as legal or a legal transaction as illegal; and
   (c) “Private seller” means a person who sells or offers for sale any firearm.

(2) A person is guilty of fraudulent firearm transaction when he or she knowingly;
   (a) Solicits, persuades, encourages, or entices a licensed dealer or private seller of firearms to transfer a firearm under circumstances which the person knows would violate the laws of this Commonwealth or the United States;
   (b) Provides to a licensed dealer or private seller of firearms what the person knows to be materially false information with intent to deceive the dealer or seller about the legality of a transfer of a firearm; or
   (c) Procures another to engage in conduct prohibited by this section.

(3) Fraudulent firearm transaction is a Class D felony.

KRS 527.100 Possession of a handgun by a minor

(1) A person is guilty of possession of a handgun by a minor when, being under the age of eighteen (18) years, he possesses, manufactures, or transports a handgun as defined by KRS 527.010, except when the person is:
   (a) In attendance at a hunter's safety course or a firearms safety course;
   (b) Engaging in practice in the use of a firearm, or target shooting at an established firing range, or any other area where the discharge of a firearm is not prohibited;
   (c) Engaging in an organized competition involving the use of a firearm, or participating in or practicing for a performance by a group organized under Section 501(c)(3) of the Internal Revenue Code or any successor thereto which uses firearms as a part of the performance;
   (d) Hunting or trapping pursuant to a valid license issued to him pursuant to the statutes or administrative regulations of this Commonwealth;

(e) Traveling to or from any activity described in paragraphs (a) to (d) of this subsection with any unloaded handgun in his possession;
(f) On real property which is under the control of an adult and has the permission of that adult and his parent or legal guardian to possess a handgun; or
(g) At his residence and with the permission of his parent or legal guardian possesses a handgun and is justified under the principles of justification set forth in KRS Chapter 503 in using physical force or deadly physical force.

(2) For the purposes of subsection (1) of this section, a handgun is "loaded" if:
(a) There is a cartridge in the chamber of the handgun; or
(b) There is a cartridge in the cylinder of the handgun, if the handgun is a revolver; or
(c) There is a cartridge in the magazine of a semiautomatic handgun, if the magazine is attached to the handgun; or
(d) The handgun and the ammunition for the handgun, are carried on the person of one under the age of eighteen (18) years or are in such close proximity to him that he could readily gain access to the handgun and the ammunition and load the handgun.

(3) Possession of a handgun by a minor is a Class A misdemeanor for the first offense and a Class D felony for each subsequent offense.

KRS 527.110 Unlawfully providing a handgun to a juvenile or permitting a juvenile to possess a handgun

(1) A person is guilty of unlawfully providing a handgun to a juvenile or permitting a juvenile to possess a handgun when he:
(a) Intentionally, knowingly, or recklessly provides a handgun, with or without remuneration, in violation of KRS 527.040, 527.100, or 600.020 to any person he knows or has reason to believe is under the age of eighteen (18) years; or
(b) Is the parent or legal guardian of a juvenile and intentionally, knowingly, or recklessly provides a handgun to the juvenile or permits the juvenile to possess a handgun knowing that there is a substantial risk that the juvenile will use a handgun to commit a felony offense; or, with knowledge that the juvenile has been convicted of a crime of violence as defined in KRS 439.3401 or has been adjudicated a public offender of an offense which would constitute a crime of violence as defined in KRS 439.3401, provides a handgun to that juvenile.

(2) Unlawfully providing a handgun to a juvenile or permitting a juvenile to possess a handgun is a Class D felony.

KRS 527.200 Use of a weapon of mass destruction in the first degree

(1) A person is guilty of use of a weapon of mass destruction in the first degree when he or she intentionally, without lawful authority, places a weapon of mass destruction at any location in the Commonwealth and, as a result, any person other than the defendant is killed or receives serious physical injury.

(2) A weapon of mass destruction is used with lawful authority if it is used with the written permission of an agency of the Commonwealth or of a city, county, charter county, or urban-county government having jurisdiction over the use of destructive devices as defined in KRS 237.030 or the use of explosives.

(3) Use of a weapon of mass destruction in the first degree is a Class A felony unless a person other than the defendant is killed as a result, in which case it is a capital offense.

KRS 527.205 Use of a weapon of mass destruction in the second degree

(1) A person is guilty of use of a weapon of mass destruction in the second degree when intentionally, without lawful authority, he or she:
(a) Places a weapon of mass destruction at any location in the Commonwealth and, as a result, any person other than the defendant receives physical injury; or
(b) Places a weapon of mass destruction on:
(1) The real property or any building of any public or private elementary or secondary school, vocational school, or institution of postsecondary education;
(2) A school bus or other vehicle owned, operated, or leased by a school;

(3) The real property or any building, public or private, that is the site of an official school-sanctioned function: or
(4) The real property or any building owned or licensed by a government agency.
and no person dies or receives any physical injury.

(2) A weapon of mass destruction is used with lawful authority if it is used with the written permission of an agency of the Commonwealth or of a city, county, charter county, or urban-county government having jurisdiction over the use of destructive devices as defined in KRS 237.030 or the use of explosives.
(3) Use of a weapon of mass destruction in the second degree is a Class B felony.

KRS 527.210 Use of a weapon of mass destruction in the third degree

(1) Except as provided in KRS 527.205, a person is guilty of use of a weapon of mass destruction in the third degree when intentionally, without lawful authority, he or she places a weapon of mass destruction at any location in the Commonwealth.
(2) A weapon of mass destruction is used with lawful authority if it is used with the written permission of an agency of the Commonwealth or of a city, county, charter county, or urban-county government having jurisdiction over the use of destructive devices as defined in KRS 237.030 or the use of explosives.
(3) Use of a weapon of mass destruction in the third degree is a Class C felony.

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KRS CHAPTER 528
GAMBLING

KRS 528.010 Definitions

The following definitions apply in this chapter unless the context otherwise requires:

(1) "**Advancing gambling activity**" -- A person "advances gambling activity" when, acting other than as a player, he engages in conduct that materially aids any form of gambling activity. The conduct shall include, but is not limited to, conduct directed toward the establishment of the particular game, contest, scheme, device, or activity involved; toward the acquisition or maintenance of premises, paraphernalia, equipment, or apparatus therefor; toward the solicitation or inducement of persons to participate therein; toward the actual conduct of the playing phases thereof; toward the arrangement of any of its financial or recording phases or toward any other phase of its operation. A person who gambles at a social game of chance on equal terms with other participants does not otherwise advance gambling activity by performing acts, without remuneration or fee, directed toward the arrangement or facilitation of the game as inviting persons to play, permitting the use of premises therefor and supplying equipment used therein.

(2) "**Bookmaking**" means advancing gambling activity by unlawfully accepting bets upon the outcome of future contingent events from members of the public as a business.

* * * * *

(4) (a) **"Coin-operated amusement machine"** means a lawful machine or device that requires the direct or indirect payment of consideration, including but not limited to the insertion of a coin, currency, ticket, token, or similar object, or the depositing of funds with the operator or owner of the device, and that contains no material element of chance and automatically, by or through some mechanical operation, affords music or amusement of some character with or without vending any merchandise, but in addition to any merchandise.

(b) A coin-operated amusement machine shall not deliver or entitle the person playing or operating the game to receive cash, cash equivalents, gift cards, or vouchers, billets, tickets, tokens, electronic credits or any item that can be exchanged for cash, cash equivalents, gift cards, merchandise, or something of value, unless otherwise provided under this section.

(c) A coin-operated amusement machine may entitle the person playing to a noncash, merchandise prize or a voucher, billet, ticket, token, or electronic credit redeemable only for a noncash, merchandise prize under the following rules

1. The wholesale value of a merchandise prize awarded as a result of the single play of a machine, either directly or as a result of redemption of a redeemable voucher, does not exceed twenty-five dollars ($25);
2. Redeemable vouchers are not redeemable for any merchandise prize that has a wholesalevalue of more than twenty-five dollars ($25) times the fewest number of single plays necessary to accrue the redeemable vouchers required to obtain that prize; and
3. Any redeemable vouchers or merchandise prizes are distributed at the site of the coin operated amusement machine at the time of play.

(d) The noncash merchandise prize shall not be:

1. An alcoholic beverage;
2. Eligible for purchase or repurchase; or
3. Exchangeable for any cash, cash equivalents, or something of value whatsoever;

(5) (a) "E-sports competition" means a league, competitive circuit, tournament, or similar competition in which:

1. Two (2) or more participants or teams of participants compete directly against each other for entertainment and prizes in the same video game at the same time, typically for spectators;
2. Results are determined solely on the basis of the skill of the players;
3. The number of participants is fixed before the beginning of the competition;
4. Any fee collected to participate in the competition shall be collected from all participants before the competition begins;
5. At least one (1) participant shall receive something of value based on the results of the competition; and
6. The value of any prize shall be predetermined before the competition begins.

(b) E-sports shall not include traditional casino games which include but are not limited to poker, roulette, craps, or blackjack;

(6) (a) **"Gambling"** means staking or risking something of value upon the outcome of a contest, game, gaming scheme, or gaming device which is based upon an element of chance, in accord with an agreement or understanding that someone will receive something of value in the event of a certain outcome. "Gambling" includes playing or offering for play any game, contest, or competition utilizing a gambling device.

(b) **"Gambling"** does not include:

1. A contest or game in which eligibility to participate is determined by chance and the ultimate winner is determined by skill;
2. Charitable gaming which is licensed and regulated under the provisions of KRS Chapter 238;
3. E-sports competitions;
4. Skill-based contests; or
5. The use or operation of any devices or machines that are described in subsection (7)(b) of this section;

(7)(a)"**Gambling device**" means:

1. Any so-called slot machine or any other machine or mechanical device which when operated may deliver, as a result of the application of any element of chance, any money or property, or by the operation of which a person may become entitled to receive, as the result of the application of any element of chance, any money or property;
2. Any mechanical or electronic device permanently located in a business establishment, including a private club, that is offered or made available to a person to play or participate in a simulated gambling program in return for direct or indirect consideration, including but not limited to consideration paid for Internet access or computer time, or a sweepstakes entry, which when operated may deliver as a result of the application of any element of chance, regardless of whether the result is also partially or predominantly based on skill, any money or property, or by the operation of which a person may become entitled to receive, as the result of the application of any element of chance, regardless of whether the result is also partially or predominantly based on skill, any money or property;
3. Any other machine or any mechanical, electronic, or other device, including but not limited to roulette wheels, gambling tables and similar devices, designed and manufactured primarily for use in connection with gambling and which when operated may deliver, as the result of the application of any element of chance, any money or property, or by the operation of which a person may become entitled to receive, as the result of the application of any element of chance, any money or property;
4. Any electronic, computerized, or mechanical contrivance, terminal, machine, or other device that:
   a. Requires the direct or indirect payment of consideration which may include and shall not be limited to the insertion of a coin, currency, ticket, token, or similar object, or by depositing funds with the operator or owner of the device, to operate, play, or activate a game; and
   b. Offers games the outcomes of which are determined by any element of skill of the player and may deliver or entitle the person playing or operating the device to receive cash, cash equivalents, or gift cards or vouchers, billets, tickets, tokens, or electronic credits to be exchanged for cash or to receive merchandise or something of value, whether the payoff is made automatically from the device or manually.

(b) The following shall not be considered gambling devices within this definition:

1. Devices dispensing or selling combination or French pools on licensed, regular racetracks during races on said tracks.
2. Devices dispensing or selling combination or French Pools on historical races at licensed, regular racetracks as lawfully authorized by the Kentucky Horse Racing Commision.
3. Electro-mechanical pinball machines specially designed, constructed, set up, and kept to be played for amusement only. Any pinball machine shall be made to receive and react only to the deposit of coins during the course of a game. The ultimate and only award given directly or indirectly to any player for the attainment of a winning score or combination on any pinball machine shall be the right to play one (1) or more additional games immediately on the same device at no further cost. The maximum number of free

games that can be won, registered, or accumulated at one (1) time in operation of any pinball machine shall not exceed thirty (30) free games. Any pinball machine shall be made to discharge accumulated free games only by reactivating the playing mechanism once for each game released. Any pinball machine shall be made and kept with no meter or system to preserve a record of free games played, awarded, or discharged. Nonetheless, a pinball machine shall be a gambling device if a person gives or promises to give money, tokens, merchandise, premiums, or property of any kind for scores, combinations, or free games obtained in playing the pinball machine in which the person has an interest as owner, operator, keeper, or otherwise;

4. Devices used in the conduct of charitable gaming;
5. Coin-operated amusement machines;
6. Devices used for wagering exempted from the application of this chapter pursuant to KRS 436.480;
7. Devices used in e-sports competitions; or
8. Devices used in skill-based contests, provided such devices do not meet 25 the definition of gambling devices in paragraph (a) of this subsection;

(8) "**Lottery and gift enterprise**" means:
   (a) A gambling scheme in which:
      1. The players pay or agree to pay something of value for chances, represented and differentiated by numbers or by combinations of numbers or by some other media, one (1) or more of which are to be designated the winning ones; and
      2. The ultimate winner is to be determined by a drawing or by some other method based upon the element of chance; and
      3. The holders of the winning chances are to receive something of value.
   (b) A gift enterprise or referral sales plan which meets the elements of a lottery listed in paragraph (a) of this subsection is to be considered a lottery under this chapter.

(9) "**Mutuel**" or "**the numbers games**" means a form of lottery in which the winning chances or plays are not determined upon the basis of a drawing or other act on the part of persons conducting or connected with the scheme, but upon the basis of the outcome or outcomes of a future contingent event or events otherwise unrelated to the particular scheme.

(10)"**Player**" means a person who engages in any form of gambling solely as a contestant or bettor, without receiving or becoming entitled to receive any profit therefrom other than personal gambling winnings, and without otherwise rendering any material assistance to the establishment, conduct, or operation of the particular gambling activity. A person who engages in "bookmaking" as defined in subsection (2) of this section is not a "player." The status of a "player" shall be a defense to any prosecution under this chapter.

(11) "**Profiting from gambling activity**" -- A person "profits from gambling activity" when, other than as a player, he or she accepts or receives or agrees to accept or receive money or other property pursuant to an agreement or understanding with any person whereby he or she participates or is to participate in the proceeds of gambling activity.

(12)**"Simulated gambling program"** means any method intended to be used by a person playing, participating, or interacting with an electronic device that may, through the application of any element of chance, either deliver money or property or an entitlement to receive money or property.

(13) **"Skill"** means the knowledge, dexterity, or any other ability or expertise of a natural person;

(14)**"Skill-based contest"** means a live, in-person competitive event among two (2) or more individuals or teams of individuals in which the ultimate winner is determined by skill and the competitive event does not utilize a gambling device;

(15)(a) **"Something of value"** means any money or property, any token, object, or article exchangeable for money or property, or any form of credit or promise directly or indirectly contemplating transfer of money or property or of any interest therein, or involving extension of a service, entertainment, or a privilege of playing at a game or scheme without charge.
   (b) "Something of value" does not include the award of a free, extended, or continuous play which is awarded as a prize for playing a game or scheme for a charge.

KRS 528.020 Promoting gambling in the first degree

(1) A person is guilty of promoting gambling in the first degree when he knowingly advances or profits from unlawful gambling activity by:
   (a) Engaging in bookmaking to the extent that he employs or utilizes three or more persons in a bookmaking activity and receives or accepts in any one day bets totaling more than $500; or
   (b) Receiving in connection with a lottery or mutuel scheme or enterprise:
      (i) Money or written records from a person other than a player whose chances or plays are represented by such money or records; or
      (ii) More than $500 in any one day of money played in the scheme or enterprise; or
   (c) Setting up and operating a gambling device
(2) Promoting gambling in the first degree is a Class D felony

KRS 528.030 Promoting gambling in the second degree

(1) A person is guilty of promoting gambling in the second degree when he knowingly advances or profits from unlawful gambling activity.
(2) Promoting gambling in the second degree is a Class A misdemeanor.

KRS 528.040 Conspiracy to promote gambling

(1) A person is guilty of conspiracy to promote gambling when he conspires to advance or profit from gambling activity.
(2) "**Conspire**" means to engage in activity constituting a criminal conspiracy as defined in KRS 506.040.
(3) Conspiracy to promote gambling is a Class D felony.

KRS 528.050 Possession of gambling records in the first degree

(1) A person is guilty of possession of gambling records in the first degree when, with knowledge of the contents thereof, he possesses any writing, paper, instrument or article of a kind commonly used:
   (a) In the operation or promotion of a bookmaking scheme or enterprise and constituting, reflecting or representing bets totaling more than $500; or
   (b) In the operation, promotion or playing of a lottery or mutuel scheme or enterprise and constituting, reflecting or representing more than 500 plays or chances therein.
(2) It shall be a defense to any prosecution under this section that:
   (a) The writing, paper, instrument or article possessed by the defendant constituted, reflected or represented bets of the defendant himself in a number not exceeding ten; or
   (b) The writing, paper, instrument or article possessed by the defendant was neither used nor intended to be used in the operation or promotion of a bookmaking scheme or enterprise, or in the operation, promotion, or playing of a lottery or mutuel scheme or enterprise.
(3) Possession of gambling records in the first degree is a Class D felony.

KRS 528.060 Possession of gambling records in the second degree

(1) A person is guilty of possession of gambling records in the second degree when, with knowledge of the contents thereof he possesses any writing, paper, instrument or articles of a kind commonly used:
   (a) In the operation or promotion of a bookmaking scheme or enterprise; or
   (b) In the operation, promotion or playing of a lottery or mutuel scheme or enterprise.
(2) It shall be a defense to any prosecution under this section that:
   (a) The writing, paper, instrument, or article possessed by the defendant constituted, reflected, or represented bets of the defendant himself in a number not exceeding ten: or

(b) The writing, paper, instrument, or article possessed by the defendant was neither used nor intended to be used in the operation or promotion of a bookmaking scheme or enterprise, or in the operation, promotion, or playing of a lottery or mutuel scheme or enterprise.

(3) Possession of gambling records in the second degree is a Class A misdemeanor.

KRS 528.070 Permitting gambling

(1) A person is guilty of permitting gambling when, having possession or control of premises which he knows are being used to advance gambling activity, he fails to halt or abate or attempt to halt or abate such use within a reasonable period of time.

(2) Permitting gambling is a Class B misdemeanor.

KRS 528.080 Possession of a gambling device

(1) A person is guilty of possession of a gambling device when, with knowledge of the character thereof, he manufactures, sells, transports, places or possesses a gambling device or conducts or negotiates any transaction affecting or designed to affect ownership, custody or use of any gambling device, believing that it is to be used in the advancement of unlawful gambling activity.

(2) Possession of a gambling device is a Class A misdemeanor.

KRS 528.100 Forfeiture

(1) Any gambling device or gambling record possessed or used in violation of this chapter is forfeited to the state, and shall be disposed of in accordance with KRS 500.090.

(2) In addition to any other penalty provided by law, any person who conducts, finances, manages, supervises, directs, or owns a gambling device intended for use in the Commonwealth in violation of this chapter shall be subject to a civil penalty not to exceed twenty-five thousand dollars ($25,000) for each device, payable to the county in which the device was operated.

(3) The Attorney General, the Commonwealth's attorney for any locality, or the county attorney for any locality may cause an action in equity to be brought in the name of the Commonwealth or of the locality, as applicable, to:

(a) Enjoin the operation of a gambling device in violation of this section;

(b) Request an attachment against all such devices and any moneys within those devices pursuant to KRS 500.090; and

(c) Recover the civil penalty not to exceed twenty-five thousand dollars 10 ($25,000) per device.

KRS 528.110 Horse races, messenger betting prohibited - Exception

(1) Any person who, either for himself or as agent or employee of another, wagers money or anything of value on a horse race run or about to be run or advertised, posted or reported as being run at any race track in or out of this state, or who engages in the occupation of receiving, making, transmitting or negotiating, either in person or by messenger, telephone or telegraph, wagers on horse races run or about to be run or advertised, posted or reported as being run or about to be run at any race track in or out of the state, shall, except in the case of wagers made within the enclosure of a race track licensed by the Kentucky Horse Racing Authority during an authorized race meeting at that track, or an enclosure during regular meetings in which running, trotting or pacing races are being conducted by associations regularly organized for that purpose, be guilty of a Class A misdemeanor.

(2) In any prosecution under subsection (1) of this section, the state need not prove that the horse race upon which the wager was placed was actually run. Proof that the wager was made upon what purported to be or what was advertised, reported or understood to be a horse race shall be sufficient to establish a prima facie case for the state.

KRS 528.120 Off-track acceptance of money for pari-mutuel wagering

(1) No person, as a business or for any compensation, shall, directly or indirectly, accept any thing of value to be wagered or to be transmitted or delivered for wager to any pari-mutuel wagering enterprise, or participate in any such transmission.
(2) As used herein, "**person**" shall mean and include any individual, partnership, association, joint stock association or trust, corporation, or other business entity, whether incorporated or not.
(3) Any person violating any of the provisions of this section shall be guilty of a Class A misdemeanor.

KRS CHAPTER 529
PROSTITUTION OFFENSES

KRS 529.010 Definitions

The following definitions apply in this chapter unless the context otherwise requires:

(1) **"Abuse or threatened abuse of law or legal process"** means the use or threatened use of a law or legal process, whether administrative, civil, or criminal, in any manner or for any purpose for which the law was not designed, in order to exert pressure on another person to cause that person to take some action or refrain from taking some action;
(2) "**Advancing prostitution**"--A person "advances prostitution" when acting other than as a prostitute or as a patron thereof, he or she knowingly causes or aids a person to engage in prostitution, procures or solicits patrons for prostitution, provides persons or premises for prostitution purposes, operates or assists in the operation of a house of prostitution or a prostitution enterprise, or engages in any conduct designed to institute, aid or facilitate an act or enterprise of prostitution.
(3) **"Commercial sexual activity"** means;
  (a) Any sex act, for which anything of value is given to, promised to, or received by any person;
  (b) Participation in the production of obscene material as set out in KRS Chapter 531; or
  (c) Engaging in a sexually explicit performance;
(4) **"Debt bondage"** means the status or condition of a debtor arising from a pledge by the debtor of his or her personal services or of those of a person under his or her control as a security for the debt, if the value of those services as reasonably assessed is not applied toward the liquidation of the debt or the length and nature of those services are not respectively limited and defined;
(5) **"Forced labor or services"** means labor or services that are performed or provided by another person and that are obtained through force, fraud or coercion;
(6) **"Force, fraud, or coercion"** includes but is not limited to:
  (a) The use of threat of force, against, abduction of, restraint, or serious harm of an individual;
  (b) The abuse or threatened abuse of law or legal process;
  (c) Facilitating, controlling, or threatening to control an individual's access to a controlled substance;
  (d) Knowingly destroying, concealing, removing, confiscating, or possessing, or attempting to destroy, conceal, remove, confiscate, or possess any actual or purported passport or other immigration documents or any other actual or purported governmental identification documents of the person or family member;
  (e) Use of debt bondage; or
  (f) The use of an individual's physical or mental impairment when the impairment has a substantial adverse effect on the individual's cognitive or volitional function;
(7) **"Human trafficking"** refers to criminal activity whereby one (1) or more persons are subjected to engaging in:
  (a) Forced labor or services; or
  (b) Commercial sexual activity through the use of force, fraud, or coercion, except that if the trafficked person is under the age of eighteen (18), the commercial sexual activity need not involve force, fraud, or coercion;

* * * * *

(9) **"Labor"** means work of economic or financial value;
(10)**"Minor"** means a person under the age of eighteen (18) years;
(11) "**Profiting from prostitution**"--A person "profits from prostitution" when acting other than as a prostitute receiving compensation for personally rendered prostitution services, he or she knowingly accepts or receives or agrees to accept or receive money or other property pursuant to an agreement or understanding with any person whereby he or she participates or is to participate in proceeds of prostitution activity.
(12)**"Serious harm"** means any harm, whether physical or nonphysical, including psychological, financial, or reputational harm, that is sufficiently serious to compel a reasonable person to perform or to continue performing commercial sexual activity in order to avoid incurring that harm;
(13)**"Services"** means an ongoing relationship between a person and the actor in which the person performs activities under the supervision of or for the benefit of the actor;
(14) "**Sexual conduct**" means sexual intercourse or any act of sexual gratification involving the sex organs;
(15)**"Sexually-explicit performance"** means a performance of sexual conduct involving:
  (a) Acts of masturbation, homosexuality, lesbianism, beastiality, sexual intercourse, or deviate sexual intercourse, actual or simulated;
  (b) Physical contact with, or willful or intentional exhibition of the genitals;
  (c) Flagellation or excretion for the purpose of sexual stimulation or gratification; or
  (d) The exposure, in an obscene manner, of the unclothed or apparently unclothed human male or female genitals, pubic area or buttocks, or the female breast, whether or not subsequently obscured by a mark placed thereon, or otherwise altered, in any resulting motion picture, photograph or other visual representation, exclusive of exposure portrayed in a matter of a private, family nature not intended for distribution outside the family; and
(16)**"Victim of human trafficking"** is a person who has been subjected to human trafficking.

KRS 529.020 Prostitution

(1) Except as provided in KRS 529.120, a person is guilty of prostitution when he engages or agrees or offers to engage in sexual conduct with another person in return for a fee.
(2) Prostitution is a Class B misdemeanor.

KRS 529.040 Promoting prostitution

(1) A person is guilty of promoting prostitution when he knowingly advances or profits from prostitution.
(2) Promoting prostitution is a Class A misdemeanor, unless the person managed, supervised, controlled or owned, either alone or in association with others, a house of prostitution or a prostitution business or enterprise involving prostitution activity by two (2) or more prostitutes, in which case it is a Class D felony.

KRS 529.070 Permitting prostitution

(1) A person is guilty of permitting prostitution when, having possession or control of premises which he knows or has reasonable cause to know are being used for prostitution purposes, he fails to make reasonable and timely effort to halt or abate such use.
(2) Permitting prostitution is a Class B misdemeanor.

KRS 529.080 Loitering for prostitution purposes

(1) Except as provided in KRS 529.120, a person is guilty of loitering for prostitution purposes when he loiters or remains in a public place for the purpose of engaging or agreeing or offering to engage in prostitution.
(2) Loitering for prostitution purposes is a:
  (a) Violation for the first offense;
  (b) Class B misdemeanor for the second offense and each subsequent offense.

KRS 529.090 Persons convicted required to submit to screening for HIV infection – Prostitution or procuring prostitution with knowledge of sexually transmitted disease or HIV

(1) Any person convicted of prostitution or procuring another to commit prostitution under the provisions of KRS 529.020 shall be required to undergo screening for human immunodeficiency virus infection under direction of the Cabinet for Human Resources and, if infected, shall submit to treatment and counseling as a condition of release from probation, community control, or incarceration. Notwithstanding the provisions of KRS 214.420, the results of any test conducted pursuant to this subsection shall be made available by the Cabinet for Human Resources to medical personnel, appropriate state agencies, or courts of appropriate jurisdiction to enforce the provisions of this chapter.
(2) Any person who commits prostitution and who, prior to the commission of the crime, had tested positive for a sexually transmitted disease and knew or had been informed that he had tested positive for a sexually transmitted disease pursuant to KRS 2l4.4l0 and that he could possibly communicate such disease to another person through sexual activity is guilty of a Class A misdemeanor. A person may be convicted and sentenced separately for a violation of this subsection and for the underlying crime of prostitution.
(3) Any person who commits, offers or agrees to commit prostitution by engaging in sexual activity in a manner likely to transmit the human immunodeficiency virus and who, prior to the commission of the crime, had tested positive for human immunodeficiency virus and knew or had been informed that he had tested positive for human immunodeficiency virus and that he could possibly communicate the disease to another person through sexual activity is guilty of a Class D felony. A person may be convicted and sentenced separately for a violation of this subsection and for the underlying crime of prostitution.
(4) Any person convicted of procuring another to commit prostitution in a manner likely to transmit the human immunodeficiency virus and who, prior to the commission of the crime, had tested positive for human immunodeficiency virus and knew or had been informed that he had tested positive for human immunodeficiency virus and that he could possibly communicate the disease to another person through sexual activity is guilty of a Class D felony.

KRS 529.100 Human trafficking

(1) A person is guilty of human trafficking when the person intentionally subjects one (1) or more persons to engage in:
   (a) Forced labor or services; or
   (b) Commercial sexual activity through the use of force, fraud, or coercion, except that if the person is under the age of eighteen (18), the commercial sexual activity need not involve force, fraud, or coercion.
(2) Human trafficking is a Class B felony unless the victim of human trafficking is under eighteen (18) years of age, in which case it is a Class A felony.

KRS 529.110 Promoting human trafficking

(1) A person is guilty of promoting human trafficking when the person intentionally:
   (a) Benefits financially or receives anything of value from knowing participation in human trafficking; or
   (b) Recruits, entices, harbors, transports, provides, obtains, advertises, maintains, patronizes, or solicits by any means, or attempts to recruit, entice, harbor, transport, provide, obtain, advertise, maintain, patronize, or solicit by any means, another person, knowing that the person will be subject to human trafficking.
(2) Promoting human trafficking is a Class C felony, unless a victim of the trafficking is under eighteen (18), in which case it is a Class B felony.

KRS 529.120 Treatment of minor suspected of prostitution offense

(1) Notwithstanding KRS 529.020 or KRS 529.080, if it is determined after a reasonable period of custody for investigative purposes, that the person suspected of prostitution or loitering for

prostitution is under the age of eighteen (18), then the minor shall not be prosecuted for an offense under KRS 529.020 or KRS 529.080.

(2) A law enforcement officer who takes a minor into custody under subsection (1) of this section shall immediately make a report to the Cabinet for Health and Family Services pursuant to KRS 620.030. Pursuant to KRS 620.040, the officer may take the minor into protective custody.

(3) The Cabinet for Health and Family Services shall commence an investigation into child dependency, neglect, or abuse pursuant to KRS 620.029.

KRS 529.170 Being victim of human trafficking is affirmative defense to violation of chapter

A person charged under this chapter, or charged with an offense which is not a violent crime as defined in KRS 17.165, may assert being a victim of human trafficking as an affirmative defense to the charge.

KRS 529.180 Ignorance of human trafficking minor victim's actual age not a defense

In any prosecution under KRS 529.100 or 529.110 involving commercial sexual activity, it shall not be a defense that:

(1) The defendant was unaware of the minor's actual age;

(2) A minor consented to engage in commercial sexual activity;

(3) The intended victim of the offense is a law enforcement officer posing as a minor as a part of a criminal investigation or operation;

(4) The solicitation was unsuccessful, the conduct was not engaged in, or the law enforcement officer could not engage in the solicited offense; or

(5) The victim is charged with an offense.

KRS CHAPTER 530
FAMILY OFFENSES

KRS 530.010 Bigamy--Defense

(1) A person is guilty of bigamy when he:
   (a) Purports to marry another person knowing he has a husband or wife or knowing the other person has a husband or wife; or
   (b) Cohabits in this state after a bigamous marriage in another state.

(2) It shall be a defense to bigamy that the accused believed he was legally eligible to remarry.

(3) Bigamy is a Class D felony.

KRS 530.020 Incest

(1) A person is guilty of incest when he or she has sexual intercourse or deviate sexual intercourse, as defined in KRS 510.010, with a person whom he or she knows to be his or her parent, child, grandparent, grandchild, great-grandparent, great-grandchild, uncle, aunt, nephew, niece, brother, sister, first cousin, ancestor, or descendant. The relationships referred to herein include blood relationships of either the whole or half blood without regard to legitimacy, relationship of parent and child by adoption, and relationship of stepparent and stepchild, and relationship of step-grandparent and step-grandchild.

(2) (a) Incest is a Class C felony if the act is committed by consenting persons.
   (b) Incest is a Class B felony if committed:
      1. With a person without his or her consent;
      2. By forcible compulsion as defined in KRS 510.010; or
      3. With a person who is:
         a. Less than eighteen (18) years of age by a person three (3) or more years older; or
         b. Incapable of consent because he or she is physically helpless or mentally incapacitated as defined in KRS 510.010.
   (c) Incest is a Class A felony if committed:
      1. With a person who is less than twelve (12) years of age; or
      2. With a person without his or her consent causing serious physical injury.

KRS 530.030 Concealing birth of infant

(1) A person is guilty of concealing the birth of an infant when he conceals the corpse of a newborn child with intent to conceal the fact of its birth or to prevent a determination of whether it was born dead or alive.
(2) Concealing the birth of an infant is a Class A misdemeanor.

KRS 530.040 Abandonment of minor

(1) A person is guilty of abandonment of a minor when, as a parent, guardian or other person legally charged with the care or custody of a minor, he deserts the minor in any place under circumstances endangering his life or health and with intent to abandon him.
(2) Abandonment of a minor is a Class D felony.

KRS 530.050 Nonsupport and flagrant nonsupport

(1) A person is guilty of nonsupport:
    (a) When he or she persistently fails to provide support which he or she can reasonably provide and which the person knows he or she has a duty to provide to a minor, a child adjudged mentally disabled, an indigent spouse, or indigent parent; or
    (b) Upon a finding that a defendant obligor, subject to court order to pay any amount for the support of a minor child, is delinquent in meeting the full obligation established by the court order, and has been delinquent for a period of at least two (2) months duration.
(2) A person is guilty of flagrant nonsupport when he or she persistently fails to provide support which he or she can reasonably provide and which the person knows he has a duty to provide by virtue of a court or administrative order to a minor, a child adjudged mentally disabled, an indigent spouse, or indigent parent, and the failure results in:
    (a) An arrearage of not less than two thousand five hundred dollars ($2,500); or
    (b) Six (6) consecutive months without payment of support; or
    (c) The dependent having been placed in destitute circumstances. For the purposes of this paragraph, it shall be prima facie evidence that a dependent has been placed in destitute circumstances if the dependent is a recipient of public assistance as defined in KRS 205.010.
(3) A person has a duty to provide support for an indigent spouse, a minor child or children, or a child or children adjudged mentally disabled and, for purposes of this section, is presumed to know of that duty.
(4) Any person who is eighteen (18) years of age or over, residing in this state and having in this state a parent who is destitute of means of subsistence and unable because of old age, infirmity, or illness to support himself or herself, has a duty to provide support for such parent and, for purposes of this section, is presumed to know of that duty.
(5) Nonsupport is a Class A misdemeanor. For a second offense, the person shall receive a minimum sentence of seven (7) days in jail. For a third or any subsequent offense, the person shall receive a minimum sentence of thirty (30) days in jail.
(6) Flagrant nonsupport is a Class D felony.

KRS 530.060 Endangering welfare of minor

(1) A parent, guardian or other person legally charged with the care or custody of a minor is guilty of endangering the welfare of a minor when he fails or refuses to exercise reasonable diligence in the control of such child to prevent him from becoming a neglected, dependent or delinquent child.
(2) Endangering the welfare of a minor is a Class A misdemeanor.

KRS 530.064 Unlawful transaction with a minor in the first degree

(1) A person is guilty of unlawful transaction with a minor in the first degree when he or she knowingly induces, assists, or causes a minor to engage in:
    (a) Illegal sexual activity; or
    (b) Illegal controlled substances activity other than activity involving marijuana or salvia as

defined in KRS 218A.010(36);

Except those offenses involving minors in KRS Chapter 531 ***[Pornography]*** and in KRS 529.100 where that offense involves commercial sexual activity. ***[Human trafficking]***.

(2) Unlawful transaction with a minor in the first degree is a:
   (a) Class C felony if the minor so used is less than eighteen (18) years old at the time the minor engages in the prohibited activity;
   (b) Class B felony if the minor so used is less than sixteen (16) years old at the time the minor engages in the prohibited activity; and
   (c) Class A felony if the minor so used incurs physical injury thereby.

KRS 530.065 Unlawful transaction with a minor in the second degree

(1) A person is guilty of unlawful transaction with a minor in the second degree when he knowingly induces, assists, or causes a minor to engage in illegal controlled substances activity involving marijuana, illegal gambling activity, or any other criminal activity constituting a felony.
(2) Unlawful transaction with a minor in the second degree is a Class D felony.

KRS 530.070 Unlawful transaction with a minor in the third degree

(1) A person is guilty of unlawful transaction with a minor in the third degree when:
   (a) Acting other than as a retail licensee, he knowingly sells, gives, purchases or procures any alcoholic or malt beverage in any form to or for a minor. The defendant may prove in exculpation that the sale was induced by the use of false, fraudulent, or altered identification papers or other documents and that the appearance and character of the purchaser were such that his age could not have been ascertained by any other means and that the purchaser's appearance and character indicated strongly that he was of legal age to purchase alcoholic beverages. This subsection does not apply to a parent or guardian of the minor; or
   (b) He knowingly induces, assists, or causes a minor to engage in any other criminal activity; or
   (c) He knowingly induces, assists or causes a minor to become a habitual truant; or
   (d) He persistently and knowingly induces, assists or causes a minor to disobey his parent or guardian.
(2) Unlawful transaction with a minor in the third degree is a Class A misdemeanor.

KRS 530.080 Endangering the welfare of incompetent person

(1) A person is guilty of endangering the welfare of an incompetent person when he knowingly acts in a manner which results in an injury to the physical or mental welfare of a person who is unable to care for himself because of mental illness or intellectual disability.
(2) Endangering the welfare of an incompetent person is a Class A misdemeanor.

KRS CHAPTER 531
PORNOGRAPHY

KRS 531.010 Definitions

As used in this chapter:

(1) **"Child sex doll"** means an anatomically correct or anatomically precise doll, mannequin, or robot that may consist of an entire body, pelvis, or any other body part, with features of, or with features that resemble, those of a minor and intended for use in sexual acts;

(2) **"Computer"** means electronic, magnetic, optical, electrochemical, or other high-speed data processing device performing logical, arithmetic, or storage functions, including but not limited to personal computers, laptops, computer software, computer servers, processors, coprocessors, memory devices, storage devices, and input and output devices;

(3) **"Computer-generated image"** means any visual depiction, including any photograph, film, video, or picture, where the depiction has been created, adapted, or modified by a computer to appear to be an identifiable person;

(4) "**Distribute**" means to transfer possession of, whether with or without consideration;

(5) **"Identifiable person"** means a person who is recognizable by the person's face, likeness, or other distinguishing characteristic;
(6) **"Matter"** means any:
 (a) Book, magazine, newspaper, or other printed or written material;
 (b) Picture, drawing, photograph, motion picture, live image transmitted over the internet or other electronic network, other pictorial representation, or computer-generated image;
 (c) Statue, child sex doll, or other figure; or
 (d) Recording, transcription, or mechanical, chemical, or electrical reproduction, or any other articles, equipment, machines, or materials;
(7) "**Obscene**" means:
 (a) To the average person, applying contemporary community standards, the predominant appeal of the matter, taken as a whole, is to prurient interest in sexual conduct;
 (b) The matter depicts or describes the sexual conduct in a patently offensive way; and
 (c) The matter, taken as a whole, lacks serious literary, artistic, political, or scientific value;
 EDITOR'S NOTE: "What is obscene" requires a judicial decision.
(8) **"Private erotic matter"** means an obscene visual image, including a photograph, film, video recording, computer-generated image, or digital reproduction, of an identifiable person, depicting sexual conduct or the exposure of uncovered human genitals, buttocks, or nipple of the female breast. A person may be identifiable from the image itself or from information distributed in connection with the visual image; and
(9) "**Sexual conduct**" means acts of masturbation, homosexuality, lesbianism, bestiality, sexual intercourse, or deviate sexual intercourse; or physical contact with the genitals, flagellation, or excretion for the purpose of sexual stimulation or gratification.

KRS 531.020 Distribution of obscene matter

(1) A person is guilty of distribution of obscene matter when, having knowledge of its content and character, he:
 (a) Sends or causes to be sent into this state for sale or distribution; or
 (b) Brings or causes to be brought into this state for sale or distribution; or
 (c) In this state, he:
  (i) Prepares, or
  (ii) Publishes, or
  (iii) Prints, or
  (iv) Exhibits, or
  (v) Distributes, or
  (vi) Offers to distribute, or
  (vii) Has in his possession with intent to distribute, exhibit or offer to distribute,
  any obscene matter.
(2) Distribution of obscene matter is a Class B misdemeanor unless the defendant has in his possession more than one unit of material coming within the provisions of this chapter, in which case it shall be a Class A misdemeanor.

KRS 531.030 Distribution of obscene matter to minors

(1) A person is guilty of distribution of obscene material to minors when, knowing a person to be a minor, or having possession of such facts that he should reasonably know that such person is a minor, and with knowledge of the content and character of the material, he knowingly;
 (a) Sends or causes to be sent; or
 (b) Exhibits; or
 (c) Distributes, or offers to distribute,
 obscene material to a minor.
(2) Distribution of obscene materials to minors is a Class A misdemeanor unless the defendant has previously been convicted of violation of this section or of KRS 531.020, in which case it shall be a Class D felony.

KRS 531.040 Using minors to distribute obscene material

(1) A person is guilty of using minors to distribute obscene material when knowing a person to be a minor, or having possession of such facts that he should reasonably know such person is a minor, and knowing of the content and character of the material, he knowingly:
   (a) Hires; or
   (b) Employs; or
   (c) Uses;
   a minor to do or assist in doing any of the acts prohibited by KRS 531.020.
   (3) Using minors to distribute obscene material is a Class A misdemeanor unless the defendant has previously been convicted of violation of this section or KRS 531.030, in which case it shall be a Class D felony.

KRS 531.050 Advertising obscene material

(1) A person is guilty of advertising obscene material when, having knowledge of its content and character thereof, he writes or creates advertising or solicits anyone to publish such advertising or otherwise promotes the sale or distribution of obscene matter.
(2) Advertising obscene material is a Class B misdemeanor.

KRS 531.060 Promoting sale of obscenity

(1) A person is guilty of promoting sale of obscenity when he knowingly, as a condition to a sale, allocation, consignment, or delivery for resale of any paper, magazine, book, periodical, publication or other merchandise, requires that the purchaser or consignee receive any matter reasonably believed by the purchaser or consignee to be obscene, or he denies or threatens to deny a franchise, revokes or threatens to revoke, or imposes any penalty, financial or otherwise, by reason of the failure of any person to accept such matter, or by reason of the return of such matter.
(2) Promoting sale of obscenity is a Class B misdemeanor for the first offense; a Class A misdemeanor for the second offense; and a Class D felony for each subsequent offense.

KRS 531.070 Exemptions

The prohibitions and penalties imposed in this chapter shall not extend to persons having a bona fide scientific, educational, governmental, or other similar justification for conduct which would, except for such justification, be criminal under this chapter.

KRS 531.090 Voyeurism

(1) A person is guilty of voyeurism when:
   (a) He or she intentionally:
      1. Uses or causes the use of any camera, videotape, photooptical, photoelectric, or other image recording device for the purpose of observing, viewing, photographing, filming, or videotaping the sexual conduct, genitals, an undergarment worn without being publicly visible, or nipple of the female breast of another person without that person's consent; or
      2. Uses the unaided eye or any device designed to improve visual acuity for the purpose of observing or viewing the sexual conduct, genitals, an undergarment worn withoug being publicly visible, or nipple of the female breast of another person without that person's consent; or
      3. Enters or remains unlawfully in or upon the premises of another for the purpose of observing or viewing the sexual conduct, genitals, an undergarment worn withoug being publicly visible, or nipple of the female breast of another person without the person's consent; and
   (b) The other person is in a place where a reasonable person would believe that his or her sexual conduct, genitals, undergarments, or nipple of the female breast will not be observed, viewed, photographed, filmed, or videotaped without his or her knowledge.
(2) The provisions of subsection (1) of this section shall not apply to:
   (a) A law enforcement officer during a lawful criminal investigation; or

(b) An employee of the Department of Corrections, the Department of Juvenile Justice, a private prison, a local jail, or a local correctional facility whose actions have been authorized for security or investigative purposes.

(3) Unless objected to by the victim or victims of voyeurism, the court on its own motion or on motion of the Commonwealth's attorney shall:
   (a) Order the sealing of all photographs, film, videotapes, or other images that are introduced into evidence during a prosecution under this section or are in the possession of law enforcement, the prosecution, or the court as the result of a prosecution under this section; and
   (b) At the conclusion of a prosecution under this section, unless required for additional prosecutions, order the destruction of all of the photographs, film, videotapes, or other images that are in possession of law enforcement, the prosecution, or the court.

(4) Voyeurism is a Class A misdemeanor.

KRS 531.100 Video voyeurism

(1) A person is guilty of video voyeurism when he or she intentionally:
   (a) Uses or causes the use of any camera, videotape, photooptical, photoelectric, or other image recording device for the purpose of observing, viewing, photographing, filming, or videotaping the sexual conduct, genitals, or nipple of the female breast of another person without that person's consent; and
   (b) Uses or divulges any image so obtained for consideration; or
   (c) Distributes any image so obtained by live or recorded visual medium, electronic mail, the Internet, or a commercial on-line service.

(2) Video voyeurism is a Class D felony.

KRS 531.105 Application of KRS 531.100

The provisions of KRS 532.100 shall not apply to the transference of prohibited images by a telephone company, a cable television company or any of its affiliates, an Internet provider, or a commercial on-line service provider, or to the carrying, broadcasting, or performing of related activities in providing telephone, cable television, Internet, or commercial on-line services.

KRS 531.120 Private erotic matter

(1) A person is guilty of distribution of sexually explicit images without consent when:
   (a) He or she intentionally distributes to any third party private erotic matter without the written consent of the person depicted, and does so with the intent to profit, or to harm, harass, intimidate, threaten, or coerce the person depicted; and
   (b) The disclosure would cause a reasonable person to suffer harm.

(2) This section shall not apply to:
   (a) Images involving voluntary nudity or sexual conduct in public, commercial settings, or in a place where a person does not have a reasonable expectation of privacy;
   (b) Disclosures made in the public interest, including the reporting of unlawful conduct, or lawful and common practices of law enforcement, criminal reporting, corrections, legal proceedings, or medical treatment;
   (c) Disclosures of materials that constitute a matter of public concern; or
   (d) Internet service providers or telecommunications services, or interactive computer services, as defined in 47 U.S.C. sec. 230(f)(2), for content solely provided by another person.

(3) A person who maintains an Internet Web site, online service, online application, or mobile application that distributes private erotic matter shall remove any such image if requested by a person depicted, and shall not solicit or accept a fee or other consideration to remove the visual image.

(4) Distribution of sexually explicit images without consent is a Class A misdemeanor for the first offense and a Class D felony for each subsequent offense, unless the person distributes the private erotic matter for profit or gain, in which case it is a Class D felony for the first offense and a Class C felony for each subsequent offense.

(5) In this section, "consent" means the consent to transmission of images to a specific recipient or recipients. Consent to the creation of the visual image does not, by itself, constitute consent to the distribution of the visual image.
(6) Notwithstanding KRS 17.500 to 17.580, a conviction under this section shall not result in the offender being deemed a registrant or being required to register as a sex offender.

KRS 531.125 Sexual extortion

(1) A person is guilty of sexual extortion when he or she communicates, through any means, a threat to:
  (a) Injure the property or reputation of another person or commit violence against another person with the intent to coerce that person to:
    1. Engage in sexual conduct; or
    2. Produce, provide, or distribute any matter depicting that person engaging in sexual conduct or in a state of nudity or seminudity; or
  (b) Distribute any matter depicting another person engaged in sexual conduct or in a state of nudity or seminudity with the intent to coerce that person to:
    1. Engage in sexual conduct;
    2. Produce, provide, or distribute any matter depicting that person engaging in sexual conduct or in a state of nudity or seminudity;
    3. Provide the payment of money, property, services, or any other thing of value to the perpetrator; or
    4. Do any act or refrain from doing any act against his or her will.
(2) Sexual extortion is a Class A misdemeanor unless:
  (a) The victim, as a result of the commission of the offense:
    1. Engages in sexual conduct;
    2. Produces, provides, or distributes any matter depicting himself or herself engaging in sexual conduct or in a state of nudity or seminudity;
    3. Provides the payment of money, property, services, or any other thing of value to the offender;
    4. Does any act or refrains from doing any act against his or her will; or
    5. Suffers serious physical injury;
  in which case it is a Class D felony; or
  (b) 1. The person:
      a. Was previously convicted of any sexual offense under KRS Chapter 510 or a sex crime as defined in KRS 17.500(8);
      b. Occupied a position of special trust or a position of authority as those terms are defined in KRS 532.045 in relation to the victim;
      c. Used or threatened the use of a deadly weapon or dangerous instrument against the victim during the commission of the offense; or
      d. Is an adult and the victim is a minor, and there is greater than a four (4) year difference in age between them; or
    2. The offense was committed during the course of a kidnapping as described in KRS 509.040;
    in which case the person shall be charged one (1) level higher than the level otherwise specified in this subsection.
(3) If the victim attempts suicide resulting in serious physical injury or dies by suicide within ninety (90) days of the commission of the offense as a proximate result of the trauma the victim experienced during or following the commission of the offense, the person may be prosecuted for homicide under KRS Chapter 507 or assault under KRS Chapter 508.
(4) This section shall not apply to:
  (a) Images involving voluntary nudity or sexual conduct in public, commercial settings, or in a place where a person does not have a reasonable expectation of privacy;
  (b) Disclosures made in the public interest, including the reporting of unlawful conduct, or lawful and common practices of law enforcement, criminal reporting, corrections, legal proceedings, or medical treatment;
  (c) Disclosures of materials that constitute a matter of public concern; or

(d) When acting in its capacity as a provider of those services, a:
1. Broadband internet access service provider;
2. Telecommunications service provider, an interconnected VoIP service provider, or a mobile service provider as defined in 47 U.S.C. sec. 153;
3. Commercial mobile service provider as defined in 47 U.S.C. sec. 332; or
4. Cable operator as defined in 47 U.S.C. sec. 522; or

(e) An interactive computer service, as defined in 47 U.S.C. sec. 230, related to content provided by a user of the interactive computer service.

SEXUAL EXPLOITATION OF MINORS

KRS 531.300 Definitions for KRS 531.080 and 531.310 to 531.370

As used in KRS 531.080 and 531.300 to 531.370:

(1) **"Obscene"** means the predominate appeal of the matter taken as a whole is to a prurient interest in sexual conduct involving minors;

(2) **"Performance"** means any play, motion picture, photograph, dance, or any other visual representation or computer-generated image exhibited before an audience;

(3) **"Promote"** means to prepare, publish, print, procure, or manufacture, or to offer or agree to do the same;

(4) "**Sexual conduct by a minor**" means:
(a) Acts of masturbation, homosexuality, lesbianism, bestiality, sexual intercourse, or deviate sexual intercourse, actual or simulated;
(b) Physical contact with, or willful or intentional exhibition of the genitals;
(c) Flagellation or excretion for the purpose of sexual stimulation or gratification; or
(d) The exposure, in an obscene manner, of the unclothed or apparently unclothed human male or female genitals, pubic area or buttocks, or the female breast, whether or not subsequently obscured by a mark placed thereon, or otherwise altered, in any resulting motion picture, photograph, computer-generated image, or other visual representation, exclusive of exposure portrayed in matter of a private, family nature not intended for distribution outside the family;

(5) "**Sexual performance**" means any performance or part thereof which includes sexual conduct by a minor; and

(6) **"Traffic"** means to manufacture, distribute, sell, transfer, or possess with intent to manufacture, distribute, sell, or transfer.

KRS 531.306 Proof of actual identity, age, or existence of minor not required for prosecution involving computer-generated image

In any prosecution under KRS 531.300 to 531.370 where the offense involves matter or material portraying a computer-generated image of a minor, the Commonwealth shall not be required to prove the actual identity or age of the minor, or that the minor actually exists.

KRS 531.310 Use of a minor in a sexual performance

(1) A person is guilty of the use of a minor in a sexual performance if he employs, consents to, authorizes or induces a minor to engage in a sexual performance.

(2) Use of a minor in a sexual performance is:
(a) A Class C felony if the minor so used is less than eighteen (18) years old at the time the minor engages in the prohibited activity;
(b) A Class B felony if the minor so used is less than sixteen (16) years old at the time the minor engages in the prohibited activity; and
(c) A Class A felony if the minor so used incurs physical injury thereby.

KRS 531.320 Promoting a sexual performance by a minor

(1) A person is guilty of promoting a sexual performance by a minor when, knowing the character and content thereof, he or she produces, directs or promotes any performance which includes sexual conduct by a minor or computer-generated image of a minor.
(2) Promoting a sexual performance by a minor is:
   (a) A Class C felony if the minor or computer-generated image of a minor involved in the sexual performance is less than eighteen (18) years old at the time the minor or computer-generated image of a minor engages in the prohibited activity;
   (b) A Class B felony if the minor or computer-generated image of a minor involved in the sexual performance is less than sixteen (16) years old at the time the minor or computer-generated image of a minor engages in the prohibited activity; and
   (c) A Class A felony if the minor involved in the sexual performance incurs physical injury thereby.

KRS 531.330 Presumptions as to minority

(1) For purposes of KRS 529.040 where the offense involves commercial sexual activity and for the purposes of KRS 530.070, 531.080 and 531.300 to 531.370, any person who appears to be under the age of 18, or under the age of 16, shall be presumed to be under the age of 18, or under the age of 16, as the case may be.
(2) In any prosecution under KRS 529.040 where the offense involves commercial sexual activity by a minor and in any prosecution under KRS 530.070, 531.080 and 531.300 to 531.370, the defendant may prove in exculpation that he or she in good faith reasonably believed that the person involved in the performance was not a minor.
(3) In any prosecution under KRS 531.300 to 531.370 where the offense involves a computer-generated image that used an actual minor or minors as the source, the presumption of minority shall be the age of the actual minor or minors.
(4) The presumption raised in subsection (1) or (3) of this section may be rebutted by competent evidence.

KRS 531.335 Possession of matter portraying a sexual performance by a minor

(1) A person is guilty of possession or viewing of matter portraying a sexual performance by a minor when, having knowledge of its content, character, and that the sexual performance is by a minor, he or she:
   (a) Knowingly has in his or her possession or control any matter which visually depicts an actual sexual performance by a minor person or computer-generated image of a minor person**;** or
   (b) Intentionally views any matter which visually depicts an actual sexual performance by a minor person or computer-generated image of a minor person.
(2) The provisions of subsection (1)(b) of this section:
   (a) Shall only apply to the deliberate, purposeful, and voluntary viewing of matter depicting sexual conduct by a minor person or computer-generated image of a minor person and not to the accidental or inadvertent viewing of such matter; and
   (b) Shall not apply to persons viewing the matter in the course of a law enforcement investigation or criminal or civil litigation involving the matter.
(3) Possession or viewing of matter portraying a sexual performance by a minor is:
   (a) A Class D felony if the person knows that the minor or computer-generated image of a minor person portrayed is less than eighteen (18) years old at the time of the sexual performance; and
   (b) A Class C felony if the person knows that the minor or computer-generated image of a minor person portrayed is less than twelve (12) years old at the time of the performance.

KRS 531.340 Distribution of matter portraying a sexual performance by a minor

(1) A person is guilty of distribution of matter portraying a sexual performance by a minor when, having knowledge of its content and character, he or she:
   (a) Sends or causes to be sent into this state for sale or distribution;

(b) Brings or causes to be brought into this state for sale or distribution; or
(c) In this state, he or she:
1. Exhibits for profit or gain;
2. Distributes;
3. Offers to distribute; or
4. Has in his or her possession with intent to distribute; exhibit for profit or gain or offer to distribute, any matter portraying a sexual performance by a minor or computer-generated image of a minor.

(2) Any person who has in his or her possession more than one (1) unit of matter, as defined by KRS 531.010 shall be rebuttably presumed to have that matter in his or her possession with the intent to distribute it.
(3) Distribution of matter portraying a sexual performance by a minor is:
(a) A Class C felony if the person knows that the minor or computer-generated image of a minor portrayed is less than eighteen (18) years old at the time of the sexual performance; and
(b) A Class B felony for each subsequent offense, if the person knows that the minor or computer-generated image of a minor portrayed is less than twelve (12) years old at the time of the sexual performance.
(4) Any person convicted under this section shall not be released on probation or parole until he or she has served at least eighty-five percent (85%) of the sentence imposed.

KRS 531.350 Promoting sale of material portraying a sexual performance by a minor

(1) A person is guilty of promoting sale of material portraying a sexual performance by a minor when he or she knowingly, as a condition to a sale, allocation, consignment, or delivery for resale of any paper, magazine, book, periodical, publication or other merchandise, requires that the purchaser or consignee receive any matter portraying a sexual performance by a minor or computer-generated image of a minor, or he or she denies or threatens to deny a franchise, revokes or threatens to revoke, or imposes any penalty, financial or otherwise, by reason of the failure of any person to accept such matter, or by reason of the return of such matter.
(2) Promoting sale of matter portraying a sexual performance by a minor is a***:***
(a) Class A misdemeanor for the first offense;
(b) Class D felony for the second offense; and
(c) Class C felony for the third or subsequent offense.

KRS 531.360 Advertising material portraying a sexual performance by a minor

(1) A person is guilty of advertising material portraying a sexual performance by a minor when, having knowledge of its content and character thereof, he or she writes or creates advertising or solicits anyone to publish such advertising or otherwise promotes the sale or distribution of matter portraying a sexual performance by a minor or a computer-generated image of a minor.
(2) Advertising material portraying a sexual performance by a minor is a
(a) Class D felony for the first offense; and
(b) Class C felony for the second or subsequent offense.

KRS 531.365 Possession of a child sex doll

(1) A person is guilty of possession of a child sex doll when he or she knowingly possesses a child sex doll.
(2) Possession of a child sex doll is a Class D felony.

KRS 531.366 Trafficking of a child sex doll

(1) A person is guilty of trafficking a child sex doll when he or she knowingly traffics a child sex doll.
(2) Any person who has in his or her possession more than one (1) child sex doll shall be rebuttably presumed to have that child sex doll in his or her possession with the intent to traffic it.
(3) Trafficking a child sex doll is a Class C felony.

KRS 531.367 Importing a child sex doll

(1) A person is guilty of importing a child sex doll when he or she knowingly transports a child sex doll into the Commonwealth by any means with the intent to distribute, sell, or transfer the child sex doll.
(2) Any person who has in his or her possession more than one (1) child sex doll shall be rebuttably presumed to have that child sex doll in his or her possession with the intent to distribute, sell, or transfer it.
(3) Importing a child sex doll is a Class C felony.

KRS 531.368 Permitting or promoting the use of a child sex doll

(1) A person is guilty of permitting or promoting the use of a child sex doll when, he or she having possession or control of a child sex doll or having possession or control of a premises which he or she knows or has reasonable cause to know is being used for the purposes of utilizing a child sex doll, fails to make reasonable and timely effort to halt or abate such use.
(2) Permitting or promoting the use of a child sex doll is a Class C felony.

KRS 531.370 Using minors to distribute material portraying a sexual performance by a minor

(1) A person is guilty of using minors to distribute material portraying a sexual performance by a minor when knowing a person to be a minor, or having possession of such facts that he should reasonably know such person is a minor, and knowing of the content and character of the material, he knowingly:
    (a) Hires; or
    (b) Employs; or
    (c) Uses,
    a minor to do or assist in doing any of the acts prohibited by KRS 531.340.
(2) Using minors to distribute material portraying a sexual performance by a minor is a Class D felony unless the defendant has previously been convicted of violation of this section or KRS 531.030, in which case it shall be a Class C felony.

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KRS CHAPTER 532
CLASSIFICATION AND DESIGNATION OF OFFENSES – AUTHORIZED DISPOSITION
(Selected Sections)

KRS 532.005 Chapters 532, 533 and 534 to apply to crimes outside provisions of the Penal Code

KRS Chapters 532, 533 and 534 apply to all classes of crimes committed outside the provisions of the Penal Code.

KRS 532.010 Classification of offenses

Felonies are classified, for the purpose of sentencing, into five categories:
(1) Capital offenses;
(2) Class A felonies;
(3) Class B felonies;
(4) Class C felonies; and
(5) Class D felonies.

KRS 532.020 Designation of offenses

(1) Any offense defined outside this code for which a law outside this code provides a sentence to a term of imprisonment in the state for:
   (a) At least one (1) but not more than five (5) years shall be deemed a Class D felony;
   (b) At least five (5) but not more than ten (10) years shall be deemed a Class C felony;
   (c) At least ten (10) but not more than twenty (20) years shall be deemed a Class B felony;
   (d) For at least twenty (20) but not more than fifty (50) years or for life shall be deemed a Class A felony.
(2) Any offense defined outside this code for which a law outside this code provides a sentence to a definite term of imprisonment with a maximum which falls between ninety (90) days and twelve (12) months shall be deemed a Class A misdemeanor.
(3) Any offense defined outside this code for which a law outside this code provides a sentence to a definite term of imprisonment with a maximum of less than ninety (90) days shall be deemed a Class B misdemeanor.
(4) Any offense defined outside this code for which a law outside this code provides a sentence to a fine only or to any other punishment, whether in combination with a fine or not, other than death or imprisonment shall be deemed a violation.

KRS 532.029 Persistent felony offender sentencing

(1) As used in this section, "violent felony" means a felony that would classify a person as a violent offender under KRS 439.3401.
(2) Notwithstanding any other provision of this chapter, a person convicted of a violent felony who has previously been convicted of two (2) separate violent felonies shall be sentenced to:
   (a) A term of imprisonment for life without benefit of probation or parole, if the felony is not a capital offense; or
   (b) Death, or a term of imprisonment for life without benefit of probation or parole, if the felony is a capital offense.
(3) For the purpose of determining whether a person has two (2) or more separate violent felony convictions, two (2) or more convictions for which the person served concurrent or uninterrupted consecutive terms of imprisonment shall be deemed to be only one (1) conviction, unless one (1) of the convictions was for an offense committed while that person was imprisoned.

KRS 532.031 Hate crimes – Finding – Effect

(1) A person may be found by the sentencing judge to have committed an offense specified below as a result of a hate crime if the person intentionally because of race, color, religion, sexual orientation, or national origin of another individual or group of individuals or because of a person's

actual or perceived employment as a state, city, county, or federal peace officer, member of an organized fire department, or emergency medical services personnel, violates a provision of any one (1) of the following:

(a) KRS 508.010, 508.020, 508.025, or 508.030 ***[Assault 1st-4th degrees]***;
(b) KRS 508.050 ***[Menacing]*** or 508.060 ***[Wanton endangerment 1st degree]***;
(c) KRS 508.100 or 508.110 ***[Criminal abuse 1st-2nd degrees)***;
(d) KRS 509.020 ***[Unlawful imprisonment 1st degree]***;
(e) KRS 510.040, 510.050, 510.060 ***[Rape 1st-3rd degree]***, 510.070, 510.080, 510.090, 510.100 ***[Sodomy 1st-4th degree]***, or 510.110 ***[Sexual abuse 1st degree]***;
(f) KRS 512.020 ***[Criminal mischief 1st degree]***, 512.050 ***[Criminal use of a noxious substance]***, or 512.060 ***[Criminal possession of noxious substance]***;
(g) KRS 513.020, 513.030, or 513.040 ***[Arson 1st-3rd degree]***; or
(h) KRS 525.020 ***[Riot 1st degree]***, 525.050 ***[Unlawful assembly]***, 525.060 ***[Disorderly conduct]***, 525.070 ***[Harassment]***, or 525.080 ***[Harassing communications]***.

* * * * *

KRS 532.045 Person prohibited from probation or postincarceration supervision – Procedure when probation or conditional discharge not prohibited

(1) As used in this section:
(a) **"Position of authority"** means but is not limited to the position occupied by a biological parent, adoptive parent, stepparent, foster parent, relative, household member, adult youth leader, recreational staff, or volunteer who is an adult, adult athletic manager, adult coach, teacher, classified school employee, certified school employee, counselor, staff, or volunteer for either a residential treatment facility or a detention facility as defined in KRS 520.010(4), staff or volunteer with a youth services organization, religious leader, health-care provider, or employer;
(b) **"Position of special trust"** means a position occupied by a person in a position of authority who by reason of that position is able to exercise undue influence over the minor; . . . . .

* * * * *

KRS 532.046 Probation, parole, and other forms of early release – Eligibility

Notwithstanding any other provision of this chapter, or KRS 439.3401 a person shall not be eligible for probation, parole, conditional discharge, conditional release, or any other form of release prior to the completion of his or her sentence if, in the commission of the offense, he or she utilized a firearm in furtherance of the crime, and:

(1) Was previously convicted of a felony;
(2) Knew or should have known that the firearm was stolen; or
(3) Was on probation, parole, conditional discharge, conditional release, or any other form of release after conviction of a violent felony offense as defined in KRS 532.200.

KRS 532.060 Sentence of imprisonment for felony – Postincarceration supervision

(1) A sentence of imprisonment for a felony shall be an indeterminate sentence, the maximum of which shall be fixed within the limits provided by subsection (2) of this section, and subject to modification by the trial judge pursuant to KRS 532.070.
(2) Unless otherwise provided by law, the authorized maximum terms of imprisonment for felonies are:
(a) For a Class A felony, not less than twenty (20) years nor more than fifty (50) years, or life imprisonment;
(b) For a Class B felony, not less than ten (10) years nor more than twenty (20) years;
(c) For a Class C felony, not less than five (5) years nor more than ten (10) years; and
(d) For a Class D felony, not less than one (1) year nor more than five (5) years.
(3) For any felony specified in KRS Chapter 510 ***[Sexual Offenses]*** or KRS 530.020 ***[Incest]***, 530.064 ***[Unlawful Transaction With a Minor 1st Degree]***, 531.310 ***[Use of a Minor in a Sexual Performance]***, 531.320 ***[Promoting a Sexual Performance by a Minor]***, 531.335

[Possession or Viewing of Matter Portraying a sexual Performance by a Minor], or KRS 529.100 ***[Human Trafficking]***, 529.110 ***[Promoting Human Trafficking]*** or 531.340 ***[Distribution of Matter Portraying a Sexual Performance by a Minor]***, the sentence shall include an additional five (5) year period of postincarceration supervision which shall be added to the maximum sentence rendered for the offense. During this period of postincarceration supervision, if a defendant violates the provisions of postincarceration supervision, the defendant may be reincarcerated for:

(a) The remaining period of his or her initial sentence, if any is remaining; and
(b) The entire period of postincarceration supervision, or if the initial sentence has been served, for the remaining period of postincarceration supervision.

(4) In addition to the penalties provided in this section, for any person subject to a period of postincarceration supervision pursuant to KRS 532.400 his or her sentence shall include an additional one (1) year period of postincarceration supervision pursuant following release from incarceration upon expiration of sentence if the offender is not otherwise subject to another form of postincarceration supervision. During this period of postincarceration supervision, if an offender violates the provisions of supervision, the offender may be reincarcerated for the remaining period of his or her postincarceration supervision.
(5) The actual time of release within the maximum established by subsection (1) of this section, or as modified pursuant to KRS 532.070, shall be determined under procedures established elsewhere by law.

KRS 532.090 Sentence of imprisonment for misdemeanor

A sentence of imprisonment for a misdemeanor shall be a definite term and shall be fixed within the following maximum limitations:
(1) For a Class A misdemeanor, the term shall not exceed twelve (12) months; and
(2) For a Class B misdemeanor, the term shall not exceed ninety (90) days.

KRS 532.200 Definitions for KRS 532.210 to 532.250

As used in KRS 532.210 to 532.250, unless the context otherwise requires:
(1) **"Home"** means the temporary or permanent residence of a defendant consisting of the actual living area. If more than one (1) residence or family is located on a single piece of property, "home" does not include the residence of any other person who is not part of the social unit formed by the defendant's immediate family. A hospital, nursing care facility, hospice, half-way house, group home, residential treatment facility, or boarding house may serve as a "home" under this section;
(2) **"Home incarceration"** means the use of a monitoring device approved by the commissioner of the Department of Corrections to facilitate a prisoner's ability to maintain gainful employment or to participate in programs approved as a condition of his or her incarceration, or both, using the person's home for purposes of confinement;
(3) "Violent felony offense" means an offense that would classify a person as a violent offender under KRS 439.3401;
(4) **"Terminal illness"** means a medically recognized disease for which the prognosis is death within six (6) months to a reasonable degree of medical certainty; and
(5) **"Approved monitoring device"** means an electronic device or apparatus which is capable of recording, tracking, or transmitting information as to the prisoner's location or verifying the prisoner's presence or non-presence in the home, or both. The device shall be minimally intrusive. Devices shall not be used without the prisoner's knowledge to record or transmit:
(a) Visual images other than the defendant's face;
(b) Oral or wire communications or any auditory sound other than the defendant's voice; or
(c) Information as to the prisoner's activities while inside the home.

KRS 532.220 Conditions of home incarceration

The conditions of home incarceration shall include the following:
(1) The home incarceree shall be confined to his home at all times except when:
(a) Working at approved employment or traveling directly to and from such employment;

(b) Seeking employment;
(c) Undergoing available medical, psychiatric, or mental health treatment or approved counseling and after care programs;
(d) Attending an approved educational institution or program;
(e) Attending a regularly scheduled religious service at a place of worship; and
(f) Participating in an approved community work service program;

(2) Violation of subsection (1) of this section may subject the home incarceree to prosecution under KRS 520.030 (escape);
(3) The home incarceree shall conform to a schedule prepared by a designated officer of the supervising authority specifically setting forth the times when he may be absent from the home and the locations where he may be during those times;
(4) The home incarceree shall not commit another offense during the period of time for which he is subject to the conditions of home incarceration;
(5) The home incarceree shall not change the place of home incarceration or the schedule without prior approval of the supervising authority;
(6) The home incarceree shall maintain a telephone or other approved monitoring device in the home or on his person at all times;
(7) Any other reasonable conditions set by the court or the supervising authority including:
(a) Restitution under KRS 533.030;
(b) Supervision fees under KRS 439.315; and
(c) Any of the conditions imposed on persons on probation or conditional discharge under KRS 533.030(2); and

* * * * *

KRS 532.356 Reimbursement and restitution as additional sanctions – Ineligibility to operate motor vehicle upon conviction of certain theft, fraud, and organized crime offenses

(1) Upon a person's conviction and sentencing for any nonstatus juvenile offense, moving traffic violation, criminal violation, misdemeanor, or Class D felony offense, and, for the purposes of paragraph (b) of this subsection, any Class C felony offense listed in subsection (3) of this section, the court shall impose the following sanctions in addition to any imprisonment, fine, court cost, or community service:
(a) Reimbursement to the state or local government for the person's incarceration, determined by the per person, per diem, expenses of each prisoner incarcerated by the respective local government, times the number of days he has spent or shall spend in confinement, plus any medical services received by the prisoner, less copayments paid by the prisoner. The convicted person's ability to pay all or part of the reimbursement shall be considered by the sentencing court in imposing the sanction; and
(b) Restitution to the crime victim as set out in KRS 439.563, 532.032, and 532.033.
(2) In addition to any other penalty allowed by law, a court may declare the defendant ineligible to operate a motor vehicle for a period of up to sixty (60) days where the defendant is being sentenced for a conviction of KRS 514.030 involving the theft of gasoline or special fuels from a retail establishment and the defendant has been previously convicted of KRS 514.030 for a theft of gasoline or special fuels from a retail establishment. A retail establishment may post a sign at the location where the fuel is dispensed apprising the public of the sanctions available under this subsection.

* * * * *

KRS CHAPTER 533
PROBATION AND CONDITIONAL DISCHARGE
(Selected Sections)

KRS 533.050 Arrest of defendant on probation or conditional discharge – Notice and hearing – Exception under KRS 439.3108

(1) At any time before the discharge of the defendant or the termination of the sentence of probation or conditional discharge:

* * * * * *

(b) A probation officer, or peace officer acting at the direction of a probation officer, who sees the defendant violate the terms of his probation or conditional discharge may arrest the defendant without a warrant.

* * * * *

KRS CHAPTER 534
FINES
(Selected Sections)

KRS 534.030 Fines for felonies

(1) Except as otherwise provided for an offense defined outside this code, a person who has been convicted of any felony shall, in addition to any other punishment imposed upon him, be sentenced to pay a fine in an amount not less than one thousand dollars ($1,000) and not greater than ten thousand dollars ($10,000) or double his gain from commission of the offense, whichever is the greater.

* * * * *

(3) When a defendant is convicted of two (2) or more felonies committed through a single act and is sentenced to fines pursuant to subsection (1), the aggregate amount of the fines shall not exceed ten thousand dollars ($10,000) or double the amount of the defendant's gain from commission of the offenses, whichever is the greater.

* * * * *

KRS 534.040 Fines for misdemeanors and violations

* * * * *

(2) Except as otherwise provided for an offense defined outside this code, a person who has been convicted of any offense other than a felony shall be sentenced, in addition to any other punishment imposed upon him, to pay a fine in an amount not to exceed:
   (a) For a Class A misdemeanor, five hundred dollars ($500); or
   (b) For a Class B misdemeanor, two hundred fifty dollars ($250); or
   (c) For a violation, two hundred fifty dollars ($250).

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